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House of Representatives

The House met at 2 p.m. and was called to order by the Speaker pro tempore (Mr. FARENTHOLD).

DESIGNATION OF THE SPEAKER PRO TEMPORE

The SPEAKER pro tempore laid before the House the following communication from the Speaker:

WASHINGTON, DC,
April 12, 2016.

I hereby appoint the Honorable BLAKE FARENTHOLD to act as Speaker pro tempore on this day.

PAUL D. RYAN,
Speaker of the House of Representatives.

PRAYER

The Chaplain, the Reverend Patrick J. Conroy, offered the following prayer:

Dear Lord of mercy, we give You thanks for giving us another day.

At the beginning of a new work week, we use this moment to be reminded of Your presence, and to tap the resources needed by the Members of this people's House to do their work as well as it can be done.

We ask that You send Your Holy Spirit upon them, giving them the gifts of patience and diligence. With all the pressures, concerns, and worries that accompany their responsibilities, we pray that they might know Your peace, which surpasses all human understanding.

May Your voice speak to them in the depths of their hearts, illuminating their minds and spirits, thus enabling them to view the tasks of this day with confidence and hope. All this day, and through the week, may they do their best to find solutions to the pressing issues facing our Nation.

May all that is done this day be for Your greater honor and glory.

Amen.

THE JOURNAL

The SPEAKER pro tempore. The Chair has examined the Journal of the last day's proceedings and announces to the House his approval thereof.

Pursuant to clause 1, rule I, the Journal stands approved.

PLEDGE OF ALLEGIANCE

The SPEAKER pro tempore. Will the gentleman from Colorado (Mr. COFFMAN) come forward and lead the House in the Pledge of Allegiance.

Mr. COFFMAN led the Pledge of Allegiance as follows:

I pledge allegiance to the Flag of the United States of America, and to the Republic for which it stands, one nation under God, indivisible, with liberty and justice for all.

KEVIN ALTICE'S STORY

(Mr. JENKINS of West Virginia asked and was given permission to address the House for 1 minute.)

Mr. JENKINS of West Virginia. Mr. Speaker, the war on coal is a reality in West Virginia.

Let me introduce to you Kevin Altice of Mount Hope. He describes himself as a former coal miner. Why? Because he lost his job just a few months ago. He is now going back to school, but he worries about his fellow miners trying to find jobs.

Kevin is a West Virginia coal voice. Here is what he wrote to me:

''A lot of coworkers have had to move out of State for employment, a sad trend that needs to stop.

''Luckily, my wife is a schoolteacher, which helps on our income, but we have seen how the downturn in the coal industry has even impacted our education system.

''We, as West Virginians, are in dire times, and something needs done to protect our futures.''

That is Kevin's story.

As we work to diversify our State's economy, we cannot forget about providing education and retraining for these miners. My bill, the Assisting America's Dislocated Miners Act, will help provide retraining opportunities for more miners like Kevin. Our coal miners are hardworking, determined, and proud to provide for their families. All they need is a chance.

EQUAL PAY DAY

(Ms. ADAMS asked and was given permission to address the House for 1 minute.)

Ms. ADAMS. Mr. Speaker, more than five decades have passed since we signed the Equal Pay Act into law, but in 2016, women still make 79 cents to the dollar that their male counterparts make. And it is worse for women of color. African American women earn 60 cents and Latinas earn 55 for every dollar earned by men.

The Joint Economic Committee, which I am proud to serve on, found that women lose out on more than $500,000 throughout their career. And this wage gap continues to hurt women when they retire. The median income for women 65 and older is 44 percent less than that of men in the same age group.

Every Congress, for nearly 20 years, Congresswoman ROSA DELAURO has introduced the Paycheck Fairness Act. I am thankful for her leadership, and I am proud to join her as a cosponsor of the bill, because I am not going to stand by while North Carolina women make just 82 cents for every dollar earned by men.

Today on Equal Pay Day, I call on my colleagues to stop shortchanging women and our families. Let's pass the Paycheck Fairness Act.

HONORING THE THUNDERRIDGE GIRLS BASKETBALL TEAM

(Mr. COFFMAN asked and was given permission to address the House for 1

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minute and to revise and extend his remarks.)

Mr. COFFMAN. Mr. Speaker, I rise today to congratulate the ThunderRidge High School girls varsity basketball team on their stunning 5A State championship win over Highlands Ranch High School. ThunderRidge came out strong to clinch their fourth State championship in a dominating 47–32 victory.

It was a game of defensive tenacity. The score held strong at 6–4 in the sixth minute of the game, something that Head Coach Matthew Asik ingrained in his team's game plan, saying that, ''If we play good defense, we can always be in a game.''

Senior Jaz'myne Snipes put 16 points on the board and hustled for 8 rebounds in the final game, which earned her the well-deserved title of tournament MVP.

This was a thrilling game between two Highlands Ranch powerhouses. I am so proud of these two teams for representing the Sixth Congressional District of Colorado in the title game. Congratulations to both teams on a stellar season.

NATIONAL LIBRARY WEEK

(Mr. FOSTER asked and was given permission to address the House for 1 minute.)

Mr. FOSTER. Mr. Speaker, I rise today to commemorate National Library Week and to celebrate how local libraries continue to be a vital resource in communities across the Nation.

Libraries have evolved beyond buildings of quiet study into engaging community centers where people can gather to collaborate on projects, children can come to participate in educational activities, and job-seekers can use as a resource for help in finding connections with employers.

National Library Week is a perfect opportunity to highlight the services being provided in libraries by librarians and staff focused on creating environments where people can not only find the information they need, but use that information to better themselves and their communities.

Counting both public and private, there are nearly 120,000 libraries across the United States, which together employ more than 350,000 people and provide services to millions of Americans each year. In my district, I have seen this transformation taking place, where access to the latest technologies, like 3–D printers, laser cutters, and video editing centers, can often be found at the local library.

Libraries across the country continue to serve as centers of education, research, and community development, and I extend my thanks to the librarians and their staff.

RECOGNIZING O.C. WELCH

(Mr. CARTER of Georgia asked and was given permission to address the House for 1 minute and to revise and extend his remarks.)

Mr. CARTER of Georgia. Mr. Speaker, I rise today to recognize Mr. O.C. Welch for his success in business and his dedication to making the Savannah community a better place to live.

Mr. Welch is the definition of a self-made man, whose hard work and natural business sense launched a career in the car business that grew into a large and prominent enterprise.

Throughout his life, Mr. Welch has been committed to giving back. He is a devout Catholic who supports many projects in the Diocese of Savannah, not the least of which is his alma mater, Benedictine.

In 2012, Mr. Welch used a Super Bowl commercial to offer a reward for information regarding the unsolved murder of a volunteer firefighter. The commercial led to the arrest and conviction of the killer. In the years since, Mr. Welch has not wavered in his crusade against crime in our community.

More recently, Mr. Welch took up the cause of his beloved Bacon Park Golf Course, where he got his first job. After seeing the once pristine course fall into disrepair, he invested millions in restoring its historic Donald Ross design and rightful place in the community.

These are only a few examples of the incredible impact Mr. Welch has had. I rise today to thank him for his continued commitment to our community.

RECOGNIZING DR. ANTHONY ATALA

(Ms. FOXX asked and was given permission to address the House for 1 minute.)

Ms. FOXX. Mr. Speaker, today, I rise to recognize Dr. Anthony Atala, director of the Wake Forest Institute of Regenerative Medicine.

Dr. Atala is the leader of a team of scientists at Wake Forest Baptist Medical Center who have proved the feasibility of using a sophisticated, custom-designed 3–D printer to create living tissue structures to replace injured or diseased tissue in patients.

The team has been able to print ear, bone, and muscle structures that, when implanted in animals, were able to mature into functional tissue and develop a system of blood vessels. Early results indicate that the structures have the right size, strength, and function for use in humans, and the team aims to implant bio-printed muscle, cartilage, and bone in patients in the future.

We are fortunate to have Dr. Atala and his team conducting this pioneering research that may change the face of modern medicine in North Carolina's Fifth District.

RECESS

The SPEAKER pro tempore. Pursuant to clause 12(a) of rule I, the Chair declares the House in recess until approximately 4:30 p.m. today.

Accordingly (at 2 o'clock and 11 minutes p.m.), the House stood in recess.

□ 1630

AFTER RECESS

The recess having expired, the House was called to order by the Speaker pro tempore (Mr. SMITH of Nebraska) at 4 o'clock and 30 minutes p.m.

ANNOUNCEMENT BY THE SPEAKER PRO TEMPORE

The SPEAKER pro tempore. Pursuant to clause 8 of rule XX, the Chair will postpone further proceedings today on motions to suspend the rules on which a recorded vote or the yeas and nays are ordered, or on which the vote incurs objection under clause 6 of rule XX.

Record votes on postponed questions will be taken later.

ADDING ZIKA VIRUS TO THE FDA PRIORITY REVIEW VOUCHER PROGRAM ACT

Mrs. BROOKS of Indiana. Mr. Speaker, I move to suspend the rules and pass the bill (S. 2512) to expand the tropical disease product priority review voucher program to encourage treatments for Zika virus.

The Clerk read the title of the bill.

The text of the bill is as follows:

S. 2512

Be it enacted by the Senate and House of Representatives of the United States of America in Congress assembled,

SECTION 1. SHORT TITLE.

This Act may be cited as the ''Adding Zika Virus to the FDA Priority Review Voucher Program Act''.

SEC. 2. EXPANDING TROPICAL DISEASE PRODUCT PRIORITY REVIEW VOUCHER PROGRAM TO ENCOURAGE TREATMENTS FOR ZIKA VIRUS DISEASE.

Section 524(a)(3) of the Federal Food, Drug, and Cosmetic Act (21 U.S.C. 360n(a)(3)) is amended—

(1) by redesignating subparagraph (R) as subparagraph (S);

(2) in subparagraph (Q), by striking ''Filoviruses'' and inserting ''Filovirus Diseases''; and

(3) by inserting after subparagraph (Q) the following:

''(R) Zika Virus Disease.''.

The SPEAKER pro tempore. Pursuant to the rule, the gentlewoman from Indiana (Mrs. BROOKS) and the gentleman from Texas (Mr. GENE GREEN) each will control 20 minutes.

The Chair recognizes the gentlewoman from Indiana.

GENERAL LEAVE

Mrs. BROOKS of Indiana. Mr. Speaker, I ask unanimous consent that all Members may have 5 legislative days in which to revise and extend their remarks and insert extraneous materials in the RECORD on the bill.

The SPEAKER pro tempore. Is there objection to the request of the gentlewoman from Indiana?

There was no objection.

Mrs. BROOKS of Indiana. Mr. Speaker, I yield myself such time as I may consume.

Mr. Speaker, I rise today in support of S. 2512, which would add the Zika

virus to the FDA Priority Review Voucher program.

S. 2512 is companion legislation to H.R. 4400, authored by Representative BUTTERFIELD and myself.

Under the FDA Priority Review Voucher program, once a vaccine or therapy for a disease on the FDA Priority Review Voucher program has been developed, the manufacturer of that product receives a voucher that can be used to fast-track review by the FDA of another product in the development pipeline. At zero cost to the taxpayer, this is a significant incentive for private industry to invest the hundreds of millions of dollars and the many man-hours it takes to produce a vaccine or treatment.

In a world where we can travel across oceans in a matter of hours, an outbreak that begins on a different continent can arrive in the United States in a very short period of time. As Americans travel to and from Central and South America, we are beginning to see more Zika cases here at home.

This doesn't just affect citizens in tropical areas, but in places as far north as Indiana as well. In my district, a nurse educator at Indiana Wesleyan University contracted the disease in January when she traveled to Haiti to teach a seminar in transcultural nursing.

Most people don't experience symptoms if they contract the Zika virus, but women who become pregnant or trying to become pregnant and their babies are at risk. For babies, that can include serious birth defects that may lead to mental and physical disabilities. The threat is multi-generational, and we still don't know a lot about this disease. We can't treat it right now and we can't prevent it right now. That is a huge problem.

The Zika virus is not the only biological threat we face to our public health and national security. Right now, despite the steps taken during and after the Ebola epidemic, we remain largely reactionary in our response to pandemics and biological threats. We need to be more proactive in our response to all pathogens, like the Zika virus, that are a threat to our national security and the health of our citizens.

A more proactive approach would be to incentivize the development of vaccines and treatments through the FDA Priority Review Voucher program, known as PRV, before they reach the advanced stage of contagion.

This past October, a bipartisan Blue Ribbon Panel on Biodefense released a report on America's vulnerabilities to a biological event. The panel found that the underlying problem isn't a specific disease, but our country's inability to mobilize quickly and effectively to identify, contain, treat, and eliminate any kind of biological threat to people in the United States.

Incentivizing the research into a neglected tropical disease like Zika is a necessary, but not final, step. Our work is not done. As we move forward, we need to expand the PRV program to other items on the Department of Homeland Security's Material Threat list. Doing so will put us on offense and better prepare us for the next outbreak, whatever it might be.

Today we have an opportunity to take meaningful action in a fight against this deadly disease. I applaud Speaker RYAN and Leader MCCARTHY for recognizing the severity of the threat and allowing for this bill's timely consideration.

I have welcomed the opportunity to have worked with Representative BUTTERFIELD on this important issue, and Chairman GREEN and others on the Energy and Commerce Committee who recognize that the Zika virus is of significant threat not only to people in other parts of the world, but actually the people in the United States.

Mr. Speaker, I reserve the balance of my time.

Mr. GENE GREEN of Texas. Mr. Speaker, I yield myself such time as I may consume.

Mr. Speaker, I rise to speak on S. 2512, the Adding Zika Virus to the FDA Priority Review Voucher Program Act.

Representatives G.K. BUTTERFIELD and SUSAN BROOKS led this legislation in the House and members of our Energy and Commerce Committee. I want to thank them for their commitment to mitigating the Zika virus outbreak.

S. 2512 will add Zika virus to the list of qualified tropical diseases under the Tropical Disease Priority Review Voucher program, PRV.

Zika virus is among several recent and emerging global health threats that remind us of the need for effective incentives for research and development of neglected tropical diseases, and for infectious diseases at large. Neglected tropical diseases, or NTDs, represent more than 10 percent of the global disease burden. However, only 4 percent of all new drugs and vaccines approved across the globe in the next decade were for NTDs.

The NTD Priority Review Voucher program was created by Congress in 2007 to be a much-needed incentive for products that diagnose and treat such diseases for which market forces fall short.

The Adding Ebola to the FDA Priority Review Voucher Program, which was signed into law in 2014 and was led by myself and Representative MARSHA BLACKBURN, gave the FDA the authority to add diseases to the program by issuing an order. The agency has already used this authority to add Chagas to the program. While the program is successful, it could be more so.

Currently, there is no requirement for a product to be novel or that it be made available and affordable for the patients whom awarded products are designed to help. It should be amended to strengthen its effectiveness. This can be done by adding a novelty requirement and an access strategy requirement, like what is mandated under the Rare Pediatric Disease Priority Review Voucher program.

This legislation did not go through the House Energy and Commerce Committee, so the opportunity to discuss the NTD PRV program was not taken. I hope to work with my colleagues to incorporate amendments on future legislation that will improve the functioning of the program. Doing so will allow it to incentivize novel programs and ensure they are widely accessible to patients in need.

Improvements to the PRV program would be one important step toward ensuring we have effective strategies to incentivize both research and development for NTDs. Broader changes are urgently needed to ensure the R&D system delivers new vaccines, diagnostics, and treatments to patients presenting and exposed to NTDs and resistant infections.

I look forward to working with my colleagues on additional mechanisms to ensure R&D for these emerging threats is successfully and properly incentivized. Doing so is necessary for the flourishment of biomedical innovation in this space.

I fully agree with the bill sponsors that we need to do all we can to respond to the Zika virus by facilitating the development of and access to medical products as quickly as possible.

The administration has asked Congress for $1.9 billion in emergency funding to enhance our efforts to prepare and respond to the outbreak, both around the world and here at home.

This legislation is arguably a step in the right direction, and I again thank the sponsors for their commitment and leadership. However, this bill far from renders the emergency supplemental funding request unnecessary. Dedicated funds, some of which will go towards medical product development to respond to the Zika virus, are essential to sustaining Health and Human Services' response efforts.

I urge my colleagues to ask swiftly to approve emergency funding for a robust Zika virus outbreak response.

Mr. Speaker, I reserve the balance of my time.

Mrs. BROOKS of Indiana. Mr. Speaker, I reserve the balance of my time.

Mr. GENE GREEN of Texas. Mr. Speaker, I yield such time as he may consume to the gentleman from North Carolina (Mr. BUTTERFIELD), the cosponsor of the legislation, but also a member of our Energy and Commerce Committee.

Mr. BUTTERFIELD. Mr. Speaker, I thank Congressman GREEN for yielding time, and thank him for his extraordinary leadership not only on this bill, but on our committee as well. To my colleague SUSAN BROOKS from Indiana, I thank the Congresswoman for all of her work.

Mr. Speaker, I rise today in support of adding the Zika virus to the FDA Tropical Disease Product Priority Review Voucher program. The bill we are considering today is the Senate companion to my bill, H.R. 4400, which I introduced on February 1 of this year.

Yesterday the White House and the CDC announced the dangers of the Zika virus are ''scarier than we initially thought.'' The CDC estimates that there are already hundreds of thousands of cases in the United States and that the number is expected to grow as the summer nears.

The health consequences of the Zika virus infection are staggering. Zika infections in pregnant women can result in serious birth defects, including microcephaly and neurological disorders in newborns. The virus also has serious impacts on adults. This is a global public health emergency. We must act now to combat the spread of this deadly virus.

My bipartisan legislation, cosponsored by 31 of our House colleagues, and the Senate companion cosponsored by 11 Senators, provides a pathway for expediting treatments for Zika.

Supporting research and development in the U.S. to fight this will not only benefit us here at home, but will also help hundreds of millions of people around the world.

Mr. Speaker, I urge my colleagues today to support this legislation and other efforts, including authorizing additional emergency funding to combat this virus.

Mrs. BROOKS of Indiana. Mr. Speaker, I would also like to thank the gentleman from North Carolina (Mr. BUTTERFIELD) for his leadership on this issue and for certainly bringing this to our attention as soon as it was brought to his attention that this needed to be resolved.

I yield 2 minutes to the gentleman from Georgia (Mr. CARTER).

Mr. CARTER of Georgia. Mr. Speaker, I thank the gentlewoman for yielding.

Mr. Speaker, I rise today in support of S. 2512 to add the Zika virus to the list of tropical diseases under the FDA Priority Review Voucher program for tropical diseases.

While evidence of human infection by the Zika virus has been reported for over 60 years, there has been little progress in the development of treatment or vaccines. Existing incentives have been insufficient to encourage development of new and innovative treatments for the virus.

However, with the recent spread of the virus from South America to the Caribbean and North America, the level of infection has reached pandemic levels. Although the Zika virus may be rare in the United States, the increase of airline transportation, immigration, and tourism only creates an environment for the Zika virus to be easily transmitted.

S. 2512 would allow the FDA Priority Review Voucher program to work exactly as intended. It would add the Zika virus to the list of tropical diseases that are available under the voucher program.

This bill would ultimately accomplish two goals. First, it would provide an incentive for drug developers in the form of fast-track approval of therapies to treat the Zika virus.

Second, it would create an avenue where treatments for the virus would get to patients quicker and ultimately end this pandemic outbreak.

This legislation is vital to ensuring the health and safety of our Nation. I encourage my colleagues to support this legislation.

Mr. GENE GREEN of Texas. Mr. Speaker, we have no other speakers.

I yield back the balance of my time.

Mrs. BROOKS of Indiana. Mr. Speaker, I yield myself such time as I may consume.

I would just like to point out that as recently as yesterday, Federal officials have indicated that the mosquito that carries the Zika virus is actually anticipated to be in over 30 States at this point. Originally, it was in 12 States, and now it is believed to be found in 30 States in the United States.

This is an extremely serious problem, one in which I am pleased that this House and this Chamber is paying attention to. I appreciate the gentleman from Georgia and his remarks.

I yield back the balance of my time.

Ms. JACKSON LEE. Mr. Speaker, I rise to speak in support of S. 2512, the Adding Zika Virus to the FDA Priority Review Voucher Program Act.

This bill amends the Federal Food, Drug, and Cosmetic Act to add the Zika virus to the list of tropical diseases under the priority review voucher program, which awards a voucher to the sponsor of a new drug or biological product that is approved to prevent or treat a tropical disease.

A voucher entitles the holder to have a future new drug or biological product application acted upon by the Food and Drug Administration within six months.

My support has been steadfast, since I signed a letter at the virus' onset, urging the FDA to quickly exercise the authority provided by Congress to add the Zika virus to the Neglected Tropical Disease list.

I thank local, state and national health care professionals, public servants and others who have instituted preventative measures to combat the public health and safety threat that the Zika virus poses to our nation and our Western Hemisphere neighbors.

The Zika virus, spread primarily through mosquitos and first detected decades ago in Uganda, has now begun to spread rapidly in South America.

The recent outbreak has been linked with serious neurological disorders and life-threatening birth defects.

As the Member of Congress representing the Eighteenth Congressional District of Texas, centered in Houston, along the mainland United States' Gulf Coast, I know first hand that Texans in particular are among the nation's most at-risk.

On March 10, 2015, I held a summit in Houston for the leading state and local experts in health, environmental control, and mosquito eradicating fields who are challenged with protecting communities from the Zika Virus to strategize and develop an action plan for the City and Harris County, Texas to reduce and control virus transmissions.

Houston and other cities in the Gulf Coast region, during the late spring and summer months, have tropical climates that support the breeding habitats of Zika Virus carrying-mosquitoes.

In early March of this year, the Center for Disease Control and Prevention (CDC) reported 153 laboratory-confirmed cases of the Zika virus infection, among U.S. travelers between December 2015 and March 9, 2016—today, the number of reported cases has grown to 346, many of which are in areas further north than the 12 originally expected vulnerable states.

The first confirmed cases of the Zika virus hit Houston in November of 2015, after the Harris County Public Health & Environmental Services (HCPHES) received confirmation from the CDC that the Zika virus was confirmed in a traveler recently returning from Latin America.

Not long after, in January 15, 2016, the Centers for Disease Control issued a health advisory.

On January 26, 2016, President Obama called for the rapid development of tests, vaccines and treatments to fight the mosquito-transmitted virus and insisted upon the need to develop vaccines and therapeutics.

We have known of the potential enormity of the Zika threat since January 28, 2016, when the World Health Organization (WHO) reported that it was ''spreading explosively'' throughout the Americas and was likely to reach North America soon.

As of January 28, 2016, the American Congress of Obstetricians and Gynecologists (ACOG) and the Society for Maternal-Fetal Medicine (SMFM) promulgated Practice Advisory guidance regarding the Zika virus and pregnant women.

On February 1, 2016, the WHO announced an international public health emergency due to the recent cluster of neurological disorders and neonatal malformations reported throughout the Americas.

On February 3, 2016, the first local transmission of a Zika virus infection was reported in the Caribbean, meaning that mosquitoes in the area were infected and began spreading the disease to people.

Additionally, the Pan American Health Organization reported 26 countries and territories in the Americas exhibiting local transmission.

On February 4, 2016, the CDC reported a case in Texas, my home state, of Zika's spread by sexual transmission.

The Zika virus is primarily transmitted via three types of mosquitoes—two of which are rampant in the Houston area.

The poor are an especially vulnerable population, living in a hot environment.

The Gulf Coast presents unique vulnerabilities impacting the spread of the Zika virus in Houston that are of the utmost concern, and a key motivation for supporting today's legislation.

My foremost priority is to protect the health and safety of Americans, especially those in Houston.

My city's people and their surrounding neighbors are living daily in extreme poverty—and now have to contend with this devastating disease.

We saw in Brazil that the poorest communities of their nation experienced the worse Zika-plagued outcomes.

Environmental issues, such as discarded tires, furniture, and debris are part of the landscape of the Americans' lives we ought to be

safeguarding—and are creating the perfect breeding conditions for Zika mosquitoes.

Amplifying the impact, the CDC reports that the virus is spread through sexual contact and advises special precautions for pregnant women.

The Zika virus can be spread from a pregnant woman to her fetus and has been linked to a serious birth defect of the brain called microcephaly in the babies of mothers who were exposed to the Zika virus while pregnant.

Exacerbating measures, expectant mothers may not know that Zika virus mosquitoes inhabit the areas in which they live, until they see the terrible birth defects associated with the disease, plaguing the late-term-30-week ultrasound images of their unborn child's sonogram.

Other problems have been detected among fetuses and infants infected with Zika virus before birth, such as absent or poorly developed brain structures, eye defects, hearing deficits, and impaired growth.

About one in five people infected with the Zika virus become symptomatic.

Characteristic clinical findings include acute onset of fever, maculopapular rash, arthralgia, or conjunctivitis.

Today we are witnessing the spread of yet another tropical disease, threatening the health of U.S. citizens, much like Ebola did during the past few years.

The WHO confirmed that as many as four million people could be infected by the end of the year.

There is no treatment or cure for those infected by the Zika virus.

The WHO is concerned about this rapidly spreading disease due to the lack of immunity in newly affected areas, the wide geographical distribution of infected mosquitos, and the absence of any vaccines, treatments, or rapid diagnostic tests.

Given the lack of treatment available for the Zika virus, many supported the critical need for the FDA to use its Congressionally granted authority to add Zika to the list of Neglected Tropical Diseases eligible for the Priority Review Voucher program.

On February 22, 2016, President Obama asked Congress to consider an FY 2016 emergency supplemental appropriations request of approximately $1.9 billion to respond to the Zika virus, both domestically and internationally.

In conjunction with today's bill's efforts, this funding would build upon ongoing preparation efforts and provide resources for the Departments of Health and Human Services and State, as well as the U.S. Agency for International Development (USAID).

The collective goal of these efforts, as I see them, is to provide immediate responsiveness to prepare for and prevent the spread of Zika virus transmission;

Speed research, development, and procurement of vaccines, therapeutics, and diagnostics; and

Enhance the ability of Zika-affected countries to better combat mosquitoes, control transmission, and support affected populations.

The necessity presents itself to fortify our domestic health system, detect and respond to any potential Zika outbreaks at home, and to limit the spread in other countries.

S. 2512 encourages the Federal Government to take a needed step, addressing the changing circumstances and emerging needs of populations exposed to the Zika virus.

The CDC and NIH said that the previously endemic Ebola Virus created a template for Federal and State agencies that are currently attempting to address the Zika virus threat.

If nothing else, the Ebola crisis demonstrated the critical need to develop effective vaccines and treatments before an endemic outbreak begins.

This simple action by the FDA, I hope, will spur the development of an effective vaccine or treatment combating the Zika virus, and as a result save countless American lives.

This bill is a step toward providing the protections that should be guaranteed to every American.

I urge my colleagues to join me in supporting S.2512, the Adding Zika Virus to the FDA Priority Review Voucher Program Act.

The SPEAKER pro tempore. The question is on the motion offered by the gentlewoman from Indiana (Mrs. BROOKS) that the House suspend the rules and pass the bill, S. 2512.

The question was taken; and (two-thirds being in the affirmative) the rules were suspended and the bill was passed.

A motion to reconsider was laid on the table.

□ 1645

FINANCIAL INSTITUTION BANKRUPTCY ACT OF 2016

Mr. GOODLATTE. Mr. Speaker, I move to suspend the rules and pass the bill (H.R. 2947) to amend title 11 of the United States Code in order to facilitate the resolution of an insolvent financial institution in bankruptcy, as amended.

The Clerk read the title of the bill.

The text of the bill is as follows:

H.R. 2947

Be it enacted by the Senate and House of Representatives of the United States of America in Congress assembled,

SECTION 1. SHORT TITLE.

This Act may be cited as the ''Financial Institution Bankruptcy Act of 2016''.

SEC. 2. GENERAL PROVISIONS RELATING TO COVERED FINANCIAL CORPORATIONS.

(a) DEFINITION.—Section 101 of title 11, United States Code, is amended by inserting the following after paragraph (9):

''(9A) The term 'covered financial corporation' means any corporation incorporated or organized under any Federal or State law, other than a stockbroker, a commodity broker, or an entity of the kind specified in paragraph (2) or (3) of section 109(b), that is—

''(A) a bank holding company, as defined in section 2(a) of the Bank Holding Company Act of 1956; or

''(B) a corporation that exists for the primary purpose of owning, controlling and financing its subsidiaries, that has total consolidated assets of $50,000,000,000 or greater, and for which, in its most recently completed fiscal year—

''(i) annual gross revenues derived by the corporation and all of its subsidiaries from activities that are financial in nature (as defined in section 4(k) of the Bank Holding Company Act of 1956) and, if applicable, from the ownership or control of one or more insured depository institutions, represents 85 percent or more of the consolidated annual gross revenues of the corporation; or

''(ii) the consolidated assets of the corporation and all of its subsidiaries related to activities that are financial in nature (as defined in section 4(k) of the Bank Holding Company Act of 1956) and, if applicable, related to the ownership or control of one or more insured depository institutions, represents 85 percent or more of the consolidated assets of the corporation.''.

(b) APPLICABILITY OF CHAPTERS.—Section 103 of title 11, United States Code, is amended by adding at the end the following:

''(l) Subchapter V of chapter 11 of this title applies only in a case under chapter 11 concerning a covered financial corporation.''.

(c) WHO MAY BE A DEBTOR.—Section 109 of title 11, United States Code, is amended—

(1) in subsection (b)—

(A) in paragraph (2), by striking ''or'' at the end;

(B) in paragraph (3)(B), by striking the period at the end and inserting ''; or''; and

(C) by adding at the end the following:

''(4) a covered financial corporation.''; and

(2) in subsection (d)—

(A) by striking ''and'' before ''an uninsured State member bank'';

(B) by striking ''or'' before ''a corporation''; and

(C) by inserting '', or a covered financial corporation'' after ''Federal Deposit Insurance Corporation Improvement Act of 1991''.

(d) CONVERSION TO CHAPTER 7.—Section 1112 of title 11, United States Code, is amended by adding at the end the following:

''(g) Notwithstanding section 109(b), the court may convert a case under subchapter V to a case under chapter 7 if—

''(1) a transfer approved under section 1185 has been consummated;

''(2) the court has ordered the appointment of a special trustee under section 1186; and

''(3) the court finds, after notice and a hearing, that conversion is in the best interest of the creditors and the estate.''.

(e)(1) Section 726(a)(1) of title 11, United States Code, is amended by inserting after ''first,'' the following: ''in payment of any unpaid fees, costs, and expenses of a special trustee appointed under section 1186, and then''.

(2) Section 1129(a) of title 11, United States Code, is amended by inserting after paragraph (16) the following:

''(17) In a case under subchapter V, all payable fees, costs, and expenses of the special trustee have been paid or the plan provides for the payment of all such fees, costs, and expenses on the effective date of the plan.

''(18) In a case under subchapter V, confirmation of the plan is not likely to cause serious adverse effects on financial stability in the United States.''.

(f) Section 322(b)(2) of title 11, United States Code, is amended by striking ''The'' and inserting ''In cases under subchapter V, the United States trustee shall recommend to the court, and in all other cases, the''.

SEC. 3. LIQUIDATION, REORGANIZATION, OR RECAPITALIZATION OF A COVERED FINANCIAL CORPORATION.

Chapter 11 of title 11, United States Code, is amended by adding at the end the following:

''SUBCHAPTER V—LIQUIDATION, REORGANIZATION, OR RECAPITALIZATION OF A COVERED FINANCIAL CORPORATION

''§ 1181. Inapplicability of other sections

''Sections 303 and 321(c) do not apply in a case under this subchapter concerning a covered financial corporation. Section 365 does not apply to a transfer under section 1185, 1187, or 1188.

''§ 1182. Definitions for this subchapter

''In this subchapter, the following definitions shall apply:

''(1) The term 'Board' means the Board of Governors of the Federal Reserve System.

''(2) The term 'bridge company' means a newly formed corporation to which property of

the estate may be transferred under section 1185(a) and the equity securities of which may be transferred to a special trustee under section 1186(a).

''(3) The term 'capital structure debt' means all unsecured debt of the debtor for borrowed money for which the debtor is the primary obligor, other than a qualified financial contract and other than debt secured by a lien on property of the estate that is to be transferred to a bridge company pursuant to an order of the court under section 1185(a).

''(4) The term 'contractual right' means a contractual right of a kind defined in section 555, 556, 559, 560, or 561.

''(5) The term 'qualified financial contract' means any contract of a kind defined in paragraph (25), (38A), (47), or (53B) of section 101, section 741(7), or paragraph (4), (5), (11), or (13) of section 761.

''(6) The term 'special trustee' means the trustee of a trust formed under section 1186(a)(1).

''§ 1183. Commencement of a case concerning a covered financial corporation

''(a) A case under this subchapter concerning a covered financial corporation may be commenced by the filing of a petition with the court by the debtor under section 301 only if the debtor states to the best of its knowledge under penalty of perjury in the petition that it is a covered financial corporation.

''(b) The commencement of a case under subsection (a) constitutes an order for relief under this subchapter.

''(c) The members of the board of directors (or body performing similar functions) of a covered financial company shall have no liability to shareholders, creditors, or other parties in interest for a good faith filing of a petition to commence a case under this subchapter, or for any reasonable action taken in good faith in contemplation of or in connection with such a petition or a transfer under section 1185 or section 1186, whether prior to or after commencement of the case.

''(d) Counsel to the debtor shall provide, to the greatest extent practicable without disclosing the identity of the potential debtor, sufficient confidential notice to the chief judge of the court of appeals for the circuit embracing the district in which such counsel intends to file a petition to commence a case under this subchapter regarding the potential commencement of such case. The chief judge of such court shall randomly assign to preside over such case a bankruptcy judge selected from among the bankruptcy judges designated by the Chief Justice of the United States under section 298 of title 28.

''§ 1184. Regulators

''The Board, the Securities Exchange Commission, the Office of the Comptroller of the Currency of the Department of the Treasury, the Commodity Futures Trading Commission, and the Federal Deposit Insurance Corporation may raise and may appear and be heard on any issue in any case or proceeding under this subchapter.

''§ 1185. Special transfer of property of the estate

''(a) On request of the trustee, and after notice and a hearing that shall occur not less than 24 hours after the order for relief, the court may order a transfer under this section of property of the estate, and the assignment of executory contracts, unexpired leases, and qualified financial contracts of the debtor, to a bridge company. Upon the entry of an order approving such transfer, any property transferred, and any executory contracts, unexpired leases, and qualified financial contracts assigned under such order shall no longer be property of the estate. Except as provided under this section, the provisions of section 363 shall apply to a transfer and assignment under this section.

''(b) Unless the court orders otherwise, notice of a request for an order under subsection (a) shall consist of electronic or telephonic notice of not less than 24 hours to—

''(1) the debtor;

''(2) the holders of the 20 largest secured claims against the debtor;

''(3) the holders of the 20 largest unsecured claims against the debtor;

''(4) counterparties to any debt, executory contract, unexpired lease, and qualified financial contract requested to be transferred under this section;

''(5) the Board;

''(6) the Federal Deposit Insurance Corporation;

''(7) the Secretary of the Treasury and the Office of the Comptroller of the Currency of the Treasury;

''(8) the Commodity Futures Trading Commission;

''(9) the Securities and Exchange Commission;

''(10) the United States trustee or bankruptcy administrator; and

''(11) each primary financial regulatory agency, as defined in section 2(12) of the Dodd-Frank Wall Street Reform and Consumer Protection Act, with respect to any affiliate the equity securities of which are proposed to be transferred under this section.

''(c) The court may not order a transfer under this section unless the court determines, based upon a preponderance of the evidence, that—

''(1) the transfer under this section is necessary to prevent serious adverse effects on financial stability in the United States;

''(2) the transfer does not provide for the assumption of any capital structure debt by the bridge company;

''(3) the transfer does not provide for the transfer to the bridge company of any property of the estate that is subject to a lien securing a debt, executory contract, unexpired lease or agreement (including a qualified financial contract) of the debtor unless—

''(A)(i) the bridge company assumes such debt, executory contract, unexpired lease or agreement (including a qualified financial contract), including any claims arising in respect thereof that would not be allowed secured claims under section 506(a)(1) and after giving effect to such transfer, such property remains subject to the lien securing such debt, executory contract, unexpired lease or agreement (including a qualified financial contract); and

''(ii) the court has determined that assumption of such debt, executory contract, unexpired lease or agreement (including a qualified financial contract) by the bridge company is in the best interests of the estate; or

''(B) such property is being transferred to the bridge company in accordance with the provisions of section 363;

''(4) the transfer does not provide for the assumption by the bridge company of any debt, executory contract, unexpired lease or agreement (including a qualified financial contract) of the debtor secured by a lien on property of the estate unless the transfer provides for such property to be transferred to the bridge company in accordance with paragraph (3)(A) of this subsection;

''(5) the transfer does not provide for the transfer of the equity of the debtor;

''(6) the trustee has demonstrated that the bridge company is not likely to fail to meet the obligations of any debt, executory contract, qualified financial contract, or unexpired lease assumed and assigned to the bridge company;

''(7) the transfer provides for the transfer to a special trustee all of the equity securities in the bridge company and appointment of a special trustee in accordance with section 1186;

''(8) after giving effect to the transfer, adequate provision has been made for the fees, costs, and expenses of the estate and special trustee; and

''(9) the bridge company will have governing documents, and initial directors and senior officers, that are in the best interest of creditors and the estate.

''(d) Immediately before a transfer under this section, the bridge company that is the recipient of the transfer shall—

''(1) not have any property, executory contracts, unexpired leases, qualified financial contracts, or debts, other than any property acquired or executory contracts, unexpired leases, or debts assumed when acting as a transferee of a transfer under this section; and

''(2) have equity securities that are property of the estate, which may be sold or distributed in accordance with this title.

''§ 1186. Special trustee

''(a)(1) An order approving a transfer under section 1185 shall require the trustee to transfer to a qualified and independent special trustee, who is appointed by the court, all of the equity securities in the bridge company that is the recipient of a transfer under section 1185 to hold in trust for the sole benefit of the estate, subject to satisfaction of the special trustee's fees, costs, and expenses. The trust of which the special trustee is the trustee shall be a newly formed trust governed by a trust agreement approved by the court as in the best interests of the estate, and shall exist for the sole purpose of holding and administering, and shall be permitted to dispose of, the equity securities of the bridge company in accordance with the trust agreement.

''(2) In connection with the hearing to approve a transfer under section 1185, the trustee shall confirm to the court that the Board has been consulted regarding the identity of the proposed special trustee and advise the court of the results of such consultation.

''(b) The trust agreement governing the trust shall provide—

''(1) for the payment of the fees, costs, expenses, and indemnities of the special trustee from the assets of the debtor's estate;

''(2) that the special trustee provide—

''(A) quarterly reporting to the estate, which shall be filed with the court; and

''(B) information about the bridge company reasonably requested by a party in interest to prepare a disclosure statement for a plan providing for distribution of any securities of the bridge company if such information is necessary to prepare such disclosure statement;

''(3) that for as long as the equity securities of the bridge company are held by the trust, the special trustee shall file a notice with the court in connection with—

''(A) any change in a director or senior officer of the bridge company;

''(B) any modification to the governing documents of the bridge company; and

''(C) any material corporate action of the bridge company, including—

''(i) recapitalization;

''(ii) a material borrowing;

''(iii) termination of an intercompany debt or guarantee;

''(iv) a transfer of a substantial portion of the assets of the bridge company; or

''(v) the issuance or sale of any securities of the bridge company;

''(4) that any sale of any equity securities of the bridge company shall not be consummated until the special trustee consults with the Federal Deposit Insurance Corporation and the Board regarding such sale and discloses the results of such consultation with the court;

''(5) that, subject to reserves for payments permitted under paragraph (1) provided for in the trust agreement, the proceeds of the sale of any equity securities of the bridge company by the special trustee be held in trust for the benefit of or transferred to the estate;

''(6) the process and guidelines for the replacement of the special trustee; and

''(7) that the property held in trust by the special trustee is subject to distribution in accordance with subsection (c).

''(c)(1) The special trustee shall distribute the assets held in trust—

''(A) if the court confirms a plan in the case, in accordance with the plan on the effective date of the plan; or

''(B) if the case is converted to a case under chapter 7, as ordered by the court.

''(2) As soon as practicable after a final distribution under paragraph (1), the office of the special trustee shall terminate, except as may be necessary to wind up and conclude the business and financial affairs of the trust.

''(d) After a transfer to the special trustee under this section, the special trustee shall be subject only to applicable nonbankruptcy law, and the actions and conduct of the special trustee shall no longer be subject to approval by the court in the case under this subchapter.

''§ 1187. Temporary and supplemental automatic stay; assumed debt

''(a)(1) A petition filed under section 1183 operates as a stay, applicable to all entities, of the termination, acceleration, or modification of any debt, contract, lease, or agreement of the kind described in paragraph (2), or of any right or obligation under any such debt, contract, lease, or agreement, solely because of—

''(A) a default by the debtor under any such debt, contract, lease, or agreement; or

''(B) a provision in such debt, contract, lease, or agreement, or in applicable nonbankruptcy law, that is conditioned on—

''(i) the insolvency or financial condition of the debtor at any time before the closing of the case;

''(ii) the commencement of a case under this title concerning the debtor;

''(iii) the appointment of or taking possession by a trustee in a case under this title concerning the debtor or by a custodian before the commencement of the case; or

''(iv) a credit rating agency rating, or absence or withdrawal of a credit rating agency rating—

''(I) of the debtor at any time after the commencement of the case;

''(II) of an affiliate during the period from the commencement of the case until 48 hours after such order is entered;

''(III) of the bridge company while the trustee or the special trustee is a direct or indirect beneficial holder of more than 50 percent of the equity securities of—

''(aa) the bridge company; or

''(bb) the affiliate, if all of the direct or indirect interests in the affiliate that are property of the estate are transferred under section 1185; or

''(IV) of an affiliate while the trustee or the special trustee is a direct or indirect beneficial holder of more than 50 percent of the equity securities of—

''(aa) the bridge company; or

''(bb) the affiliate, if all of the direct or indirect interests in the affiliate that are property of the estate are transferred under section 1185.

''(2) A debt, contract, lease, or agreement described in this paragraph is—

''(A) any debt (other than capital structure debt), executory contract, or unexpired lease of the debtor (other than a qualified financial contract);

''(B) any agreement under which the debtor issued or is obligated for debt (other than capital structure debt);

''(C) any debt, executory contract, or unexpired lease of an affiliate (other than a qualified financial contract); or

''(D) any agreement under which an affiliate issued or is obligated for debt.

''(3) The stay under this subsection terminates—

''(A) for the benefit of the debtor, upon the earliest of—

''(i) 48 hours after the commencement of the case;

''(ii) assumption of the debt, contract, lease, or agreement by the bridge company under an order authorizing a transfer under section 1185;

''(iii) a final order of the court denying the request for a transfer under section 1185; or

''(iv) the time the case is dismissed; and

''(B) for the benefit of an affiliate, upon the earliest of—

''(i) the entry of an order authorizing a transfer under section 1185 in which the direct or indirect interests in the affiliate that are property of the estate are not transferred under section 1185;

''(ii) a final order by the court denying the request for a transfer under section 1185;

''(iii) 48 hours after the commencement of the case if the court has not ordered a transfer under section 1185; or

''(iv) the time the case is dismissed.

''(4) Subsections (d), (e), (f), and (g) of section 362 apply to a stay under this subsection.

''(b) A debt, executory contract (other than a qualified financial contract), or unexpired lease of the debtor, or an agreement under which the debtor has issued or is obligated for any debt, may be assumed by a bridge company in a transfer under section 1185 notwithstanding any provision in an agreement or in applicable nonbankruptcy law that—

''(1) prohibits, restricts, or conditions the assignment of the debt, contract, lease, or agreement; or

''(2) accelerates, terminates, or modifies, or permits a party other than the debtor to terminate or modify, the debt, contract, lease, or agreement on account of—

''(A) the assignment of the debt, contract, lease, or agreement; or

''(B) a change in control of any party to the debt, contract, lease, or agreement.

''(c)(1) A debt, contract, lease, or agreement of the kind described in subparagraph (A) or (B) of subsection (a)(2) may not be accelerated, terminated, or modified, and any right or obligation under such debt, contract, lease, or agreement may not be accelerated, terminated, or modified, as to the bridge company solely because of a provision in the debt, contract, lease, or agreement or in applicable nonbankruptcy law—

''(A) of the kind described in subsection (a)(1)(B) as applied to the debtor;

''(B) that prohibits, restricts, or conditions the assignment of the debt, contract, lease, or agreement; or

''(C) that accelerates, terminates, or modifies, or permits a party other than the debtor to terminate or modify, the debt, contract, lease or agreement on account of—

''(i) the assignment of the debt, contract, lease, or agreement; or

''(ii) a change in control of any party to the debt, contract, lease, or agreement.

''(2) If there is a default by the debtor under a provision other than the kind described in paragraph (1) in a debt, contract, lease or agreement of the kind described in subparagraph (A) or (B) of subsection (a)(2), the bridge company may assume such debt, contract, lease, or agreement only if the bridge company—

''(A) shall cure the default;

''(B) compensates, or provides adequate assurance in connection with a transfer under section 1185 that the bridge company will promptly compensate, a party other than the debtor to the debt, contract, lease, or agreement, for any actual pecuniary loss to the party resulting from the default; and

''(C) provides adequate assurance in connection with a transfer under section 1185 of future performance under the debt, contract, lease, or agreement, as determined by the court under section 1185(c)(4).

''§ 1188. Treatment of qualified financial contracts and affiliate contracts

''(a) Notwithstanding sections 362(b)(6), 362(b)(7), 362(b)(17), 362(b)(27), 362(o), 555, 556, 559, 560, and 561, a petition filed under section 1183 operates as a stay, during the period specified in section 1187(a)(3)(A), applicable to all entities, of the exercise of a contractual right—

''(1) to cause the modification, liquidation, termination, or acceleration of a qualified financial contract of the debtor or an affiliate;

''(2) to offset or net out any termination value, payment amount, or other transfer obligation arising under or in connection with a qualified financial contract of the debtor or an affiliate; or

''(3) under any security agreement or arrangement or other credit enhancement forming a part of or related to a qualified financial contract of the debtor or an affiliate.

''(b)(1) During the period specified in section 1187(a)(3)(A), the trustee or the affiliate shall perform all payment and delivery obligations under such qualified financial contract of the debtor or the affiliate, as the case may be, that become due after the commencement of the case. The stay provided under subsection (a) terminates as to a qualified financial contract of the debtor or an affiliate immediately upon the failure of the trustee or the affiliate, as the case may be, to perform any such obligation during such period.

''(2) Any failure by a counterparty to any qualified financial contract of the debtor or any affiliate to perform any payment or delivery obligation under such qualified financial contract, including during the pendency of the stay provided under subsection (a), shall constitute a breach of such qualified financial contract by the counterparty.

''(c) Subject to the court's approval, a qualified financial contract between an entity and the debtor may be assigned to or assumed by the bridge company in a transfer under, and in accordance with, section 1185 if and only if—

''(1) all qualified financial contracts between the entity and the debtor are assigned to and assumed by the bridge company in the transfer under section 1185;

''(2) all claims of the entity against the debtor in respect of any qualified financial contract between the entity and the debtor (other than any claim that, under the terms of the qualified financial contract, is subordinated to the claims of general unsecured creditors) are assigned to and assumed by the bridge company;

''(3) all claims of the debtor against the entity under any qualified financial contract between the entity and the debtor are assigned to and assumed by the bridge company; and

''(4) all property securing or any other credit enhancement furnished by the debtor for any qualified financial contract described in paragraph (1) or any claim described in paragraph (2) or (3) under any qualified financial contract between the entity and the debtor is assigned to and assumed by the bridge company.

''(d) Notwithstanding any provision of a qualified financial contract or of applicable nonbankruptcy law, a qualified financial contract of the debtor that is assumed or assigned in a transfer under section 1185 may not be accelerated, terminated, or modified, after the entry of the order approving a transfer under section 1185, and any right or obligation under the qualified financial contract may not be accelerated, terminated, or modified, after the entry of the order approving a transfer under section 1185 solely because of a condition described in section 1187(c)(1), other than a condition of the kind specified in section 1187(b) that occurs after property of the estate no longer includes a direct beneficial interest or an indirect beneficial interest through the special trustee, in more than 50 percent of the equity securities of the bridge company.

''(e) Notwithstanding any provision of any agreement or in applicable nonbankruptcy law, an agreement of an affiliate (including an executory contract, an unexpired lease, qualified financial contract, or an agreement under which the affiliate issued or is obligated for debt) and any right or obligation under such agreement may not be accelerated, terminated, or modified, solely because of a condition described in section 1187(c)(1), other than a condition of the

kind specified in section 1187(b) that occurs after the bridge company is no longer a direct or indirect beneficial holder of more than 50 percent of the equity securities of the affiliate, at any time after the commencement of the case if—

''(1) all direct or indirect interests in the affiliate that are property of the estate are transferred under section 1185 to the bridge company within the period specified in subsection (a);

''(2) the bridge company assumes—

''(A) any guarantee or other credit enhancement issued by the debtor relating to the agreement of the affiliate; and

''(B) any obligations in respect of rights of setoff, netting arrangement, or debt of the debtor that directly arises out of or directly relates to the guarantee or credit enhancement; and

''(3) any property of the estate that directly serves as collateral for the guarantee or credit enhancement is transferred to the bridge company.

''§ 1189. Licenses, permits, and registrations

''(a) Notwithstanding any otherwise applicable nonbankruptcy law, if a request is made under section 1185 for a transfer of property of the estate, any Federal, State, or local license, permit, or registration that the debtor or an affiliate had immediately before the commencement of the case and that is proposed to be transferred under section 1185 may not be accelerated, terminated, or modified at any time after the request solely on account of—

''(1) the insolvency or financial condition of the debtor at any time before the closing of the case;

''(2) the commencement of a case under this title concerning the debtor;

''(3) the appointment of or taking possession by a trustee in a case under this title concerning the debtor or by a custodian before the commencement of the case; or

''(4) a transfer under section 1185.

''(b) Notwithstanding any otherwise applicable nonbankruptcy law, any Federal, State, or local license, permit, or registration that the debtor had immediately before the commencement of the case that is included in a transfer under section 1185 shall be valid and all rights and obligations thereunder shall vest in the bridge company.

''§ 1190. Exemption from securities laws

''For purposes of section 1145, a security of the bridge company shall be deemed to be a security of a successor to the debtor under a plan if the court approves the disclosure statement for the plan as providing adequate information (as defined in section 1125(a)) about the bridge company and the security.

''§ 1191. Inapplicability of certain avoiding powers

''A transfer made or an obligation incurred by the debtor to an affiliate prior to or after the commencement of the case, including any obligation released by the debtor or the estate to or for the benefit of an affiliate, in contemplation of or in connection with a transfer under section 1185 is not avoidable under section 544, 547, 548(a)(1)(B), or 549, or under any similar nonbankruptcy law.

''§ 1192. Consideration of financial stability

''The court may consider the effect that any decision in connection with this subchapter may have on financial stability in the United States.''.

SEC. 4. AMENDMENTS TO TITLE 28, UNITED STATES CODE.

(a) AMENDMENT TO CHAPTER 13.—Chapter 13 of title 28, United States Code, is amended by adding at the end the following:

''§ 298. Judge for a case under subchapter V of chapter 11 of title 11

''(a)(1) Notwithstanding section 295, the Chief Justice of the United States shall designate not fewer than 10 bankruptcy judges to be available to hear a case under subchapter V of chapter 11 of title 11. Bankruptcy judges may request to be considered by the Chief Justice of the United States for such designation.

''(2) Notwithstanding section 155, a case under subchapter V of chapter 11 of title 11 shall be heard under section 157 by a bankruptcy judge designated under paragraph (1), who shall be randomly assigned to hear such case by the chief judge of the court of appeals for the circuit embracing the district in which the case is pending. To the greatest extent practicable, the approvals required under section 155 should be obtained.

''(3) If the bankruptcy judge assigned to hear a case under paragraph (2) is not assigned to the district in which the case is pending, the bankruptcy judge shall be temporarily assigned to the district.

''(b) A case under subchapter V of chapter 11 of title 11, and all proceedings in the case, shall take place in the district in which the case is pending.

''(c) In this section, the term 'covered financial corporation' has the meaning given that term in section 101(9A) of title 11.''.

(b) AMENDMENT TO SECTION 1334 OF TITLE 28.—Section 1334 of title 28, United States Code, is amended by adding at the end the following:

''(f) This section does not grant jurisdiction to the district court after a transfer pursuant to an order under section 1185 of title 11 of any proceeding related to a special trustee appointed, or to a bridge company formed, in connection with a case under subchapter V of chapter 11 of title 11.''.

(c) TECHNICAL AND CONFORMING AMENDMENT.—The table of sections for chapter 13 of title 28, United States Code, is amended by adding at the end the following:

''298. Judge for a case under subchapter V of chapter 11 of title 11.''.

The SPEAKER pro tempore. Pursuant to the rule, the gentleman from Virginia (Mr. GOODLATTE) and the gentleman from Georgia (Mr. JOHNSON) each will control 20 minutes.

The Chair recognizes the gentleman from Virginia.

GENERAL LEAVE

Mr. GOODLATTE. Mr. Speaker, I ask unanimous consent that all Members may have 5 legislative days within which to revise and extend their remarks and to include extraneous materials on H.R. 2947, currently under consideration.

The SPEAKER pro tempore. Is there objection to the request of the gentleman from Virginia?

There was no objection.

Mr. GOODLATTE. Mr. Speaker, I yield myself such time as I may consume.

In 2008, our economy suffered one of the most significant financial crises in history. In the midst of the crisis and in response to a fear that some financial firms' failures could cause severe harm to the overall economy, the Federal Government provided extraordinary taxpayer-funded assistance in order to prevent certain financial firms' failures. In the ensuing years, experts from the financial, regulatory, legal, and academic communities examined how best to prevent another similar crisis from occurring and how to eliminate the possibility of using taxpayer moneys to bail out failing firms.

The Judiciary Committee has advanced the review of this issue with the aim of crafting a solution that will better equip our bankruptcy laws to resolve failing firms while also encouraging greater private counterparty diligence in order to reduce the likelihood of another financial crisis. Among other things, this responded to provisions of the Dodd-Frank Wall Street Reform and Consumer Protection Act, which called for an examination of how to improve the Bankruptcy Code in this area.

Last Congress, after three hearings, the Judiciary Committee favorably reported the Financial Institution Bankruptcy Act, which is legislation that improved the Bankruptcy Code to better facilitate the resolution of a financial firm. That legislation was the culmination of a bipartisan process that solicited and incorporated the views of a wide range of leading experts and relevant regulators. The bill ultimately passed the House by a voice vote under a suspension of the rules.

This Congress, Representative TROTT reintroduced the Financial Institution Bankruptcy Act as H.R. 2947. Following its introduction, the Subcommittee on Regulatory Reform, Commercial and Antitrust Law conducted a hearing on the bill. The hearing witnesses all supported the legislation while providing recommendations for further refinements to the bill. Those recommendations were incorporated, and the Judiciary Committee approved the legislation by a unanimous vote of 25–0.

The bill under consideration today is the product of a careful, deliberate, and thorough process, and it reflects a diverse range of views from a variety of interested parties. The Financial Institution Bankruptcy Act makes several improvements to the Bankruptcy Code in order to enhance the prospect of the efficient resolution of a financial firm through the bankruptcy process.

The bill allows for the speedy transfer of a financial firm's operating assets over the course of a weekend. This quick transfer allows the financial firm to continue to operate in the normal course, which preserves the value of the enterprise for the creditors of the bankruptcy without there being any significant impact on the firm's employees, suppliers, and customers.

The bill also requires expedited judicial review by a bankruptcy judge who has been randomly chosen from a pool of judges, who has been designated in advance, and who has been selected by the chief justice for his experience, expertise, and willingness to preside over these complex cases. Furthermore, the legislation provides for key regulatory input throughout the process.

The Financial Institution Bankruptcy Act is a bipartisan, balanced approach that increases transparency and predictability in the resolution of a financial firm. Furthermore, it ensures that shareholders and creditors, not taxpayers, bear the losses related to the failure of a financial company.

I am pleased that Ranking Member CONYERS is a lead sponsor of this important legislation, and I thank him

and his staff for their efforts in developing this bill. I thank Representative TROTT for introducing this important legislation, and I thank Chairman MARINO of the Subcommittee on Regulatory Reform, Commercial and Antitrust Law, who is one of the original sponsors of the bill and who helped to usher the bill through the Judiciary Committee. I also commend my colleague from Georgia, who is also involved in this work and who is the ranking member of that same subcommittee.

I urge my colleagues to vote in favor of this important legislation.

I reserve the balance of my time.

Mr. JOHNSON of Georgia. Mr. Speaker, I yield myself such time as I may consume.

H.R. 2947, the Financial Institution Bankruptcy Act of 2016, amends the Bankruptcy Code to establish a process for the expedited judicial resolution of large financial institutions in order to soften the disruptive effects of their collapse.

As we all know, the Great Recession was triggered by the widespread issuance and limited regulation of high-risk and, possibly, fraudulent mortgage-backed securities. Fueled by adjustable rate and predatory subprime mortgages, these securities were issued without regard to careful underwriting standards, caused a housing bubble that trapped countless homeowners in unaffordable mortgages, and led to a massive wave of foreclosures that resulted in the worst financial crisis since the Great Depression. In the wake of this crisis, the President signed the Dodd-Frank Act into law so as to provide comprehensive measures to reduce systemic risk through heightened financial stability requirements for large financial institutions.

Among many other requirements, title I of Dodd-Frank requires that certain large financial institutions have living wills to ensure a rapid and orderly resolution in the event of material distress or failure. Title II of the law provides for an administrative process to wind down these institutions so as to avoid adverse effects on the entire financial system; but there is no such process under the current bankruptcy law.

I applaud Congressman TROTT and the chairman of the full committee, Chairman GOODLATTE, for addressing this concern by offering this legislation to revise the Bankruptcy Code in order to establish a specialized form of bankruptcy relief that would facilitate the expeditious resolution of large financial institutions and would minimize the disruptive impact of a company's collapse on the financial system. The legislation largely accomplishes this goal by establishing a resolution process that authorizes a court to provide relief by transferring a debtor's assets to a bridge company, under an expedited timeline, while minimizing the adverse effects of the bankruptcy on the financial system.

While these aspects of the bill are commendable, I remain concerned, however, that this legislation lacks a funding mechanism that would allow the Federal Government to provide liquidity to the company, which is a key difference between an orderly resolution under Dodd-Frank and the resolution contemplated by H.R. 2947.

In a typical bankruptcy case, the debtor's reorganization may be funded by private parties or by the Federal Government, as illustrated by the General Motors bankruptcy. In many instances, liquidity provided by the U.S. Government to prevent the collapse of a financial institution has either returned a profit to the taxpayers or is likely to be repaid.

Leading bankruptcy experts have found that providing liquidity to distressed financial institutions ''is essential to successfully resolving the firm without creating undue systemic risk.'' This critical mechanism has prevented the collapses of several major financial institutions without cost to the taxpayer.

Lastly, I would caution against efforts to combine H.R. 2947 with legislation that would strike title II of the Dodd-Frank Act. As the National Bankruptcy Conference has observed, laws that are currently in place, such as title II of the Dodd-Frank Act, should remain in effect because the ability of U.S. regulators to assume full control of the resolution process to elicit the cooperation from non-U.S. regulators is an essential insurance policy against systemic risk and potential conflict and dysfunction among the multinational components of these institutions. I would also note that title II of the Dodd-Frank Act will serve as a valuable backstop to the bankruptcy process should this bill become law.

Notwithstanding these concerns, I thank, once again, the gentleman from Virginia, the gentleman from Michigan, and also my friend and chair of the relevant subcommittee, TOM MARINO from Pennsylvania, for their leadership on this issue and for the bipartisan process in developing this legislation. I also thank the Democratic and Republican counsel of the Judiciary Committee, Susan Jensen and Anthony Grossi, for their tireless work and substantive expertise in developing this legislation.

I reserve the balance of my time.

Mr. GOODLATTE. Mr. Speaker, it is my pleasure to yield such time as he may consume to the gentleman from Michigan (Mr. TROTT), the chief sponsor of the legislation.

Mr. TROTT. I thank my colleagues Chairman GOODLATTE, Ranking Member CONYERS, and my friend from Georgia for their support of this important legislation. I also thank the other Members and the staff who have helped shape this bipartisan bill.

Mr. Speaker, the American people are frustrated with their government. While families are working hard, are paying their taxes, and are doing their best to keep the American Dream alive, Washington decides to spend money it doesn't have on problems it shouldn't solve. Suffice it to say, both parties have proven to be bad stewards of our Nation's finances.

Many of us were disappointed to see $700 billion in taxpayer money spent on bailing out failed financial institutions in 2008. The American people should not be on the hook for the failures of bad business practices. The American people entrusted us with their tax dollars, and Washington used the money to bail out banks. We cannot let this happen again. The legislation we are considering today is aimed at protecting American taxpayers and at reducing the risk of another taxpayer-funded bailout.

The Financial Institution Bankruptcy Act protects taxpayers by reforming the process of how failing banks go through bankruptcy proceedings. We have incorporated the recommendations of hearing witnesses, regulators, and experts from four Judiciary Committee hearings over the past 2 years. This effort is, truly, the product of bipartisan work and compromise.

Under this bill, the process will be handled by an experienced judge—a judge who knows how to handle the complex reorganizations of financial institutions. It will also result in a transparent judicial process instead of there being a group of bank CEOs and regulators that meets in a back room in order to decide how to save a failing bank. It will ensure that shareholders and creditors are at risk when a financial institution fails, not the American taxpayer. Further, decades of case law and precedent will ensure a fair result.

This bill is the kind of commonsense legislation that, I believe, offers important solutions, that protects the American people, and that is deserving of strong bipartisan support. I encourage all of my colleagues to support this effort. Let's pass this bill and move it to the Senate for consideration.

□ 1700

Mr. GOODLATTE. Mr. Speaker, I only have one speaker remaining, myself, to close. So I am prepared to do that once the gentleman from Georgia yields back.

I reserve the balance of my time.

Mr. JOHNSON of Georgia. Mr. Speaker, I ask that my colleagues pass this measure.

I yield back the remainder of my time.

Mr. GOODLATTE. Mr. Speaker, the Financial Institution Bankruptcy Act is a necessary reform to ensure that taxpayers will not be called on to rescue the next failing financial firm. The legislation relies on longstanding bankruptcy principles that will be applied in a predictable and transparent manner.

The Financial Institution Bankruptcy Act is a bipartisan measure

that enjoys broad support from outside experts. I urge my colleagues to vote in favor of this important reform. I thank my colleagues on the Judiciary Committee for their bipartisan effort to produce this legislation.

I yield back the balance of my time.

Mr. CONYERS. Mr. Speaker, I rise in support of H.R. 2947, the ''Financial Institution Bankruptcy Act of 2016.'' for several reasons.

To begin with, the bill addresses a real need—recognized by regulatory agencies, bankruptcy experts, and the private sector—that the bankruptcy law must be amended so that it can expeditiously restore trust in the financial marketplace as soon as possible after the collapse of a major financial institution.

As many of you may recall, the failure of Lehman Brothers in 2008 caused a worldwide freeze on the availability of credit, which not only affected Wall Street, but Main Street as well.

Even after Lehman sought bankruptcy relief, the filing did not prevent the near collapse of our Nation's economy. The Lehman case revealed that current bankruptcy law is ill-equipped to deal with complex financial institutions in economic distress.

H.R. 2947 addresses these shortcomings by establishing a specialized form of bankruptcy relief whereby the holding company of a large financial institution could expeditiously obtain such relief, while allowing its operating subsidiaries to function outside of bankruptcy.

Through this mechanism, the debtor's principal assets, such as its secured property, financial contracts, and the stock of its subsidiaries, would be transferred to a temporary ''bridge company,'' that, in turn, would liquidate these assets for the benefit of creditors under the supervision of a trustee.

This process should reduce the likelihood of disruption to the financial marketplace and avoid any worldwide freeze on the availability of credit.

Another reason why I support this bill is that it appropriately recognizes the important role the Dodd-Frank Act has in the regulation of large financial institutions.

Without doubt, the Great Recession was a direct result of the regulatory equivalent of the Wild West.

In the absence of any meaningful regulation of the mortgage industry, lenders developed high risk subprime mortgages and used predatory marketing tactics targeting the most vulnerable.

These doomed-to-fail mortgages were then securitized and sold to unsuspecting investors, including pension funds and school districts.

Millions of Americans were trapped in mortgages they could no longer afford. This resulted in causing vast waves of foreclosures, massive unemployment, and international economic upheaval.

The Dodd-Frank Act goes a long way toward reinvigorating a regulatory system that makes the financial marketplace more accountable, more transparent, and more resilient.

And, H.R. 2947 will make the Dodd-Frank Act even more effective by ensuring the bankruptcy law is better equipped to resolve these companies.

Finally, I am pleased that H.R. 2947 is the product of a very collaborative, inclusive, and deliberative process.

A collaborative process—particularly with respect to complex legislation with wide-ranging consequences—is essential. It should be the norm, not the exception.

Accordingly, I commend Judiciary Committee Chairman GOODLATTE for his leadership in ensuring this collaborative process for H.R. 2947.

Nevertheless, while the bill is an excellent measure, it unfortunately does not include any provision allowing the federal government to be a lender of last resort, a critical element that nearly every expert recognizes is necessary to ensure financial stability. This is a matter that at some point must be addressed.

Again, I want to acknowledge the excellent level of cooperation on both sides of the aisle in producing the legislation that is pending before us today.

In closing, I appreciate that my Judiciary Committee colleagues on both sides of the aisle have come together to support H.R. 2947.

Nevertheless, I strongly encourage Chairman GOODLATTE to consider other bankruptcy-related measures that my colleagues and I have introduced this Congress dealing with equally important matters.

These measures include H.R. 97, the ''Protecting Employees and Retirees in Business Bankruptcies Act,'' which I introduced to help level the playing field for employees and pensioners in corporate bankruptcy cases.

I also would urge consideration of legislation, such as H.R. 1674, the ''Private Student Loan Bankruptcy Fairness Act,'' a bill sponsored by my colleague, the gentleman from Tennessee STEVE COHEN, that would help relieve those who—through no fault of their own—become entrapped in unaffordable, predatory student loan obligations.

These measures also deserve to be considered prior to the close of this Congress.

The SPEAKER pro tempore. The question is on the motion offered by the gentleman from Virginia (Mr. GOODLATTE) that the House suspend the rules and pass the bill, H.R. 2947, as amended.

The question was taken; and (two-thirds being in the affirmative) the rules were suspended and the bill, as amended, was passed.

A motion to reconsider was laid on the table.

PREVENTING CRIMES AGAINST VETERANS ACT OF 2016

Mr. GOODLATTE. Mr. Speaker, I move to suspend the rules and pass the bill (H.R. 4676) to amend title 18, United States Code, to provide an additional tool to prevent certain frauds against veterans, and for other purposes, as amended.

The Clerk read the title of the bill.

The text of the bill is as follows:

H.R. 4676

Be it enacted by the Senate and House of Representatives of the United States of America in Congress assembled,

SECTION 1. SHORT TITLE.

This Act may be cited as the ''Preventing Crimes Against Veterans Act of 2016''.

SEC. 2. ADDITIONAL TOOL TO PREVENT CERTAIN FRAUDS AGAINST VETERANS.

(a) IN GENERAL.—Chapter 47 of title 18, United States Code, is amended by adding at the end the following:

''§ 1041. Fraud regarding veterans' benefits

''(a) Whoever knowingly engages in any scheme or artifice to defraud an individual of veterans' benefits, or in connection with obtaining veteran's benefits for that individual, shall be fined under this title, imprisoned not more than five years, or both.

''(b) In this section—

''(1) the term 'veteran' has the meaning given that term in section 101 of title 38; and

''(2) the term 'veterans' benefits' means any benefit provided by Federal law for a veteran or a dependent or survivor of a veteran.''.

(b) CLERICAL AMENDMENT.—The table of sections at the beginning of chapter 47 of title 18, United States Code, is amended by adding at the end the following new item:

''1041. Fraud regarding veterans' benefits.''.

The SPEAKER pro tempore. Pursuant to the rule, the gentleman from Virginia (Mr. GOODLATTE) and the gentleman from Georgia (Mr. JOHNSON) each will control 20 minutes.

The Chair recognizes the gentleman from Virginia.

GENERAL LEAVE

Mr. GOODLATTE. Mr. Speaker, I ask unanimous consent that all Members may have 5 legislative days within which to revise and extend their remarks and include extraneous materials on H.R. 4676, as amended, currently under consideration.

The SPEAKER pro tempore. Is there objection to the request of the gentleman from Virginia?

There was no objection.

Mr. GOODLATTE. Mr. Speaker, I yield myself such time as I may consume.

H.R. 4676, the Preventing Crimes Against Veterans Act of 2016, was introduced by Congressman TOM ROONEY of Florida, a former member of the Judiciary Committee, and Congressman TED DEUTCH of Florida, a current member of the Judiciary Committee.

This legislation fixes a loophole in Federal law and provides Federal prosecutors with an additional tool to go after criminals who seek to defraud veterans.

In recent years, financial predators have increasingly targeted veterans, particularly elderly veterans in low-income housing, in an effort to defraud the veterans out of their Veterans Affairs benefits.

These criminals offer to help veterans with their cases, claim to get their benefits approved in record time, charge fees that are often in the thousands of dollars, and then provide them with little or no assistance.

Under current law, many of these fraudsters would be vulnerable to prosecution under the mail or wire fraud statutes if they engage in this sort of fraudulent scheme by calling a veteran on the phone, sending them an email, mailing them a letter, or otherwise using the instrumentalities of interstate commerce to commit fraud.

However, increasingly these criminals are taking advantage of a loophole in Federal law by conducting in-person seminars or meeting in person at a veteran's home or assisted living facility.

In at least one recent example, a fraudster visited an assisted living facility in Florida and asked the staff to round up all the veterans for a seminar. This sort of conduct—swindling an elderly veteran out of his or her benefits—is truly reprehensible and worthy of Congress' attention.

H.R. 4676, which has the support of the veterans service community, addresses this conduct. This vulnerable population has done its duty to protect us from harm.

It is our duty to help protect them. To paraphrase Ronald Reagan, some people wonder all their lives if they have made a difference. Veterans don't have that problem.

I urge my colleagues to support this important legislation and protect our Nation's veterans.

I reserve the balance of my time.

Mr. JOHNSON of Georgia. Mr. Speaker, I yield myself such time as I may consume.

I am pleased to support H.R. 4676, the Preventing Crimes Against Veterans Act of 2016, as amended. This legislation provides an important tool for Federal prosecutors to combat veterans' benefits fraud, a very despicable practice.

Because we honor their service and the sacrifices that they have made, it is particularly important that we go above and beyond the call of duty to protect America's veterans from fraud and to ensure the integrity of the system of benefits we provide to them.

Currently, there are about 21 million veterans of the United States military, men and women who selflessly served our Nation in various theaters of war, from the Second World War, Korea, and Vietnam to more recent conflicts in Iraq and Afghanistan. Unfortunately, many of our veterans, as a result of their service, have physical and mental scars.

There are well over 1 million American veterans with service-connected disabilities. The suicide rate among veterans is 300 percent above the national average, and it is estimated that about 30 percent of all Vietnam veterans and 20 percent of veterans of the recent Middle East conflicts suffer from post-traumatic stress disorder in a given year.

In addition, veterans are more likely than nonveterans to become homeless. They comprise 17 percent of our homeless population. On any given night, an estimated 50,000 veterans are sleeping on America's streets.

In recognition of the extreme sacrifice by our veterans and the hardships many of them continue to face after completion of their military service, it is our solemn duty and our obligation to provide to the best of our ability an appropriate measure of compensation for them.

For instance, we provide disability payments to those with service-connected disabilities. We provide pensions for veterans with limited incomes. We provide them with opportunities for education and training under the GI Bill. And we also provide various life insurance benefits. This is the least that we can do, and it is still not enough.

Unfortunately, there continues to be issues with the medical care we provide our veterans and problems with some benefits never being processed and paid because of the loss of claims by the Veterans Benefits Administration.

H.R. 4676 would make it a crime to knowingly engage in any scheme to defraud a veteran of his or her veteran's benefits or to knowingly engage in fraud in connection with obtaining veteran's benefits. Anyone convicted of such crime could and should be fined, imprisoned, or subjected to both penalties.

I note that the amended version of the bill we are considering today reflects an amendment offered in the Judiciary Committee markup by Ranking Member JOHN CONYERS. The amendment, which was approved by voice vote, extends the bill's protections to fraud involving the benefits owed to the survivors and dependents due to the service of a veteran.

Those who defraud veterans or their surviving spouses or dependents endanger our system of veterans' benefits not only by harming the victims, but also by diminishing the resources required to pay these claims and fund the programs that are needed to help those who have served their country.

Accordingly, I support H.R. 4676. I commend the bill's sponsors, Representative TOM ROONEY and Representative TED DEUTCH, both of Florida, for their work on this important issue.

I thank the chairman for hastening the consideration of this very important piece of legislation by the full committee.

I reserve the balance of my time.

Mr. GOODLATTE. Mr. Speaker, I yield such time as he may consume to the gentleman from Florida (Mr. ROONEY), the chief sponsor of this legislation.

Mr. ROONEY of Florida. Mr. Speaker, I serve nearly 75,000 veterans in Congress, making Florida's 17th District one of the highest concentrations of veterans in the whole Nation.

From helping veterans solve problems and process claims with the VA to working to fund veterans' benefits programs at levels deserving of their sacrifice, my duties to these 75,000 veterans is something that I take very seriously. But my constituents are quick to let me know that I still have a lot more work to do to fix the system.

One particularly disturbing problem was brought to my attention by a number of veterans service organizations in my district.

Last year I started to hear stories about individuals advertising themselves to veterans in my district, claiming that, for a hefty fee, which is illegal, they could expedite veterans' claims with the Department of Veterans Affairs. The problem with that is they can't expedite these claims.

One local Veteran Services Division explained to me at length how these criminals are systematically targeting senior veterans in low-income housing communities almost as a rule because those vets are most likely to fall victim to their schemes.

Disturbingly, these guys will go into assisted living facilities and ''round up all the veterans'' and coerce veterans to apply for veterans' benefits they don't qualify for and to sign contracts agreeing to pay them for services that they can never provide.

We all know that the claims process at the VA is far too slow and takes far too long. My office works with veterans on a daily basis, as do the other Members here, to try to assist them with their claims and expedite the process when possible.

But when I hear that people are singling out veterans, targeting some of them based on their low income, and then earning a significant profit off them, that just makes me sick.

As the law stands now, even though it is illegal for anyone who is not an approved agent with the VA to charge a fee for helping a veteran with a claim or an appeal, there is no criminal or financial penalty associated with breaking this law.

Without a Federal criminal penalty, there is little deterring these despicable people from defrauding a veteran for financial gain. The reality is this: It is happening in all of our districts and people are getting away with it every day.

I refuse to let this continue unabated in my own backyard in this country, especially not to our veterans for whom I have so much respect, as do we all.

So along with my neighbor and friend, Democratic Congressman TED DEUTCH of south Florida, we introduced a bill to penalize people and companies making a living off of stealing from our veterans.

Our bill would give law enforcement and prosecutors the tools to penalize predators that are blatantly engaging in a scheme to defraud veterans, or their families, of his or her benefits by imposing a fine, imprisonment of up to 5 years, or both.

These criminals have to pay the price for their appalling actions. It is our duty in Congress to ensure that our Nation's heroes are protected under every circumstance and aspect of the law. I am proud that this bipartisan bill is on the floor today.

I urge my colleagues to join me, Congressman DEUTCH, and the chairman and the ranking member of the Judiciary Committee in support of this bill.

Each and every one of us owes our Nation's veterans the utmost respect. Today we have the chance to bring justice to those veterans who have fallen victim to the immoral schemes committed by some of the lowest forms of criminals in our country.

Mr. JOHNSON of Georgia. Mr. Speaker, it warms my heart today to be a part of this body and to be a part of the movement of such important legislation as this, which is to protect people who are very vulnerable to abuse. Without our action, it will just simply continue.

I want to once again applaud the efforts of Representative TOM ROONEY and Representative TED DEUTCH for bringing this legislation to us.

I look forward to its passage. I would recommend to all of my colleagues that they join us and support this legislation.

I yield back the balance of my time.

Mr. GOODLATTE. Mr. Speaker, I yield back the balance of my time.

Ms. JACKSON LEE. Mr. Speaker, as the Ranking Member of the Judiciary Committee and Subcommittee on Crime Terrorism, Homeland Security, and Investigations, which reported this legislation, I rise in strong support of H.R. 4676 ''Preventing Crimes Against Veterans Act of 2016'', a bill that provides an important additional tool for federal prosecutors to combat veterans' benefits fraud.

I support this legislation, because of the honorable sacrifices our veterans have made for us, it is particularly important that we protect them from fraud and ensure the integrity of the system of benefits we provide for them.

H.R. 4676 amends the federal criminal code to declare that any person who knowingly engages in any scheme or artifice to defraud a veteran of veterans' benefits, or in connection with obtaining veteran's benefits for that veteran, shall be fined, imprisoned not more than five years, or both.

Currently, there are approximately 21 million veterans of the United States military living all across our country.

It is estimated that about 30 percent of all Vietnam veterans have had post-traumatic stress disorder (PTSD) and up to 20 percent of veterans serving in more recent conflicts in the Middle East are estimated to suffer from PTSD in a given year.

Given the extreme sacrifice by our veterans and the hardships many of them continue to face after their military service, it is our duty to provide, to the best of our ability, an appropriate measure of compensation for them-particularly for those in need.

For instance, we provide disability payments to those with service-connected disabilities, pensions for veterans with limited incomes, education and training under the GI Bill, and also various life insurance benefits.

Over 24,000 veterans reside in my 18th Congressional District and one of my top priorities is to fight for their benefits and to fight for the rights of our most patriotic Americans.

Amending title 18, United States Code of H.R. 4676, provides an additional tool to prevent certain frauds against veterans.

H.R. 4676 will ensure that prosecutors may bring criminal charges against those who knowingly defraud a veteran of their benefits or engage in fraud in connection with obtaining veterans' benefits.

476,515 veterans are living with PTSD, and need their benefits to provide the top care for their disorder; it is criminal that some are left untreated.

H.R. 4676 will bring justice to our veterans and shine a light on those who are abusing the benefits given to veterans for defending our country.

Those who defraud veterans and the system of veterans' benefits harm the victims and diminish resources required to pay the claims and fund the programs that are needed to help those who have served their country.

I urge all Members to join me in voting to pass H.R. 4676.

The SPEAKER pro tempore. The question is on the motion offered by the gentleman from Virginia (Mr. GOODLATTE) that the House suspend the rules and pass the bill, H.R. 4676, as amended.

The question was taken.

The SPEAKER pro tempore. In the opinion of the Chair, two-thirds being in the affirmative, the ayes have it.

Mr. ROONEY of Florida. Mr. Speaker, on that I demand the yeas and nays.

The yeas and nays were ordered.

The SPEAKER pro tempore. Pursuant to clause 8 of rule XX, further proceedings on this motion will be postponed.

□ 1715

GLOBAL FOOD SECURITY ACT OF 2016

Mr. SMITH of New Jersey. Mr. Speaker, I move to suspend the rules and pass the bill (H.R. 1567) to authorize a comprehensive, strategic approach for United States foreign assistance to developing countries to reduce global poverty and hunger, achieve food security and improved nutrition, promote inclusive, sustainable agricultural-led economic growth, improve nutritional outcomes, especially for women and children, build resilience among vulnerable populations, and for other purposes, as amended.

The Clerk read the title of the bill.

The text of the bill is as follows:

H.R. 1567

Be it enacted by the Senate and House of Representatives of the United States of America in Congress assembled,

SECTION 1. SHORT TITLE.

This Act may be cited as the ''Global Food Security Act of 2016''.

SEC. 2. STATEMENT OF POLICY OBJECTIVES; SENSE OF CONGRESS.

(a) STATEMENT OF POLICY OBJECTIVES.—It is in the national security interest of the United States to promote global food security, resilience, and nutrition, consistent with national food security investment plans, which is reinforced through programs, activities, and initiatives that—

(1) accelerate inclusive, agricultural-led economic growth that reduces global poverty, hunger, and malnutrition, particularly among women and children;

(2) increase the productivity, incomes, and livelihoods of small-scale producers, especially women, by working across agricultural value chains, enhancing local capacity to manage agricultural resources effectively, and expanding producer access to local and international markets;

(3) build resilience to food shocks among vulnerable populations and households while reducing reliance upon emergency food assistance;

(4) create an enabling environment for agricultural growth and investment, including through the promotion of secure and transparent property rights;

(5) improve the nutritional status of women and children, with a focus on reducing child stunting, including through the promotion of highly nutritious foods, diet diversification, and nutritional behaviors that improve maternal and child health;

(6) align with and leverage broader United States strategies and investments in trade, economic growth, science and technology, agricultural research and extension, maternal and child health, nutrition, and water, sanitation, and hygiene;

(7) continue to strengthen partnerships between United States-based universities, including land-grant colleges and universities, and institutions in target countries and communities that build agricultural capacity; and

(8) ensure the effective use of United States taxpayer dollars to further these objectives.

(b) SENSE OF CONGRESS.—It is the sense of the Congress that the President, in providing assistance to implement the Global Food Security Strategy, should—

(1) coordinate, through a whole-of-government approach, the efforts of relevant Federal departments and agencies to implement the Global Food Security Strategy;

(2) seek to fully utilize the unique capabilities of each relevant Federal department and agency while collaborating with and leveraging the contributions of other key stakeholders; and

(3) utilize open and streamlined solicitations to allow for the participation of a wide range of implementing partners through the most appropriate procurement mechanisms, which may include grants, contracts, cooperative agreements, and other instruments as necessary and appropriate.

SEC. 3. DEFINITIONS.

In this Act:

(1) AGRICULTURE.—The term ''agriculture'' means crops, livestock, fisheries, and forestries.

(2) APPROPRIATE CONGRESSIONAL COMMITTEES.—The term ''appropriate congressional committees'' means—

(A) the Committee on Foreign Relations of the Senate;

(B) the Committee on Agriculture, Nutrition, and Forestry of the Senate;

(C) the Committee on Appropriations of the Senate;

(D) the Committee on Foreign Affairs of the House of Representatives;

(E) the Committee on Agriculture of the House of Representatives; and

(F) the Committee on Appropriations of the House of Representatives.

(3) FEED THE FUTURE INNOVATION LABS.—The term ''Feed the Future Innovation Labs'' means research partnerships led by United States universities that advance solutions to reduce global hunger, poverty, and malnutrition.

(4) FOOD AND NUTRITION SECURITY.—The term ''food and nutrition security'' means access to, and availability, utilization, and stability of, sufficient food to meet caloric and nutritional needs for an active and healthy life.

(5) GLOBAL FOOD SECURITY STRATEGY.—The term ''Global Food Security Strategy'' means the strategy developed and implemented pursuant to section 4(a).

(6) KEY STAKEHOLDERS.—The term ''key stakeholders'' means actors engaged in efforts to advance global food security programs and objectives, including—

(A) relevant Federal departments and agencies;

(B) national and local governments in target countries;

(C) other bilateral donors;

(D) international and regional organizations;

(E) international, regional, and local financial institutions;

(F) international, regional, and local private voluntary, nongovernmental, faith-based, and civil society organizations;

(G) the private sector, including agribusinesses and relevant commodities groups;

(H) agricultural producers, including farmer organizations, cooperatives, small-scale producers, and women; and

(I) agricultural research and academic institutions, including land-grant colleges and universities and extension services.

(7) LAND-GRANT COLLEGES AND UNIVERSITIES.—The term ''land-grant colleges and universities'' has the meaning given such term in section 1404(13) of the National Agricultural Research, Extension, and Teaching Policy Act of 1977 (7 U.S.C. 3103(13)).

(8) MALNUTRITION.—The term ''malnutrition'' means poor nutritional status caused by nutritional deficiency or excess.

(9) RELEVANT FEDERAL DEPARTMENTS AND AGENCIES.—The term ''relevant Federal departments and agencies'' means the United States Agency for International Development, the Department of Agriculture, the Department of Commerce, the Department of State, the Department of the Treasury, the Millennium Challenge Corporation, the Overseas Private Investment Corporation, the Peace Corps, the Office of the United States Trade Representative, the United States African Development Foundation, the United States Geological Survey, and any other department or agency specified by the President for purposes of this section.

(10) RESILIENCE.—The term ''resilience'' means the ability of people, households, communities, countries, and systems to mitigate, adapt to, and recover from shocks and stresses to food security in a manner that reduces chronic vulnerability and facilitates inclusive growth.

(11) SMALL-SCALE PRODUCER.—The term ''small-scale producer'' means farmers, pastoralists, foresters, and fishers that have a low-asset base and limited resources, including land, capital, skills and labor, and, in the case of farmers, typically farm on fewer than 5 hectares of land.

(12) SUSTAINABLE.—The term ''sustainable'' means the ability of a target country, community, implementing partner, or intended beneficiary to maintain, over time, the programs authorized and outcomes achieved pursuant to this Act.

(13) TARGET COUNTRY.—The term ''target country'' means a developing country that is selected to participate in agriculture and nutrition security programs under the Global Food Security Strategy pursuant to the selection criteria described in section 4(a)(2), including criteria such as the potential for agriculture-led economic growth, government commitment to agricultural investment and policy reform, opportunities for partnerships and regional synergies, the level of need, and resource availability.

SEC. 4. COMPREHENSIVE GLOBAL FOOD SECURITY STRATEGY.

(a) STRATEGY.—The President shall coordinate the development and implementation of a United States whole-of-government strategy to accomplish the policy objectives described in section 2(a), which shall—

(1) set specific and measurable goals, benchmarks, timetables, performance metrics, and monitoring and evaluation plans that reflect international best practices relating to transparency, accountability, food and nutrition security, and agriculture-led economic growth, consistent with the policy objectives described in section 2(a);

(2) establish clear and transparent selection criteria for target countries and communities;

(3) support and be aligned with country-owned agriculture, nutrition, and food security policy and investment plans developed with input from key stakeholders, as appropriate;

(4) support inclusive agricultural value chain development, with small-scale producers, especially women, gaining greater access to the inputs, skills, resource management capacity, networking, bargaining power, financing, and market linkages needed to sustain their long-term economic prosperity;

(5) support improvement of the nutritional status of women and children, particularly during the critical first 1,000-day window until a child reaches 2 years of age and with a focus on reducing child stunting, through nutrition-specific and nutrition-sensitive programs, including related water, sanitation, and hygiene programs;

(6) facilitate communication and collaboration, as appropriate, among local stakeholders in support of a multi-sectoral approach to food and nutrition security, to include analysis of the multiple underlying causes of malnutrition, including lack of access to safe drinking water, sanitation, and hygiene;

(7) support the long-term success of programs by building the capacity of local organizations and institutions in target countries and communities;

(8) integrate resilience and nutrition strategies into food security programs, such that chronically vulnerable populations are better able to build safety nets, secure livelihoods, access markets, and access opportunities for longer-term economic growth;

(9) develop community and producer resilience to natural disasters, emergencies, and natural occurrences that adversely impact agricultural yield;

(10) harness science, technology, and innovation, including the research and extension activities supported by relevant Federal departments and agencies, including State partners, and Feed the Future Innovation Labs;

(11) integrate agricultural development activities among food insecure populations living in proximity to designated national parks or wildlife areas into wildlife conservation efforts, as necessary and appropriate;

(12) leverage resources and expertise through partnerships with the private sector, farm organizations, cooperatives, civil society, faith-based organizations, and agricultural research and academic institutions;

(13) support collaboration, as appropriate, between United States universities, including land-grant colleges and universities, and public and private institutions in target countries and communities to promote agricultural development and innovation;

(14) seek to ensure that target countries and communities respect and promote land tenure rights of local communities, particularly those of women and small-scale producers; and

(15) include criteria and methodologies for graduating target countries and communities from assistance provided to implement the Global Food Security Strategy as such countries and communities meet the progress benchmarks identified pursuant to section 6(b)(4).

(b) COORDINATION.—The President shall coordinate, through a whole-of-government approach, the efforts of relevant Federal departments and agencies in the implementation of the Global Food Security Strategy by—

(1) establishing monitoring and evaluation systems, coherence, and coordination across relevant Federal departments and agencies; and

(2) establishing platforms for regular consultation and collaboration with key stakeholders and the appropriate congressional committees.

(c) STRATEGY SUBMISSION.—

(1) IN GENERAL.—Not later than October 1, 2016, the President, in consultation with the head of each relevant Federal department and agency, shall submit to the appropriate congressional committees the Global Food Security Strategy required under this section that provides a detailed description of how the United States intends to advance the objectives set forth in section 2(a) and the agency-specific plans described in paragraph (2).

(2) AGENCY-SPECIFIC PLANS.—The Global Food Security Strategy shall include specific implementation plans from each relevant Federal department and agency that describes—

(A) the anticipated contributions of the department or agency, including technical, financial, and in-kind contributions, to implement the Global Food Security Strategy; and

(B) the efforts of the department or agency to ensure that the activities and programs carried out pursuant to the strategy are designed to achieve maximum impact and long-term sustainability.

SEC. 5. ASSISTANCE TO IMPLEMENT THE GLOBAL FOOD SECURITY STRATEGY.

(a) FOOD SHORTAGES.—The President is authorized to carry out activities pursuant to section 103, section 103A, title XII of chapter 2 of part I, and chapter 4 of part II of the Foreign Assistance Act of 1961 (22 U.S.C. 2151a, 2151a–1, 2220a et seq., and 2346 et seq.) to prevent or address food shortages notwithstanding any other provision of law.

(b) AUTHORIZATION OF APPROPRIATIONS.—There is authorized to be appropriated to the Secretary of State and the Administrator of the United States Agency for International Development $1,000,600,000 for fiscal year 2017 to carry out those portions of the Global Food Security Strategy that relate to the Department of State and the United States Agency for International Development, respectively.

(c) MONITORING AND EVALUATION.—The President shall seek to ensure that assistance to implement the Global Food Security Strategy is provided under established parameters for a rigorous accountability system to monitor and evaluate progress and impact of the strategy, including by reporting to the appropriate congressional committees and the public on an annual basis.

SEC. 6. REPORT.

(a) IN GENERAL.—Not later than 1 year after the date of the submission of the Global Food Security Strategy, the President shall submit to the appropriate congressional committees a report that describes the status of the implementation of the Global Food Security Strategy.

(b) CONTENT.—The report required under subsection (a) shall—

(1) contain a summary of the Global Food Security Strategy as an appendix;

(2) identify any substantial changes made in the Global Food Security Strategy during the preceding calendar year;

(3) describe the progress made in implementing the Global Food Security Strategy;

(4) identify the indicators used to establish benchmarks and measure results over time, as well as the mechanisms for reporting such results in an open and transparent manner;

(5) describe related strategies and benchmarks for graduating target countries and

communities from assistance provided under the Global Food Security Strategy over time, including by building resilience, reducing risk, and enhancing the sustainability of outcomes from United States investments in agriculture and nutrition security;

(6) contain a transparent, open, and detailed accounting of expenditures by relevant Federal departments and agencies to implement the Global Food Security Strategy, including, for each Federal department and agency, the statutory source of expenditures, amounts expended, implementing partners, targeted beneficiaries, and activities supported;

(7) describe how the Global Food Security Strategy leverages other United States food security and development assistance programs on the continuum from emergency food aid through sustainable, agriculture-led economic growth;

(8) describe the contributions of the Global Food Security Strategy to, and assess the impact of, broader international food and nutrition security assistance programs, including progress in the promotion of land tenure rights, creating economic opportunities for women and small-scale producers, and stimulating agriculture-led economic growth in target countries and communities;

(9) assess efforts to coordinate United States international food security and nutrition programs, activities, and initiatives with key stakeholders;

(10) identify any United States legal or regulatory impediments that could obstruct the effective implementation of the programming referred to in paragraphs (7) and (8);

(11) assess United States Government-facilitated private investment in related sectors and the impact of private sector investment in target countries and communities;

(12) contain a clear gender analysis of programming, to inform project-level activities, that includes established disaggregated gender indicators to better analyze outcomes for food productivity, income growth, control of assets, equity in access to inputs, jobs and markets, and nutrition; and

(13) incorporate a plan for regularly reviewing and updating strategies, partnerships, and programs and sharing lessons learned with a wide range of stakeholders, including key stakeholders, in an open, transparent manner.

(c) PUBLIC AVAILABILITY OF INFORMATION.—The information referred to in subsection (b) shall be made available on the public website of the United States Agency for International Development in an open, machine readable format, in a timely manner.

SEC. 7. RULE OF CONSTRUCTION REGARDING EFFECT OF GLOBAL FOOD SECURITY STRATEGY ON FOOD AND NUTRITION SECURITY AND EMERGENCY AND NONEMERGENCY FOOD ASSISTANCE PROGRAMS.

(a) RULE OF CONSTRUCTION.—Nothing in the Global Food Security Strategy or this Act shall be construed to supersede or otherwise affect the authority of the relevant Federal departments and agencies to carry out the programs specified in subsection (b) in the manner provided in, and subject to the terms and conditions of, those programs.

(b) COVERED PROGRAMS.—The programs referred to in subsection (a) are the following:

(1) The Food for Peace Act (7 U.S.C. 1691 et seq.).

(2) The Food for Progress Act of 1985 (7 U.S.C. 1736o).

(3) Section 416(b) of the Agricultural Act of 1949 (7 U.S.C. 1431(b)).

(4) Section 3206 of the Food, Conservation, and Energy Act of 2008 (Local and Regional Food Aid Procurement Program; 7 U.S.C. 1726c).

(5) The Bill Emerson Humanitarian Trust Act (7 U.S.C. 1736f–1).

(6) Section 3107 of the Farm Security and Rural Investment Act of 2002 (McGovern-Dole International Food for Education and Child Nutrition Program; 7 U.S.C. 1736o–1).

(7) Any other food and nutrition security and emergency and nonemergency food assistance programs administered by the Department of Agriculture.

The SPEAKER pro tempore. Pursuant to the rule, the gentleman from New Jersey (Mr. SMITH) and the gentleman from New York (Mr. ENGEL) each will control 20 minutes.

The Chair recognizes the gentleman from New Jersey.

GENERAL LEAVE

Mr. SMITH of New Jersey. Mr. Speaker, I ask unanimous consent that all Members may have 5 legislative days to revise and extend their remarks and to include extraneous material on this measure.

The SPEAKER pro tempore. Is there objection to the request of the gentleman from New Jersey?

There was no objection.

Mr. SMITH of New Jersey. Mr. Speaker, I yield myself such time as I may consume.

Mr. Speaker, the Global Food Security Act, H.R. 1567, authorizes a comprehensive, strategic approach for U.S. foreign assistance to developing countries to reduce poverty and hunger, achieve food security and improved nutrition, promote inclusive, sustainable, agricultural-led economic growth, improve nutritional outcomes, especially for women and children, and build resilience among vulnerable populations.

At its core, H.R. 1567 establishes a comprehensive global food security strategy that includes eight mutually reinforcing policy objectives and 15 specific goals and actions designed to develop and implement a whole-of-government strategy.

Essential elements of the strategy include: benchmarks, timetables, performance metrics, and monitoring and evaluation plans; clear and transparent selection criteria for target countries; support of inclusive value-chain development with small-scale producers, especially women; leverage of resources and expertise through partnerships with the private sector, farm organizations, cooperatives, civil society, faith-based organizations, and agricultural research and academic institutions; harnessing science, technology, and innovation from a myriad of sources, including the 24 Feed the Future innovation labs; and support for improved nutrition for women and children, particularly during the critical first thousand-day window until a child reaches 2 years of age, and with a focus on reducing child stunting through nutrition-specific and nutrition-sensitive programs, including related water, sanitation, and hygiene programs.

Indeed, Mr. Speaker, there is perhaps no wiser and radically transformative investment that we could make in the human person than to concentrate on ensuring that sufficient nutrition and health assistance is given during the first thousand days of life, a thousand days that begins with conception, continues throughout pregnancy, includes that milestone event called birth, and then finishes at roughly the second birthday of the child.

Children who do not receive adequate nutrition in utero are far more likely to experience immune system deficiencies, making opportunistic infections more debilitating, even fatal, and a large number of lifelong cognitive and physical deficiencies, such as stunting. UNICEF estimates that one in four children worldwide is stunted due to lack of adequate nutrition. By maximizing nutrition during the first thousand days of life, we help ensure that the next 25,000 days or more in a person's life are far more likely to be healthier and disease free.

One objective of H.R. 1567 is to graduate individuals and families and communities and nations from food aid dependency to self-sufficiency, leading to a likely reduction in emergency food assistance over time. That is both humane and a responsible stewardship of taxpayer funds.

By statutorily authorizing this program, which had its roots in the Bush administration and was formalized by the Obama administration, we are also statutorily enhancing congressional oversight by requiring the administration to report to Congress. Thus, the bill requires rigorous monitoring, evaluation, and congressional oversight of the global food security strategy, and it mandates a comprehensive report to ensure accountability and effectiveness.

The approach we have taken in the Global Food Security Act is fiscally disciplined. There is no additional cost to the U.S. taxpayer. This would authorize a straight-lining from 2015 and 2016. USAID will be authorized, however, to do more by more effectively leveraging our aid with that of other countries, the private sector, NGOs, and faith-based organizations, whose great work on the ground in so many different countries impacts so many lives.

As the prime sponsor of H.R. 1567, let me convey my very special thanks to the gentlewoman from Minnesota (Ms. MCCOLLUM), the prime Democratic cosponsor, for her leadership, for her friendship, and for her support.

I am deeply grateful to the majority leader, KEVIN MCCARTHY, and his extraordinary floor director, Kelly Dixon, for their pivotal support in the last Congress and this one for the Global Food Security Act.

I would note parenthetically, if it passes today, this will be the second time in 2 years. The clock ran out on the bill in the Senate during the last Congress.

I am grateful as well for the strong and abiding support of the chairman of the Committee on Foreign Affairs, ED ROYCE, and ranking member, ELIOT ENGEL. They have been tremendous.

The Committee on Agriculture chairman, MIKE CONAWAY, made several important policy revisions and has been personally involved in the drafting of this bill, so I want to thank the gentleman from Texas (Mr. CONAWAY), my good friend and very distinguished colleague, for his work on this bill and his work on Agriculture in general. I thank him for that leadership. And, of course, a heartfelt thanks to all the other original cosponsors: Mr. FORTENBERRY, Ms. BASS, Mr. CRENSHAW, Ms. DELAURO, Mr. REICHERT, Mr. CICILLINE, Mr. SMITH of Washington, and Mr. PAULSEN.

Finally, a great big thanks to our professional staff members, who worked hard to bring this bill to the floor: Joan Condon and Doug Anderson at the Committee on Foreign Affairs; Scott Graves, Bart Fischer, and Jackie Barber at the Committee on Agriculture; legislative counsel Mark Synnes; Jenn Holcomb in BETTY MCCOLLUM's office; Piero Tozzi from my subcommittee; and my chief of staff, Mary Noonan. This is truly a team effort. This will save lives and enhance everyone's life around the world who benefits from the program.

Mr. Speaker, I reserve the balance of my time.

Mr. ENGEL. Mr. Speaker, I rise in support of this measure, and I yield myself such time as I may consume.

First, Mr. Speaker, let me thank our chairman, ED ROYCE, and his staff for their hard work on the bill and for bringing it forward. I am a big supporter of this bill, and I think this again shows our committee bipartisanship at its best.

I also want to thank Congressman CHRIS SMITH and Congresswoman BETTY MCCOLLUM for authorizing this legislation, the Global Food Security Act, H.R. 1567.

Mr. Speaker, nearly 800 million people around the world go to bed hungry on a day-to-day basis. Malnutrition is responsible for nearly half of all deaths of children under 5 years old. This is just unconscionable. We cannot allow it to continue. Plain and simple, we need to do more to help people feed themselves.

Beyond that, we need to get to the root causes that perpetuate cycles of poverty, hunger, and instability. This bill lays out clear priorities for American foreign assistance programs that reduce global poverty and hunger. We want to prioritize efforts that accelerate agriculture-led economic growth, enhance food and nutrition security, build resilience, create an environment for robust investment and trade, and advance the range of economic, diplomatic, global health, and national security interests that are tied to food security.

This bill also authorizes funding for State Department and USAID initiatives, including the administration's signature effort of Feed the Future. This program has already delivered real results in fighting world hunger, poverty, and malnutrition. Since 2010, Feed the Future has worked with smallholder farmers in 19 countries to increase incomes and reduce hunger, poverty, and undernutrition.

Feed the Future has helped rural Cambodians start profitable fish farming businesses, taught Guatemalan sharecroppers to grow more profitable crops, and provided educational and national support to Tanzanian mothers. There has been real progress in places like Ghana, which has reduced childhood stunting by 33 percent in just 6 years between 2008 and 2014. Incomes in Honduras increased 55 percent between 2012 and 2014.

This isn't a pie-in-the-sky notion, Mr. Speaker. This is an initiative that we are a part of that is getting real results for real people. So let's continue to support it.

This bill is a real step toward our vision of a world without global hunger and malnutrition, and it supports critical U.S. foreign policy and national security interests. I urge all of my colleagues to support this bill.

Mr. Speaker, I reserve the balance of my time.

Mr. SMITH of New Jersey. Mr. Speaker, I yield such time as he may consume to the gentleman from Texas (Mr. CONAWAY), the chairman of the Committee on Agriculture, who worked very closely with our committee and with me and with my staff on the bill and helped to ensure that it did not have any unintended negative consequences for the domestic programs within his committee's jurisdiction. I want to thank him again for his great leadership.

Mr. CONAWAY. Mr. Speaker, I want to thank Mr. SMITH for yielding and the other colleagues for the work they have done on this issue.

Mr. Speaker, I rise today in support of H.R. 1567, the Global Food Security Act of 2016. With the world population rapidly increasing, particularly in some of the most impoverished and food-insecure regions, it is of critical importance that the United States maintain its position as the world leader in the effort to alleviate global hunger and enhance food security.

The agricultural community is proud to have long played a crucial role in this effort. We are eager to continue doing our part. As chairman of the House Committee on Agriculture, I vow to ensure that the expertise of the agriculture community is fully leveraged in the global food security efforts that are moving forward.

To fulfill that promise, I have worked closely with the Committee on Foreign Affairs to ensure that the bill before us today capitalizes on the wealth of knowledge and expertise within the U.S. Department of Agriculture and amongst agricultural businesses, commodity groups, agricultural producers, agricultural research institutions, land grant colleges and universities, and the agricultural extension system.

Beyond requiring collaboration with key agricultural stakeholders, the bill will also improve the monitoring and reporting of the various programs and funds counted toward the success of the current Feed the Future initiative. USAID has been very vocal in its efforts to reduce and/or eliminate in-kind food assistance, yet it lauds the use of these very programs in selling the success of Feed the Future. It is my hope that the enhanced reporting accountability within the global food security strategy will ensure that all food aid programs and means of delivery are appropriately recognized for the role that they play in the strategy's success.

Further, to ensure that this legislation does not provide USAID with unintended opportunity to overhaul timetested food aid programs, the bill contains carefully crafted language protecting the funds and the authorities of these existing programs. As I have pointed out time and again, any changes should be explored in the context of future farm bill discussions.

I greatly appreciate Congressman SMITH's open-minded approach to achieving common ground on this legislation as well as the cooperation and support from the various agricultural organizations, commodity groups, and nongovernmental organizations, such as the ONE Campaign, who have been engaged in this process. I look forward to maintaining and building upon these positive relations as we move forward and carefully monitor the implementation of this strategy. I urge my colleagues to support this bill.

Mr. ENGEL. Mr. Speaker, it is now my pleasure to yield 5 minutes to the gentlewoman from Minnesota (Ms. MCCOLLUM), one of the authors of this bill and someone who has worked so long on issues like these for so many, many years. A lot of this is really a result of her hard work through the years.

□ 1730

Ms. MCCOLLUM. Mr. Speaker, today I rise in strong support for the Global Food Security Act, H.R. 1567. I want to especially thank Congressman CHRIS SMITH for being a real, true partner on this bill and for his work to advance global food security, which we both care about so very deeply.

This bill is an important bill with a goal everyone should support: helping hardworking farmers grow the food they need to feed and support their families. As we have already heard, in the world's poorest countries, nearly 800 million people are chronically hungry or malnourished, and more than 150 million children under the age of 5 are stunted.

No parent should have to watch their child suffer or even die because they don't have access to the nutritious food they need to survive. For children who somehow do survive, the lasting damage of not having access to healthy food means that a child will not grow physically and mentally the way that they should, especially during the first

thousand days, and any damage that is done is permanent.

According to the World Bank, stunting ''means a child has failed to develop in full, and it is essentially irreversible, which means that the child will have little hope of achieving [their] full potential.''

As a global community, we know that chronic malnutrition severely limits a child's ability to grow, to learn, and to thrive. But it is not just harmful for that child or the family, it undermines the development of an entire community and perpetuates the cycle of poverty. And all of this is completely preventable.

Working with small holder farmers, especially women, Feed the Future is helping to provide the tools, resources, education, and training these farmers need to grow their way out of poverty and to improve nutrition and create new economic opportunities.

I have been fortunate enough to see the work USAID is doing around the globe and to hear directly from women farmers about the difference it has made for themselves and their families. A mother can now feed her family better food, pay her children's school fees, invest in her community, and become an entrepreneur herself.

These are success stories that happen when the United States makes smart investments in global food security. These are the successes that we must continue if we want to strengthen families, communities, and, yes, even our own national security.

Feed the Future does not work alone. It is partnering with private sector businesses, civil society, and universities. Bringing these sectors together with their specialized knowledge and expertise is not only good for that farmer or local processor, but it builds new, stable markets in these communities.

Minnesota-based businesses Land O'Lakes, General Mills, and Cargill are already working with Feed the Future. General Mills CEO Ken Powell said, ''And we are hungry to help the farmer in Malawi who, by selling her crop, will generate the money needed to support her family and pay for her children to go to school.''

Well, that truly sums it up. This is what this legislation is all about: empowering women farmers to support and care for their families.

Once again, I want to thank Congressman CHRIS SMITH for being a great partner on this journey. I would like to thank Chairman ROYCE and Ranking Member ENGEL for helping to move this legislation forward, along with Congresswoman BASS.

I also want to thank the staff—Piero, Jenn, Janice, and Joan—for all the work that they did to help get this bill to the floor today.

In December 2014, this House passed a similar version of this bill by a voice vote, but the Senate failed to act. So today, once again, I urge my colleagues to support the Global Food Security Act.

Mr. SMITH of New Jersey. Mr. Speaker, I yield such time as he may consume to the gentleman from Florida (Mr. YOHO), a member of the Foreign Affairs Committee.

Mr. YOHO. Mr. Speaker, I thank my colleague, Mr. SMITH of New Jersey, for bringing this bill up today.

I rise in support of the Global Food Security Act, H.R. 1567. This bill reflects almost 2 years of work between the Agriculture Committee and the Foreign Affairs Committee, both of which I serve on.

This legislation is an important step in getting back to regular order and properly authorizing a program—which has essentially been on autopilot for the last 7 years—before funds are appropriated.

An important program such as this needs to be reexamined by Congress and duly authorized so that changes that need to be made can be made and to stop the terrible pattern of just appropriating money for programs because the reauthorization is too difficult to work out.

The legislation demonstrates that this body is doing what we were sent up here to do: make the tough decisions and stop the cycle of throwing good money after bad.

H.R. 1567 authorizes previously unauthorized money that is no higher than what has been appropriated in the last 2 fiscal years.

Furthermore, through the hard work of both the Agriculture and Foreign Affairs Committees, we have been able to eliminate duplicative spending and waste, strengthen congressional oversight while instituting no new spending, and most importantly, begin weaning these nations off of U.S. foreign aid by including the private sector, promoting economic growth, and opening markets for U.S. trade and investment instead of just aid.

I think it is time to change our paradigm of giving aid to foreign governments and move from aid to trade. That way, we wean off the structure we have done in the past.

I urge my colleagues to support H.R. 1567 and show the rest of the world that Congress is doing what it was meant to: making the hard choices through negotiating and crafting legislation and programs that will not irresponsibly waste taxpayer money and will encourage the best results that will wean countries off of U.S. aid and onto U.S. trade.

Mr. ENGEL. Mr. Speaker, I yield myself such time as I may consume.

Mr. Speaker, as you have heard from all our colleagues on both sides of the aisle, this is a good bill that deserves to be supported by everyone in the House.

Ending global hunger and malnutrition is an enormous challenge. There are nearly 800 million people facing chronic hunger and 3.1 million child malnutrition deaths each year. Let me just say that again because it is shocking. There are 3.1 million child malnutrition deaths each year. These are deaths of innocent children that we can save. They are dying if we do nothing.

So we must do more to achieve food and nutrition security. This bill is a step in the right direction, and I urge all my colleagues to support it.

I once again thank Chairman ROYCE, Mr. SMITH, and Ms. MCCOLLUM for their hard work on this issue, and I urge, again, my colleagues to support this legislation.

I yield back the balance of my time.

Mr. SMITH of New Jersey. Mr. Speaker, I yield myself such time as I may consume.

I want to thank Mr. ENGEL for his very kind remarks and for his strong support for this legislation. This has been a great partnership with BETTY MCCOLLUM, and I know it will continue. Both of us—and others, of course—are totally committed to ending chronic hunger and providing self-sufficiency in countries where it is a matter of just conveying best practices and increasing the capabilities of people and their roads and bridges. It's all very much integrated. So I want to thank her for her leadership on this very important piece of legislation.

Again, it bears saying over and over again that half of all deaths in children under 5 are attributable to undernutrition. Of course, for the others who die, very often, malnutrition is a complicating factor and it allows, as I said earlier, opportunistic diseases to take hold and to cause havoc, if not death, to that child.

There are 161 million children stunted worldwide. I was actually in the Central American country of Guatemala when they signed up for the First Thousand Days of Life. The new President has indicated when he was here that it is a very, very important part of his program.

We see it all over Africa and Asia. If nutrition is provided, it does mitigate disease. It does, for many, mean that they have a chance at life and that their immune systems are bolstered to the point where they can resist multiple attacks of various diseases and then get into adolescence and, of course, into adulthood.

This is transformative. It is bipartisan. I also think it bears repeating for my colleagues that this bill has been a long time in the making. As BETTY MCCOLLUM said earlier, we passed it last Congress. And I guess, as I said earlier, the clock did run out. We did not get it up for a vote in the Senate. God willing, this time it will be different.

We have had a dozen committee hearings. I have held many of them myself in my Subcommittee on Africa, Global Health, and Global Human Rights. It has been a multi-year effort and a great deal of due diligence and vetting has gone into the language. We worked, as I said earlier, very closely with Chairman MIKE CONAWAY, and he had very, very important contributions to make. So this has been a great collaborative effort of our staff and members

of the Foreign Affairs, Appropriations, and the Agriculture Committees.

I urge Members to support this bill, and I yield back the balance of my time.

Mrs. LAWRENCE. Mr. Speaker, I rise today in support of H.R. 1567, the Global Food Security Act of 2015. As the world's population has increased the demand for food has grown with it. Amidst a volatile oil market and impacts from extreme weather on major food-exporting industries due to climate change, food prices have risen with the burden falling heavily on underdeveloped nations and their citizens. The pressure is on our chamber to ensure that we live in a world where food availability, regardless of droughts and transportation costs, is not an option but a right.

Feed the Future, a U.S. Government Initiative, works hand-in-hand with partner countries to develop agriculture sectors that help domestic economies as well as the individuals in these places suffering from food shortages. The advanced approach by Feed the Future works to solve the issue by addressing many of the concerns that face these countries. Empowering women, embracing innovation between private sector and civil society, supporting food security, and creating cost-effective results that lead to sustainability for these partner countries are just some of the goals of the Feed the Future program.

The Global Food Security Act of 2015 builds off this initiative by making it permanent and committing the United States to a solution regarding the growing food shortage epidemic. The Act improves upon existing practices to ensure that U.S. taxpayer dollars are effectively apportioned while not adding to the debt. It also requires the Administration to develop a comprehensive strategy to combat food insecurity, malnutrition, and hunger and report it to Congress on a yearly basis.

I would like to close by saying that I am proud of our chamber for coming together to ensure that the United States plays a key role in combatting one of the largest developmental issues in the 21st century. I also want to thank my colleagues for understanding the importance of a comprehensive approach that recognizes and promotes the involvement of women in agriculture while also promoting a sustainable future for our partner countries.

The SPEAKER pro tempore. The question is on the motion offered by the gentleman from New Jersey (Mr. SMITH) that the House suspend the rules and pass the bill, H.R. 1567, as amended.

The question was taken.

The SPEAKER pro tempore. In the opinion of the Chair, two-thirds being in the affirmative, the ayes have it.

Mr. MASSIE. Mr. Speaker, on that I demand the yeas and nays.

The yeas and nays were ordered.

The SPEAKER pro tempore. Pursuant to clause 8 of rule XX, further proceedings on this motion will be postponed.

RECESS

The SPEAKER pro tempore. Pursuant to clause 12(a) of rule I, the Chair declares the House in recess until approximately 6:30 p.m. today.

Accordingly (at 5 o'clock and 40 minutes p.m.), the House stood in recess.

□ 1831

AFTER RECESS

The recess having expired, the House was called to order by the Speaker pro tempore (Mr. JOLLY) at 6 o'clock and 31 minutes p.m.

ANNOUNCEMENT BY THE SPEAKER PRO TEMPORE

The SPEAKER pro tempore. Pursuant to clause 8 of rule XX, proceedings will resume on motions to suspend the rules previously postponed.

Votes will be taken in the following order:

H.R. 1567, by the yeas and nays; and

H.R. 4676, by the yeas and nays.

The first electronic vote will be conducted as a 15-minute vote. The second electronic vote will be conducted as a 5-minute vote.

GLOBAL FOOD SECURITY ACT OF 2016

The SPEAKER pro tempore. The unfinished business is the vote on the motion to suspend the rules and pass the bill (H.R. 1567) to authorize a comprehensive, strategic approach for United States foreign assistance to developing countries to reduce global poverty and hunger, achieve food security and improved nutrition, promote inclusive, sustainable agricultural-led economic growth, improve nutritional outcomes, especially for women and children, build resilience among vulnerable populations, and for other purposes, as amended, on which the yeas and nays were ordered.

The Clerk read the title of the bill.

The SPEAKER pro tempore. The question is on the motion offered by the gentleman from New Jersey (Mr. SMITH) that the House suspend the rules and pass the bill, as amended.

The vote was taken by electronic device, and there were—yeas 370, nays 33, not voting 30, as follows:

[Roll No. 139]

YEAS—370

Abraham
Adams
Aderholt
Aguilar
Amodei
Ashford
Babin
Barletta
Barr
Barton
Bass
Beatty
Becerra
Benishek
Bera
Beyer
Bilirakis
Bishop (GA)
Bishop (MI)
Bishop (UT)
Black
Blackburn
Blum
Blumenauer
Bonamici
Bost
Boustany
Boyle, Brendan F.
Brady (PA)
Brady (TX)
Brooks (IN)
Brownley (CA)
Buchanan
Bucshon
Bustos
Butterfield
Byrne
Calvert
Capuano
Cárdenas
Carney
Carson (IN)
Carter (TX)
Cartwright
Castor (FL)
Chabot
Chaffetz
Chu, Judy
Cicilline
Clark (MA)
Clarke (NY)
Clawson (FL)
Clay
Clyburn
Coffman
Cohen
Cole
Collins (NY)
Comstock
Conaway
Connolly
Conyers
Cook
Cooper
Costello (PA)
Courtney
Cramer
Crawford
Crenshaw
Cuellar
Cummings
Curbelo (FL)
Davis (CA)
Davis, Danny
Davis, Rodney
Delaney
DeLauro
DelBene
Denham
Dent
DeSantis
DeSaulnier
DesJarlais
Diaz-Balart
Dingell
Doggett
Donovan
Doyle, Michael F.
Duckworth
Duffy
Duncan (SC)
Ellison
Ellmers (NC)
Emmer (MN)
Engel
Eshoo
Esty
Farr
Fitzpatrick
Fleischmann
Flores
Forbes
Fortenberry
Foster
Foxx
Franks (AZ)
Frelinghuysen
Fudge
Gabbard
Gallego
Garamendi
Garrett
Gibbs
Gibson
Goodlatte
Gowdy
Graham
Granger
Graves (LA)
Graves (MO)
Green, Al
Green, Gene
Guinta
Guthrie
Hahn
Hanna
Hardy
Harper
Harris
Hartzler
Hastings
Heck (NV)
Heck (WA)
Hensarling
Herrera Beutler
Higgins
Hill
Himes
Hinojosa
Holding
Honda
Hoyer
Hudson
Huelskamp
Huffman
Huizenga (MI)
Hultgren
Hunter
Hurd (TX)
Hurt (VA)
Israel
Issa
Jackson Lee
Jeffries
Jenkins (KS)
Jenkins (WV)
Johnson (GA)
Johnson (OH)
Johnson, E. B.
Johnson, Sam
Jolly
Jordan
Joyce
Kaptur
Keating
Kelly (IL)
Kelly (MS)
Kelly (PA)
Kennedy
Kildee
Kilmer
Kind
King (IA)
King (NY)
Kinzinger (IL)
Kirkpatrick
Kline
Knight
Kuster
LaHood
LaMalfa
Lance
Langevin
Larsen (WA)
Larson (CT)
Latta
Lawrence
Lee
Levin
Lewis
Lipinski
LoBiondo
Loebsack
Lofgren
Long
Love
Lowenthal
Lowey
Lucas
Luetkemeyer
Lujan Grisham (NM)
Luján, Ben Ray (NM)
Lynch
MacArthur
Maloney, Carolyn
Maloney, Sean
Marchant
Marino
Matsui
McCarthy
McCaul
McCollum
McDermott
McGovern
McHenry
McKinley
McMorris Rodgers
McNerney
McSally
Meadows
Meehan
Meeks
Messer
Mica
Miller (FL)
Miller (MI)
Moolenaar
Mooney (WV)
Moore
Moulton
Mulvaney
Murphy (FL)
Murphy (PA)
Nadler
Napolitano
Neal
Neugebauer
Newhouse
Noem
Nolan
Norcross
Nugent
Nunes
O'Rourke
Olson
Palazzo
Pallone
Pascrell
Paulsen
Payne
Pelosi
Perry
Peters
Peterson
Pingree
Pittenger
Pitts
Pocan
Poe (TX)
Poliquin
Polis
Pompeo
Posey
Price (NC)
Quigley
Rangel
Reed
Reichert
Renacci
Ribble
Rice (NY)
Rice (SC)
Richmond
Rigell
Roby
Roe (TN)
Rogers (AL)
Rogers (KY)
Rohrabacher
Rokita
Rooney (FL)
Ros-Lehtinen
Ross
Rothfus
Rouzer
Roybal-Allard
Royce
Ruiz
Ruppersberger
Rush
Russell
Ryan (OH)
Salmon
Sánchez, Linda T.
Sanchez, Loretta
Sarbanes
Scalise
Schakowsky
Schiff
Schrader
Schweikert
Scott (VA)
Scott, David
Serrano
Sessions
Sewell (AL)
Sherman
Shimkus
Shuster
Simpson
Sinema
Sires
Slaughter
Smith (MO)
Smith (NE)
Smith (NJ)
Smith (TX)
Speier
Stefanik
Stewart
Stivers
Swalwell (CA)
Takai
Takano
Thompson (CA)
Thompson (MS)
Thompson (PA)
Thornberry
Tipton
Titus
Tonko
Torres
Trott
Tsongas
Turner
Upton
Valadao
Van Hollen
Vargas
Veasey
Vela
Velázquez
Visclosky
Wagner
Walberg
Walden
Walker
Walorski
Walters, Mimi
Walz
Wasserman Schultz
Waters, Maxine
Watson Coleman
Webster (FL)
Welch
Wenstrup
Westerman
Williams
Wilson (FL)
Wilson (SC)
Wittman
Womack
Yarmuth
Yoder
Yoho
Young (AK)
Young (IA)
Young (IN)
Zeldin
Zinke

NAYS—33

Allen
Amash
Brat
Brooks (AL)
Burgess
Carter (GA)
Collins (GA)
Culberson
Duncan (TN)
Farenthold
Fleming
Gohmert
Graves (GA)
Griffith
Grothman
Hice, Jody B.
Jones
Labrador
Lamborn
Loudermilk
Massie
McClintock
Mullin
Palmer
Price, Tom
Ratcliffe
Sanford
Scott, Austin
Sensenbrenner
Stutzman
Weber (TX)
Westmoreland
Woodall

NOT VOTING—30

Bridenstine
Brown (FL)
Buck
Capps
Castro (TX)
Cleaver
Costa
Crowley
DeFazio
DeGette
Deutch
Dold
Edwards
Fattah
Fincher
Frankel (FL)
Gosar
Grayson
Grijalva
Gutiérrez
Katko
Lieu, Ted
Lummis
Meng
Pearce
Perlmutter
Roskam
Smith (WA)
Tiberi
Whitfield

□ 1851

Messrs. JODY B. HICE of Georgia, GROTHMAN, CARTER of Georgia, CULBERSON, AUSTIN SCOTT of Georgia, WEBER of Texas, and FARENTHOLD changed their vote from ''yea'' to ''nay.''

So (two-thirds being in the affirmative) the rules were suspended and the bill, as amended, was passed.

The result of the vote was announced as above recorded.

A motion to reconsider was laid on the table.

Stated for:

Mr. DOLD. Mr. Speaker, on rollcall No. 139, I was unavoidably detained. Had I been present, I would have voted "Yes."

PREVENTING CRIMES AGAINST VETERANS ACT OF 2016

The SPEAKER pro tempore. The unfinished business is the vote on the motion to suspend the rules and pass the bill (H.R. 4676) to amend title 18, United States Code, to provide an additional tool to prevent certain frauds against veterans, and for other purposes, as amended, on which the yeas and nays were ordered.

The Clerk read the title of the bill.

The SPEAKER pro tempore. The question is on the motion offered by the gentleman from Virginia (Mr. GOODLATTE) that the House suspend the rules and pass the bill, as amended.

This will be a 5-minute vote.

The vote was taken by electronic device, and there were—yeas 411, nays 0, not voting 22, as follows:

[Roll No. 140]

YEAS—411

Abraham
Adams
Aderholt
Aguilar
Allen
Amash
Amodei
Ashford
Babin
Barletta
Barr
Barton
Bass
Beatty
Becerra
Benishek
Bera
Beyer
Bilirakis
Bishop (GA)
Bishop (MI)
Bishop (UT)
Black
Blackburn
Blum
Blumenauer
Bonamici
Bost
Boustany
Boyle, Brendan F.
Brady (PA)
Brady (TX)
Brat
Brooks (AL)
Brooks (IN)
Brown (FL)
Brownley (CA)
Buchanan
Bucshon
Burgess
Bustos
Butterfield
Byrne
Calvert
Capps
Capuano
Cárdenas
Carney
Carson (IN)
Carter (GA)
Carter (TX)
Cartwright
Castor (FL)
Chabot
Chaffetz
Chu, Judy
Cicilline
Clark (MA)
Clarke (NY)
Clawson (FL)
Clay
Cleaver
Clyburn
Coffman
Cohen
Cole
Collins (GA)
Collins (NY)
Comstock
Conaway
Connolly
Conyers
Cook
Cooper
Costello (PA)
Courtney
Cramer
Crawford
Crenshaw
Cuellar
Culberson
Cummings
Curbelo (FL)
Davis (CA)
Davis, Danny
Davis, Rodney
DeGette
Delaney
DeLauro
DelBene
Denham
Dent
DeSantis
DeSaulnier
DesJarlais
Diaz-Balart
Dingell
Doggett
Dold
Donovan
Doyle, Michael F.
Duckworth
Duffy
Duncan (SC)
Duncan (TN)
Ellison
Ellmers (NC)
Emmer (MN)
Engel
Eshoo
Esty
Farenthold
Farr
Fitzpatrick
Fleischmann
Fleming
Flores
Forbes
Fortenberry
Foster
Foxx
Franks (AZ)
Frelinghuysen
Fudge
Gabbard
Gallego
Garamendi
Garrett
Gibbs
Gibson
Gohmert
Goodlatte
Gowdy
Graham
Granger
Graves (GA)
Graves (LA)
Graves (MO)
Green, Al
Green, Gene
Griffith
Grothman
Guinta
Guthrie
Hahn
Hanna
Hardy
Harper
Harris
Hartzler
Hastings
Heck (NV)
Heck (WA)
Hensarling
Herrera Beutler
Hice, Jody B.
Higgins
Hill
Himes
Hinojosa
Holding
Honda
Hoyer
Hudson
Huelskamp
Huffman
Huizenga (MI)
Hultgren
Hunter
Hurd (TX)
Hurt (VA)
Israel
Issa
Jackson Lee
Jeffries
Jenkins (KS)
Jenkins (WV)
Johnson (GA)
Johnson (OH)
Johnson, E. B.
Johnson, Sam
Jolly
Jones
Jordan
Joyce
Kaptur
Keating
Kelly (IL)
Kelly (MS)
Kelly (PA)
Kennedy
Kildee
Kilmer
Kind
King (IA)
King (NY)
Kinzinger (IL)
Kirkpatrick
Kline
Knight
Kuster
Labrador
LaHood
LaMalfa
Lamborn
Lance
Langevin
Larsen (WA)
Larson (CT)
Latta
Lawrence
Lee
Levin
Lewis
Lipinski
LoBiondo
Loebsack
Lofgren
Long
Loudermilk
Love
Lowenthal
Lowey
Lucas
Luetkemeyer
Lujan Grisham (NM)
Luján, Ben Ray (NM)
Lynch
MacArthur
Maloney, Carolyn
Maloney, Sean
Marchant
Marino
Massie
Matsui
McCarthy
McCaul
McClintock
McCollum
McDermott
McGovern
McHenry
McKinley
McMorris Rodgers
McNerney
McSally
Meadows
Meehan
Meeks
Messer
Mica
Miller (FL)
Miller (MI)
Moolenaar
Mooney (WV)
Moore
Moulton
Mullin
Mulvaney
Murphy (FL)
Murphy (PA)
Nadler
Napolitano
Neal
Neugebauer
Newhouse
Noem
Nolan
Norcross
Nugent
Nunes
O'Rourke
Olson
Palazzo
Pallone
Palmer
Pascrell
Paulsen
Payne
Pelosi
Perlmutter
Perry
Peters
Pingree
Pittenger
Pitts
Pocan
Poe (TX)
Poliquin
Polis
Pompeo
Posey
Price (NC)
Price, Tom
Quigley
Rangel
Ratcliffe
Reed
Reichert
Renacci
Ribble
Rice (NY)
Rice (SC)
Richmond
Rigell
Roby
Roe (TN)
Rogers (AL)
Rogers (KY)
Rohrabacher
Rokita
Rooney (FL)
Ros-Lehtinen
Roskam
Ross
Rothfus
Rouzer
Roybal-Allard
Royce
Ruiz
Ruppersberger
Rush
Russell
Ryan (OH)
Salmon
Sánchez, Linda T.
Sanchez, Loretta
Sanford
Sarbanes
Scalise
Schakowsky
Schiff
Schrader
Schweikert
Scott (VA)
Scott, Austin
Scott, David
Sensenbrenner
Serrano
Sessions
Sewell (AL)
Sherman
Shimkus
Shuster
Simpson
Sinema
Sires
Slaughter
Smith (MO)
Smith (NE)
Smith (NJ)
Smith (TX)
Speier
Stefanik
Stewart
Stivers
Stutzman
Swalwell (CA)
Takai
Takano
Thompson (CA)
Thompson (MS)
Thompson (PA)
Thornberry
Tiberi
Tipton
Titus
Tonko
Torres
Trott
Tsongas
Turner
Upton
Valadao
Van Hollen
Vargas
Veasey
Vela
Velázquez
Visclosky
Wagner
Walberg
Walden
Walker
Walorski
Walters, Mimi
Walz
Wasserman Schultz
Waters, Maxine
Watson Coleman
Weber (TX)
Webster (FL)
Welch
Wenstrup
Westerman
Westmoreland
Whitfield
Williams
Wilson (FL)
Wilson (SC)
Wittman
Womack
Woodall
Yarmuth
Yoder
Yoho
Young (AK)
Young (IA)
Young (IN)
Zeldin
Zinke

NOT VOTING—22

Bridenstine
Buck
Castro (TX)
Costa
Crowley
DeFazio
Deutch
Edwards
Fattah
Fincher
Frankel (FL)
Gosar
Grayson
Grijalva
Gutiérrez
Katko
Lieu, Ted
Lummis
Meng
Pearce
Peterson
Smith (WA)

□ 1858

So (two-thirds being in the affirmative) the rules were suspended and the bill, as amended, was passed.

The result of the vote was announced as above recorded.

A motion to reconsider was laid on the table.

PERSONAL EXPLANATION

Mr. CASTRO of Texas. Mr. Speaker, my vote was not recorded today. Had I been present, I would have voted as follows: Rollcall No. 139: "Aye"; and rollcall No. 140: "Aye."

□ 1900

ENSURING PATIENT ACCESS AND EFFECTIVE DRUG ENFORCEMENT ACT OF 2016

Mr. LANCE. Mr. Speaker, I ask unanimous consent to take from the Speaker's table the bill (S. 483) to improve enforcement efforts related to prescription drug diversion and abuse, and for other purposes, and ask for its immediate consideration in the House.

The Clerk read the title of the bill.

The SPEAKER pro tempore (Mr. HILL). Is there objection to the request of the gentleman from New Jersey?

There was no objection.

The text of the bill is as follows:

S. 483

Be it enacted by the Senate and House of Representatives of the United States of America in Congress assembled,

SECTION 1. SHORT TITLE.

This Act may be cited as the ''Ensuring Patient Access and Effective Drug Enforcement Act of 2016''.

SEC. 2. REGISTRATION PROCESS UNDER CONTROLLED SUBSTANCES ACT.

(a) DEFINITIONS.—

(1) FACTORS AS MAY BE RELEVANT TO AND CONSISTENT WITH THE PUBLIC HEALTH AND SAFETY.—Section 303 of the Controlled Substances Act (21 U.S.C. 823) is amended by adding at the end the following:

''(j) In this section, the phrase 'factors as may be relevant to and consistent with the

public health and safety' means factors that are relevant to and consistent with the findings contained in section 101.''.

(2) IMMINENT DANGER TO THE PUBLIC HEALTH OR SAFETY.—Section 304(d) of the Controlled Substances Act (21 U.S.C. 824(d)) is amended—

(A) by striking ''(d) The Attorney General'' and inserting ''(d)(1) The Attorney General''; and

(B) by adding at the end the following:

''(2) In this subsection, the phrase 'imminent danger to the public health or safety' means that, due to the failure of the registrant to maintain effective controls against diversion or otherwise comply with the obligations of a registrant under this title or title III, there is a substantial likelihood of an immediate threat that death, serious bodily harm, or abuse of a controlled substance will occur in the absence of an immediate suspension of the registration.''.

(b) OPPORTUNITY TO SUBMIT CORRECTIVE ACTION PLAN PRIOR TO REVOCATION OR SUSPENSION.—Subsection (c) of section 304 of the Controlled Substances Act (21 U.S.C. 824) is amended—

(1) by striking the last three sentences;

(2) by striking ''(c) Before'' and inserting ''(c)(1) Before''; and

(3) by adding at the end the following:

''(2) An order to show cause under paragraph (1) shall—

''(A) contain a statement of the basis for the denial, revocation, or suspension, including specific citations to any laws or regulations alleged to be violated by the applicant or registrant;

''(B) direct the applicant or registrant to appear before the Attorney General at a time and place stated in the order, but not less than 30 days after the date of receipt of the order; and

''(C) notify the applicant or registrant of the opportunity to submit a corrective action plan on or before the date of appearance.

''(3) Upon review of any corrective action plan submitted by an applicant or registrant pursuant to paragraph (2), the Attorney General shall determine whether denial, revocation, or suspension proceedings should be discontinued, or deferred for the purposes of modification, amendment, or clarification to such plan.

''(4) Proceedings to deny, revoke, or suspend shall be conducted pursuant to this section in accordance with subchapter II of chapter 5 of title 5, United States Code. Such proceedings shall be independent of, and not in lieu of, criminal prosecutions or other proceedings under this title or any other law of the United States.

''(5) The requirements of this subsection shall not apply to the issuance of an immediate suspension order under subsection (d).''.

SEC. 3. REPORT TO CONGRESS.

(a) IN GENERAL.—Not later than 1 year after the date of enactment of this Act, the Secretary of Health and Human Services, acting through the Commissioner of Food and Drugs, the Administrator of the Substance Abuse and Mental Health Services Administration, the Director of the Agency for Healthcare Research and Quality, and the Director of the Centers for Disease Control and Prevention, in coordination with the Administrator of the Drug Enforcement Administration and in consultation with the Secretary of Defense and the Secretary of Veterans Affairs, shall submit a report to the Committee on the Judiciary of the House of Representatives, the Committee on Energy and Commerce of the House of Representatives, the Committee on the Judiciary of the Senate, and the Committee on Health, Education, Labor, and Pensions of the Senate identifying—

(1) obstacles to legitimate patient access to controlled substances;

(2) issues with diversion of controlled substances;

(3) how collaboration between Federal, State, local, and tribal law enforcement agencies and the pharmaceutical industry can benefit patients and prevent diversion and abuse of controlled substances;

(4) the availability of medical education, training opportunities, and comprehensive clinical guidance for pain management and opioid prescribing, and any gaps that should be addressed;

(5) beneficial enhancements to State prescription drug monitoring programs, including enhancements to require comprehensive prescriber input and to expand access to the programs for appropriate authorized users; and

(6) steps to improve reporting requirements so that the public and Congress have more information regarding prescription opioids, such as the volume and formulation of prescription opioids prescribed annually, the dispensing of such prescription opioids, and outliers and trends within large data sets.

(b) CONSULTATION.—The report under subsection (a) shall incorporate feedback and recommendations from the following:

(1) Patient groups.

(2) Pharmacies.

(3) Drug manufacturers.

(4) Common or contract carriers and warehousemen.

(5) Hospitals, physicians, and other health care providers.

(6) State attorneys general.

(7) Federal, State, local, and tribal law enforcement agencies.

(8) Health insurance providers and entities that provide pharmacy benefit management services on behalf of a health insurance provider.

(9) Wholesale drug distributors.

(10) Veterinarians.

(11) Professional medical societies and boards.

(12) State and local public health authorities.

(13) Health services research organizations.

The bill was ordered to be read a third time, was read the third time, and passed, and a motion to reconsider was laid on the table.

AUTHORIZING THE USE OF THE CAPITOL GROUNDS FOR THE NATIONAL PEACE OFFICERS MEMORIAL SERVICE AND THE NATIONAL HONOR GUARD AND PIPE BAND EXHIBITION

Mr. BARLETTA. Mr. Speaker, I ask unanimous consent that the Committee on Transportation and Infrastructure be discharged from further consideration of House Concurrent Resolution 117, and ask for its immediate consideration in the House.

The Clerk read the title of the concurrent resolution.

The SPEAKER pro tempore. Is there objection to the request of the gentleman from Pennsylvania?

There was no objection.

The text of the concurrent resolution is as follows:

H. CON. RES. 117

Resolved by the House of Representatives (the Senate concurring),

SECTION 1. USE OF THE CAPITOL GROUNDS FOR NATIONAL PEACE OFFICERS MEMORIAL SERVICE.

(a) IN GENERAL.—The Grand Lodge of the Fraternal Order of Police and its auxiliary shall be permitted to sponsor a public event, the 35th Annual National Peace Officers Memorial Service (in this resolution referred to as the ''Memorial Service''), on the Capitol Grounds, in order to honor the law enforcement officers who died in the line of duty during 2015.

(b) DATE OF MEMORIAL SERVICE.—The Memorial Service shall be held on May 15, 2016, or on such other date as the Speaker of the House of Representatives and the Committee on Rules and Administration of the Senate jointly designate, with preparation for the event to begin on May 11, 2016.

SEC. 2. USE OF THE CAPITOL GROUNDS FOR NATIONAL HONOR GUARD AND PIPE BAND EXHIBITION.

(a) IN GENERAL.—The Grand Lodge of the Fraternal Order of Police and its auxiliary shall be permitted to sponsor a public event, the National Honor Guard and Pipe Band Exhibition (in this resolution referred to as the ''Exhibition''), on the Capitol Grounds, in order to allow law enforcement representatives to exhibit their ability to demonstrate Honor Guard programs and provide for a bagpipe exhibition.

(b) DATE OF EXHIBITION.—The exhibition shall be held on May 14, 2016, or on such other date as the Speaker of the House of Representatives and the Committee on Rules and Administration of the Senate jointly designate.

SEC. 3. TERMS AND CONDITIONS.

(a) IN GENERAL.—Under conditions to be prescribed by the Architect of the Capitol and the Capitol Police Board, the event shall be—

(1) free of admission charge and open to the public; and

(2) arranged not to interfere with the needs of Congress.

(b) EXPENSES AND LIABILITIES.—The sponsors of the Memorial Service and Exhibition shall assume full responsibility for all expenses and liabilities incident to all activities associated with the events.

SEC. 4. EVENT PREPARATIONS.

Subject to the approval of the Architect of the Capitol, the sponsors referred to in section 3(b) are authorized to erect upon the Capitol Grounds such stage, sound amplification devices, and other related structures and equipment, as may be required for the Memorial Service and Exhibition.

SEC. 5. ENFORCEMENT OF RESTRICTIONS.

The Capitol Police Board shall provide for enforcement of the restrictions contained in section 5104(c) of title 40, United States Code, concerning sales, advertisements, displays, and solicitations on the Capitol Grounds, as well as other restrictions applicable to the Capitol Grounds, in connection with the events.

The concurrent resolution was agreed to.

A motion to reconsider was laid on the table.

AUTHORIZING THE USE OF THE CAPITOL GROUNDS FOR THE 3RD ANNUAL FALLEN FIREFIGHTERS CONGRESSIONAL FLAG PRESENTATION CEREMONY

Mr. BARLETTA. Mr. Speaker, I ask unanimous consent that the Committee on Transportation and Infrastructure be discharged from further consideration of House Concurrent Resolution 120, and ask for its immediate consideration in the House.

The Clerk read the title of the concurrent resolution.

The SPEAKER pro tempore. Is there objection to the request of the gentleman from Pennsylvania?

There was no objection.

The text of the concurrent resolution is as follows:

H. CON. RES. 120

Resolved by the House of Representatives (the Senate concurring),

SECTION 1. USE OF CAPITOL GROUNDS FOR FALLEN FIREFIGHTERS CONGRESSIONAL FLAG PRESENTATION CEREMONY.

(a) IN GENERAL.—The Congressional Fire Services Institute and the National Fallen Firefighters Foundation (in this resolution referred to jointly as the ''sponsor'') shall be permitted to sponsor a public event, the 3rd Annual Fallen Firefighters Congressional Flag Presentation Ceremony (in this resolution referred to as the ''event''), on the Capitol Grounds in order to honor the firefighters who died in the line of duty in 2015.

(b) DATE OF EVENT.—The event shall be held on September 28, 2016, or on such other date as the Speaker of the House of Representatives and the Committee on Rules and Administration of the Senate jointly designate.

SEC. 2. TERMS AND CONDITIONS.

(a) IN GENERAL.—Under conditions to be prescribed by the Architect of the Capitol and the Capitol Police Board, the event shall be—

(1) free of admission charge and open to the public; and

(2) arranged not to interfere with the needs of Congress.

(b) EXPENSES AND LIABILITIES.—The sponsor shall assume full responsibility for all expenses and liabilities incident to all activities associated with the event.

SEC. 3. EVENT PREPARATIONS.

Subject to the approval of the Architect of the Capitol, the sponsor is authorized to erect upon the Capitol Grounds such stage, sound amplification devices, and other related structures and equipment as may be required for the event.

SEC. 4. ADDITIONAL ARRANGEMENTS.

The Architect of the Capitol and the Capitol Police Board are authorized to make such additional arrangements as may be required to carry out the event.

SEC. 5. ENFORCEMENT OF RESTRICTIONS.

(a) IN GENERAL.—Subject to subsection (b), the Capitol Police Board shall provide for enforcement of the restrictions contained in section 5104(c) of title 40, United States Code, concerning sales, advertisements, displays, and solicitations on the Capitol Grounds, as well as other restrictions applicable to the Capitol Grounds, with respect to the event.

(b) USE OF FIRE EQUIPMENT.—Notwithstanding any other provision of law, the Capitol Police Board may allow the sponsor, as part of the event, to use traditional, handheld fire equipment, such as axes and Pulaski tools, and any other fire equipment that the Board determines can be used in a safe manner and will not cause damage to the Capitol Grounds or harm to any individual.

The concurrent resolution was agreed to.

A motion to reconsider was laid on the table.

AUTHORIZING THE USE OF EMANCIPATION HALL IN THE CAPITOL VISITOR CENTER FOR AN EVENT TO CELEBRATE THE BIRTHDAY OF KING KAMEHAMEHA I

Mr. RODNEY DAVIS of Illinois. Mr. Speaker, I ask unanimous consent that the Committee on House Administration be discharged from further consideration of House Concurrent Resolution 115, and ask for its immediate consideration in the House.

The Clerk read the title of the concurrent resolution.

The SPEAKER pro tempore. Is there objection to the request of the gentleman from Illinois?

There was no objection.

The text of the concurrent resolution is as follows:

H. CON. RES. 115

Resolved by the House of Representatives (the Senate concurring),

SECTION 1. USE OF EMANCIPATION HALL FOR EVENT TO CELEBRATE BIRTHDAY OF KING KAMEHAMEHA I.

(a) AUTHORIZATION.—Emancipation Hall in the Capitol Visitor Center is authorized to be used for an event on May 22, 2016, to celebrate the birthday of King Kamehameha I.

(b) PREPARATIONS.—Physical preparations for the conduct of the ceremony described in subsection (a) shall be carried out in accordance with such conditions as may be prescribed by the Architect of the Capitol.

The concurrent resolution was agreed to.

A motion to reconsider was laid on the table.

HONORING JUSTIN AND STEPHANIE SHULTS

(Mr. ROE of Tennessee asked and was given permission to address the House for 1 minute and to revise and extend his remarks.)

Mr. ROE of Tennessee. Mr. Speaker, today I rise with a heavy heart along with my friends, Congressman COOPER and Congressman BARR, to offer our sincere condolences to the family of Justin and Stephanie Shults, two of the Americans who were killed by radical Islamic terrorists in the March 22 Brussels attack.

These cowardly attacks targeted innocent bystanders like Justin and Stephanie. This is not the first time the First Congressional District of Tennessee has experienced tragedy in this manner, as Sergeant Frederick Greene was killed at Fort Hood, Texas, in the 2009 attack.

Justin Shults grew up in Gatlinburg, Tennessee, where he was the valedictorian of Gatlinburg-Pittman High. He graduated from Vanderbilt University and received his MBA from the Owen School of Management, where he met Stephanie, his beautiful wife. They shared their love of adventure, which took them to Belgium for work. Justin's mom, Sheila, was a single mom who worked hard to provide for three children. They are a loving, Christian family who ended each conversation by saying, ''I love you,'' and those were the last words that Justin's mom said to him.

I can only imagine the grief that accompanies losing your child in such a sudden and violent manner, and we all join in offering Justin and Stephanie's families our prayers and deepest sympathy.

The family wants to thank those who have called them from around the world to offer their condolences. Indeed, we extend our condolences to all families who lost loved ones.

PAYING TRIBUTE TO THREE YOUNG PEOPLE WHO LOST THEIR LIVES TO TERRORISM

(Mr. COOPER asked and was given permission to address the House for 1 minute and to revise and extend his remarks.)

Mr. COOPER. Mr. Speaker, America and the Owen School of Management of Vanderbilt University suffered three devastating losses just during the month of March.

The Shults family, which has already been mentioned, were a model American couple, but the first victim of terrorism with ties to Owen School of Management was Taylor Force, a young man who was raised in Lubbock, Texas, went to a military academy in New Mexico, was an Eagle Scout, and then attended and graduated from West Point Academy, served in the U.S. Army, did two tours in the Middle East, emerged as a captain, and then chose the Owen School of Management at Vanderbilt for his business education.

The young man was on a school trip to Tel Aviv in Israel, and he was murdered in a random knife attack by a terrorist. It is hard to think of a sadder end for a great and promising young life.

The young Shults couple—my colleague Mr. ROE from Tennessee has already mentioned them—outstanding young people, probably no finer couple ever, and a couple with a sense of adventure. They went skydiving, they ran with the bulls in Pamplona, they saw the Eiffel Tower, and then as they were saying good-bye to her mother at the airport, were killed in the terrorist attack.

So let us pay tribute to these three outstanding young people. Let's use their lives as models, and let's not be daunted by terrorism. We have to meet and beat this threat.

MOMENT OF SILENCE IN HONOR OF JUSTIN AND STEPHANIE SHULTS

(Mr. BARR asked and was given permission to address the House for 1 minute and to revise and extend his remarks.)

Mr. BARR. Mr. Speaker, thank you to my colleagues, Congressman ROE and Congressman COOPER, for joining me in remembering our constituents, Stephanie and Justin Shults, two

promising young lives tragically cut short in the barbaric terrorist attacks on March 22 in Brussels, Belgium.

Stephanie Moore Shults was born and raised in Lexington, Kentucky. She was a graduate of Bryan Station High School and of Transylvania University in Lexington. We will never forget this daughter of Kentucky, her love of her family and her husband, and her sense of adventure, as she lived and worked in Europe.

We will never forget the anguish felt by Stephanie and Justin's families as they searched for their children in the aftermath of the attack; we will never forget their grief when they learned what happened; and we will never forget the ideology of evil and religious intolerance that is responsible for taking these two innocent Americans from us.

If the terrorists' objective was to undermine our country's will to fight extremism or to compel us to surrender our liberty to their oppressive, totalitarian vision of the world, then it has failed. The terrorists' cowardly act only invigorates our Nation's resolve to overcome and defeat this evil.

As we continue to pray for these families, I would like to ask Congressman ROE and Congressman COOPER to join me and for all of my colleagues to stand and please join us in a moment of silence and prayer to honor these young American people.

RECOGNIZING FLORIDA STATE UNIVERSITY'S RESEARCH ON THE ZIKA VIRUS

(Ms. GRAHAM asked and was given permission to address the House for 1 minute.)

Ms. GRAHAM. Mr. Speaker, today I rise to recognize Florida State University for the important research they are conducting into the deadly Zika virus. In coordination with Johns Hopkins and Emory Universities, Florida State researchers have made crucial breakthroughs that will be useful in slowing or preventing the virus from spreading.

As you know, Zika has wreaked havoc across South America, and it poses a great threat to our country, especially to my home State of Florida. There have already been more than 80 Zika cases reported in Florida, and as summer approaches, the situation will likely worsen.

We can't wait any longer. It is time to put politics aside and for Congress to do its job. We must fully fund research, prevention, and response efforts to fight this deadly virus before it spreads.

HONORING THE LIFE OF JOHN COLLINS

(Ms. ROS-LEHTINEN asked and was given permission to address the House for 1 minute and to revise and extend her remarks.)

Ms. ROS-LEHTINEN. Mr. Speaker, I rise to honor the life and legacy of a dear friend, John Collins.

John was a man of unwavering courage and dedication to our community and our country. At a very young age, John answered the patriotic call to join our proud Marine Corps, where he served for 23 years. During that time, John fought in the Korean war and was promoted on the battlefield from sergeant to lieutenant.

In 1971, after retiring from the military as a major, John moved to Florida, where he began another successful career with the Miami-Dade Police Department, where he served 26 years.

John was dedicated to his wife, Mary, a good friend with whom he celebrated 50 years of marriage this past September, and he loved their three sons and seven grandsons, three of whom continue John's legacy of service in our military.

John Collins stayed engaged in good causes in our community, joining the Veterans Committee in his hometown of Miami Lakes. May God bless and keep John Collins in his bosom and may his memory live forever in the hearts of those he knew. Semper fi, mi amigo.

TODAY WE MARK EQUAL PAY DAY

(Mr. LANGEVIN asked and was given permission to address the House for 1 minute and to revise and extend his remarks.)

Mr. LANGEVIN. Mr. Speaker, today we mark Equal Pay Day, the day when women's wages finally catch up to what men were paid in the previous year.

Mr. Speaker, it is unconscionable that in the United States today, women earn on average 79 cents for every dollar that a man makes. For women of color, this gap is even wider, 61 cents for African American women and 55 cents for Latinas.

This pay gap is harming working families in every State, particularly harmful to the two-thirds of families where women are the primary breadwinners. Lower paychecks mean less money for groceries, less money for rent, less money for child care or other necessities. Mr. Speaker, this has to change.

I am proud to be an original cosponsor of the Paycheck Fairness Act, which would make it easier for women to win pay discrimination cases and harder for companies to justify unequal salaries. I urge Republican leaders to bring this bill to the floor for a vote.

□ 1915

CONGRATULATING VILLANOVA UNIVERSITY WILDCATS

(Mr. MEEHAN asked and was given permission to address the House for 1 minute and to revise and extend his remarks.)

Mr. MEEHAN. Mr. Speaker, I rise today to pay tribute to the 2016 NCAA Men's Basketball National Champions, the Villanova University Wildcats.

As head coach Jay Wright is fond of saying, Villanova basketball can be defined in one word: attitude. I might say it is an infectious attitude. Over the course of a magical 3-week run in the NCAA tournament, the Wildcats showed why. It was a run that culminated in one of, if not the greatest championship games in NCAA men's basketball history. It was a game that featured two intensely competitive teams, two of basketball's most talented coaches, and an ending for the ages.

Junior Kris Jenkins' championship-winning buzzer beater is the sort of moment that, for millions of kids across this country practicing in the driveways or at their neighborhood parks, dreams are made of.

Villanova's program has a long and storied history of success, both on the court and off, and in the classroom. It is a tradition of humility, grace, and integrity that our entire region can be proud of. Villanova is not a large school, but it has built a world-class basketball program deeply rooted in its values.

I congratulate National Coach of the Year Jay Wright, his players and their families, and the entire Villanova community on their victory.

PAYCHECK FAIRNESS ACT

(Mr. CÁRDENAS asked and was given permission to address the House for 1 minute and to revise and extend his remarks.)

Mr. CÁRDENAS. Mr. Speaker, today I rise to talk about my youngest daughter's future and the future of young women across America.

My daughter, Alina, will be graduating high school next month and building a career very soon. My eldest daughter will be graduating with her master's degree next month. Ten days later, she will be giving birth to her first child.

The point I am making is that women across America make 79 cents for every dollar that a man makes for doing the same work. Minority women suffer most when Congress is inactive about making the proper changes to create inequity in our country. Minority women earn as little as 55 on the dollar when they perform the same work that a man does.

I pose this question to my colleagues: When we act to close the pay gap, who does this hurt?

And the answer is simple: No one is hurt. America benefits.

I am proud to support the Paycheck Fairness Act, along with 193 members of the House Democratic Caucus, and I look forward to working with the rest of my colleagues in the House so we can work to implement it in the San Fernando Valley and across the United States of America. Let's work together to correct this inequity.

150TH ANNIVERSARY OF THE PENNSYLVANIA FISH AND BOAT COMMISSION

(Mr. THOMPSON of Pennsylvania asked and was given permission to address the House for 1 minute and to revise and extend his remarks.)

Mr. THOMPSON of Pennsylvania. Mr. Speaker, I rise today to congratulate the Pennsylvania Fish and Boat Commission, or the PFBC, on their 150th anniversary.

The PFBC was founded on March 30, 1866, following a convention in Harrisburg that was held to investigate water pollution caused by the effect logging in the Commonwealth was having on mountain lakes and streams. The discussion at that meeting prompted the current Governor, Andrew Curtin, to sign a law naming James Worrall as the State's first Commissioner of Fisheries, creating what would become the Nation's second oldest fish or wildlife agency.

Since its founding 150 years ago, the PFBC has grown to employ more than 400 people and operates on an annual budget of nearly $60 million funded by anglers and boaters through license and registration fees, among other methods. The PFBC is responsible for policing 86,000 miles of Pennsylvania streams, nearly 4,000 lakes, more than 60 miles of Lake Erie's shoreline, and around 400,000 acres of wetlands.

As an avid fisherman, I am proud of the work done by the Pennsylvania Fish and Boat Commission in keeping our lakes and streams healthy.

FUNDS FOR ZIKA VIRUS RESEARCH

(Ms. JACKSON LEE asked and was given permission to address the House for 1 minute and to revise and extend her remarks.)

Ms. JACKSON LEE. Mr. Speaker, at the beginning of March, I held a briefing in Houston with leaders of the health community and our research community on the Zika virus. At that time, we had at least one case diagnosed in the city of Houston.

Since that time, we have watched the Centers for Disease Control travel to Puerto Rico, and we have seen the potential for a Zika epidemic in the United States, first starting in Florida and Texas. There are conditions in our particular area that are susceptible to the transmission of the Zika virus. Today, the Centers for Disease Control has indicated it may be more dangerous than we ever would have expected.

Over 2 months ago, I believe, the President submitted to Congress a request for $1.9 billion in an emergency supplemental. All of my constituents in the health profession are begging for this supplemental to be passed.

Yesterday I sent out a statement asking for the Speaker and the majority leader to bring the supplemental to the floor. It is an emergency.

Having gone through a number of epidemics in our community and in this Nation, it is time that we put the American people's interests first. It is now the time, Mr. Speaker, to pass the emergency supplemental and save lives.

SOUTHWEST BORDER SECURITY

(Mr. GUINTA asked and was given permission to address the House for 1 minute and to revise and extend his remarks.)

Mr. GUINTA. Mr. Speaker, I rise to highlight the connection between drug and human trafficking at the southwest border, where Mexican cartels control both. Last week I traveled to Texas and New Mexico to learn more about this connection.

The President's disregard of our immigration laws is encouraging people to risk their lives to enter the United States, enriching the same cartels that smuggle deadly heroin. Last year in New Hampshire, my home State, more than 400 Granite Staters died of a heroin or opiate overdose. There were nearly 50,000 in the United States last year.

That number is, unfortunately, trending upward, despite the best efforts of law enforcement. Border Patrol agents report that cartels are forcing illegal immigrants to carry heroin in exchange for protection. Sanctuary cities serve as way stations in this drug trade.

A secure border is a humane border. The Southwest Border Security Threat Assessment Act would compel Homeland Security to develop a better plan. Border agents need more support, as do police, across New Hampshire and this country, working to keep drugs off of our streets. Enforcing interior immigration laws would be an excellent first step.

EQUAL PAY DAY

(Ms. LORETTA SANCHEZ of California asked and was given permission to address the House for 1 minute and to revise and extend her remarks.)

Ms. LORETTA SANCHEZ of California. Mr. Speaker, I rise today on Equal Pay Day to call for action to close that persistent wage gap that occurs in the workplace to the detriment of women.

My grandmother worked all of her life. I would see her leave in the morning and go to the bus stop. She worked at a convalescent home where she made 3 meals a day for 170 people. She worked 6 days a week. On Saturday, she would make an extra meal so they could serve it on Sunday. On Sunday, she would take off work and go to church.

When my grandmother could no longer stand on her feet, she retired. She retired on Social Security, which was $484 a month—just enough to live at my mom's home in her retirement. She had no savings and no pension. One of the reasons is because, even though women work very hard in this country, they don't get paid what their counterparts—the males—do. And so women are twice as likely to retire in poverty.

When women succeed, America succeeds. And that is why I am a proud sponsor of the Paycheck Fairness Act.

EQUAL PAY ACT

(Ms. MCSALLY asked and was given permission to address the House for 1 minute and to revise and extend her remarks.)

Ms. MCSALLY. Mr. Speaker, in 1963, the Equal Pay Act was signed into law, making it illegal for an employer to pay women less than a man for the same work. Yet the reality is today, over 50 years later, women are still making less than men. This is unacceptable and something which we all have a stake in fixing.

Here in the House, we are working on putting forward new ideas and solutions to empower women to fight for equal pay. We must also continue to encourage young girls to enter STEM and other higher-paying fields and to make sure they know they can be whatever they want to be.

Lastly, we must do a better job recognizing that caring for aging parents or children is a responsibility for women and men in our society.

Mr. Speaker, I have been fighting my whole life for women's rights and equality. I know we still have work to do, and I am committed to making equal opportunity for women a reality. After all, this is America, where we pick the best man for the job, even if it is a woman. And that means making sure she is getting paid what she deserves.

CONGRATULATING RIBAULT HIGH SCHOOL GIRLS BASKETBALL TEAM

(Ms. BROWN of Florida asked and was given permission to address the House for 1 minute.)

Ms. BROWN of Florida. Mr. Speaker, I rise to congratulate the Ribault High School girls basketball team. Yes, the Ribault High School Trojans basketball team defeated Riverdale Baptist at Madison Square Garden to bring home to Jacksonville the Dick's Sporting Goods High School National Championship trophy.

Beyond a doubt, the Ribault High School girls basketball team is a powerhouse in the State of Florida and across the Nation. Given that the team has won 10 previous State titles and has been ranked as high as ninth in the country, they are a force to be reckoned with.

This outstanding achievement is tremendously exciting for the entire Jacksonville community, and I am proud to say once again that, on behalf of the constituents of Florida's Fifth Congressional District, I hereby honor the Ribault Trojans girls basketball

team for their 11th State championship and this year's national title game in New York City's Madison Square Garden.

Go, Lady Trojans, go.

ACKNOWLEDGING THE ACHIEVEMENTS OF JOHN CAVANAUGH

(Mrs. COMSTOCK asked and was given permission to address the House for 1 minute and to revise and extend her remarks.)

Mrs. COMSTOCK. Mr. Speaker, I would like to acknowledge the achievements of an individual who has shown his dedication to the future of our Nation through educating our youth.

John Cavanaugh attended Georgetown University, where he received his Bachelor of Science in language and linguistics. He began his teaching career at Georgetown Preparatory School in 1973, and shortly thereafter moved to the Congressional Schools of Virginia in 1976. He has shown an exemplary commitment to teaching over what has now become a 40-year career.

Over the years, Mr. Cavanaugh has taught Spanish, Latin, German, Italian, English as a second language, geography, world history, American history, and government to thousands of students. Currently concentrating on Latin and history, he has shown the same dedication to his students since the first day he walked into the classroom 40 years ago. His knowledge of American history is legendary, and he instills in his students a strong desire to learn, while also encouraging them to explore their own talents.

His hard work and passion for education has led him to his peers nominating him for the Washington Post's Teacher of the Year Award. He has been described as an ''icon'' and ''shepherd'' by colleagues and students alike. His unwavering commitment to helping students thrive has been demonstrated through his early morning review sessions and his advisory role to the Yearbook Club and National Junior Honor Society.

Mr. Speaker, in closing, I would like to acknowledge Mr. Cavanaugh for his achievements over these 40 years, and I wish him the best going forward. I ask my colleagues to join me in thanking him for touching so many lives as a first-class educator and for his dedication to our youth.

LEGISLATION TARGETING TRANSGENDER PEOPLE

(Mr. HONDA asked and was given permission to address the House for 1 minute and to revise and extend his remarks.)

Mr. HONDA. Mr. Speaker, I rise today to speak about the hateful and discriminatory legislation targeting transgender people that is sweeping through State legislatures.

Right now, there is anti-transgender legislation pending before legislatures in Illinois, Kansas, Massachusetts, Missouri, South Carolina, Washington, and Tennessee.

Tomorrow, Tennessee lawmakers will vote in committee on House Bill 2414, a bill that would require students to go into gender-specific bathrooms that match the gender on their birth certificate. Yet, Tennessee is one of the few States that does not allow a transgender person to change their birth certificate. It is ultimately a lose-lose for transgender people.

This bill would cause very real emotional harm and put transgender young people in physical danger if they are required to use gender-inappropriate restrooms and locker rooms. These anti-transgender bills in the States are rooted in fear, animus, and deeply misguided notions about who transgender people are.

I speak today as a Member of Congress and as a proud grandfather of a granddaughter who is transgender. These laws do not make us safer. These laws stoke misguided fears. They divide us. We must stand up to these laws and promote our values.

□ 1930

MASTERS WEEK 2016

(Mr. ALLEN asked and was given permission to address the House for 1 minute and to revise and extend his remarks.)

Mr. ALLEN. Mr. Speaker, the first full week of April, since the 1930s, America and the world get a peek at the world-famous Augusta National Golf Course for Masters Week.

Spectators gather in Augusta, Georgia, or join family and friends around the television to watch the world's most talented golfers compete for the highly coveted green jacket; and for 1 week each year, the world gets a glimpse into Georgia 12 and the wonderful people who live and work there, the district I have the great honor of representing.

From the pimento cheese sandwiches to the perfectly-manicured grounds, the rich tradition that encompasses the Masters is truly something special. The course, the creation of the great Bobby Jones, has seen the likes of Arnold Palmer, Byron Nelson, Jack Nicklaus, Tiger Woods, and spectators from all walks of life, making it a living history in the game. Jordan Spieth has been a great champion and made a historic effort to repeat as its champion.

Congratulations to this year's winner, Danny Willett, on his victory and the newest addition to his wardrobe, as well as a big thank-you to the members of the Augusta National Golf Club and all those who worked tirelessly to put the tournament on, which means so much to our district.

It was my privilege to welcome all people from around the globe to the world's greatest sporting event, as we now count down the days until Masters 2017.

HONORING COMMANDER KRISTINA DELL'ORCO, UNITED STATES COAST GUARD

(Mr. ABRAHAM asked and was given permission to address the House for 1 minute and to revise and extend his remarks.)

Mr. ABRAHAM. Mr. Speaker, I rise today to honor the career of Commander Kristina Dell'Orco and her service in the United States Coast Guard.

Kristina graduated from the United States Coast Guard Academy and was selected to attend Naval flight training, where she trained to pilot fixed-wing aircraft. Kristina earned her wings in 1999 and received the Daughters of the American Revolution award, given annually to the Coast Guard graduate with the highest grades. Kristina would go on to win many more awards, including the Coast Guard Commendation Medal and three Coast Guard Achievement Medals.

Along with these individual awards, Kristina has trained hundreds of cadets in annual flight instruction as a senior company officer.

I serve with Kristina in the Coast Guard Auxiliary and can truly say she is dedicated to her service and this great Nation. It is an honor to recognize Kristina for all she has done for the Coast Guard and this country, and I wish her a happy retirement.

CARING FOR THOSE BATTLING ALS

(Mr. FITZPATRICK asked and was given permission to address the House for 1 minute and to revise and extend his remarks.)

Mr. FITZPATRICK. Mr. Speaker, it is estimated that over 30,000 Americans are living with the progressive neurodegenerative disease and condition ALS, or Lou Gehrig's Disease, at any time. That includes dozens in my Pennsylvania district, including Frank Mongiello and former Naval Officer Matthew Bellina.

For those impacted by this disease, the toll is extraordinary, not only on their own well-being, but on their family and their finances. Thankfully for Matt and Frank, individuals like Jim Worthington and members of the Newtown Athletic Club have stepped up to offer emotional support and raised more than $200,000 for their cause.

While these actions show the commendable efforts of one community, there is more that can be done on their behalf here in Washington. Next week, I will join Matt and Frank in the Nation's Capital to urge not only for essential ALS funding, but for access to experimental drugs. The bipartisan Right to Try Act would remove the barriers to these trial-stage medications for those with a terminal disease like ALS.

The compassion of our communities and the long-term benefits of research must not prevent us from taking every

single step possible in the here and now to care for those battling ALS.

116TH ANNIVERSARY OF THE UNITED STATES SUBMARINE FORCE

(Mr. LAMALFA asked and was given permission to address the House for 1 minute and to revise and extend his remarks.)

Mr. LAMALFA. Mr. Speaker, just the other day, April 1, marked the 116th birthday and anniversary of the United States Submarine Force. This is the date the U.S. Government accepted the USS Holland, which is SS–1, into the U.S. Navy, again, in 1900.

This was pointed out by a good friend and a great patriot and veteran of the Submarine Forces, Jim Gibson of Redding, California, who has served on several different submarines and is a main organizer of the USS Cuttlefish, a veterans submarine group that does many events up in northern California. He pointed that out to me, and I want to acknowledge, again, the great work of our veterans of those subs and what they mean for the security of our Nation.

So happy 116th to the United States Submarine fleet.

A TALE OF TWO CITIES

The SPEAKER pro tempore. Under the Speaker's announced policy of January 6, 2015, the gentleman from Pennsylvania (Mr. MURPHY) is recognized for 60 minutes as the designee of the majority leader.

GENERAL LEAVE

Mr. MURPHY of Pennsylvania. Mr. Speaker, I ask unanimous consent that all Members may have 5 legislative days within which to revise and extend their remarks and include extraneous material on the subject of my Special Order.

The SPEAKER pro tempore. Is there objection to the request of the gentleman from Pennsylvania?

There was no objection.

Mr. MURPHY of Pennsylvania. Mr. Speaker, this is the tale of two cities—not the tale about the cities, but about two examples of America's great embarrassment and failure to treat a brain disease called mental illness, especially serious mental illness. It is also a tale of Congress' repeated failure to address this.

Despite the cries of millions of Americans to do something about it, what we here in Washington tend to do when we hear of another tragedy that has occurred somewhere in the Nation, the tragedies we know by the names of Sandy Hook Elementary School, or Columbine, or Aurora, Colorado, or Tucson, or Santa Barbara, what Washington tends to do is we have a moment of silence. But the people want and Members of Congress want moments of action, not moments of silence.

Let me elaborate on this tale. In this building, the U.S. Capitol, back in the 1990s, two police officers were killed when Russell Weston came into the Capitol seeking a red crystal and ended up shooting these police officers. Under his diagnosis of paranoid schizophrenia, he was pushed, with his delusions and hallucinations, to take action. It ended up in tragedy.

There was also recently, over the break, another man, Larry Russell Dawson, who has been seen around this Capitol and has once, allegedly, disrupted proceedings in this Chamber and, allegedly, also suffers from some level of mental illness. When he was entering the Capitol Visitor Center, a pistol was seen going through the x-ray. When he grabbed that pistol, police officers shot and wounded him.

First of all, it is amazing to me that people did not die. We know that the entrance to the Capitol Visitor Center is a highly secure environment with many, many Capitol Police officers. These brave men and women who put themselves between danger and Members of Congress and the public showed tremendous restraint and judgment at that moment.

I might add that, many times, when a mentally ill person has a conflict, a violent conflict with a police officer, where they may be reaching into their jacket or may be pointing a pistol or approaching a police officer with a knife, it is estimated between a quarter and a half of those mentally ill people involved in a police encounter end up dead. That is a few hundred each year.

Though that is the tale in Washington, D.C., why are we dealing with mental illness as a violent threat instead of in treatment? We deal with it because, in this Nation, sadly, when someone with mental illness has reached that level or they become violent, we call the police.

The rules are, which we will look at tonight: prevent people from getting treatment; we do not have enough providers; we don't have enough places to put people, so we call the police.

Now, I should start off by saying the mentally ill are no more likely to be violent than the non-mentally ill; except when you look at those with serious mental illness such as schizophrenia, bipolar, and other illnesses such as that, they are 16 times more likely to engage in an act of violence than someone who is in treatment.

Again, a person who is seriously mentally ill and not in treatment is 16 times more likely to engage in an act of violence than someone who is in treatment.

On the West Coast, in Seattle, another tragedy was brewing. A man named Cody Miller climbed a tree, a giant sequoia tree in downtown Seattle, and it created something of a furor.

First, I want to read parts of an article that appeared in The New York Times on March 29 that describe this to show you how out of touch we are as a society when dealing with mental illness.

It said: ''For more than 24 hours last week, Cody Lee Miller perched in a giant sequoia in downtown Seattle, pelting people and cars with pine cones and tearing off branches.''

Investigators were investigating how much it would cost, using some ''complicated formula that goes far beyond the value of natural beauty,'' the article said.

''A Seattle tree expert . . . said Mr. MILLER caused $7,800 in damage, according to court documents released this week. Investigators took into account the tree's age, its potential life span and how much of its lush foliage was denuded.

''The formula, created by professional foresters, goes like this. The trunk is 34 inches in diameter at breast height, an investigator's report said. The tree has a '95 percent species rating,' a '100 percent condition rating' and a 100 'percent location rating' . . . The sequoia's pre-damage value was put at $51,700. But after Mr. MILLER's arboreal escapade, the tree lost 15 percent of its value, the documents show, and is now worth only $43,900 . . .'The damage to the tree was extensive,' the report said.

''Mr. MILLER was charged on Monday with first-degree malicious mischief and third-degree assault. He was also ordered to stay away from the tree by observing 'no unwanted contact' ''—I repeat, ''by observing 'no unwanted contact' '' with the tree.

Now, the story goes on to describe trees and sequoias, but not until the very end of the article it mentions Mr. MILLER's mother, Lisa Gossett. She said that she had not talked to her son for some 5 years. She saw it on the news and she barely recognized him.

See, what was happening is Lisa Gossett and her daughter sat in their Alaska home watching this clip of the man perched in the tree. With their hearts broken, with tears streaming down their faces, Lisa and her daughter soon came to realize they were watching their son and their brother become the latest Internet mockery of a mentally ill person.

You see, when Cody Lee Miller climbed this 80-foot tree and sat there for 25 hours, he was sporting a bushy beard and ragged clothes, and most Americans were amused by this and they called it #manintree. It was an international viral story overnight. But this was no joke; this was no prank. This was the culmination of untreated mental illness that, once again, our society turned into a joke.

And we wonder why there is a stigma, when newspapers like The New York Times write a mocking story like that towards a man who has a disease. Would they have written an article like that if it was about someone with cancer or diabetes or AIDS or any other disease? My guess is no. But somehow, in our society, it is okay to mock a person who is suffering from schizophrenia.

When he was younger, he was clean-cut and rambunctious, loving and happy. Those are the words his friends used to describe him. At a young age, he was diagnosed with attention deficit hyperactivity disorder; however, other than excess energy, like any child, he didn't sport any behavioral issues. But then, 6 years ago, his mother began to notice an unusual shift in her son's behavior as he grew increasingly paranoid.

Let me note here that serious mental illness, about 50 percent of the time, emerges by age 14, and 75 percent of the time by age 24. It is very, very difficult to predict; although, we have now indicated some 108 genetic markers of schizophrenia and bipolar illness. Still, the issue is many parents have a loving and caring child, then something changes.

□ 1945

His behavior changed when Lisa would find knives stored under her son's pillow. And when confronting Cody about her discovery, he would simply respond: It is just to keep us safe.

As time passed on, Cody's mental instability progressed. He refused to enter certain stores downtown. When making an exception, Cody would cover his face with a hood, convinced people were constantly staring at him.

Following this enhanced paranoia came the emergence of night terrors and constant crying and shouting for his mother during the night. Cody would shriek in fear of the ''evil presence'' surrounding him.

This worrisome behavior continued to escalate as Cody spiraled out of control. He could be found walking down the street in high socks and clown glasses spreading deer bones on the road.

He hit a man with a flat tire and began to have dreams of killing his grandmother, going so far as setting her wood shop on fire. At that point, his grandmother said she could no longer handle him and sent him out.

He was caught in the revolving door of the United States' embarrassing and shamefully broken mental health system. He was constantly shuffled between homelessness and incarceration.

Lisa pleaded for others to help her son and appealed to the Alaska's Governor's office, mental health evaluators, and probation office for assistance.

But despite her efforts, Lisa's attempts to get her son proper treatment seemed hopeless due to the bureaucratic morass that is our mental health care system, which is not really a system at all.

She was sidelined from helping her son due to the inefficient system and forced to sit by and watch as Cody eroded over time.

We pretend in our own deluded state that all the seriously mentally ill are fully aware of their symptoms and welcome treatment. The fact is many don't.

Forty percent of individuals with schizophrenia and bipolar disorder don't even recognize that the delusions and hallucinations are not real. This is a medical condition called anosognosia.

Anosognosia is also something you see in people with dementia or Alzheimer's or stroke. It is very real. The person is not aware of their own problem.

But somehow we come up with this anthropomorphism which says, well, they can decide for themselves. They cannot decide for themselves when they don't even know who they are, that they exist, or what planet they are on.

They see things differently. They hear things differently. They smell things differently. They encode information differently into their brain. They process it and recall it differently. So for us to say that they just don't want treatment is a fool's errand on our part.

Can you imagine if we said that, again, to someone with cancer? ''You don't understand your disease.'' Diabetic? ''We are going to dismiss you.''

What if a person clutched his chest in a heart attack and laid unconscious in the street? Would we tell that person ''We are not going to help you until you wake up and tell us to treat you''?

Worse yet, will we say to that person ''We are not going to treat you until you are an imminent danger of killing yourself or killing someone else''? No. But that is what we do with the mentally ill.

The Energy and Commerce Committee's Oversight and Investigations Subcommittee that I chair had a couple-year study paving the way for my bill, the Helping Families in Mental Health Crisis Act.

With 187 cosponsors from both sides of the aisle, my bipartisan measure addresses the shortage of psychiatric beds, clarifies HIPAA privacy laws so families can be allowed to have some compassionate communication and be part of frontline care, and it helps patients get treatment well before their illness spirals into crisis.

My legislation has been endorsed by dozens of publications and newspapers, including The Washington Post, The Seattle Times, The San Francisco Chronicle, The Wall Street Journal, and the Pittsburgh Post-Gazette.

Each day I hear from countless families from across the country that we are experiencing a mental health crisis, and they are counting on our efforts to bring positive changes to the mental health system. We cannot let these families down. Lives are depending upon it. We cannot wish this away, and denial is not a treatment.

But let me tell you what Americans have to say about this because, as we are dealing with this issue, Americans are wondering why Congress is not acting. Why is Congress being so passive? Why aren't we doing what we need to do?

I want to tell you about a story that I posted on my Facebook page and this picture that I posted as well.

This is Cody Lee Miller in court. Look at his hair. Look at his beard. This is a man that obviously has not been taking care of himself.

He is in shackles on his ankles and his wrists, chained at his waist, and led by two police officers wearing their purple gloves so they are not at risk of infection while a judge sits in the background. This is a man who was diagnosed with schizophrenia being treated like a criminal.

Now, I wrote on my post this: ''Friends, you really can't make this stuff up.''

A man who is diagnosed with paranoid schizophrenia, #ManInTree, ''who desperately needs psychiatric care is brought in shackles before a judge because he has been charged with first-degree malicious mischief and third-degree assault. What was the outcome? The judge ordered him to stay away from the tree, but he first needs to make his $50,000 bail.

''Just look at this picture and tell me our mental health system isn't a mess. It is unbelievable. Recall that for 24 hours last week, Cody Lee Miller remained atop a giant sequoia tree in downtown Seattle. Since that time, there has been a greater outpouring of concern over the tree than the plight of this young man who is so clearly in the throes of a psychotic break.''

I make reference here to that article from The New York Times being far more concerned about the tree than a human being.

I wrote further: ''He is ordered to have 'no unwanted contact' with a sequoia, yet no concern about getting him into treatment. Such a sad indictment against an abusive system that would order no contact with a tree, yet remains silent on getting the mentally ill into care.

''Cody's mom talks about his downward spiral and has made it her mission to be a voice for families who desperately want to help their loved ones but are blocked by Federal and State laws that make it impossible to help mentally ill family members. Meanwhile, Congress is still stalling my Helping Families in Mental Health Crisis Act, H.R. 2646.''

This posting must have hit a nerve. Members of Congress follow Facebook pages and Twitter, and we have our social media. Many times when we post something we may hear from a few thousand people. As of a few minutes ago, this posting has led to 1.8 million hits on my Facebook.

What is also compelling is, as sad as this story is about this man treated like a prisoner, like a common criminal, instead of getting treatment, are the heart-wrenching comments made by the families. I want to read some of them to you. These are people from around the world, really, who have commented on what is happening here.

Holly Huntley Perron wrote: ''I agree with Cody's mom. The real culprits are

the State and Federal laws that prevent loved ones being able to help family members in trouble.''

By that I reference laws which say that, unless you are in imminent danger of killing yourself or someone else, no one is going to force you into treatment or laws that say, if this person says that they don't want help, you can't make them get help, or if the person in the midst of a delusion says: Don't tell my mother or my father because they are a part of the CIA or they are a Martian and they are planting thoughts in my brain, the doctors cannot tell the family members when is the next appointment, what is the medication, what is the diagnosis, and how should they treat him. They may say to take him home when the family says: What should I do?

We have heard of cases where the doctor says: We can't tell you because he doesn't want us to. But the family says: But I am taking him home. What should I do? We can't tell you.

One family member has said to the doctors: Let's just have a supposition. Just pretend that there was a case where someone with schizophrenia is going to my house. What should I do? And they say: We are not going to tell you.

These go on to happen where family members may be in court pleading in tears with the judge: Tell me where my son is. Tell me where my daughter is. Where is my father? My mother? My brother? My sister? Tell me so I can do something with them.

A caseworker may be sitting in the courtroom knowing full well where the person is and knowing there are problems, but they say: I can't tell you.

Because we believe their delusions are a reality, that they somehow have a right to be sick instead of a right to be well.

James Sobczak wrote: ''My guess is that he will get some mental health services in jail. Evaluate him and see if they can petition him to a psychiatric hospital. This is a process.''

Here is the problem. When we take the mentally ill people into jail, 80 percent of them get no treatment. Eighty percent of people taken to jail get no treatment.

And of those in jail, 40 to 60 percent of those in jail have some level of mental illness and many are severely mentally ill. What happens instead is a person is 10 times more likely to be in jail than in a hospital if they are mentally ill.

Once there, they don't get treatment. They oftentimes are subjected to abuse by other prisoners. They may get in fights with prison guards and then charged with another crime.

Because of all these problems, a person with mental illness tends to serve a sentence four times longer for the same crime than a person without mental illness. When you discharge them, they don't get treatment. So they get involved in this revolving door.

But why? Why, in heaven's name, is jail the right place to send someone with a brain disease? Why is it that Congress doesn't wake up?

Instead of passing so many silly bills all the time, we are willing to let people continue to die, by the way, at a rate of about 10 people an hour.

Last year in the United States 41,000 deaths by suicide, 45,000-plus deaths by drug overdose, somewhere between 200 and 500 deaths of a mentally ill person confronting a police officer.

Thousands—and we don't even know accurately how many—are people who are homeless and die. One person in Los Angeles died every day who was homeless. And about 200,000 of these homeless people are severely mentally ill people.

But we have gotten ourselves accustomed to stepping over them, to ignoring them, and to treating them as an invisible class that doesn't exist and somehow saying that that is what they want to be when they are not even aware. We think it is comfortable for them to live in filth and squalor.

If you add the numbers up, the total number of mentally ill who died last year in this country, it is probably well over 85,000, maybe 100,000, maybe 120,000.

I might add that even that lowest number is far greater than the total United States' combat deaths in the entire Korean war and Vietnam war combined for the length of those wars.

In 1 year in America, that is how many died, and what we do here is we throw them in jail or, quite frankly, many of them die in jail as well.

Another comment. Jim Holden wrote: ''The 'system' is the problem. We can't help these people because 'personal choice' is championed over their health and well-being. People on the streets need to be a danger to themselves or others before we can offer much-needed help. As a social worker I have always found this frustrating.''

Another woman, Jilly Aliska White, writes: ''My brother-in-law was just arrested for doing something during a psychotic break from his textbook schizophrenia. My husband's mom thinks he is finally going to get the help he needs now that he is in the system. Yeah. Right. He is not going to be any better off. They don't give a rat's when they can just shuffle him through the corrections system. It breaks my heart to explain this to them but look at the track record of them 'helping.' ''

Deb Smith writes:

Unfortunately, our jails and juvenile centers have become mental health facilities. While a person has mental health problems, they also may commit crimes for which they can be arrested and held. This is a very difficult and often a very dangerous situation for everyone involved. It is never as simple as get them treatment, nor is it as simple as just set them free if they commit a crime. The judge has to look at all sides, including the safety of both sides, but for the individual and the citizens in the community and what risk the person may have of further harm to himself or others if released.

Cindy Irvin writes: ''There is still a shame and embarrassment about mental illness that totally we don't understand. And then you have the people who believe that mental illness is a myth. Until these attitudes change—probably by some respected celebrity having a psychotic break—mental health care will stay in the shadows.''

Beverly Di Mele wrote: ''The problem is the mentally ill have rights, and if they choose not to seek treatment, they have that right. The treatment given to them prior to 1970s was forced and inhumane. They were locked up for decades, medicated, isolated, and restrained. This doesn't happen much anymore, thank God. They had procedures done on them like prefrontal lobotomies and were subjected to shock therapy. It was cruel and unusual treatment for humans that didn't happen to see the world as 'normal' people did. How would you like to see this treatment forced on your parent, child, or loved one?''

I agree with most of that. We don't want those treatments again, except, when she writes ''This doesn't happen much anymore, thank God,'' she is wrong. We should never allow again to bring back our asylums with its horrendous treatment.

But we have gone from a time of 550,000 psychiatric hospital beds in this country in the 1950s to less than 48,000 now. In the 1950s, the population of the United States was 150 million. Now it exceeds 316 million.

There are about 10 million people with severe mental illness, and 40 percent of them—4 million or so—don't have any treatment. And what happens to them is they go to jail.

When we closed these asylums, people didn't all of a sudden get better. Some got better because of medication. But we traded that psychiatric hospital bed for the prison cell. We traded that psychiatric hospital bed for the emergency room gurney when a person is given a five-point tie-down and sedation.

We traded that psychiatric hospital bed for the streets and subway grates for the homeless, and we traded that psych bed for the county morgue where many of them die as paupers waiting to be claimed.

Lori Welander writes: ''I suffer from major depression and had to do 10 days in jail. While there, they refused to give me my antidepressant medications. This seems to be the norm in my county's jail. It is pretty sad. This man needs people who care about humanity, not to be treated like this.''

Rhoda Robinson Brown writes: ''How about when our addicts beg the judges for treatment and get put into prison for years? Most think at least when they are in prison they won't be able to use drugs. Ask any addict that has been in county prison how easy it is to still get drugs. You will have people say they don't want their tax money paying for an addict's treatment. Don't they realize it costs more to keep them

in prison for years? Our justice system is so broken.''

□ 2000

Indeed, a study done in Arkansas for their legislature found that it cost 20 times more to put a person with mental illness in jail than in an outpatient treatment—20 times more.

Listen to this one. Sylvia Blanchard writes:

As the mother of a bipolar son, my heart goes out to his family because there is no hurt that hurts as much as watching someone you love have this happen in their own life. My son passed away 3 years ago, and I still ache. I have a child who is in the same situation. He needs mental help, then he needs to get treatment to deal with issues in his life that he ignores and uses drugs to hide from it. In and out of jail almost each week. Nothing a parent can do when it's an adult child. So sad for our system. All States need to look at what Ohio Governor did with his State to turn mental health and drug abuse around.

Heidi Meyer writes:

This all stems from a bigger problem in that there are too few beds in mental health facilities for children. There is nowhere to get help for them when they're young and it just leads to messed up adults.

This is a problem caused by the Federal Government. I told you that we have too few psychiatric beds. One of the biggest culprits of that is Medicaid. For people who are low-income between the ages of 22 and 64, if you have a psychiatric problem—I can't make this nonsense up, it is true—a person cannot go to a private psychiatric hospital with more than 16 beds.

So where do they go?

They put them in an emergency room, they put them in a general hospital psych bed, thinking they are going to save money.

But here is what happens. If a person is in a psychiatric hospital bed, it costs about $500 a day. If they go to an emergency room, it could be $3,000 or $4,000 a day. If they go to a general hospital psych unit, it could be $1,000, $1,200, $1,400 a day.

The State of Missouri actually did a study on this and found it saved 40 percent of Medicaid dollars by allowing people to go where the care is to a psychiatric hospital to understand that medications can work.

I yield to the gentleman from Georgia (Mr. CARTER) on this issue of medications to elaborate on this. BUDDY CARTER from the First District of Georgia, from Savannah, Georgia, knows well what medications can do when properly prescribed and properly followed to help treat someone.

Mr. CARTER of Georgia. Mr. Speaker, I thank the gentleman for yielding.

Mr. Speaker, as the gentleman has stated, this is a serious problem. This is a problem that I have dealt with as a professional pharmacist for many years. I have dealt with it in my retail setting in my pharmacies, as well as a consultant pharmacist in a long-term care facility in skilled nursing homes. I have seen the advances that we have made in medicine over the years. I have seen us go from only having the original antipsychotics, Haldol, which was always accompanied by a prescription for Cogentin to mask the side effects that the Haldol was going to have. I have seen the evolution of the atypical antipsychotics, which, while they do have some side effects themselves, are nowhere near the side effects that the original antipsychotics had.

I do thank the gentleman for bringing this important issue to light, and I do have a few comments that I would like to make.

First of all, medication plays a major role in the treatment for many mental illnesses. With the growing burden of mental disorders worldwide, pharmacists are ideally positioned to play a greater role in supporting people with a mental illness. There is a growing amount of evidence to show that pharmacist-delivered services in mental health care help address the barriers that are hurdles for the broader mental healthcare team.

Pharmacists have three roles they can play in helping our country address the mental health crisis.

First, pharmacists can play a major role in the multi-disciplinary teams addressing health care and can support early detection of mental illness. With more pharmacists coming out of school with greater clinical experience, pharmacists can work in new roles, such as in case conferencing or collaborative drug therapy management.

These new roles would also benefit from increased pharmacist involvement, such as the early detection of mental health conditions, development of healthcare plans, and follow-up of people with mental health problems.

Secondly, pharmacists can play a role in supporting quality use of medicines and medication review, strategies to improve medication adherence and antipsychotic polypharmacy, and shared decision making.

Pharmacists would have a large impact regarding medication review services and other pharmacist-led interventions designed to reduce inappropriate use of psychotropic medicines and improve medication adherence.

Finally, pharmacists can help address barriers surrounding the implementation of mental health pharmacy services with a focus on organizational culture and mental health stigma.

Over the years, the relation between the pharmacist and the physician has become more collaborative and cooperative. With this new relationship, pharmacists can work with physicians to develop strategies to change the attitudes and stigma surrounding mental health.

As my colleague from Pennsylvania, Representative MURPHY, continues to fight for this cause, I hope he will consider me and the profession of pharmacy as a friend and collaborator so we can fight to end the mental health crisis in this country.

Again, I want to thank the gentleman for yielding me this time and for bringing this most important subject to light.

Mr. MURPHY of Pennsylvania. Mr. Speaker, I thank the gentleman for his comments and his dedication to this issue.

Mr. Speaker, I yield to the gentleman from Oregon (Mr. BLUMENAUER), who has been absolutely steadfast in his compassion and caring for this. Also, it shows a bipartisan nature of our legislation. He has been instrumental in helping me understand other aspects of this. We made a number of modifications to this bill and will continue to work on these issues together, so I thank my friend.

Mr. BLUMENAUER. Mr. Speaker, I thank Mr. MURPHY. I appreciate his courtesy in permitting me to speak with him this evening.

The Sun is setting on our Nation's Capitol. Many of our colleagues have returned to Washington, D.C. They are at dinner, they are with their families, they are meeting with their constituents. I appreciate his being here on the floor this evening to highlight a critical area that he has been so committed to and has worked on so hard because it is something that each and every American needs to address and needs to focus on because we are all in this together.

I will say that earlier in my career as a child State legislator, I was part of the deinstitutionalization movement. It made a lot of sense. As my friend has said, we have had over a half million institutional beds. Some of the conditions were not what they should have been. Some of the treatment certainly is nothing that we would accept today.

The notion of allowing people to be helped in a deinstitutionalized setting made sense for a lot of people. It is sad to say we didn't do a good job of implementing it. The institutionalization worked if we were there supporting the people who were deinstitutionalized with medication, with counseling, and with housing. And sadly, when we hit some choppy waters economically in my community and others around the country who followed what was in theory a good model, we found that there were too many people out on their own.

Sadly, today, we can see evidence of the failure to do deinstitutionalization right on the streets of virtually every community large and small from coast to coast.

I appreciate his efforts to help refocus the Federal partnership. Certainly there is a role for State and local government, there is a role for the private sector, and there is a role for individuals and families. The Federal Government provides resources, provides a framework, provides a legal setting, and we need to make sure that the Federal framework reflects the lessons we have learned and the realities today.

I have been pleased that he has been so patient with me and others who

have carried to him some of the questions and concerns that we have picked up from people in our communities who care about it. He has tackled an area that is complex, it is controversial, and there is room for give and take. I feel in the hours and hours that we have talked about this exchanging information, I have seen that he has done just that. He has drilled down, he has listened, he has incorporated, he has asked more questions, and I appreciate that because I think he is establishing a framework here with a number of our colleagues on a bipartisan basis that will enable this Congress to be able to make real progress that is long overdue.

In my community, we are going to open a facility in September. We call it the Unity Center. It is a collaboration between four major hospitals to have a place where we can take people with mental problems out of emergency rooms where they can't be appropriately treated and where it is costly. All we can do is stabilize them, and then turn them back out on the street until their condition deteriorates where they pose a problem to themselves and others.

As he has referenced, too much of our mental health service in this country is to be found behind bars. That is not the appropriate setting. It is not cost effective and it is not humane.

We are making a small step in our community where these institutions have come together and have established a memorandum of understanding. They realize they are still going to lose money, but they are not going to lose as much. They are going to be able to give better care to a population that is very much in need.

I am hopeful, Mr. Speaker, that we will be able to, as a result of the work that he is doing with this legislation and others who he is working with, that we will be able to focus that Federal partnership yet this year, to be able to have more assistance to our communities to make sure that the Federal programs are tailored to the needs of today and the experience that we have acquired.

I am hopeful that we will be able to develop more tools for one of the most important ingredients in this equation, and that is the families who are too often prevented because of the regulatory framework we have. Some of this is understandable, but it shouldn't be a barrier for families who, in some cases, are the only people who really know the individual, who care about them, and who are equipped to be a vital partner with the mental health system.

I look forward to further progress. I look forward to bringing back to you more information from Portland, Oregon, where we are going to have another round table discussion with concerned individuals in government, in the medical profession, and advocacy groups to make sure that the input from my community is completely reflected in this.

Let me just say how much I appreciate his time and his effort, being a partner with him in this. I am looking forward to seeing the result before the final gavel comes down on this Congress.

Mr. MURPHY of Pennsylvania. Mr. Speaker, I thank the gentleman from Oregon, and truly my friend.

I think when people look at Congress and wonder if people can work on issues in a bipartisan way, I am sure if someone looked at our voting record on other issues, we would probably be a bit different. That is okay. What still stands is that we are able to come together with a common issue.

I have no idea if this man is Republican, Democrat, registered to vote, nor should that matter to us. I have never asked a patient in my 40 years of practicing. I know he is the same way, too. We do this because compassion dictates. Sometimes we are our brother's keeper, and we need to do the right things.

□ 2015

I do value your input on this bill. We have made a number of modifications. I know that, in committee, Democrats have offered several amendments which I want to incorporate and which look at specific funding for a number of things. We need more psychiatrists and psychologists. We just have to have them. We have to put money into that. We need more programs in there. We need to bolster community mental health services. We need to make sure that there is oversight over what States are doing with those dollars in order to make sure they are putting dollars into effective programs and not into frivolous ones. That is one of the roles Congress has is to be the watchdog over that.

I am proud to say, in front of the Nation, that you have been awesome in this, and I want to continue to work with you. We will solve this will issue.

Mr. BLUMENAUER. If the gentleman would yield, I just want to say that one of the areas that is most contentious deals with when people, like the gentleman that you have pictured behind you, are going to be compelled to have treatment. You have been open to being able to refine the protections to make sure—and this is something that varies across the country—that under the auspices of your bill that we have appropriate safeguards to make sure that the rights of the individual are respected but that we acknowledge the fact that, in some cases, the right for people to self-destruct is illusory.

Mr. MURPHY of Pennsylvania. Exactly.

Mr. BLUMENAUER. It is dangerous to them; it is dangerous to society; and it is heartbreaking for their families.

I have appreciated our conversations on that, going back and forth, and what you have tried to do to be able to make sure that the balance is struck. I am confident, before we are through, that we can make sure that the other areas that require that give-and-take can, in fact, be met. I would like to thank you for allowing me to speak on behalf of it, and I look forward to the next steps.

Mr. MURPHY of Pennsylvania. I thank the gentleman.

Mr. Speaker, what the gentleman is referring to is also something called assisted outpatient treatment. That is a program whereby 45 States and the District of Columbia—maybe 46 States now—have this. When people have a history of incarcerations, of arrests, of violence and when they are not in treatment, a judge protects their rights and may review their cases in terms of saying they can be put in inpatient care. If the judge says they do not meet the standard of imminent danger of harming themselves or someone else, assisted outpatient treatment is what may be warranted for them, which means the judge simply says: You are going to stay and continue to take your medication. You will continue to see your therapist and work on this.

That being the case, when New York State did this, it found a reduction in incarcerations and homelessness by some 70 percent. It was pretty dramatic. It found satisfaction by over 80 percent, and it found costs go down by 50 percent.

It is something on which we in Congress need to continue to work. We did pass legislation, which puts the appropriations of $15 million to help States do that, but we have a long way to go. It is a long way to go based upon what I said. I think it is 1,820,000 people so far who have commented. They have seen this on my Facebook page and have commented on it. I want to read some more comments—some heartbreaking lessons—people are making.

One is by the name of Kari Butler, who wrote on my Facebook page:

> They are falling through the cracks. Easier to just put them in jail with high bail. They do make medication for people like him, my nephews, which is to say one is in jail now since November—no release until August—mostly because he didn't follow up like he was supposed to. The prosecutor did a mental evaluation on him to see if he could withstand court, and he concluded he could; but something is not right here. He has assaulted officers and has been tased three times and has not been affected. Five police officers, it took, to get him into the back of a car. They tased him in Walmart—once in front of the whole store.

On it goes. There are many people with mental illness out there.

This person writes:

> I don't believe public servants have been trained properly to treat mental illness. I don't know what to do to help people who get the help they need to be productive.

One might say one of the aspects of our bill is to provide training for police officers—what is called emergency treatment for them. When police officers have been trained in that, we have actually seen—and the police officers like this, too—that they can quickly identify, if this is a mentally ill person

in crisis, what they can do to deescalate the situation and prevent it from becoming harmful or deadly.

Here is another point that has been written by Amethyst Lees:

First off, the health system is horrible, and I worked inside a mental institution and saw firsthand what it is like. Depending on where I was, the people were not getting their needs met or were being ignored. I even saw an incident where a man was waiting for 15 minutes for two staff members to stop talking about football just to ask for some ice. He never got his ice because he lashed out for being ignored, and, of course, he was restrained in a chair for an hour for getting angry.

Marianne Kernan writes with regard to Cody Miller:

Talk to him. Our mental health system is shameful. I know, as I work daily with this population, many times, their treatment is inhumane. Some with dementia or Alzheimer's wouldn't be treated this way if they had a break with reality. It is a sad commentary on our lack of knowledge of dealing with serious mental illness.

Here are some more stories.

Angie Geyser writes:

My 13-year-old daughter, Morgan, was in police custody for 19 months before she finally received treatment for her schizophrenia. We had to pursue a civil commitment to make it happen. Now she is back in juvenile detention where she has no access to the outdoors and is not allowed to have physical contact with her family. The treatment of the seriously mentally ill by the criminal justice system is appallingly inhumane.

Frede Trenkle writes:

Two weeks ago, a stranger that I have been married to for 13 years came into my home, sprayed me with pepper spray, took a knife out in front of my two kids, and threatened to cut his throat. The police took him away and put him in a mental health hold. I chose not to press charges and just requested that he get help. This was his second hospital stay in a month. The hold was supposed to be for 7 days. Four days later, he got out, and I am sure because he had a plane ticket out of the State. He convinced someone out there that I was the threat. He denied ever having a knife. He manipulated the system. I received abusive texts before I changed my phone number and he sent terrible emails. I only wish he could get the help he desperately needs wherever he is, but because of the unchecked mental illness, I now have two beautiful girls, without their father, and both needing their own mental health counseling. How do we help our system on all ends?

Another woman writes:

If you want people like this young man to get help, we all need to be okay with paying more taxes and closing privatized prisons. The prison system has become the dumping ground for the pervasive mentally ill.

Another one writes:

My uncle has schizophrenia. He disappears for months at a time. I worry constantly about him being hurt by law enforcement. He was living 50 miles away, in the woods, on his father's property, in a camper, and was threatened with a gun by a neighbor because he was walking in the fields, talking to things only he can see. The cops were called, and they showed up with weapons drawn. Then they took him away and locked him up for a month. He is only 32, but the police assumed he was on drugs. He was having a psychotic episode. There is not enough education in the judicial system about mental illness, and innocent people are being killed through the ignorance.

Another woman writes:

My question is this: As the mom, where should we direct the young people with schizophrenia? Hospital care is effective, but it seems to be temporary: 6 months in and 2 years out; repeat. Has anyone found or used or heard of any successful treatment going on at treatment facilities?

The answer is yes. Actually, one of the programs in H.R. 2646, the Helping Families in Mental Health Crisis Act, is for something called RAISE, Recovery After an Initial Schizophrenia Episode. We have learned that, since schizophrenia and bipolar illness and severe mental illnesses are emerging in adolescent and young adult years, if one gets to someone early, with a low dose of medication, with proper evidence-based treatment, the prognosis is much, much better; but when we don't treat someone, every time someone has what the lay public calls a nervous breakdown or a psychotic break—a crisis—we have to understand that, over time, these lead to neurological damage. These are not harmless episodes. This is not just someone who gets upset. This is a real psychiatric disorder that comes from the brain and leads to problems, and that is why we see these problems grow.

Here is someone who doesn't quite understand the problem. A woman by the name of Julie writes:

I am very much against the families of mentally ill patients having the power to put their loved ones away against a patient's will. Let the doctors determine if the patient has a problem, not the family. Often, the family just doesn't want to deal with the illness, so they want the person to go away.

Someone by the name of Robin Duffey writes:

Julie, you don't know what you're talking about. There are more of us that do care, but because of the mental health laws, we are unable to make decisions for very sick family members. People with schizophrenia don't realize they are sick. They think their hallucinations are real, along with the commanding voices they hear. So how can such an ill person make a logical decision to get the help they need? The answer is: they can't. The doctors have to follow the laws that are in place, which is they cannot recommend committing a person unless they are an immediate threat or danger to someone or themselves. Yes, Julie. There are some families that don't want to be bothered, but I was not one of them. I highly recommend you to do research on the subject before you spout your ideas. Read the Federal and State laws.

Indeed, that is what we are trying to do with H.R. 2646.

There are a couple of thousand more comments on my Facebook page, Mr. Speaker, and I certainly ask people to go and read them. They are heartbreaking. They are horrifying. They are tragic. They are true. They go on and on because our Nation refuses to acknowledge this.

Until we pass this bill and start making changes—we can predict it—in the time that I have been speaking here, there have been several more suicides; there have been more homicides; there have been more mentally ill people whom we have abandoned; there have been people who have had chronic illnesses and who have died, because the people with serious mental illness, for multiple reasons, tend to die 10 to 25 years sooner than the rest of the population because of the fact that 75 percent of those with mental illness have at least one chronic illness, 50 percent have at least two chronic illnesses, and a third have at least three chronic illnesses. I mean things like heart disease, lung disease, infectious disease, diabetes. They get sick and they, oftentimes, are not treated. Many times, they don't seek treatment. We let them go in this slow-motion death spiral and ignore them.

We have closed the hospitals. We have put them in prisons. If they are out of control and if the police bring them to the emergency room and if there are no beds available, they tie them down to the gurney, where they may wait for days—or weeks, in some cases—where they are, perhaps, given some sedative—a chemical straightjacket, if you will—to calm them down. That is not treatment. That is abusive. That is our Nation that is doing it, and Congress is culpable in this because we refuse to act.

Once again, there will be a tragedy somewhere. I shudder to think—and I hope it is not anybody here who is injured—that, somewhere out in America today, this is going to happen. Once again, we will gather for a moment of silence; the gavel will come down; and we will go back to our regular order of business. It is sad and it disgusts me, but that is what we face: all of this closing of hospitals and not opening up community mental health; Medicaid's saying you can't see two doctors in the same day; Medicaid's saying you can't go to a hospital with more than 16 beds; HHS' saying we can't tell parents anything, so they are left in the dark; the Substance Abuse and Mental Health Services Administration, which funds programs that teach people to make collages, to do interpretive dances, to get off their medication, to make masks and other things that have nothing to do with serious mental illness.

We need to change the system, and that is what H.R. 2646 does. It takes that office of SAMHSA and changes it so that the director of it is the Assistant Secretary of Mental Health and Substance Abuse. That person needs to be a doctor or a psychiatrist who is trained, either an M.D. or an osteopath or a psychologist, but someone who understands the field and not just someone who is saying: Well, let's just do these other ''feel good'' programs.

The city of New York just did this, too, where the mayor put up hundreds of millions of dollars for programs that were, supposedly, for the mentally ill. They weren't for the mentally ill at all. They were programs like parks and bike trails and ''feel good'' programs to

help people with sadness, not to deal with depression and serious mental illness.

How long can we continue to fool ourselves?

As for this whole idea that says ''leave it up to them if they want to choose; don't provide them the help; make it the most difficult for those people who have the most difficulty,'' all of this, Mr. Speaker, is more commentary and evidence of the grand experiment of stopping all treatment under the misguided, self-centered, and projected belief that all people who are mentally ill are fully capable of deciding their own fate and direction, regardless of their deficits and disease, and that they have the right to self-decay and self-destruction, which overrides their right to be healthy. The most fundamental, dangerous, and destructive hidden undercurrent of prejudice is the low expectation that your disability is as good as it gets.

□ 2030

The shift to consider changes in how we treat severe mental illness is the pendulum that needs to swing the other way. The grand experiment has failed in closing down all the institutions and care and stopping all treatment and not allowing community mental health.

It is a principle that operated under the misguided, self-centered belief that people are always fully capable of deciding their own fate, regardless of their deficits and disease, and the right to self-decay and self-destruction overrides this right to health.

In so doing, we have come to comfortably advocate our responsibility to action and live under this perverse redefinition that the most compassionate compassion is to do nothing at all.

It further bolstered the most evil of prejudices that the person with disabilities deserves no more than what they are. Under that approach, no dreams, no aspirations, no goals to be better can even exist.

Indeed, to help a person heal is a head-on collision with the bigoted belief that the severely mentally ill have no right to be better than what they are and we have no obligation to help them.

This is the corrupt evil of the hands-off approach in the antitreatment model, and that perversion of thought is embedded in the glorification that to live a life of deterioration and paranoia and filth and squalor and emotional torment trumps a healed brain and the true chance to choose a better life.

This is the movement of hatred and stigma toward the mentally ill disguised as the right to let them be sick. That hatred may be embedded in our own anger, our own resentment, and one's own past experiences projected as blame or misattribution of the lives of others or maybe our own fear and loathing of the mentally ill. Either way, the outcome is tragically the same.

So we can have more moments of silence or we can have times of action. I hope the Energy and Commerce Committee picks this up.

I hope that more Members of Congress will sign on as cosponsors of H.R. 2646, the Helping Families of Mental Health Crisis Act. The day that bill signs into law, it will begin to save lives. It will begin to make a difference in people's lives.

Of all the other things we do down the road here for images or to push polling—I can tell you this, that the polling on this bill is in 70s and 80s. As politicians, we think, wow, if something polls at 55 percent, vote for it.

My concern is: Will America wake up and look toward Congress here and say: When we had a chance to do something to save lives, did we act, or are we once again just caught up in moments of silence?

Thomas Jefferson said something along the lines of: ''Indeed I tremble for my country when I reflect that God is just and His justice cannot sleep forever.''

We are in that same position now. We can either have the courage to stand up, take action, and help the mentally ill or we can sit in silence. I hope this Chamber soon takes up H.R. 2646, the Helping Families in Mental Health Crisis Act.

Mr. Speaker, I yield back the balance of my time.

Ms. EDDIE BERNICE JOHNSON of Texas. Mr. Speaker, I rise in support of H.R. 2646, the Helping Families in Mental Health Crisis Act. Thank you to Congressman TIM MURPHY for hosting this important special order to discuss our country's current mental health system.

For more than two years now, I have worked with Congressman MURPHY on H.R. 2646, a bipartisan piece of legislation that has garnered support from patients, caregivers, psychiatrists, psychologists, law enforcement, and even editorial boards. As two of the few mental health providers serving in Congress, our bill reflects not only what we have learned in our own careers, but feedback from stakeholders, families, organizations, other members of Congress, and addresses many of the policies that we can change now to help patients struggling with severe mental illness and substance use disorders.

An amended version of H.R. 2646 passed the Energy and Commerce Subcommittee on Health in November of 2015. Since then, there has been no action. I have continued to talk with members of my community about mental health issues and they demand action.

It is now April of 2016 and we must move forward on the issue of mental health. The American people expect, deserve, and demand it. H.R. 2646 takes a strong step forward in mental health reform. As days pass with no action, people are denied beds, denied care, and are floating through the pervasive cycle of mental illness without attention. Everyone deserves care. I truly hope that my colleagues will work with me to pass this bill for the sake of those who truly matter.

REPORT ON RESOLUTION PROVIDING FOR CONSIDERATION OF H.R. 3340, FINANCIAL STABILITY OVERSIGHT COUNCIL REFORM ACT, AND PROVIDING FOR CONSIDERATION OF H.R. 3791, RAISING CONSOLIDATED ASSETS THRESHOLD UNDER SMALL BANK HOLDING COMPANY POLICY STATEMENT

Mr. STIVERS (during the Special Order of Mr. MURPHY of Pennsylvania), from the Committee on Rules, submitted a privileged report (Rept. No. 114–489) on the resolution (H. Res. 671) providing for consideration of the bill (H.R. 3340) to place the Financial Stability Oversight Council and the Office of Financial Research under the regular appropriations process, to provide for certain quarterly reporting and public notice and comment requirements for the Office of Financial Research, and for other purposes, and providing for consideration of the bill (H.R. 3791) to raise the consolidated assets threshold under the small bank holding company policy statement, and for other purposes, which was referred to the House Calendar and ordered to be printed.

REPORT ON RESOLUTION PROVIDING FOR CONSIDERATION OF H.R. 2666, NO RATE REGULATION OF BROADBAND INTERNET ACCESS ACT

Mr. STIVERS (during the Special Order of Mr. MURPHY of Pennsylvania), from the Committee on Rules, submitted a privileged report (Rept. No. 114–490) on the resolution (H. Res. 672) providing for consideration of the bill (H.R. 2666) to prohibit the Federal Communications Commission from regulating the rates charged for broadband Internet access service, which was referred to the House Calendar and ordered to be printed.

DEMENTIA AND ALZHEIMER'S

The SPEAKER pro tempore (Mr. BISHOP of Michigan). Under the Speaker's announced policy of January 6, 2015, the gentleman from California (Mr. GARAMENDI) is recognized for 60 minutes as the designee of the minority leader.

Mr. GARAMENDI. Mr. Speaker, my colleague just finished a very good recitation of the problems of mental health. I am going to pick up another piece of this issue which has to do with dementia and Alzheimer's, which I believe the gentleman spoke to very briefly during his presentation.

I thank him for his concern and for the work that he has been doing these many years on this profoundly important issue of brain health.

My role tonight will be kind of working off the previous presentation and taking it just a little bit in a slightly different direction, and it has to do with dementia and Alzheimer's, which is obviously a rather important issue.

I want to just put up a couple of placards here to try to demonstrate the overall nature of this problem. One way to look at it is just in terms of the numbers, and the numbers are staggering.

The number of people: Right now in America, there are about 5.1 million Americans with Alzheimer's. We expect that number to grow not just because the baby boomers are moving into their older years, but also because of the growth of the population and the increasing incidence of Alzheimer's.

If you look at this chart, you can see it growing over the years so that, in about 2050, we expect to have 13,800,000 Americans with Alzheimer's. It is not just an issue with individuals who are suffering, whose lives are seriously disrupted. It is a serious issue for the financing of this Nation.

If you look at this, you can see this line of growth in the number of Americans with Alzheimer's and you can see the ever-rising cost. These are not inflated numbers. These are constant dollars over the years.

So when we reach 2050, not too many years from now, we are going to see an extraordinary expense of nearly three-quarters of a trillion dollars annually spent with the Medicare-Medicaid budget.

Now, many, many people on this floor are concerned about deficits. We all are. The deficits are driven by many issues: the ever-increasing cost of programs, new programs, increasing military expenditures, the growth of Medicare, Social Security, and the like.

Well, Alzheimer's is the single biggest budget issue within all of those programs. Under the Medicare-Medicaid programs, it is going to explode—you can see what we are looking at here—from $153 billion in 2015 to three-quarters of a trillion, $735 billion, in the year 2050. This will bust the budget.

Many of the deficits that we are so concerned about, in fact, that are in play today, as this House has been unable with our Republican majority to fashion a budget and all of the disruptions that that creates and then the ongoing appropriation process, which is delayed and made rather confusing as a result of not having a budget—inherent in that debate is the ever-increasing cost of Medicare and Medicaid.

Well, why is it increasing? Well, largely it is increasing because of these types of illness, such as Alzheimer's. You can see here what we are looking at, almost a $30 billion increase in just the next 4 years—or 3 years, actually.

So no wonder we are unable to get control of our budgets and our appropriations here when we are faced with this inexorable increase in an illness that affects every family in America.

It has affected my family. My mother-in-law spent the last 3 years of her life living with my wife Patty and I in our home where we took care of her. We were fortunate enough to be able to have a day nurse come in. But then in the early morning and on through the evening and night, my wife and I were responsible for caring for my mother-in-law.

It was a duty that we found to be very worthwhile. It was a duty that brought our family together in close relationship as we watched this illness take hold of a lovely lady, a very smart, very capable woman who became ultimately an invalid and died of this disease.

It is not unique. Millions of families across this Nation are taking care of their husband, wife, mother, father, and mother- or father-in-law as Alzheimer's creeps into their family's life.

Now, this problem can be addressed. We know there is a solution. This is not a hopeless case. Five years ago, if I were standing here, I would probably say that this is simply hopeless and we are going to be faced with these costs no matter what happens. That is not the case today, not at all, because today research is having an effect.

Let me show you what research has done on other illnesses that plague Americans and, indeed, humans around the world:

Breast cancer: Well, we have had an enormous increase in breast cancer research. We have seen a 2 percent decline in the number of deaths from breast cancer.

Similarly, we have looked at other cancers, like prostate cancer, and we have seen an 11 percent decline in the deaths from prostate cancer.

Heart disease: There is an enormous amount of money going into heart disease, less than for cancer, but, nonetheless, an enormous amount of money. We have seen a 14 percent decrease in deaths from heart disease as a result of treatments that are now available. Research money led to those treatments.

Stroke: There is a 23 percent decline in the number of deaths from strokes. Again, research money into heart disease, into diseases of the circulatory system, have resulted in very, very significant decreases in the deaths.

HIV/AIDS: Dramatic. There has been an enormous amount of money spent into research of HIV/AIDS. The result? There has been a 52 percent decrease in the deaths from HIV/AIDS.

So we know that, if we spend money on research, we will see a decline in the death rate from those illnesses.

Alzheimer's disease: In 2015, we spent just over 20 percent of the amount of money on researching Alzheimer's disease as we did on heart disease and on cancer. So don't be surprised with this chart.

There is a 71 percent increase in the death rate from Alzheimer's. There is a relationship here. There is a relationship between the investment that we make in research and the resultant increase or decrease in the disease.

In the case of cancer of nearly all kinds, we have seen a significant and, in many cases, dramatic decline in the death rate from those cancers.

In the case of heart disease, similarly, money spent on research, on more effective treatments, and on drug treatments has resulted in a very significant decrease in strokes and other heart disease issues.

HIV/AIDS is the most dramatic where, again, research is leading to better lives, longer lives, less death and less cost.

Alzheimer's? No. No. In 2015, we spent just over $500 million.

Is there a lesson for us here? You bet there is. Here is the lesson: You invest up front. You invest up front with research.

I want to thank the President. I want to thank the Members of Congress and the Senate, who, in this current year's appropriation, 2016, have added another $300 million to the Alzheimer's research program.

Let me put another chart up here. Alzheimer's spending, research versus treatment: In 2015, Medicare and Medicaid will spend over 261 times as much on treatment as the NIH will spend on research toward a cure.

So, in 2015, a year ago, we spent $153 billion on treating—this is Medicare and Medicaid, not private insurance, not money out of individual pockets—we spent $153 billion of your Federal tax money on caring for Alzheimer's. That was 261 times the amount of money spent on research.

□ 2045

Now, let's see, let's be accurate here because we did have an increase, as I just said. We have actually spent $936 million in 2016 on Alzheimer's research. So this 261 times is significantly less now. But we are not at the goal. We are not at the goal that we want to have in place for the treatment and the care of Alzheimer's.

The goal of the Alzheimer's Association is to raise the amount of research money to the level of about $1.5 billion. It is anticipated—and I will explain why this is a sound anticipation—it is anticipated that if we were to be able to spend that amount of money in 2017, keeping in mind that we are now just under a billion dollars for research, but if we bring it up another $500 million to $1.5 billion, if we were to do that, it is anticipated that by 2025—that is just 9 years from now—we would see a dramatic change in the incidence of Alzheimer's.

Many people would not be suffering from it, and those who do would see the onset of Alzheimer's pushed back into their later years so that they would be able to live a better, more sound, mentally sound life and more productive life and, for the taxpayers of this Nation, a significantly reduced amount of Federal support through Medicare and Medicaid.

How much does it amount to?

So if we spent that $936 million this year and in the next year ramp it up another 200 and in the following year another $300 million so that we get to the goal of $1.5 billion of research in the years between now and 2020, we would see a dramatic reduction and a

dramatic improvement in the lives of Americans, much better lives.

If this were available to my mother-in-law, perhaps she would have been able to live another 2, 3, 5 years without the onset of Alzheimer's. And what would that mean to the quality of her life as well as to her family's?

So let's assume that the research pushes back the onset of Alzheimer's by 5 years, so that in 2025 what would we see?

Well, for Medicare and Medicaid, we would see in the years 2025 to 2030 a 121-billion-dollar reduction in the cost to Medicare and Medicaid to your taxpayer dollars, and from 2025 to 2030—that is 10 years of the new treatments being in place—we would see a half-trillion-dollar reduction in the cost of Medicare and Medicaid.

Now, this isn't pie in the sky. This isn't just wishful, hopeful thinking and a prayer and a song. This is a real possibility. Those of you who have been reading the press or listening to the television news programs over the last year, you will note a significant change from hopelessness to hope. Yes, hope. There is real hope that we will be able to attack this debilitating dementia Alzheimer's, that we will be able to delay the onset and quite possibly stop it, to cure it.

Now, that may be off into the future, but we are now gaining an understanding because of the research that is being done on Alzheimer's and much of the research that was discussed earlier in the discussion of mental health programs and research that is going on by the United States military as they attack the problem of post-traumatic stress and brain damage from the men and women who have served in the recent wars.

All of that research is coming together with an understanding of how the human brain works, what the elements are that cause the damage of mental health, schizophrenia, and post-traumatic stress, as well as brain damage, perhaps for the football players in the NFL and beyond.

So here is what we are going to do. We are going to fight this year to increase this funding from beyond $236 million to just over $1 billion. We know it is a tough budget year. We know that the Republicans have been unable to even come to grips to put together a budget, let alone increase the appropriations.

But where could money be better spent than on research that is actually moving forward toward an understanding of what Alzheimer's is and how the brain is attacked, how we can stall—not yet reverse, but stall the onset of the damage that occurs as a result of Alzheimer's.

We have seen it. You have seen the stories. We know that drug treatments that were once thought to be ineffective, treatments that were done in the mid-1990s didn't work, or so they thought. Then some statisticians looked at those results of those drug trials and noticed something really important. They noticed that while the overall program didn't seem to work, they noticed that there was a subset of patients who were being treated by that drug, and they noticed that that subset was the early onset of Alzheimer's, and what they noticed was that that drug seemed to push back, seemed to hold steady that onset of Alzheimer's. Whoa, it was a eureka moment that maybe using drugs of that type applied early in the process would result in the delay, the arresting of the Alzheimer's onset.

That is what we are talking about here. If we are able to invest this money in research, we can see the probability that there are a series of drugs that do have an effect on the onset of Alzheimer's and seem to delay that onset.

Each year that goes by, what is the effect for the individual, for the family of the individual?

It means their life will be better. It means that the kind of stress, strain, and financial cost that is put on a family with Alzheimer's will be arrested. It will be delayed. Not 1 year, maybe 2 years, maybe 3, maybe 5 years. And the cost is enormous.

As I said before, if we are able to do this increased research over the next 3, 4, 5 years, working on those series of drugs that now seem to have an effect, we will be able in the years 2025 to 2030 to save you, the taxpayers, and us, the appropriators of your tax money, over $120 billion in the years 2025 to the year 2030. In 5 years beyond that, that 10-year period, a half trillion dollars.

So if you are worried about the deficit—and we all are—if you are worried about how we are going to put together a 5-year budget, which is what we do, then look at this investment. If you are worried about the effect of Alzheimer's in your family or on yourself, there are 435 of us in this House and another 100 over in the Senate. Listen, one-third of us are likely to die of Alzheimer's in the years ahead. So if you don't care about the family, you don't care about Americans, care about yourself. One-third of us are destined. If you happen to be a female, the odds are even greater.

So what is this all about?

Well, we are somehow grappling with the budget, the 5-year budget. We can't seem to get it together. Enormous chaos on the side of my Republican colleagues about how to do it. The appropriation process is underway and totally stalled out until at least May 15.

There is a solution. A small investment, a very small investment, and then we can look at the long-term deficit. Then we can be in a position to improve the lives of Americans.

Oh, by the way, the money is available. The money is available. In the budget and in the appropriations we are putting together, we are ramping up so that over the next 20 years, 25 years, we are going to spend a trillion dollars—a trillion dollars—on a brand-new nuclear arms race. We are going to rebuild all of our nuclear bombs. We are going to develop new airplanes to deliver those bombs, new satellites, new rockets, new cruise missiles, new submarines. A trillion dollars.

Well, I have got a better place to spend some of that money. I have got a better place to spend it, where the lives of Americans will be significantly improved, where the stress on families throughout this nation will be less, where the budgets of this country will not be busted, where this curve, where this curve will be flattened, where we will not in the year 2050 spend over a trillion dollars a year, a trillion dollars a year caring for people who have Alzheimer's. Three-quarters of that money is your tax money.

You can go back here, 2020, and start spending a couple of hundred million dollars, a couple of hundred million dollars on research, on promising treatments for Alzheimer's, and then beginning in 2025, watch this curve begin to flatten out.

Now, for me and for many of us in this room, we are not going to be out here in 2025, but our children and grandchildren will be, and they will be caring for us unless we begin to make these investments now in research.

So in the next couple of weeks, the men and women in purple will be here in Washington, D.C., as they do every spring, advocating for Alzheimer's research, for the caregivers, and for the families, and we ought to be paying attention.

The money is in the budget somewhere. All we need to do is to find it, move it from a few nuclear weapons over to research, delay the expenditure of a new ballistic missile or intercontinental ballistic missile, and spend it on something that affects every American every day of this year and every day of the years in the future, and that is Alzheimer's.

It is a good investment. It is an investment in the quality of life. It is an investment in our effort to reduce the deficit, and it is an investment in America's future.

Mr. Speaker, I yield back the balance of my time.

LEAVE OF ABSENCE

By unanimous consent, leave of absence was granted to:

Mr. DEFAZIO (at the request of Ms. PELOSI) for today on account of personal business in district.

ADJOURNMENT

Mr. GARAMENDI. Mr. Speaker, I move that the House do now adjourn.

The motion was agreed to; accordingly (at 8 o'clock and 59 minutes p.m.), under its previous order, the House adjourned until tomorrow, Wednesday, April 13, 2016, at 10 a.m. for morning-hour debate.

EXECUTIVE COMMUNICATIONS, ETC.

Under clause 2 of rule XIV, executive communications were taken from the Speaker's table and referred as follows:

5006. A letter from the Secretary, Department of Defense, transmitting a letter on the approved retirement of Lieutenant General Thomas P. Bostick, United States Army, and his advancement to the grade of lieutenant general on the retired list, pursuant to 10 U.S.C. 1370(c)(1); Public Law 96-513, Sec. 112 (as amended by Public Law 104-106, Sec. 502(b)); (110 Stat. 293); to the Committee on Armed Services.

5007. A letter from the Senior Advisor to the Under Secretary of Defense, Personnel and Readiness, Office of the Under Secretary, Department of Defense, transmitting reports entitled ''2016 Report to Congress on Sustainable Ranges'' and ''2015 Report to Congress on Sustainable Ranges'', pursuant to 10 U.S.C. 113 note; Public Law 107-314, 366(a)(5); (116 Stat. 2522); to the Committee on Armed Services.

5008. A letter from the Assistant General Counsel for Regulatory Services, Office of the General Counsel, Office of Postsecondary Education, Department of Education, transmitting the Department's final regulations — Program Integrity Issues [Docket ID: ED-2010-OPE-0004] (RIN: 1840-AD02) received April 8, 2016, pursuant to 5 U.S.C. 801(a)(1)(A); Added by Public Law 104-121, Sec. 251; (110 Stat. 868); to the Committee on Education and the Workforce.

5009. A letter from the Assistant Secretary for Legislation, Department of Health and Human Services, transmitting the Department's annual report to Congress for FY 2015 regarding imported foods, pursuant to Sec. 1009 of the Food and Drug Administration Amendments Act of 2007, Public Law 110-85; to the Committee on Energy and Commerce.

5010. A letter from the Administrator, U.S. Small Business Administration, transmitting the FY 2015 No FEAR Act report, pursuant to Public Law 107-174, 203(a); (116 Stat. 569); to the Committee on Oversight and Government Reform.

5011. A letter from the Chief, Publications and Regulations Branch, Internal Revenue Service, transmitting the Service's rule — December 2015 Revision of Form 3115 (Announcement 2016-14) received April 8, 2016, pursuant to 5 U.S.C. 801(a)(1)(A); Added by Public Law 104-121, Sec. 251; (110 Stat. 868); to the Committee on Ways and Means.

5012. A letter from the Principal Deputy Assistant Secretary of Defense, Legislative Affairs, Department of Defense, transmitting additional legislative proposals that the Department of Defense requests be enacted during the second session of the 114th Congress; jointly to the Committees on Armed Services, Foreign Affairs, Oversight and Government Reform, the Judiciary, and Transportation and Infrastructure.

REPORTS OF COMMITTEES ON PUBLIC BILLS AND RESOLUTIONS

Under clause 2 of rule XIII, reports of committees were delivered to the Clerk for printing and reference to the proper calendar, as follows:

Mr. ROYCE: Committee on Foreign Affairs. H.R. 1567. A bill to authorize a comprehensive, strategic approach for United States foreign assistance to developing countries to reduce global poverty and hunger, achieve food security and improved nutrition, promote inclusive, sustainable agricultural-led economic growth, improve nutritional outcomes, especially for women and children, build resilience among vulnerable populations, and for other purposes; with an amendment (Rept. 114–482). Referred to the Committee of the Whole House on the state of the Union.

Mr. CHAFFETZ: Committee on Oversight and Government Reform. H.R. 2908. A bill to adopt the bison as the national mammal of the United States; with an amendment (Rept. 114–483). Referred to the House Calendar.

Mr. CHAFFETZ: Committee on Oversight and Government Reform. H.R. 4392. A bill to amend title 5, United States Code, to require that the Office of Personnel Management submit an annual report to Congress relating to the use of official time by Federal employees; with an amendment (Rept. 114–484). Referred to the Committee of the Whole House on the state of the Union.

Mr. CHAFFETZ: Committee on Oversight and Government Reform. H.R. 4358. A bill to amend title 5, United States Code, to enhance accountability within the Senior Executive Service, and for other purposes (Rept. 114–485). Referred to the Committee of the Whole House on the state of the Union.

Mr. CHAFFETZ: Committee on Oversight and Government Reform. H.R. 2615. A bill to establish the Virgin Islands of the United States Centennial Commission; with an amendment (Rept. 114–486). Referred to the Committee of the Whole House on the state of the Union.

Mr. BISHOP of Utah: Committee on Natural Resources. H.R. 2733. A bill to require the Secretary of the Interior to take land into trust for certain Indian tribes, and for other purposes; with an amendment (Rept. 114–487). Referred to the Committee of the Whole House on the state of the Union.

Mr. MCCAUL: Committee on Homeland Security. H.R. 3586. A bill to amend the Homeland Security Act of 2002 to improve border and maritime security coordination in the Department of Homeland Security, and for other purposes; with an amendment (Rept. 114–488, Pt. 1). Referred to the Committee of the Whole House on the state of the Union.

Mr. STIVERS: Committee on Rules. House Resolution 671. Resolution providing for consideration of the bill (H.R. 3340) to place the Financial Stability Oversight Council and the Office of Financial Research under the regular appropriations process, to provide for certain quarterly reporting and public notice and comment requirements for the Office of Financial Research, and for other purposes, and providing for consideration of the bill (H.R. 3791) to raise the consolidated assets threshold under the small bank holding company policy statement, and for other purposes (Rept. 114–489). Referred to the House Calendar.

Mr. BURGESS: Committee on Rules. House Resolution 672. Resolution providing for consideration of the bill (H.R. 2666) to prohibit the Federal Communications Commission from regulating the rates charged for broadband Internet access service. (Rept. 114–490). Referred to the House Calendar.

DISCHARGE OF COMMITTEE

Pursuant to clause 2 of rule XIII, the Committee on Transportation and Infrastructure discharged from further consideration. H.R. 3586 referred to the Committee of the Whole House on the state of the Union, and ordered to be printed.

PUBLIC BILLS AND RESOLUTIONS

Under clause 2 of rule XII, public bills and resolutions of the following titles were introduced and severally referred, as follows:

By Mr. JOHNSON of Georgia (for himself, Mr. CONYERS, Ms. JUDY CHU of California, Ms. JACKSON LEE, and Mr. CICILLINE):

H.R. 4899. A bill to restore statutory rights to the people of the United States from forced arbitration; to the Committee on the Judiciary.

By Mr. DUFFY:

H.R. 4900. A bill to establish an Oversight Board to assist the Government of Puerto Rico, including instrumentalities, in managing its public finances, and for other purposes; to the Committee on Natural Resources, and in addition to the Committees on the Judiciary, and Education and the Workforce, for a period to be subsequently determined by the Speaker, in each case for consideration of such provisions as fall within the jurisdiction of the committee concerned.

By Mr. CHAFFETZ (for himself, Mr. KLINE, Mr. MESSER, Mr. DESANTIS, Ms. FOXX, Mr. BLUM, Mr. HARRIS, Mr. CARTER of Georgia, Mr. LIPINSKI, Mr. WALKER, Mr. MEADOWS, Mr. FRELINGHUYSEN, and Mr. BRAT):

H.R. 4901. A bill to reauthorize the Scholarships for Opportunity and Results Act, and for other purposes; to the Committee on Oversight and Government Reform.

By Mr. HURD of Texas (for himself, Mr. CONNOLLY, Mr. MCCAUL, Ms. MICHELLE LUJAN GRISHAM of New Mexico, Mr. FARENTHOLD, and Ms. MCSALLY):

H.R. 4902. A bill to amend title 5, United States Code, to expand law enforcement availability pay to employees of U.S. Customs and Border Protection's Air and Marine Operations; to the Committee on Oversight and Government Reform.

By Mr. ALLEN:

H.R. 4903. A bill to prohibit the use of funds by Internal Revenue Service to target citizens of the United States for exercising any right guaranteed under the First Amendment to the Constitution of the United States; to the Committee on Ways and Means.

By Mr. CARTWRIGHT (for himself, Ms. KELLY of Illinois, Mr. CONNOLLY, Mr. TED LIEU of California, Ms. DUCKWORTH, and Mr. CUMMINGS):

H.R. 4904. A bill to require the Director of the Office of Management and Budget to issue a directive on the management of software licenses, and for other purposes; to the Committee on Oversight and Government Reform.

By Mr. BEYER (for himself, Mr. ENGEL, Mr. VARGAS, Ms. NORTON, Mrs. WATSON COLEMAN, Mr. QUIGLEY, Mr. BLUMENAUER, Mr. MEEKS, Mr. GUTIÉRREZ, and Mr. CONNOLLY):

H.R. 4905. A bill to restore the ability of law enforcement authorities to enforce gun safety laws, and for other purposes; to the Committee on the Judiciary.

By Mr. CONNOLLY (for himself and Mr. MEADOWS):

H.R. 4906. A bill to amend title 5, United States Code, to clarify the eligibility of employees of a land management agency in a time-limited appointment to compete for a permanent appointment at any Federal agency, and for other purposes; to the Committee on Oversight and Government Reform.

By Mr. HOLDING (for himself, Mr. TIBERI, Mr. NUNES, Mr. PAULSEN, Mr. KELLY of Pennsylvania, and Mr. GENE GREEN of Texas):

H.R. 4907. A bill to amend the Internal Revenue Code of 1986 to allow tax-free distributions from individual retirement plans to donor-advised funds; to the Committee on Ways and Means.

By Ms. KUSTER (for herself and Mr. NOLAN):

H.R. 4908. A bill to provide rental assistance to low-income tenants of certain multifamily rural housing projects, and for other purposes; to the Committee on Financial Services.

By Mr. THORNBERRY (for himself and Mr. SMITH of Washington) (both by request):

H.R. 4909. A bill to authorize appropriations for fiscal year 2017 for military activities of the Department of Defense and for military construction, to prescribe military personnel strengths for such fiscal year, and for other purposes; to the Committee on Armed Services.

By Mr. LANCE:

H.R. 4910. A bill to amend title 36, United States Code, to require that the POW/MIA flag be displayed on all days that the flag of the United States is displayed on certain Federal property; to the Committee on the Judiciary.

By Mr. LANGEVIN:

H.R. 4911. A bill to impose criminal penalties for the unsafe operation of unmanned aircraft; to the Committee on the Judiciary, and in addition to the Committee on Transportation and Infrastructure, for a period to be subsequently determined by the Speaker, in each case for consideration of such provisions as fall within the jurisdiction of the committee concerned.

By Mr. LEWIS (for himself, Mr. RANGEL, Mr. MCDERMOTT, Mr. CROWLEY, Mr. PASCRELL, and Mr. DANNY K. DAVIS of Illinois):

H.R. 4912. A bill to amend the Internal Revenue Code of 1986 to reduce taxpayer burdens and enhance taxpayer protections, and for other purposes; to the Committee on Ways and Means.

By Mr. MULVANEY:

H.R. 4913. A bill to ensure the sufficient capitalization of Fannie Mae and Freddie Mac and prevent any further bailout of such enterprises by the Federal Government, and for other purposes; to the Committee on Financial Services.

By Mr. NADLER:

H.R. 4914. A bill to amend title 18, United States Code, to place limitations on the possession, sale, and other disposition of a firearm by persons convicted of misdemeanor sex offenses against children; to the Committee on the Judiciary.

By Ms. NORTON (for herself and Ms. EDWARDS):

H.R. 4915. A bill to designate the Civil War Defenses of Washington National Historical Park comprised of certain National Park System lands, and by affiliation and cooperative agreements other historically significant resources, located in the District of Columbia, Virginia, and Maryland, that were part of the Civil War defenses of Washington and related to the Shenandoah Valley Campaign of 1864, to study ways in which the Civil War history of both the North and South can be assembled, arrayed, and conveyed for the benefit of the public, and for other purposes; to the Committee on Natural Resources.

By Mr. POLIQUIN (for himself and Ms. PINGREE):

H.R. 4916. A bill to reauthorize the program of the Department of Veterans Affairs under which the Secretary of Veterans Affairs provides health services to veterans through qualifying non-Department health care providers; to the Committee on Veterans' Affairs.

By Mr. RUSSELL (for himself, Mr. MCCLINTOCK, Mr. BISHOP of Michigan, Mr. BUCK, Mr. PALMER, and Mr. RIBBLE):

H.R. 4917. A bill to amend title 49, United States Code, to terminate the essential air service program, and for other purposes; to the Committee on Transportation and Infrastructure.

By Ms. SLAUGHTER (for herself and Mr. KATKO):

H.R. 4918. A bill to direct the Secretary of Health and Human Services to issue guidance for the safe prescribing of opioids for the treatment of acute pain; to the Committee on Energy and Commerce.

By Mr. SMITH of New Jersey (for himself, Ms. MAXINE WATERS of California, Mr. MICHAEL F. DOYLE of Pennsylvania, Mr. HASTINGS, Mr. CHABOT, Mr. KING of New York, Ms. BROWN of Florida, Mr. LARSON of Connecticut, Mr. ADERHOLT, Ms. NORTON, Mr. JOYCE, Mr. MEEHAN, Mr. RANGEL, Mr. BRENDAN F. BOYLE of Pennsylvania, Mr. COSTELLO of Pennsylvania, Mr. GARAMENDI, Mr. SEAN PATRICK MALONEY of New York, and Mr. CARSON of Indiana):

H.R. 4919. A bill to amend the Violent Crime Control and Law Enforcement Act of 1994, to reauthorize the Missing Alzheimer's Disease Patient Alert Program, and to promote initiatives that will reduce the risk of injury and death relating to the wandering characteristics of some children with autism; to the Committee on the Judiciary, and in addition to the Committee on Education and the Workforce, for a period to be subsequently determined by the Speaker, in each case for consideration of such provisions as fall within the jurisdiction of the committee concerned.

By Mrs. BEATTY (for herself, Ms. HAHN, Mr. BUTTERFIELD, Mr. CONYERS, Mr. CLEAVER, and Ms. NORTON):

H. Con. Res. 127. Concurrent resolution expressing the sense of Congress that a commemorative postage stamp should be issued in honor of the Buffalo Soldiers; to the Committee on Oversight and Government Reform.

By Mr. HONDA (for himself and Ms. NORTON):

H. Res. 670. A resolution expressing support for the designation of May 5, 2016, as a ''National Day of Reason'' and recognizing the importance of reason in the betterment of humanity; to the Committee on Oversight and Government Reform.

By Mr. GROTHMAN:

H. Res. 673. A resolution expressing the sense of the House of Representatives that the Internal Revenue Service should provide printed copies of Internal Revenue Service Publication 17 to taxpayers in the United States free of charge; to the Committee on Ways and Means.

By Mr. MULVANEY (for himself, Mr. DUNCAN of South Carolina, Mr. GOWDY, and Mr. RICE of South Carolina):

H. Res. 674. A resolution recognizing linemen, the profession of linemen, the contributions of these brave men and women who protect public safety, and expressing support for the designation of April 18, 2016, as National Lineman Appreciation Day; to the Committee on Energy and Commerce.

By Mr. REED (for himself, Ms. SPEIER, Ms. ADAMS, Mrs. BEATTY, Mrs. BLACK, Mr. BRENDAN F. BOYLE of Pennsylvania, Ms. BROWN of Florida, Mr. CÁRDENAS, Ms. CASTOR of Florida, Mr. COSTA, Mr. CUELLAR, Mr. DANNY K. DAVIS of Illinois, Mr. DOLD, Ms. EDWARDS, Ms. ESHOO, Mr. FOSTER, Mr. GIBSON, Mr. GRIJALVA, Mr. HASTINGS, Mr. HONDA, Mr. HUFFMAN, Ms. JENKINS of Kansas, Mr. JOHNSON of Georgia, Ms. KAPTUR, Ms. KELLY of Illinois, Mr. KIND, Mrs. KIRKPATRICK, Mrs. LAWRENCE, Mr. TED LIEU of California, Ms. MATSUI, Ms. MCCOLLUM, Mr. MEEHAN, Ms. MOORE, Mrs. NAPOLITANO, Mr. POCAN, Mr. RANGEL, Mr. RICHMOND, Mr. RUIZ, Ms. SLAUGHTER, Mr. SWALWELL of California, Mr. VAN HOLLEN, Mr. VARGAS, Ms. WASSERMAN SCHULTZ, Mrs. WATSON COLEMAN, and Mr. YARMUTH):

H. Res. 675. A resolution supporting the goals and ideals of Sexual Assault Awareness and Prevention Month; to the Committee on the Judiciary.

By Mr. WITTMAN (for himself, Mr. CONNOLLY, Mrs. COMSTOCK, Ms. NORTON, and Mrs. LAWRENCE):

H. Res. 676. A resolution expressing the sense of the House of Representatives that public servants should be commended for their dedication and continued service to the United States during Public Service Recognition Week, the week of May 1 through 7, 2016; to the Committee on Oversight and Government Reform.

MEMORIALS

Under clause 3 of rule XII,

195. The SPEAKER presented a memorial of the House of Representatives of the State of Michigan, relative to House Resolution No. 223, memorializing the Congress of the United States to enact the Retail Investor Protection Act and also to enact legislation that prohibits the United States Department of Labor from amending fiduciary duty regulations to define retirement savings brokers and agents as fiduciaries, including those previously not deemed fiduciaries; which was referred jointly to the Committees on Financial Services and Education and the Workforce.

PRIVATE BILLS AND RESOLUTIONS

Under clause 3 of rule XII,

Mr. PASCRELL introduced a bill (H.R. 4920) for the relief of Malachy McAllister, Nicola McAllister, and Sean Ryan McAllister; which was referred to the Committee on the Judiciary.

CONSTITUTIONAL AUTHORITY STATEMENT

Pursuant to clause 7 of rule XII of the Rules of the House of Representatives, the following statements are submitted regarding the specific powers granted to Congress in the Constitution to enact the accompanying bill or joint resolution.

By Mr. JOHNSON of Georgia:

H.R. 4899.

Congress has the power to enact this legislation pursuant to the following:

Article I, Section 8, Clause 3.

By Mr. DUFFY:

H.R. 4900.

Congress has the power to enact this legislation pursuant to the following:

Article IV, section 3, clause 2

By Mr. CHAFFETZ:

H.R. 4901.

Congress has the power to enact this legislation pursuant to the following:

Clause 1 and Clause 17 of Section 8 of Article 1 of the Constitution of the United States grants the Congress the power to enact this law.

By Mr. HURD of Texas:

H.R. 4902.

Congress has the power to enact this legislation pursuant to the following:

Article I, Section 8, Clause 1 of the United States Constitution.

By Mr. ALLEN:

H.R. 4903.

Congress has the power to enact this legislation pursuant to the following:

This bill is enacted pursuant to the power granted to Congress under Article I, Section 8, clauses 1 and 18 of the Constitution

By Mr. CARTWRIGHT:

H.R. 4904.

Congress has the power to enact this legislation pursuant to the following:

Article I, Section 8, Clause 18 of the U.S. Constitution

By Mr. BEYER:

H.R. 4905.

Congress has the power to enact this legislation pursuant to the following:

Clause 3 of Section 8 of Article I of the U.S. Constitution

By Mr. CONNOLLY:

H.R. 4906.

Congress has the power to enact this legislation pursuant to the following:

Article I, Section VIII, Clause 18

By Mr. HOLDING:

H.R. 4907.

Congress has the power to enact this legislation pursuant to the following:

Atricle 1, Section 8 of the United States Constitution

By Ms. KUSTER:

H.R. 4908.

Congress has the power to enact this legislation pursuant to the following:

Article I, Section 8, Clause 1 of the United States Constitution, the Taxing and Spending Clause: ''The Congress shall have power to make all laws which shall be necessary and proper for carrying into Execution the foregoing Powers, and all other Powers vested by this Constitution in the Government of the United States, or in any Department or Officer thereof.

By Mr. THORNBERRY:

H.R. 4909.

Congress has the power to enact this legislation pursuant to the following:

The constitutional authority on which this bill rests is the power of Congress ''to provide for the common Defence'', ''to raise and support Armies'', ''to provide and maintain a Navy'' and ''to make Rules for the Government and Regulation of the land and naval Forces'' as enumerated in Article I, section 8 of the United States Constitution.

By Mr. LANCE:

H.R. 4910.

Congress has the power to enact this legislation pursuant to the following:

Article 1, Sec. 8, Clause 1, of the United States Constitution

This state that ''Congress shall have the power to . . . lay and collect taxes, duties, imposts and excises, to pay the debts and provide for the common defense and general welfare of the United States.''

By Mr. LANGEVIN:

H.R. 4911.

Congress has the power to enact this legislation pursuant to the following:

Article I, Section 8 of the United States Constitution, specifically Clause 3 and Clause 18.

By Mr. LEWIS:

H.R. 4912.

Congress has the power to enact this legislation pursuant to the following:

This bill is enacted pursuant to the power granted to Congress under Article I of the United States Constitution and its subsequent amendments, and further clarified and interpreted by the Supreme Court of the United States.

By Mr. MULVANEY:

H.R. 4913.

Congress has the power to enact this legislation pursuant to the following:

Article I, Section 8, Clause 1. ''The Congress shall have power to lay and collect taxes, duties, imposts and excises, to pay the debts and provide for the common defense and general welfare of the United States . . . ;''

Article I, Section 8, Clause 3. ''To regulate Commerce with foreign Nations, and among the several States, and with the Indian Tribes.''

Article I, Section 8, Clause 14. ''To make rules for the government . . . ;''

Article I, Section 8, Clause 18. ''To make all Laws which shall be necessary and proper for carrying into Execution the foregoing Powers, and all other Powers vested by this Constitution in the Government of the United States, or in any Department or Officer thereof''

By Mr. NADLER:

H.R. 4914.

Congress has the power to enact this legislation pursuant to the following:

Clauses 3 and 18 of Article I, Section 8 of the United States Constitution

By Ms. NORTON:

H.R. 4915.

Congress has the power to enact this legislation pursuant to the following:

clause 18 of section 8 of article I of the Constitution.

By Mr. POLIQUIN:

H.R. 4916.

Congress has the power to enact this legislation pursuant to the following:

Article 1, Section 8 ''. . . To make all Laws which shall be necessary and proper for carrying into the Execution the foregoing Powers, and all other Powers vested by this Constitution in the Government of the United States or in any Department or Officer thereof . . .''

By Mr. RUSSELL:

H.R. 4917.

Congress has the power to enact this legislation pursuant to the following:

Article I, Section 8 of the U.S. Constitution, specifically Clause 1 and Clause 18.

By Ms. SLAUGHTER:

H.R. 4918.

Congress has the power to enact this legislation pursuant to the following:

Clause 18 of Section 8 of Article I of the Constitution.

By Mr. SMITH of New Jersey:

H.R. 4919.

Congress has the power to enact this legislation pursuant to the following:

Article I, Section 8, Clause 1 of the Constitution

By Mr. PASCRELL:

H.R. 4920

Congress has the power to enact this legislation pursuant to the following:

Article I of the United States Constitution.

ADDITIONAL SPONSORS

Under clause 7 of rule XII, sponsors were added to public bills and resolutions, as follows:

H.R. 12: Mr. TAKANO.

H.R. 24: Mrs. NOEM, Mr. KELLY of Pennsylvania and Mr. BISHOP of Utah.

H.R. 27: Mr. SHUSTER.

H.R. 188: Mr. LARSEN of Washington.

H.R. 225: Ms. ADAMS,

H.R. 239: Mr. SEAN PATRICK MALONEY of New York.

H.R. 241: Mr. CONAWAY.

H.R. 247: Ms. SEWELL of Alabama, Ms. KAPTUR, Mr. BUTTERFIELD, Mr. DANNY K. DAVIS of Illinois, Mr. HASTINGS, Ms. KELLY of Illinois, Mrs. WATSON COLEMAN, and Mr. JEFFRIES.

H.R. 317: Mr. BRENDAN F. BOYLE of Pennsylvania.

H.R. 386: Mr. TAKAI.

H.R. 472: Ms. DUCKWORTH.

H.R. 525: Mr. CÁRDENAS.

H.R. 539: Mr. VELA.

H.R. 542: Mr. DEUTCH and Mr. GRIFFITH.

H.R. 546: Mrs. WALORSKI, Mr. BLUMENAUER, and Mr. CICILLINE.

H.R. 584: Ms. FOXX.

H.R. 592: Mr. YOHO, Mr. LARSON of Connecticut, and Mr. HOLDING.

H.R. 649: Mr. BRENDAN F. BOYLE of Pennsylvania and Ms. KUSTER.

H.R. 654: Mr. MOOLENAAR and Mr. JOYCE.

H.R. 662: Mr. DUFFY.

H.R. 703: Mr. BISHOP of Utah.

H.R. 711: Mr. AL GREEN of Texas and Mr. CRAMER.

H.R. 775: Mr. BRENDAN F. BOYLE of Pennsylvania.

H.R. 793: Mr. REED, Mr. POCAN, and Mr. SWALWELL of California.

H.R. 799: Mr. TONKO.

H.R. 815: Mr. ROGERS of Kentucky.

H.R. 836: Mr. COSTELLO of Pennsylvania.

H.R. 842: Mr. JENKINS of West Virginia and Mr. KING of Iowa.

H.R. 921: Mr. RATCLIFFE, Mr. CRAWFORD, Mr. RUIZ, and Ms. MCSALLY.

H.R. 923: Mr. LAMBORN and Mr. WILLIAMS.

H.R. 952: Mrs. LAWRENCE.

H.R. 973: Mr. CAPUANO and Ms. WASSERMAN SCHULTZ.

H.R. 986: Mr. GOHMERT, Mr. ROYCE, and Ms. HERRERA BEUTLER.

H.R. 1095: Ms. MCCOLLUM and Mr. SARBANES.

H.R. 1112: Mrs. BEATTY.

H.R. 1170: Mr. AMODEI.

H.R. 1172: Mr. LANGEVIN.

H.R. 1193: Mr. RYAN of Ohio.

H.R. 1197: Mr. SCOTT of Virginia.

H.R. 1218: Mrs. WAGNER, Mr. BISHOP of Michigan, Ms. LEE, Mr. DEFAZIO, Ms. BONAMICI, Miss RICE of New York, Mr. FATTAH, and Mr. CONNOLLY.

H.R. 1220: Mr. CRAWFORD, Mr. WALBERG, Mr. SARBANES, Mr. SESSIONS, and Mr. STIVERS.

H.R. 1221: Mr. FARR, Mrs. DINGELL, Mr. CONYERS, Mr. JONES, Ms. ROS-LEHTINEN, and Mr. COLLINS of New York.

H.R. 1233: Mr. JODY B. HICE of Georgia.

H.R. 1247: Mr. FATTAH and Mr. CONYERS.

H.R. 1299: Mr. BOUSTANY.

H.R. 1301: Mr. MEEHAN.

H.R. 1302: Mr. OLSON.

H.R. 1355: Mr. PITTENGER.

H.R. 1399: Mr. ENGEL, Mr. SCHIFF and Ms. JUDY CHU of California.

H.R. 1427: Ms. HAHN, Mr. PERRY, Ms. LORETTA SANCHEZ of California, Mr. SESSIONS, Mr. SAM JOHNSON of Texas, Mr. POE of Texas, Mr. GOWDY, Mr. BUCHANAN, Mr. ROUZER, Mr. MULLIN, Mrs. MCMORRIS RODGERS, Mrs. COMSTOCK, and Mr. NEAL.

H.R. 1453: Ms. FRANKEL of Florida and Mr. DENT.

H.R. 1457: Ms. SLAUGHTER, Mr. CONYERS, Mr. OLSON, Mr. MEEKS, Mr. BLUMENAUER, and Mr. WELCH.

H.R. 1459: Mr. LARSEN of Washington.

H.R. 1486: Mr. WILLIAMS.

H.R. 1538: Mr. JEFFRIES.

H.R. 1559: Ms. JENKINS of Kansas, Mr. GOWDY, Mr. SHUSTER, Mr. CROWLEY, and Mr. ZELDIN.

H.R. 1571: Mr. BEYER and Mr. QUIGLEY.

H.R. 1602: Ms. LORETTA SANCHEZ of California and Mr. HIGGINS.

H.R. 1603: Mr. LAMALFA, Mrs. RADEWAGEN, Mr. RYAN of Ohio, and Mr. ROSS.

H.R. 1728: Mr. WALZ.

H.R. 1733: Mr. HUFFMAN.

H.R. 1761: Ms. SCHAKOWSKY.

H.R. 1784: Mrs. BUSTOS.

H.R. 1821: Mr. MOULTON.

H.R. 1858: Ms. ADAMS.

H.R. 1882: Mr. ASHFORD.

H.R. 1933: Mr. MICHAEL F. DOYLE of Pennsylvania.
H.R. 1941: Mr. ASHFORD.
H.R. 1950: Mr. OLSON.
H.R. 1961: Ms. ESHOO and Mr. SWALWELL of California.
H.R. 2001: Mr. HUELSKAMP.
H.R. 2016: Ms. LORETTA SANCHEZ of California.
H.R. 2036: Mr. OLSON.
H.R. 2167: Mr. DEFAZIO.
H.R. 2170: Mr. MCGOVERN.
H.R. 2180: Mr. CUMMINGS.
H.R. 2193: Ms. LORETTA SANCHEZ of California.
H.R. 2205: Mr. SMITH of Texas and Mr. JODY B. HICE of Georgia.
H.R. 2215: Mr. DUFFY and Mr. GOHMERT.
H.R. 2260: Mrs. NAPOLITANO, Mr. CARNEY, Mrs. KIRKPATRICK, and Ms. SINEMA.
H.R. 2313: Ms. NORTON.
H.R. 2315: Mrs. COMSTOCK and Mr. HUELSKAMP.
H.R. 2342: Mrs. NAPOLITANO, Mr. MASSIE, and Mr. BLUMENAUER.
H.R. 2346: Mr. SMITH of Texas.
H.R. 2404: Mr. MEEHAN, Mr. YOUNG of Iowa, Mr. SAM JOHNSON of Texas, and Mr. PRICE of North Carolina,
H.R. 2405: Mr. CARTER of Georgia.
H.R. 2450: Ms. TSONGAS, Mr. HASTINGS, and Mr. SWALWELL of California.
H.R. 2460: Mr. VAN HOLLEN.
H.R. 2493: Mrs. WATSON COLEMAN.
H.R. 2515: Ms. BROWN of Florida, Mr. BUTTERFIELD, and Ms. DEGETTE.
H.R. 2533: Mr. ENGEL, Ms. MENG, Ms. GABBARD, Mr. CICILLINE, Mr. SIRES, and Ms. KELLY of Illinois.
H.R. 2540: Mr. POLIQUIN.
H.R. 2597: Mr. MURPHY of Florida.
H.R. 2646: Mr. BOST.
H.R. 2680: Ms. EDWARDS.
H.R. 2694: Mr. POCAN and Ms. ESTY.
H.R. 2710: Mr. WALBERG.
H.R. 2715: Mr. HECK of Washington and Mr. LEVIN.
H.R. 2726: Mr. LATTA and Mr. BOUSTANY.
H.R. 2737: Ms. MENG, Mr. MICHAEL F. DOYLE of Pennsylvania, Mr. ISSA, Mr. PAYNE, Mr. ELLISON, Mr. ENGEL, Mr. ROYCE, Mr. RANGEL, and Mr. RIGELL.
H.R. 2739: Ms. ROS-LEHTINEN, Mr. TAKANO, Mr. WALDEN, Mr. BLUMENAUER, Mr. SESSIONS, and Mr. ELLISON.
H.R. 2773: Mr. FOSTER, Mrs. CAROLYN B. MALONEY of New York, and Mr. AL GREEN of Texas.
H.R. 2799: Mr. SCHRADER, Mr. STEWART, Mr. JOYCE, Mr. FRELINGHUYSEN, Mr. SAM JOHNSON of Texas, Mr. YOUNG of Iowa, Mr. CICILLINE, Mr. POCAN, and Mr. TAKAI.
H.R. 2802: Mr. JOHNSON of Ohio.
H.R. 2817: Ms. DELBENE, Mr. TONKO, Ms. EDWARDS, Mr. DELANEY, and Mr. POE of Texas.
H.R. 2826: Mr. MOULTON.
H.R. 2848: Mr. KING of Iowa and Mr. JONES.
H.R. 2867: Mr. SCHIFF, Mr. MCDERMOTT, Mr. GALLEGO, Mr. LARSEN of Washington, Mr. CAPUANO, Mr. MICHAEL F. DOYLE of Pennsylvania, Mr. HIGGINS, Mr. KEATING, Ms. ESTY, and Mr. SCHRADER.
H.R. 2896: Mr. ZINKE and Mr. MCHENRY.
H.R. 2903: Mr. JORDAN, Mr. CURBELO of Florida, Mr. ZELDIN, Mr. HIGGINS, Mrs. COMSTOCK, and Mr. LAMALFA.
H.R. 2932: Mr. HIGGINS.
H.R. 2948: Mr. LEWIS, Ms. BROWN of Florida, Ms. MOORE, Mr. YOUNG of Iowa, Mr. CONYERS, Mr. ASHFORD, Mr. WALDEN, and Mr. GALLEGO.
H.R. 2980: Mr. KING of New York, Ms. DUCKWORTH, Mr. KING of Iowa, and Mr. GRAYSON.
H.R. 2992: Ms. KAPTUR, Mr. RUPPERSBERGER, Mr. JOHNSON of Georgia, Ms. PINGREE, Mr. RYAN of Ohio, and Mr. SIRES.
H.R. 3007: Mrs. LAWRENCE, Mr. HONDA, Mr. RUSH, and Mr. POCAN.
H.R. 3012: Mr. GOHMERT, Mr. WESTERMAN, and Mr. BRAT.
H.R. 3019: Mr. LYNCH.
H.R. 3048: Mr. WESTMORELAND.
H.R. 3074: Mr. LANCE and Mr. COFFMAN.
H.R. 3080: Mr. SMITH of Nebraska.
H.R. 3084: Ms. CLARKE of New York, Mr. MACARTHUR, Mr. RUPPERSBERGER, and Mr. BRADY of Pennsylvania.
H.R. 3099: Mr. CRAMER, Ms. CLARK of Massachusetts, Mr. BRENDAN F. BOYLE of Pennsylvania, Ms. ESTY, and Mr. DOLD.
H.R. 3119: Mr. BARLETTA, Mr. FARENTHOLD, Mr. VEASEY, Mr. HONDA, Mr. HUFFMAN, and Mr. COSTELLO of Pennsylvania.
H.R. 3142: Ms. ROYBAL-ALLARD.
H.R. 3164: Mr. SEAN PATRICK MALONEY of New York, Ms. WASSERMAN SCHULTZ, Mrs. NAPOLITANO, Ms. SPEIER, and Ms. LOFGREN.
H.R. 3173: Mr. ZINKE.
H.R. 3209: Mr. PASCRELL, Mrs. BLACK, Mr. CROWLEY, Mr. SAM JOHNSON of Texas, and Mr. NEAL.
H.R. 3222: Mr. THORNBERRY and Mr. BISHOP of Utah.
H.R. 3225: Mr. BOUSTANY.
H.R. 3229: Mr. VISCLOSKY and Mr. FATTAH.
H.R. 3235: Ms. BONAMICI, Ms. DELBENE, Mr. FATTAH, Mr. JENKINS of West Virginia, Mr. SWALWELL of California, and Mr. TAKAI.
H.R. 3250: Mr. OLSON and Mr. HASTINGS.
H.R. 3294: Mr. COFFMAN and Mr. RODNEY DAVIS of Illinois.
H.R. 3308: Miss RICE of New York.
H.R. 3316: Mr. BRENDAN F. BOYLE of Pennsylvania.
H.R. 3323: Mr. JOYCE and Mr. SMITH of Texas.
H.R. 3326: Mr. BRAT, Mr. SESSIONS, Mr. JENKINS of West Virginia, Mr. HULTGREN, and Mr. MURPHY of Florida.
H.R. 3339: Mr. JENKINS of West Virginia.
H.R. 3356: Mrs. BLACK.
H.R. 3377: Mr. DANNY K. DAVIS of Illinois, Mrs. LAWRENCE, and Ms. JUDY CHU of California.
H.R. 3410: Ms. NORTON.
H.R. 3463: Ms. BROWN of Florida, Miss RICE of New York, and Mr. ASHFORD.
H.R. 3523: Mr. GRAYSON.
H.R. 3632: Mr. GUTIÉRREZ, Mr. FARR, Mr. LANGEVIN, and Mr. COHEN.
H.R. 3646: Mr. YOUNG of Indiana.
H.R. 3652: Mrs. LAWRENCE.
H.R. 3687: Ms. DELBENE.
H.R. 3690: Mr. FOSTER.
H.R. 3691: Mr. CARTWRIGHT, Ms. BONAMICI, Mr. PAYNE, Mr. TAKAI, Mr. FATTAH, Mr. LARSON of Connecticut, and Mr. CARSON of Indiana.
H.R. 3694: Mr. SMITH of New Jersey.
H.R. 3705: Mr. DUFFY.
H.R. 3713: Mr. LOEBSACK.
H.R. 3724: Ms. JENKINS of Kansas and Mr. SESSIONS.
H.R. 3767: Mr. FLORES.
H.R. 3799: Mr. BRAT, Mr. YOUNG of Iowa, and Mr. KING of Iowa.
H.R. 3808: Mr. KATKO.
H.R. 3817: Mr. DESAULNIER, Ms. DELBENE, and Ms. LORETTA SANCHEZ of California.
H.R. 3849: Mr. TED LIEU of California.
H.R. 3892: Mr. HUELSKAMP, Mr. FLEISCHMANN, Mr. DUNCAN of South Carolina, Mr. BRAT, and Mr. ROKITA.
H.R. 3929: Mrs. WALORSKI, Mr. BURGESS, Mr. NEWHOUSE, Mr. BOST, Ms. STEFANIK, Mr. WESTERMAN, Mr. POSEY, Mr. DENHAM, Mr. FARENTHOLD, Mrs. LUMMIS, Mr. TIBERI, Mr. Graves of Missouri, Mr. CARTER of Texas, Mr. NEUGEBAUER, Mr. BUCHANAN, Mr. SMITH of Nebraska, Mr. TIPTON, Mr. SENSENBRENNER, Mr. BILIRAKIS, Mr. WENSTRUP, Mr. CULBERSON, Mr. AUSTIN SCOTT of Georgia, Mr. NUGENT, Mr. LONG, Mr. BOUSTANY, Mr. ENGEL, Mr. CAPUANO, Mr. CICILLINE, Mr. WALZ, Mr. ZELDIN, Mr. KINZINGER of Illinois, Mrs. DAVIS of California, Mr. SHIMKUS, Mr. BISHOP of Michigan, Mr. BUCSHON, Mr. LUCAS, Mrs. HARTZLER, Mrs. ROBY, Mr. COLLINS of New York, and Mr. UPTON.
H.R. 3965: Ms. LEE.
H.R. 3981: Mr. JOHNSON of Georgia.
H.R. 3982: Mr. CARSON of Indiana.
H.R. 4003: Mrs. LOVE.
H.R. 4019: Ms. JACKSON LEE, Mr. DELANEY, and Ms. EDWARDS.
H.R. 4023: Mrs. LOVE.
H.R. 4048: Mr. COOK.
H.R. 4055: Mr. BEYER and Mr. FATTAH.
H.R. 4057: Mr. JOHNSON of Georgia.
H.R. 4062: Mr. SAM JOHNSON of Texas, Mr. GOSAR, and Mr. BUCHANAN.
H.R. 4073: Mr. LATTA, Mr. HANNA, Mr. MEEHAN, and Mr. PETERSON.
H.R. 4116: Ms. SINEMA, Mr. HUIZENGA of Michigan, and Mr. POCAN.
H.R. 4137: Mr. THOMPSON of Mississippi, Mr. CUMMINGS, Mr. CROWLEY, Ms. HAHN, Mr. CAPUANO, and Mr. WELCH.
H.R. 4153: Ms. LOFGREN.
H.R. 4167: Mr. ALLEN.
H.R. 4169: Mr. BRAT.
H.R. 4210: Mr. DUFFY.
H.R. 4216: Mrs. BEATTY, Ms. FUDGE, and Mr. HURT of Virginia.
H.R. 4223: Mr. GRIJALVA.
H.R. 4229: Mr. JOYCE and Mr. HANNA.
H.R. 4257: Mr. YOUNG of Indiana.
H.R. 4262: Mr. LANCE, Ms. JENKINS of Kansas, Mr. PITTENGER, Mr. WOODALL, and Mr. HULTGREN.
H.R. 4264: Mr. SCHIFF.
H.R. 4293: Mr. AMODEI, Mr. GOHMERT, and Mr. SESSIONS.
H.R. 4294: Mr. SESSIONS, Mr. AMODEI, and Mr. GOHMERT.
H.R. 4296: Mr. MCDERMOTT.
H.R. 4298: Mr. KIND and Mr. MCCLINTOCK,
H.R. 4301: Mr. JOYCE, Mr. KING of Iowa, Mr. GOHMERT, Mr. BABIN, and Mr. ABRAHAM.
H.R. 4313: Mr. HARDY.
H.R. 4342: Mr. HASTINGS and Mr. HIGGINS.
H.R. 4352: Ms. GABBARD.
H.R. 4365: Mr. YOUNG of Alaska, Mr. ZINKE, Ms. GABBARD, Mr. BRENDAN F. BOYLE of Pennsylvania, Mr. WALDEN, Mr. WESTMORELAND, Mr. DIAZ-BALART, Ms. ESHOO, Mr. LANGEVIN, and Mr. COLLINS of New York.
H.R. 4396: Ms. MOORE, Mrs. CAPPS, and Mr. RANGEL.
H.R. 4399: Mr. COURTNEY.
H.R. 4403: Ms. SINEMA.
H.R. 4422: Mr. MEEKS.
H.R. 4439: Mr. WELCH.
H.R. 4450: Ms. PINGREE and Mr. RYAN of Ohio.
H.R. 4460: Mr. HASTINGS and Mr. RANGEL.
H.R. 4481: Ms. ROS-LEHTINEN and Mr. TED LIEU of California.
H.R. 4488: Mr. HONDA, Ms. BONAMICI, Ms. KAPTUR, and Mr. HUFFMAN.
H.R. 4499: Mr. BLUMENAUER.
H.R. 4505: Mrs. CAROLYN B. MALONEY of New York.
H.R. 4509: Mr. NORCROSS.
H.R. 4511: Ms. ESTY and Mr. PERRY.
H.R. 4514: Mr. POMPEO, Mr. ZELDIN, Mr. BRAT, Mr. CRAMER, Mr. FINCHER, Mr. ISRAEL, and Mr. SWALWELL of California.
H.R. 4532: Mrs. WAGNER and Mr. CRAMER.
H.R. 4534: Mr. PERRY.
H.R. 4547: Mr. DUNCAN of South Carolina.
H.R. 4549: Mr. SMITH of Nebraska.
H.R. 4552: Mrs. NAPOLITANO.
H.R. 4567: Ms. ESHOO.
H.R. 4570: Mr. AL GREEN of Texas.
H.R. 4585: Mrs. NAPOLITANO, Mr. PAYNE, Mr. HUFFMAN, Mr. TAKAI, and Mr. MICHAEL F. DOYLE of Pennsylvania.
H.R. 4592: Mr. LAMBORN and Mr. MCKINLEY.
H.R. 4599: Mr. MOULTON and Mr. GUINTA.
H.R. 4607: Ms. BONAMICI, Mr. LOWENTHAL, and Mr. HONDA.
H.R. 4611: Mr. VAN HOLLEN and Ms. JUDY CHU of California.

H.R. 4612: Mr. BISHOP of Michigan and Mr. CHABOT.

H.R. 4613: Mr. DEUTCH, Ms. LEE, Ms. DELBENE, and Mr. COFFMAN.

H.R. 4614: Mr. KING of Iowa and Mr. CRAWFORD.

H.R. 4616: Mr. KING of New York, Mr. BISHOP of Georgia, Mr. POSEY, Mr. ASHFORD, Ms. NORTON, Mr. HASTINGS, Ms. LORETTA SANCHEZ of California, Ms. HERRERA BEUTLER, Mr. POLIS, Mr. CARTWRIGHT, and Mr. LIPINSKI.

H.R. 4625: Mrs. COMSTOCK, Mrs. WATSON COLEMAN, and Mr. DEFAZIO.

H.R. 4637: Mrs. RADEWAGEN.

H.R. 4640: Mr. MCGOVERN, Mr. HONDA, Mr. BISHOP of Georgia, Mr. BRAT, Mr. O'ROURKE, Mr. KILMER, Mr. WELCH, and Mr. SWALWELL of California.

H.R. 4648: Mr. SMITH of Washington.

H.R. 4653: Mr. DEFAZIO, Mr. WELCH, Mr. HIGGINS, Mrs. WATSON COLEMAN, and Mr. TAKAI.

H.R. 4654: Mr. TONKO, Mr. MOULTON, and Mr. WELCH.

H.R. 4657: Mr. HUIZENGA of Michigan.

H.R. 4662: Mr. SARBANES and Mrs. ELLMERS of North Carolina.

H.R. 4667: Mr. CURBELO of Florida, Mr. ROSS, Ms. CASTOR of Florida, and Ms. NORTON.

H.R. 4668: Ms. CLARK of Massachusetts.

H.R. 4677: Mr. KING of New York.

H.R. 4681: Ms. CLARKE of New York, Mr. PAYNE, Mr. HASTINGS, Mr. LEVIN, Mr. VAN HOLLEN, Mr. TAKAI, and Mr. SWALWELL of California.

H.R. 4694: Mrs. KIRKPATRICK, Ms. KAPTUR, Mr. SMITH of Washington, Ms. MOORE, and Mrs. BUSTOS.

H.R. 4701: Ms. NORTON.

H.R. 4712: Mr. RUPPERSBERGER.

H.R. 4715: Mrs. BLACK, Mr. ASHFORD, Mr. KELLY of Mississippi, Mr. ABRAHAM, Mr. RODNEY DAVIS of Illinois, Ms. FOXX, Mr. COOK, Mr. BARLETTA, Mr. ROKITA, and Mr. KLINE.

H.R. 4717: Mrs. BLACKBURN.

H.R. 4720: Mr. GOHMERT.

H.R. 4729: Ms. DELAURO.

H.R. 4730: Mr. BLUM, Mr. EMMER of Minnesota, and Mr. STEWART.

H.R. 4738: Mr. TAKAI.

H.R. 4747: Mr. CARTER of Georgia.

H.R. 4750: Mr. CONYERS.

H.R. 4751: Mr. GUINTA and Mr. MCCLINTOCK.

H.R. 4754: Ms. NORTON, Mr. PALLONE, Ms. LEE, Mr. VEASEY, and Ms. WILSON of Florida.

H.R. 4764: Mr. CRAMER, Mrs. LAWRENCE, Mr. LANCE, Mr. JONES, and Mr. LYNCH.

H.R. 4766: Mr. RANGEL and Mr. ROSS.

H.R. 4773: Ms. FOXX, Mr. ZINKE, Mr. ALLEN, Mr. HARDY, Mr. GROTHMAN, Mrs. WALORSKI, Mr. GOHMERT, Mr. KNIGHT, Ms. JENKINS of Kansas, Mr. ROSS, Mr. JODY B. HICE of Georgia, Mr. BUCSHON, Mr. HUELSKAMP, Mr. DUFFY, Mr. WOMACK, Mr. CRAWFORD, Mr. BROOKS of Alabama, Mr. BYRNE, Mr. COFFMAN, Mr. POMPEO, Mr. POSEY, Mr. DUNCAN of South Carolina, Mr. BISHOP of Michigan, and Mr. TOM PRICE of Georgia.

H.R. 4775: Mr. CRAMER, Mr. JOHNSON of Ohio, Mr. MURPHY of Pennsylvania, Mr. FRANKS of Arizona, and Mr. BURGESS.

H.R. 4792: Ms. ESHOO, Mr. HONDA, and Mr. GRIJALVA.

H.R. 4796: Mr. GRIJALVA, Mr. O'ROURKE, Mr. MCGOVERN, and Mr. TAKAI.

H.R. 4809: Mr. BLUMENAUER.

H.R. 4814: Mr. COOK.

H.R. 4815: Mr. ZELDIN, Mr. HUDSON, and Mr. ROSKAM.

H.R. 4817: Ms. MICHELLE LUJAN GRISHAM of New Mexico and Mr. HILL.

H.R. 4827: Mr. CONNOLLY, Ms. BROWN of Florida, and Mr. BLUMENAUER.

H.R. 4828: Mr. DUNCAN of South Carolina, Mr. HUELSKAMP, Mr. JONES, Mr. SESSIONS, Mr. BOUSTANY, Mr. PITTS, and Mr. SMITH of New Jersey.

H.R. 4835: Mr. MCGOVERN, Ms. SCHAKOWSKY, Mrs. NAPOLITANO, and Ms. BONAMICI.

H.R. 4842: Ms. SINEMA and Mr. AL GREEN of Texas.

H.R. 4843: Mr. THOMPSON of Pennsylvania.

H.R. 4848: Mr. ROE of Tennessee, Mr. PALMER, Mr. CHABOT, Mr. BILIRAKIS, and Mr. BUCSHON.

H.R. 4852: Mr. MCHENRY.

H.R. 4860: Mr. VEASEY, Mr. WEBER of Texas, Ms. MENG, Miss RICE of New York, Mr. HIGGINS, Mr. VELA, and Mr. LEVIN.

H.R. 4873: Mr. REED.

H.R. 4876: Mr. REED.

H.R. 4879: Ms. NORTON, Ms. EDWARDS, Ms. LEE, Ms. CLARKE of New York, Mrs. WATSON COLEMAN, and Mr. TED LIEU of California.

H.R. 4882: Mr. GALLEGO.

H.R. 4885: Ms. JENKINS of Kansas.

H.R. 4895: Mr. HUDSON and Mrs. BLACKBURN.

H.R. 4897: Ms. NORTON, Mr. SWALWELL of California, Mr. WELCH, Mr. LANGEVIN, and Mr. BLUMENAUER.

H.R. 4898: Mr. WEBER of Texas.

H.J. Res. 14: Mr. FLEMING.

H. Con. Res. 19: Mrs. BUSTOS.

H. Con. Res. 36: Mr. RUIZ.

H. Con. Res. 40: Mr. FATTAH and Mr. POCAN.

H. Con. Res. 50: Mr. DEUTCH, Ms. PINGREE, Mr. SWALWELL of California, Mr. CAPUANO, Mr. KILDEE, Mr. VARGAS, Mr. MCCAUL, and Mr. LARSON of Connecticut.

H. Con. Res. 89: Mr. JENKINS of West Virginia, Mr. MASSIE, Mr. HULTGREN, Mr. MULLIN, Mr. FLEISCHMANN, Mr. MCCAUL, Mr. FRANKS of Arizona, Mr. GRAVES of Missouri, Mrs. WALORSKI, Mr. SESSIONS, Mr. RATCLIFFE, Mrs. BLACK, Mr. CULBERSON, Mr. JODY B. HICE of Georgia, Mr. SAM JOHNSON of Texas, Mr. TOM PRICE of Georgia, and Mr. HUIZENGA of Michigan.

H. Con. Res. 114: Mr. WEBER of Texas, Mr. ASHFORD, and Mr. COFFMAN.

H. Res. 54: Ms. STEFANIK.

H. Res. 130: Mr. LANGEVIN.

H. Res. 154: Mr. FORTENBERRY and Mr. MOULTON.

H. Res. 192: Mr. VAN HOLLEN, Mr. MCCLINTOCK, Mr. SHERMAN, Ms. BASS, and Ms. LOFGREN.

H. Res. 220: Mrs. DAVIS of California, Mr. ELLISON, Ms. LOFGREN, Mr. VARGAS, Mr. VELA, Mr. KILMER, Mr. TAKAI, Mrs. BLACK, and Mr. LANGEVIN.

H. Res. 343: Mr. SMITH of Missouri, Mr. SARBANES, and Mr. LANGEVIN.

H. Res. 419: Ms. WASSERMAN SCHULTZ.

H. Res. 469: Mr. KNIGHT and Mr. KILMER.

H. Res. 501: Mr. HONDA, Mr. CARTWRIGHT, Mr. BUTTERFIELD, and Mr. EMMER of Minnesota.

H. Res. 540: Miss RICE of New York.

H. Res. 551: Mr. HECK of Nevada, Mr. LANGEVIN, and Mr. ASHFORD.

H. Res. 605: Mr. HONDA and Ms. EDWARDS.

H. Res. 617: Mr. YOUNG of Alaska and Mr. ROE of Tennessee.

H. Res. 647: Mrs. BUSTOS, Ms. WASSERMAN SCHULTZ, Ms. DELBENE, Mr. FITZPATRICK, Ms. EDWARDS, and Mr. KIND.

H. Res. 650: Mr. MCCLINTOCK, Mr. LEWIS, Mr. WEBER of Texas, Mr. ROHRABACHER, Ms. ROS-LEHTINEN, Ms. JACKSON LEE, Mr. DAVID SCOTT of Georgia, Mr. COFFMAN, Mr. LAMBORN, Mrs. COMSTOCK, Ms. JUDY CHU of California, Mr. JOHNSON of Georgia, Mr. COHEN, Mr. ENGEL, Ms. NORTON, Mr. CARSON of Indiana, Mr. SESSIONS, and Mr. PETERSON.

CONGRESSIONAL EARMARKS, LIMITED TAX BENEFITS, OR LIMITED TARIFF BENEFITS

Under clause 9 of rule XXI, lists or statements on congressional earmarks, limited tax benefits, or limited tariff benefits were submitted as follows:

The amendment to be offered by Representative DOYLE or a designee, to H.R. 2666 the No Rate Regulation of Broadband Internet Access Act, does not contain any congressional earmarks, limited tax benefits, or limited tariff benefits as defined in clause 9 of rule XXI.

The amendment to be offered by Representative EDWARD R. ROYCE to H.R. 3340 does not contain any congressional earmarks, limited tax benefits, or limited tariff benefits as defined in clause 9 of rule XXI.

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PROCEEDINGS AND DEBATES OF THE *114th* CONGRESS, SECOND SESSION

Vol. 162 WASHINGTON, TUESDAY, APRIL 12, 2016 *No. 55*

Senate

The Senate met at 10 a.m. and was called to order by the President pro tempore (Mr. HATCH).

PRAYER

The Chaplain, Dr. Barry C. Black, offered the following prayer:

Let us pray.

Eternal God, You are our rock and salvation. You are our high tower, and we shall not be moved. Forgive us when we forget to trust You to order our steps and direct our path.

Lord, thank You for our lawmakers, who seek to fulfill Your purposes in their labors. Give them the wisdom and courage they need to glorify Your Name as they strive always to live worthy of the mercies You daily bestow. May their work be a delight as they make You the only constituent they always seek to please.

Help us all to remember that You know what is best for us; so please have Your way.

We pray in Your strong Name. Amen.

PLEDGE OF ALLEGIANCE

The President pro tempore led the Pledge of Allegiance, as follows:

I pledge allegiance to the Flag of the United States of America, and to the Republic for which it stands, one nation under God, indivisible, with liberty and justice for all.

Mr. MCCONNELL. Mr. President, I suggest the absence of a quorum.

The PRESIDING OFFICER (Mr. COTTON). The clerk will call the roll.

The senior assistant legislative clerk proceeded to call the roll.

Mr. MCCONNELL. Mr. President, I ask unanimous consent that the order for the quorum call be rescinded.

The PRESIDING OFFICER. Without objection, it is so ordered.

RECOGNITION OF THE MAJORITY LEADER

The PRESIDING OFFICER. The majority leader is recognized.

FAA REAUTHORIZATION BILL

Mr. MCCONNELL. Mr. President, I have been pleased to see the progress we have made on the FAA Reauthorization Act, and I appreciate the Senators who have worked to process amendments such as those that bolster airport security. Last evening we processed another set of amendments to help make this good bill an even better one.

One such amendment, offered by Senator FLAKE, would help improve communication between the FAA and local airports in order to provide a greater say for local stakeholders in the management of the airspace near their own airports. This will benefit communities and airports across the country, including at Kentucky's own Louisville airport. I appreciate Senator FLAKE's leadership on this issue and was pleased to see this provision included in the overall bill.

I encourage Members who have ideas they think can strengthen the bill to continue working with the bill managers to move this legislation forward. Let's continue working today to take the next steps in seeing this consumer-friendly FAA reauthorization and airport security bill through to passage.

This bill contains a number of important measures to increase security in our airports and the skies. It also takes more steps to look out for airline passengers. Here is how: It will improve information about seat availability and create a standard for information on fee disclosures. It will require airlines to offer refunds to customers whose bags are lost or who have paid for services they didn't receive. It will also maintain rural access and help improve travel for passengers with disabilities.

There are some who think we should go further and reregulate the airline industry, but we know deregulation has helped make air travel more accessible and more affordable for families and business travelers to get from point A to point B. I know there are some who think Washington bureaucrats should define what constitutes a reasonable fee, but we want consumers to make that choice for themselves. That is why this bipartisan bill includes the important consumer protection provisions I mentioned earlier. We know this bipartisan legislation is a result of months of dedicated work by Chairman THUNE and his counterpart Senator NELSON. It sets new requirements for making sure customers understand what fees they could face for certain ancillary services, and then, importantly, it holds airlines accountable for delivering to consumers.

This is commonsense legislation. It is the product of Senators working across the aisle on behalf of the American people. Let's continue working together to move forward.

Mr. REID. I suggest the absence of a quorum.

The PRESIDING OFFICER. The clerk will call the roll.

The senior assistant legislative clerk proceeded to call the roll.

Mr. REID. Mr. President, I ask unanimous consent that the order for the quorum call be rescinded.

The PRESIDING OFFICER. Without objection, it is so ordered.

RECOGNITION OF THE MINORITY LEADER

The PRESIDING OFFICER. The Democratic leader is recognized.

FILLING THE SUPREME COURT VACANCY

Mr. REID. Mr. President, last Thursday the senior Senator from Iowa came to the floor to declare that he is feeling no pressure in blocking President Obama's Supreme Court nominee, Judge Merrick Garland. However, Senator GRASSLEY's actions paint a far different picture.

On Monday the chairman of the Judiciary Committee took to the Des

● This "bullet" symbol identifies statements or insertions which are not spoken by a Member of the Senate on the floor.

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Moines Register, the very newspaper that has pointedly and repeatedly criticized his unprecedented obstruction, but the case Senator GRASSLEY made in his op-ed only left Iowans scratching their heads. In effect, the senior Senator from Iowa said it is no big deal that we only have eight Justices on the Supreme Court. It is no big deal that our Nation's highest Court is deadlocking on important cases. With all due respect, that is the type of argument one makes knowing that logic and reason is not on your side, when you know the Constitution is not on your side.

The senior Senator from Iowa seemed to understand the Senate's responsibility to act when a Republican was in the White House. In 2006 he came to the floor and said:

A Supreme Court nomination is not a forum to fight any election. It is the time to perform one of our most important constitutional duties and decide whether a nominee is qualified to serve on the Nation's highest court.

Now he has reversed himself—and that is an understatement. From the time he allowed the Republican leader to seize control of the Judiciary Committee and dictate his actions as committee chair, Senator GRASSLEY has done everything to deflect responsibility on himself personally.

He forced his committee members to sign loyalty oaths. He tried to force the committee to do its work away from the public eye. When Democrats objected, he canceled the meeting altogether. He tried to shut down debate from the Presiding Officer's chair in the Senate, which is unprecedented. He blamed conservative Chief Justice John Roberts for politicizing the Supreme Court. These are just a few of the things.

This morning Senator GRASSLEY finally met with Judge Garland. He met in private, far away from the public eye. These are not the actions of a Senator and chairman who is confident in his decision to block the Supreme Court nominee. This is the behavior of a Senator who knows he is on the wrong side of the Constitution and wrong side of history. Wouldn't it be easier for the senior Senator from Iowa just to do his job?

NATIONAL EQUAL PAY DAY

Mr. REID. Mr. President, we are 102 days into 2016, but because of wage discrimination, working American women are still stuck in 2015. Today is National Equal Pay Day, a date that symbolizes how far into the year women must work to earn what their male counterparts earned last year for doing the very same work. That is because, on average, women make only 79 cents for every $1 their male colleagues make doing the very same job. That means our wives, daughters, and granddaughters have to work an additional 3 months and 11 days to make the same salary their male counterparts make in a single year.

This pay disparity between men and women for doing the same work is known as the wage gap and it is to our national shame. No woman should make less money than a man for doing the exact same work.

Democrats have tried repeatedly to pass Senator BARBARA MIKULSKI's Paycheck Fairness Act, which would provide women with the tools they need to close this wage gap. The Republicans have made it clear they have no intention of fighting wage discrimination. They have stonewalled Senator MIKULSKI's legislation five times in recent years—five filibusters—and when Republicans finally got around to offering legislation they claim will address this important economic issue, it is anemic and devoid of actual reform.

The bills offered by the junior Senators from New Hampshire and Nebraska are a case in point because the legislation does nothing to close loopholes employers use to justify paying discriminatory wages, it does nothing to help victims of wage discrimination recoup lost income, and it does nothing to incentivize employers to follow the law. This legislation is only designed to look good, to say they are trying to do something about this, when in fact it does nothing. Just about the only thing the Ayotte and Fischer bills actually do is make it harder for women to discuss wage discrimination at work. Their respective bills so narrowly define what a woman can and cannot say about wage discrimination that it completely ignores the reality of the situation.

Factually, many women learn of wage disparities through casual conversation at work. In the famous Lilly Ledbetter case, that is how she learned about it. They shouldn't be punished for realizing they are being discriminated against by their own employer. In short, the Ayotte and Fischer bills will not close the wage gap. Where the Republican legislation fails, the Mikulski Paycheck Fairness Act succeeds.

The Paycheck Fairness Act would help close the wage disparity by empowering women to negotiate for equal pay. This bill would give workers stronger tools to combat wage discrimination and bar retaliation against employees for discussing salary information. This legislation would help secure adequate compensation for victims of gender-based pay discrimination. These are commonsense proposals that are supported by the American people—not just women.

Later today President Obama will announce the designation of the Belmont-Paul Women's Equality National Monument, which is located a few hundred yards from where I stand. Formally known as the Sewall-Belmont House and Museum, this national monument will honor the work of the National Women's Party founder Alice Paul, who rewrote the Equal Rights Amendment. I think it is important that is done. President Obama says this designation is a reminder of the many women who have fought for equality.

As we recognize Equal Pay Day, I hope my Republican colleagues will come to their senses and address this injustice that hurts millions of American families. Working women deserve more than just a half measure from Republicans. They deserve our best efforts to right this egregious wrong, because American women deserve equal pay.

I apologize to my distinguished friend from Vermont for having him wait while Senator MCCONNELL and I were having conversations on the floor.

RESERVATION OF LEADER TIME

The PRESIDING OFFICER. Under the previous order, the leadership time is reserved.

MORNING BUSINESS

The PRESIDING OFFICER. Under the previous order, the Senate will be in a period of morning business for 1 hour, with Senators permitted to speak therein for up to 10 minutes each, with the Democrats controlling the first half and the majority controlling the final half.

The PRESIDING OFFICER. The Senator from Vermont.

NATIONAL EQUAL PAY DAY

Mr. LEAHY. The distinguished Senator from Nevada owes me no apologies. I am delighted to hear what he had to say and I agree with him.

Mr. President, today we Vermonters and our neighbors, Americans across the country, are going to recognize Equal Pay Day, a day that shines a spotlight on the glaring pay disparity between men and women. The United States is often looked to as a leader in the global landscape, setting the gold standard for others to follow. Unfortunately, our country fails to lead when it comes to pay parity. American women continue to be treated unequally and unfairly in the workplace.

On average, women are only paid 79 cents to every $1 paid to men. It is somewhat better in Vermont, but there is still a disparity of 83 cents to a dollar. Over a career, this means a woman is compensated hundreds of thousands of dollars to millions of dollars less than a man with no other explanation for the disparity than their gender. This practice is unacceptable, and it runs contrary to American values.

The fight for equal pay for equal work has spanned generations and continues to impact nearly every corner of our country. From corporate boardrooms to locally owned small businesses, women have long fought for their right to be treated with the same respect and dignity as their male counterparts.

When I think of this fight, I think of Lilly Ledbetter, a person whom I greatly admire and consider a friend. She

has changed the lives of millions of Americans with her courage to stand up for equal pay. It has been nearly 9 years since five Justices on the Supreme Court ruled, by just a one-vote majority, that her pay discrimination claim was invalid—not because of the facts. She had a good pay discrimination claim, but the narrow majority said she did not file a suit against her employer within the Federally mandated time period, even though the way the employer ran things, made it so she had no way of knowing she was being discriminated against at that time. I was proud to work with Senator MIKULSKI and others to overturn this injustice. We wrote and passed the Lilly Ledbetter Fair Pay Act. This important legislation clarified the statute of limitations for filing an equal pay lawsuit regarding pay discrimination. I was proud to stand with President Obama when he signed this into law, the very first law he signed as President.

The progress achieved 7 years ago was important, but the fight for equal pay for equal work continues today. I am proud to cosponsor Senator MIKULSKI's Paycheck Fairness Act, an important bill to assure equal pay for equal work—a principle that people say they agree with but for too long has failed to be a reality.

Today women from all over Vermont will assemble at the Vermont State House. They will highlight the initiative known as Change the Story, which aims to improve the economic status of women in my State. They will note that while in Vermont women fare slightly better than the average around the country, at the current pace, the wage gap will not disappear before the year 2048. That is far too long for anybody to have to wait.

I would also point out that in Vermont, women are twice as likely to live in poverty in their senior years, when their savings amount to only one-third of that of their male counterparts.

Every year, Marcelle and I present the Vermont Women's Economic Opportunity Conference. For two decades, it has helped support women-owned businesses. It encourages good-paying, nontraditional careers. But as we prepare to mark the 20th anniversary of the Women's Economic Opportunity Conference in June, I would much prefer if we could eliminate the need for such a conference. I look forward to the day when there is no gender wage gap and when career opportunities are available to all women, but until that day comes, Marcelle and I will continue to present that conference.

Pay equality has recently received considerable attention at the international level. Why? In large part, due to the leadership of the U.S. Women's National Soccer Team. We can all recall the thrill last year when this team of world-class athletes won for a third time soccer's most coveted title, the FIFA World Cup.

I remember, and I remember my children and my grandchildren watched that thrilling victory. It was the most widely viewed women's soccer game in our Nation's history. Like so many other Americans, men and women, I took pride in their historic win. But then fans from across the world were shocked to learn that members of the U.S. women's team received only $2 million for winning the 2015 Women's World Cup, while the men's 2014 World Cup champions were awarded $35 million.

We were also astonished to learn that our 2015 world champion women's team received $7 million less than the U.S. men's team that lost in an early round of the men's 2014 World Cup. Even though this sports team made enormous amounts of money from the television rights, the women who earned those rights did not. They got paid less than the men who lost. They got paid less for winning than the men who lost.

So, as a result of this alarming inequity, I introduced a Senate resolution calling on FIFA to eliminate its discriminatory prize award structure and to award all athletes with equal prizes. It was disappointing that not a single Republican was willing to cosponsor this resolution. When I tried to get it passed to support fairness for our champion women's team, when I tried to get this passed to say that we should treat women fairly—we should treat the women athletes the same as men athletes—Senate Republicans blocked it from going forward.

As more Americans learn of this unfairness, I am hopeful that Senators will join me to support this passage and that Republicans will stop blocking it. Senators should not be afraid to be on record supporting equal pay for equal work for all athletes—in fact, equal pay for equal work for all women.

Opponents of an equal prize award structure in sports have pointed to revenue as the reason behind this gross disparity. This is unacceptable. Tennis icons such as Billie Jean King and Venus Williams did not accept these arguments; instead, they fought for equal prize awards in the face of overwhelming adversity.

Their impressive efforts led to equal prize awards at the U.S. Open Tennis championships and Wimbledon, which now provides all athletes, men and women, with the respect they deserve. So I am proud to stand in support of the U.S. Women's National Team in their fight for equal prize awards from FIFA and for equal treatment from the U.S. Soccer Federation.

The disparities that exist in these organizations are outrageous. They should be remedied immediately. They should be arranged so that men and women are treated fairly and equally. While every Democrat has supported that, I hope Republicans will stop blocking it.

As we reflect on the important meaning of Equal Pay Day, I would note that it is not just Republicans or Democrats—but all Americans across the country who should continue to join the growing movement to eliminate discrimination from the workplace. Hard-working women—our mothers, our sisters, our wives, our daughters, and our granddaughters—deserve no less.

We should pass this resolution recognizing the achievement of the U.S. Women's National Team as the Women's World Cup champions. We should pass Senator MIKULSKI's Paycheck Fairness Act, which I have proudly cosponsored. We should take these simple and straightforward steps to guarantee pay equity protections against workplace discrimination. The time for equality is now. Let's be honest. Let's stand up and say: Both men and women should be treated equally.

I yield the floor.

The PRESIDING OFFICER. The Senator from California.

Mrs. BOXER. Mr. President, as my friend, the top Democrat on the Judiciary Committee, is leaving the floor, I want to thank him so much. I think the example of women's soccer is so perfect. People do not understand this disparity. Some say that many more people follow the women's soccer than the men's. I want to thank him for his leadership on that.

I also want to say that when it comes to equal pay for equal work, you need to remember three numbers—just three numbers: 79 cents—that is one number. Remember that one and $11,000 and $400,000. OK. Remember 79 cents, $11,000, and $400,000. And 79 cents on the dollar is what the average woman makes compared to the average man. So the man makes $1; the woman makes 79 cents for the same work.

We are not talking about different jobs; we are talking about the same. It costs the average woman and her family $11,000 a year. When you add up that disparity, it is $11,000 a year. Think of what that could buy for a family. And $400,000-plus is what the penalty is for the average woman against the average man in a lifetime—$400,000. That could translate into a retirement that is not stressful.

We are going to be here later today talking about this. The Mikulski bill will resolve a lot of these problems. I hope we can get the Republicans to help us.

You know, this Senate has a rating of about 18-percent approval. Well, it is because people don't see us doing anything to help the average person. Most women work. We have not even raised the minimum wage. These Republicans fight for the wealthy few. That is the problem. We have given them a beautiful way to deal with it: Sign onto MIKULSKI's bill.

PILOT FATIGUE

Mrs. BOXER. Mr. President, this morning, in addition to these comments that I just made, I want to talk

about an amendment I am trying to get a vote on to the FAA bill, the Federal Aviation Administration bill, which is before us. This issue is another no-brainer.

Later this morning, I will meet with Captain ''Sully'' Sullenberger. I think you remember him. He was the ''Hero of the Hudson.'' He was the one who miraculously landed U.S. Airways Flight 1549 on the Hudson River on January 15, 2009. Because of his incredible skill, he saved the lives of all 155 passengers and crew.

When it comes to safety—safety, in terms of our pilots being able to think clearly and not be suffering from fatigue, who could be better than Captain Sullenberger? I am going to stand with him. I am going to explain the issue that he and I are fighting for.

I first got into this issue—which is safety standards for all pilots—in 2009 when Colgan Airlines Flight 3407 crashed into a home near Buffalo, NY, killing 50 people. After that tragic crash, Senator Snowe and I wrote legislation that updated pilot and fatigue regulations. They had been written originally in the 1940s.

Clearly, there is a lot of scientific research on what happens when you have a lack of rest. We needed to see a new rule. So, because of the efforts of Senator Snowe and me, the Department of Transportation issued a rule in 2011 to ensure adequate rest for passenger pilots, which was great.

Shockingly, they left out cargo pilots. So I am going to show you a picture of two planes—two planes. Look at those planes. They look exactly the same. They share the same airspace, the same airports, and the same runways. But guess what? Because of the disparity in this rule from the FAA, the pilots are not treated the same. Now, passenger pilots cannot fly more than 9 hours in a day, while cargo pilots have been forced to fly up to 16 hours a day. Let me say it again. The rule that came out of the FAA said: If you are a passenger pilot, you can only fly up to 9 hours a day, but if you fly a cargo plane the same size, you can fly up to 16 hours a day. How does this make sense? It is dangerous. It is dangerous. I will show you how. But our top safety board, NTSB, the National Transportation Safety Board, has made reducing pilot fatigue a priority, mentioning it is on their top 10 list of most wanted safety requirements for years.

So follow me. In 2011, we had the rule. The rule left out cargo pilots. Since then, I have been trying, along with colleagues KLOBUCHAR, CANTWELL, and others, to change this. Now, let's look at what Captain Sullenberger has said about this issue. He said it about our bill: You wouldn't want your surgeon operating on you after only 5 hours of sleep or your passenger pilot flying the airplane after only 5 hours of sleep. And you certainly wouldn't want a cargo pilot flying a large plane over your house at 3 a.m. on 5 hours of sleep, trying to find the airport and land.

They are working up to 16 hours without adequate opportunity for rest, so what we say in our amendment is simple: We want parity. We want the same periods of flying time for both pilots.

Now you say: Well, Senator BOXER, have there been any accidents? Yes. Since 1990, there have been 14 U.S. cargo plane crashes involving fatigue, including a UPS crash in Birmingham, AL, in 2013 that killed two crew members.

In that tragedy, the NTSB cited pilot fatigue as a factor. Let's listen to the pilot conversation, which was retrieved after the crash. Let's hear what those pilots, who were exhausted, said to one another. Then, if the Senate does not want to have a vote on this, I am going to stand on my feet until we do because, for sure, one of these planes is going to crash, whether it is in California or Nebraska or Arkansas or anywhere else in this Nation.

Listen to this.

Pilot 1: I mean, I don't get it. You know, it should be one level of safety for everybody.

Pilot 2: It makes no sense at all.

Pilot 1: No, it doesn't at all.

Pilot 2: And to be honest, it should be across the board. To be honest, in my opinion, whether you are flying passengers or cargo, if you are flying this time of day, you know, fatigue is definitely——

Pilot 1: Yeah, yeah, yeah.

Pilot 2: When my alarm went off, I mean, I'm thinking, I'm so tired.

Pilot 1: I know.

Well, let's look at what happened to this plane after this conversation. Just look at what happened to this plane. I think it is important that everybody look at it. It went down. It went down. Now, when that flight went down, I honestly thought: The FAA is going to change. They are going to pass a rule. They are going to make sure that all pilots get that necessary rest. But they did not. They did not. One hour after that conversation I shared with you, Mr. President, this is what happened to that plane.

This dangerous double standard risks lives in the air and on the ground, and it cannot continue. That is why our amendment and our bill, which we base the amendment on, are endorsed not only by Captain Sully but also by the Air Line Pilots Association, the Independent Pilots Association, the Coalition of Airline Pilots Associations, the Teamsters Aviation Division, and the Allied Pilots Association.

Let me just ask a rhetorical question. If we don't listen to pilots, who are in those planes, on what they need to fly safely, who on Earth are we listening to? And yet I can't get a vote on this. So far, I can't get a vote. I am hoping I will. Let people stand in the well and vote against this safety provision, and the next time there is a crash, they will answer for it. Stand up and be counted. We need a vote on this provision. One level of safety for all pilots is one level of safety for the public.

I am proud to stand with Captain Sullenberger and all the pilots in America and the organizations that represent them to say this: If this is an FAA bill, if this is the Federal aviation bill and we have all kinds of goodies and tax breaks and this and that in there—which is a whole other conversation—the least we can do is to stand up for safety. The least we can do is to stand up for safety. I will insist on a vote. I will stand on my feet until I get a vote, and I know the pilots are going to be all over this place today knocking on doors.

The American people don't think we are doing anything for them. We have the worst rating. My friends beat up on President Obama, but he has the same ratings as Ronald Reagan during his time in the same timeframe—same ratings as Ronald Reagan, their hero. We are down in the gutter with our ratings because we put special interests ahead of the people.

Now, maybe there are a few special interests that don't want to pay their pilots enough money, that don't want to give their pilots rest—too bad. They are wrong. They are jeopardizing lives on the ground. It is penny-wise and pound-foolish to have someone suffering from pilot fatigue flying over your home wherever you live in America.

All I want is a vote. I am just asking for a vote. So far, I do not have that commitment, but we are working hard. We are hoping to get it. That is why I came here today, and that is why I will be standing with Captain Sullenberger later this morning—to call for a vote to make sure that after 9 hours of flight, pilots get adequate rest—not after 16 hours—and to make sure there is parity, fairness, and equality between those flying a passenger jet and those flying a cargo jet. The fact of the matter is they share the same airspace, they fly over the same homes, and they deserve not to be exhausted as they maneuver their planes.

I thank the Chair, and I yield the floor.

The PRESIDING OFFICER. The Senator from Nebraska.

NATIONAL EQUAL PAY DAY

Mrs. FISCHER. Mr. President, I rise today to discuss the issue of equal pay for equal work. Today is National Equal Pay Day, and this provides us an opportunity to talk about how we can promote policies that will make life easier and more flexible for American families. It allows us to celebrate the amazing advancements that women have made.

Women have an incredibly positive story to tell. We now hold more than half of all professional and managerial jobs, double the number since 1980. We earn over 55 percent of bachelor's degrees, run nearly 10 million small businesses, and we serve in Congress at record levels.

Some may be surprised to see a Republican speaking out to support equal

pay. My friends on the other side of the aisle have made quite an effort to politicize this issue, claiming that Republicans don't care about equal pay.

I am here to state unequivocally that is ridiculous. Equal pay for equal work is a shared American value. At its core, equal pay is about basic fairness and ensuring that every woman, just like every man, has the opportunity to build the life she chooses.

For over half a century, the Equal Pay Act and the Civil Rights Act have enabled women to make significant economic strides. Any violation of these important laws are illegal, and they should be punished to the full extent of the law. But I believe we can also go further. Congress now has the opportunity to recommit itself to this issue and ensure that these existing laws are better enforced.

Our country is stronger today because women have advanced in the workforce. There are stories of young women who start off at entry-level jobs and rise to the top of corporate ranks because someone somewhere recognized their potential. There are managers and mentors committed to their team. Men and women across the workforce are focused on cultivating strengths and providing thoughtful feedback in areas that need improvement.

Unfortunately, there are also stories of pain, discrimination, and bias. We all have friends and neighbors, sisters and mothers who were treated unfairly at some point in their careers. But silence does not foster progress. I want to help every woman and every man put a stop to unfair pay practices, and this starts by breaking the barriers to open discussion.

Few realize the extent of this problem. In 2003 the University of Pennsylvania conducted a study on how salaries are discussed in the private sector. The survey found that over one-third of private sector employers have specific rules prohibiting employees from discussing their pay with their coworkers. This was reinforced by another survey from the Institute for Women's Policy Research. Roughly half of workers reported that discussing wages and salaries is either discouraged or prohibited and/or could lead to punishment. It went on to note that pay secrecy appears to contribute to the gender gap in earnings.

These studies point to a common problem—one that is fueling anger, resentment, and fear. The American workforce is lacking protections for employees to engage in this open dialogue about their salaries. People are afraid to ask how their salary compares to their colleagues. Meanwhile, current law does not adequately protect workers against retaliation from employers who want to prevent those conversations about their compensation.

If you want to know how your salary compares to your colleagues, you should have every right to ask. This is as basic as the First Amendment. Ensuring transparency would not only make it easier for workers to recognize pay discrimination, but it would also empower them to negotiate their salaries more effectively.

Wage transparency is not a new initiative. It already enjoys support on both sides of the political spectrum. In fact, both President Obama and Hillary Clinton are in favor of it. But not all transparency is created equal. Earlier this year, the Obama administration proposed a new regulation targeting businesses with over 100 employees. The Labor Department would use this rule to require businesses to submit large amounts of data regarding race, gender, and other statistics to the Equal Employment Opportunity Commission. The administration believes this will end discrimination.

I believe this is just another government mandate that intrudes into the operations of a private business. We can't discount the burden this will put on employers and job creators, and every—every—new regulation creates a new cost. I also have real doubts that this raw data will give the administration what it is looking for. Instead, it does risk presenting a distorted picture of pay data. Moreover, it remains unclear how this information would even identify discrimination. The data does not take into account other factors, including years of experience, education level, and productivity, and they are appropriately used to determine a person's wages.

Looking at big data alone fails to tell the whole story. I am concerned that the rigid compensation structures resulting from the President's proposal could force businesses to provide employees with less flexibility, and that would deal an even greater blow to women. The same is true with the Paycheck Fairness Act. While it is very well-intentioned, it will ultimately hurt flexibility for women to form unique work arrangements, and it will undermine merit-based pay. Instead, we should be empowering both employers and employees to negotiate flexible work arrangements that best meet their individual needs.

I agree we have more work to do on equal pay, but the way we can make meaningful and lasting progress isn't through a misguided Executive action that could hurt women. To make a difference in the lives of working families, we must focus on building bipartisan consensus. I have been working hard to do just that by collaborating with my colleagues and generating support for my bill, which is known as the Workplace Advancement Act.

I believe every American worker should have the ability to discuss compensation without fear of retribution. My legislation breaks down the barriers to open dialogue, allowing employees to ask questions and gain information. Access to this information could enable workers to be their own best advocates and let them negotiate for the salaries they feel they deserve. Knowledge is power. By freely discussing their wages, workers can negotiate effectively for the pay they want.

My proposal has received the support of almost every Senate Republican and also five Democrats. But as we know all too well, in Washington anything that receives bipartisan support stalls with five words: It doesn't go far enough.

The biggest critics of this plan say that it is too modest. They claim that transparency is only the first step and that a second step would require mandates. But the truth is, meaningful change cannot happen without action, and it cannot happen, colleagues, without compromise. By its very definition, it requires both agreement and accommodation. My bill can make a real difference for American workers, and, unlike legislation that is offered by Democrats, my bill can actually pass.

Others would argue that this change is unnecessary because the right to discuss salaries is protected under existing law. While it is true that certain employees and certain conversations are protected, there is no reason why we can't apply the same freedom to all Americans. As I discussed previously, surveys suggest that over one-third of private sector companies have specific prohibitions in place.

I am encouraged by the support we have already garnered on both sides of the aisle for this bill, the straightforward update to our equal pay laws. It is achievable. We are all here to find solutions that both Republicans and Democrats can achieve for the American people. An all-or-nothing attitude—well, that only prevents progress, and it leaves us with the false choices and stereotypes that have persisted for decades.

Last week I was encouraged to hear Senator MIKULSKI and several other Democrats hold a press conference and discuss the importance of protecting workers against retaliation for discussing their salaries. I agree. Protecting workers who seek this information is a crucial step toward ensuring that women and men are compensated fairly.

With that in mind, I call on my friend from Maryland and any other Members of this body to work together on solutions to this problem. Wage transparency is an area of common ground. Democrats praised the President's Executive order in 2014, and my bill goes further: It protects more American workers. If we are going to make real, meaningful change, we are going to have to work together. We should not let raw politics stand in the way of progress for working women.

Congress has a real opportunity to make a difference for both men and women who work hard every day to provide for their families. Above all, we can help them succeed and prosper in the workforce while being secure in the knowledge they are compensated fairly for their work.

Mr. President, I yield the floor.

The PRESIDING OFFICER (Mr. SULLIVAN). The Senator from Oklahoma.

PARIS CLIMATE AGREEMENT

Mr. INHOFE. Mr. President, I think Senators THUNE and NELSON have done a great job of putting together the reauthorization bill for the FAA. It is something that should have been done some time ago. We are hoping the House will adopt what we have or something close to it because we are getting ready to do this. It is significant.

I want to mention something that people may not be aware of. This month leaders from around the world are going to meet in New York to sign the Paris climate agreement—an agreement that hinges entirely on President Obama's commitments to reduce emissions in the United States.

In Paris, he said: We commit that the United States will reduce our CO_2 emissions somewhere between 26 and 28 percent by 2025.

Of course, that is just not going to happen.

President Obama has three legacies, as his days are now numbered. One of them is to take away people's guns. We all know about Second Amendment rights. Every time something happens, they always try to restrict gun ownership. He still wants to do that. Closing Gitmo is another one. The third one we are trying to survive is his global warming program.

While the President has been working to solidify his legacy on global warming, he has chosen to ignore the reality that the United States will not keep his carbon promises. The document that will be signed on April 22—Earth Day—will soon be added to the president's stack of empty promises on global warming. This has been going on since 1997. While President Obama will undoubtedly issue a press release praising the signing as a ''historic'' event—he won't even be attending. That should be a good indication that he knows he is not going to be able to do this. He is not even going to be there.

Once again, I want to make sure the international participants are warned that the President's climate commitment lacks the support of his own government and it is going to fail. There is no question about that. I can say that because history has already repeated itself. I have been on the frontlines dating back to the failed Kyoto treaty of 1997. For over 20 years, history has been repeating itself, and I have been on the frontlines dating back to that time.

This is kind of interesting. In 1997 President Clinton and Vice President Gore went to the Kyoto convention. They signed the treaty and they thought: This is great. Everyone is going to have to do cap and trade.

They got back here, and there was a little thing called the Byrd-Hagel resolution. It passed this body 95 to 0. What did it say? It said: If you come back with the Kyoto treaty and it does one of two things, we will vote against it. That was 95 Members; there were 5 people absent that day.

They said they would not do it if two things were in it: No. 1, if it is an economic hardship on the United States of America, and No. 2, if you come back with a treaty that doesn't treat developing countries the same as developed countries. In other words, if we have to do something in the United States that China doesn't have to do, that India doesn't have to do, that Mexico doesn't have to do, then we will vote against it.

Of course, they came back with something that violated both. So there was never any possibility that it was going to pass, and it didn't. We subsequently rejected four cap-and-trade bills in the following 13 years.

This past year a bipartisan majority in both the Senate and the House spoke again when we passed two resolutions of disapproval formally rejecting President Obama's carbon regulations. There is a little thing a lot of people don't know about called the CRA, the Congressional Review Act. That means if the President tries to do something that is against the wishes of the people through their elected representatives, then you can pass a CRA—Congressional Review Act—that will reject the regulation. So we passed two resolutions formally disapproving what he was trying to do.

So I say to the 196 countries that might show up here: Don't show up anticipating that something is going to happen, because it is not. This isn't even supported by a majority of the Members of the Senate or the House. Congress has continuously shown that the American people don't want the Federal Government imposing harsh penalties like cap and trade to address the highly contested theory of man-made global warming.

The first attempt to enact cap and trade back in 2003 would have cost our economy upwards of $400 billion a year.

I say to our good friend from Alaska who is the Presiding Officer right now that every time I hear a large figure, I take the current population in my State of Oklahoma—those families who actually pay Federal income taxes—and I do the math. In this case, this would cost in the neighborhood of $3,000 per family, and of course, as I will demonstrate in just a minute, they will get nothing for that.

In 2003 the first bill that came up would have cost upwards of $400 billion. This has not been contested, and the numbers aren't much different from what the President is trying to do right now with his Clean Power Plan, which he is trying to do through regulation because he knows it won't pass as legislation.

The Clean Power Plan—the centerpiece of the President's promise to the international community that the United States will cut greenhouse gases between 26 and 28 percent by 2025—this plan, which attempts to do through regulation what the President was unable to do through legislation, stands on very shaky legal ground.

Most recently, the Supreme Court joined the chorus in signaling to the President that the President's efforts on climate change are dead on arrival. This is the U.S. Supreme Court.

I think we owe it to the 196 countries to let them know that nothing is going to happen once they get here. I think it is nice if they all want to come and tour America and spend their money, maybe take old Highway 66 down through my State of Oklahoma and see what America really looks like. I would love to have them come. But I want to make sure they know that nothing is going to happen in terms of the President's Clean Power Plan or his broader international commitments.

The Supreme Court dealt the President's legacy a major blow when it voted 5 to 4 in February to block the implementation of Obama's Clean Power Plan while it is being litigated by over 150 entities, including 27 States, including Oklahoma, which are filing a lawsuit to make sure this does not happen. So we have a majority of States in America saying: Not only do we not want it, but we are suing them to make sure it is not implemented. There are also 24 trade associations, 37 electric co-ops and 3 labor unions challenging EPA in court. They are all filing these lawsuits, so the Supreme Court comes along and says: Until these are resolved, we are going to stay the regulation.

This decision delays implementation of the rule until the next President and completely upends Obama's Paris commitments. Without the central component of his international climate agenda, achieving the promises he made in Paris is a mere pipe dream. Even with the Clean Power Plan, the United States would fail to meet 45 percent of the promised greenhouse gas emission reductions. Now, with the Supreme Court's stay on these regulations, there could be an even greater deficit. If the Clean Power Plan is overturned, the United States will miss the mark by about 60 percent. Furthermore, the litigation on the Clean Power Plan won't likely get resolved until 2018. That means the regulations will be blocked for at least the next 2 years, as the chart shows.

First, on June 2, the three-judge panel on the DC Circuit will need to hear the case. The three-judge panel will issue a decision sometime this fall, and it will almost certainly be challenged with a request for an en banc review by the entire DC Circuit. A decision from an en banc panel won't come until much later—likely by the end of the year, as we can see on the chart. This decision will almost certainly be appealed to the U.S. Supreme Court. If the Court decides to hear the case, a final decision is expected in late 2017 or 2018.

The DC Circuit has already decided to delay hearing the case on the Clean Power Plan's sister rule on carbon controls for new power plants until after the November elections, signaling little appetite for allowing this to be an easy, quick legal review of Obama's carbon mandates.

Similar to the Clean Power Plan litigation, any decision on a new source rule—new sources of power plants—would likely be appealed to the Supreme Court, with a final decision expected in 2018. Critically, the new source rule is a legal prerequisite for the Clean Power Plan, so without the new source rule, there is no Clean Power Plan.

The success of Obama's carbon mandates hinges not on just one but on two Supreme Court wins that will be decided well after he leaves office. He will be long gone. And with a new administration needing to fill a vacancy next year on the Court—who knows how that will impact or delay consideration of pending cases.

We are clearly a long way off from knowing the outcome of the President's carbon regulations. You wouldn't know that when you hear the releases that came from Paris saying this has been a great success. He made the commitment as to what kind of reductions we are going to have when he in his own mind knew for a fact that was not even a possibility.

So we are a long way from knowing the outcome of the President's carbon regulations that were written to help fulfill his pledge to international communities. But, as I said, Obama will be long gone by that time.

It is important for the 196 countries involved in the Paris climate agreement to understand what I am saying. The Congress, the courts, climate experts, and industry are all pointing to the same conclusion: President Obama's climate pledge is unattainable, and it stands no chance of succeeding in the United States. For the sake of the economic well-being of America, that is a good thing. Again, we still would welcome the 196 countries to come over here and enjoy America, but don't expect any of President Obama's climate promises to happen.

A few countries have taken note. Specifically, China and India, two of the world's largest emitters of greenhouse gas, are now second-guessing the legitimacy of Obama's commitments.

Navroz K. Dubash, a senior fellow at the Center for Policy Research in New Delhi told the New York Times that ''[the Supreme Court stay] could be the proverbial string which causes Paris to unravel.''

Zou Ji, the deputy director general of China's National Center for Climate Change Strategy and International Cooperation, also told the New York Times: ''Look, [if] the United States doesn't keep its word, why make so many demands on us?''

In another display of solidarity against Obama's climate agenda, I led 34 Senators and 171 House Members in an amicus brief filed in the DC Circuit arguing that the Clean Power Plan is illegal. The plan would cause double-digit electricity price increases in 40 States and have no impact on the environment. Further, these regulations would prevent struggling communities from accessing reliable and affordable fuel sources, which could eventually lead to poor families choosing between putting food on the table and turning the heat on in the wintertime.

Much of the focus this past year has been the Clean Power Plan and the Paris Agreement that is reliant on its success. The administration has the power generation sector in its crosshairs, but they will not stop there. We know that. We are keenly aware of Obama's war on fossil fuels—coal, oil, and natural gas.

If I don't have to be someplace in conjunction with my obligations with the Senate Armed Services Committee, I go back home every weekend. They ask questions you don't hear in Washington. They ask: Now, wait a minute, if we are reliant upon fossil fuels—coal, oil, and gas—for 85 percent of the power necessary to run this machine called America and if Obama is successful in killing coal, oil, and gas, then how are we going to run this machine called America?

That is a logical question, but not here in Washington. You don't hear that here in Washington.

The Clean Power Plan is a template for unauthorized action, and if it works for one sector, future bureaucratic agencies will use it to restructure every industrial sector in this country. The immediate threat to future generations is not climate change. The climate is always changing and will continue to do so regardless of who is in the White House.

Luckily, the American people have caught on to the President's climate charade. But don't take my word for it; just look at the polls. I can remember back when the first bills were coming out. There was the McCain-Lieberman bill in 2003, and we looked at the bill. At that time, the polls showed that global warming was either the No. 1 or No. 2 concern in America. That has all changed. A FOX News poll found just the other day that 97 percent of Americans don't care about global warming when they stack it up against terrorism, immigration, health care, and the economy. Even an ABC News/Washington Post poll from last November found that the number of Americans who believe climate change is a serious problem is on the decline. According to the Gallup poll—they have a big one every March—the Gallup poll in March of 2015 had global warming coming in dead last of environmental issues that people are concerned about. George Mason University did a poll of 4,000 TV meteorologists, and it also dispelled the President's talking point that there is 97-percent consensus among scientists that humans are driving climate change. The survey found that roughly one out of three meteorologists do not believe man is the primary cause—if, in fact, it is happening.

Overall, neither the American people nor Congress supports the President's detrimental climate change agenda and his attempt to bolster his personal legacy with empty promises.

Let me wind up and say that we welcome the international community to come over here, but with regard to the Paris Climate Agreement, nothing is going to happen.

I wish to mention a couple other things. Many countries quickly jumped on the global warming bandwagon that the United Nations was trying to sell to the world and instill an obligation to impose associated restrictions. Australia was one of the first countries to join in. They did this several years ago—until they realized what it cost, and then they came back and passed legislation taking themselves off of this so that they are no longer legally obligated to do anything about their emissions.

If you stop and think about China, every 10 days China is building a new coal-fired power plant. This is the country the president is using to justify his own climate agenda while convincing the American people China is making similar contributions to reducing greenhouse gases. The problem with this is that China admits they are going to continue to build coal-fired plants and increase emissions until the year 2030 and then they will consider reducing their emissions. We know it is not going to happen.

Lastly, I remember when Lisa Jackson was appointed by President Obama. She was his first appointment as Administrator of the EPA. I remember talking to her in a public meeting live on TV, and I asked her the question: Let's assume that one of these pieces of legislation passes on cap and trade or that through regulation they are able to do it. Is that going to have the effect of reducing overall emissions worldwide?

She said: No, because this isn't where the problem is. The problem is in China; it is in India; it is in Mexico.

In fact, you can actually say this could have the effect of increasing emissions because as we chase our manufacturing base overseas, it may go to countries like China that have lower environmental standards and will ultimately increase emissions, not decrease.

So the President's international climate commitment is not going to happen. I want to make sure people are aware of that. We wouldn't want them coming over here under the impression that something is going to happen when it is not.

EXTENSION OF MORNING BUSINESS

Mr. INHOFE. Mr. President, I ask unanimous consent that morning business be extended until 12:30 p.m.

The PRESIDING OFFICER. Without objection, it is so ordered.

ORDER FOR RECESS

Mr. INHOFE. Mr. President, I ask unanimous consent that the Senate recess from 12:30 p.m. to 2:15 p.m.

The PRESIDING OFFICER. Without objection, it is so ordered.

FAA REAUTHORIZATION BILL

Mr. INHOFE. Mr. President, I would yield the floor, but I don't see anyone else here.

I would like to comment on the FAA reauthorization bill. I had a couple of amendments to it, and I want to mention that both of my amendments have now been accepted. I feel very good about that. I think we are currently considering a bill that is very necessary to go ahead and get passed.

I again commend Senator THUNE and Senator NELSON for working yesterday to get through a number of important amendments that were approved by the Senate. Included in the group was an amendment I offered that would direct the FAA to establish rules to allow critical infrastructure owners and operators to use unmanned aircraft systems to carry out federally mandated patrols and to perform emergency response and preparation activities. This is one I feel very strongly about because there is a lot of controversy around drones, but we do know there are some things that have to be done—pipelines, for example. It is just as easy for a drone to do it, and it can be done in all kinds of weather.

This amendment would apply to energy infrastructure, such as oil and gas and renewable electric energy. It would apply to power utilities and telecommunications networks. It would apply to roads and bridges and water supply systems operators.

This amendment provides needed congressional direction to the FAA where there is a clear and articulable need, and I am glad it was accepted yesterday. I thank Senators BOOKER, HEITKAMP, WHITEHOUSE, MORAN, and KING for cosponsoring this amendment with me.

I want to turn to a provision that is in the base text of the FAA bill that is of particular importance to Oklahoma but impacts the entire aviation community—the commercial, military, and general aviators—and that is because it impacts air traffic controllers.

The FAA bill, which is the bill we are considering right now, includes a provision to encourage the hiring and retention of high-quality air traffic controller instructors. This is particularly important to me because the FAA Academy, which is where all the air traffic controllers are trained, is located in Oklahoma City. These instructors, who are required to have prior experience as air traffic controllers, are discouraged from working full time due to existing government regulations because they are former air traffic controllers. Without full-time instructors, we need four times as many part-time instructors to provide the needed instruction time to train for the next generation of controllers to manage the air traffic at our control towers, so that means the FAA must bear four times the cost of training new instructors. I am glad this bill will remove the government regulations that discourage full-time instructors. I thank my colleagues for working with me to address this problem.

Another one—and this is very significant. This is volunteer pilot protection. Last week I offered an amendment for consideration that supports volunteer pilots. This is a Good Samaritan law for pilots. Across the country, there are a lot of volunteer pilots. I myself have done this. I have been an active commercial pilot for 60 years. I can remember several times—once going down to an island just north of Caracas, Venezuela, that had been wiped out by a hurricane. I found 10 pilots to take down with me, medical supplies, food, and all of that.

During that time, if something had happened, even though he was a Good Samaritan—he was doing it at his own expense—he could have been sued for any number of exposures that are out there.

People are generous with their time and provide at no cost air transportation to someone in need of specialized medical treatment. We have done that before too. This amendment would provide those volunteer pilots limited liability protection as long as they follow appropriate procedures, as long as they have the required flight experience and maintain insurance. My amendment would not eliminate liability but would limit it in certain circumstances. Furthermore, volunteer pilots who do not meet all requirements or who are guilty of gross negligence or intentional misconduct don't have any protections. Furthermore, the pilots are required to maintain liability insurance to qualify for the protection.

In the 1997 Volunteer Protection Act, Congress recognized that the willingness of volunteers to offer their services is deterred by a potential for liability actions against them. I think that makes common sense. I think we all understand that. This amendment remains true to congressional intent and removes a disincentive that keeps pilots from volunteering to fly financially needy medical patients, humanitarian and charitable efforts, or other flights of compassion to save lives and to provide great benefit to the public.

Pilots are not going to get more reckless or choose to act more dangerously because they have liability protection. Pilots are already at risk, and they are a risk-adverse group because every time they fly, they take their own life in their hands—regardless of why they are flying. These pilots are acting out of the goodness of their hearts and willingness to help.

Fortunately, accidents are infrequent, and anecdotally I am told that in the past 10 to 15 years, there have been perhaps five or six lawsuits involving volunteer pilots and volunteer pilot organizations. So the problem isn't that that is actually going to happen, but it is the fact that there is a deterrent there to discourage people from doing what they want to do, what a Good Samaritan does. The volunteer pilot organizations that work to coordinate volunteer pilots do not need to maintain databases of lawsuits and the results of lawsuits precisely because they are so infrequent. If there were a lot of accidents and resulting law suits, I think it is fair to say the FAA, NTSB, and volunteer pilot organizations themselves would be investigating whether volunteer pilot activity was a safe activity to begin with.

The larger concern for volunteer pilot organizations is that pilots will not volunteer for fear of being involved in a lawsuit, which would then prevent a needy service from being provided. So it is more about what the lawyers say the potential could be, and that has a direct impact on recruitment for volunteer pilots. Looking ahead, if a pilot were ever successfully sued and his or her assets were at risk, it would be too late to act to prevent a mass exodus of volunteer pilots.

This amendment is about making sure there continues to be volunteers who are willing to provide much-needed assistance. The amendment is not agreed to yet, but it recognizes the value of volunteer pilots and their contribution to the public good. I urge my colleagues to be supportive of this effort.

In conclusion, I thank Senator THUNE for his leadership, as well as Senator NELSON, for bringing this bill to the floor. I look forward to a robust amendment process.

In fact, I encourage anyone who has an amendment to come down, present his amendment, and talk about it. One of the problems we had during the highway bill was not being able to get Members to bring their amendments down, and it ended up delaying the bill for several weeks, which was totally unnecessary. I also encourage the House to take up and pass this bill.

With that, I yield the floor.

I suggest the absence of a quorum.

The PRESIDING OFFICER (Mr. FLAKE). The clerk will call the roll.

The legislative clerk proceeded to call the roll.

Ms. HIRONO. Mr. President, I ask unanimous consent that the order for the quorum call be rescinded.

The PRESIDING OFFICER. Without objection, it is so ordered.

(The remarks of Ms. HIRONO pertaining to the introduction of S. 2784 are printed in today's RECORD under ''Statements on Introduced Bills and Joint Resolutions.'')

Ms. HIRONO. I yield the floor.

The PRESIDING OFFICER. The assistant Democratic leader.

NATIONAL EQUAL PAY DAY

Mr. DURBIN. Mr. President, I thank the Senator from Hawaii for her leadership on this issue, and I will be yielding the floor to the lead sponsor of today's effort.

Our Nation is built on the belief that anyone who works hard should have the opportunity to achieve the American dream. Yet there are women across this country who are doing the same job as their male colleagues and being paid less. That is why today, on National Equal Pay Day, I stand with my fellow Senators to renew our efforts to ensure equal pay for equal work.

Fifty years after the passage of the Equal Pay Act, women still only earn 79 cents on every dollar paid to a man. This wage gap is even worse for women of color. African-American women who work full time make only 60 cents for every dollar paid to white males. Hispanic women earn only 55 cents.

Women are paid less even when factors such as age, education, occupation, and work hours are taken into consideration. In nearly every occupation in our country, women's median earnings are less than their male competitors. It is no different for women in my State of Illinois. The median earning for Illinois women is $10,000 less than the median earning for men. While African-American women in Illinois make slightly more than the national average, Hispanic women are paid even less—48 cents on the dollar. Think about that. Hispanic women are making less than half the earnings of their male coworkers who have similar levels of education and do the same job. This isn't right, and it isn't fair.

The gender wage gap translates into nearly $11,000 less in median earnings for women each year and over $430,000 in lost wages over a lifetime. Now that women are the sole or primary breadwinners in 4 out of 10 families, this means less money for food, housing, and education. It is no wonder the poverty rate for female heads of households continues to be disproportionately high.

This disparity follows women into their retirement since retirement savings and Social Security are based on income earned. In Illinois, the average weekly Social Security benefit for female retirees is 77.3 percent of the average for Illinois males per week. While female retirees receive less, on average, compared to men under Social Security, women tend to live longer and spend more on medical care, forcing them to do more with less.

What would happen if we closed this wage gap? Amazing things. Sixty percent of women would earn more if they were paid the same wages as their male counterparts, nearly two-thirds of single working mothers would receive a pay increase, and the poverty rate for women would be cut in half. It would mean fewer families in poverty and fewer families would need safety net programs. Equal pay for equal work would also mean women and their families would have more to spend on basic goods and services, and that is good for our economy.

So what do we have to do to close this wage gap? We can pass the Paycheck Fairness Act introduced by my colleague Senator MIKULSKI and my friend and colleague Senator MURRAY. Employers still maintain policies that punish employees who voluntarily share salary information with coworkers. This makes it nearly impossible for employees to find out whether they are being paid fairly.

This bill would provide women the same remedies for pay discrimination as people who are subjected to discrimination based on race and national origin. It would also close loopholes in current law that still permit retaliation against workers who disclose their wages.

The Paycheck Fairness Act would build on the success of the Lilly Ledbetter Fair Pay Act, which clarified the 180-day statute of limitations for filing a lawsuit on pay discrimination that resets with each affected paycheck. This was the first bill signed into law by President Obama in 2009. The Senator from Maryland remembers that day because President Obama signed the bill, took the first pen that he used to sign it, and handed it to the Senator from Maryland.

Ms. MIKULSKI. Yes.

Mr. DURBIN. I remember that because I stood there and thought: That is entirely appropriate that a Senator who has dedicated her life to this kind of fairness and equality for women at work would receive the first pen from the first bill signed into law by this new President.

My Republican colleagues: Why aren't you with us on this issue? Don't you agree that your daughter should be paid the same as your son for doing the same work? It is a basic issue of fairness. It shouldn't have anything to do with party labels, so we invite you to join us. This should not be a partisan issue at all. Certainly for women at work, it is not partisan. It is just a matter of fairness. I urge my colleagues to support this legislation.

I yield the floor.

The PRESIDING OFFICER. The Senator from Maryland.

Ms. MIKULSKI. Mr. President, I come to the floor to join my colleagues in calling for equal pay for equal work for women.

I just left the President of the United States. He is right up the street at the Sewall-Belmont House. This is the home of the National Woman's Party in which so much organizing and strategizing took place to get women the right to vote. The President is there to declare that building a national monument to commemorate the tremendous work that was involved in getting suffrage, under the Antiquities Act, and that is his right to create that.

It is not only the building we want to preserve. It is not only the records of the battle for suffrage that we want to preserve and be able to display. It is what it stands for: the fact that women are included fully in our society.

We had to fight every single day in every single way to be able to advance ourselves. Even when the men were in Philadelphia writing the Constitution, thinking great thoughts and doing great deeds, Abigail Adams was back in New England running the family farm, keeping the family together, and she wrote John a letter saying: Don't forget the ladies because if you do, we will ferment our own revolution.

In our country, we call revolutions social movements where ordinary people organize and mobilize to accomplish great deeds to move democracy forward. It took us over 150 years to get the right to vote in 1920. We are coming up on the anniversary of suffrage, but it is not only that we got the right to vote, it is what that right to vote means. We wanted to be able to participate fully in our society. We wanted to be able to exercise our voice in terms of choosing leaders who will choose the right policies. Along the way, we have been advocating those policies.

In 1963, working with the President, who was committed to civil rights, Lyndon Johnson, the equal pay for equal work act was passed as part of a great step forward in three major civil rights bills. We thought we had settled the issue, but, no, 50 years later we have only gained 19 cents—19 cents. At that rate, it will take us until 2058 to get equal pay for equal work. That is not the way it should be. We need to make sure we eliminate the barriers and impediments that allow this to keep happening.

When we women fight for equal pay, we are often sidelined, redlined, pinkslipped, harassed, or intimidated. We are often confronted with: Why are you doing this? And then we are often harassed for doing it.

People may say: Senator BARB, didn't you take care of that when you passed the Lilly Ledbetter Fair Pay Act in 2009. The Lilly Ledbetter legislation, of which I am so proud, has kept the courthouse doors open by changing the statute of limitations, but now we need to pass legislation to end the loopholes that are often strangleholds on women getting equal pay in the first place.

I have legislation pending called the Paycheck Fairness Act. That Paycheck Fairness Act does three things. First of all, it stops retaliation for even sharing pay information in the workplace. Right now, if you ask, you are forbidden to tell, or get fired. If you ask, you are forbidden to tell, or get fired, or if you are a man working side by side with a woman and you want her to know that as a nurse, as a computer software engineer, what your pay is, and there is an opportunity, she could get fired and he could get fired. This is wrong.

We also want to stop employers from using any reason to pay women less,

such as he has a better education. Use the same education for the same job. We are willing to compete. We are out there. More women are in college. More women are Phi Beta Kappas. More women are getting ahead.

Then we heard: He has to be paid more because he is the breadwinner. What are we, crumbs? If he wins the bread, we want to be winners too. Very often it is women in the marketplace who are now either the sole breadwinner or also a significant breadwinner, and the men or the partner they love says: We want you to get equal pay for equal work as well.

So we don't want to hear: He is the breadwinner. We don't want the crumbs anymore. We want to be paid equal pay for equal work. We also want punitive damages for women who are discriminated against. Backpay alone is not a strong enough deterrent.

I want my colleagues on the other side of the aisle to know they have ideas. One of my colleagues spoke on the floor earlier today. I have such admiration for her. She is a fine Senator, and she agrees with the thrust of the press conference we had. We have faced this in the past, where we share the same goal, but we differ on means. My means, I must say, are the way forward. These means are the way forward because they solve the problems.

Of course, we will sit down and talk, have conversations, and see what we can do, but at the end of the day, we face this issue: It costs more to be a woman. Women pay more for everything. Women pay more in medical costs than men, given the same age and the same health status. Women pay a significant amount of money for childcare. Guess what. Women get charged more for dry cleaning. We have to pay more for our blouses being cleaned than men to have their shirts washed and pressed.

We are tired of being taken to the cleaners. We want equal pay for equal work. Whether we are U.S. Senators, whether we are nurses or executive assistants or others, we want equal pay for equal work.

We stand with the women's soccer team. They kick the ball around, but we are tired of being kicked around. So give us equal pay for equal work. Pass the Mikulski coeffort to get equal pay for equal work. I think we can then move forward. Why should our women go to the Olympics winning the gold, when they don't get paid the gold? So it is time for a change, time for a difference, and time for something we can do.

I yield the floor.

The PRESIDING OFFICER. The Senator from Massachusetts.

Ms. WARREN. Mr. President, I wish to say a special thank-you to Senator MIKULSKI for her terrific leadership on all of this.

Today is Equal Pay Day. By the sound of it, one would think it is some sort of historic holiday commemorating the anniversary of a landmark day that our country guaranteed equal pay for women, but that is not what it is about—not even close—because in the year 2016, at a time when we have self-driving cars and computers that fit on our wrists, women still make only 79 cents for every $1 a man makes, and we are still standing in the U.S. Congress debating whether a woman should get fired for asking what the guy down the hall makes for doing exactly the same job.

So why do we recognize April 12 as Equal Pay Day? It took the average woman working from January 1 of last year until today to make as much as the average man made in 2015. That means she had to work an extra 3½ months in order to make what a man made last year, and that means, once again, she starts the year in a hole.

Equal Pay Day isn't a national day of celebration. It is a national day of embarrassment.

We hear a lot about how the economy is improving, and there is good news to point to. Unemployment is under 5 percent, GDP continues to rise, the stock market is up, but too many families across the country feel like the game is rigged against them. They work hard, they play by the rules, and they still struggle to make ends meet. Here is the thing: They are right. The game is rigged against working families, and pay discrimination is part of that.

For women, it has been a one-two punch in the gut. For decades, wages have flattened out for American workers, and for women the wage gap just compounds that problem. If we closed both the productivity wage gap and the gender wage gap from 1979 to 2014, women's median hourly wages would be 70 percent higher today.

Even though we have solid data, the Republicans in Washington refuse to act. Heck, they would rather spend their time trying to defund Planned Parenthood health clinics and cut women's access to birth control than do anything—anything at all—to give working women a raise.

So, yes, the game is rigged when women earn less than men for doing the same work. It is rigged when women can be fired for asking how much the guy down the hall makes for doing the same job. It is rigged when women have to choose between healthy pregnancies and getting their paychecks. It is rigged when women can get fired just for requesting a regular work schedule to go back to school or get a second job. It is rigged when women earn less their whole lives so that their Social Security checks are smaller and their student loans are bigger. The game is rigged against women and families, and it has to stop.

I am standing with my colleagues today. I am standing with women and friends of women all over the country to demand equal pay for equal work. It is 2016—not 1916—and it is long past time to eliminate gender discrimination in the workforce. This is about economics, but it is also about our values. It is about who we are as a people and what kind of country we are trying to build for both our sons and our daughters.

Today, we recognize Equal Pay Day, and we fight today because we don't want to have to recognize it year after year after year in the future.

I thank the Presiding Officer and yield the floor.

The PRESIDING OFFICER. The Senator from Wisconsin.

Ms. BALDWIN. Mr. President, I come to the floor today on Equal Pay Day to stand up and speak out about an issue that impacts women and families in every State across this great country. I rise to give voice to the fact that there is paycheck inequality for working women across this country, and it is time that we do something about it.

Working women make up over 50 percent of our workforce, and they are working harder than ever to get ahead. But far too many are barely getting by, and far too many women and children are living in poverty. In Wisconsin, the economy is lagging behind other States. Household incomes are falling and communities across our State are experiencing job loss and layoffs. In fact, recent reports have concluded that poverty in Wisconsin has reached alarming levels.

The least we can do is to level the playing field and give women a fair shot at getting ahead, because they deserve equal pay for equal work. So I am proud to join several of my colleagues today to deliver a call for action to pass the Paycheck Fairness Act.

I would like to share the story of Shannon. Shannon is a single mother of three from Two Rivers, WI. She is working hard to support her family. In order to help her family get ahead, Shannon has continued her education to advance her career as an interpreter in a school. But she faces the grim reality that women teachers are often paid less than their male counterparts.

It is not just teaching. When we look at men and women working equivalent jobs across different industries, women are making less than their male counterparts across the country. This paycheck inequality is holding women back, and it is holding our entire economy back. Closing the gender pay gap would give Shannon and her family more financial freedom to better deal with the daily issues that working moms face. Whether it is an unexpected car problem or children outgrowing their clothing and their shoes, whether it is help to pay off student loan debt or the ability to save a little bit of their paycheck to ensure that their kids have a chance for a higher education, working families across America need paycheck fairness to ensure they have a fair shot at getting ahead.

Millions of American women get up every day to work hard for that middle class dream—a good job that pays the bills, health care coverage you can rely on, a home that you can call your own,

and a secure retirement. But instead, gender discrimination in pay is holding women and their families back.

Let's pass the Paycheck Fairness Act and strengthen families and our economy by providing working women with the tools they need to close the gender pay gap. By taking action, we will show the American people our commitment to building an economy that works for everyone, not just those at the top.

Before I yield, I wish to take a moment to thank and recognize the senior Senator from Maryland, BARBARA MIKULSKI, for her tremendous leadership on this issue. It has been an honor to serve alongside such a champion for women and families, and I am looking forward to continuing this particular fight together and winning this fight together.

I thank the Presiding Officer, and I yield back.

The PRESIDING OFFICER. The Senator from Maryland.

Mr. CARDIN. Mr. President, let me first thank Senator BALDWIN for her comments. I agree with her statement, and I am also grateful for the leadership of the senior Senator from Maryland and the leadership Senator MIKULSKI has shown on gender issues. The paycheck fairness legislation is just a recent example of her extraordinary leadership throughout her career on gender equity issues.

I particularly wanted to be here not only to say how proud I am of Senator MIKULSKI but also to state that the Paycheck Fairness Act is not about women. It is about families, about our economy, and about fairness. It is about American values. It affects everyone in America. We all should be personally engaged in making sure paycheck fairness becomes law. To this Senator, it is outrageous that a woman has to work 5 days at the same work that a man works in 4 days for the same pay. That is inherently unfair and needs to be corrected. The Paycheck Fairness Act would do that.

I note that today is Equal Pay Day, which basically reflects how long a woman has to work—basically without getting a paycheck—in order to get paid for the same amount of work as a man does in a year.

As the Presiding Officer knows, as a member of the Senate Foreign Relations Committee, this Senator has the privilege of being the ranking member on the committee. One thing we look at is how other countries deal with basic rights. One of those rights is how they treat their women. One of the barometers for determining how well a country does is how well they are treating women. If they treat women well, they are generally doing much better.

The truth of the matter is, in many cases women do better in investments than men. They invest in children, families, and economic growth, whereas men are more likely to invest in war. We see much more economic growth where women are treated fairly in other countries.

It is an important value for America. We have promoted gender equity issues in our foreign policy, our development assistance, and in our diplomacy. But for us to be effective globally, we first need to take care of our issues at home.

The Paycheck Fairness Act would do exactly that. It would deal with the issue of fairness in the workplace in America. We are not where we need to be. Everybody talks about the fact that women aren't paid as much; and that is true. But if you happen to be a minority, it is even worse. We need to take care of this for the sake of the American economy, for our values, et cetera.

This Senator has introduced legislation that would allow us to pick up the ratification of the equal rights amendment so that we could have in the Constitution of the United States fairness with no gender discrimination. This would be a lot easier. We only need three States in order to ratify it and to become a part of our Constitution. The late Justice Scalia noted accurately that there is nothing in the Constitution that requires discrimination against women; but there is nothing in the Constitution that protects discrimination based upon gender. We can do a better job with fundamental changes.

What we can do in this Congress now is to take on paycheck fairness. That can get done in this Congress and can be effective this year and can be the legacy of this Congress. I would urge my colleagues: Let's do this. We all talk about gender equity issues. With the bill that is pending on paycheck fairness, we can act and we can act now. We can make a major change in American policy that will not only be fair to women but will be fair to all Americans and allow our economy to grow.

With that, Mr. President, I yield the floor.

The PRESIDING OFFICER. The Senator from New Hampshire.

Mrs. SHAHEEN. Mr. President, I am pleased to join my esteemed colleague from Maryland, who is here with a number of other people to talk about the need to pass the Paycheck Fairness Act to make sure that we end once and for all paycheck discrimination against women.

I think the American people believe very strongly in fairness, equal treatment, and a level playing field for everyone, because these are core American values. I think that is why people find it shocking and unacceptable that women in the United States continue to be denied equal pay for equal work.

More than half a century ago, President Kennedy signed into law the Equal Pay Act, yet today wage discrimination continues as an ugly reality across our Nation. Women earn only about 79 cents for every $1 men earn. It is a disparity that exists at all levels of education, in nearly every industry, across hundreds of occupations, from elite professionals to everyday blue-collar workers. There are complex factors that contribute to the gender pay gap, but according to a new study by the Joint Economic Committee, as much as 40 percent of the pay gap can be attributed to outright discrimination.

Probably, most people who have watched TV in the last couple of weeks have seen one particularly egregious example that has been cited, and that is the U.S. women's soccer team, whose members make only about one-quarter of what their male counterparts make. Both the women's and men's soccer teams work for the same employer, the U.S. Soccer Federation. The women's soccer team generates significantly more revenue than the men's team. It has won the Women's World Cup three times, including last year. It has been the Olympic champion four times and has been the world's top-ranked team for nearly two decades. Yet they are paid a quarter of what men make. It is hard to understand that under any circumstances except outright discrimination.

As outrageous as that case is, the wage gap is even more damaging to the 40 percent of American women who are sole or primary breadwinners in households with children, to the women who are waitresses and certified nursing assistants, and to secretaries who work at jobs where equal pay is not only about fairness but it is also about providing adequately for their families. It is about being able to afford Internet access so their kids can do their homework. It is about paying for their child's inhaler. There is a lot that women breadwinners can do with that extra $10,800 that women would earn on average if it were not for pay discrimination.

I also serve as the ranking member on the Senate's Small Business and Entrepreneurship Committee, and I have seen how similar gender gaps confront women-owned small businesses. Just as women on average are paid 21 percent less than men, a recent Commerce Department study found that the odds of businesses owned by women winning a Federal contract are about 21 percent lower than for otherwise similar companies—for male-owned enterprises.

In workplaces across America, women are speaking out more and more and are demanding equal pay. It is time for Congress to do our job as well. I know from experience that legislation can make a difference. As Governor, I signed a law to prohibit gender-based pay discrimination in New Hampshire and to require equal pay for equal work. We haven't made as much progress as I would like at this point, but at the time we signed that law, women in New Hampshire were making 69 percent of their male colleagues' wages. Today, they are making 76 percent or a little less than the national average.

Back in the early 1980s, I served on New Hampshire's Commission on the

Status of Women. I chaired a report on employment in New Hampshire. At that time, women were only making 59 cents for every dollar a man earned. The conclusion of that report was that this has an impact not just on women, but it is an impact on, of course, their whole family. It is something that their children, their husbands, and their entire family is affected by. If we can close this pay gap for women, it helps not only the women who make up two-thirds of minimum wage workers, but it helps their families. It helps pull their kids out of poverty.

We need to do more at the Federal level, and that is why I strongly support the Paycheck Fairness Act. This legislation would empower women to negotiate for equal pay, it would close loopholes that courts created in the laws that are already in place, and it would create strong incentives for employers to obey these laws.

This legislation is about basic fairness. It is about equal treatment. It is about creating a level playing field in the workplace for our daughters and our granddaughters and for every American. It also is about making sure that their spouses, their children, and their relatives benefit from making sure that they have the same access to equal pay as the men in the workplace do.

So I urge my colleagues to support the Paycheck Fairness Act. Sixteen years into the 20th century is way past time to make good on our promise of equal pay for equal work in the United States.

I yield the floor.

I suggest the absence of a quorum.

The PRESIDING OFFICER. The clerk will call the roll.

The bill clerk proceeded to call the roll.

Mrs. MURRAY. Mr. President, I ask unanimous consent that the order for the quorum call be rescinded.

The PRESIDING OFFICER. Without objection, it is so ordered.

Mrs. MURRAY. Mr. President, we are 103 days into 2016, and on Equal Pay Day, that number takes on significant, unfortunate meaning. Women have to work 103 extra days to match what men earned last year. That is unacceptable. Workers should be paid fairly for the work they do, regardless of their gender. Closing the wage gap would help grow our economy from the middle out, not from the top down.

I am glad to be here today with my colleagues to recognize Equal Pay Day, to stand up on behalf of women across the country, and to renew our call to put an end to the wage gap. Last year, I heard from a woman named Sandy from Seattle. Right out of college, Sandy got a job at a local nonprofit. After a couple of months of work, she was just chatting with a male colleague and found out he was offered 20 percent more in salary for doing the exact same job. She thought there had been some mistake. But when she asked about it, her boss told her they could not offer her a pay raise because of budget constraints.

Sandy's story is so common. On average, women today make 79 cents for every dollar a man makes. The pay gap is even wider for women of color. That is not just unfair to women; it hurts our families, and it hurts our economy. Today, 60 percent of working families rely on wages from two earners—60 percent.

More than ever, women are likely to be the primary breadwinner for their family. Women's success in today's economy is critical to families' economic security and to our Nation's economy as a whole. We need to pass the Paycheck Fairness Act to help close the wage gap. I so appreciate Senator MIKULSKI's tremendous leadership and passion on this issue. Her Paycheck Fairness Act would make it unlawful for employers to retaliate against workers for discussing pay. It does so in a commonsense way that reflects today's reality in the workplace.

It would empower women to negotiate for equal pay. It would close significant loopholes in the Equal Pay Act. It would create strong incentives for employers to provide equal pay. Passing the Paycheck Fairness Act is a critical stop on the long list of things we can do to build our economy from the middle out and make sure our country works for all families, not just the wealthiest few.

No matter where they live, no matter their background, no matter what career they choose, on average, women earn less than their male colleagues, even women soccer players on the U.S. Women's National Team. The Women's National Team has won three World Cup titles. They have won four Olympic Gold Medals. But despite all of their success, they are not immune from the pervasive wage gap. In fact, on average as players, they earn four times less than their male counterparts. It is not just about the men. Think about the message the wage gap sends to young girls who see women valued less than men for doing the same work and, in the case of the women's soccer team, doing it so much better.

I am glad members of the women's national soccer team are taking a stand to gain equal pay for the work they do. In the Senate, we are going to keep championing the Paycheck Fairness Act to make equal pay a reality for women across the country. I look forward to an Equal Pay Day in the future that we can actually celebrate, once we finally achieve pay equity regardless of gender.

Until then, my colleagues and I are going to keep fighting on behalf of all women and families until they get the equal pay they have earned.

I yield the floor.

The PRESIDING OFFICER. The Senator from Minnesota.

Ms. KLOBUCHAR. Mr. President, I am very pleased to be here with both of the Senators from Washington, one of the few States that have two Senators who are women. It is great to be here with both of them. I would also like to thank Senator BARBARA MIKULSKI for leading the effort for the Paycheck Fairness Act. She is the longest serving woman in congressional history. She has opened many doors for all of us.

When she first wrote her book about women in the Senate, it was called ''Nine and Counting.'' Well, today, our count is even higher, as there are 20 women in the Senate. She was the first woman—BARBARA MIKULSKI was—to chair the Senate Appropriations Committee. Because of her groundbreaking work in this Congress, 10 committees have either a chair or a ranking member who is a woman.

Today, as the presiding officer knows, President Obama formally dedicated a new national monument to honor women's suffrage and equal rights. I am a cosponsor of the bill to have the Sewall-Belmont House named as a national historical site. The Belmont-Paul Women's Equality National Monument is named after Alice Paul and Alva Belmont, two leaders of the National Woman's Party. It will house an extensive collection that documents the history of the movement for women's equality.

What has happened in the last decade or so? Well, in 2009, we passed the Lilly Ledbetter Fair Pay Act to make sure that workers who face pay discrimination based on gender, race, age, religion, disability, or national origin have access to the courts. In doing so, we restored the original intent of the Civil Rights Act and the Equal Pay Act.

Now it is time to prevent that pay discrimination from happening in the first place. We all know women have made big strides in our country and in our economy over the last few decades. Women are getting advanced degrees. They are starting new businesses. The Fortune 500 now has 20 women CEOs. That does not sound like much, but when you look back just a few decades, there were not any.

Yet, despite all of the progress we have made and all of the gaps that we are starting to close, women in this country still earn only around 80 cents for every dollar a man makes. When two-thirds of today's families rely all or in part on the mother's income—and in about 40 percent of families the mother is, in fact, the main bread winner—this pay gap has real consequences for American families and our entire economy.

I wanted to focus on one issue at the end here, and that is retirement savings, which are maybe not the first things you would think about when you think about a pay gap. It is probably not what our young pages think about. They don't think: Well, what about what the retirement gap? But, in fact, it is something everyone should be thinking about.

When I was the Senate chair of the Joint Economic Committee, I released

a report showing how equal pay affects women's financial security. The report showed that lower wages impact women all throughout their working lives, and these lower lifetime earnings translate to less security in retirement.

According to the JEC report, the average annual income for women age 65 and older, including pensions, private savings, and Social Security, is $11,000 less than it is for men. Social Security retirement benefits are based on a person's lifetime earnings. The average monthly benefit for female retirees is 77 percent less. The same thing goes for pensions. A woman's pension income is 53 percent that of men. Women also receive smaller pension checks from Federal, State, and local government pension plans.

Finally, a recent study showed that the average woman was able to save less than half of what the average man was able to save in an IRA. So what we have here is, first of all, women are making less to begin with. That is what we are talking about today. That means they save less and have less money in Social Security. Secondly, they live longer. That is great, but it means they are going to have less money. Then, finally, we have the fact that they are often a single breadwinner in 40 percent of households. The fact that they take time off often to have children—that is the third factor that leads to less savings.

What we should be doing is looking at how we can address the savings gap. There are ways we can address it by making it easier to save and making it easier to set up 401(k)s and IRAs and looking at the millennials and how we can respond to what is an increasingly different economy for young people. But we also can simply make sure women make the same amount as men when they do the same job.

It was the late Paul Wellstone of my State who famously said: ''We all do better when we all do better.'' I still believe that is true today and so do my colleagues who join me. We need to be focused on how we can help more women share in our economic growth and share in the American dream. I ask my colleagues to support and pass the Paycheck Fairness Act.

I thank the Chair, and I yield the floor.

The PRESIDING OFFICER. The Senator from Washington.

Ms. CANTWELL. Mr. President, I ask unanimous consent to speak for up to 5 minutes.

The PRESIDING OFFICER. Without objection, it is so ordered.

Ms. CANTWELL. Mr. President, I come to the floor with my colleague from Minnesota and my colleague Senator MURRAY from Washington, along with our other colleagues who have already been here to speak about the important issue of paycheck fairness.

It is truly shameful this kind of discrimination still exists. We have heard the statistics about what the pay gap means, but literally over someone's career—over a 40-year career—a woman in my state could lose as much as $500,000 in income. An Asian American woman could lose $700,000 over a 40-year career and a Native American woman could lose as much as $900,000 over the same time period. So, yes, when women are discriminated against, it costs them and their families.

The gender pay gap issue is a family issue. Women are breadwinners too. Women today still earn only 79 cents for every $1 paid to a man. This means less food on the table, less money to buy clothing for their children, or less money for insurance premiums. What we need to do is make sure we are listening to these stories and taking action.

Here is a story from one of my constituents, Adrianna from Olympia. She said:

> In 1993, when I was in college, I was working at a restaurant. . . . This job enabled me to pay my way through school with no student loans. A young man several years younger than me with less experience was making a larger wage and I found out about it. I politely confronted the owner as to why this fellow was making more money than me. The owner was caught off guard and could give me no reason whatsoever. . . . The thing that really stuck in my craw was that the young man told me he only worked there so he could get money to gamble. . . . Of course, I had no other choice and worked 7 days a week for 5 years to get a Bachelor's degree.

Unfortunately, this story isn't unique. Wage discrimination affects a wide range of professional fields, including realtors, educators, administrators, and even CEOs. For example, male surgeons earn 37 percent more per week than their female counterparts. In real terms, that female surgeon earns $756 less per week than her male colleagues, and this adds up. And this does not apply only to high-paying, male-dominated careers: Women are 94.6 percent of all secretaries and administrative assistants. Yet they still earn only 84 percent of what their male counterparts earn per week.

My colleague Senator MURRAY brought up the U.S. Women's National Soccer Team that helped bring this issue to the forefront. Despite being more successful and attracting more viewers than the men's team, the U.S. women's soccer team still is paid 25 percent less than the men's team.

In fact, one of my constituents last week—an 11-year-old girl soccer player from Washington—asked: If I keep playing sports, am I going to get fair pay?

Young women are asking us to do our job and make sure we pass legislation that helps. That is why we commend Senator MIKULSKI for introducing the Paycheck Fairness Act and for her tireless efforts on this legislation. I am proud to be one of its cosponsors.

The Paycheck Fairness Act requires that pay be job related and not discriminate based on gender. It would strengthen the penalties for discrimination and give women the tools they need to identify and confront unfair treatment. It would make sure we recognize women are breadwinners, too, and that they get the equal pay they deserve.

That is why my colleagues are coming to the floor today to say we should pass this bill this year. We don't need to commemorate another day of what women have done for our country; women need to receive equal pay for the equal work they are doing. I thank my colleagues for helping to bring attention to this issue, and I encourage the passage of this legislation.

With that, Mr. President, I yield the floor.

RECESS

The PRESIDING OFFICER. Under the previous order, the Senate stands in recess until 2:15 p.m.

Thereupon, the Senate, at 12:35 p.m., recessed until 2:15 p.m. and reassembled when called to order by the Presiding Officer (Mr. PORTMAN).

CONCLUSION OF MORNING BUSINESS

The PRESIDING OFFICER. Morning business is closed.

AMERICA'S SMALL BUSINESS TAX RELIEF ACT OF 2015

The PRESIDING OFFICER. Under the previous order, the Senate will resume consideration of H.R. 636, which the clerk will report.

The bill clerk read as follows:

> A bill (H.R. 636) to amend the Internal Revenue Code of 1986 to permanently extend increased expensing limitations, and for other purposes.

Pending:

> Thune/Nelson amendment No. 3464, in the nature of a substitute.
>
> Thune (for Gardner) amendment No. 3460 (to amendment No. 3464), to require the FAA Administrator to consider the operational history of a person before authorizing the person to operate certain unmanned aircraft systems.
>
> Cantwell amendment No. 3490 (to amendment No. 3464), to extend protections against physical assault to air carrier customer service representatives.

The PRESIDING OFFICER. The Senator from Maine.

Ms. COLLINS. Mr. President, I suggest the absence of a quorum.

The PRESIDING OFFICER. The clerk will call the roll.

The bill clerk proceeded to call the roll.

Mrs. GILLIBRAND. Mr. President, I ask unanimous consent that the order for the quorum call be rescinded.

The PRESIDING OFFICER. Without objection, it is so ordered.

NATIONAL EQUAL PAY DAY

Mrs. GILLIBRAND. Mr. President, after another whole year, a very unfortunate milestone has once again arrived. Today is Equal Pay Day. This is

the day in 2016 when the average working woman, after all last year and the first 3 months of this year, finally earns as much money as the average man did only during last year. So if we started the clock in 2015, the average woman had to work an extra 103 days to earn the same amount of money as a man.

Imagine two people were both hired at a company. They both work hard. They have the same amount of experience and the same qualifications, but they have one very important difference: One of those workers is a man, and the other is a woman. As a result, they will not be paid the same.

Right now, on average, for every dollar a man makes, a woman makes only 79 cents. That is the average for all women. Many other groups of women have it even worse. Working mothers earn only 75 cents for every dollar working fathers make. African-American women earn just 60 cents for every dollar a white male makes. And our Latina women have it the worst. They earn just 55 cents for every dollar a white male makes. The United States of America still doesn't pay its men and women equally for the same exact work, and it is unacceptable that in the year 2016 we are still fighting to fix this basic problem.

Think about how this pay gap affects our families. More women than ever are earning their family's paycheck. Four out of every ten mothers are either the primary breadwinner of the family or the only breadwinner in their family. Because of this pay gap, their children are getting shortchanged.

We need equal pay for equal work. It shouldn't matter if you are a nurse or a lawyer or even one of the best female athletes in the world. Just a couple weeks ago, the women's national soccer team filed a Federal lawsuit against the U.S. Soccer Federation over wage discrimination. I strongly support these women, and they are doing the right thing. They are raising their voices about a serious injustice, and I urge all of my colleagues in this Chamber to listen to these women—listen to the women in their States, and listen to the women in this country that deserve equal pay for equal work. The women on our national soccer team are some of the most successful American athletes alive, and even they have to deal with this pay gap.

It is shameful and inexcusable that women are still paid less than men for the exact same work in this country. I urge everyone here to support the Paycheck Fairness Act. Let's get with the times. Let's finally make it illegal to pay our women less than our men for the very same work.

I yield the floor.

I suggest the absence of a quorum.

The PRESIDING OFFICER. The clerk will call the roll.

The senior assistant legislative clerk proceeded to call the roll.

Mr. THUNE. Mr. President, I ask unanimous consent that the order for the quorum call be rescinded.

The PRESIDING OFFICER. Without objection, it is so ordered.

Mr. THUNE. Mr. President, I rise today to address the Senate's ongoing effort to reauthorize the Federal Aviation Administration. The bill before us today was described in the Washington Post as ''one of the most passenger-friendly FAA reauthorization bills in a generation'' thanks to its robust new consumer protections. But even more importantly, this bill includes strong new security measures that address the threat ISIS and other terrorist groups pose to airline passengers.

In the wake of the Brussels attacks, travelers are understandably nervous about the threats they face when flying, especially given terrorists' preference for targeting transportation. Here in the Senate, we are doing everything we can to address that threat. I am proud that this bill includes new protections to prevent an attack like the one in Brussels from happening at a U.S. airport.

The FAA Reauthorization Act includes the most comprehensive set of aviation security reforms since President Obama first took office. To prevent airport insiders from helping terrorists, we have included measures to improve scrutiny of individuals applying to work in secure airport areas. This is especially critical as many experts believe the bombing of a Russian passenger jet leaving Egypt had help from an aviation insider.

We have also included provisions to better safeguard public areas outside security in airports and to help reduce passenger backups. These reforms could help prevent a future attack like the one in the Brussels terminal last month, which targeted a crowd of passengers in an area where the attackers didn't even need tickets.

Because staying ahead of threats needs to be a priority, we also included additional cyber security provisions and added anti-terrorism security features for new aircraft.

The security reforms in this legislation were actually developed months ago as followups to congressional oversight, independent evaluations of agencies, and the study of existing problems. But these reforms have gained new urgency in the wake of recent attacks by ISIS. We need to constantly monitor and stay ahead of threats so that we can continue to ensure that our air transportation system is the safest in the world.

More than any other reason, I support the Federal Aviation Administration Reauthorization Act of 2016 because it will make the traveling public safer. For all of the many ways it improves our air transportation system, the provisions to keep Americans safe stand out as especially deserving of our support and as heightening the need to send this legislation on to the House.

I yield back.

I suggest the absence of a quorum.

The PRESIDING OFFICER. The clerk will call the roll.

The senior assistant legislative clerk proceeded to call the roll.

Mr. CORNYN. Mr. President, I ask unanimous consent that the order for the quorum call be rescinded.

The PRESIDING OFFICER (Mr. LANKFORD). Without objection, it is so ordered.

NATIONAL EQUAL PAY DAY

Mr. CORNYN. Mr. President, today is Equal Pay Day. I am proud of the fact that one of our Members on this side of the aisle, Senator DEB FISCHER, is taking the lead and pointing out that this is not a partisan issue. I know people find that hard to believe here in Washington, where everything seems like a partisan issue, but the fact is, both Republicans and Democrats and the unaffiliated believe that people who perform the same work ought to be compensated in the same way. So I am proud of the work Senator FISCHER is doing.

I just wanted to make note of the fact that this is Equal Pay Day. I know some of our colleagues across the aisle maybe have a different view and think they have a better way to deal with this, but it is purely a difference in tactics, not in terms of goals, which is equal pay for equal work.

NATIONAL CRIME VICTIMS' RIGHTS WEEK

Mr. President, yesterday I spoke about the fact that this is also Crime Victims' Week, and that is what I want to talk about now a little bit more.

There are a lot of people who come to Washington—big companies, people can hire lobbyists, lawyers, accountants, other experts—to try to make their case to Congress, but we don't have a crime victims' lobby per se. We have organizations—volunteer organizations, by and large—that try and provide a voice to the voiceless and people who need to be represented here, but the fact is, by listening to those victims of crime and to those who volunteer to help them here in the Nation's Capital, we can make a big difference in the lives of crime victims in this country.

I highlighted the Justice for Victims of Trafficking Act as an example of what we can accomplish when we get past the partisan talking points and instead focus on a common goal. I pointed out that legislation, which is the most—I think the major—the most significant human trafficking legislation passed in the last 25 years, actually broke important ground. It uses the penalties and the fines paid by people on the purchasing side of the sex slave trade to be able to fund the resources to help heal the victims, typically a girl the age of 12 to 14, somebody who has maybe run away from home, who thinks maybe they have fallen in love with somebody new, only to find themselves trapped in modern-day human slavery. We were able to pass that legislation by a vote of 99 to 0 in the Senate, and now it is the law of the land.

I mentioned yesterday that some of the provisions, including the hero program, which was designed to provide

incentives for returning veterans of the gulf war, Iraq, and Afghanistan—some of them bearing the wounds of those wars—to be able to use the skills they have acquired in the military to help go after child predators and other people who would take advantage of the most vulnerable in our society. But I wish to talk about another opportunity where I believe Congress can come together to rally behind victims and move legislation that could help save lives.

On the first day of December 2013, Kari Hunt Dunn brought her three young children to a hotel in Marshall, TX, a city east of Dallas near the border with Louisiana, to visit with her estranged husband. Sadly, this visit turned into tragedy. According to reports, Kari's estranged husband started to attack her and while he did, one of Kari's daughters did what her parents and family taught her to do in an emergency, which is to dial 911. She called for help repeatedly, but she didn't realize that, as in many hotels, first you need to dial 9 before you can dial out. So she kept dialing 911 to no avail, not recognizing that she needed to dial 9 to get an outside line. By the time help finally arrived, Kari was unresponsive and later died, leaving her three young children behind.

Obviously this is a terrible, heartwrenching story, and I wish I could say it was an isolated event, but it is made that much more tragic because the family will never know what the outcome might have been had that first 911 call actually made its way to the proper authorities.

Following her death, Kari's father Hank decided he had to do something to correct the problem so tragedies like this could hopefully become a thing of the past. This is where we have a role to play. I know some people might say: Well, there are a lot more important things for Congress to be doing than dealing with this issue, but this is something we can do. It is not partisan, and we should do it on an expedited basis.

So earlier this year, I joined with several of my colleagues, including the senior Senators from Nebraska and Minnesota, to introduce legislation called Kari's Law, a bipartisan bill that already has a companion in the House. This legislation builds on a law passed last year by the Texas legislature, and several other States have followed suit as well.

Before us we have a clearer, albeit a discrete, problem, and we have an obvious solution. This bill would ensure that people have the ability to directly call 911, even in hotels and office buildings, without having to dial an extra number. By making this simple change, we can ensure that children, like Kari's daughter, can make the call for help, to call for the assistance of law enforcement and emergency personnel to save valuable time that can make the difference between life and death and the prevention of another tragedy.

We should follow the example of States like Texas that have already done this. We could do this on a national basis. We know there are lives at stake, like Kari's, and I believe we have an obligation to act to keep tragedies like Kari's from happening again.

So as we continue to look for ways to better support victims of crime this week, I hope we will take another small step to help victims by advancing this legislation. In so many instances, they are what seem like small steps that can have tremendous ramifications.

I mentioned yesterday the reforms we have been able to do in terms of testing the rape kit backlog. It had been reported that as many as 400,000 untested rape kits are sitting in evidence lockers in police stations or perhaps in labs untested, and I talked a little bit about the fact that in Houston alone, thanks to the leadership of the then mayor and the city council, working with State and Federal authorities, they were able to eliminate the rape kit backlog testing and come up with 850 hits on the database that showed there were individuals whose DNA was tested and located on this forensic evidence that was already in this FBI background database known as CODIS. There are things we can do that may seem small but can have a dramatic impact on the lives of our constituents.

So I suggest that we don't give up and we continue to do what we can, where we can, when we can, and passing Kari's Law would be another important step in that direction.

Mr. President, I yield the floor.

I suggest the absence of a quorum.

The PRESIDING OFFICER. The clerk will call the roll.

The legislative clerk proceeded to call the roll.

Mr. WYDEN. Mr. President, I ask unanimous consent that the order for the quorum call be rescinded.

The PRESIDING OFFICER. Without objection, it is so ordered.

TRIBUTE TO BEVERLY CLEARY

Mr. WYDEN. Mr. President, today Beverly Cleary, a storied and award-winning author, is going to be celebrating her 100th birthday. Throughout her 66-year career, Beverly Cleary has written more than 40 children's books, selling over 90 million copies by enchanting readers of all ages with the escapades of Ramona, Henry, Ralph S. Mouse, and so many wonderful characters. With enduring and relatable themes of adventure, adolescence, and friendship, Ms. Cleary's novels have withstood the test of time and have established their place in the pages of Oregon's cultural heritage.

Beverly Cleary was born on April 12, 1916, in McMinnville, OR. At an early age, she moved to Portland, where she developed a passion for Oregon that shines throughout the pages of her stories. For years, Beverly Cleary's characters have called Portland home, and for the countless children who grew up with her writing, Ms. Cleary's stories have been their haven. Her book series ''Ramona'' and ''Henry Huggins'' are both set in Portland and continue to serve as important threads throughout Oregon's literary fabric.

Ms. Cleary's impact on the State of Oregon and the city of Portland have not gone unnoticed. Her honors include a public K–8 school in Portland, the Beverly Cleary School, which some of my staff actually attended, and a public art installation at the Hollywood branch of the Multnomah County Library which features many of her books' neighborhood landmarks. Portland's Grant Park is home to a public sculpture garden with bronze statues of Ramona Quimby, Henry Huggins, and Ribsy.

It is Beverly Cleary's unbound passion and dedication to children's literature that have earned her numerous literary awards, including a National Book Award, a Newberry Medal, and a National Medal of Art. In 2000 the Library of Congress even named her a ''Living Legend.''

Just as original Beverly Cleary fans enjoyed reading about the lives and adventures of her characters, each new generation of young Beverly Cleary readers finds a similar connection with those same characters. Ms. Cleary's books have sparked the imagination of so many children across America, helping instill literary skills that last a lifetime.

When it comes to literacy, the importance of reading at an early age simply cannot be overstated. An early introduction to reading is one of the most significant factors influencing a child's success in school. It is linked to better speech and communication skills, improved logical thinking, and increased academic excellence. It is clear that young children who develop a love for reading have an upper hand both in the classroom and later in life.

Thanks to Ms. Cleary, generations of kids across the world can experience Oregon from a literary perspective. One would be hard-pressed to find another author who has made such a lasting impact on children's literature. So it is an enormous honor and a great personal pleasure for me to come to the Senate floor this afternoon to honor Beverly Cleary's contribution to literary history, to Oregon, and to children everywhere, and to wish her a very happy 100th birthday.

With that, Mr. President, I yield the floor.

I suggest the absence of a quorum.

The PRESIDING OFFICER. The clerk will call the roll.

The legislative clerk proceeded to call the roll.

Mr. BARRASSO. Mr. President, I ask unanimous consent that the order for the quorum call be rescinded.

The PRESIDING OFFICER. Without objection, it is so ordered.

GOLD KING MINE SPILL

Mr. BARRASSO. Mr. President, last August several Western States and Indian tribes suffered an enormous environmental disaster. It was called the Gold King Mine spill. In this disaster, the U.S. Environmental Protection Agency caused a spill of 3 million gallons of toxic waste water into a tributary of the Animas River in Colorado.

This photograph shows the before and after. People all across the country remember this picture and the poisoning of this river by the EPA. This plume of toxic waste threatened people in Colorado, New Mexico, and Utah. It stretched to the land of the Navajo Nation and the Southern Ute Indian Tribe.

When the Indian Affairs Committee held a hearing on the Gold King Mine spill last September, we heard testimony from Russell Begaye. He is the President of the Navajo Nation, which has lands roughly the size of the State of West Virginia, a very large piece of land. President Begaye told our committee that for the Navajo people, water is sacred, and the river is life for all of us.

He said: Today, we are afraid to use the river—with an emphasis on the word ''afraid.'' The EPA caused that spill more than 8 months ago because it made crucial mistakes, critical mistakes. It failed to take basic precautions.

Well, we still have not gotten answers to some very important questions. Now that the snow in the Rocky Mountains is beginning to melt, people in this very area, in the course of this river, are worried that they are being victimized once again by the failures of the U.S. Environmental Protection Agency. They want to know if melting snow is going to stir up the lead and the mercury and the other poisons that have settled to the bottom after this poisonous spill.

They want to know if this blue river is going to turn bright yellow again. Well, next week I am chairing a hearing in Phoenix, AZ, and it is a field hearing of the Indian Affairs Committee. We are going to be looking at the Environmental Protection Agency's unacceptable response to Indian tribes. This includes inadequate handling of the Gold King Mine disaster. It includes the Agency dragging its feet on cleaning up the cold-water uranium mines across the Navajo and the Hopi reservations.

The members of these tribes deserve to hear directly from the EPA. They want answers about what is being done to fix this blunder. From what I have seen lately, I expect the Environmental Protection Agency will be doing its best to avoid giving any answer at all. When we, the Indian Affairs Committee, first invited the Agency to send a representative to this hearing to update us, they refused. It is astonishing; they refused. They said they would send written testimony instead.

I don't think the EPA understands how this works. We are holding this field hearing to do oversight on this catastrophe that the EPA caused. This is not optional for them. This is not supposed to be just another chance for the EPA to show how uncooperative and unhelpful they can be. So tomorrow the Indian Affairs Committee plans to issue a formal subpoena for the EPA Administrator, Gina McCarthy, to appear at the field hearing.

Ms. McCarthy testified last year. When she testified before our committee in Washington last September, she said that the Agency was taking—her words—''full responsibility'' for the spill. Today, the Agency will not even come and look these people in the eye. Does that sound as though it is taking ''full responsibility''?

When this disaster first happened, the EPA did not notify the Navajo Nation until a full day after the spill. After 4 days, the EPA still had not reported to the Navajo leaders that there was arsenic in the water. This disaster happened more than 8 months ago. No one—no one at the Agency has been fired. No one has even been reprimanded for their failure.

What has the EPA done? Well, here is a headline from the Wall Street Journal on Friday, April 8: ''Toxic-Spill Fears Haunt Southwest.'' In the southwestern part of the country, according to this article, it has been months since the Agency has been back to test the safety of the well water for the families near the river. Officials in New Mexico and in Utah say the EPA has failed to spearhead a comprehensive plan to manage the spring runoff or even to conduct long-term monitoring.

The States and the tribes are having to monitor the water quality themselves. Why, you ask? Well, it is because the EPA was not planning to test enough sites or provide real-time data. That is what people need. What good is the data if it is not telling people that the water they are drinking right now is safe? Why tell people that the water they drank a week ago or a month ago was contaminated? They need to know about the water today.

There are 200,000 people who drink from the river system that the EPA poisoned last summer. Why has the Environmental Protection Agency walked away from these families? Why is this Agency not taking full responsibility for making sure this mess has been cleaned up? I am not alone in asking that. This article about the ''Toxic-Spill Fears Haunt Southwest'' in the Wall Street Journal on Friday goes further.

They actually quote the State environment secretary from New Mexico, who lives there, lives on the land, and knows the situation. This is the State environment secretary. He says: The fundamental problem is, there is no engagement from the EPA. None.

This is a specific, definite, concrete, environmental disaster. It was caused by specific people at the Environmental Protection Agency. This is about a government agency failing to do its job. They took their eye off the ball. They caused this toxic spill. They still have not focused on cleaning up the mess that they caused.

Like so much in Washington, DC, the EPA has grown too big, too arrogant, too irresponsible, and too unaccountable. People in America deserve accountability. We all want a clean environment. That is not in dispute. We all know the original mission of the Environmental Protection Agency was a noble one. Somewhere along the line, this Agency lost its way. It got preoccupied with other things, and it lost sight of its real job, which is to protect the environment.

Instead, we get this. When President Begaye of the Navajo Nation testified before the Indian Affairs Committee last fall, he was very clear. This is what he said: The Navajo Nation does not trust the U.S. EPA, and we expect it to be held fully accountable. Let me repeat. The Navajo Nation does not trust the U.S. EPA. We expect it to be held fully accountable.

I think the Navajo Nation and other tribes in the West are right to not trust the EPA. They are right to expect it to be held fully accountable. That is exactly what we intend to do with this field hearing next week. Indian Country and all of America need to know if the EPA can do its job. From what they see here, they have serious, serious doubts. These people do not need a written statement. They need to hear straight from the people in charge and that means from Gina McCarthy, who is the head of the EPA.

Next Friday, April 22, is Earth Day. According to press reports, Administrator McCarthy is planning to go to New York that day for a big media event around the Paris climate change treaty. That is what she is planning for next Friday, the day of this important hearing—a day when the EPA just wants to send written testimony.

It is her preference to be in New York talking about what happened in Paris instead of going to Arizona to face the people her Agency has abandoned. That is what she thinks is more important. That is the way this administration prioritizes its activity—a photo op in New York, not meeting with the people whose lives her Agency has devastated. The director of the EPA still does not have her priorities straight. It should not have to come down to a subpoena. The Environmental Protection Agency should have done the right thing from the very beginning.

It is up to the EPA to do the right thing now. On Earth Day, of all days, we need to hear from the Administrator of the Environmental Protection Agency.

I yield the floor.

I suggest the absence of a quorum.

The PRESIDING OFFICER. The clerk will call the roll.

The legislative clerk proceeded to call the roll.

Mr. DONNELLY. Mr. President, I ask unanimous consent that the order for the quorum call be rescinded.

The PRESIDING OFFICER. Without objection, it is so ordered.

DOMESTIC STEEL INDUSTRY CRISIS

Mr. DONNELLY. Mr. President, I rise today to talk about the severity of the crisis facing our domestic steel industry. Workers are losing their jobs, families are losing their homes, and communities are suffering.

For several years our domestic industry has been under constant attack. Our steel industry is in the midst of a crisis more severe than the one experienced nearly two decades ago. Global demand for steel has not kept pace with global production. As a result, many of the global producers have come here to the United States to try to dump their steel. As a result of that, domestic producers continue to lose ground, surrendering a record-high 29 percent market share to foreign-made steel last year. The industry currently has about a 65-percent capacity utilization rate, and in Indiana we saw an 8-percent downturn in production last year.

As a Senator from Indiana—a State that accounts for one-quarter of all domestic steel capacity—I visit with steelworkers and their families to listen to their concerns about the impact of illegally traded steel flooding our market. Hoosier families are worried. Steel plants are idling, and more than 1,000 Hoosier workers have been laid off as a direct result of the illegally dumped steel that flooded our market last year. These are workers who come up to me at church on Sundays or stop by my office. They look me in the eye and ask me to explain how other nations get to produce and sell steel under a different set of rules. These workers have never asked me or anyone else for a handout; they simply ask that all parties compete on a level playing field because these Hoosier steelworkers know how valued their steel products are here and abroad.

Congress and the Obama administration must work together to not only prevent further job losses but to allow the steel industry to grow. When families face the uncertainty of a plant idling, they must prepare for the worst. All the while, small businesses that reside in communities relying on the steel industry's success suffer because families are no longer able to purchase goods and services, such as groceries and clothes and things for their home, because they are just trying to survive.

The current situation only reinforces my long-held belief that strong trade policies strengthen communities and ensure good employment for our workers, and they maintain a level playing field to foster the kind of fair competition that leads to robust markets. However, as we know all too well, such policies only work when everyone plays by the same rules.

I appreciate the work of my colleagues here in the Senate and across the Capitol in the House who have come together and worked in a bipartisan fashion to provide the administration with the significant tools they need to combat this historic influx of foreign-made steel.

As my colleagues may recall, Congress recently passed the Leveling the Playing Field Act and also the ENFORCE Act to help our steel industry investigate and better fight unfair trade practices. While there is more to be done, the administration should use these important tools we have provided to vigorously defend our domestic industry from those who willingly do not play by the rules. Strict enforcement of the law is necessary to protect our domestic industry now and to deter bad actors from abusing the system in the future.

Good, strong communities and good, strong cities like Portage and Gary and Crawfordsville and Rockport are relying on the Senate to do the right thing. We must double down on our efforts to combat the illegally traded steel coming into our market. We must do so together not only for the businesses and workers impacted by the onslaught of illegally traded steel but for the communities of children and families who have been linked for generations to the success of our Nation's steel industry. They are counting on us, and we cannot let them down.

Mr. President, I suggest the absence of a quorum.

The PRESIDING OFFICER. The clerk will call the roll.

The bill clerk proceeded to call the roll.

Mr. BLUNT. Mr. President, I ask unanimous consent that the order for the quorum call be rescinded.

The PRESIDING OFFICER. Without objection, it is so ordered.

TAXES AND THE NATIONAL DEBT

Mr. BLUNT. Mr. President, it is springtime in Missouri. Whether it is in our State that joins the Presiding Officer's State of Oklahoma or in Iowa, we are seeing trees begin to bloom. It was great to be home the 2 weeks we were home and again last weekend and see the flowering trees sort of move from north to south and, I guess, south to north. It is one of my favorite times of the year, as it is for a lot of people. Particularly during the 2 weeks we were home, we would not see the blooms of the Dogwoods, and then a couple of days later we would see them farther north in the State than we had seen them before.

People like the spring. They like the great weather, they like to get out and do things with their family—only to be reminded sometimes just how fickle the spring weather is. One thing a lot of people—including most of us—dread at this time of year, however, is that spring comes at about the same time that they have to file their taxes. That date comes this week, and if the weather is not predictable, the increasing reach of the Tax Code should be predictable and is predictable.

Ronald Reagan said that Republicans believe every day is the Fourth of July, and our friends on the other side believe every day is April the 15th. We are having the income come in now and seeing what happens with it. It is the time of year we ought to look at what is happening with the hard-earned dollars American families work for.

It is estimated that Americans will pay about $3.3 trillion in Federal taxes and about half that in State and local taxes. A total of almost $5 trillion—or 31 percent of all the national income in the country—goes to taxes. If, at various levels of government as a country, we are taking 31 percent of the money every family earns, we ought to be thinking about what happens with that and justify every penny of it. Another way of looking at it is that Missourians, and people across the country, will spend more on taxes this year than they spend on food, clothing, and housing combined.

A lot of people might ask where the taxes are coming from. After all, in 2001 and 2003 Congress cut taxes. But that doesn't seem to be the case when we pay the tax bill. While we did cut taxes as a country in 2001 and 2003, in 2009 we put a lot of taxes in place. One prime example of what happened in 2009 is the $1 trillion tax hike in the President's health care bill. Now, $1 trillion over 10 years is a lot of money. It is $100 billion a year that the government hadn't been collecting in taxes but now is.

A few years ago the Ways and Means Committee asked the Congressional Budget Office, along with the Joint Committee on Taxation, to look at what the ObamaCare taxes really meant, and they revised that estimate up. They listed 21 tax increases, including 12 tax increases on the middle class, and those 21 tax increases amounted to a $1 trillion tax hike. A few of those taxes have been delayed for a little bit. We were able to slow down the silly tax on medical devices. Whom they thought that would help when people who voted for that bill and that tax, I don't know, but an extra tax on medical devices seems unreasonable to me. I don't know a single person who ever bought a medical device because they thought they were going to have a good time with it. They bought a medical device because they thought it was necessary for their health.

Then, not only do we collect this money, not only do we collect 31 percent of all the money people work for in taxes, we see the national debt continuing to increase. The national debt held by the public stands at about $13.5 trillion, but the national debt is really closer to $19 trillion because we owe a lot of money as a country and people to the places it has been borrowed from—the Social Security trust fund—and all $19 trillion has to be paid back.

It is hard for most of us to even begin to think how much money that is, $19 trillion, but the gross domestic product—the total value of all the goods and services produced in the country—is less than that. GDP is estimated to be about $17.9 trillion.

Another way to look at the national debt is that we have managed to accumulate a national debt that is more than equal to everything the country produces in a given year. Everything Americans work to make, everything we produce—the value of not just the products we make but the goods and services we make—is now exceeded by the national debt. There is no credible economic measure that would indicate that a country is stronger if the debt is bigger than the value of what it produced as a country.

We have the debt, and then we have the deficit spending. Deficits occur when the government spends more money than it generates in revenue.

Balancing the budget two decades ago wasn't all that easy to do. It required hard choices. But we as a country were able to reach a bipartisan consensus that surpluses are preferable to deficits and that a country is far better off as a result; that a growing economy is better than a stagnant economy; and that the economy is more likely to grow if the government isn't constantly sapping, for no defensible reason, the economic opportunity of people spending their own money to advance themselves and their families forward.

One thing that every model shows is that it is easier to pay off the debt and it is easier to pay the bills of the country if you have an economy that is growing. But regulators who are out of control, and deficit spending hurts economic growth.

If we look at the first year of the Obama administration, adjusted for inflation to today's dollars, that deficit ran about $1.6 trillion. Following that, during the first term it was $1.6 trillion, then $1.4 trillion, then $1.3 trillion, and then $1.1 trillion. That sounds as if the deficit is going down, but it is $1.1 trillion over a budget that just 20 years ago was balanced. It is $1.1 trillion over a budget that a little more than a decade earlier had been a balanced budget.

If we accept this year's number, the average deficit over the last 8 years is $963 billion—right at $1 trillion—and we are borrowing that money and the $19 trillion that came before it at almost the lowest interest rate imaginable. What happens if the borrowing rate goes from where it is to, say, 5 percent? We already see that the interest on the debt is quickly becoming the third biggest government payment—Social Security, Medicare, paying the debt. Things like defending the country, a transportation system that works, health care research—all of those things are way below just the interest we would have on the debt, and that is at the lowest rate ever.

Federal borrowing is really nothing more than a tax on the future. Federal borrowing is nothing more than saying: We want to have what we want to have right now, and we are willing for somebody else to pay the bill for what we want to have right now.

As people sit down and file their taxes over the next 48 hours or so and make final calculations and look at what they made and look at what they are paying—as they have done over the last few weeks and will do over the next couple of days—it is an important time for them to talk to the people they elect to public office: What do you think you are gaining by not making the tough choices? What do you think you are gaining by not doing the things we have already agreed we need the government to do and doing those really well rather than coming up with yet another program that may or may not produce results?

The health care plan is one of those. I had a hospital group in this morning. They had done a calculation of what part of the bill people were paying with their personal money as opposed to insurance that they had to try to protect themselves against health care costs before the Affordable Care Act and what they are paying now. What they found is that before the Affordable Care Act, they were paying 10 percent of the bill with personal money. After the Affordable Care Act, the average person with insurance was paying 20 percent of the bill. So the highest, fastest growing level of debt that hospital had was people with insurance who weren't able to pay the bill because their deductible was so high.

So we managed to raise $1 trillion in taxes, insure almost no one in terms of total numbers—we still have about 30 million people who are uninsured—and in many cases, the people who are insured don't have the coverage they had before.

People need to be asking what we are doing to mortgage the future and what are we getting out of that. Just as Missourians have a responsibility to ensure that their taxes are paid by April 15, we have a responsibility to ensure that their tax dollars are wisely used or not taken from them at all.

I think the fiscal policy of the Obama administration over the last 8 years has been an irresponsible way to spend people's money. The cost-benefit analysis we asked for comes back with silly things, like we evaluate how much people worry about something or we evaluate how much people's feelings are hurt. What we ought to evaluate is what we get out of these excessive rules and regulations and regulators and inspectors that truly is a benefit as opposed to what do we get that is just one more additional burden that people are asked to pay for and, even worse than that, that then their children and grandchildren are asked to pay for by seeing this accumulated debt.

We hear from our friends on the other side that it was necessary to engage in excessive spending to keep the economy afloat following the recession—the only way to do that is for the Government to play a bigger role in the economy. And what do we have to show for that? The economy is still struggling, the recovery has been unbelievably sluggish at best, and wages are stagnant for middle-class families. Why? One of the reasons is high taxes, combined with the onslaught of red-tape, and regulators that are out of control. The policies coming out of this administration have really made any possible stimulated growth in the economy hard to find.

The challenges of getting healthy economic growth and getting our fiscal house back in order will only become more daunting as the direct and indirect costs of things like the President's health care plan accumulate. I think we ought to all commit ourselves here, as people are coming to the end of this tax-paying season, to work together, to work on both sides of the Capitol and at both ends of Pennsylvania Avenue to find solutions for an overtaxed middle class, for out-of-control spending, unsustained long-term debt and interest payments. We need a flatter, fairer, less complicated, and more competitive tax structure.

If we are going to ask the American people to send in 31 cents out of every dollar they make at all levels—some people send in a lot more and some people send in a little less, but 31 cents out of every dollar of income in the country goes to government—the government has a real obligation to see that every one of those 31 cents is spent for a good purpose or not taken from people at all.

I yield the floor.

The PRESIDING OFFICER. The Senator from Kansas.

Mr. MORAN. Mr. President, I ask unanimous consent to address the Senate as in morning hour.

The PRESIDING OFFICER. Without objection, it is so ordered.

VETERANS CHOICE ACT

Mr. MORAN. Mr. President, just a month ago, I was on the Senate floor talking about the struggles of a number of Kansas veterans as they attempted to utilize the Veterans Choice Program that Congress passed nearly 2 years ago. That program is being implemented by the U.S. Department of Veterans Affairs. We looked for many opportunities to try to provide better service, more efficient service, more timely service to our veterans, and Congress ultimately came together and passed the Veterans Choice Act.

As I indicated a month ago and numerous times on the Senate floor, that legislation, that law says if you are a veteran who can't receive the medical services you are entitled to, you have the opportunity to receive those services at a medical facility, a clinic, a physician, or a hospital at home. As an individual Senator who comes from a State as rural as most and more rural than many—and certainly as rural as the Presiding Officer's home State and the home State of the Senator from Missouri—we have a real interest in trying to make certain our veterans who live long distances from a VA hospital can access that medical care.

I thought we took great satisfaction in the passage of that legislation. I certainly did. What we have discovered since then in its implementation has been one handicap, one hurdle, one bureaucratic difficulty, and one challenge after another. While maybe it is difficult for the Department of Veterans Affairs to implement this legislation, they are the ones who ought to suffer the challenges of doing so, not the men and women who served our country.

During my conversation on the Senate floor a month ago, I talked about a number of veterans in Kansas and called them by name. One of those veterans was Michael Dabney, a Kansas veteran from Hill City, KS, in northwest Kansas, in the part of the State that I grew up in.

A piece of good news is that Mr. Dabney is eligible for the Veterans Choice Program because he lives more than 40 miles from a VA facility. So Mr. Dabney qualifies under that Veterans Choice Program, and Mr. Dabney needed surgery and elected to use the Veterans Choice Program. There is a community-based outpatient clinic hosted by the VA in Hays, which is about an hour away from his hometown. He was receiving care and treatment there. The indication was he needed the surgery, and they suggested that he travel to Wichita—another couple hundred miles—for that surgery. But Mr. Dabney suffers from PTSD and indicated that he didn't feel comfortable and capable of traveling that extra 200 miles to receive the surgery.

His primary care provider at the outpatient clinic in Hays indicated to him this: Well, you live more than 40 miles from a facility. You qualify for the Veterans Choice Act. You can have these services provided and this surgery provided at home.

Mr. Dabney elected to do that. Rather than driving another 200 miles for surgery in a city far away, he had the surgery performed at home. That seems like the way this is supposed to work. But the end result was that, according to the VA, he didn't receive preauthorization. So despite his primary care provider telling him that he qualified for the Veterans Choice Act, after getting the service at home, he then started receiving the bills for that service.

In frustration, he then contacted our office, and the folks in my office went to work. Here was an example that I thought we could be successful in solving. The record clearly indicates that his primary care provider, his VA primary care provider indicated he should utilize the Choice Act and have the services, the surgery provided at home. He did so. The VA then declined to pay for those services, and he began receiving the bills.

So we went to bat for Mr. Dabney. Despite our efforts and despite his efforts, he has been told that those bills are due to be paid by him because he didn't get preauthorization. My point today is that the Department of Veterans Affairs ought to be the Federal agency that bends over backwards to help our veterans.

I remember when the current Secretary testified before our Veterans' Affairs Committee in his confirmation hearing, and he indicated that he was going to run the Department in a way that was all focused on meeting the needs of veterans. Yet, just a few weeks ago, Mr. Dabney was told this by the VA. I don't know if they said they are sorry. They simply said: You didn't get preauthorization. You don't qualify. Those bills are your responsibility.

I am here once again trying to highlight what happened. We went to the intermediary TriWest. They thought they could help us accomplish this and get the information that Mr. Dabney acted on and that this ought to be sufficient for the VA to pay the bill. And even with their help, the results from the Department of Veterans Affairs, through their Wichita hospital, said that Mr. Dabney obviously didn't understand the rules, and, therefore, they were not going to see that his bills were paid by the VA.

This seems outrageous to me. The VA, through its employees, indicated he qualified. He relied upon that information, their assurance that he qualified, to have the surgery done at home. He is a veteran who needed surgery. He suffers from PTSD. He would be deserving of all the care, the treatment, and the consideration that could be given a man who served our country so well and suffered the consequences. Yet, despite the assurance that he should use the program, this decision was made: I am sorry, but you didn't dot the i's and cross the t's.

I ask my colleagues to help me as we work our way through the implementation of the Veterans Choice Act. It is discouraging to me—the number of veterans who tell me how disappointed they are with the Veterans Choice Act—when I thought it was such a great opportunity for their care and well-being. The end result is that many are discouraged, giving up on the Veterans Choice Act and not receiving the care and attention they need from the VA, deciding that the VA should not be their provider. The point is that we are failing them once again. We are failing them veteran by veteran, one at a time.

The consequence is that the program is still not working. You cannot not meet the needs of a veteran and then have an expectation that we have done something useful and beneficial for that veteran.

There is a discussion going on in the Veterans' Affairs Committee, and there are bills led by Senators ISAKSON and BLUMENTHAL that address many of the issues plaguing the VA, ranging from their appeals system to accountability, to remedying the problems associated with the Veterans Choice Act. I urge my colleagues not to allow this opportunity to bypass, to go away. We must take these actions. In my view, this is an example of this problem that the VA should solve on its own. They should find a way to make this work. In their absence to do so, as Members of the Senate—certainly, I, as a member of the Committee on Veterans' Affairs—we have the obligation to continue to do battle for those who battled for our freedoms and liberties.

I apologized to Mr. Dabney that he has been treated the way he has been by the Department of Veterans Affairs, by his government, and I will continue to fight on a case-by-case basis. But we do have a real opportunity as Republican and Democratic Senators to come together and agree upon a legislative solution to these and many other problems that plague us and plague our veterans.

I simply am here to make the case, hopefully to the Department of Veterans Affairs, that they should find a way to care for this man who served his country and also to ask my colleagues to work together to make certain—in whatever ways legislatively we need act to meet the needs of those who served our country—that we do so.

I thank the Presiding Officer for the opportunity to address this issue and the cause of this veteran and many others.

I yield the floor.

I suggest the absence of a quorum.

The PRESIDING OFFICER (Ms. AYOTTE). The clerk will call the roll.

The bill clerk proceeded to call the roll.

Mr. GRASSLEY. Madam President, I ask unanimous consent that the order for the quorum call be rescinded.

The PRESIDING OFFICER. Without objection, it is so ordered.

FILLING THE SUPREME COURT VACANCY

Mr. GRASSLEY. Madam President, before I turn to my prepared remarks, I wish to note that the minority leader came to the floor this morning to complain, again, that the Senate is following the Biden rules on the Supreme Court vacancy.

As I have said before, there is not much that makes the minority leader more mad than when his side is forced to play by its own rules.

So, I won't dwell on his daily missives. Most us around here have grown used to it and don't pay him much mind, especially given his record of leading a Senate where even some Members of his own party were never allowed to offer a single amendment. He voted 25 times to filibuster judicial nominees—including a Supreme Court Justice, and at the time argued there is nothing in the Constitution requiring the Senate to vote on nominees.

And, of course, he will be remembered as the leader who did more damage to the Senate than any other leader in history when he invoked the so-called nuclear option in November of 2013.

''I think just from reading the cases you'll acknowledge that there's politics in legal rulings.'' That is what President Obama said last week when he visited the University of Chicago.

The President met with law students and answered their questions. They asked him about judicial nominations, including his decision to make a nomination to fill Justice Scalia's seat on the Supreme Court. His responses were revealing. I agree with President Obama that too often politics seep into legal rulings. He is right as a factual matter. In fact, I said the same thing on the Senate floor a few days before the President did.

Oddly, those on the left who were up in arms over my remarks were silent on the President's. I suppose that is because, unlike the President, I think it is a bad thing that there is politics in judicial decisionmaking these days. Politics in judicial rulings means that something other than law forms the basis of those decisions. It means the judge is reading his or her own views into the Constitution.

Unlike the President, I believe the biggest threat to public confidence in the Court is the Justices' willingness to permit their own personal politics to influence their decisions. This isn't the first time the President has talked about how he believes Justices should decide cases. He has repeatedly said they should decide cases based on something other than the Constitution and the law. His views on this subject are clear.

When Chief Justice Roberts was confirmed, then-Senator Obama said that in the really hard cases, ''the critical ingredient is supplied by what is in the judge's heart.'' In 2009, President Obama said he views ''empathy'' as an essential ingredient for Justices to possess in order to reach just outcomes. And before he made his most recent Supreme Court nomination, the President said that where ''the law is not clear,'' his nominee's decisions ''will be shaped by his or her own perspective, ethics, and judgment.'' But what is in a judge's ''heart,'' or their personal ''perspective [and] ethics'' have no place in judicial decisionmaking.

The President's idea of what is appropriate for Justices to consider is totally at odds with our constitutional system. We are a government of laws and not a government of judges. I have said before that we should have a serious public discussion about what the Constitution means and how our judges should interpret it. President Obama and I have very different views on those questions. Politics belongs to us—it is between the people and their elected representatives. It is important that judges don't get involved in politics. That is because, unlike Senators, lifetime-appointed Federal judges aren't accountable to the people in elections. It is also because when nine unelected Justices make decisions based on their own policy preferences, rather than constitutional text, they rob from the American people the ability to govern themselves. And when that happens, individual liberty pays the price.

To preserve the representative nature of our government and our constitutional system, our judges need to return to their limited role, and decide cases based on the text of the Constitution and laws that the people's representatives have passed.

President Obama last week described the justices' power as an ''enormous'' one. That is true in a sense. But the Constitution limits the Justices' power to deciding controversies in specific cases that come before them. President Reagan talked about this on the day that Chief Justice Rehnquist and Justice Scalia were sworn in. He recounted how the Founding Fathers debated the role of the judiciary during the summer of 1787. As President Reagan said, the Founders ultimately settled on ''a judiciary that would be independent and strong, but one whose power would . . . be confined within the boundaries of a written Constitution and laws.''

For decades now, the Supreme Court has been issuing opinions purportedly based on the Constitution where the Constitution itself is silent. This kind of judicial decisionmaking usurps the right of Americans to govern themselves on some of the most important issues in their lives. That is what happens, for example, when the Court ''discovers'' rights in the Constitution that aren't mentioned in its text and weren't observed when the Constitution was adopted. The same thing happens with ordinary statutes that Congress passes. If the Justices limited themselves to saying what the Constitution or statute says about the case before them, their power wouldn't be so ''enormous.'' President Obama says it is not so simple. He says the cases that really matter are the ones where there is some ambiguity in the law. In those cases, President Obama thinks a justice needs to apply ''judgment grounded in how we actually live.''

Again, I disagree. When judges ask what a law should mean, the meaning of a law will change, depending on the judge's ''life experiences'' or what judge happens to hear the case. The people lose control of what their laws say. It is not consistent with our system of self-government.

James Madison—the ''Father of the Constitution''—explained the same thing in a letter to Richard Henry Lee. He said that ''the sense,'' or meaning, ''in which the Constitution was accepted and ratified by the nation'' defines the Constitution. He said that is the only way the Constitution is legitimate. That is because, in Madison's words, ''if the meaning of the text be sought in the changeable meaning of the words composing it,'' the ''shape and attributes'' of government would change over time. And importantly, that change would occur without the people's consent. It wouldn't be consistent with the way we govern ourselves through our representatives.

That is a very different view than the President suggested in Chicago last week when he said that ambiguous cases ask a judge to consider ''how we actually live.'' In President Obama's view, the judge isn't asking what a law meant when it was passed, but what it should mean today. President Obama described this as his ''Progressive view of how the courts should operate.'' With respect to the President, it is my view that the courts shouldn't operate in a political way at all. Not a progressive one, not a moderate one, not a conservative one. Instead, in my view, the courts should operate in a constitutional way that ensures government by the people.

Again, when Chief Justice Rehnquist and Justice Scalia were sworn in, President Reagan touched on this very subject. He said that for the Founding Fathers, the question about the courts was not whether they would be liberal or conservative. The question, President Reagan said, was ''will we have government by the people?'' Judges have a role in ensuring that we have government by the people. They fulfill that role when they try to understand what a law meant—either a statute or the Constitution—when the people's representatives enacted it. If the Justices decided cases that way, there would be a lot less politics in legal rulings. Unlike the President, I think that would be healthy for our democracy. But more important, it was the understanding of those who wrote and adopted our Constitution.

I yield the floor.

I suggest the absence of a quorum.

The PRESIDING OFFICER. The clerk will call the roll.

The senior assistant legislative clerk proceeded to call the roll.

Mr. HOEVEN. Madam President, I ask unanimous consent that the order for the quorum call be rescinded.

The PRESIDING OFFICER. Without objection, it is so ordered.

Mr. HOEVEN. Madam President, I ask unanimous consent that Senator TESTER and I be allowed to engage in a colloquy for the next approximately 15 minutes.

The PRESIDING OFFICER. Without objection, it is so ordered.

Mr. HOEVEN. Madam President, I rise to encourage support for the Hoeven-Tester air ambulance relief amendment, which is legislation of importance to people living in both rural and urban communities who need urgent and timely medical care. The need for this amendment arises from the fact that Federal law preempts States from regulating air ambulance services pursuant to the Airline Deregulation Act, which was passed in 1979.

While some air ambulance providers enter into agreements with insurers, a growing number have decided to operate as out-of-network providers and practice what is known as balance billing. That means consumers, not the insurance companies, are responsible for the majority of the medical bill.

In recent years, State insurance departments have been fielding consumer complaints related to large balances left to them from charges not covered by insurance providers for air ambulance services. Patients in need of lifesaving air medical services have been

left with balances of more than $25,000 when an air medical provider opts out of agreements with insurance providers.

Let me share a couple of examples of what I am talking about with my colleagues. In one case, a young couple had a premature child who was in need of intensive care at another hospital. The couple was insured and assumed that the 1-hour helicopter flight to the other hospital was covered by their insurance. The air ambulance company presented them with a bill for almost $40,000, but because the company had not entered into an agreement with the couples' insurance company, they were reimbursed only about $15,000 of that bill, leaving them $24,000 that they needed to pay when they thought they had insurance coverage for the bill.

In another case, a woman suffered a snowmobiling accident and was airlifted off a mountain. The charge was $40,000. Her insurance paid about $15,000, and so she was responsible for the $25,000 balance to the company. Now, in that case she negotiated with the company and got it down to a balance of $13,000, but that $13,000 she then had to pay.

In a third case, a father and his daughter were airlifted from the hospital where they were to another hospital because they needed additional care. The young person's condition was deteriorating and she needed specialized care so they had to airlift her to another hospital. They had a single pilot who took them on the flight. After they returned home by car, they got a check from the insurance company for $6,800, so the insurance company paid $6,800. That left them with the balance of a bill that was almost $70,000. Again, they thought they were covered under their insurance. So my colleagues can see that this is a real concern and a real issue.

Many consumers with health insurance coverage assume these medical bills will be taken care of and don't think to ask if the air transportation company is a participating provider because obviously they are in an emergency situation. Unfortunately, as a result, after the patient has stabilized and is in recovery, they learn they will be faced with an expensive medical bill they hadn't anticipated.

In the last session of our State legislature in our State, the State legislature made an effort to address this problem in State law. What essentially the State law said was that the hospitals would have a list of providers that accept insurance as payment in full and insurance companies that do this balance billing, so then the hospital and the patient can be informed and make their decision as to the air ambulance provider. The problem is the State law was struck down in Federal court because the Airline Deregulation Act of 1978 took precedence, meaning it is a Federal issue, which we understand. Obviously, airplanes cross State lines, so we understand there is a Federal aspect to it.

Our amendment would allow hospitals to provide information so patients could determine which air ambulance providers accept the insurance payment as payment in full and which ones don't. Then hospitals could have that information available and patients could make their decisions accordingly.

It is a very simple, straightforward amendment that would allow State legislatures to make sure that information is available for patients in their State.

There are a number of organizations that are supporting this commonsense amendment, including the National Association of Insurance Commissioners, the American Health Insurance Plans, Blue Cross Blue Shield Association, American Heart Association, American Stroke Association, Consumers Union, and Families USA.

That is the legislation in a nutshell, and I have taken a minute to explain it.

Now I wish to turn to my colleague from the State of Montana and ask him—as a cosponsor of this legislation I know he has run into this problem with his constituents. So I would ask him to comment both in terms of the situations he has run into in Montana and his thoughts on how we can best address it.

The PRESIDING OFFICER. The Senator from Montana.

Mr. TESTER. Madam President, I wish to thank the Senator from North Dakota for working on this important issue that in fact speaks across this country but especially in rural America.

Senator HOEVEN and I are on the floor working this afternoon to provide a voice to those who feel the well-being of ordinary Americans is being taken advantage of. These are folks who are honest and work hard and play by the rules, but they find themselves victims of an unchecked industry with too many bad actors. That is right. They are not all bad actors, but some are. The folks who survive the fight of a lifetime are waking up the next morning only to find themselves in a new fight—a fight to keep their home and their financial well-being.

In rural America, we are seeing more and more troubling reports of families losing nearly everything to rising air ambulance bills. In my home State of Montana, over the past 10 years, we have seen more out-of-State independent and for-profit air ambulance companies in operation. These companies are moving into my State, and they are not affiliated with local hospitals. They do not always have contracts with insurance companies, and they are taking financial advantage of families who are in crisis—families who may be forced to cash out their retirement accounts, drain their life savings, and even sell their homes to cover air ambulance bills that can climb up to $100,000. This has been well-documented in the State of Montana. Occurrences of people getting billed enormous sums of money after an air ambulance trip have been well-documented.

So what is the upshot of all this? The upshot is we are a rural State. Oftentimes you can't get to a hospital in time by road, so you have to call an air ambulance. If you call the wrong one, you end up with a bill you can't pay. So people have to make literally life-and-death choices at a time when they shouldn't have to. Oftentimes, because of this experience they are saying: You know what. We are between a rock and a hard place. We will take a chance. The wife or the spouse may be purple because they can't breathe, but they say: We will take a chance. They will pile in the car and drive an hour to the hospital and hopefully they will survive. A child may come in from an accident, having potentially lost a limb, who may be bleeding profusely, but they say: We will take a chance and not call the air ambulance.

This system is broken, and it needs to be fixed. It is broken for the patients, it is broken for the providers, and right now in this country there is no tool to address it.

We have a solution. Senator HOEVEN and I have an amendment to tackle this issue and put it on the FAA bill and get it done. Our amendment would provide States the ability to decide whether they want to create rules regarding air ambulance rates and services. Right now, States are prohibited from regulating air ambulances, but families have made it clear that something must be done to prevent these companies from raking families over and collecting exorbitant bills. A one-size-fits-all solution from Washington, DC, is not the answer, and that is why the good Senator from North Dakota and I believe each State should have the opportunity to address this growing problem in their own way.

Our amendment will provide incentives for these air ambulance companies to be better neighbors, as we like to say in Montana. It will encourage them to work with local hospitals and insurance providers to ensure that the lifesaving services they provide will not cause that family to lose their home.

This amendment is supported by State officials across the Nation and by folks on both sides of the aisle.

With that, I ask Senator HOEVEN to yield for a question.

Mr. HOEVEN. Certainly.

Mr. TESTER. Why is this legislation so important to Senator HOEVEN and his constituents in North Dakota?

Mr. HOEVEN. Madam President, I would respond to the good Senator from Montana that I think we have both described the importance in terms of the costs that people may face, particularly in a time when they are in an emergency or crisis situation. It is very difficult for them already. So, look, we need to do everything we can to make sure they can get quality medical care and that they are as informed

as possible in making those decisions and trying to make those decisions easier for them, particularly at a time when they are faced with a life-threatening situation or crisis situation.

The good Senator from Montana really put his finger on it when he said that we are not asking for a Federal one-size-fits-all solution. Instead, we are saying: Let's empower the States to do what they can in terms of helping people when they are faced with this kind of emergency situation.

So if one really looks at this amendment—and we have done a fair amount of work on it with health care providers, talking to the ambulance association and others, and we will continue to work on it. But essentially we are saying: Make sure people have that information readily available so that when they are in an emergency or crisis situation, they can make a quick and good decision that fits their needs, and let the providers compete for the business.

This goes to empowering people in terms of choice and deciding what kind of care they want, and then they can make an informed decision about what they want. If they are in a situation where health insurance has to cover it, then they make that decision accordingly. If they want some other service in a particular circumstance and they are willing to pay out of pocket, then they can make that choice too.

This really is about making sure that people have the information, particularly at a critical time when they really need it, so they get the health care they need and they also have some of those—what costs they are going to face. That is what it is all about. That is true in our States, which are more rural States, but it is true in the urban States as well.

Mr. TESTER. It certainly is, and I can say that what we have heard in Montana is that there is a problem out there. We need some help.

Last summer, I had a woman by the name of Christina from Missoula, MT, who called me. She and her husband both work full time. She pays $1,000 a month for her health insurance. She was being responsible, doing everything she was supposed to do, but an emergency struck, which could happen to anybody, and her daughter needed to be airlifted to Seattle, WA.

The cost of the flight was the last thing on Christina's mind. She cared only about the health of her daughter. In the back of her mind, she knew she had health insurance, so she knew she would be OK. When Christina and her daughter returned from Seattle, they found a bill waiting for them for $85,000, a little bit less than twice the average that an American earns every year. Think about this—getting a bill from a service that you had no choice but to take and then finding out that it cost you twice as much as you make in 1 calendar year.

Unfortunately, the story of Christina is not unique. Each year, more and more Montanans have a story exactly like Christina's. That is why it is critical that we get this problem addressed through this bipartisan amendment that will provide certainty and justice for families like hers. These folks really have nowhere else to turn.

If we can get this amendment on the FAA bill—and I know we are working with the committee right now, tweaking it, trying to make it work so that people are more at ease with it—we can begin to address this issue that has haunted too many families.

I would just tell you this. I had an accident when I was young, and it wasn't the kind of accident that was life threatening. My folks had only a 15-minute drive to get to the hospital. I could tell you that if I had been a little bit more unlucky and we had put it into the 21st century and my folks would have had to get an air ambulance—which is absolutely necessary in rural America sometimes; it is necessary depending on what problem has happened—it would have put the family in a position where they literally could have lost the farm. This isn't right. This isn't what this country is about. All it takes is just a little bit of tweaking, a little bit of knowledge, a little bit of transparency, and that is what this amendment does. I think we can get this problem fixed, and it is simply the right thing to do.

I want to thank Senator HOEVEN for his leadership and his hard work on this issue.

I yield back to Senator HOEVEN.

The PRESIDING OFFICER. The Senator from North Dakota.

Mr. HOEVEN. Again, I would like to thank the Senator from Montana for joining in this bipartisan legislation and just ask that our colleagues work with us to get a good commonsense solution to solve this very urgent need.

With that, Madam President, I yield the floor.

I suggest the absence of a quorum.

The PRESIDING OFFICER. The clerk will call the roll.

The senior assistant legislative clerk proceeded to call the roll.

Mr. HOEVEN. Madam President, I ask unanimous consent that the order for the quorum call be rescinded.

The PRESIDING OFFICER. Without objection, it is so ordered.

Mr. HOEVEN. Madam President, I would like to speak in support of several amendments that I am offering to the FAA reauthorization bill.

You may recall that in 2011 some of my colleagues and I offered a bipartisan amendment to a section of the bill that called for the FAA to develop a process to integrate unmanned aerial systems, UAVs or unmanned aerial vehicles, into the NAS, the National Airspace System.

That legislation included drafting a plan to develop air traffic requirements for all unmanned aerial systems at test sites; certification and flight standards at nonmilitary UAS test sites, as well as the National Airspace System; and making sure that the U.S. integration plan is incorporated in NextGen, the administration's project to modernize the American air traffic control system.

Importantly, it also called for the agency to designate six test sites to help accelerate the NAS integration plan.

These test sites were established in December of 2013, following a competitive process that encouraged some of the very best in the fledgling field of unmanned aerial systems to apply and compete for the test sites.

I am proud to say that Grand Forks in my home State of North Dakota made the cut and is one of the premier test sites and hubs for UAS research and development in America. The work they have done there and at the other five sites across the Nation has been nothing less than remarkable, which is why I am here today to make the case for some additional amendments to help them maintain their momentum.

The first is Hoeven amendment No. 3500, which extends authorization for the six test sites for another 5 years. The previous FAA bill from 2012 authorized the test sites for 5 years, and the legislation before us extends that just an additional few months, through September 30, 2017. Our amendment would extend this authorization by an additional 5 years, through September 30, 2022.

The Northern Plains UAS Test Site in North Dakota has some important achievements to point to: supporting NASA's UAS-related research; research and testing at up to 1,200 feet across the entire State of North Dakota, far above the limits for commercial small unmanned aerial systems; nighttime UAS operations; and approval to fly multiple types of UAS in the same airspace. Nevertheless, there is plenty of work left to do in support of integrating UAS into the national airspace, and that will require investment and support from industry partners. They will be much more likely to use the FAA test sites if they can be sure those test sites will be operational beyond the end of next year.

My second amendment is Hoeven amendment No. 3538, the private aircraft exemption, which will help to expedite testing of private industry aircraft by not requiring them to lease their aircraft to the test site in order to fly.

The six UAS test sites are intended to work with the UAS industry to perform research necessary to integrate the UAS, unmanned aircraft, into the national airspace. What are we trying to achieve here? We are trying to achieve concurrent use of the NAS, national airspace. Right now we obviously have manned aircraft flying all over the United States, but where we are going is we will have manned and unmanned aircraft flying at the same time, concurrently in the national airspace. We have to make sure that is done safely. We have to make sure that we address the privacy issues.

There is a whole gamut of issues that have to be addressed to do this safely and well. That is what the test sites are developing so that we can move to that new paradigm. It is vitally important.

We fly unmanned aircraft all over the world through our military, but we have to figure out how to do that safely and well in our airspace with civilian aircraft. That involves a lot of things—commercial aviation, general aviation, and unmanned aircraft for a whole myriad of uses. This is not an easy proposition, so we have to figure it out.

If we don't do this, we will pay a huge price because right now the United States is the aviation technology leader in the world. The United States leads aviation technology globally, but if we don't figure out how to do this, somebody else will, and we can't afford to forfeit our leadership in aviation technology. We can't afford it from a military standpoint, and we can't afford it from a civilian standpoint if we are going to continue to lead in technology, job growth, the jobs of the future, and the strongest, most innovative, dynamic economy both now and in the future.

We are working on the test sites to make this happen, but currently you have to lease your aircraft to the test site. You can't just come to the test site and get approval to fly. That is what we need to change.

Currently, as I say, any private industry partner seeking to fly at a test site must first lease their unmanned aerial system—their plane or drone or whatever you want to call it, RPA, remotely piloted aircraft—they have to lease that to the test site. As a public entity, it can then clear the aircraft to operate as a public aircraft while at that test site.

The problem is that the UAS industry is understandably reluctant to release their UAS aircraft to the test site for research work and has particular concerns about losing proprietary information through the leasing process. Remember, this is the latest, greatest new technology. Companies are investing hundreds of millions and billions of dollars in this new technology. They want to keep it proprietary. They don't want to disclose it to all of their competitors. At our test site right now, we have not only Northrup Grumman but General Atomics—manufacturers of Global Hawk, Predator, and Reaper—doing this kind of research and development. They need to protect those proprietary technology developments.

Obviously this is an important issue for them as they are working to develop the aircraft of the future. My amendment would provide an exemption for the test sites to fly civil aircraft subject to whatever terms and conditions the FAA Administrator deems appropriate for public safety and subject to the terms of the certificate of authorization already granted to the test sites.

Remember, the test sites have to get approval from the FAA to fly all of these different aircraft at the test site, so the FAA has already provided that prior authority. We don't need to have the additional work of in essence making these test aircraft public aircraft. These terms govern the airspace and conditions under which the test sites can operate with unmanned aerial systems.

This amendment is common sense. Current procedures block the test sites from assisting industry in developing technology that integrates into the national airspace. This amendment would enable the test sites to perform as originally intended; that is, as a bridge between industry and the FAA to develop concurrent airspace use for unmanned aircraft, which is a key part of the future of aviation.

Test sites will have the same responsibilities for safely managing the operation of UAS under their certificate of authorization as they do today. So this is about doing things in a more efficient way without any effect on public safety.

In addition, the FAA already grants numerous exemptions on a case-by-case basis to industry partners, known as section 333 exemptions. This amendment effectively serves as a test site 333 exemption, which should help decrease demand for the FAA to press the other exemption requests, again streamlining the process, making it work.

Finally, I filed Hoeven 3543, which leverages test site and center of excellence participation in the unmanned traffic management pilot program. The underlying FAA legislation establishes an FAA-led pilot program to develop an unmanned traffic management system, which will be essential to the final goal of integrating the UAS into the national airspace. This is how we manage traffic—manned and unmanned aircraft—in the same airspace. How do we manage that safely and well?

The amendment would require the FAA Administrator to leverage to the maximum extent possible the capabilities of the FAA's UAS center of excellence and the six UAS test sites when developing and carrying out the pilot program. So we are saying to the FAA: Work with the test sites and the national center of excellence, which we have developed for unmanned aerial systems to move this technology forward.

Right now, the FAA is behind the curve. The technology is racing forward, and we have to maximize our use of these resources to make sure that we are developing UAS the right way, in a way that the public feels is safe, that respects privacy rights, and that addresses all of the different potential concerns. Again, it is about doing things right and well with this new technology.

Again, this is a commonsense amendment. The FAA should use the capabilities Congress has put at its disposal, along with its interagency and industry partners, to advance development of unmanned traffic management systems. My amendments give our UAS test sites the tools they need to stay up front, which will ultimately yield research benefits on behalf of our country.

We have all seen and read in the media about how these remarkable new aircraft are playing a big military role in the security of our Nation. They achieve military objectives without putting our men and women in uniform in harm's way. We are also seeing how they play an important role in border protection and other security operations. Less well known is their use in precision agriculture, disaster mitigation, traffic safety, building inspections, energy infrastructure monitoring, and many uses that have yet to be imagined.

The UAS industry is anxiously awaiting the approval of rules to begin operating small UAS at low altitudes. This is an important step, but it is just one step. It is limited, which is why we need the test sites for the research and development necessary to move forward. The UAS test sites and the center of excellence are in a position to stay ahead of the curve. Doing the research will enable the next phase in UAS integration from flying at night and beyond line of sight to flying higher and farther using larger aircraft.

These amendments are important for the success of an exciting and rapidly growing segment of aviation in our country. The goal is to make UAS a fully working component of not only America's larger aviation system but also of our economy. As I said, we are the world's leader in aviation technology. We must continue to forge ahead to maintain that leadership.

I will close by saying that almost all of us now have an iPhone or Android—some type of phone in our pocket. It is so much more, isn't it? It is a full-blown computer. Think back 10 years. We had no idea that we would all have these cell phones or that they would have all of these amazing capabilities. But look at how much we use it every day in our lives. Well, I make that analogy with unmanned aircraft. What is it going to look like 10 years from now? What is it going to be like? Well, we don't know yet. We don't know what all these applications and what all these uses are going to be. But what we do know is that the United States needs to be the leader in aviation technology development. That is what we are talking about with these test sites—making sure that we can do it safely and well and that we can maintain that global leadership.

I yield the floor.

The PRESIDING OFFICER. The Senator from Alabama.

Mr. SESSIONS. Madam President, I would like to speak on an amendment I have submitted that will ensure the implementation of what is already required by statute: a biometric exit system for the United States. The law has

required a biometric—that means a fingerprint, as opposed to biographic, which is name and birth date—system that allows us to know who is coming into this country on a visa and whether they left when they were supposed to leave. It is absolutely critical to the safety of the United States. It is something the 9/11 Commission recommended as a high priority. Ten years later, when they did their Review Commission report to see how their recommendations had been carried out, they noted that one of their top concerns was the failure of Congress to complete the system.

Right now when you come into the United States, you put your hand on a screen and they clock you in biometrically, and then when you leave, there is no system that clocks you out.

It is just like going to work every day. You take one of these iPhones. It has got this place on the bottom where you put your finger. I put my thumb on it. I don't have to put in my pass code; it simply reads my fingerprint. This is done all over America. These screens are not expensive. They don't require a lot of space. It is something that should be done. It has not been done.

The first requirement for this was in 1996 through the Illegal Immigration Reform and Immigrant Responsibility Act. The requirements were largely ignored, and eventually modified until the terrorist attacks on September 11 caused us to focus again on the issue.

Congress responded by once again demanding that government implement an exit system with the passage of the USA PATRIOT Act, which stated that an entry and exit data system should be fully implemented for airports, seaports, and land border ports of entry ''with all deliberate speed and as expeditiously as practical.'' Fifteen years ago, that occurred. Congress then reiterated its demand for a biometric entry-exit system in 2002 when it passed the Enhanced Border Security and Visa Entry Reform Act. This bill required the government to install biometric readers and scanners ''at all ports of entry of the United States.'' Subsequently and consistent with the recommendations of the National Commission on Terrorist Attacks Upon the United States, Congress passed the Intelligence Reform and Terrorism Prevention Act of 2004, which mandated that the entry-exit system be biometrically based. That was 12 years ago.

Despite the relative successful implementation of a biometric entry system, the Department of Homeland Security has largely failed to implement this required biometric exit system. To date, Homeland Security has only implemented a handful of pilot programs. They have had one excuse after another, and failed to do so.

There have been some promising developments in recent months, I would note.

Of primary importance is the fact that Congress passed the Consolidated Appropriations Act of 2016. This created a dedicated source of funds for the implementation of a biometric exit system. It has been estimated that this fund will result in approximately $1 billion that will be available solely for the implementation of the biometric exit system required by law. Yet, even with this significant source of funding, the administration continues to dawdle. My amendment will end that delay and bring this matter to a close. It will complete the system that the 9/11 Commission said was essential for our national safety and security.

My amendment simply states that no funds from the FAA bill that we pass can be obligated or expended for the physical modification of existing air navigation facilities—that is, a port of entry—or of the construction of a new air navigation facility intended to be a port of entry, unless the Secretary of Homeland Security certifies that the owner or sponsor of the facility has entered into an agreement that guarantees the installation and implementation of such a facility not later than 2 years after the date of the enactment of the act. In other words, they have to complete the contract to make this system work, and then we give them 2 full years to accomplish it. That is more than enough time.

The amendment allows Customs and Border Protection officers at each airport that serves as a port of entry to create a solution that works specifically for the needs of CPB and the airport. It gives them some flexibility to work these things out. It does, however, require—finally and I hope fully—an agreement that guarantees that the system will be installed and implemented at the airport in 2 years.

These airports drag their feet. Airlines drag their feet. They do not like to be bothered about this. It is not in their priorities, but it is not going to cause them great problems. It is not going to cause the airplanes great problems.

Somebody needs to be representing the national interest around here, what is in the public interest. They don't get to undo a law passed by Congress 20 years ago that should have already been implemented years ago. It is that simple.

This deal could be done in 6 months if we had an administration that was determined to get it done. The equipment is already available all over the country. Many police officers have these screens in their cars. They arrest someone for DUI, and they make them put their hand on the screen, and it runs a check throughout the United States. They find out that someone arrested in Alabama has a warrant for murder in New York City. That is the way the system is working today all over the country. We can't make this work at an international airport to ensure people who have a limited-time visa in the United States actually leave when they are supposed to? And when we find out someone may be a terrorist or connected with some illegal enterprise or terroristic plan, we want to know if they actually left the country or are still in the country. This is something law enforcement—the FBI and Homeland Security—needs to know about.

I was told by one company that there are many competitors who would bid for this work. There are all kinds of systems out there. One manufacturer suggested we should host in the Capitol a products day and let all these companies bring in their systems so staffers and Members of Congress can go out and see what the possibilities are and erase forever this idea that this is somehow impractical, not feasible, and can't be done.

If Apple and Samsung and others can implement technology on your cell phone, on your mobile phones to access them, you can be sure the U.S. Government could work with the airports to complete a biometric exit system, as the law has long required. Such a system will not have large space requirements. U.S. Customs and Border Protection can work with the larger airports with international terminals and install physical equipment at their departure gates. CBP can work with smaller airports to deploy handheld systems at gates handling international flights.

Ultimately, all a passenger exiting the United States needs to do is place his or her hand on a simple screen or, with some devices, even just wave their hand in front of it. We had an expert tell us they have a system you don't even have to touch the screen. You can wave your hand in front of it, it reads the fingerprints, and the device will biometrically identify the passenger as the person exits.

Somebody can take your name, go to the airport, and exit the country with some sort of ID and claim they exited as you were supposed to exit, without this biometric check, because you can use any name. If they clear this screening area, they move into the boarding area. They will be allowed into the boarding area. If there is a hit because the boarder is on some no-fly list because of some danger, the passenger can be denied boarding or removed from the plane before it takes off, and their baggage can be removed from the plane. Importantly, the United States would then have a unified, automatically produced list of those who have departed on time and those who have overstayed their visas.

Colleagues, I would note we are having a huge surge in the number of people who come to this country on a visa and don't go home. It now amounts to over 40 percent of the people illegally in the country who came on a visa, promising to go home at a certain time, yet who are not going home.

We had a Democratic debate a few weeks ago when former Secretary Clinton said: Well, if you are found in the United States unlawfully you should only be deported if you have been indicted or charged with a violent felony.

How did this become the law? You are not allowed to stay in the country. You can't stay in the country if you overstay your visa. That is the law. You are deportable right there, whether you are a good person or not, and even if you never committed a traffic offense. Now we have leadership in this country so detached from law, so detached from the will of the American people, they are saying you can come in and stay for years after overstaying your visa and only be deported if you commit a violent felony.

This has to be brought to a conclusion. The American people want a lawful system of immigration—are they wrong to ask for that?—one that serves the interests of the American people, one that is worthy of a nation that validates the rule of law, or do we just give in? Do we capitulate to lawlessness, and anybody who comes and can get into our country—even for a month, presumably—and who commits a $50,000 bank fraud is not going to be deported because it is not a violent crime, even though the law says otherwise?

Let me just note that for a host of reasons the system should be based on the fingerprint system where we maintain our extensive database. There are eye systems that will read your eyes, we have systems that will read your face, but, colleagues, do not be led into that. We are not ready to do that. There is no data system that supports a face system. Let's stay with the fingerprints, as experts have told us.

Let me also note that numerous countries around the world, including New Zealand, Singapore, and Hong Kong, use a biometric system now. This is proven. There are approximately 17 countries.

Ending this failure has bipartisan support. My subcommittee—the Subcommittee on Immigration and the National Interest—held a hearing on January 20 entitled ''Why is the biometric exit traffic system still not in place?'' During the hearing, we got promises from the administration but no commitment regarding when such a system would actually be deployed.

Just a few weeks later, Secretary Johnson of Homeland Security made statements directing the Department of Homeland Security to begin implementation of the system at our airports by 2018—begin the implementation by 2018. So this is another mere promise—the kind of promises that have never resulted in the production of a system, and that uncertainty must end. The obvious missing piece is an actual completion date. This bill would create that. It is these kinds of lulling comments we have heard for all these years that have kept us from actually following through on the system.

If Congress would like to know why the American people are not happy with their leaders in Washington, this is a good example of it, a very good example. Congress promises to fix a problem, we even vote for a bill to fix it, and in this case we voted for bills to fix it, they passed and became law and require the problem to be fixed, but it doesn't happen. As decades go by, we sit by and nothing ever happens. A special interest group speaks up here and a special interest group speaks up there and somehow it never happens.

It is time to fulfill the promise and commitment to the American people. We promised the American people a system that would demonstrably improve our national security. As noted by former Commissioners on the National Commission on Terrorist Attacks Upon the United States in a report issued in 2014, ''Without exit-tracking, our government does not know when a foreign visitor admitted to the United States on a temporary basis has overstayed his or her admission. Had the system been in place before 9/11, we would have had a better chance of detecting the plotters before they struck.''

We have long known that visa overstays pose serious national security risks. A number of the hijackers on September 11 overstayed their visas. The number of visa overstays implicated in terrorism since then is certainly a significant number. A new poll came out earlier this year that indicates that three out of four Americans not only want the Obama administration to find these aliens who overstay their visas—not just the ones who have committed violent felonies—but also deport them. The same poll indicates 68 percent of Americans consider visa overstays as a ''serious national security risk,'' and 31 percent consider visa overstays as a ''very serious'' national security risk. And there is little doubt about why.

The risks to our national security are too high for us to maintain the status quo. We are having more and more people traveling by air to the United States from around the world. We simply allow them to come on a very generous basis. They commit to leaving after a given period of time. Whether it is for a vacation or a job, they then plan to return to their home country, and we need a system to know if they are complying with that. We must fulfill the promise we made to the American people and do all we can to complete this system. My amendment would do so. It would finally bring this to a conclusion because it would say to the Air Force: We have money to help you do your runways, expand your airports, and do the kinds of things you would like to, but we want this agreement in place first.

Mr. President, I understand that some on the Democratic side intend to object to calling up this amendment. It was my intention at this time to call up this amendment. I don't see any Democrat here, but I have been told that is what they want to do, and they passed that word along. So in an act of courtesy, I will not call up the amendment at this time, but we need to bring it up. Every Democratic member of my subcommittee who attended the hearing—Senators SCHUMER, FEINSTEIN, and FRANKEN—all said they favored fixing this. I think we have a bipartisan agreement if we can get a vote, but, once again, we may not be having a vote. That would be very distressing because I don't see how anybody could oppose the final completion of this much needed product.

I thank the Chair, and I yield the floor.

The PRESIDING OFFICER (Mr. GARDNER). The Senator from New Hampshire.

NATIONAL EQUAL PAY DAY

Ms. AYOTTE. Mr. President, I rise because it is Equal Pay Day, and I would like to talk about the importance of finally ending gender-based discrimination in wages. It is unfortunate that in the year 2016, this is still an issue we need to address in this country, but it is.

I had the privilege of serving as our State's first female attorney general. I think it is the right thing to do and the obvious thing to do, and under our laws this already exists—that equal pay for equal work should be the standard. All of us should be judged in the workplace by our experience, our qualifications, and our capability of doing our job and nothing else.

Women face many challenges in balancing work and family life. I know that firsthand, being the working mom of two young kids. On top of those challenges, no woman, whether she is a mother or not, should ever face gender-based pay discrimination in the workplace. Today, more than half of New Hampshire's women serve as the primary or coearner in their household. That just underscores the serious need to address this problem.

Men and women should receive equal pay for equal work. It is that simple. Your salary should be based on how you do your job. Because of that, I introduced the Gender Advancement in Pay Act, or GAP Act, along with Senators CAPITO, PORTMAN, BURR, and HELLER, and I thank my cosponsors for supporting this effort.

What we did is we built on a highly successful bipartisan pay equity law that was signed into law in my home State of New Hampshire in 2014. The GAP Act makes it clear that employers must pay men and women equal wages for equal work, without reducing the ability of employers to provide merit pay and reward merit, which all of us want. Having been the first woman attorney general, I want to give women the opportunity to outperform their male counterparts as well because I know we can.

Today, there is a patchwork of laws that govern equal pay and an employee's ability to discuss their pay without fear of retaliation, and differing court opinions have led to a situation where some employees receive protections not available to others simply based on where they live. As such, the

GAP Act is a sensible approach to updating, clarifying, and strengthening these laws.

For 20 years the Paycheck Fairness Act has been around in the Congress. It has never passed. One of the reasons, I think, was described very well in 2010 by the Boston Globe. It said that the Paycheck Fairness Act, as a whole, was too broad a solution to a complex, nuanced problem, but that a narrower bill that would stiffen some penalties and ban retaliation would be helpful. That is exactly what the GAP Act is—a bill that stiffens penalties, bans retaliation, and clarifies the law so that we can ensure we have equal pay for equal work.

In short, my bill updates the Equal Pay Act's ''factor other than sex'' clause. Currently, employers can explain away pay differentials by pointing to a number of factors. One of those was ambiguously written to be a ''factor other than sex.'' Our bill closes this loophole and clarifies that any factor other than sex must be a business-related factor, such as education, training, or experience. It makes sense; doesn't it? Why would you allow a defense of a ''factor other than sex'' that has nothing to do with your job? To me, that seems to be inviting discrimination. That is why we should clarify the law to make clear that it has to be a factor related to your job—such as education, training, or experience. This would clarify the law for employees and protect the rights of employees, and, also, employers would clearly have this provision defined.

The GAP Act also creates a penalty for willful violations. This is actually one step further than New Hampshire's bipartisan pay equity law. So it would put teeth into it, and I think that is important. Employers that knowingly act with the intent to discriminate should have to pay a penalty. What we do with the funds from this penalty is to take the funds and, rather than putting them back in the General Treasury, we are going to study the wage gap issue, make sure we have the best research on what is causing it and what is happening, and find more ways to expand opportunities for women in the workforce with better paying jobs.

The GAP Act would also promote salary transparency. According to the Institute for Women's Policy Research, about half of workers were discouraged or outright prohibited from discussing their pay with coworkers. When employees are allowed to discuss their pay, they are more likely to uncover incidents of discrimination. Yet, if I am not allowed to discuss my pay and I find a coworker who is the same situated as me yet making more money—a male counterpart—and I am not allowed to raise this because I can't discuss pay comparisons, then how am I going to raise a claim of discrimination? So we need to make it more transparent. We need to ensure that employees are allowed to discuss their pay. This will make it more likely to uncover incidents of gender-based pay discrimination.

So our bill prohibits retaliation against employees who discuss their pay, and tells employers they can't institute secret pay policies and they can't ask an employee to bargain away their right to be able to talk about their pay if they choose to.

Importantly, after getting feedback from stakeholders in our States, we made sure that provision is strong. The cosponsors of this bill reintroduced an updated version of this bill this week to ensure that there are stronger provisions for salary transparency and to make it clear that employers cannot sidestep provisions that ban retaliation against employees who discuss their pay. It prohibits pay secrecy policies that could encourage this kind of behavior.

On Equal Pay Day, today, it is very important that we all work together to do anything we can to end the gender wage gap. One of the things we should do is to stop the political posturing. Let's stop using this incredibly important issue as a political football, because legislation like the Paycheck Fairness Act has been around 20 years.

I am glad to introduce the GAP Act, because I believe this is a commonsense piece of legislation that gets at the issue by clarifying our laws in a way that benefits employees. It makes sure it is clear that if you willfully violate our laws, you are going to have to pay a penalty. We are going to take that money, and we are going to put it back into research to further help us address the pay gap. We are also going to make clear for plaintiffs that, if you want to file an EEOC claim and you also want to file an equal pay claim, we will make sure you can do both, and your rights will be protected to do both by staying the statute of limitations while the EEOC claim is going forward. This will help plaintiffs not have to litigate in two forums. This will also allow the EEOC to do their job and, if they find discrimination, to be used in an equal pay act claim. This is another important step for plaintiffs and also to clarify that those who are victims of discrimination are able to bring their rights forward.

On Equal Pay Day today, I hope we can stop making this a partisan issue and start actually passing legislation that will make a difference. In 2014 New Hampshire passed an important law. I was glad New Hampshire did that. I was glad that I could introduce what New Hampshire did here in the Senate on a bipartisan basis and build on that to introduce the GAP Act with some of my colleagues.

I hope today, on Equal Pay Day, we will take up legislation like the GAP Act and address gender-based pay discrimination. We are in 2016. I have an 11-year-old daughter. I don't want to be discussing this 20 years from now. I would like us to work on this in a serious, bipartisan manner, to address this, and to end gender-based pay discrimination once and for all, because equal pay for equal work just makes sense. It is the right thing to do, and it should be how our laws work.

I yield the floor.

I suggest the absence of a quorum.

The PRESIDING OFFICER. The clerk will call the roll.

The bill clerk proceeded to call the roll.

Mr. FLAKE. Mr. President, I ask unanimous consent that the order for the quorum call be rescinded.

The PRESIDING OFFICER. Without objection, it is so ordered.

Mr. FLAKE. Mr. President, I rise to speak in support of Flake amendment No. 3556.

The amendment is simple. It simply strikes the newly added prohibition in the Visa Waiver Program on citizens of Visa Waiver Program countries who are also dual nationals of certain other countries, such as Iran, Iraq, Sudan, and Syria.

To be clear, this amendment keeps in place all other provisions added to the Visa Waiver Program to improve the security of the program, such as requiring greater information sharing. However, the dual national provision does not provide any meaningful security benefit and, instead, is a detriment to the country and the vast majority of dual nationals who provide a great benefit to the United States.

The problem with the dual national prohibition is twofold. It is both imprecise in its application, and it is difficult, if not impossible, to administer. One reason the prohibition is imprecise is because it prevents travel under the program regardless of travel history. For example, a dual national of Iran who is prohibited from using the Visa Waiver Program need not have ever been to Iran to be prohibited. In fact, there is no clear definition of who qualifies as a dual national, and it demonstrates how this prohibition is impossible to administer.

Many groups have pointed out that there is no international agreement on the rules of nationality, and that many people are dual nationals even if they do not wish to be. For example, there is no automatic way to relinquish one's Iranian nationality. It can only be accomplished if the individual is allowed to do so by the Iranian Council of Ministers and fulfills a number of requirements, including the completion of national military service. Does this sound likely or possible for an individual who has never resided in Iran?

Now, the administration has recently stated that they will determine each potential visitor's nationality on a case-by-case basis. According to them, ''the U.S. government need not recognize another country's conferral of nationality if it determines that nationality to be 'nominal.' ''

They also said ''DHS assesses whether an individual is a national of a country based on an individual's relationship to that country, such as if an individual maintains allegiance to that

country.'' However, the administration would not specify what counts as ''maintains allegiance.''

These examples show that the Visa Waiver Program is gaining nothing when it comes to actual security, and, instead, unfairly prohibits individuals' participation based on meaningless standards.

Furthermore, of greatest concern is the potential for reciprocal treatment of U.S. citizens. Just today, the European Commission asked European Union governments and European lawmakers to suggest what actions the Commission might take due to the lack of visa waivers for some EU citizens. Now, while there are a number of concerns when it comes to reciprocity, this dual nationality provision has not gone unnoticed. Specifically, the Commission stated: ''In parallel to discussing full visa reciprocity, the Commission will continue to monitor the implementation of the changes in the Visa Waiver Program.''

After expressing concerns about the negative consequences of these changes on ''bona fide EU travelers,'' the Commission invited the United States to consider the Equal Protection in Travel Act of 2016 in order to mitigate restrictions imposed on dual nationals. This amendment is that act.

I agree that we should mitigate these restrictions on dual nationals and mitigate the chances of reciprocal treatment for U.S. citizens. The U.S. passport is the most powerful in the world, and we need to ensure it remains that way. We should not threaten that status for a provision that is both imprecise and impossible to administer.

I hope we can have a vote on this amendment, and I hope my colleagues can support it.

I yield the floor.

I suggest the absence of a quorum.

The PRESIDING OFFICER. The clerk will call the roll.

The bill clerk proceeded to call the roll.

Mr. SULLIVAN. Mr. President, I ask unanimous consent that the order for the quorum call be rescinded.

The PRESIDING OFFICER. Without objection, it is so ordered.

Mr. SULLIVAN. Mr. President, I rise today to speak in support of the Federal Aviation Administration reauthorization bill which is before the Senate and which we have been debating over the last week. Ensuring that our great Nation—States such as Colorado and Alaska that have important aviation industries—has a healthy and safe general aviation community and comprehensive aviation infrastructure is exactly the type of issue this Congress needs to be working on and the type that has been a top priority in previous Congresses.

In my State, aviation has a very rich history and is an incredibly important driver of our economy but also an important element of connecting the entire State. Many aspects of our lives in Alaska rely on commercial and general aviation. Living in a State of such enormous scale with numerous remote communities gives Alaskans a very deep appreciation for air travel, which in many cases provides the only means for transportation for many residents.

One of the things that is very much an honor being in the U.S. Senate is how different Senators come and describe life in their States so all Americans have a better understanding of how the entire country is knitted together, how we work together, but what unique challenges different States have.

For more than 100 communities in Alaska—including regional centers such as Bethel, Nome, Barrow, and Kotzebue—aviation is the only means of getting in or out of those communities since there are no roads. Most States don't understand that. There are no roads, no ferry service, so aviation is critical. Alaska is unique in its dependence on aviation, and we have a very busy, what we call highway of the skies. There are more pilots per capita in my State than any other State in the country. So that means everything from mail, to groceries, to baby diapers has to be flown in by plane to many communities. If someone gets sick and needs to see a doctor, oftentimes that can only be done by air. There are over 400 general aviation airports across Alaska, 250 of which are owned and operated by the State of Alaska, and that doesn't include hundreds of heliports that support mining, timber, the oil and gas industry, and others.

General aviation and aviation infrastructure are critical components of our economy and our quality of life in our State, in Alaska. It is fundamental in terms of connecting people and communities and promoting and sustaining economic development. Indeed, estimates show that the general aviation community contributes over $1 billion a year in economic activity to the State of Alaska's economy and supports over 47,000 jobs; that is 1 in 10 jobs in the entire State.

This is a very important bill. It is an important bill for the State of Alaska, but it is also an important bill for the United States of America. The FAA reauthorization bill will expire in July, and it is important to avoid the uncertainty of more short-term extensions by passing the authorization bill we have had on the floor of the Senate over the last week.

I thank Chairman THUNE and Ranking Member NELSON for all the work they have been doing night and day, really for months on this important bipartisan bill. So far the process has been a model of how the Senate should work.

Our friends in the media love to write the stories about nothing working in the U.S. Senate. I don't think so. There are a lot of important bills moving—the highway bill, the Education bill, human trafficking. Now we are looking at a bipartisan way to address a very important bill for the country; that is aviation, that is aviation infrastructure, and that is aviation security.

Let me talk about some of the substance more broadly for the country and why this bill is so important.

One aspect of the bill is the Pilot's Bill of Rights 2. Building off the success of the initial Pilot's Bill of Rights, this provision continues to make essential reforms for pilots—mostly general aviation pilots who are so important to my State—streamlining an overly burdensome medical certification process, increasing transparency and access to additional information for pilots in all the different aspects of their requirements as to being pilots in the general aviation community. There are provisions that also balance and make essential inroads toward rebalancing the relationship between the FAA and general aviation pilots.

One thing this Senate bill does not do—there has been a discussion over in the House—is it does not transfer the air traffic control services that are so important to many of our States—particularly rural States—to a private corporation.

This bill also, very importantly, strengthens safety for pilots and passengers across the country. You can't pick up the news and not see how important this issue is. From the terror attacks in Brussels, at the airport there, to the Russian flight out of Egypt that went down because of a suspected ISIS attack, to instances of criminal behavior even among U.S. airport employees, events around the world have underscored how important the need for stronger security measures for our Nation's air travel is.

What is really important is this is the Senate taking proactive action. This is not a bill on aviation security where we are reacting to some horrible tragedy, God forbid, in terms of aviation security, whether an accident or a terrorist attack at one of our airports. What we have been doing is looking at the challenges in these areas and taking proactive measures so we don't have to react when there is a terrorist attack or an accident.

So these are comprehensive airline security reforms that are some of the most important that have occurred and that we have debated in this body for over a decade. Let me list just a few of them.

The bill includes several measures for the security of passengers by improving airport employee vetting to ensure that potentially dangerous individuals don't have access to secure areas in our airports, expanding the enrollment in the TSA PreCheck Program so passengers move through security lines into more secure areas more quickly—we saw how important that was in Brussels—and enhancing security for international flights bound for the United States.

Overall, this legislation addresses a growing concern in terms of security, including the cyber security threats facing aviation and air navigation systems for our commercial airlines. The

bipartisan FAA Reauthorization Act does more for passengers and more for security than any bill, at least in the last decade. It is an important bill, it is a good bill for America, and it is a good bill for Alaska. It will advance measures to keep us safer. That is why I am supporting this bill, and I encourage my colleagues to do so as well.

I yield the floor.

The PRESIDING OFFICER. The Senator from North Dakota.

NATIONAL EQUAL PAY DAY

Ms. HEITKAMP. Mr. President, as we have heard all day, today is Equal Pay Day. What does that mean? That means that today is the first day women in the workforce—if we separated male and female workers—would actually get a paycheck in the year. That is pretty remarkable, and it is a disparity we have been working on for decades in this country but still have not achieved the parity that we believe is absolutely essential if we are going to be a family-friendly and forward-looking country with a growing and prosperous middle class.

I think way too often the issue of pay equity—the issue of equal pay—is characterized as a woman's issue. It is characterized as something that only elite women care about, and it is characterized as something that is not something for the government to address. Well, I am here to dispel all of those myths. I think we can only fairly say that by shortchanging women, employers are also shortchanging working families. Families need a full salary so they can put food on their table and make sure children have the medical care they deserve.

We have all heard the stark statistic that nationally women only earn 79 percent of what White, non-Hispanic males are paid. In North Dakota, the numbers are even more dramatic. The pay equity there is 71 percent. Women earn just 71 percent of what men make in my State. It is unacceptable. It is unacceptable at a time when—according to a recent study from the Pew Research Center—women are now the leading solo breadwinners in 40 percent of households. That compares to just 11 percent in 1960. It does not make sense that we are still struggling to make the same amount as men for equal work.

Additionally, in North Dakota, 74 percent of children live in households where both parents work. Both parents need to work in order to support their families. When women don't make as much as men, it doesn't just hurt them, but it hurts their children and families across the country.

What is Congress to do about this disparity? We need to pass a paycheck fairness bill. We need to make sure we have this critical piece of legislation, which responds to this concern, in our laws and in the statutes of the United States of America.

What does paycheck fairness do? It would help close the pay gap by taking critical steps to empower women to negotiate for equal pay. I can't tell you the number of times I have heard women in my State say: Well, I just didn't know I wasn't getting paid what a man was getting paid. And employers saying: Well, she didn't ask and he did. I think we need to be able to give the tools to women so they know when there is disparate treatment. We need to close the loopholes the courts have created in the law, we need to create strong incentives for employers to obey the laws that are in place, and we need to strengthen Federal outreach and enforcement efforts.

Looking at pay is only one part of the equation. We also need to pass other family-friendly policies, such as the FAMILY Act, which would establish a Federal paid leave policy.

I can only imagine what the debate was in this body when somebody came up with the idea to introduce employment insurance. I am sure there were a lot of discussions about yet another program and yet another system that would actually add to the payroll tax and add to burdens put on families.

Who today in this body would propose that we eliminate unemployment insurance? It has been a valuable transition opportunity so our workers can look for that next job without disrupting their family payment. As a person whose father was a seasonal construction worker, I know how critical that benefit was to my family when I was growing up. I know unemployment insurance frequently gave our family the ability to put food on the table in my household.

Let's talk about what happens when someone has a baby. Let's talk about what happens when someone's mom gets sick. Let's talk about what happens when we have a catastrophic illness of our own. Many people in my State—in fact, the majority of people in my State—do not have 1 day of paid leave. So their choice is to take care of their family's health conditions or to take care of their newborn child and just quit their job or go on unpaid leave and actually not receive a salary.

How many people can go on unpaid leave and not receive salary? Not a lot. What it means is that frequently when people have to transition away from work, all of a sudden that person qualifies for food stamps, qualifies for Medicaid, and qualifies for other government assistance programs. The cost to the employer for those government programs is equal to the price of a cup of coffee a week. For $1.50 a week per employee, we can provide this benefit. How do we know we can provide this benefit? Because we have States that have done it. California, which restricted their payment, I believe, to 50 percent to families who used this insurance benefit, recently upped that amount to 70 percent. This bill would put it at 66 percent.

The FAMILY Act is also a critical piece of legislation that moves our employment economy into the 21st century. It actually recognizes that women are in the workplace, and they are in the workplace for real and permanently. It recognizes that when we have family-friendly policies, we have a better workforce, we have a more economical workforce, and we have an opportunity for employers to keep their businesses.

Recently, in North Dakota, Senator GILLIBRAND and I traveled around the State talking about our paid leave policy in the FAMILY Act. We were in a small business with less than 10 employees. The owner said he would love to provide this benefit, but there was no way he could economically afford it. If anything happened to one of his employees, there would be no way he could give this benefit and also hire a temporary worker. If he had the opportunity to share that risk broadly with all small employers in the country, that shared risk would then make this benefit available to him, and he could keep his employees. He could keep those employees whom he trained, and he could make sure they were better employees when they came back because they have that benefit.

We need to understand this isn't just about the girls. This isn't just about the women of the Senate standing up. It is about a shared experience we have all had. It is a shared experience of having to choose between going home and taking care of your mother or actually feeding your family. That is not much of a choice. When we look at why people are angry in America today and why they feel like they are not getting ahead, it is because they are falling further and further behind because we aren't adopting 21st century policies, such as the FAMILY Act, equal pay for equal work, and recognizing the value of what women do.

I will close with a true story. When I was in college, between my freshman and sophomore year, I was a nanny. It was very rewarding. I loved the kids, but it was hard work and it was 24/7. After working as a nanny, I was a construction worker. Do you know why I worked construction? I was paid better and the work was not as difficult. I worked in a factory cleaning pipes, I worked on road construction, and I worked on rural water construction. Yes, that is hard work, and I was a laborer in all of those jobs. It is hard work, but none of it is as hard as taking care of children, sick people, or the elderly. Yet in America those jobs pay less.

It is time we evaluate what is happening in the workplace and what is happening to America's families so we can adopt these family-friendly policies. In fact, we need to listen to our constituents so we can have empathy for the challenges of American families. When that empathy finds its way to public policy in the halls of Congress, people will once again feel reconnected to their government.

I encourage everyone who hasn't taken a look at pay equity and hasn't yet taken a look at the FAMILY Act to

understand and appreciate what this can do for their constituents, what this can do for the American workplace, and how we can help small businesses provide the services and benefits they need to provide so they can compete in this very competitive workforce environment.

With that, I yield the floor.

The PRESIDING OFFICER. The majority leader.

AMENDMENT NO. 3464, AS AMENDED

Mr. MCCONNELL. Mr. President, I move to table the Thune amendment No. 3464.

The PRESIDING OFFICER. The question is on agreeing to the motion.

The motion was agreed to.

AMENDMENT NO. 3679

(Purpose: In the nature of a substitute)

Mr. MCCONNELL. Mr. President, I call up substitute amendment No. 3679.

The PRESIDING OFFICER. The clerk will report.

The senior assistant legislative clerk read as follows:

The Senator from Kentucky [Mr. MCCONNELL], for Mr. THUNE, proposes an amendment numbered 3679.

Mr. MCCONNELL. I ask unanimous consent that the reading of the amendment be dispensed with.

The PRESIDING OFFICER. Without objection, it is so ordered.

(The amendment is printed in today's RECORD under ''Text of Amendments.'')

CLOTURE MOTION

Mr. MCCONNELL. Mr. President, I send a cloture motion for the substitute amendment to the desk.

The PRESIDING OFFICER. The cloture motion having been presented under rule XXII, the Chair directs the clerk to read the motion.

The bill clerk read as follows:

CLOTURE MOTION

We, the undersigned Senators, in accordance with the provisions of rule XXII of the Standing Rules of the Senate, do hereby move to bring to a close debate on Senate amendment No. 3679.

Mitch McConnell, Daniel Coats, Roger F. Wicker, Roy Blunt, Orrin G. Hatch, Thom Tillis, John Hoeven, Rob Portman, James Lankford, John Thune, Mike Rounds, John Cornyn, John Barrasso, Johnny Isakson, James M. Inhofe, Jerry Moran, Kelly Ayotte.

Mr. MCCONNELL. I ask unanimous consent that the mandatory quorum call be waived.

The PRESIDING OFFICER. Without objection, it is so ordered.

CLOTURE MOTION

Mr. MCCONNELL. Mr. President, I send a cloture motion for the bill to the desk.

The PRESIDING OFFICER. The cloture motion having been presented under rule XXII, the Chair directs the clerk to read the motion.

The bill clerk read as follows:

CLOTURE MOTION

We, the undersigned Senators, in accordance with the provisions of rule XXII of the Standing Rules of the Senate, do hereby move to bring to a close debate on Calendar No. 55, H.R. 636, an act to amend the Internal Revenue Code of 1986 to permanently extend increased expensing limitations, and for other purposes.

Mitch McConnell, Daniel Coats, Lamar Alexander, Bob Corker, Roger F. Wicker, Orrin G. Hatch, Thom Tillis, John Hoeven, Kelly Ayotte, John Thune, Mike Rounds, Roy Blunt, John Cornyn, Pat Roberts, John Barrasso, Johnny Isakson, James M. Inhofe.

Mr. MCCONNELL. I ask unanimous consent that the mandatory quorum call be waived.

The PRESIDING OFFICER. Without objection, it is so ordered.

AMENDMENT NO. 3680 TO AMENDMENT NO. 3679

Mr. THUNE. Mr. President, I call up amendment No. 3680.

The PRESIDING OFFICER. The clerk will report.

The senior assistant legislative clerk read as follows:

The Senator from South Dakota [Mr. THUNE] proposes an amendment numbered 3680 to amendment No. 3679.

Mr. THUNE. I ask unanimous consent that the reading of the amendment be dispensed with.

The PRESIDING OFFICER. Without objection, it is so ordered.

The amendment is as follows:

(Purpose: To strike and replace section 4105)

Strike section 4105 and insert the following:

SEC. 4105. ADS-B MANDATE ASSESSMENT.

(a) ASSESSMENT.—Not later than 1 year after the date of enactment of this Act, the Inspector General of the Department of Transportation shall assess—

(1) Administration and industry readiness to meet the ADS–B mandate by 2020;

(2) changes to ADS–B program since May 2010; and

(3) additional options to comply with the mandate and consequences, both for individual system users and for the overall safety and efficiency of the national airspace system, for noncompliance.

(b) REPORT.—Not later than 60 days after the date the assessment under subsection (a) is complete, the Inspector General of the Department of Transportation shall submit to the appropriate committees of Congress a. report on the progress made toward meeting the ADS–B mandate by 2020, including any recommendations of the Inspector General to carry out such mandate.

MORNING BUSINESS

THREAT TO INDONESIA'S ORANGUTANS

Mr. LEAHY. Mr. President, a December 16, 1997, New York Times article entitled ''Asia's Forest Fires, Scant Mercy for Orangutans'' described the widespread illegal logging and slash and burn agriculture that posed an existential threat to the orangutan, one of the world's only four species of great apes. It was after reading that article and speaking to scientists who had devoted their lives to saving the orangutan from extinction that I started a program in the foreign aid budget to help protect their rapidly shrinking habitat.

Orangutans live in only two places on Earth, Borneo and Sumatra, and since I first learned of the threats they are facing, the U.S. Agency for International Development has provided millions of dollars to nongovernmental organizations in Indonesia to try to ensure their survival in the wild.

Important progress has been made. Back when the program started, it was feared that the orangutan would be extinct in the wild within 15 years if nothing was done. That has not happened, but their survival is far from assured, as an article in the April 6, 2016, edition of the New York Times entitled ''Adapting to Life as Orphans, Fires and Corporate Expansion Threaten Indonesia's Orangutans,'' describes. It reminded me of what had sparked my attention 20 years ago and how much more there is yet to do.

Orangutans and humans share 97 percent of the same DNA. They are extraordinarily intelligent animals and physically far stronger than humans, but today, like all species, their survival depends on humans.

The Indonesian Government has taken steps to change people's attitudes toward orangutans, so they are recognized as deserving of protection, not as pests to be killed or captured and kept as pets. In many ways, the orangutan is or could be Indonesia's equivalent of China's Giant Pandas which are protected and admired around the world.

Among the biggest threat to orangutans today is the palm oil industry, which is responsible for the destruction of huge areas of tropical forest where orangutans live. The fires used to clear the forest for the planting of palm oil trees has caused havoc on the environment and public health, contributing not only to the destruction of species but widespread drought.

The New York Times describes this increasingly precarious situation. I want to quote a few passages from that article:

''The blazes destroyed more than 10,000 square miles of forests, blanketing large parts of Southeast Asia in a toxic haze for weeks, sickening hundreds of thousands of people and, according to the World Bank, causing $16 billion in economic losses.''

''They also killed at least nine orangutans, the endangered apes native to the rain forests of Borneo and Sumatra. More than 100, trapped by the loss of habitat, had to be relocated. Seven orphans, including five infants, were rescued and taken to rehabilitation centers here.''

''Indonesia has approved palm oil concessions on nearly 15 million acres of peatlands over the last decade; burning peat emits high levels of carbon dioxide and is devilishly hard to extinguish.''

''Multinational palm oil companies, pulp and paper businesses, the plantations that sell to them, farmers and even day laborers all contribute to the problem.''

''While it is against Indonesian law to clear plantations by burning, enforcement is lax. The authorities have

opened criminal investigations against at least eight companies in connection with last year's fires, but there has yet to be a single high-profile case to get to court.''

''The government in Jakarta, the capital, has recently banned the draining and clearing of all peatland for agricultural use, and it has ordered provincial governments to adopt better fire suppression methods. But it has not publicly responded to calls for better prevention, such as cracking down on slash-and-burn operations by large palm oil companies.''

It would be an unforgiveable tragedy if any species of great apes were to become extinct in the wild. They are all endangered—gorillas, chimpanzees, bonobos, and orangutans. We need to do whatever is necessary to build international support for protecting these animals, and to help countries like Indonesia enforce its laws to stop the destruction of tropical forests on which these and so many other species depend.

NATIONAL EQUAL PAY DAY

Mrs. FEINSTEIN. Mr. President, today is Equal Pay Day, and I wish to speak about the importance of ensuring women in this country are paid fairly.

April 12—102 days into the year—marks the day that women's wages catch up to men's wages from the previous year. That is unacceptable. We can do better.

Last week, the national women's soccer team filed a complaint with the Equal Employment Opportunity Commission. The complaint states that women are paid just 40 percent of what men are paid—despite the fact that our women's soccer team has long been one of the best in the world. The team has won four of the last five Olympic Gold Medals and three of the last seven World Cups. Women soccer players are even given smaller per-diems when they travel. Women receive $50 per day while men receive $62.50 per day. This shows the pervasiveness of wage discrimination in this country. The most successful women's soccer team in the world still earns just 40 cents for every dollar earned by men.

Next, I would like to turn to my home State. Women in California are paid just 84 cents for every dollar earned by men. While better than the national average of 79 cents, California's wage gap totals nearly $40 billion each year in lost wages. That is $8,053 for every woman who works full time.

This gap has a significant effect on the economic security of working families—40 percent of women are the primary or sole breadwinners in their families. That means 40 percent of families depend on women's wages to pay the bills. Every dollar women lose to the wage gap makes a difference.

Here are just a few examples of what the wage gap costs families: $8,000 is about 1 year's worth of groceries for a family of four, 4 months of mortgage and utility payments, or 6 months of rent.

And the wage gap is even bigger for African-American and Latino women. African-American women are paid just 63 cents. Hispanic women are paid just 43 cents. We can't allow this discrimination to continue.

Next, I would like to address a long-standing myth about the wage gap. Some say it exists only because women choose lower-paying professions than men. For example, women are the vast majority of child care and home health care workers. This is a myth.

Even when women perform the same job as men, with the same level of education, the wage gap persists. For example, men who are nurses are paid $5,000 more than women, even though only 10 percent of nurses are men.

We need to do more to close the wage gap, and I am very proud that California is leading the way. A landmark bill signed by Governor Jerry Brown last year protects women from retaliation if they ask how their pay compares to their colleagues. This is important because secrecy contributes to the wage gap. Women often don't know they are being paid substantially less than men.

The bill also requires employers to justify higher wages for men who perform the same jobs as women.

This law is a big step to improve the economic security of California families.

While it is good news that States are addressing this issue, the wage gap is a national problem. It affects all American women, and the Senate must take action. The Paycheck Fairness Act is a good place to start. I have long supported this bill, which is sponsored by Senator BARBARA MIKULSKI.

The Paycheck Fairness Act is similar to the new California law. It would protect women from retaliation and require employers to justify paying women less than men for the same job.

The bill would also make it easier for women to take legal action under the Equal Pay Act, including class action lawsuits.

Under current law, it is significantly easier to recoup lost wages if they were denied through other discriminatory practices—like failure to pay overtime.

Lastly, the bill would create a training program to help women learn how to negotiate their salaries.

This is a commonsense bill, and one that is long overdue.

In closing, President John F. Kennedy signed the Equal Pay Act in 1963. At the time, women made 59 cents for every dollar earned by men. In 53 years, we have only closed the gap by 16 cents. At this rate, it won't be eliminated until 2059.

Women and their families deserve better, and they can't afford to wait that long.

I strongly urge the Senate to pass the Paycheck Fairness Act.

HONORING OUR ARMED FORCES

CALIFORNIA CASUALTIES

Mrs. BOXER. Mr. President, today I wish to pay tribute to four servicemembers from California or based in California who have died while serving our country in Operation Freedom's Sentinel and in Operation Inherent Resolve since I last entered names into the RECORD.

TSgt Anthony E. Salazar, 40, of Hermosa Beach, CA, died April 13, 2015, at an air base in southwest Asia in a noncombat related incident. Technical Sergeant Salazar was assigned to the 577th Expeditionary Prime Base Engineer Emergency Force Squadron, 1st Expeditionary Civil Engineer Group, U.S. Air Forces Central Command.

CAPT Jonathan J. Golden, 33, of Camarillo, CA, died October 2, 2015, in the crash of a C–130J Super Hercules aircraft at Jalalabad Airfield, Afghanistan. Captain Golden was assigned to the 39th Airlift Squadron, Dyess Air Force Base, TX.

SGT Joseph F. Stifter, 30, of Glendale, CA, died January 28, 2016, at Al Asad Airbase, Al Anbar Province, Iraq, from wounds suffered when his armored HMMWV was involved in a roll-over accident. Sergeant Stifter was assigned to the 1st Battalion, 7th Field Artillery Regiment, 2nd Brigade Combat Team, 1st Infantry Division, Fort Riley, KS.

SSgt Louis F. Cardin, of Temecula, CA, died March 19, 2016, in northern Iraq, from wounds suffered when the enemy attacked his unit with rocket fire. Staff Sergeant Cardin was assigned to the 2nd Battalion, 6th Marine Regiment, 26th Marine Expeditionary Unit, Camp Lejeune, NC.

37TH ANNIVERSARY OF THE SIGNING OF THE TAIWAN RELATIONS ACT

Mr. BOOZMAN. Mr. President, today I wish to recognize the 37th anniversary of the enactment of the Taiwan Relations Act, TRA. Since the TRA was signed into law in 1979, the U.S.-Taiwan bilateral relationship has continued to expand, growing into an important friendship as trading partners and allies. In 2015, Taiwan became the United States' ninth largest trading partner and our seventh largest destination for agricultural exports. My home State of Arkansas has seen firsthand the benefit of these close commercial partnerships with Taiwan.

As a member of the Senate Taiwan Caucus, I support efforts to further strengthen and deepen the bonds between the people of the United States and Taiwan, and I am not alone in these efforts. During the past 8 years, 40 State legislative chambers have passed resolutions in support of U.S.-Taiwan trade and a close cultural relationship. As Taiwan President Ma Ying-jeou recently pointed out, U.S.-Taiwan relations have never been better, and I look forward to working with President-elect Tsai Ing-wen to ensure this continues to be the case.

In celebrating the 37 years since the Taiwan Relations Act was signed into law, I want to thank the Taiwanese people for their continued friendship and support. It is my hope that the United States and Taiwan will continue to work together to promote enduring peace, stability, and prosperity in the Asia-Pacific region.

ADDITIONAL STATEMENTS

CONGRATULATING AIRBUS EMPLOYEES IN MOBILE, ALABAMA

● Mr. SESSIONS. Mr. President, today I wish to congratulate the Airbus workers at their new facility in Mobile, AL, for completing their first jet, the first Airbus A321 in the United States.

Airbus and its Alabama employees have worked tirelessly for several years toward this achievement. The Airbus A321 is an advanced airplane and constructing it is no easy task. There is no doubt that building the A321 required immense dedication from the workers in the plant to the suppliers across Alabama and the entire southeast.

I am pleased that Airbus continues to be a leading participant in the manufacturing resurgence in Alabama. The company joins hundreds of others that have recently located their operations in our State, which is a testament to the quality of Alabama products. It is great news indeed for America that one of the finest aircraft manufacturing companies is producing popular, fast-selling models in the United States, and specifically in Mobile, AL.

While this accomplishment is only the beginning, let us join together and enjoy the celebration of this important milestone for Airbus, Alabama, and the people of our community.●

EXECUTIVE AND OTHER COMMUNICATIONS

The following communications were laid before the Senate, together with accompanying papers, reports, and documents, and were referred as indicated:

EC–5077. A communication from the Director of the Regulatory Management Division, Environmental Protection Agency, transmitting, pursuant to law, the report of a rule entitled ''Trichloroethylene; Significant New Use Rule'' ((RIN2070–AK05) (FRL No. 9943–83)) received during adjournment of the Senate in the Office of the President of the Senate on April 8, 2016; to the Committee on Agriculture, Nutrition, and Forestry.

EC–5078. A communication from the Director of the Regulatory Management Division, Environmental Protection Agency, transmitting, pursuant to law, the report of a rule entitled ''Fluazinam; Pesticide Tolerances'' (FRL No. 9942–99) received during adjournment of the Senate in the Office of the President of the Senate on April 8, 2016; to the Committee on Agriculture, Nutrition, and Forestry.

EC–5079. A communication from the Director of the Regulatory Management Division, Environmental Protection Agency, transmitting, pursuant to law, the report of a rule entitled ''1,2-Propanediol, 3-[3-[1,3,3,3-tetramethyl-1-[(trimethylsilyl)oxy]-1-disiloxanyl] propoxy]-; Exemption from the Requirement of a Tolerance'' (FRL No. 9944–11) received during adjournment of the Senate in the Office of the President of the Senate on April 8, 2016; to the Committee on Agriculture, Nutrition, and Forestry.

EC–5080. A communication from the Assistant Secretary of Defense (Legislative Affairs), transmitting legislative proposals relative to the ''National Defense Authorization Act for Fiscal Year 2017''; to the Committee on Armed Services.

EC–5081. A communication from the Secretary of Defense, transmitting a report on the approved retirement of Lieutenant General Thomas P. Bostick, United States Army, and his advancement to the grade of lieutenant general on the retired list; to the Committee on Armed Services.

EC–5082. A communication from the Under Secretary of Defense (Comptroller), transmitting, pursuant to law, a report relative to a violation of the Antideficiency Act that involved fiscal years 2012 and 2013 Operations and Maintenance, Department of Defense Office of Inspector General funds, and was assigned case number 15–01; to the Committee on Appropriations.

EC–5083. A communication from the Under Secretary of Defense (Personnel and Readiness), Department of Defense, transmitting, pursuant to law, a report entitled ''2016 Report to Congress on Sustainable Ranges''; to the Committee on Armed Services.

EC–5084. A communication from the Director of the Regulatory Management Division, Environmental Protection Agency, transmitting, pursuant to law, the report of a rule entitled ''Approval and Promulgation of Implementation Plans; Spokane, Washington: Second 10-Year PM10 Limited Maintenance Plan'' (FRL No. 9944–83–Region 10) received during adjournment of the Senate in the Office of the President of the Senate on April 8, 2016; to the Committee on Environment and Public Works.

EC–5085. A communication from the Director of the Regulatory Management Division, Environmental Protection Agency, transmitting, pursuant to law, the report of a rule entitled ''Approval and Promulgation of Air Quality Implementation Plans; Colorado; Revisions to Common Provisions and Regulation Number 3; Corrections'' (FRL No. 9942–84–Region 8) received during adjournment of the Senate in the Office of the President of the Senate on April 8, 2016; to the Committee on Environment and Public Works.

EC–5086. A communication from the Assistant Secretary for Legislation, Department of Health and Human Services, transmitting, pursuant to law, a report entitled ''Fiscal Year 2015 Performance Report to the President and Congress for the Biosimilar User Fee Act''; to the Committee on Health, Education, Labor, and Pensions.

EC–5087. A communication from the Assistant Secretary for Legislation, Department of Health and Human Services, transmitting, pursuant to law, a financial report for fiscal year 2015 relative to the Biosimilar User Fee Act of 2012; to the Committee on Health, Education, Labor, and Pensions.

EC–5088. A communication from the Assistant Secretary, Employee Benefits Security Administration, Department of Labor, transmitting, pursuant to law, the report of a rule entitled ''Definition of the Term 'Fiduciary'; Conflict of Interest Rule—Retirement Investment Advice'' (RIN1210–AB32) received during adjournment of the Senate in the Office of the President of the Senate on April 8, 2016; to the Committee on Health, Education, Labor, and Pensions.

EC–5089. A communication from the Director of Regulations and Policy Management Staff, Food and Drug Administration, Department of Health and Human Services, transmitting, pursuant to law, the report of a rule entitled ''Sanitary Transportation of Human and Animal Food'' ((RIN0910–AG98) (Docket No. FDA–2013–N–0013)) received in the Office of the President of the Senate on April 11, 2016; to the Committee on Health, Education, Labor, and Pensions.

EC–5090. A communication from the Director of Regulations and Policy Management Staff, Food and Drug Administration, Department of Health and Human Services, transmitting, pursuant to law, the report of a rule entitled ''Administrative Actions for Noncompliance; Lesser Administrative Actions'' (Docket No. FDA–2015–N–5052) received in the Office of the President of the Senate on April 11, 2016; to the Committee on Health, Education, Labor, and Pensions.

EC–5091. A communication from the Chairman of the Federal Communications Commission, transmitting, pursuant to law, the Commission's fiscal year 2015 annual report relative to the Notification and Federal Employee Antidiscrimination and Retaliation Act of 2002 (No FEAR Act); to the Committee on Homeland Security and Governmental Affairs.

EC–5092. A communication from the Administrator, General Services Administration, transmitting, pursuant to law, the Administration's fiscal year 2015 report relative to the Notification and Federal Employee Antidiscrimination and Retaliation Act of 2002 (No FEAR Act); to the Committee on Homeland Security and Governmental Affairs.

EC–5093. A communication from the Director, Office of the Secretary, Department of Health and Human Services, transmitting, pursuant to law, the Department's fiscal year 2015 annual report relative to the Notification and Federal Employee Antidiscrimination and Retaliation Act of 2002 (No FEAR Act); to the Committee on Homeland Security and Governmental Affairs.

EC–5094. A communication from the Director of the Federal Housing Finance Agency, transmitting, pursuant to law, the Agency's fiscal year 2015 annual report relative to the Notification and Federal Employee Antidiscrimination and Retaliation Act of 2002 (No FEAR Act); to the Committee on Homeland Security and Governmental Affairs.

EC–5095. A communication from the Chairman, Occupational Safety and Health Review Commission, transmitting, pursuant to law, the Commission's fiscal year 2015 annual report relative to the Notification and Federal Employee Antidiscrimination and Retaliation Act of 2002 (No FEAR Act); to the Committee on Homeland Security and Governmental Affairs.

EC–5096. A communication from the Chairman of the Federal Energy Regulatory Commission, transmitting, pursuant to law, the Commission's fiscal year 2015 annual report relative to the Notification and Federal Employee Antidiscrimination and Retaliation Act of 2002 (No FEAR Act); to the Committee on Homeland Security and Governmental Affairs.

EC–5097. A communication from the Administrator of the U.S. Small Business Administration, transmitting, pursuant to law, the Administration's fiscal year 2015 annual report relative to the Notification and Federal Employee Antidiscrimination and Retaliation Act of 2002 (No FEAR Act); to the Committee on Homeland Security and Governmental Affairs.

EC–5098. A communication from the Chairman, Merit Systems Protection Board, transmitting, pursuant to law, the Board's fiscal year 2013 annual report relative to the Notification and Federal Employee Antidiscrimination and Retaliation Act of 2002

(No FEAR Act); to the Committee on Homeland Security and Governmental Affairs.

EC–5099. A communication from the Chairman, Dwight D. Eisenhower Memorial Commission, transmitting, pursuant to law, a report relative to the memorial construction; to the Committee on Rules and Administration.

EC–5100. A communication from the Deputy Chief, Consumer and Governmental Affairs Bureau, Federal Communications Commission, transmitting, pursuant to law, the report of a rule entitled ''Revision of Part 15 of the Commission's Rules to Permit Unlicensed National Information Infrastructure (U–NII) Devices in the 5 GHz Band'' ((FCC 16–24) (ET Docket No. 13–49)) received during adjournment of the Senate in the Office of the President of the Senate on April 8, 2016; to the Committee on Commerce, Science, and Transportation.

INTRODUCTION OF BILLS AND JOINT RESOLUTIONS

The following bills and joint resolutions were introduced, read the first and second times by unanimous consent, and referred as indicated:

By Mr. HEINRICH (for himself and Mr. INHOFE):

S. 2778. A bill to amend title 10, United States Code, to provide for the rapid acquisition of directed energy weapons systems by the Department of Defense, and for other purposes; to the Committee on Armed Services.

By Mr. COONS (for himself, Ms. AYOTTE, and Mr. PETERS):

S. 2779. A bill to reauthorize the Hollings Manufacturing Extension Partnership, and for other purposes; to the Committee on Commerce, Science, and Transportation.

By Mr. MORAN (for himself, Mr. DAINES, Mr. TILLIS, Mr. BLUNT, Mr. RUBIO, and Mr. INHOFE):

S. 2780. A bill to amend section 1034 of the National Defense Authorization Act for Fiscal Year 2016 to strengthen the certification requirements relating to the transfer or release of detainees at United States Naval Station, Guantanamo Bay, Cuba; to the Committee on Armed Services.

By Mr. PERDUE (for himself, Mr. ISAKSON, Mr. UDALL, and Mr. HEINRICH):

S. 2781. A bill to improve homeland security, including domestic preparedness and response to terrorism, by reforming Federal Law Enforcement Training Centers to provide training to first responders, and for other purposes; to the Committee on the Judiciary.

By Mr. BLUNT (for himself and Mr. REED):

S. 2782. A bill to amend the Public Health Service Act to provide for the participation of pediatric subspecialists in the National Health Service Corps program, and for other purposes; to the Committee on Health, Education, Labor, and Pensions.

By Mrs. SHAHEEN:

S. 2783. A bill to provide rental assistance to low-income tenants of certain multifamily rural housing projects, and for other purposes; to the Committee on Banking, Housing, and Urban Affairs.

By Ms. HIRONO (for herself, Mr. PETERS, Mrs. MURRAY, Mrs. GILLIBRAND, Mr. BLUMENTHAL, Mr. MARKEY, Ms. CANTWELL, Mr. BOOKER, Mr. SCHATZ, Mr. MERKLEY, and Ms. MIKULSKI):

S. 2784. A bill to ensure that Federal science agencies and institutions of higher education receiving Federal research and development funding are fully engaging the entire national talent pool, and for other purposes; to the Committee on Health, Education, Labor, and Pensions.

By Mr. TESTER (for himself and Mr. FRANKEN):

S. 2785. A bill to protect Native children and promote public safety in Indian country; to the Committee on Indian Affairs.

SUBMISSION OF CONCURRENT AND SENATE RESOLUTIONS

The following concurrent resolutions and Senate resolutions were read, and referred (or acted upon), as indicated:

By Ms. COLLINS (for herself and Mrs. FEINSTEIN):

S. Res. 418. A resolution recognizing Hafsat Abiola, Khanim Latif, Yoani Sanchez, and Akanksha Hazari for their selflessness and dedication to their respective causes, and for other purposes; to the Committee on Foreign Relations.

ADDITIONAL COSPONSORS

S. 804

At the request of Mrs. SHAHEEN, the name of the Senator from New York (Mr. SCHUMER) was added as a cosponsor of S. 804, a bill to amend title XVIII of the Social Security Act to specify coverage of continuous glucose monitoring devices, and for other purposes.

S. 857

At the request of Ms. STABENOW, the names of the Senator from Nevada (Mr. REID) and the Senator from Alaska (Ms. MURKOWSKI) were added as cosponsors of S. 857, a bill to amend title XVIII of the Social Security Act to provide for coverage under the Medicare program of an initial comprehensive care plan for Medicare beneficiaries newly diagnosed with Alzheimer's disease and related dementias, and for other purposes.

S. 1421

At the request of Mr. HATCH, the name of the Senator from New Jersey (Mr. MENENDEZ) was added as a cosponsor of S. 1421, a bill to amend the Federal Food, Drug, and Cosmetic Act to authorize a 6-month extension of certain exclusivity periods in the case of approved drugs that are subsequently approved for a new indication to prevent, diagnose, or treat a rare disease or condition, and for other purposes.

S. 1455

At the request of Mr. MARKEY, the name of the Senator from New York (Mrs. GILLIBRAND) was added as a cosponsor of S. 1455, a bill to provide access to medication-assisted therapy, and for other purposes.

S. 1715

At the request of Mr. HOEVEN, the name of the Senator from Rhode Island (Mr. WHITEHOUSE) was added as a cosponsor of S. 1715, a bill to require the Secretary of the Treasury to mint coins in commemoration of the 400th anniversary of the arrival of the Pilgrims.

S. 1808

At the request of Ms. HEITKAMP, the name of the Senator from Maine (Mr. KING) was added as a cosponsor of S. 1808, a bill to require the Secretary of Homeland Security to conduct a Northern Border threat analysis, and for other purposes.

S. 2042

At the request of Mrs. MURRAY, the name of the Senator from New Mexico (Mr. UDALL) was added as a cosponsor of S. 2042, a bill to amend the National Labor Relations Act to strengthen protections for employees wishing to advocate for improved wages, hours, or other terms or conditions of employment and to provide for stronger remedies for interference with these rights, and for other purposes.

S. 2226

At the request of Ms. AYOTTE, the name of the Senator from Indiana (Mr. DONNELLY) was added as a cosponsor of S. 2226, a bill to amend the Public Health Service Act to reauthorize the residential treatment programs for pregnant and postpartum women and to establish a pilot program to provide grants to State substance abuse agencies to promote innovative service delivery models for such women.

S. 2311

At the request of Mr. HELLER, the name of the Senator from Indiana (Mr. DONNELLY) was added as a cosponsor of S. 2311, a bill to amend the Public Health Service Act to authorize the Secretary of Health and Human Services, acting through the Administrator of the Health Resources and Services Administration, to make grants to States for screening and treatment for maternal depression.

S. 2437

At the request of Ms. MIKULSKI, the name of the Senator from Kansas (Mr. MORAN) was added as a cosponsor of S. 2437, a bill to amend title 38, United States Code, to provide for the burial of the cremated remains of persons who served as Women's Air Forces Service Pilots in Arlington National Cemetery, and for other purposes.

S. 2471

At the request of Mr. KIRK, the name of the Senator from Iowa (Mr. GRASSLEY) was added as a cosponsor of S. 2471, a bill to amend the Internal Revenue Code of 1986 to improve and expand Coverdell education savings accounts.

S. 2505

At the request of Mr. KIRK, the name of the Senator from Georgia (Mr. PERDUE) was added as a cosponsor of S. 2505, a bill to amend the Internal Revenue Code of 1986 to ensure that retirement investors receive advice in their best interests, and for other purposes.

S. 2506

At the request of Mr. LEAHY, the names of the Senator from Maryland (Ms. MIKULSKI), the Senator from Washington (Mrs. MURRAY), the Senator from Wisconsin (Ms. BALDWIN), the Senator from New York (Mrs. GILLIBRAND), the Senator from North Dakota (Ms. HEITKAMP), the Senator from

California (Mrs. BOXER), the Senator from New Hampshire (Mrs. SHAHEEN), the Senator from Washington (Ms. CANTWELL), the Senator from Hawaii (Ms. HIRONO) and the Senator from Ohio (Mr. BROWN) were added as cosponsors of S. 2506, a bill to restore statutory rights to the people of the United States from forced arbitration.

S. 2597

At the request of Mr. BROWN, the name of the Senator from New York (Mr. SCHUMER) was added as a cosponsor of S. 2597, a bill to amend title XVIII of the Social Security Act to provide for treatment of clinical psychologists as physicians for purposes of furnishing clinical psychologist services under the Medicare program.

S. 2613

At the request of Mr. GRASSLEY, the name of the Senator from Delaware (Mr. COONS) was added as a cosponsor of S. 2613, a bill to reauthorize certain programs established by the Adam Walsh Child Protection and Safety Act of 2006.

S. 2646

At the request of Mr. BURR, the name of the Senator from Colorado (Mr. GARDNER) was added as a cosponsor of S. 2646, a bill to amend title 38, United States Code, to establish the Veterans Choice Program of the Department of Veterans Affairs to improve health care provided to veterans by the Department, and for other purposes.

S. 2659

At the request of Mr. BURR, the name of the Senator from West Virginia (Mr. MANCHIN) was added as a cosponsor of S. 2659, a bill to reaffirm that the Environmental Protection Agency cannot regulate vehicles used solely for competition, and for other purposes.

S. 2668

At the request of Ms. COLLINS, the name of the Senator from Alabama (Mr. SESSIONS) was added as a cosponsor of S. 2668, a bill to provide housing opportunities for individuals living with HIV or AIDS.

S. 2741

At the request of Mr. BROWN, the name of the Senator from Ohio (Mr. PORTMAN) was added as a cosponsor of S. 2741, a bill to amend the Employee Retirement Income Security Act of 1974 to permit the Pension Benefit Guaranty Corporation and the Secretary of Labor to elect not to recoup benefits overpayments.

S. 2752

At the request of Mr. RUBIO, the name of the Senator from West Virginia (Mrs. CAPITO) was added as a cosponsor of S. 2752, a bill to prohibit the facilitation of certain financial transactions involving the Government of Iran or Iranian persons and to impose sanctions with respect to the facilitation of those transactions, and for other purposes.

S. 2758

At the request of Mr. JOHNSON, the names of the Senator from West Virginia (Mrs. CAPITO) and the Senator from Massachusetts (Mr. MARKEY) were added as cosponsors of S. 2758, a bill to amend title XVIII of the Social Security Act to remove consideration of certain pain-related issues from calculations under the Medicare hospital value-based purchasing program, and for other purposes.

AMENDMENT NO. 3557

At the request of Mr. FLAKE, the names of the Senator from Maryland (Mr. CARDIN) and the Senator from Oregon (Mr. MERKLEY) were added as cosponsors of amendment No. 3557 intended to be proposed to H.R. 636, a bill to amend the Internal Revenue Code of 1986 to permanently extend increased expensing limitations, and for other purposes.

AMENDMENT NO. 3566

At the request of Mr. CORNYN, the names of the Senator from North Carolina (Mr. BURR) and the Senator from North Carolina (Mr. TILLIS) were added as cosponsors of amendment No. 3566 intended to be proposed to H.R. 636, a bill to amend the Internal Revenue Code of 1986 to permanently extend increased expensing limitations, and for other purposes.

AMENDMENT NO. 3591

At the request of Mr. SESSIONS, the name of the Senator from Utah (Mr. LEE) was added as a cosponsor of amendment No. 3591 intended to be proposed to H.R. 636, a bill to amend the Internal Revenue Code of 1986 to permanently extend increased expensing limitations, and for other purposes.

STATEMENTS ON INTRODUCED BILLS AND JOINT RESOLUTIONS

By Mr. BLUNT (for himself and Mr. REED):

S. 2782. A bill to amend the Public Health Service Act to provide for the participation of pediatric subspecialists in the National Health Service Corps program, and for other purposes; to the Committee on Health, Education, Labor, and Pensions.

Mr. REED. Mr. President, I am pleased to be joining Senator BLUNT in introducing the Ensuring Children's Access to Specialty Care Act.

According to the American Association of Child and Adolescent Psychiatry, there are currently only 8,300 child and adolescent psychiatrists, CAPs, in the United States—many of whom are not practicing full time—far short of the estimated need of over 30,000 CAPs. On average, patients wait almost 2 months to see a CAP, a startling concern given that the incidence rates of mental illness and behavioral disorders among children in the United States continue to grow. Fifty percent of all lifetime cases of mental illness begin at age 14; 75 percent by age 24.

The National Health Service Corps Loan Repayment Program, NHSCLRP, was created by Congress 40 years ago to help recruit and place trained individuals in underserved communities to provide needed health care services. Licensed health care providers may earn up to $50,000 toward student loans in exchange for a 2-year commitment at an NHSC-approved site, within 2 years of completing their residency. Accepted participants may serve as primary care medical, dental, or mental-behavioral health clinicians.

NHSCLRP provides critical relief to physicians who have completed pediatrics or psychiatry residency training programs; however, pediatric subspecialists, such as child and adolescent psychiatrists are effectively barred from participating due to the extra training these physicians are required to take after completing their residency. This extra training, which often results in increased student debt, typically consisting of a fellowship, takes place in the 2-year window of eligibility for NHSCLRP. The creation of NHSCLRP preceded the expansion of many pediatric subspecialties, not taking into account the extra years of training required for these physicians.

The Ensuring Children's Access to Specialty Care Act would correct this loophole and allow pediatric subspecialists practicing in underserved areas to benefit from the National Health Service Corps Loan Repayment Program. This bill would increase access to specialty care for children and improve mental health parity for children served by NHSCLRP. Every child with a physical, mental, or behavioral health condition should have access to pediatric health services.

Providers across the spectrum of care support this bipartisan legislation including the American Association of Child and Adolescent Psychiatry, the American Academy of Pediatrics, the Arthritis Foundation, Children's Hospital Association, March of Dimes, and the National Alliance on Mental Illness. I look forward to working with these and other stakeholders as well as Senator BLUNT and our colleagues to pass the Ensuring Children's Access to Specialty Care Act in order to help ensure children have access to the health care they need.

By Ms. HIRONO (for herself, Mr. PETERS, Mrs. MURRAY, Mrs. GILLIBRAND, Mr. BLUMENTHAL, Mr. MARKEY, Ms. CANTWELL, Mr. BOOKER, Mr. SCHATZ, Mr. MERKLEY, and Ms. MIKULSKI):

S. 2784. A bill to ensure that Federal science agencies and institutions of higher education receiving Federal research and development funding are fully engaging the entire national talent pool, and for other purposes; to the Committee on Health, Education, Labor, and Pensions.

Ms. HIRONO. Mr. President, today April 12, is Equal Pay Day. Equal Pay Day means women have to work more than 4 months longer to catch up to what, on average, men made in 2015. This significant pay disparity has been going on for decades—generations—even though it is against the law and

has been against the law since the passage of the Equal Pay Act in 1963.

The gender pay gap persists across all States and nearly all occupations. As we seek to build a 21st-century workforce, more than 73 million working women are at a disadvantage because of pay inequity and other barriers based on gender. While we have come a ways from the days of overt pay discrimination—such as in the 1930s, when the Federal Government, no less, required women to be paid 25 percent less than their male counterparts—the pay gap persists.

It is bad enough that women with equal education and experience get paid less, but it gets worse. A recent New York University study found that when women begin to enter predominately male occupations, pay in those fields decrease overall. For example, when women began to pursue careers in design, wages dropped more than 30 percent. When they entered careers in biology, wages dropped 18 percent. The study also showed the converse. When men entered fields previously dominated by women, such as computer programming, wages increased.

The bottom line is that these studies show that women's work is less valued than men's work. This discrimination won't change because we don't like it or because we hope it will. It will only begin to change if we take action. That is why I joined Senator MIKULSKI in continuing our call to pass the Paycheck Fairness Act. This legislation would allow women to compare their salaries without fearing retaliation. How can a woman find out if there is pay discrimination going on in her workplace if she can't even find out what others are being paid? The bill would also require employers to prove that differences in pay for men and women doing the same work are not related to gender.

While the gender pay gap affects all women, this morning I want to focus on inequity in the fields of science, technology, engineering, and math—also known as STEM. Nationally, we need to promote STEM to remain competitive in the global economy. STEM careers are among the highest paid positions and are some of the most sought after by employers. In order to keep our country's historical leadership in STEM over the next decade, economists say we need to create a million more STEM careers than we are currently creating. We will lose our competitive edge unless the number of women earning STEM degrees keeps pace with their growing share of the population. But, of course, women in the STEM fields earn less than men. For example, on average, women engineers earn just 82 percent of what their male counterparts earn. Female doctors' starting salaries are almost $20,000 less than their male counterparts, even after accounting for factors such as specialty and location.

In addition to facing lower wages, women in STEM must often overcome institutional barriers, cultural stereotypes, and sexual harassment. These barriers permeate every level of the STEM career pipeline. They start as early as middle school and continue throughout one's career and lead to women and minorities disproportionately giving up interest in STEM careers.

At the University of Hawaii at Manoa, men earned more than five times the number of computer science bachelor's degrees as women, and in the College of Engineering, men earned three times as many bachelor's degrees. These kinds of numbers in STEM education are not unique to Hawaii. Even when women overcome the odds and pursue careers in STEM fields, they continue to face gender biases that can affect the hiring, promotion, and career advancement for women in STEM. For instance, researchers found that women in STEM encountered bias judgments of their competence and the ability to be hired. They also received less faculty encouragement and financial rewards than identical male counterparts when negotiating salary packages.

Studies show that when women in STEM decide to become mothers, they are perceived as less competent and less committed to hard work and are offered fewer jobs and lower salaries. In comparison, men are not penalized for being fathers. If that wasn't enough, women in STEM often experience workplace harassment.

Recently, in the New York Times, University of Hawaii geobiology professor Hope Jahren shared an email that was sent to a former student from a male colleague who works in the same lab as the student. This email read in part this:

All I know is that from the first day I talked to you, there hadn't been a single day or hour when you weren't on my mind. That's just the way things are and you're gonna have to deal with me until one of us leaves.

In the age of social media, these kinds of totally inappropriate emails are all too common. According to Professor Jahren, this former student feels that she cannot rely on human resources because she heard stories from female colleagues about how sexual harassment happens ''all the time'' in their organization and that no action is taken.

These stories are all too common. Again, merely condemning this kind of environment is not enough. Merely hoping that change will occur is not enough. We can and must do more to even the playing field for women in STEM, and that is why I am introducing the STEM Opportunities Act today, so we can combat the systemic issues that can lead to women losing interest in STEM and leaving STEM careers basically in droves.

The STEM Opportunities Act helps Federal science agencies and institutions of higher education identify and share best practices to overcome barriers that can affect the inclusion of women and other underrepresented groups in STEM. The STEM Opportunities Act also allows universities and nonprofits to receive competitive grants and recognition for mentoring women and minorities in STEM fields. Mentoring programs such as the Maui Economic Development Board's Women in Technology Program and the Native Hawaiian Science and Engineering Mentorship Program at the University of Hawaii have seen tremendous success.

The Women in Technology Program supports those like Deanna Garcia, who was first introduced to STEM through Women in Technology and is now a mentor to girls who want to follow in her footsteps.

Deanna said:

Women in Technology gave me the skills, confidence, and support I needed. Because of their networking and strong ties within the community, I was not only able to find an internship, but a career in IT. Because of the Women in Technology program, I can also pay it forward to current students and show them during career days or tours I am a product of the program and hope to inspire them to pursue a path in STEM just like I did.

Deanna's story is just one of many successes that programs like Women in Technology have.

Mr. President, I ask unanimous consent to have the testimonials on the success of existing STEM programs printed in the RECORD.

There being no objection, the material was ordered to be printed in the RECORD, as follows:

SENATOR MAZIE K. HIRONO—APRIL 12, 2016

EXTENSION OF REMARKS: TESTIMONIALS FROM HAWAII STEM MENTORING PROGRAMS

MAUI ECONOMIC DEVELOPMENT BOARD WOMEN IN TECHNOLOGY PROGRAM

Deanna Garcia, TMDS-MSAT Analysis Team Manager, Akimeka LLC, A Subsidiary of VSE Corporation

''Technology and Engineering are known to be male dominated fields, however, the Women in Technology program empowered me to succeed in an IT Career. I got my start almost fifteen years ago because of the WIT program. They gave me the skills, confidence, and support I needed and because of their networking and strong ties within the community, I was not only able to find an internship, then job, but a career in IT. They also lead by example and have strong, driven, impactful women leading the way. Because of the WIT program, I can also pay it forward to current students and show them during career days or tours I'm a product of the program and hope to inspire them to pursue a path in STEM, just like I did.''

Kawai Hall, Integrity Applications Incorporated

''Since there are fewer women with technology-related degrees, it is harder for work industries to recruit women in these fields. I think Women In Technology is an amazing project to help bring awareness of STEM-related work opportunities to girls and women, especially here in Hawaii where it is prime. Our company is made of mostly men but I haven't felt the effect of gender in my workplace. Everyone works greatly as a team and helps each other advance in learning. But it would be great to have more females added to our workplace.''

Audrey Cabrera, Brown & Caldwell

''After having my second child I've had a hard time finding my balance and feeling like I am fulfilling my roles as employee, mother, and wife. Although we have come so far in terms of women in the professional workforce and specifically STEM careers, the statistics remain that a large portion of women migrate out of their STEM career in their 30's, when they are growing their families. My company is great, with fair pay and good benefits, but I feel that there are some double standards/expectations that probably aren't specific to my company, but in our society in general.''

Kimberly Vaituulala, Maui Electric Company (MECO) mentor for Introduce a Girl to Engineering Day (IGED)

''Society has taught young girls to care for their baby dolls or encouraged to play ''house'' with their Barbie dolls. Meanwhile boys are building structures with Legos and playing outside, messing around with their bikes to see what they can do to make it go faster or make it look and sound cooler as they ride by. This beginning transitions into college where the number of boys dominate science and math courses. For me, the significance of IGED is to show these young ladies that engineering/technology IS cool and it's not just for boys. IGED gives these ladies an opportunity to see real people working in STEM careers, and broadens the horizon for these up and coming females. Igniting a spark of interest in just one of the 15 girls in the group makes this effort completely worth it. . . .

''Women are physiologically and psychologically different from men. In order to solve the engineering problems of this world, the men cannot do it alone. It is vitally important for women (of all ages) to be exposed to and consider a career in engineering. The different perspective that women can bring to forth might be the key to making cold fusion a reality one day.

''In college I was one of three girls in my electrical engineering classes. But I know more girls are getting involved in STEM related fields and careers, and it can be attributed to programs like IGED. Sometimes girls need that extra push. Someone to tell them, ''Go! You can do it too!'' And as long as we can sustain STEM programs like IGED, this trend for girls will continue on upward.''

Native Hawaiian Science & Engineering Mentorship Program (NHSEMP), University of Hawaii at Manoa Kaiho'olulu Rickard, mentee

''[NHSEMP] helped me focus on my studies and set goals. They got me started with a mentor who's been helping me out with choosing good projects to work on . . . I was introduced to [researcher] Lloyd French, and after that I really began to get involved in projects like MMIC, or Monolithic Microwave Integrated Circuit, and JPL, which is the NASA Jet Propulsion Laboratory. . . .

''I've really gotten involved in what I'm doing here. My freshman year, my grades weren't so good. I had about a 2.0 GPA then. So, after I joined the program, I was given my own small office, and working with a mentor, basically helped me pull my GPA up to a 3.0 in two semesters.''

Ms. HIRONO. I thank Congresswoman EDDIE BERNICE JOHNSON of Texas. Her legislation laid the groundwork for the STEM Opportunities Act. I also wish to thank Senators PETERS, MURRAY, GILLIBRAND, BLUMENTHAL, MARKEY, CANTWELL, BOOKER, SCHATZ, and MERKLEY for supporting this effort. Working together, I know we can do better, and I know we will ensure that women who want to pursue STEM careers can do so in a supportive environment without fear of harassment.

On Equal Pay Day, we are reminded of how far we have to go to achieve equality, and I urge my colleagues to support the Paycheck Fairness Act, the STEM Opportunities Act, and other legislation that will help close the gender gap in our workforce.

SUBMITTED RESOLUTIONS

SENATE RESOLUTION 418—RECOGNIZING HAFSAT ABIOLA, KHANIM LATIF, YOANI SÁNCHEZ, AND AKANKSHA HAZARI FOR THEIR SELFLESSNESS AND DEDICATION TO THEIR RESPECTIVE CAUSES, AND FOR OTHER PURPOSES

Ms. COLLINS (for herself and Mrs. FEINSTEIN) submitted the following resolution; which was referred to the Committee on Foreign Relations:

S. RES. 418

Whereas women's leadership in the world is critical to shaping and addressing world events and decreasing global instability;

Whereas women leaders play an integral role in fighting against transnational organized crime, human trafficking, and violence against women, including honor killings, and female genital mutilation;

Whereas changing the trajectory of these dynamics requires empowering women leaders to advance economic opportunity and increase political and public leadership;

Whereas women leaders have selflessly sacrificed, and in some cases placed their lives at risk, to advance causes that will better their communities, their nations, and the world;

Whereas Hafsat Abiola of Nigeria, founder of the Kudirat Initiative for Democracy, campaigns to end violence against women, trains young female leaders, and works to increase civic participation;

Whereas Khanim Latif of Iraq, the Director of Asuda, places her life at risk to provide safe haven to victims of sexual and gender-based violence, and fights threats of honor killings and female genital cutting;

Whereas Yoani Sánchez of Cuba, founder of ''Generación Y'', created a blog that captures daily life in Cuba as an effort to encourage political change and increase public awareness and engagement;

Whereas Akanksha Hazari of India fights to deliver basic necessities such as clean water and electricity to impoverished communities and to empower the underserved in India; and

Whereas each of these leaders serves as a role model and an inspiration to help change the lives of others: Now, therefore, be it

Resolved, That the Senate—

(1) recognizes Hafsat Abiola, Khanim Latif, Yoani Sánchez, and Akanksha Hazari for their selflessness and dedication to their respective causes; and

(2) commends their efforts to advance economic opportunity, increase political and public leadership, combat violence against women, and empower women to address global instability.

Ms. COLLINS. Mr. President, I rise to honor and congratulate the Vital Voices Global Partnership and the 2016 Vital Voices Award recipients: Hafsat Abiola, Khanim Latif, Yoani Sánchez, and Akanksha Hazari.

The Vital Voices Global Partnership identifies, invests in, and brings visibility to extraordinary women around the world by unleashing their leadership potential to transform lives and accelerate peace and prosperity. Vital Voices equips such leaders with the management, business development, marketing, and communications skills required to expand their enterprises, to provide for their families, and create jobs in their communities. Vital Voices seeks to empower these women leaders to create a better world for us all.

The Vital Voices Global Partnership has trained and mentored over 14,000 women in 144 countries over the last 15 years, in addition to this year's award recipients Hafsat Abiola of Nigeria, founder of the Kudirat Initiative for Democracy, campaigns to end violence against women, trains young female leaders, and works to increase civic participation. Khanim Latif of Iraq, the Director of Asuda, places her life at risk to provide safe haven to victims of sexual and gender-based violence, and fights threats of honor killings and female genital cutting. Yoani Sánchez of Cuba, founder of ''Generación Y'', created a blog that captures daily life in Cuba in an effort to encourage political change and increase public awareness and engagement; and Akanksha Hazari of India fights to deliver basic necessities such as clean water and electricity to impoverished communities and to empower the underserved in India.

Such leaders, supported by the Vital Voices Global Partnership Fund, and through their selfless efforts and advocacy, continue to advance social justice, support democracy, and strengthen the rule of law across the globe.

With this in mind, I am pleased to offer this resolution with Senator FEINSTEIN.

Mrs. FEINSTEIN. Mr. President, I rise in support of a resolution, submitted by Senator COLLINS, to honor four women recently recognized by the Vital Voices Global Partnership.

This is a global organization that identifies, supports, and highlights women around the world who exhibit leadership to transform their communities.

I am pleased to sponsor this resolution with Senator COLLINS.

The four women honored by this resolution are leaders who have made a true difference in their countries in the face of adversity.

Hafsat Abiola of Nigeria founded the Kudirat Initiative for Democracy to end violence against women in Nigeria and remove barriers for the civic participation of women. She has been actively working on gender equality and women's leadership in Nigeria since she was a teenager, and continues to advance women's rights.

Khanim Latif of Iraq is the Director of Asuda, which works to combat sexual and gender-based violence in Iraq. She has worked on gender-based violence issues in Iraq for over 15 years,

and has helped provide refuge to women subjected to horrific violence in her country, including to those who have been subjected to ISIL's violent campaign against the region's Yazidi population.

Yoani Sánchez of Cuba founded ''Generacion Y,'' a platform to capture daily life in Cuba as an effort to encourage political change. It stemmed from her personal experiences growing up in Cuba, and the experiences of her family.

Akanksha Hazari of India works to empower impoverished, rural communities in India. She has done this by pioneering a loyalty program—through mobile phones—to provide social goods such as clean water to rural customers in India.

These women were recognized by Vital Voices because they have made significant strides to better the communities in which they live, and they continue to do so.

The resolution, submitted by Senator COLLINS and myself, further recognizes their contributions, and I hope that we can all draw inspiration from their leadership.

I congratulate these women, and look forward to hearing about their continued success.

AMENDMENTS SUBMITTED AND PROPOSED

SA 3640. Mr. PORTMAN (for himself and Mr. BROWN) submitted an amendment intended to be proposed to amendment SA 3464 submitted by Mr. THUNE (for himself and Mr. NELSON) to the bill H.R. 636, to amend the Internal Revenue Code of 1986 to permanently extend increased expensing limitations, and for other purposes; which was ordered to lie on the table.

SA 3641. Mr. JOHNSON (for himself, Mr. LEAHY, Ms. MURKOWSKI, and Mr. SCHUMER) submitted an amendment intended to be proposed to amendment SA 3464 submitted by Mr. THUNE (for himself and Mr. NELSON) to the bill H.R. 636, supra; which was ordered to lie on the table.

SA 3642. Mr. RUBIO submitted an amendment intended to be proposed to amendment SA 3464 submitted by Mr. THUNE (for himself and Mr. NELSON) to the bill H.R. 636, supra; which was ordered to lie on the table.

SA 3643. Mr. INHOFE (for himself and Mr. BROWN) submitted an amendment intended to be proposed to amendment SA 3464 submitted by Mr. THUNE (for himself and Mr. NELSON) to the bill H.R. 636, supra; which was ordered to lie on the table.

SA 3644. Mr. INHOFE submitted an amendment intended to be proposed to amendment SA 3464 submitted by Mr. THUNE (for himself and Mr. NELSON) to the bill H.R. 636, supra; which was ordered to lie on the table.

SA 3645. Ms. HEITKAMP (for herself, Mrs. CAPITO, Mr. DONNELLY, Mr. TESTER, Mr. BLUNT, Mr. BARRASSO, Mr. COATS, Mr. DAINES, and Mr. ENZI) submitted an amendment intended to be proposed to amendment SA 3464 submitted by Mr. THUNE (for himself and Mr. NELSON) to the bill H.R. 636, supra; which was ordered to lie on the table.

SA 3646. Mr. HATCH (for himself and Mr. BENNET) submitted an amendment intended to be proposed to amendment SA 3464 submitted by Mr. THUNE (for himself and Mr. NELSON) to the bill H.R. 636, supra; which was ordered to lie on the table.

SA 3647. Mr. HATCH submitted an amendment intended to be proposed to amendment SA 3464 submitted by Mr. THUNE (for himself and Mr. NELSON) to the bill H.R. 636, supra; which was ordered to lie on the table.

SA 3648. Mr. CARDIN (for himself and Mr. PORTMAN) submitted an amendment intended to be proposed to amendment SA 3464 submitted by Mr. THUNE (for himself and Mr. NELSON) to the bill H.R. 636, supra; which was ordered to lie on the table.

SA 3649. Mr. CARDIN submitted an amendment intended to be proposed to amendment SA 3464 submitted by Mr. THUNE (for himself and Mr. NELSON) to the bill H.R. 636, supra; which was ordered to lie on the table.

SA 3650. Mrs. FEINSTEIN (for herself, Mr. TILLIS, and Mr. BLUMENTHAL) submitted an amendment intended to be proposed to amendment SA 3464 submitted by Mr. THUNE (for himself and Mr. NELSON) to the bill H.R. 636, supra; which was ordered to lie on the table.

SA 3651. Mr. SULLIVAN (for himself, Ms. CANTWELL, Ms. MURKOWSKI, and Ms. AYOTTE) submitted an amendment intended to be proposed to amendment SA 3464 submitted by Mr. THUNE (for himself and Mr. NELSON) to the bill H.R. 636, supra; which was ordered to lie on the table.

SA 3652. Ms. HEITKAMP (for herself and Ms. AYOTTE) submitted an amendment intended to be proposed to amendment SA 3464 submitted by Mr. THUNE (for himself and Mr. NELSON) to the bill H.R. 636, supra; which was ordered to lie on the table.

SA 3653. Mr. CASEY (for himself and Mr. BROWN) submitted an amendment intended to be proposed to amendment SA 3464 submitted by Mr. THUNE (for himself and Mr. NELSON) to the bill H.R. 636, supra; which was ordered to lie on the table.

SA 3654. Mr. CORNYN (for himself, Mr. BLUMENTHAL, Mr. KIRK, and Mr. COONS) submitted an amendment intended to be proposed to amendment SA 3464 submitted by Mr. THUNE (for himself and Mr. NELSON) to the bill H.R. 636, supra; which was ordered to lie on the table.

SA 3655. Mr. GRASSLEY (for himself, Ms. CANTWELL, Mr. BLUNT, Ms. HEITKAMP, Mrs. ERNST, Mr. DONNELLY, Mr. FRANKEN, and Mr. WHITEHOUSE) submitted an amendment intended to be proposed to amendment SA 3464 submitted by Mr. THUNE (for himself and Mr. NELSON) to the bill H.R. 636, supra; which was ordered to lie on the table.

SA 3656. Mr. HATCH submitted an amendment intended to be proposed to amendment SA 3464 submitted by Mr. THUNE (for himself and Mr. NELSON) to the bill H.R. 636, supra; which was ordered to lie on the table.

SA 3657. Mr. WYDEN submitted an amendment intended to be proposed to amendment SA 3464 submitted by Mr. THUNE (for himself and Mr. NELSON) to the bill H.R. 636, supra; which was ordered to lie on the table.

SA 3658. Mr. MURPHY submitted an amendment intended to be proposed by him to the bill H.R. 636, supra; which was ordered to lie on the table.

SA 3659. Mr. WYDEN (for himself and Mr. HOEVEN) submitted an amendment intended to be proposed to amendment SA 3464 submitted by Mr. THUNE (for himself and Mr. NELSON) to the bill H.R. 636, supra; which was ordered to lie on the table.

SA 3660. Mr. KAINE submitted an amendment intended to be proposed to amendment SA 3464 submitted by Mr. THUNE (for himself and Mr. NELSON) to the bill H.R. 636, supra; which was ordered to lie on the table.

SA 3661. Mr. JOHNSON (for himself, Mr. LEAHY, Ms. MURKOWSKI, and Mr. SCHUMER) submitted an amendment intended to be proposed to amendment SA 3464 submitted by Mr. THUNE (for himself and Mr. NELSON) to the bill H.R. 636, supra; which was ordered to lie on the table.

SA 3662. Mr. DAINES submitted an amendment intended to be proposed to amendment SA 3464 submitted by Mr. THUNE (for himself and Mr. NELSON) to the bill H.R. 636, supra; which was ordered to lie on the table.

SA 3663. Ms. MURKOWSKI (for herself and Mr. SULLIVAN) submitted an amendment intended to be proposed to amendment SA 3464 submitted by Mr. THUNE (for himself and Mr. NELSON) to the bill H.R. 636, supra; which was ordered to lie on the table.

SA 3664. Ms. MURKOWSKI (for herself and Mr. SULLIVAN) submitted an amendment intended to be proposed to amendment SA 3464 submitted by Mr. THUNE (for himself and Mr. NELSON) to the bill H.R. 636, supra; which was ordered to lie on the table.

SA 3665. Mr. VITTER submitted an amendment intended to be proposed to amendment SA 3464 submitted by Mr. THUNE (for himself and Mr. NELSON) to the bill H.R. 636, supra; which was ordered to lie on the table.

SA 3666. Mr. VITTER submitted an amendment intended to be proposed to amendment SA 3464 submitted by Mr. THUNE (for himself and Mr. NELSON) to the bill H.R. 636, supra; which was ordered to lie on the table.

SA 3667. Mr. WARNER submitted an amendment intended to be proposed to amendment SA 3464 submitted by Mr. THUNE (for himself and Mr. NELSON) to the bill H.R. 636, supra; which was ordered to lie on the table.

SA 3668. Mrs. MURRAY (for herself and Ms. CANTWELL) submitted an amendment intended to be proposed to amendment SA 3464 submitted by Mr. THUNE (for himself and Mr. NELSON) to the bill H.R. 636, supra; which was ordered to lie on the table.

SA 3669. Mr. DAINES submitted an amendment intended to be proposed to amendment SA 3464 submitted by Mr. THUNE (for himself and Mr. NELSON) to the bill H.R. 636, supra; which was ordered to lie on the table.

SA 3670. Mr. CRAPO submitted an amendment intended to be proposed to amendment SA 3464 submitted by Mr. THUNE (for himself and Mr. NELSON) to the bill H.R. 636, supra; which was ordered to lie on the table.

SA 3671. Mr. BARRASSO submitted an amendment intended to be proposed to amendment SA 3464 submitted by Mr. THUNE (for himself and Mr. NELSON) to the bill H.R. 636, supra; which was ordered to lie on the table.

SA 3672. Mrs. GILLIBRAND (for herself and Mr. SCHUMER) submitted an amendment intended to be proposed to amendment SA 3464 submitted by Mr. THUNE (for himself and Mr. NELSON) to the bill H.R. 636, supra; which was ordered to lie on the table.

SA 3673. Mr. REED submitted an amendment intended to be proposed to amendment SA 3464 submitted by Mr. THUNE (for himself and Mr. NELSON) to the bill H.R. 636, supra; which was ordered to lie on the table.

SA 3674. Mr. REED submitted an amendment intended to be proposed to amendment SA 3464 submitted by Mr. THUNE (for himself and Mr. NELSON) to the bill H.R. 636, supra; which was ordered to lie on the table.

SA 3675. Ms. HEITKAMP (for herself and Mr. INHOFE) submitted an amendment intended to be proposed to amendment SA 3464 submitted by Mr. THUNE (for himself and Mr. NELSON) to the bill H.R. 636, supra; which was ordered to lie on the table.

SA 3676. Ms. HEITKAMP submitted an amendment intended to be proposed to amendment SA 3464 submitted by Mr. THUNE (for himself and Mr. NELSON) to the bill H.R. 636, supra; which was ordered to lie on the table.

SA 3677. Mr. MARKEY submitted an amendment intended to be proposed to amendment SA 3464 submitted by Mr. THUNE (for himself and Mr. NELSON) to the bill H.R. 636, supra; which was ordered to lie on the table.

SA 3678. Ms. HIRONO (for herself, Mr. BROWN, Ms. WARREN, and Mrs. SHAHEEN) submitted an amendment intended to be proposed to amendment SA 3464 submitted by Mr. THUNE (for himself and Mr. NELSON) to the bill H.R. 636, supra; which was ordered to lie on the table.

SA 3679. Mr. MCCONNELL (for Mr. THUNE (for himself and Mr. NELSON)) proposed an amendment to the bill H.R. 636, supra.

SA 3680. Mr. THUNE proposed an amendment to amendment SA 3679 proposed by Mr. MCCONNELL (for Mr. THUNE (for himself and Mr. NELSON)) to the bill H.R. 636, supra.

SA 3681. Mr. HATCH submitted an amendment intended to be proposed by him to the bill H.R. 636, supra; which was ordered to lie on the table.

SA 3682. Mr. INHOFE submitted an amendment intended to be proposed to amendment SA 3464 submitted by Mr. THUNE (for himself and Mr. NELSON) to the bill H.R. 636, supra; which was ordered to lie on the table.

SA 3683. Mr. BOOKER (for himself and Mr. DAINES) submitted an amendment intended to be proposed to amendment SA 3464 submitted by Mr. THUNE (for himself and Mr. NELSON) to the bill H.R. 636, supra; which was ordered to lie on the table.

SA 3684. Mr. MCCONNELL (for Mr. CARPER (for himself and Mr. TILLIS)) proposed an amendment to the bill S. 2133, to improve Federal agency financial and administrative controls and procedures to assess and mitigate fraud risks, and to improve Federal agencies' development and use of data analytics for the purpose of identifying, preventing, and responding to fraud, including improper payments.

TEXT OF AMENDMENTS

SA 3640. Mr. PORTMAN (for himself and Mr. BROWN) submitted an amendment intended to be proposed to amendment SA 3464 submitted by Mr. THUNE (for himself and Mr. NELSON) to the bill H.R. 636, to amend the Internal Revenue Code of 1986 to permanently extend increased expensing limitations, and for other purposes; which was ordered to lie on the table; as follows:

After section 2125, insert the following:

SEC. 2126. PILOT PROGRAM TO INTEGRATE UNMANNED AIRCRAFT SYSTEMS INTO THE NATIONAL AIRSPACE.

(a) ADDITIONAL TEST RANGES.—Paragraph (1) of section 332(c) of the FAA Modernization and Reform Act of 2012 (Public Law 112–95; 49 U.S.C. 40101 note) is amended—

(1) by striking ''Not later than'' and inserting the following;

''(A) INITIAL TEST RANGES.—Not later than''; and

(2) by adding at the end the following:

''(B) ADDITIONAL TEST RANGES.—

''(i) REQUIREMENT.—Not later than 180 days after the date of the enactment of the Federal Aviation Administration Reauthorization Act of 2016, the Administrator shall establish 4 additional test ranges under the program established under subparagraph (A).

''(ii) APPLICATION.—The Administrator shall—

''(I) permit a State that submitted an application to be a test range prior to such date of enactment to use that prior submission, or a modified version of that submission, as an application to be a test range under clause (i); and

''(II) permit States that did not submit an application to be a test range prior to such date of enactment to apply to be a test range under clause (i).''.

(b) CONFORMING AMENDMENT.—Paragraph (3) of section 332(c) of the FAA Modernization and Reform Act of 2012 (Public Law 112–95; 49 U.S.C. 40101 note) is amended by striking ''6''.

SA 3641. Mr. JOHNSON (for himself, Mr. LEAHY, Ms. MURKOWSKI, and Mr. SCHUMER) submitted an amendment intended to be proposed to amendment SA 3464 submitted by Mr. THUNE (for himself and Mr. NELSON) to the bill H.R. 636, to amend the Internal Revenue Code of 1986 to permanently extend increased expensing limitations, and for other purposes; which was ordered to lie on the table; as follows:

At the end of title V, add the following:

SEC. 5032. JURISDICTION OVER OFFENSES COMMITTED BY CERTAIN UNITED STATES PERSONNEL STATIONED IN CANADA.

(a) AMENDMENT.—Chapter 212A of title 18, United States Code, is amended—

(1) in the chapter heading, by striking ''**TRAFFICKING IN PERSONS**''; and

(2) by adding after section 3272 the following:

''§ 3273. Offenses committed by certain United States personnel stationed in Canada in furtherance of border security initiatives

''(a) IN GENERAL.—Whoever, while employed by the Department of Homeland Security or the Department of Justice and stationed or deployed in Canada pursuant to a treaty, executive agreement, or bilateral memorandum in furtherance of a border security initiative, engages in conduct (or conspires or attempts to engage in conduct) in Canada that would constitute an offense for which a person may be prosecuted in a court of the United States had the conduct been engaged in within the United States or within the special maritime and territorial jurisdiction of the United States shall be fined or imprisoned, or both, as provided for that offense.

''(b) DEFINITIONS.—In this section:

''(1) EMPLOYED BY THE DEPARTMENT OF HOMELAND SECURITY OR THE DEPARTMENT OF JUSTICE.—The term 'employed by the Department of Homeland Security or the Department of Justice' means—

''(A) being employed as a civilian employee, a contractor (including a subcontractor at any tier), an employee of a contractor (or a subcontractor at any tier), a grantee (including a contractor of a grantee or a subgrantee or subcontractor at any tier), or an employee of a grantee (or a contractor of a grantee or a subgrantee or subcontractor at any tier) of the Department of Homeland Security or the Department of Justice;

''(B) being present or residing in Canada in connection with such employment; and

''(C) not being a national of or ordinarily resident in Canada.

''(2) GRANT AGREEMENT.—The term 'grant agreement' means a legal instrument described in section 6304 or 6305 of title 31, other than an agreement between the United States and a State, local, or foreign government or an international organization.

''(3) GRANTEE.—The term 'grantee' means a party, other than the United States, to a grant agreement.''.

(b) TECHNICAL AND CONFORMING AMENDMENTS.—Part II of title 18, United States Code, is amended—

(1) in the table of chapters, by striking the item relating to chapter 212A and inserting the following:

''212A. Extraterritorial jurisdiction over certain offenses ..... 3271''; and

(2) in the table of sections for chapter 212A, by inserting after the item relating to section 3272 the following:

''3273. Offenses committed by certain United States personnel stationed in Canada in furtherance of border security initiatives.''.

SA 3642. Mr. RUBIO submitted an amendment intended to be proposed to amendment SA 3464 submitted by Mr. THUNE (for himself and Mr. NELSON) to the bill H.R. 636, to amend the Internal Revenue Code of 1986 to permanently extend increased expensing limitations, and for other purposes; which was ordered to lie on the table; as follows:

At the end of title V, add the following:

SEC. 5032. GOVERNMENT ACCOUNTABILITY OFFICE STUDY OF TRANSFERRING FEDERAL AVIATION ADMINISTRATION CERTIFICATIONS TO INSTITUTIONS OF HIGHER EDUCATION.

The Comptroller General of the United States shall—

(1) conduct a study on barriers to individuals transferring certifications provided by the Federal Aviation Administration into postsecondary programs at institutions of higher education for academic credit; and

(2) not later than 180 days after the date of the enactment of this Act, submit to Congress a report on the results of the study.

SA 3643. Mr. INHOFE (for himself and Mr. BROWN) submitted an amendment intended to be proposed to amendment SA 3464 submitted by Mr. THUNE (for himself and Mr. NELSON) to the bill H.R. 636, to amend the Internal Revenue Code of 1986 to permanently extend increased expensing limitations, and for other purposes; which was ordered to lie on the table; as follows:

At the end of subtitle C of title II, add the following:

SEC. 2320. AVIATION RULEMAKING COMMITTEE FOR PILOT REST AND DUTY REGULATIONS.

(a) IN GENERAL.—Not later than 180 days after the date of the enactment of this Act, the Administrator of the Federal Aviation Administration shall convene an aviation rulemaking committee to review pilot rest and duty regulations under part 135 of title 14, Code of Federal Regulations.

(b) COMPOSITION.—The aviation rulemaking committee convened under subsection (a) shall consist of members appointed by the Administrator, including—

(1) applicable representatives of industry;

(2) a pilot labor organization exclusively representing a minimum of 1,000 pilots who are covered by—

(A) part 135 of title 14, Code of Federal Regulations; and

(B) subpart K of part 91 of such title; and

(3) aviation safety experts with specific knowledge of flight crewmember education and training requirements relating to part 135 of such title.

(c) MATTERS TO BE ADDRESS.—In reviewing the pilot rest and duty regulations under part 135 of title 14, Code of Federal Regulations, the aviation rulemaking committee shall consider the following:

(1) Recommendations of aviation rulemaking committees convened before the date of the enactment of this Act.

(2) Accommodations necessary for small businesses.

(3) Scientific data derived from aviation-related fatigue and sleep research.

(4) Data gathered from aviation safety reporting programs.

(5) The need to accommodate diversity of operations conducted under part 135 of such title.

(6) Such other matters as the Administrator considers appropriate.

(d) REPORT AND NOTICE OF PROPOSED RULEMAKING.—The Administrator shall—

(1) not later than 24 months after the date of the enactment of this Act, submit to the appropriate committees of Congress a report based on the findings of the aviation rulemaking committee convened under subsection (a); and

(2) not later than 12 months after submitting the report required under paragraph (1), issue a notice of proposed rulemaking consistent with any consensus recommendations reached by the aviation rulemaking committee.

SA 3644. Mr. INHOFE submitted an amendment intended to be proposed to amendment SA 3464 submitted by Mr. THUNE (for himself and Mr. NELSON) to the bill H.R. 636, to amend the Internal Revenue Code of 1986 to permanently extend increased expensing limitations, and for other purposes; which was ordered to lie on the table; as follows:

Strike section 3109 and insert the following:

SEC. 3109. REFUNDS FOR DELAYED BAGGAGE.

(a) REGULATIONS.—

(1) IN GENERAL.—Not later than one year after the date of the enactment of this Act, the Secretary of Transportation shall issue final regulations to require a covered air carrier to promptly provide a refund to a passenger, upon request, in the amount of any applicable ancillary fees paid by the passenger if the air carrier has charged the passenger an ancillary fee for checked baggage and, except as provided in subsection (b), the air carrier fails to deliver the checked baggage to the passenger within 24 hours of the time of arrival of the passenger at the passenger's destination.

(2) CHOICE OF COMPARABLE COMPENSATION.—In the final regulations issued under paragraph (1), the Secretary shall not prescribe specific compensation, but shall permit a covered air carrier to provide the passenger with a choice of comparable compensation so long as a full refund of the ancillary fee is one of the choices simultaneously offered by the covered air carrier.

(b) EXCEPTION.—An air carrier is not required to provide a refund under subsection (a) with respect to checked baggage if the air carrier is prevented from delivering checked baggage by the time specified in subsection (a) by extraordinary circumstances that could not have been avoided by the air carrier even if all reasonable measures had been taken.

SA 3645. Ms. HEITKAMP (for herself, Mrs. CAPITO, Mr. DONNELLY, Mr. TESTER, Mr. BLUNT, Mr. BARRASSO, Mr. COATS, Mr. DAINES, and Mr. ENZI) submitted an amendment intended to be proposed to amendment SA 3464 submitted by Mr. THUNE (for himself and Mr. NELSON) to the bill H.R. 636, to amend the Internal Revenue Code of 1986 to permanently extend increased expensing limitations, and for other purposes; which was ordered to lie on the table; as follows:

At the appropriate place, insert the following:

SEC. _____. EXTENSION OF ENHANCED CARBON DIOXIDE SEQUESTRATION CREDIT.

(a) SHORT TITLE.—This section may be cited as the ''Carbon Capture Act''.

(b) IN GENERAL.—

(1) INCREASE IN CREDIT RATE FOR CERTAIN CARBON CAPTURE EQUIPMENT.—Section 45Q(a) of the Internal Revenue Code of 1986 is amended—

(A) in paragraph (1)—

(i) by amending subparagraph (A) to read as follows:

''(A) captured by the taxpayer using qualified carbon capture equipment which is originally placed in service at a qualified facility before the date of the enactment of the Carbon Capture Act, and'', and

(ii) in subparagraph (B), by striking ''and'' at the end,

(B) in paragraph (2)—

(i) by amending subparagraph (A) to read as follows:

''(A) captured by the taxpayer using qualified carbon capture equipment which is originally placed in service at a qualified facility before the date of the enactment of the Carbon Capture Act,'', and

(ii) in subparagraph (C), by striking the period at the end and inserting a comma, and

(C) by adding at the end the following new paragraphs:

''(3) the applicable dollar amount (as determined under subsection (b)(1)) per metric ton of qualified carbon dioxide which is—

''(A) captured by the taxpayer using qualified carbon capture equipment which is originally placed in service at a qualified facility on or after the date of the enactment of the Carbon Capture Act, during the 10-year period beginning on the date the equipment was originally placed in service, and

''(B) disposed of by the taxpayer in secure geological storage and not used by the taxpayer as described in paragraph (4)(B), and

''(4) the applicable dollar amount (as determined under subsection (b)(1)) per metric ton of qualified carbon dioxide which is—

''(A) captured by the taxpayer using qualified carbon capture equipment which is originally placed in service at a qualified facility on or after the date of the enactment of the Carbon Capture Act, during the 10-year period beginning on the date the equipment was originally placed in service,

''(B) used by the taxpayer as a tertiary injectant in a qualified enhanced oil or natural gas recovery project, and

''(C) disposed of by the taxpayer in secure geological storage.''.

(2) APPLICABLE DOLLAR AMOUNT; ADDITIONAL EQUIPMENT; ELECTION.—Section 45Q of such Code is amended—

(A) by redesignating subsections (b) through (e) as subsections (c) through (f), respectively, and

(B) by inserting after subsection (a) the following new subsection:

''(b) APPLICABLE DOLLAR AMOUNT; ADDITIONAL EQUIPMENT; ELECTION.—

''(1) APPLICABLE DOLLAR AMOUNT.—

''(A) IN GENERAL.—The applicable dollar amount shall be an amount equal to—

''(i) for any taxable year beginning in a calendar year after 2015 and ending before 2026—

''(I) for purposes of paragraph (3) of subsection (a), the dollar amount established by linear interpolation between $22.66 and $30 for each calendar year during such period, and

''(II) for purposes of paragraph (4) of such subsection, the dollar amount established by linear interpolation between $12.83 and $30 for each calendar year during such period, and

''(ii) for any taxable year beginning in a calendar year after 2025, an amount equal to the product of $30 and the inflation adjustment factor for such calendar year determined under section 43(b)(3)(B) for such calendar year, determined by substituting '2024' for '1990'.

''(B) ROUNDING.—The applicable dollar amount determined under subparagraph (A) shall be rounded to the nearest cent.

''(2) INSTALLATION OF ADDITIONAL CARBON CAPTURE EQUIPMENT ON EXISTING QUALIFIED FACILITY.—In the case of a qualified facility placed in service before the date of the enactment of the Carbon Capture Act, for which additional qualified carbon capture equipment is placed in service on or after the date of the enactment of the Carbon Capture Act, the amount of qualified carbon dioxide which is captured by the taxpayer shall be equal to—

''(A) for purposes of paragraph (1)(A) and (2)(A) of subsection (a), the lesser of—

''(i) the total amount of qualified carbon dioxide captured at such facility for the taxable year, or

''(ii) the total amount of the carbon dioxide capture capacity of the qualified carbon capture equipment in service at such facility on the day before the date of the enactment of the Carbon Capture Act, and

''(B) for purposes of paragraph (3)(A) and (4)(A) of such subsection, an amount (not less than zero) equal to the excess of—

''(i) the amount described in clause (i) of subparagraph (A), over

''(ii) the amount described in clause (ii) of such subparagraph.

''(3) ELECTION.—For purposes of determining the carbon dioxide sequestration credit under this section, a taxpayer may elect to have the dollar amounts applicable under paragraph (1) or (2) of subsection (a) apply in lieu of the dollar amounts applicable under paragraph (3) or (4) of such subsection for each metric ton of qualified carbon dioxide which is captured by the taxpayer using qualified carbon capture equipment which is originally placed in service at a qualified facility on or after the date of the enactment of the Carbon Capture Act.''.

(3) ELECTION TO ALLOW CREDIT TO PERSON THAT DISPOSES OF OR USES THE CARBON DIOXIDE.—Paragraph (5) of section 45Q(e) of such Code, as redesignated by paragraph (2)(A), is amended to read as follows:

''(5) CREDIT ATTRIBUTABLE TO TAXPAYER.—

''(A) IN GENERAL.—Except as provided subparagraph (B) or in any regulations prescribed by the Secretary, any credit under this section shall be attributable to—

''(i) in the case of qualified carbon dioxide captured using qualified carbon capture equipment which is originally placed in service at a qualified facility before the date of the enactment of the Carbon Capture Act, the person that captures and physically or contractually ensures the disposal of or the use as a tertiary injectant of such qualified carbon dioxide, and

''(ii) in the case of qualified carbon dioxide captured using qualified carbon capture equipment which is originally placed in service at a qualified facility on or after the date of the enactment of the Carbon Capture Act, the person that owns the qualified carbon capture equipment and physically or contractually ensures the capture and disposal of or the use as a tertiary injectant of such qualified carbon dioxide.

''(B) ELECTION.—If the person described in subparagraph (A) makes an election under this subparagraph in such time and manner as the Secretary may prescribe by regulations, the credit under this section—

''(i) shall be allowable to the person that disposes of the qualified carbon dioxide or uses the qualified carbon dioxide as a tertiary injectant, and

''(ii) shall not be allowable to the person described in subparagraph (A).''.

(4) DEFINITION OF QUALIFIED FACILITY AND QUALIFIED CARBON CAPTURE EQUIPMENT.—Subsection (d) of section 45Q of such Code, as redesignated by paragraph (2)(A), is amended to read as follows:

''(d) QUALIFIED FACILITY AND QUALIFIED CARBON CAPTURE EQUIPMENT.—

''(1) QUALIFIED FACILITY.—For purposes of this section, the term 'qualified facility' means any industrial facility—

''(A)(i) the construction of which begins before January 1, 2022, and—

''(I) the original planning and design for such facility includes installation of qualified carbon capture equipment, or

''(II) construction of qualified carbon capture equipment begins before such date, or

''(ii) which is placed in service before January 1, 2022, and includes installation of qualified carbon capture equipment, provided that construction of such carbon capture equipment begins before such date, and

''(B) which captures—

''(i) in the case of an electricity generating facility, not less than 500,000 metric tons of qualified carbon dioxide during the taxable year, or

''(ii) in the case of facility not described in clause (i), not less than 100,000 metric tons of qualified carbon dioxide during the taxable year.

''(2) QUALIFIED CARBON CAPTURE EQUIPMENT.—For purposes of this section, the term 'qualified carbon capture equipment' means—

''(A) carbon capture equipment placed in service before January 1, 2022, and

''(B) carbon capture equipment the construction of which begins before such date.''.

(5) APPLICATION OF SECTION.—Subsection (f) of section 45Q of such Code, as redesignated by paragraph (2)(A), is amended to read as follows:

''(f) APPLICATION OF SECTION FOR CERTAIN CARBON CAPTURE EQUIPMENT.—In the case of any qualified carbon capture equipment placed in service before the date of the enactment of the Carbon Capture Act, the credit under this section shall apply with respect to qualified carbon dioxide captured using such equipment before the end of the calendar year in which the Secretary, in consultation with the Administrator of the Environmental Protection Agency, certifies that 75,000,000 metric tons of qualified carbon dioxide have been taken into account in accordance with paragraphs (1) and (2) of subsection (a).''.

(6) REGULATIONS.—Section 45Q of such Code is amended by adding at the end the following new subsection:

''(g) REGULATIONS.—The Secretary may prescribe such regulations and other guidance as may be necessary or appropriate to carry out this section, including regulations or other guidance to—

''(1) ensure proper allocation under subsection (a) for qualified carbon dioxide captured by a taxpayer during the taxable year ending after the date of the enactment of the Carbon Capture Act, and

''(2) determine whether a facility satisfies the requirements under subsection (d)(1) during such taxable year.''.

(c) EFFECTIVE DATE.—The amendments made by this section shall take effect on the date of the enactment of this Act.

SA 3646. Mr. HATCH (for himself and Mr. BENNET) submitted an amendment intended to be proposed to amendment SA 3464 submitted by Mr. THUNE (for himself and Mr. NELSON) to the bill H.R. 636, to amend the Internal Revenue Code of 1986 to permanently extend increased expensing limitations, and for other purposes; which was ordered to lie on the table; as follows:

On page 215, between lines 17 and 18, insert the following:

(b) HELICOPTER CRASH-RESISTANT FUEL SYSTEMS.—Not later 1 year after the date of enactment of this Act, in accordance with the safety recommendations of the National Transportation Safety Board, dated July 23, 2015 (A–15–12), the Administrator of the Federal Aviation Administration shall issue regulations to ensure that the requirements of sections 27.952 and 29.952 of title 14, Code of Federal Regulations, are met by requiring that all newly manufactured helicopters, regardless of the original certification dates of the designs for such helicopters, have fuel systems that meet the crash-worthiness requirements of such sections.

SA 3647. Mr. HATCH submitted an amendment intended to be proposed to amendment SA 3464 submitted by Mr. THUNE (for himself and Mr. NELSON) to the bill H.R. 636, to amend the Internal Revenue Code of 1986 to permanently extend increased expensing limitations, and for other purposes; which was ordered to lie on the table; as follows:

At the end of subtitle D of title II, add the following:

SEC. 2405. FRANGIBILITY STANDARDS AND REQUIREMENTS.

(a) IN GENERAL.—Not later than one year after the date of the enactment of this Act, the Administrator of the Federal Aviation Administration shall—

(1) develop standards and requirements for the frangibility of new civilian aviation facilities and structures, in accordance with Federal Aviation Administration Advisory Circular 150/5220-23;

(2) develop standard test protocols and certification processes for frangible civilian aviation facilities and structures; and

(3) notify Congress of the viability of establishing a frangibility test center in the United States that is capable of performing test protocols approved by the Federal Aviation Administration.

(b) CONSIDERATIONS.—In determining the viability of establishing a frangibility test center in the United States under subsection (a)(3), the Administrator shall consider facilities of centers of excellence, partnerships, industry stakeholders, and other Federal agencies.

SA 3648. Mr. CARDIN (for himself and Mr. PORTMAN) submitted an amendment intended to be proposed to amendment SA 3464 submitted by Mr. THUNE (for himself and Mr. NELSON) to the bill H.R. 636, to amend the Internal Revenue Code of 1986 to permanently extend increased expensing limitations, and for other purposes; which was ordered to lie on the table; as follows:

At the appropriate place, insert the following:

SEC. _____. ALLOCATIONS OF CREDITS TO INDIAN TRIBAL GOVERNMENTS AND NONPROFIT ORGANIZATIONS.

(a) ALLOCATIONS TO INDIAN TRIBAL GOVERNMENTS.—Paragraph (4) of section 179D(d) of the Internal Revenue Code of 1986 is amended by striking ''or local'' and inserting ''local, or Indian tribal''.

(b) ALLOCATIONS TO CERTAIN NONPROFIT ORGANIZATIONS.—

(1) IN GENERAL.—Paragraph (4) of section 179D(d) of the Internal Revenue Code of 1986, as amended by subsection (a), is amended by inserting '', or by an organization that is described in section 501(c)(3) and exempt from tax under section 501(a)'' after ''political subdivision thereof''.

(2) CLERICAL AMENDMENT.—The heading of paragraph (4) of section 179D(d) of such Code is amended by inserting ''AND PROPERTY HELD BY CERTAIN NON-PROFITS'' after ''PUBLIC PROPERTY''.

(c) EFFECTIVE DATE.—The amendments made by this section shall apply to property placed in service after December 31, 2015.

SA 3649. Mr. CARDIN submitted an amendment intended to be proposed to amendment SA 3464 submitted by Mr. THUNE (for himself and Mr. NELSON) to the bill H.R. 636, to amend the Internal Revenue Code of 1986 to permanently extend increased expensing limitations, and for other purposes; which was ordered to lie on the table; as follows:

At the appropriate place, insert the following:

SEC. _____. COMPENSATION FOR FEDERAL EMPLOYEES AFFECTED BY A LAPSE IN APPROPRIATIONS.

Section 1341 of title 31, United States Code, is amended—

(1) in subsection (a)(1), by striking ''An officer'' and inserting ''Except as specified in this subchapter or any other provision of law, an officer''; and

(2) by adding at the end the following:

''(c)(1) In this subsection—

''(A) the term 'covered lapse in appropriations' means a lapse in appropriations that begins on or after October 1, 2015; and

''(B) the term 'excepted employee' means an excepted employee or an employee performing emergency work, as such terms are defined by the Office of Personnel Management.

''(2) Each Federal employee furloughed as a result of a covered lapse in appropriations shall be paid for the period of the lapse in appropriations, and each excepted employee who is required to perform work during a covered lapse in appropriations shall be paid for such work, at the employee's standard rate of pay at the earliest date possible after the lapse in appropriations ends, regardless of scheduled pay dates.

''(3) During a covered lapse in appropriations, each excepted employee who is required to perform work shall be entitled to use leave under chapter 63 of title 5, or any other applicable law or equivalent formal leave system governing the use of leave by the excepted employee, for which compensation shall be paid at the earliest date possible after the lapse in appropriations ends, regardless of scheduled pay dates.''.

SA 3650. Mrs. FEINSTEIN (for herself, Mr. TILLIS, and Mr. BLUMENTHAL) submitted an amendment intended to be proposed to amendment SA 3464 submitted by Mr. THUNE (for himself and Mr. NELSON) to the bill H.R. 636, to amend the Internal Revenue Code of 1986 to permanently extend increased expensing limitations, and for other purposes; which was ordered to lie on the table; as follows:

Strike section 2152.

SA 3651. Mr. SULLIVAN (for himself, Ms. CANTWELL, Ms. MURKOWSKI, and Ms. AYOTTE) submitted an amendment intended to be proposed to amendment SA 3464 submitted by Mr. THUNE (for himself and Mr. NELSON) to the bill H.R. 636, to amend the Internal Revenue Code of 1986 to permanently extend increased expensing limitations,

and for other purposes; which was ordered to lie on the table; as follows:

Beginning on page 316, strike line 20 and all that follows through page 318, line 17, and insert the following:

''(B) CONSIDERATION OF ADDITIONAL APPLICANTS.—The Administrator shall consider additional applicants for the position of air traffic controller by referring an approximately equal number of employees for appointment among the the applicant pools described in subparagraph (C). If the number of referrals from one of the pools is insufficient to provide an approximately equal number of candidates as the other pools in order to meet the need of the Federal Aviation Administration for new employees, the Administrator shall draw from the other pools to meet the need. The number of employees referred for consideration from pool one and pool two shall not differ by more than 10 percent.

''(C) APPLICANT POOLS.—The the applicant pools referred to in subparagraph (B) are the following:

''(i) POOL ONE.—Applicants who have successfully completed air traffic controller training and graduated from an institution participating in the Collegiate Training Initiative program maintained under subsection (c)(1) who have received from the institution—

''(I) an appropriate recommendation; or

''(II) an endorsement certifying that the individual would have met the requirements in effect as of December 31, 2013, for an appropriate recommendation.

''(ii) POOL TWO.—Applicants who apply under a vacancy announcement recruiting from all United States citizens.

''(iii) POOL THREE.—Applicants who—

''(I) are eligible for a veterans recruitment appointment pursuant to section 4214 of title 38, United States Code, and provide a Certificate of Release or Discharge from Active Duty within 120 days of the announcement closing;

''(II) are eligible veterans (as defined in section 4211 of title 38, United States Code) maintaining aviation experience obtained in the course of the individual's military experience; or

''(III) are preference eligible veterans (as defined in section 2108 of title 5, United States Code).

''(D) RULE OF CONSTRUCTION.—Nothing in this paragraph limits the applicability to the three pools of applicants described in subparagraph (C) of any provision of title 5 relating to veterans.

''(2) USE OF BIOGRAPHICAL ASSESSMENTS.—

''(A) BIOGRAPHICAL ASSESSMENTS.—The Administration shall not use any biographical assessment when hiring under subparagraph (A) or clause (i) or (iii) of subparagraph (C) of paragraph (1).

SA 3652. Ms. HEITKAMP (for herself and Ms. AYOTTE) submitted an amendment intended to be proposed to amendment SA 3464 submitted by Mr. THUNE (for himself and Mr. NELSON) to the bill H.R. 636, to amend the Internal Revenue Code of 1986 to permanently extend increased expensing limitations, and for other purposes; which was ordered to lie on the table; as follows:

At the appropriate place, insert the following:

SEC. _____. NORTHERN BORDER SECURITY REVIEW.

(a) SHORT TITLE.—This section may be cited as the ''Northern Border Security Review Act''.

(b) DEFINITIONS.—In this section:

(1) APPROPRIATE CONGRESSIONAL COMMITTEES.—The term ''appropriate congressional committees'' means—

(A) the Committee on Homeland Security and Governmental Affairs of the Senate;

(B) the Committee on Appropriations of the Senate;

(C) the Committee on the Judiciary of the Senate;

(D) the Committee on Commerce, Science, and Transportation of the Senate;

(E) the Committee on Homeland Security of the House of Representatives;

(F) the Committee on Appropriations of the House of Representatives;

(G) the Committee on the Judiciary of the House of Representatives; and

(H) the Committee on Energy and Commerce of the House of Representatives.

(2) NORTHERN BORDER.—The term ''Northern Border'' means the land and maritime borders between the United States and Canada.

(c) NORTHERN BORDER THREAT ANALYSIS.—

(1) IN GENERAL.—Not later than 180 days after the date of enactment of this Act, the Secretary of Homeland Security shall submit to the appropriate congressional committees a Northern Border threat analysis that includes—

(A) current and potential terrorism and criminal threats posed by individuals and organized groups seeking—

(i) to enter the United States through the Northern Border; or

(ii) to exploit border vulnerabilities on the Northern Border;

(B) improvements needed at and between ports of entry along the Northern Border—

(i) to prevent terrorists and instruments of terrorism from entering the United States; and

(ii) to reduce criminal activity, as measured by the total flow of illegal goods, illicit drugs, and smuggled and trafficked persons moved in either direction across to the Northern Border;

(C) gaps in law, policy, cooperation between State, tribal, and local law enforcement, international agreements, or tribal agreements that hinder effective and efficient border security, counter-terrorism, anti-human smuggling and trafficking efforts, and the flow of legitimate trade along the Northern Border; and

(D) whether additional U.S. Customs and Border Protection preclearance and preinspection operations at ports of entry along the Northern Border could help prevent terrorists and instruments of terror from entering the United States.

(2) ANALYSIS REQUIREMENTS.—For the threat analysis required under paragraph (1), the Secretary of Homeland Security shall consider and examine—

(A) technology needs and challenges;

(B) personnel needs and challenges;

(C) the role of State, tribal, and local law enforcement in general border security activities;

(D) the need for cooperation among Federal, State, tribal, local, and Canadian law enforcement entities relating to border security;

(E) the terrain, population density, and climate along the Northern Border; and

(F) the needs and challenges of Department facilities, including the physical approaches to such facilities.

(3) CLASSIFIED THREAT ANALYSIS.—To the extent possible, the Secretary of Homeland Security shall submit the threat analysis required under paragraph (1) in unclassified form. The Secretary may submit a portion of the threat analysis in classified form if the Secretary determines that such form is appropriate for that portion.

SA 3653. Mr. CASEY (for himself and Mr. BROWN) submitted an amendment intended to be proposed to amendment SA 3464 submitted by Mr. THUNE (for himself and Mr. NELSON) to the bill H.R. 636, to amend the Internal Revenue Code of 1986 to permanently extend increased expensing limitations, and for other purposes; which was ordered to lie on the table; as follows:

At the appropriate place, insert the following:

SEC. ___. SCALABLE AEROSPACE ADDITIVE MANUFACTURING DEMONSTRATION INITIATIVE.

(a) IN GENERAL.—The Administrator of the Federal Aviation Administration shall develop a scalable aerospace additive manufacturing demonstration initiative which shall focus on developing research and training on a certification framework for a range of aircraft components, including safety-critical applications, to address barriers to the scalable adoption of additive manufacturing in United States civil aerospace.

(b) INITIATIVE COMPONENTS.—The demonstration initiative required by subsection (a) shall—

(1) promote and facilitate collaboration among academia, the commercial aircraft industry, including manufacturers, suppliers and commercial air carriers, Centers for Manufacturing Innovation in the Network for Manufacturing Innovation Program administered by the Department of Commerce, and national manufacturing innovation institutes administered by the Federal Aviation Administration;

(2) identify and promote opportunities for collaboration and technical exchange among agencies involved in research related to the safety and certification of scalable additive manufacturing, including the National Aeronautics and Space Administration, the National Science Foundation, the National Institute of Standards and Technology, and the Department of Energy;

(3) develop a research and training program for basic and applied technical advances in technologies related to the safety and certification of additively manufactured aerospace components, including safety critical applications; and

(4) develop and undertake research on technologies related to improving the certification of additive manufactured components with academia, industry, non-profit research institutes, and manufacturing innovation institutes.

SA 3654. Mr. CORNYN (for himself, Mr. BLUMENTHAL, Mr. KIRK, and Mr. COONS) submitted an amendment intended to be proposed to amendment SA 3464 submitted by Mr. THUNE (for himself and Mr. NELSON) to the bill H.R. 636, to amend the Internal Revenue Code of 1986 to permanently extend increased expensing limitations, and for other purposes; which was ordered to lie on the table; as follows:

At the end of title V, add the following:

SEC. 5032. REPORT ON AIRPORTS USED BY MAHAN AIR.

(a) IN GENERAL.—Not later than 120 days after the date of the enactment of this Act, and annually thereafter through 2020, the Secretary of Homeland Security, in consultation with the Secretary of Transportation, the Secretary of State, the Secretary of the Treasury, and the Director of National Intelligence, shall submit to Congress a report that includes—

(1) a list of all airports at which aircraft owned or controlled by Mahan Air have landed during the 2 years preceding the submission of the report; and

(2) for each such airport—

(A) an assessment of whether aircraft owned or controlled by Mahan Air continue to conduct operations at that airport;

(B) an assessment of whether any of the landings of aircraft owned or controlled by Mahan Air were necessitated by an emergency situation;

(C) a determination regarding whether additional security measures should be imposed on flights to the United States that originate from that airport; and

(D) an explanation of the rationale for that determination.

(b) FORM OF REPORT.—Each report required by subsection (a) shall be submitted in unclassified form, but may include a classified annex.

(c) PUBLICATION OF LIST.—The list required by subsection (a)(1) shall be publicly and prominently posted on the website of the Department of Homeland Security on the date on which the report required by subsection (a) is submitted to Congress.

SA 3655. Mr. GRASSLEY (for himself, Ms. CANTWELL, Mr. BLUNT, Ms. HEITKAMP, Mrs. ERNST, Mr. DONNELLY, Mr. FRANKEN, and Mr. WHITEHOUSE) submitted an amendment intended to be proposed to amendment SA 3464 submitted by Mr. THUNE (for himself and Mr. NELSON) to the bill H.R. 636, to amend the Internal Revenue Code of 1986 to permanently extend increased expensing limitations, and for other purposes; which was ordered to lie on the table; as follows:

At the appropriate place, insert the following:

SEC. _____. REFORM OF BIODIESEL TAX INCENTIVES.

(a) INCOME TAX CREDIT.—

(1) IN GENERAL.—So much of section 40A of the Internal Revenue Code of 1986 as precedes subsection (c) is amended to read as follows:

"SEC. 40A. BIODIESEL FUELS CREDIT.

''(a) IN GENERAL.—For purposes of section 38, the biodiesel fuels credit determined under this section for the taxable year is $1.00 for each gallon of biodiesel produced by the taxpayer which during the taxable year—

''(1) is sold by the taxpayer to another person—

''(A) for use by such other person's trade or business as a fuel or in the production of a qualified biodiesel mixture (other than casual off-farm production), or

''(B) who sells such biodiesel at retail to another person and places such biodiesel in the fuel tank of such other person, or

''(2) is used by such taxpayer for any purpose described in paragraph (1).

''(b) INCREASED CREDIT FOR SMALL PRODUCERS.—

''(1) IN GENERAL.—In the case of any eligible small biodiesel producer, subsection (a) shall be applied by increasing the dollar amount contained therein by 10 cents.

''(2) LIMITATION.—Paragraph (1) shall only apply with respect to the first 15,000,000 gallons of biodiesel produced by any eligible small biodiesel producer during any taxable year.''.

(2) DEFINITIONS AND SPECIAL RULES.—Section 40A(d) of such Code is amended by striking all that follows paragraph (1) and inserting the following:

''(2) QUALIFIED BIODIESEL MIXTURE; BIODIESEL MIXTURE.—

''(A) QUALIFIED BIODIESEL MIXTURE.—

''(i) IN GENERAL.—The term 'qualified biodiesel mixture' means a biodiesel mixture which is—

''(I) sold by the producer of such mixture to any person for use as a fuel, or

''(II) used by the producer of such mixture as a fuel.

''(ii) SALE OR USE MUST BE IN TRADE OR BUSINESS, ETC.—A biodiesel mixture shall not be treated as a qualified biodiesel mixture unless the sale or use described in clause (i) is in a trade or business of the person producing the biodiesel mixture.

''(B) BIODIESEL MIXTURE.—The term 'biodiesel mixture' means a mixture which consists of biodiesel and diesel fuel (as defined in section 4083(a)(3)), determined without regard to any use of kerosene.

''(3) BIODIESEL NOT USED FOR A QUALIFIED PURPOSE.—If—

''(A) any credit was determined with respect to any biodiesel under this section, and

''(B) any person uses such biodiesel for a purpose not described in subsection (a),

then there is hereby imposed on such person a tax equal to the product of the rate applicable under subsection (a) and the number of gallons of such biodiesel.

''(4) PASS-THRU IN THE CASE OF ESTATES AND TRUSTS.—Under regulations prescribed by the Secretary, rules similar to the rules of subsection (d) of section 52 shall apply.

''(5) LIMITATION TO BIODIESEL WITH CONNECTION TO THE UNITED STATES.—

''(A) IN GENERAL.—No credit shall be determined under subsection (a) with respect to biodiesel unless such biodiesel is produced in the United States from qualified feedstocks. For purposes of this paragraph, the term 'United States' includes any possession of the United States.

''(B) QUALIFIED FEEDSTOCKS.—For purposes of subparagraph (A), the term 'qualified feedstock' means any feedstock which is allowable for a fuel that is assigned a D–Code of 4 under table 1 of section 80.1426(f) of title 40, Code of Federal Regulations.''.

(3) RULES FOR SMALL BIODIESEL PRODUCERS.—

(A) IN GENERAL.—Section 40A(e) of such Code is amended—

(i) by striking ''agri-biodiesel'' each place it appears in paragraphs (1) and (5)(A) and inserting ''biodiesel'',

(ii) by striking ''subsection (b)(4)(C)'' each place it appears in paragraphs (2) and (3) and inserting ''subsection (b)(2)'', and

(iii) by striking ''subsection (a)(3)'' each place it appears in paragraphs (5)(A), (6)(A)(i), and (6)(B)(i) and inserting ''subsection (b)''.

(B) The heading for subsection (e) of section 40A of such Code is amended by striking ''AGRI-BIODIESEL'' and inserting ''BIODIESEL''.

(C) The headings for paragraphs (1) and (6) of section 40A(e) of such Code are each amended by striking ''AGRI-BIODIESEL'' and inserting ''BIODIESEL''.

(4) RENEWABLE DIESEL.—

(A) IN GENERAL.—Paragraph (3) of section 40A(f) of such Code is amended to read as follows:

''(3) RENEWABLE DIESEL DEFINED.—

''(A) IN GENERAL.—The term 'renewable diesel' means liquid fuel derived from biomass which—

''(i) is not a mono-alkyl ester,

''(ii) can be used in engines designed to operate on conventional diesel fuel, and

''(iii) meets the requirements for any Grade No. 1–D fuel or Grade No. 2–D fuel covered under the American Society for Testing and Materials specification D–975–13a.

''(B) EXCEPTIONS.—Such term shall not include—

''(i) any liquid with respect to which a credit may be determined under section 40,

''(ii) any fuel derived from coprocessing biomass with a feedstock which is not biomass, or

''(iii) any fuel that is not chemically equivalent to petroleum diesel fuels that can meet fuel quality specifications applicable to diesel fuel, gasoline, or aviation fuel.

''(C) BIOMASS.—For purposes of this paragraph, the term 'biomass' has the meaning given such term by section 45K(c)(3).''.

(B) CONFORMING AMENDMENTS.—Section 40A(f) of such Code is amended—

(i) by striking ''Subsection (b)(4)'' in paragraph (2) and inserting ''Subsection (b)'', and

(ii) by striking paragraph (4) and inserting the following:

''(4) CERTAIN AVIATION FUEL.—Except as provided paragraph (3)(B), the term 'renewable diesel' shall include fuel derived from biomass which meets the requirements of a Department of Defense specification for military jet fuel or an American Society of Testing and Materials specification for aviation turbine fuel.''.

(5) EXTENSION.—Subsection (g) of section 40A of such Code is amended by striking ''December 31, 2016'' and inserting ''December 31, 2019''.

(6) CLERICAL AMENDMENT.—The table of sections for subpart D of part IV of subchapter A of chapter 1 of such Code is amended by striking the item relating to section 40A and inserting the following new item:

''Sec. 40A. Biodiesel fuels credit.''.

(b) REFORM OF EXCISE TAX CREDIT.—

(1) IN GENERAL.—Subsection (c) of section 6426 of the Internal Revenue Code of 1986 is amended to read as follows:

''(c) BIODIESEL PRODUCTION CREDIT.—

''(1) IN GENERAL.—For purposes of this section, the biodiesel production credit is $1.00 for each gallon of biodiesel produced by the taxpayer and which—

''(A) is sold by such taxpayer to another person—

''(i) for use by such other person's trade or business as a fuel or in the production of a qualified biodiesel mixture (other than casual off-farm production), or

''(ii) who sells such biodiesel at retail to another person and places such biodiesel in the fuel tank of such other person, or

''(B) is used by such taxpayer for any purpose described in subparagraph (A).

''(2) DEFINITIONS.—Any term used in this subsection which is also used in section 40A shall have the meaning given such term by section 40A.

''(3) TERMINATION.—This subsection shall not apply to any sale, use, or removal after December 31, 2019.''.

(2) PRODUCER REGISTRATION REQUIREMENT.—Subsection (a) of section 6426 of such Code is amended by striking ''subsections (d) and (e)'' in the flush sentence at the end and inserting ''subsections (c), (d), and (e)''.

(3) RECAPTURE.—

(A) IN GENERAL.—Subsection (f) of section 6426 of such Code is amended—

(i) by striking ''or biodiesel'' each place it appears in subparagraphs (A) and (B)(i) of paragraph (1),

(ii) by striking ''or biodiesel mixture'' in paragraph (1)(A), and

(iii) by redesignating paragraph (2) as paragraph (3) and by inserting after paragraph (1) the following new paragraph:

''(2) BIODIESEL.—If any credit was determined under this section or paid pursuant to section 6427(e) with respect to the production of any biodiesel and any person uses such biodiesel for a purpose not described in subsection (c)(1), then there is hereby imposed on such person a tax equal to $1 for each gallon of such biodiesel.''.

(B) CONFORMING AMENDMENTS.—

(i) Paragraph (3) of section 6426(f) of such Code, as redesignated by subparagraph (A)(iii), is amended by inserting ''or (2)'' after ''paragraph (1)''.

(ii) The heading for paragraph (1) of section 6426(f) of such Code is amended by striking ''IMPOSITION OF TAX'' and inserting ''IN GENERAL''.

(4) LIMITATION.—Section 6426(i) of such Code is amended—

(A) in paragraph (2)—

(i) by striking ''biodiesel or'', and

(ii) by striking ''BIODIESEL AND'' in the heading, and

(B) by inserting after paragraph (2) the following new paragraph:

''(3) BIODIESEL.—No credit shall be determined under subsection (a) with respect to biodiesel unless such biodiesel is produced in the United States from qualified feedstocks (as defined in section 40A(d)(5)(B)).''.

(5) CLERICAL AMENDMENTS.—

(A) The heading of section 6426 of such Code is amended by striking ''**ALCOHOL FUEL, BIODIESEL, AND ALTERNATIVE FUEL MIXTURES**'' and inserting ''**ALCOHOL FUEL MIXTURES, BIODIESEL PRODUCTION, AND ALTERNATIVE FUEL MIXTURES**''.

(B) The item relating to section 6426 in the table of sections for subchapter B of chapter 65 of such Code is amended by striking ''alcohol fuel, biodiesel, and alternative fuel mixtures'' and inserting ''alcohol fuel mixtures, biodiesel production, and alternative fuel mixtures''.

(c) REFORM OF EXCISE PAYMENTS.—Subsection (e) of section 6427 of the Internal Revenue Code of 1986 is amended—

(1) by striking ''or the biodiesel mixture credit'' in paragraph (1),

(2) by redesignating paragraphs (3) through (6) as paragraphs (4) through (7), respectively, and by inserting after paragraph (2) the following new paragraph:

''(3) BIODIESEL PRODUCTION CREDIT.—If any person produces biodiesel and sells or uses such biodiesel as provided in section 6426(c)(1), the Secretary shall pay (without interest) to such person an amount equal to the biodiesel production credit with respect to such biodiesel.'',

(3) by striking ''paragraph (1) or (2)'' each place it appears in paragraphs (4) and (6), as redesignated by paragraph (2), and inserting ''paragraph (1), (2), or (3)'',

(4) by striking ''alternative fuel'' each place it appears in paragraphs (4) and (6), as redesignated by paragraph (2), and inserting ''fuel'', and

(5) in paragraph (7)(B), as redesignated by paragraph (2)—

(A) by striking ''biodiesel mixture (as defined in section 6426(c)(3))'' and inserting ''biodiesel (within the meaning of section 40A)'', and

(B) by striking ''December 31, 2016'' and inserting ''December 31, 2019''.

(d) GUIDANCE.—Not later than 30 days after the date of the enactment of this Act, the Secretary of the Treasury, or the Secretary's delegate, shall issue preliminary guidance with respect to the amendments made by this subsection.

(e) EFFECTIVE DATE.—The amendments made by this section shall apply to fuel sold or used after December 31, 2016.

SA 3656. Mr. HATCH submitted an amendment intended to be proposed to amendment SA 3464 submitted by Mr. THUNE (for himself and Mr. NELSON) to the bill H.R. 636, to amend the Internal Revenue Code of 1986 to permanently extend increased expensing limitations, and for other purposes; which was ordered to lie on the table; as follows:

Strike section 2124 through 2138 and insert the following:

SEC. 2124. SMALL UNMANNED AIRCRAFT SAFETY STANDARDS.

(a) IN GENERAL.—Chapter 448, as amended by section 2122 of this Act, is further amended by inserting after section 44802 the following:

''SEC. 44803. SMALL UNMANNED AIRCRAFT SAFETY STANDARDS.

''(a) CONSENSUS SAFETY STANDARDS.—Not later than 60 days after the date of enactment of the Federal Aviation Administration Reauthorization Act of 2016, the Director of the National Institute of Standards and Technology and the Administrator of the Federal Aviation Administration, in consultation with government and industry stakeholders and appropriate standards-setting organizations, shall initiate a collaborative process to develop risk-based, consensus industry safety standards related to the safe integration of small unmanned aircraft systems into the national airspace system.

''(b) CONSIDERATIONS.—In developing the consensus safety standards under subsection (a), the Director and Administrator shall consider the following:

''(1) Technologies or standards related to geographic limitations, altitude limitations, and sense and avoid capabilities.

''(2) Using performance-based standards.

''(3) Predetermined action to maintain safety in the event that a communications link between a small unmanned aircraft and its operator is lost or compromised.

''(4) Detectability and identifiability to pilots, the Federal Aviation Administration, and air traffic controllers, as appropriate.

''(5) Means to prevent tampering with or modification of any system, limitation, or other safety mechanism or standard under this section or any other provision of law, including a means to identify any tampering or modification that has been made.

''(6) Consensus identification standards under section 2105.

''(7) Cost benefit and risk analysis to update or modify a small unmanned aircraft system that was commercially distributed prior to the development of the consensus aircraft safety standards so that, to the greatest extent practicable, such systems meet the consensus aircraft safety standards.

''(8) Any technology or standard related to small unmanned aircraft systems that promotes aviation safety.

''(9) Whether any category of unmanned aircraft systems, based on verified low risk factors, should be exempt from such standards.

''(c) CONSULTATION.—In developing the consensus safety standards under subsection (a), the Director and Administrator shall consult with—

''(1) the Administrator of the National Aeronautics and Space Administration;

''(2) the President of RTCA, Inc.;

''(3) the Secretary of Defense;

''(4) each operator of a test site under section 44802;

''(5) the Center of Excellence for Unmanned Aircraft Systems;

''(6) unmanned aircraft systems stakeholders, including manufacturers of varying sizes of such aircraft; and

''(7) community-based aviation organizations.

''(d) FAA PROCESS AND CERTIFICATION.—Not later than 1 year after the date of enactment of the Federal Aviation Administration Reauthorization Act of 2016, the Administrator of the Federal Aviation Administration shall establish a process for—

''(1) the adoption by the Federal Aviation Administration of consensus safety standards for small unmanned aircraft systems developed under subsection (a);

''(2) the certification of small unmanned aircraft systems based upon the consensus safety standards developed under subsection (a), which shall allow the Administrator to approve small unmanned aircraft systems for operation within the national airspace system without requiring the type certification process in parts 21 and 23 of title 14, Code of Federal Regulations; and

''(3) the certification of a manufacturer of small unmanned aircraft systems, or an employee of such manufacturer, that has demonstrated compliance with the consensus safety standards developed under subsection (a) and met any other qualifying criteria, as determined by the Administrator, to alternatively satisfy the requirements of paragraph (2), which certification—

''(A) shall allow small unmanned aircraft systems to operate within the national airspace system without requiring the type certification process in parts 21 and 23 of title 14, Code of Federal Regulations; and

''(B) may be revoked if the Administrator determines that the manufacturer is not in compliance with requirements set forth by the Administrator.

''(e) REVIEW.—The Administrator of the Federal Aviation Administration may require manufacturers to provide the FAA with the following:

''(1) The aircraft's operating instructions.

''(2) The manufacturer's statement of compliance as described in subsection (f).

''(3) A sample aircraft, to be inspected, upon request, by the Federal Aviation Administration to ensure compliance with the consensus safety standards required by the Administrator under subsection (d).

''(f) MANUFACTURER'S STATEMENT OF COMPLIANCE FOR SMALL UAS.—A manufacturer's statement of compliance shall—

''(1) identify the aircraft make and model, and consensus safety standards used;

''(2) state that the aircraft make and model meets the provisions of the standards identified in paragraph (1);

''(3) state that the aircraft make and model conforms to the manufacturer's design data and is manufactured in way that ensures consistency in production across units in the production process in order to meet the applicable consensus safety standards;

''(4) state that the manufacturer will make available to any interested person—

''(A) the aircraft's operating instructions, that meet the standards identified in paragraph (1); and

''(B) the aircraft's maintenance and inspection procedures, that meet the standards identified in paragraph (1);

''(5) state that the manufacturer will monitor safety-of-flight issues to ensure it meets the standards identified in paragraph (1);

''(6) state that at the request of the Administrator, the manufacturer will provide access for the Administrator to its facilities; and

''(7) state that the manufacturer, in accordance with testing requirements identified by the Federal Aviation Administration, has—

''(A) ground and flight tested random samples of the aircraft;

''(B) found the sample aircraft performance acceptable; and

''(C) determined that the make and model of aircraft is suitable for safe operation.

''(g) PROHIBITION.—It shall be unlawful for any person to introduce or deliver for introduction into interstate commerce any unmanned aircraft system manufactured after the date that the Administrator adopts consensus safety standards under this section,

unless the manufacturer has received approval under subsection (d) for that make and model of unmanned aircraft system.

''(h) EXCLUSIONS.—This section shall not apply to unmanned aircraft systems that are not capable of navigating beyond the visual line of sight of the operator through advanced flight systems and technology, unless the Administrator determines that is necessary to ensure safety of the airspace.''.

(b) TABLE OF CONTENTS.—The table of contents for chapter 448, as amended by section 2122 of this Act, is further amended by inserting after the item relating to section 44802 the following:

''44803. Small unmanned aircraft safety standards.''.

SEC. 2125. UNMANNED AIRCRAFT SYSTEMS IN THE ARCTIC.

(a) IN GENERAL.—Chapter 448, as amended by section 2124 of this Act, is further amended by inserting after section 44803 the following:

''§ 44804. Unmanned aircraft systems in the Arctic

''(a) IN GENERAL.—The Secretary of Transportation shall develop a plan and initiate a process to work with relevant Federal agencies and national and international communities to designate permanent areas in the Arctic where small unmanned aircraft may operate 24 hours per day for research and commercial purposes.

''(b) PLAN CONTENTS.—The plan under subsection (a) shall include the development of processes to facilitate the safe operation of unmanned aircraft beyond line of sight.

''(c) REQUIREMENTS.—Each permanent area designated under subsection (a) shall enable over-water flights from the surface to at least 2,000 feet in altitude, with ingress and egress routes from selected coastal launch sites.

''(d) AGREEMENTS.—To implement the plan under subsection (a), the Secretary may enter into an agreement with relevant national and international communities.

''(e) AIRCRAFT APPROVAL.—Not later than 1 year after the entry into force of an agreement necessary to effectuate the purposes of this section, the Secretary shall work with relevant national and international communities to establish and implement a process, or may apply an applicable process already established, for approving the use of unmanned aircraft in the designated permanent areas in the Arctic without regard to whether an unmanned aircraft is used as a public aircraft, a civil aircraft, or a model aircraft.''.

(b) TECHNICAL AND CONFORMING AMENDMENTS.—

(1) TABLE OF CONTENTS.—The table of contents for chapter 448, as amended by section 2124 of this Act, is further amended by inserting after the item relating to section 44803 the following:

''44804. Unmanned aircraft systems in the Arctic.''.

(2) EXPANDING USE OF UNMANNED AIRCRAFT SYSTEMS IN ARCTIC.—Section 332 of the FAA Modernization and Reform Act of 2012 (49 U.S.C. 40101 note) is amended by striking subsection (d).

SEC. 2126. SPECIAL AUTHORITY FOR CERTAIN UNMANNED AIRCRAFT SYSTEMS.

(a) IN GENERAL.—Chapter 448, as amended by section 2125 of this Act, is further amended by inserting after section 44804 the following:

''§ 44805. Special authority for certain unmanned aircraft systems

''(a) IN GENERAL.—Notwithstanding any other requirement of this chapter, the Secretary of Transportation shall use a risk-based approach to determine if certain unmanned aircraft systems may operate safely in the national airspace system notwithstanding completion of the comprehensive plan and rulemaking required by section 332 of the FAA Modernization and Reform Act of 2012 (49 U.S.C. 40101 note) or the guidance required by section 44807.

''(b) ASSESSMENT OF UNMANNED AIRCRAFT SYSTEMS.—In making the determination under subsection (a), the Secretary shall determine, at a minimum—

''(1) which types of unmanned aircraft systems, if any, as a result of their size, weight, speed, operational capability, proximity to airports and populated areas, and operation within or beyond visual line of sight, or operation during the day or night, do not create a hazard to users of the national airspace system or the public; and

''(2) whether a certificate under section 44703 or section 44704 of this title, or a certificate of waiver or certificate of authorization, is required for the operation of unmanned aircraft systems identified under paragraph (1) of this subsection.

''(c) REQUIREMENTS FOR SAFE OPERATION.—If the Secretary determines under this section that certain unmanned aircraft systems may operate safely in the national airspace system, the Secretary shall establish requirements for the safe operation of such aircraft systems in the national airspace system, including operation related to research, development, and testing of proprietary systems.

''(d) PILOT CERTIFICATION EXEMPTION.—If the Secretary proposes, under this section, to require an operator of an unmanned aircraft system to hold an airman certificate, a medical certificate, or to have a minimum number of hours operating a manned aircraft, the Secretary shall set forth the reasoning for such proposal and seek public notice and comment before imposing any such requirements.

''(e) SUNSET.—The authority under this section for the Secretary to determine if certain unmanned aircraft systems may operate safely in the national airspace system terminates effective September 30, 2017.''.

(b) TECHNICAL AND CONFORMING AMENDMENTS.—

(1) TABLE OF CONTENTS.—The table of contents for chapter 448, as amended by section 2125 of this Act, is further amended by inserting after the item relating to section 44804 the following:

''44805. Special rules for certain unmanned aircraft systems.''.

(2) SPECIAL RULES FOR CERTAIN UNMANNED AIRCRAFT SYSTEMS.—Section 333 of the FAA Modernization and Reform Act of 2012 (49 U.S.C. 40101 note) and the item relating to that section in the table of contents under section 1(b) of that Act (126 Stat. 13) are repealed.

SEC. 2127. ADDITIONAL RULEMAKING AUTHORITY.

(a) SENSE OF CONGRESS.—It is the sense of Congress that—

(1) beyond visual line of sight and nighttime operations of unmanned aircraft systems have tremendous potential—

(A) to enhance research and development both commercially and in academics;

(B) to spur economic growth and development through innovative applications of this emerging technology; and

(C) to improve emergency response efforts as it relates to assessing damage to critical infrastructure such as roads, bridges, and utilities, including water and power, ultimately speeding response time;

(2) advancements in miniaturization of safety technologies, including for aircraft weighing under 4.4 pounds, have increased economic opportunities for using unmanned aircraft systems while reducing kinetic energy and risk compared to unmanned aircraft that may weigh as much as 55 pounds;

(3) advancements in unmanned technology will have the capacity to ultimately improve manned aircraft safety; and

(4) integrating unmanned aircraft systems safely into the national airspace, including beyond visual line of sight and nighttime operations on a routine basis should remain a top priority for the Federal Aviation Administration as it pursues additional rulemakings under the amendments made by this section.

(b) IN GENERAL.—Chapter 448, as amended by section 2126 of this Act, is further amended by inserting after section 44805 the following:

''§ 44806. Additional rulemaking authority

''(a) IN GENERAL.—Notwithstanding the rulemaking required by section 332 of the FAA Modernization and Reform Act of 2012 (49 U.S.C. 40101 note) or the guidance required by section 44807 of this title and subject to subsection (b)(2) of this section and section 44808, the Administrator may issue regulations under which a person may operate certain unmanned aircraft systems (as determined by the Administrator) in the United States—

''(1) without an airman certificate;

''(2) without an airworthiness certificate for the associated unmanned aircraft; or

''(3) that are not registered with the Federal Aviation Administration.

''(b) MICRO UNMANNED AIRCRAFT SYSTEMS OPERATIONAL RULES.—

''(1) IN GENERAL.—Notwithstanding the rulemaking required by section 332 of the FAA Modernization and Reform Act of 2012 (49 U.S.C. 40101 note), the Administrator shall issue regulations not later than 270 days after the date of enactment of the Federal Aviation Administration Reauthorization Act of 2016 under which any person may operate a micro unmanned aircraft system classification of unmanned aircraft systems, the aircraft component of which weighs 4.4 pounds or less, including payload, without the person operating the system being required to pass any airman certification requirement, including any requirements under section 44703 of this title, part 61 of title 14, Code of Federal Regulations, or any other rule or regulation relating to airman certification.

''(2) OPERATIONAL RULES.—The rulemaking required by paragraph (1) relating to micro unmanned aircraft systems shall consider the following rules, or any appropriate modifications thereof concerning altitude, airspeed, geographic location, and time of day as the Administrator considers appropriate, for operation of such systems:

''(A) Operation an altitude of less than 400 feet above ground level.

''(B) Operation with an airspeed of not greater than 40 knots.

''(C) Operation within the visual line of sight of the operator.

''(D) Operation during the hours between sunrise and sunset.

''(E) Operation not less than 5 statute miles from the geographic center of an airport with an operational air traffic control tower or an airport denoted on a current aeronautical chart published by the Federal Aviation Administration, except that a micro unmanned aircraft system may be operated within 5 statute miles of such an airport if the operator of the system—

''(i) provides notice to the airport operator; and

''(ii) in the case of an airport with an operational air traffic control tower, receives approval from the air traffic control tower.

''(c) SCOPE OF REGULATIONS.—

''(1) IN GENERAL.—In determining whether a person may operate an unmanned aircraft system under 1 or more of the circumstances described under paragraphs (1) through (3) of subsection (a), the Administrator shall use a risk-based approach and consider, at a minimum, the physical and functional characteristics of the unmanned aircraft system.

''(2) LIMITATION.—The Administrator may only issue regulations under this section for unmanned aircraft systems that the Administrator determines may be operated safely in the national airspace system.

''(d) RULES OF CONSTRUCTION.—Nothing in this section may be construed—

''(1) to prohibit a person from operating an unmanned aircraft system under a circumstance described under paragraphs (1) through (3) of subsection (a) if—

''(A) the circumstance is allowed by regulations issued under this section; and

''(B) the person operates the unmanned aircraft system in a manner prescribed by the regulations; and

''(2) to limit or affect in any way the Administrator's authority to conduct a rulemaking, make a determination, or carry out any activity related to unmanned aircraft or unmanned aircraft systems under any other provision of law.''.

(c) TABLE OF CONTENTS.—The table of contents for chapter 448, as amended by section 2126 of this Act, is further amended by inserting after the item relating to section 44805 the following:

''44806. Additional rulemaking authority.''.

SEC. 2128. GOVERNMENTAL UNMANNED AIRCRAFT SYSTEMS.

(a) IN GENERAL.—Chapter 448, as amended by section 2127 of this Act, is further amended by inserting after section 44806 the following:

''§ 44807. Public unmanned aircraft systems

''(a) GUIDANCE.—The Secretary of Transportation shall issue guidance regarding the operation of a public unmanned aircraft system—

''(1) to streamline the process for the issuance of a certificate of authorization or a certificate of waiver;

''(2) to provide for a collaborative process with public agencies to allow for an incremental expansion of access to the national airspace system as technology matures and the necessary safety analyses and data become available, and until standards are completed and technology issues are resolved;

''(3) to facilitate the capability of public agencies to develop and use test ranges, subject to operating restrictions required by the Federal Aviation Administration, to test and operate public unmanned aircraft systems; and

''(4) to provide guidance on a public agency's responsibilities when operating an unmanned aircraft without a civil airworthiness certificate issued by the Administration.

''(b) STANDARDS FOR OPERATION AND CERTIFICATION.—The Administrator of the Federal Aviation Administration shall develop and implement operational and certification requirements for the operation of a public unmanned aircraft system in the national airspace system.

''(c) AGREEMENTS WITH GOVERNMENT AGENCIES.—

''(1) IN GENERAL.—The Secretary shall enter into an agreement with each appropriate public agency to simplify the process for issuing a certificate of waiver or a certificate of authorization with respect to an application for authorization to operate a public unmanned aircraft system in the national airspace system.

''(2) CONTENTS.—An agreement under paragraph (1) shall—

''(A) with respect to an application described in paragraph (1)—

''(i) provide for an expedited review of the application;

''(ii) require a decision by the Administrator on approval or disapproval not later than 60 business days after the date of submission of the application;

''(iii) allow for an expedited appeal if the application is disapproved; and

''(iv) if applicable, include verification of the data minimization policy required under subsection (d);

''(B) allow for a one-time approval of similar operations carried out during a fixed period of time; and

''(C) allow a government public safety agency to operate an unmanned aircraft weighing 25 pounds or less if that unmanned aircraft is operated—

''(i) within or beyond the line of sight of the operator;

''(ii) less than 400 feet above the ground;

''(iii) during daylight conditions;

''(iv) within Class G airspace; and

''(v) outside of 5 statute miles from any airport, heliport, seaplane base, spaceport, or other location with aviation activities.

''(d) DATA MINIMIZATION FOR CERTAIN PUBLIC UNMANNED AIRCRAFT SYSTEM OPERATORS.—Not later than 180 days after the date of enactment of the Federal Aviation Administration Reauthorization Act of 2016 each Federal agency authorized by the Secretary to operate an unmanned aircraft system shall develop and update a data minimization policy that requires, at a minimum, that—

''(1) prior to the deployment of any new unmanned aircraft system technology, and at least every 3 years, existing policies and procedures relating to the collection, use, retention, and dissemination of information obtained by an unmanned aircraft system must be examined to ensure that privacy, civil rights, and civil liberties are protected;

''(2) if the unmanned aircraft system is the platform for information collection, information must be collected, used, retained, and disseminated consistent with the Constitution, Federal law, and other applicable regulations and policies, such as the Privacy Act of 1974 (5 U.S.C. 552a);

''(3) the Federal agency or person operating on its behalf, only collect information using the unmanned aircraft system, or use unmanned aircraft system-collected information, to the extent that the collection or use is consistent with and relevant to an authorized purpose as determined by the head of a Federal agency and consistent with the law;

''(4) any information collected, using an unmanned aircraft or an unmanned aircraft system, that may contain personal information will not be retained by any Federal agency for more than 180 days after the date of collection unless—

''(A) the head of the Federal agency determines that retention of the information is directly relevant and necessary to accomplish the specific purpose for which the Federal agency used the unmanned aircraft system;

''(B) that Federal agency maintains the information in a system of records under section 552a of title 5; or

''(C) the information is required to be retained for a longer period under other applicable law, including regulations;

''(5) any information collected, using an unmanned aircraft or unmanned aircraft system, that is not maintained in a system of records under section 552a of title 5, will not be disseminated outside of that Federal agency unless—

''(A) dissemination is required by law; or

''(B) dissemination satisfies an authorized purpose and complies with that Federal agency's disclosure requirements;

''(6) to the extent it does not compromise law enforcement or national security a Federal agency shall—

''(A) provide notice to the public regarding where in the national airspace system the Federal agency is authorized to operate the unmanned aircraft system;

''(B) keep the public informed about the Federal agency's unmanned aircraft system program, including any changes to that program that would significantly affect privacy, civil rights, or civil liberties;

''(C) make available to the public, on an annual basis, a general summary of the Federal agency's unmanned aircraft system operations during the previous fiscal year, including—

''(i) a brief description of types or categories of missions flown; and

''(ii) the number of times the Federal agency provided assistance to other agencies or to State, local, tribal, or territorial governments; and

''(D) make available on a public and searchable Internet website the data minimization policy of the Federal agency;

''(7) ensures oversight of the Federal agency's unmanned aircraft system use, including—

''(A) the use of audits or assessments that comply with existing Federal agency policies and regulations;

''(B) the verification of the existence of rules of conduct and training for Federal Government personnel and contractors who work on programs, and procedures for reporting suspected cases of misuse or abuse of unmanned aircraft system technologies;

''(C) the establishment of policies and procedures, or confirmation that policies and procedures are in place, that provide meaningful oversight of individuals who have access to sensitive information, including personal information, collected using an unmanned aircraft system;

''(D) ensuring that any data-sharing agreements or policies, data use policies, and record management policies applicable to an unmanned aircraft system conform to applicable laws, regulations, and policies;

''(E) the establishment of policies and procedures, or confirmation that policies and procedures are in place, to authorize the use of an unmanned aircraft system in response to a request for unmanned aircraft system assistance in support of Federal, State, local, tribal, or territorial government operations; and

''(F) a requirement that State, local, tribal, and territorial government recipients of Federal grant funding for the purchase or use of unmanned aircraft systems for their own operations have in place policies and procedures to safeguard individuals' privacy, civil rights, and civil liberties prior to expending such funds; and

''(8) ensures the protection of civil rights and civil liberties, including—

''(A) ensuring that policies are in place to prohibit the collection, use, retention, or dissemination of data in any manner that would violate the First Amendment or in any manner that would discriminate against persons based upon their ethnicity, race, gender, national origin, religion, sexual orientation, or gender identity, in violation of law;

''(B) ensuring that unmanned aircraft system activities are performed in a manner consistent with the Constitution and applicable laws, Executive Orders, and other Presidential directives; and

''(C) ensuring that adequate procedures are in place to receive, investigate, and address,

as appropriate, privacy, civil rights, and civil liberties complaints.

''(e) LAW ENFORCEMENT AND NATIONAL SECURITY.—Each Federal agency shall effectuate a requirement under subsection (d) only to the extent it does not compromise law enforcement or national security.

''(f) DEFINITION OF FEDERAL AGENCY.—In subsections (d) and (e), the term 'Federal agency' has the meaning given the term 'agency' in section 552(f) of title 5, United States Code.''.

(b) TECHNICAL AND CONFORMING AMENDMENTS.—

(1) TABLE OF CONTENTS.—The table of contents for chapter 448, as amended by section 2127 of this Act, is further amended by inserting after the item relating to section 44806 the following:

''44807. Public unmanned aircraft systems.''.

(2) PUBLIC UNMANNED AIRCRAFT SYSTEMS.—Section 334 of the FAA Modernization and reform Act of 2012 (49 U.S.C. 40101 note) and the item relating to that section in the table of contents under section 1(b) of that Act (126 Stat. 13) are repealed.

SEC. 2129. SPECIAL RULES FOR MODEL AIRCRAFT.

(a) IN GENERAL.—Chapter 448, as amended by section 2128 of this Act, is further amended by inserting after section 44807 the following:

''§ 44808. Special rules for model aircraft

''(a) IN GENERAL.—Notwithstanding any other provision of law relating to the incorporation of unmanned aircraft systems into Federal Aviation Administration plans and policies, including this chapter, the Administrator of the Federal Aviation Administration may not promulgate any new rule or regulation regarding an unmanned aircraft operating as a model aircraft, or an unmanned aircraft being developed as a model aircraft, if—

''(1) the aircraft is flown strictly for hobby or recreational use;

''(2) the aircraft is operated in accordance with a community-based set of safety guidelines and within the programming of a nationwide community-based organization;

''(3) not flown beyond visual line of sight of persons co-located with the operator or in direct communication with the operator;

''(4) the aircraft is operated in a manner that does not interfere with and gives way to any manned aircraft;

''(5) when flown within 5 miles of an airport, the operator of the aircraft provides the airport operator, where applicable, and the airport air traffic control tower (when an air traffic facility is located at the airport) with prior notice of the operation (model aircraft operators flying from a permanent location within 5 miles of an airport should establish a mutually agreed upon operating procedure with the airport operator and the airport air traffic control tower (when an air traffic facility is located at the airport)), unless the Administrator determines approval should be required;

''(6) the aircraft is flown from the surface to not more than 400 feet in altitude, except under special conditions and programs established by a community-based organization; and

''(7) the operator has passed an aeronautical knowledge and safety test administered by the Federal Aviation Administration online for the operation of unmanned aircraft systems subject to the requirements of section 44809 or developed and administered by the community-based organization and maintains proof of test passage to be made available to the Administrator or law enforcement upon request.

''(b) UPDATES.—

''(1) IN GENERAL.—The Administrator, in collaboration with government and industry stakeholders, including nationwide community-based organizations, shall initiate a process to update the operational parameters under subsection (a), as appropriate.

''(2) CONSIDERATIONS.—In updating an operational parameter under paragraph (1), the Administrator shall consider—

''(A) appropriate operational limitations to mitigate aviation safety risk and risk to the uninvolved public;

''(B) operations outside the membership, guidelines, and programming of a nationwide community-based organization;

''(C) physical characteristics, technical standards, and classes of aircraft operating under this section;

''(D) trends in use, enforcement, or incidents involving unmanned aircraft systems; and

''(E) ensuring, to the greatest extent practicable, that updates to the operational parameters correspond to, and leverage, advances in technology.

''(3) SAVINGS CLAUSE.—Nothing in this subsection shall be construed as expanding the authority of the Administrator to require operators of model aircraft under the exemption of this subsection to be required to seek permissive authority of the Administrator prior to operation in the national airspace system.

''(c) STATUTORY CONSTRUCTION.—Nothing in this section shall be construed to limit the authority of the Administrator to pursue enforcement action against persons operating model aircraft.

''(d) MODEL AIRCRAFT DEFINED.—In this section, the term 'model aircraft' means an unmanned aircraft that—

''(1) is capable of sustained flight in the atmosphere; and

''(2) is limited to weighing not more than 55 pounds, including the weight of anything attached to or carried by the aircraft, unless otherwise approved through a design, construction, inspection, flight test, and operational safety program administered by a community-based organization.''.

(b) TECHNICAL AND CONFORMING AMENDMENTS.—

(1) TABLE OF CONTENTS.—The table of contents for chapter 448, as amended by section 2128 of this Act, is further amended by inserting after the item relating to section 44807 the following:

''44808. Special rules for model aircraft.''.

(2) SPECIAL RULE FOR MODEL AIRCRAFT.—Section 336 of the FAA Modernization and Reform Act of 2012 (49 U.S.C. 40101 note) and the item relating to that section in the table of contents under section 1(b) of that Act (126 Stat. 13) are repealed.

SEC. 2130. UNMANNED AIRCRAFT SYSTEMS AERONAUTICAL KNOWLEDGE AND SAFETY.

(a) IN GENERAL.—Chapter 448, as amended by section 2129 of this Act, is further amended by inserting after section 44808 the following:

''§ 44809. Aeronautical knowledge and safety test

''(a) IN GENERAL.—An individual may not operate an unmanned aircraft system unless—

''(1) the individual has successfully completed an aeronautical knowledge and safety test under subsection (c);

''(2) the individual has authority to operate an unmanned aircraft under other Federal law;

''(3) the individual is a holder of an airmen certificate issued under section 44703; or

''(4) the individual is operating a model aircraft under section 44808 and has successfully completed an aeronautical knowledge and safety test in accordance with the community-based organizations safety program described in that section.

''(b) EXCEPTION.—This section shall not apply to the operation of an unmanned aircraft system that has been authorized by the Federal Aviation Administration under section 44802, 44805, 44806, or 44807. The Administrator may waive the requirements of this section for operators of aircraft weighing less than 0.55 pounds or for operators under the age of 13 operating the unmanned aircraft system under the supervision of an adult as determined by the Administrator.

''(c) AERONAUTICAL KNOWLEDGE AND SAFETY TEST.—Not later than 180 days after the date of enactment of the Federal Aviation Administration Reauthorization Act of 2016, the Administrator of the Federal Aviation Administration, in consultation with manufacturers of unmanned aircraft systems, other industry stakeholders, and community-based aviation organizations, shall develop an aeronautical knowledge and safety test that can be administered electronically.

''(d) REQUIREMENTS.—The Administrator shall ensure that the aeronautical knowledge and safety test is designed to adequately demonstrate an operator's—

''(1) understanding of aeronautical safety knowledge, as applicable; and

''(2) knowledge of Federal Aviation Administration regulations and requirements pertaining to the operation of an unmanned aircraft system in the national airspace system.

''(e) RECORD OF COMPLIANCE.—

''(1) IN GENERAL.—Each operator of an unmanned aircraft system described under subsection (a) shall maintain and make available for inspection, upon request by the Administrator or a Federal, State, or local law enforcement officer, a record of compliance with this section through—

''(A) an identification number, issued by the Federal Aviation Administration certifying passage of the aeronautical knowledge and safety test;

''(B) if the individual has authority to operate an unmanned aircraft system under other Federal law, the requisite proof of authority under that law; or

''(C) an airmen certificate issued under section 44703.

''(2) COORDINATION.—The Administrator may coordinate the identification number under paragraph (1)(A) with an operator's registration number to the extent practicable.

''(3) LIMITATION.—No fine or penalty may be imposed for the initial failure of an operator of an unmanned aircraft system to comply with paragraph (1) unless the Administrator finds that the conduct of the operator actually posed a risk to the national airspace system.''.

(b) TABLE OF CONTENTS.—The table of contents for chapter 448, as amended by section 2129 of this Act, is further amended by inserting after the item relating to section 44808 the following:

''44809. Aeronautical knowledge and safety test.''.

SEC. 2131. SAFETY STATEMENTS.

(a) IN GENERAL.—Chapter 448, as amended by section 2130 of this Act, is further amended by inserting after section 44809 the following:

''§ 44810. Safety statements

''(a) PROHIBITION.—Beginning on the date that is 1 year after the date of publication of the guidance under subsection (b)(1), it shall be unlawful for any person to introduce or deliver for initial retail sale or introduction into interstate commerce any unmanned aircraft manufactured unless a safety statement is attached to the unmanned aircraft or accompanying the unmanned aircraft in its packaging.

''(b) SAFETY STATEMENT.—

''(1) IN GENERAL.—Not later than 1 year after the date of enactment of the Federal

Aviation Administration Reauthorization Act of 2016, the Administrator of the Federal Aviation Administration shall issue guidance for implementing this section.

''(2) REQUIREMENTS.—A safety statement described in subsection (a) shall include—

''(A) information about laws and regulations applicable to unmanned aircraft systems;

''(B) recommendations for using unmanned aircraft in a manner that promotes the safety of persons and property;

''(C) the date that the safety statement was created or last modified; and

''(D) language approved by the Administrator regarding the following:

''(i) A person may operate the unmanned aircraft as a model aircraft (as defined in section 44808) or otherwise in accordance with Federal Aviation Administration authorization or regulation, including requirements for the completion of the aeronautical knowledge and safety test under section 44809.

''(ii) The definition of a model aircraft under section 44808.

''(iii) The requirements regarding a model aircraft under paragraphs (1) through (7) of section 44808(a).

''(iv) The Administrator of the Federal Aviation Administration may pursue enforcement action against a person operating model aircraft who endangers the safety of the national airspace system.

''(c) CIVIL PENALTY.—A person who violates subsection (a) shall be liable for each violation to the United States Government for a civil penalty described in section 46301(a).''.

(b) TABLE OF CONTENTS.—The table of contents for chapter 448, as amended by section 2130 of this Act, is further amended by inserting after the item relating to section 44809 the following:

''44810. Safety statements.''.

SEC. 2132. TREATMENT OF UNMANNED AIRCRAFT OPERATING UNDERGROUND.

An unmanned aircraft system that is operated underground for mining purposes shall not be subject to regulation or enforcement by the Federal Aviation Administration under chapter 448 of title 49, United States Code.

SEC. 2133. ENFORCEMENT.

(a) UAS SAFETY ENFORCEMENT.—The Administrator of the Federal Aviation Administration shall establish a program to utilize available remote detection and identification technologies for safety oversight, including enforcement actions against operators of unmanned aircraft systems that are not in compliance with applicable Federal aviation laws, including regulations.

(b) CIVIL PENALTIES.—

(1) IN GENERAL.—Section 46301 is amended—

(A) in subsection (a)(1)(A), by inserting ''chapter 448,'' after ''chapter 447 (except sections 44717 and 44719–44723),'';

(B) in subsection (a)(5), by inserting ''chapter 448,'' after ''chapter 447 (except sections 44717–44723),'';

(C) in subsection (d)(2), by inserting ''chapter 448,'' after ''chapter 447 (except sections 44717 and 44719–44723),''; and

(D) in subsection (f), by inserting ''chapter 448,'' after ''chapter 447 (except 44717 and 44719–44723),''.

(2) RULE OF CONSTRUCTION.—Nothing in this subsection shall be construed to limit the authority of the Administrator to pursue an enforcement action for a violation of this Act, a regulation prescribed or order or authority issued under this Act, or any other applicable provision of aviation safety law or regulation.

(c) REPORTING.—As part of the program, the Administrator shall establish and publicize a mechanism for the public and Federal, State, and local law enforcement to report a suspected abuse or a violation of chapter 448 of title 49, United States Code, for enforcement action.

(d) AUTHORIZATION OF APPROPRIATIONS.—To carry out this section, there is authorized to be appropriated $5,000,000 for each of the fiscal years 2016 through 2017.

SEC. 2134. AVIATION EMERGENCY SAFETY PUBLIC SERVICES DISRUPTION.

(a) IN GENERAL.—Chapter 463 is amended—

(1) in section 46301(d)(2), by inserting ''section 46320,'' after ''section 46319,''; and

(2) by adding at the end the following:

''§ 46320. Interference with firefighting, law enforcement, or emergency response activities

''(a) PROHIBITION.—No person may operate an aircraft so as to interfere with firefighting, law enforcement, or emergency response activities.

''(b) DEFINITION.—For purposes of this section, an aircraft interferes with the activities specified in subsection (a) when its operation prevents the initiation of, interrupts, or endangers a person or property engaged in those activities.

''(c) CIVIL PENALTY.—A person violating subsection (a) shall be liable for a civil penalty of not more than $20,000.

''(d) COMPROMISE AND SETOFF.—The United States Government may deduct the amount of a civil penalty imposed or compromised under this section from the amounts the Government owes the person liable for the penalty.''.

(b) TABLE OF CONTENTS.—The table of contents for chapter 463 is amended by inserting after the item relating to section 46319 the following:

''46320. Interference with firefighting, law enforcement, or emergency response activities.''.

SEC. 2135. PILOT PROJECT FOR AIRPORT SAFETY AND AIRSPACE HAZARD MITIGATION.

(a) IN GENERAL.—The Administrator of the Federal Aviation Administration shall carry out a pilot program for airspace hazard mitigation at airports and other critical infrastructure.

(b) CONSULTATION.—In carrying out the pilot program under subsection (a), the Administrator shall work with the Secretary of Defense, Secretary of Homeland Security, and the heads of relevant Federal agencies for the purpose of ensuring technologies that are developed, tested, or deployed by those departments and agencies to mitigate threats posed by errant or hostile unmanned aircraft system operations do not adversely impact or interfere with safe airport operations, navigation, and air traffic services.

(c) AUTHORIZATION OF APPROPRIATIONS.—There is authorized to be appropriated from the Airport and Airway Trust Fund to carry out this section $6,000,000, to remain available until expended.

SEC. 2136. CONTRIBUTION TO FINANCING OF REGULATORY FUNCTIONS.

(a) IN GENERAL.—Chapter 448, as amended by section 2131 of this Act, is further amended by inserting after section 44810 the following:

''§ 44811. Regulatory and administrative fees

''(a) IN GENERAL.—Subject to subsection (b), the Administrator may assess and collect regulatory and administrative fees to recover the costs of regulatory and administrative activities under this chapter related to authorization to operate unmanned aircraft systems for compensation or hire, or in the furtherance of a business enterprise.

''(b) LIMITATIONS.—Fees authorized under subsection (a) shall be reasonable, cost-based relative to the regulatory or administrative activity, and may not be discriminatory or a deterrent to compliance.

''(c) RECEIPTS CREDITED TO ACCOUNT.—Notwithstanding section 3302 of title 31, all fees and amounts collected under this section shall be credited to the separate account established under section 45303(c). Section 41742 shall not apply to fees and amounts collected under this section.

''(d) REGULATIONS.—Not later than 1 year after the date of enactment of the Federal Aviation Administration Reauthorization Act of 2016, the Administrator shall issue regulations to carry out this section.''.

(b) TABLE OF CONTENTS.—The table of contents for chapter 448, as amended by section 2131 of this Act, is further amended by inserting after the item relating to section 44810 the following:

''44811. Regulatory and administrative fees.''.

SEC. 2137. SENSE OF CONGRESS REGARDING SMALL UAS RULEMAKING.

It is the sense of the Congress that the Administrator of the Federal Aviation Administration and Secretary of Transportation should take every necessary action to expedite final action on the notice of proposed rulemaking dated February 23, 2015 (80 Fed. Reg. 9544), entitled ''Operation and Certification of Small Unmanned Aircraft Systems''.

SEC. 2138. UNMANNED AIRCRAFT SYSTEMS TRAFFIC MANAGEMENT.

(a) RESEARCH PLAN FOR UTM DEVELOPMENT.—

(1) IN GENERAL.—The Administrator of the Federal Aviation Administration, in coordination with the Administrator of the National Aeronautics and Space Administration, shall develop a research plan for unmanned aircraft systems traffic management (referred to in this section as ''UTM'') development.

(2) REQUIREMENTS.—In developing the research plan under paragraph (1), the Administrator shall—

(A) identify research goals related to:

(i) operational parameters related to altitude, geographic coverage, classes of airspace, and critical infrastructure;

(ii) avionics capability requirements or standards;

(iii) operator identification and authentication requirements and capabilities;

(iv) communication protocols with air traffic control facilities that will not interfere with existing responsibility to deconflict manned aircraft in the national airspace system;

(v) collision avoidance requirements;

(vi) separation standards for manned and unmanned aircraft; and

(vii) spectrum needs;

(B) evaluate options for the administration and management structure for the traffic management of low altitude operations of small unmanned aircraft systems; and

(C) ensure the plan is consistent with the broader Federal Aviation Administration regulatory and operational framework encompassing all unmanned aircraft systems operations expected to be authorized in the national airspace system.

(3) ASSESSMENT.—The research plan under paragraph (1) shall include an assessment of—

(A) the ability to allow near-term small unmanned aircraft system operations without need of an automated UTM system;

(B) the full range of operational capability any automated UTM system should possess;

(C) the operational characteristics and metrics that would drive incremental adoption of automated capability and procedures consistent with a rising aggregate community demand for service for low altitude operations of small unmanned aircraft systems; and

(D) the integration points for small unmanned aircraft system traffic management with the existing national airspace system planning and traffic management systems.

(4) DEADLINES.—The Administrator shall—

(A) initiate development of the research plan not later than 90 days after the date of enactment of this Act; and

(B) not later than 180 days after the date of enactment of this Act—

(i) complete the research plan;

(ii) submit the research plan to the appropriate committees of Congress; and

(iii) publish the research plan on the Federal Aviation Administration's Web site.

(b) PILOT PROGRAM.—Not later than 120 days after the date the research plan under subsection (a) is submitted under paragraph (4)(B) of that subsection, the Administrator of the Federal Aviation Administration shall—

(1) coordinate with the Administrator of the National Aeronautics and Space Administration and the small unmanned aircraft systems industry to develop operational concepts and top-level system requirements for a UTM system pilot program, consistent with subsection (a);

(2) designate areas encompassing airspace over rural, suburban, and urban areas for operation of the pilot program, as determined necessary;

(3) issue a solicitation for operational prototype systems that meet the necessary objectives for use in a pilot program to demonstrate, validate, or modify, as appropriate, the requirements developed under paragraph (1);

(4) give due consideration to the use of the facilities at the National Aeronautics and Space Administration, the test sites under section 44802 of title 49, United States Code, as added by section 2122, the Center of Excellence for Unmanned Aircraft Systems, and the Pathfinder Cooperative Research and Development Agreements, in designating areas under paragraph (2) and in selecting service providers pursuant to the solicitation in paragraph (3); and

(5) complete the pilot program not later than two years after the date the solicitation under paragraph (3) has been issued.

(c) COMPREHENSIVE PLAN.—

(1) IN GENERAL.—Not later than 270 days after the date the pilot program under subsection (b) is complete, the Administrator of the Federal Aviation Administration, in coordination with the Administrator of the National Aeronautics and Space Administration, and in consultation with the head of each relevant Federal agency, shall develop a comprehensive plan for the deployment of UTM systems in the national airspace.

(2) SYSTEM REQUIREMENTS.—The comprehensive plan under paragraph (1) shall include requirements or standards consistent with established or planned rulemaking for, at a minimum—

(A) the flight of small unmanned aircraft systems in controlled and uncontrolled airspace;

(B) communications, as applicable—

(i) among small unmanned aircraft systems;

(ii) between small unmanned aircraft systems and manned aircraft operating in the same airspace; and

(iii) between small unmanned aircraft systems and air traffic control as considered necessary; and

(C) air traffic management for small unmanned aircraft systems operations.

(d) SYSTEM IMPLEMENTATION.—Based on the comprehensive plan under subsection (c), including the requirements under paragraph (2) of that subsection, and the pilot program under subsection (b), the Administrator shall—

(1) determine and implement a schedule for initiation and evolutionary use of a UTM in the national airspace to safely separate and deconflict manned and unmanned aircraft systems;

(2) designate UTM system airspace; and

(3) select service providers to support the UTM system, if deemed appropriate.

SA 3657. Mr. WYDEN submitted an amendment intended to be proposed to amendment SA 3464 submitted by Mr. THUNE (for himself and Mr. NELSON) to the bill H.R. 636, to amend the Internal Revenue Code of 1986 to permanently extend increased expensing limitations, and for other purposes; which was ordered to lie on the table; as follows:

At the appropriate place, insert the following:

TITLE ___—PROTECTING INDIVIDUALS FROM MASS AERIAL SURVEILLANCE ACT OF 2016

SEC. __01. SHORT TITLE.

This title may be cited as the ''Protecting Individuals From Mass Aerial Surveillance Act of 2016''.

SEC. __02. DEFINITIONS.

In this title:

(1) FEDERAL ENTITY.—The term ''Federal entity'' means any person or entity acting under the authority of, or funded in whole or in part by, the Government of the United States, including a Federal law enforcement party, but excluding State, tribal, or local government agencies or departments.

(2) LAW ENFORCEMENT PARTY.—The term ''law enforcement party'' means a person or entity authorized by law, or funded by the Government of the United States, to investigate or prosecute offenses against the United States.

(3) MOBILE AERIAL-VIEW DEVICE; MAVD.—The terms ''mobile aerial-view device'' and ''MAVD'' mean any device that through flight or aerial lift obtains a dynamic, aerial view of property, persons or their effects, including an unmanned aircraft (as defined in section 331 of the FAA Modernization and Reform Act of 2012 (49 U.S.C. 40101 note)).

(4) NATIONAL BORDERS.—The term ''national borders'' refers to any region no more than 25 miles of an external land boundary of the United States.

(5) NON-FEDERAL ENTITY.—The term ''non-Federal entity'' means any person or entity that is not a Federal entity.

(6) PUBLIC LANDS.—The term ''public lands'' means lands owned by the Government of the United States.

(7) SENSING DEVICE.—The term ''sensing device''—

(A) means a device capable of remotely acquiring personal information from its surroundings using any frequency of the electromagnetic spectrum, or a sound detecting system, or a system that detects chemicals in the atmosphere; and

(B) does not include equipment whose sole function is to provide information directly necessary for safe air navigation or operation of a MAVD.

(8) SURVEIL.—The term ''surveil'' means to photograph, record, or observe using a sensing device, regardless of whether the photographs, observations, or recordings are stored, and excludes using a sensing device for the purposes of testing or training operations of MAVDs.

SEC. __03. PROHIBITED USE OF MAVDS.

A Federal entity shall not use a MAVD to surveil property, persons or their effects, or gather evidence or other information pertaining to known or suspected criminal conduct, or conduct that is in violation of a statute or regulation.

SEC. __04. EXCEPTIONS.

This title does not prohibit any of the following:

(1) PATROL OF BORDERS.—The use of a MAVD by a Federal entity to surveil national borders to prevent or deter illegal entry of any persons or illegal substances at the borders.

(2) EXIGENT CIRCUMSTANCES.—

(A) IN GENERAL.—The use of a MAVD by a Federal entity when exigent circumstances exist. For the purposes of this paragraph, exigent circumstances exist when the Federal entity possesses reasonable suspicion that under particular circumstances, swift action is necessary—

(i) to prevent imminent danger of death or serious bodily harm to a specific individual;

(ii) to counter an imminent risk of a terrorist attack by a specific individual or organization;

(iii) to prevent imminent destruction of evidence; or

(iv) to counter an imminent or actual escape of a criminal or terrorist suspect.

(B) REQUIREMENT FOR RECORD OF FACTS.—A Federal entity using a MAVD pursuant to subparagraph (A)(i) must maintain a retrievable record of the facts giving rise to the reasonable suspicion that an exigent circumstance existed.

(3) PUBLIC SAFETY AND RESEARCH.—The use of a MAVD by a Federal entity—

(A) to discover, locate, observe, gather evidence in connection to, or prevent forest fires;

(B) to monitor environmental, geologic, or weather-related catastrophe or damage from such an event;

(C) to research or survey for wildlife management, habitat preservation, or geologic, atmospheric, or environmental damage or conditions;

(D) to survey for the assessment and evaluation of environmental, geologic or weather-related damage, erosion, flood, or contamination; and

(E) to survey public lands for illegal vegetation.

(4) CONSENT.—The use of a MAVD by a Federal entity for the purpose of acquiring information about an individual, or about an individual's property or effects, if such individual has given written consent to the use of a MAVD for such purposes.

(5) WARRANT.—A law enforcement party using a MAVD, pursuant to, and in accordance with, a Rule 41 warrant, to surveil specific property, persons or their effects.

SEC. __05. PROHIBITION ON IDENTIFYING INDIVIDUALS.

(a) IN GENERAL.—No Federal entity may make any intentional effort to identify an individual from, or associate an individual with, the information collected by operations authorized by paragraphs (1) through (3) of subsection (a) of section __04, nor shall the collected information be disclosed to any entity except another Federal entity or State, tribal, or local government agency or department, or political subdivision thereof, that agrees to be bound by the restrictions in this title.

(b) LIMITATION ON PROHIBITION.—The restrictions described in subsection (a) shall not apply if there is probable cause that the information collected is evidence of specific criminal activity.

SEC. __06. PROHIBITION ON USE OF EVIDENCE.

No evidence obtained or collected in violation of this title may be received as evidence against an individual in any trial, hearing, or other proceeding in or before any court, grand jury, department, officer, agency, regulatory body, legislative committee, or

other authority of the United States, a State, or a political subdivision thereof.

SEC. _07. PROHIBITION ON SOLICITATION AND PURCHASE.

(a) PROHIBITION ON SOLICITATION TO SURVEIL.—A Federal entity shall not solicit to or award contracts to any entity for such entity to surveil by MAVD for the Federal entity, unless the Federal entity has existing authority to surveil the particular property, persons or their effects, of interest.

(b) PROHIBITION ON PURCHASE OF SURVEILLANCE INFORMATION.—A Federal entity shall not purchase any information obtained from MAVD surveillance by a non-Federal entity if such information contains personal information, except pursuant to the express consent of all persons whose personal information is to be sold.

SEC. _08. RULE OF CONSTRUCTION.

Nothing in this title shall be construed to preempt any State law regarding the use of MAVDs exclusively within the borders of that State.

SA 3658. Mr. MURPHY submitted an amendment intended to be proposed by him to the bill H.R. 636, to amend the Internal Revenue Code of 1986 to permanently extend increased expensing limitations, and for other purposes; which was ordered to lie on the table; as follows:

At the appropriate place, insert the following:

SEC. ___. PERIODIC AUDITS BY INSPECTOR GENERAL OF THE DEPARTMENT OF TRANSPORTATION OF BUY AMERICAN ACT CONTRACTING COMPLIANCE.

(a) REQUIREMENT FOR PERIODIC AUDITS OF CONTRACTING COMPLIANCE.—The Inspector General of the Department of Transportation shall conduct periodic audits of Federal Aviation Administration contracting practices and policies related to procurement requirements under chapter 83 of title 41, United States Code.

(b) REQUIREMENT FOR ADDITIONAL INFORMATION IN SEMIANNUAL REPORTS.—The Inspector General of the Department of Transportation shall ensure that findings and other information resulting from audits conducted pursuant to subsection (a) are included in the semiannual report transmitted to congressional committees under section 8(f) of the Inspector General Act of 1978 (5 U.S.C. App).

SA 3659. Mr. WYDEN (for himself and Mr. HOEVEN) submitted an amendment intended to be proposed to amendment SA 3464 submitted by Mr. THUNE (for himself and Mr. NELSON) to the bill H.R. 636, to amend the Internal Revenue Code of 1986 to permanently extend increased expensing limitations, and for other purposes; which was ordered to lie on the table; as follows:

At the appropriate place, insert the following:

TITLE ____—MOVE AMERICA

SEC. _____1. SHORT TITLE.

This title may be cited as the ''Move America Act of 2015''.

SEC. _____2. MOVE AMERICA BONDS.

(a) IN GENERAL.—

(1) MOVE AMERICA BONDS.—Subpart A of part IV of subchapter B of chapter 1 of the Internal Revenue Code of 1986 is amended by inserting after section 142 the following new section:

''SEC. 142A. MOVE AMERICA BONDS.

''(a) IN GENERAL.—

''(1) TREATMENT AS EXEMPT FACILITY BOND.—Except as otherwise provided in this section, a Move America bond shall be treated for purposes of this part as an exempt facility bond.

''(2) EXCEPTIONS.—

''(A) NO GOVERNMENT OWNERSHIP REQUIREMENT.—Paragraph (1) of section 142(b) shall not apply to any Move America bond.

''(B) SPECIAL RULES FOR HIGH-SPEED RAIL BONDS.—Paragraphs (2) and (3) of section 142(i) shall not apply to any Move America bond described in subsection (b)(4).

''(C) SPECIAL RULES FOR HIGHWAY AND SURFACE TRANSPORTATION FACILITIES.—Paragraphs (2), (3), and (4) of section 142(m) shall not apply to any Move America bond described in subsection (b)(5).

''(b) MOVE AMERICA BOND.—For purposes of this part, the term 'Move America bond' means any bond issued as part of an issue 95 percent or more of the net proceeds of which are used to provide—

''(1) airports,

''(2) docks and wharves, including—

''(A) waterborne mooring infrastructure,

''(B) dredging in connection with a dock or wharf, and

''(C) any associated rail and road infrastructure for the purpose of integrating modes of transportation,

''(3) mass commuting facilities,

''(4) railroads (as defined in section 20102 of title 49, United States Code) and any associated rail and road infrastructure for the purpose of integrating modes of transportation,

''(5) any—

''(A) surface transportation project which is eligible for Federal assistance under title 23, United States Code (as in effect on the date of the enactment of this section),

''(B) project for an international bridge or tunnel for which an international entity authorized under Federal or State law is responsible and which is eligible Federal assistance under title 23, United States Code (as so in effect), or

''(C) facility for the transfer of freight from truck to rail or rail to truck (including any temporary storage facilities directly related to such transfers) which is eligible for Federal assistance under either title 23 or title 49, United States Code (as so in effect),

''(6) flood diversions, or

''(7) inland waterways, including construction and rehabilitation expenditures for navigation on any inland or intracoastal waterways of the United States (within the meaning of section 4042(d)(2)).

''(c) FLOOD DIVERSIONS.—For purposes of this section, the term 'flood diversion' means any flood damage risk reduction project authorized under any Act for authorizing water resources development projects.

''(d) MOVE AMERICA VOLUME CAP.—

''(1) IN GENERAL.—The aggregate face amount of Move America bonds issued pursuant to an issue, when added to the aggregate face amount of Move America bonds previously issued by the issuing authority during the calendar year, shall not exceed such issuing authority's Move America volume cap for such year.

''(2) MOVE AMERICA VOLUME CAP.—For purposes of this subsection—

''(A) IN GENERAL.—The Move America volume cap shall be 50 percent of the State ceiling under section 146(d) for such State for such year.

''(B) ALLOCATION OF VOLUME CAP.—Each State may allocate the Move America volume cap of such State among governmental units (or other authorities) in such State having authority to issue private activity bonds.

''(3) CARRYFORWARDS.—

''(A) IN GENERAL.—If—

''(i) an issuing authority's Move America volume cap, exceeds

''(ii) the aggregate amount of Move America bonds issued during such calendar year by such authority,

any Move America bond issued by such authority during the 3-calendar-year period following such calendar year shall not be taken into account under paragraph (1) to the extent the amount of such bonds does not exceed the amount of such excess. Any excesses arising under this paragraph shall be used under this paragraph in the order of calendar years in which the excesses arose.

''(B) REALLOCATION OF UNUSED CARRYFORWARDS.—

''(i) IN GENERAL.—The Move America volume cap under paragraph (2)(A) for any State for any calendar year shall be increased by any amount allocated to such State by the Secretary under clause (ii).

''(ii) REALLOCATION.—The Secretary shall allocate to each qualified State for any calendar year an amount which bears the same ratio to the aggregate unused carryforward amounts of all issuing authorities in all States for such calendar year as the qualified State's population for the calendar year bears to the population of all qualified States for the calendar year. For purposes of the preceding sentence, population shall be determined in accordance with section 146(j).

''(iii) QUALIFIED STATE.—For purposes of this subparagraph, the term 'qualified State' means, with respect to a calendar year, any State—

''(I) which allocated its entire Move America volume cap for the preceding calendar year, and

''(II) for which a request is made (not later than May 1 of the calendar year) to receive an allocation under clause (ii).

''(iv) UNUSED CARRYFORWARD AMOUNT.—For purposes of this paragraph, the term 'unused carryforward amount' means, with respect to any issuing authority for any calendar year, the excess of—

''(I) the amount of the excess described in subparagraph (A) for the fourth preceding calendar year, over

''(II) the amount of bonds issued by such issuing authority to which subparagraph (A) applied during the 3 preceding calendar years.

''(e) APPLICABILITY OF CERTAIN FEDERAL LAWS.—An issue shall not be treated as an issue under subsection (b) unless the facility for which the proceeds of such issue are used would be subject to the requirements of any Federal law (including titles 23, 40, and 49 of the United States Code) which would otherwise apply to similar projects.

''(f) SPECIAL RULE FOR ENVIRONMENTAL REMEDIATION COSTS FOR DOCKS AND WHARVES.—For purposes of this section, amounts used for working capital expenditures relating to environmental remediation required under State or Federal law at or near a facility described in subsection (b)(2) (including environmental remediation in the riverbed and land within or adjacent to the Federal navigation channel used to access such facility) shall be treated as an amount used to provide for such a facility.

''(g) REGULATIONS.—The Secretary shall prescribe such regulations as may be necessary to carry out the purposes of this section, including regulations requiring States to report the amount of Move America volume cap of the State carried forward for any calendar year under subsection (d)(3).''.

(2) CONFORMING AMENDMENT.—The table of sections for subpart A of part IV of subchapter B of chapter 1 of such Code is amended by inserting after the item relating to section 142 the following new item:

''Sec. 142A. Move America bonds.''.

(b) APPLICATION OF OTHER PRIVATE ACTIVITY BOND RULES.—

(1) TREATMENT UNDER PRIVATE ACTIVITY BOND VOLUME CAP.—Subsection (g) of section 146 of the Internal Revenue Code of 1986 is amended by striking ''and'' at the end of paragraph (3), by striking the period at the end of paragraph (4) and inserting '', and'', and by inserting after paragraph (4) the following new paragraph:

''(5) any Move America bond.''.

(2) RULE FOR FACILITIES LOCATED OUTSIDE THE STATE.—Paragraph (2) of section 146(k) of the Internal Revenue Code of 1986 is amended by inserting ''or to any Move America bond'' after ''section 142(a)''.

(3) SPECIAL RULE ON USE FOR LAND ACQUISITION.—Subparagraph (A) of section 147(c)(1) of the Internal Revenue Code of 1986 is amended by inserting ''(50 percent in the case of any issue of Move America bonds)'' after ''25 percent''.

(4) SPECIAL RULES FOR REHABILITATION EXPENDITURES.—

(A) INCLUSION OF CERTAIN EXPENDITURES.—Subparagraph (B) of section 147(d)(3) of the Internal Revenue Code of 1986 is amended by inserting '', except that, in the case of any Move America bond, such term shall include any expenditure described in clause (iii) or (v) thereof'' before the period at the end.

(B) PERIOD FOR EXPENDITURES.—Subparagraph (C) of section 147(d)(3) of such Code is amended by inserting ''(5 years, in the case of any Move America bond)'' after ''2 years''.

(c) TREATMENT UNDER THE ALTERNATIVE MINIMUM TAX.—Subparagraph (C) of section 57(a)(5) of the Internal Revenue Code of 1986 is amended by adding at the end the following new clause:

''(vii) EXCEPTION FOR MOVE AMERICA BONDS.—For purposes of clause (i), the term 'private activity bond' shall not include any Move America bond (as defined in section 142A).''.

(d) EFFECTIVE DATE.—The amendments made by this section shall apply to obligations issued in calendar years beginning after the date of the enactment of this Act.

SEC. _____3. MOVE AMERICA TAX CREDITS.

(a) IN GENERAL.—Subpart B of part IV of subchapter A of chapter 1 of the Internal Revenue Code of 1986 is amended by adding at the end the following new section:

''SEC. 30E. MOVE AMERICA CREDIT.

''(a) ALLOWANCE OF CREDIT.—In the case of a Move America credit certificate purchased by the taxpayer, there shall be allowed as a credit against the tax imposed by this chapter for any taxable year in the credit period an amount equal to 10 percent of the value of such certificate.

''(b) CREDIT PERIOD.—For purposes of this section, the term 'credit period' means, with respect to any Move America credit certificate, the period of 10 taxable years beginning with the first taxable year that begins in the calendar year in which the qualified project to which such certificate relates is placed in service.

''(c) MOVE AMERICA CREDIT CERTIFICATE.—For purposes of this section—

''(1) MOVE AMERICA CREDIT CERTIFICATE.—The term 'Move America credit certificate' means any certificate that—

''(A) is sold to the taxpayer under a qualified Move America credit program by a State or by a project sponsor to whom the State has allocated such certificate for sale under paragraph (2)(B)(ii)(I),

''(B) is designated by the State as relating to a qualified project,

''(C) the proceeds of the sale of which are used to finance the qualified project designated under subparagraph (B),

''(D) specifies—

''(i) the value of the certificate and the purchase price, and

''(ii) the qualified project to which it relates,

''(E) is sold no later than the end of the calendar year in which the project is placed in service, and

''(F) is in such form as the Secretary may prescribe.

''(2) QUALIFIED MOVE AMERICA CREDIT PROGRAM.—

''(A) IN GENERAL.—The term 'qualified Move America credit program' means any program—

''(i) which is established by a State for any calendar year for which it is authorized to issue Move America bonds (as defined in section 145A),

''(ii) under which the State exchanges (in such manner as the Secretary may prescribe) an amount of the Move America bonds (as so defined) which it may otherwise issue during such calendar year for the ability to sell Move America credit certificates, and

''(iii) under which the State is obligated to repay to the Secretary an amount equal to the recapture amount, if applicable, with respect to any Move America credit certificate.

''(B) ALLOCATION OF CERTIFICATES TO PROJECT SPONSORS.—

''(i) IN GENERAL.—A State that has established a qualified Move America credit program under subparagraph (A) may allocate any Move America credit certificate that is eligible to be sold by such State to the project sponsor of the qualified project to which such certificate relates.

''(ii) SALE OR USE.—A project sponsor to whom any Move America certificate is allocated under clause (i) may—

''(I) sell such certificate, or

''(II) claim the credit under this section with respect to such certificate as if the project sponsor had purchased the certificate from the State.

''(3) VALUE.—

''(A) IN GENERAL.—The aggregate value of the Move America credit certificates sold or allocated by a State in a calendar year shall equal 25 percent of the value of Move America bonds exchanged by the State under paragraph (2)(A)(ii).

''(B) LIMITATION RELATING TO QUALIFIED PROJECT COST.—The aggregate value of the Move America credit certificates sold or allocated by a State and designated by the State as relating to any qualified project shall not exceed the lesser of—

''(i) 20 percent of the estimated cost of the project, or

''(ii) 50 percent of the total amount of private equity invested in the project.

''(4) CERTIFICATE NONTRANSFERABLE.—A Move America credit certificate, once purchased from a State or a project sponsor to whom the State has allocated such certificate for sale under paragraph (2)(B)(ii)(I), may not be sold or transferred to any other person.

''(d) DEFINITIONS AND SPECIAL RULES.—For purposes of this section—

''(1) QUALIFIED PROJECT.—The term 'qualified project' means a project which—

''(A) would be subject to the same requirements of any Federal law (including titles 23, 40, and 49 of the United States Code) which would otherwise apply to similar projects, and

''(B) is for the construction of a facility described in section 142A(b), but only if such project, upon completion, will be generally available for public use.

''(2) RECAPTURE AMOUNT.—

''(A) IN GENERAL.—In the case of any Move America credit certificate, if the project to which the certificate is designated under subsection (c)(1)(B) as relating—

''(i) is never placed in service, or

''(ii) ceases to be a qualified project at any time during the credit period,

the recapture amount is the amount determined under subparagraph (B).

''(B) AMOUNT DETERMINED.—The amount determined under this subparagraph is—

''(i) in the case of a project to which subparagraph (A)(i) applies, the value of the Move America credit certificate, and

''(ii) in the case of a project to which subparagraph (A)(ii) applies, the product of—

''(I) an amount equal to 10 percent of the value of the Move America credit certificate, and

''(II) the number of calendar years in the credit period beginning with the calendar year in which the project ceases to be a qualified project.

''(3) SPECIAL RULE FOR PROJECTS NOT PLACED IN SERVICE.—For purposes of subsection (a), if the project to which a Move America credit certificate is designated under subsection (c)(1)(B) as relating is never placed in service, the first taxable year that begins in the calendar year in which the State certifies (at such time and in such manner as may be prescribed by the Secretary) that the project will not be placed in service shall be treated as the year in which the project was placed in service.

''(e) APPLICATION WITH OTHER CREDITS.—

''(1) BUSINESS CREDIT TREATED AS PART OF GENERAL BUSINESS CREDIT.—Except as provided in paragraph (2), the credit which would be allowed under subsection (a) for any taxable year (determined without regard to this subsection) shall be treated as a credit listed in section 38(b) for such taxable year (and not allowed under subsection (a)).

''(2) PERSONAL CREDIT.—For purposes of this title, in the case of an individual, the credit allowed under subsection (a) for any taxable year shall be treated as a credit allowable under subpart A for such taxable year.''.

(b) CREDIT MADE PART OF GENERAL BUSINESS CREDIT.—Subsection (b) of section 38 of the Internal Revenue Code of 1986 is amended—

(1) by striking ''plus'' at the end of paragraph (35),

(2) by striking the period at the end of paragraph (36) and inserting '', plus'', and

(3) by adding at the end the following new paragraph:

''(37) the portion of the Move America credit to which section 30E(e)(1) applies.''.

(c) CLERICAL AMENDMENT.—The table of sections for subpart B of part IV of subchapter A of chapter 1 of the Internal Revenue Code of 1986 is amended by adding at the end the following new item:

''Sec. 30E. Move America credit.''.

(d) EFFECTIVE DATE.—The amendments made by this section shall apply to taxable years beginning after the date of the enactment of this Act.

(e) REPORTING.—A State that sells any Move America credit certificate shall report, at such time and in such manner as the Secretary of the Treasury shall require—

(1) to the Secretary of the Treasury—

(A) the value of the Move America bonds otherwise allowed to be issued by the State which are exchanged under section 30E(c)(2)(A)(ii) of the Internal Revenue Code of 1986 for the ability to sell such Move America credit certificates, and

(B) the number of Move America credit certificates sold by the State or allocated to project sponsors, the value of each such certificate, and to whom it was sold (including the name of the purchaser and any other identifying information as the Secretary of the Treasury shall require), and

(2) to the Secretary of the Treasury and the purchaser of any Move America credit certificate—

(A) the placed in service date of the qualified project to which the certificate is designated under section 30E(c)(1)(B) of the Internal Revenue Code of 1986 as relating, or

(B) that the State has made a certification under section 30E(d)(3) of such Code that such project will not be placed in service.

For purposes of this subsection, any term used in this subsection that is also used in section 30E or 142A of the Internal Revenue Code of 1986 has the same meaning as when used in such section.

SA 3660. Mr. KAINE submitted an amendment intended to be proposed to amendment SA 3464 submitted by Mr. THUNE (for himself and Mr. NELSON) to the bill H.R. 636, to amend the Internal Revenue Code of 1986 to permanently extend increased expensing limitations, and for other purposes; which was ordered to lie on the table; as follows:

On page 149, line 8, strike ''an inspection or other investigation'' and insert ''an accident finding, inspection, or other investigation''.

On page 150, line 17, strike ''an inspection or other investigation'' and insert ''an accident finding, inspection, or other investigation''.

On page 337, strike section 5013

SA 3661. Mr. JOHNSON (for himself, Mr. LEAHY, Ms. MURKOWSKI, and Mr. SCHUMER) submitted an amendment intended to be proposed to amendment SA 3464 submitted by Mr. THUNE (for himself and Mr. NELSON) to the bill H.R. 636, to amend the Internal Revenue Code of 1986 to permanently extend increased expensing limitations, and for other purposes; which was ordered to lie on the table; as follows:

At the end of title V, add the following:

SEC. 5032. JURISDICTION OVER OFFENSES COMMITTED BY CERTAIN UNITED STATES PERSONNEL STATIONED IN CANADA.

(a) AMENDMENT.—Chapter 212A of title 18, United States Code, is amended—

(1) in the chapter heading, by striking ''**TRAFFICKING IN PERSONS**''; and

(2) by adding after section 3272 the following:

''§ 3273. Offenses committed by certain United States personnel stationed in Canada in furtherance of border security initiatives

''(a) IN GENERAL.—Whoever, while employed by the Department of Homeland Security or the Department of Justice and stationed or deployed in Canada pursuant to a treaty, executive agreement, or bilateral memorandum in furtherance of a border security initiative, engages in conduct (or conspires or attempts to engage in conduct) in Canada that would constitute an offense for which a person may be prosecuted in a court of the United States had the conduct been engaged in within the United States or within the special maritime and territorial jurisdiction of the United States shall be fined or imprisoned, or both, as provided for that offense.

''(b) DEFINITION.—In this section, the term 'employed by the Department of Homeland Security or the Department of Justice' means—

''(1) being employed as a civilian employee, a contractor (including a subcontractor at any tier), or an employee of a contractor (or a subcontractor at any tier), of the Department of Homeland Security or the Department of Justice;

''(2) being present or residing in Canada in connection with such employment; and

''(3) not being a national of or ordinarily resident in Canada.

(b) TECHNICAL AND CONFORMING AMENDMENTS.—Part II of title 18, United States Code, is amended—

(1) in the table of chapters, by striking the item relating to chapter 212A and inserting the following:

''212A. Extraterritorial jurisdiction over certain offenses ..... 3271'';

and

(2) in the table of sections for chapter 212A, by inserting after the item relating to section 3272 the following:

''3273. Offenses committed by certain United States personnel stationed in Canada in furtherance of border security initiatives.''.

(c) RULE OF CONSTRUCTION. Nothing in this section shall be construed to infringe upon or otherwise affect the exercise of the prosecutorial discretion by the Department of Justice in implementing this provision.

SA 3662. Mr. DAINES submitted an amendment intended to be proposed to amendment SA 3464 submitted by Mr. THUNE (for himself and Mr. NELSON) to the bill H.R. 636, to amend the Internal Revenue Code of 1986 to permanently extend increased expensing limitations, and for other purposes; which was ordered to lie on the table; as follows:

At the end of title V, add the following:

SEC. 5032. PLACEMENT AND STORAGE OF WILDLAND FIREFIGHTING ASSETS.

When considering placement and storage of aerial wildland firefighting assets, the Chief of the Forest Service shall, before other considerations, take into consideration the geographic location of other federally owned aerial wildland firefighting assets and the rate, intensity, and size of all State and federally managed wildland fires in those locations.

SA 3663. Ms. MURKOWSKI (for herself and Mr. SULLIVAN) submitted an amendment intended to be proposed to amendment SA 3464 submitted by Mr. THUNE (for himself and Mr. NELSON) to the bill H.R. 636, to amend the Internal Revenue Code of 1986 to permanently extend increased expensing limitations, and for other purposes; which was ordered to lie on the table; as follows:

At the appropriate place, insert the following:

SEC. _____. MODIFICATION OF EXCISE TAX EXEMPTION FOR SMALL AIRCRAFT ON ESTABLISHED LINES.

(a) IN GENERAL.—Section 4281 of the Internal Revenue Code of 1986 is amended—

(1) in subsection (a), by striking ''6,000 pounds or less'' and inserting ''12,500 pounds or less'', and

(2) by striking subsection (c) and inserting the following:

''(c) ESTABLISHED LINE.—For purposes of this section, an aircraft shall not be considered as operated on an established line if operated under an authorization to conduct on-demand operations in common carriage pursuant to section 119.21(a)(5) of title 14, Code of Federal Regulations, as in effect on the date of the enactment of the Federal Aviation Administration Reauthorization Act of 2016.''.

(b) EFFECTIVE DATE.—The amendments made by this section shall apply to taxable transportation provided after the date of the enactment of this Act.

SA 3664. Ms. MURKOWSKI (for herself and Mr. SULLIVAN) submitted an amendment intended to be proposed to amendment SA 3464 submitted by Mr. THUNE (for himself and Mr. NELSON) to the bill H.R. 636, to amend the Internal Revenue Code of 1986 to permanently extend increased expensing limitations, and for other purposes; which was ordered to lie on the table; as follows:

On page 81, between lines 24 and 25, insert the following:

''(f) SPECIAL RULES FOR CERTAIN UNMANNED AIRCRAFT SYSTEMS AND OPERATIONS IN THE ARCTIC.—

''(1) IN GENERAL.—Notwithstanding any other provision of this chapter, and not later than 180 days after the date of the enactment of the Federal Aviation Administration Reauthorization Act of 2016, the Secretary shall determine if certain unmanned aircraft systems may operate safely in the Arctic beyond the limitations of the notice of proposed rulemaking relating to operation and certification of small unmanned aircraft systems (80 Fed. Reg. 9544), including operation of such systems beyond the visual line of sight of the operator.

''(2) ASSESSMENT OF UNMANNED AIRCRAFT SYSTEMS.—In making the determination required by paragraph (1), the Secretary shall determine, at a minimum—

''(A) which types of unmanned aircraft systems, if any, as a result of their size, weight, speed, operational capability, proximity to airports and populated areas, and operation beyond visual line of sight do not create a hazard to users of the airspace over the Arctic or the public or pose a threat to national security;

''(B) which beyond-line-of-sight operations provide extraordinary public benefit justifying safe accommodation of the operations while minimizing restrictions on manned aircraft operations; and

''(C) whether a certificate of waiver, certificate of authorization, or airworthiness certification under section 44704 is required for the operation of unmanned aircraft systems identified under subparagraph (A).

''(3) REQUIREMENTS FOR SAFE OPERATION.—If the Secretary determines under this subsection that certain unmanned aircraft systems may operate safely in the Arctic beyond the visual line of sight of the operator, the Secretary shall establish requirements for the safe equipage and operation of such aircraft systems while minimizing the effect on manned aircraft operations.''.

SA 3665. Mr. VITTER submitted an amendment intended to be proposed to amendment SA 3464 submitted by Mr. THUNE (for himself and Mr. NELSON) to the bill H.R. 636, to amend the Internal Revenue Code of 1986 to permanently extend increased expensing limitations, and for other purposes; which was ordered to lie on the table; as follows:

On page 125, between lines 6 and 7, insert the following:

SEC. 2143. MICRO UNMANNED AIRCRAFT SYSTEMS.

(a) SHORT TITLE.—This section may be cited as the ''Micro Drone Safety and Innovation Act of 2016''.

(b) OPERATION OF MICRO UNMANNED AIRCRAFT SYSTEMS.—

(1) IN GENERAL.—Subtitle B of title III of the FAA Modernization and Reform Act of 2012 (Public Law 112–95; 49 U.S.C. 40101 note), as amended by sections 2122(b)(2), 2128(b)(2), and 2129(b)(2), is further amended by adding at the end the following:

''SEC. 337. SPECIAL RULE FOR MICRO UNMANNED AIRCRAFT SYSTEMS.

''(a) REQUIREMENTS FOR OPERATION OF MICRO UNMANNED AIRCRAFT SYSTEMS.—

''(1) IN GENERAL.—A micro unmanned aircraft system and the operator of that system shall qualify for the exemptions described under subsections (b), (c), and (d) if the system is operated—

''(A) at an altitude of less than 400 feet above ground level;

''(B) at an airspeed of not greater than 40 knots;

''(C) within the visual line of sight of the operator;

''(D) during the hours between sunrise and sunset; and

''(E) except as provided in paragraph (2), not less than 5 statute miles from the geographic center of an airport with an operational air traffic control tower or an airport denoted on a current aeronautical chart published by the Federal Aviation Administration.

''(2) OPERATION WITHIN 5 STATUTE MILES OF AN AIRPORT.—A micro unmanned aircraft system may be operated within 5 statute miles of an airport described in paragraph (1)(E) if, before the micro unmanned aircraft system is operated within 5 statute miles of the airport, the operator of the micro unmanned aircraft system—

''(A) provides notice to the airport operator; and

''(B) in the case of an airport with an operational air traffic control tower, receives approval from the air traffic control tower.

''(b) EXEMPTIONS FOR OPERATORS OF MICRO UNMANNED AIRCRAFT SYSTEMS.—Notwithstanding sections 44703 and 44711 of title 49, United States Code, part 61 of title 14, Code of Federal Regulations, or any other provision of a statute, rule, or regulation relating to airman certification, any person may operate a micro unmanned aircraft system in accordance with subsection (a) without being required—

''(1) to pass any aeronautical knowledge test;

''(2) to meet any age or experience requirement; or

''(3) to obtain an airman certificate or medical certificate.

''(c) EXEMPTION FROM AIRWORTHINESS STANDARDS.—Notwithstanding any provision of chapter 447 of title 49, United States Code, or any other provision of a statute, rule, or regulation relating to certification of aircraft or aircraft parts or equipment, a micro unmanned aircraft system operated in accordance with subsection (a) and component parts and equipment for that system shall not be required to meet airworthiness certification standards or to obtain an airworthiness certificate.

''(d) EXEMPTIONS FROM OPERATIONAL REGULATIONS.—

''(1) PART 91 REGULATIONS.—Sections 91.7(a), 91.119(c), 91.121, 91.151(a)(1), 91.405(a), and 91.407(a)(1), paragraphs (1) and (2) of section 91.409(a), and subsections (a) and (b) of section 91.417 of title 14, Code of Federal Regulations, shall not apply with respect to the operation of a micro unmanned aircraft system in accordance with subsection (a).

''(2) CERTIFICATE OF WAIVER OR AUTHORIZATION.—A micro unmanned aircraft system operated in accordance with subsection (a) may be operated by any person without a certificate of authorization or waiver from the Federal Aviation Administration.

''(3) FUTURE REGULATIONS.—A micro unmanned aircraft system operated in accordance with subsection (a), and the operator of such a system, shall be exempt from any additional requirements that may be prescribed pursuant to this subtitle after the date of the enactment of the Micro Drone Safety and Innovation Act of 2016.

''(e) ALTERNATIVE REGULATIONS.—Instead of being operated in accordance with subsection (a), a micro unmanned aircraft may be operated pursuant to any form of authorization, operational rules, or exemptions pertaining to unmanned aircraft systems prescribed by the Administrator, except that a micro unmanned aircraft and its operator shall be exempt from any requirement for an airman certificate or medical certificate.

''(f) MICRO UNMANNED AIRCRAFT SYSTEM DEFINED.—In this section, the term 'micro unmanned aircraft system' means an unmanned aircraft system the aircraft component of which weighs not more than 4.4 pounds, including payload.''.

(2) TABLE OF CONTENTS.—The table of contents for the FAA Modernization and Reform Act of 2012 is amended by inserting after the item relating to section 335 the following:

''337. Special rule for micro unmanned aircraft systems.''.

SA 3666. Mr. VITTER submitted an amendment intended to be proposed to amendment SA 3464 submitted by Mr. THUNE (for himself and Mr. NELSON) to the bill H.R. 636, to amend the Internal Revenue Code of 1986 to permanently extend increased expensing limitations, and for other purposes; which was ordered to lie on the table; as follows:

Beginning on page 86, strike line 22 and all that follows through page 88, line 19, insert the following:

''(b) MICRO UNMANNED AIRCRAFT SYSTEMS OPERATIONAL RULES.—

''(1) IN GENERAL.—Notwithstanding any other provision of law relating to the incorporation of unmanned aircraft systems into Federal Aviation Administration plans and policies, other than sections 44803 and 44809, the Administrator of the Federal Aviation Administration may not promulgate any rule or regulation regarding the operation of a micro unmanned aircraft system, the aircraft component of which weighs 4.4 pounds or less, including payload, including any requirement that requires the operator of any such system to meet any airman certification requirement, including any requirements under section 44703 of this title, part 61 of title 14, Code of Federal Regulations, or any other rule or regulation relating to airman certification.

''(2) OPERATIONAL RULES.—A micro unmanned aircraft system and the operator of that system shall qualify for the exemptions under this subsection if the following rules for operations of such systems are observed:

''(A) Operation at an altitude of less than 400 feet above ground level.

''(B) Operation with an airspeed of not greater than 40 knots.

''(C) Operation within the visual line of sight of the operator.

''(D) Operation during the hours between sunrise and sunset.

''(E) Operation not less than 5 statute miles from the geographic center of an airport with an operational air traffic control tower or an airport denoted on a current aeronautical chart published by the Federal Aviation Administration, except that a micro unmanned aircraft system may be operated within 5 statute miles of such an airport if the operator of the system—

''(i) provides notice to the airport operator; and

''(ii) in the case of an airport with an operational air traffic control tower, receives approval from the air traffic control tower.

''(3) EXEMPTIONS FROM OPERATIONAL REGULATIONS.—

''(A) PART 91 REGULATIONS.—Sections 91.7(a), 91.119(c), 91.121, 91.151(a)(1), 91.405(a), and 91.407(a)(1), paragraphs (1) and (2) of section 91.409(a), and subsections (a) and (b) of section 91.417 of title 14, Code of Federal Regulations, shall not apply with respect to the operation of a micro unmanned aircraft system in accordance with this subsection.

''(B) CERTIFICATE OF WAIVER OR AUTHORIZATION.—A micro unmanned aircraft system operated in accordance with this subsection may be operated by any person without a certificate of authorization or waiver from the Federal Aviation Administration.

''(C) FUTURE REGULATIONS.—A micro unmanned aircraft system operated in accordance with this subsection, and the operator of such a system, shall be exempt from any additional requirements that may be prescribed pursuant to this subtitle after the date of the enactment of this Act, except for any additional requirements prescribed pursuant to sections 44803 and 44809.

''(4) ALTERNATIVE REGULATIONS.—Instead of being operated in accordance with this subsection, a micro unmanned aircraft system may be operated pursuant to any form of authorization, operational rules, or exemptions pertaining to unmanned aircraft systems prescribed by the Administrator, except that a micro unmanned aircraft system and its operator shall be exempt from any requirement for an airman certificate or medical certificate.

SA 3667. Mr. WARNER submitted an amendment intended to be proposed to amendment SA 3464 submitted by Mr. THUNE (for himself and Mr. NELSON) to the bill H.R. 636, to amend the Internal Revenue Code of 1986 to permanently extend increased expensing limitations, and for other purposes; which was ordered to lie on the table; as follows:

On page 120, line 1, insert '', or commercial operators operating under contract with a public entity,'' after ''systems''.

SA 3668. Mrs. MURRAY (for herself and Ms. CANTWELL) submitted an amendment intended to be proposed to amendment SA 3464 submitted by Mr. THUNE (for himself and Mr. NELSON) to the bill H.R. 636, to amend the Internal Revenue Code of 1986 to permanently extend increased expensing limitations, and for other purposes; which was ordered to lie on the table; as follows:

At the end of subtitle C of title I, add the following:

SEC. 1305. AIRPORT VEHICLE EMISSIONS.

Section 40117(a)(3)(G) is amended to read as follows:

''(G) A project to reduce emissions under subchapter I of chapter 471 or to use cleaner burning conventional fuels, or for acquiring for use at a commercial service airport vehicles or ground support equipment that include low-emission technology or use cleaner burning fuels, or, if the airport is located in an air quality nonattainment area (as defined in section 171(2) of the Clean Air Act (42 U.S.C. 7501(2))) or a maintenance area referred to in section 175A of such Act (42 U.S.C. 7505a), a project to retrofit any such vehicles or equipment that are powered by a diesel or gasoline engine with emission control technologies certified or verified by the Environmental Protection Agency to reduce emissions, if such project would be able to receive emission credits for the project from the governing State or Federal environmental agency as described in section 47139.''.

At the end of title V, add the following:

SEC. 5032. REDUCTION OF ENERGY CONSUMPTION, EMISSIONS, AND NOISE FROM CIVILIAN AIRCRAFT.

(a) ESTABLISHMENT OF RESEARCH PROGRAM.—From amounts made available under section 48102(a) of title 49, United States Code, the Administrator of the Federal Aviation Administration shall establish a research program related to reducing civilian aircraft energy use, emissions, and source noise with equivalent safety through grants or other measures, which shall include cost-sharing authorized under section 106(l)(6) of such title, including reimbursable agreements with other Federal agencies.

(b) ESTABLISHMENT OF CONSORTIUM.—

(1) DESIGNATION AS CONSORTIUM.—The Administrator shall designate, using a competitive process, one or more institutions or entities described in paragraph (2), to be known as a ''Government led Consortium for Continuous Lower Energy, Emissions, and Noise'' or ''CLEEN'', to perform research in accordance with this section.

(2) PARTICIPATION.—The Administrator shall include educational and research institutions or private sector entities that have existing facilities and experience for developing and testing noise, emissions, and energy reduction engine and aircraft technology, and developing alternative fuels, in the research program required by subsection (a) to fulfill the performance objectives specified in subsection (c).

(3) COORDINATION MECHANISMS.—In conducting the research program required by subsection (a), the consortium designated under paragraph (1) shall—

(A) coordinate its activities with the Department of Agriculture, the Department of Defense, the Department of Energy, the National Aeronautics and Space Administration, and other relevant Federal agencies; and

(B) consult on a regular basis with the Commercial Aviation Alternative Fuels Initiative.

(c) PERFORMANCE OBJECTIVES.—Not later than January 1, 2021, the Administrator shall seek to ensure that the research program required subsection (a) supports the following objectives for civil subsonic airplanes:

(1) Certifiable aircraft technology that reduces aircraft fuel burn 40 percent relative to year 2000 best-in-class in-service aircraft.

(2) Certifiable engine technology that reduces landing and takeoff cycle nitrogen oxide emissions by 70 percent over the International Civil Aviation Organization standard adopted in 2011.

(3) Certifiable aircraft technology that reduces noise levels by 32 decibels cumulatively, relative to the Stage 4 standard, or reduces the noise contour area in absolute terms.

(4) The feasibility of use of drop-in alternative jet fuels in aircraft and engine systems, including successful demonstration and quantification of benefits, advancement of fuel testing capability, and support for fuel evaluation.

(d) CERTIFIABLE DEFINED.—In this section, the term ''certifiable'' means the technology has been demonstrated to Technology Readiness Level 6 or 7, and there are no foreseen issues that would prevent certification to existing standards.

SEC. 5033. RESEARCH PROGRAM ON ALTERNATIVE JET FUEL TECHNOLOGY FOR CIVIL AIRCRAFT.

Section 911 of the FAA Modernization and Reform Act of 2012 (Public Law 112–95; 49 U.S.C. 44504 note) is amended—

(1) in subsection (a), by striking ''to assist in'' and inserting ''with the objective of accelerating'';

(2) in subsection (c)(1)(B), by inserting ''and ability to prioritize researchable constraints'' after ''with experience''; and

(3) by adding at the end the following:

''(e) COLLABORATION AND REPORT.—

''(1) COLLABORATION.—The Administrator, in coordination with the Administrator of NASA, the Secretary of Energy, and the Secretary of Agriculture, shall continue research and development activities into the development and deployment of jet fuels described in subsection (a).

''(2) REPORT.—Not later than 180 days after the date of the enactment of the Federal Aviation Administration Reauthorization Act of 2016, the Administrator, in coordination with the Administrator of NASA, the Secretary of Energy, and the Secretary of Agriculture, and after consultation with the heads of other relevant agencies, shall—

''(A) develop a joint plan to carry out the research described in subsection (a); and

''(B) submit to Congress a report on such joint plan.''.

SA 3669. Mr. DAINES submitted an amendment intended to be proposed to amendment SA 3464 submitted by Mr. THUNE (for himself and Mr. NELSON) to the bill H.R. 636, to amend the Internal Revenue Code of 1986 to permanently extend increased expensing limitations, and for other purposes; which was ordered to lie on the table; as follows:

On page 270, strike lines 2 through 11 and insert the following:

(a) RULEMAKING.—

(1) IN GENERAL.—Not later than 1 year after the date of enactment of this Act, the Secretary of Transportation shall issue final regulations to require a covered air carrier to promptly provide an automatic refund or other compensation to a passenger if the covered air carrier—

(A) has charged the passenger an ancillary fee for checked baggage; and

(B) fails to deliver the checked baggage to the passenger not later than 6 hours after the arrival of a domestic flight or 12 hours after the arrival of an international flight.

(2) CHOICE OF EQUIVALENT COMPENSATION.—The regulations under paragraph (1) may allow an air carrier to offer a passenger the opportunity to select an alternate form of compensation of equivalent or greater value in lieu of a refund if the passenger is concurrently notified that he or she is entitled to a full refund of paid baggage fees, among the options for compensation. If the passenger fails to respond to the offer of equivalent compensation, the air carrier shall automatically refund the baggage fee paid by the passenger.

(3) REFUND DEADLINE.—Any refund under paragraph (1) or alternate equivalent compensation under paragraph (2) shall be provided to the passenger promptly and shall be provided not later than 10 days after an air carrier's failure to deliver checked baggage within the period prescribed under paragraph (1)(B).

SA 3670. Mr. CRAPO submitted an amendment intended to be proposed to amendment SA 3464 submitted by Mr. THUNE (for himself and Mr. NELSON) to the bill H.R. 636, to amend the Internal Revenue Code of 1986 to permanently extend increased expensing limitations, and for other purposes; which was ordered to lie on the table; as follows:

At the appropriate place, insert the following:

SEC. ____. EXCLUSION FOR ASSISTANCE PROVIDED TO PARTICIPANTS IN CERTAIN VETERINARY STUDENT LOAN REPAYMENT OR FORGIVENESS PROGRAMS.

(a) IN GENERAL.—Paragraph (4) of section 108(f) of the Internal Revenue Code of 1986 is amended—

(1) by striking ''or'' after ''such Act,'',

(2) by striking the period at the end and inserting '', under section 1415A of the National Agricultural Research, Extension, and Teaching Policy Act of 1977 (7 U.S.C. 3151a), or under any other State loan repayment or loan forgiveness program that is intended to provide for increased access to veterinary services in such State.'', and

(3) by striking ''STATE'' in the heading and inserting ''OTHER''.

(b) EFFECTIVE DATE.—The amendments made by this section shall apply to amounts received by an individual in taxable years beginning after December 31, 2015.

SA 3671. Mr. BARRASSO submitted an amendment intended to be proposed to amendment SA 3464 submitted by Mr. THUNE (for himself and Mr. NELSON) to the bill H.R. 636, to amend the Internal Revenue Code of 1986 to permanently extend increased expensing limitations, and for other purposes; which was ordered to lie on the table; as follows:

At the appropriate place, insert the following:

SEC. ___. CARRYING OF FIREARMS BY FEDERAL FLIGHT DECK OFFICERS ON INTERNATIONAL FLIGHTS.

Paragraph (3) of section 44921(f) is amended to read as follows:

''(3) CARRYING FIREARMS OUTSIDE UNITED STATES.—In consultation with the Secretary of State, the Secretary of Homeland Security shall take such action as may be necessary to ensure that a Federal flight deck officer may carry a firearm—

''(A) on any international flight on which a Federal air marshal may be deployed under section 44917; and

''(B) in foreign country as is necessary to allow the Federal flight deck officer to carry a firearm as authorized by subparagraph (A).''.

SA 3672. Mrs. GILLIBRAND (for herself and Mr. SCHUMER) submitted an amendment intended to be proposed to amendment SA 3464 submitted by Mr. THUNE (for himself and Mr. NELSON) to the bill H.R. 636, to amend the Internal Revenue Code of 1986 to permanently extend increased expensing limitations, and for other purposes; which was ordered to lie on the table; as follows:

At the end of title V, add the following:

SEC. 5032. LIMITATIONS ON OPERATING CERTAIN AIRCRAFT NOT COMPLYING WITH STAGE 4 NOISE LEVELS.

(a) IN GENERAL.—Subchapter II of chapter 475 is amended by adding at the end the following:

''§ 47535. Limitations on operating certain aircraft not complying with stage 4 noise levels

''(a) REGULATIONS.—Not later than December 31, 2017, the Secretary of Transportation, in consultation with the International Civil Aviation Organization, shall issue regulations to establish minimum standards for civil turbojets to comply with stage 4 noise levels.

''(b) GENERAL RULE.—The Secretary shall issue regulations to, except as provided in section 47529—

''(1) establish a timeline by which increasing percentages of the total number of civil turbojets with a maximum weight of more than 75,000 pounds operating to or from airports in the United States comply with the stage 4 noise levels established under subsection (a), beginning not later than December 31, 2022; and

''(2) require that 100 percent of such turbojets operating after December 31, 2037, to or from airports in the United States comply with the stage 4 noise levels.

''(c) FOREIGN-FLAG AIRCRAFT.—

''(1) INTERNATIONAL STANDARDS.—The Secretary shall request the International Civil Aviation Organization to add to its Work Programme the consideration of international standards for the phase-out of aircraft that do not comply with stage 4 noise levels.

''(2) ENFORCEMENT.—The Secretary shall enforce the requirements of this section with respect to foreign-flag aircraft only to the extent that such enforcement is consistent with United States obligations under international agreements.

''(d) ANNUAL REPORT.—Beginning with calendar year 2020—

''(1) each air carrier shall submit to the Secretary an annual report on the progress the carrier is making toward complying with the requirements of this section and regulations issued to carry out this section; and

''(2) the Secretary shall submit to Congress an annual report on the progress being made toward that compliance.

''(e) NOISE RECERTIFICATION TESTING NOT REQUIRED.—

''(1) LIMITATION ON STATUTORY CONSTRUCTION.—Nothing in this section may be construed to require the noise certification testing of a civil turbojet that has been retrofitted to comply with or otherwise already meets the stage 4 noise levels established under subsection (a).

''(2) MEANS OF DEMONSTRATING COMPLIANCE WITH STAGE 4 NOISE LEVELS.—The Secretary shall specify means for demonstrating that an aircraft complies with stage 4 noise levels without requiring noise certification testing.

''(f) NONADDITION RULE.—

''(1) IN GENERAL.—Except as provided in paragraph (2) and section 47530, a person may operate a civil jet aircraft with a maximum weight of more than 75,000 pounds that is imported into the United States after December 31, 2020, only if the aircraft—

''(A) complies with the stage 4 noise levels; or

''(B) was purchased by the person importing the aircraft into the United States under a legally binding contract entered into before January 1, 2021.

''(2) EXCEPTION.—The Secretary of Transportation may provide for an exception from paragraph (1) to permit a person to obtain modifications to an aircraft to meet the stage 4 noise levels.

''(3) AIRCRAFT DEEMED NOT IMPORTED.—For purposes of this subsection, an aircraft shall be deemed not to have been imported into the United States if the aircraft—

''(A) was owned on January 1, 2021, by—

''(i) a corporation, trust, or partnership organized under the laws of the United States, a State, or the District of Columbia;

''(ii) an individual who is a citizen of the United States; or

''(iii) an entity that is owned or controlled by a corporation, trust, or partnership described in clause (i) or an individual described in clause (ii); and

''(B) enters the United States not later than 6 months after the expiration of a lease agreement (including any extension of such an agreement) between an owner described in subparagraph (A) and a foreign air carrier.''.

(b) CLERICAL AMENDMENT.—The analysis for chapter 475 of such title is amended by inserting after the item relating to section 47534 the following:

''47535. Limitations on operating certain aircraft not complying with stage 4 noise levels.''.

SEC. 5033. STANDARDS FOR ISSUANCE OF NEW TYPE CERTIFICATES.

(a) APPLICABILITY OF STAGE 5 NOISE STANDARDS TO CIVIL JETS WITH A MAXIMUM WEIGHT OF MORE THAN 121,254 POUNDS.—On and after December 31, 2017, the Secretary of Transportation may not issue a new type certificate for a civil jet with a maximum weight of more than 121,254 pounds for which an application was received after the date of the enactment of this Act, unless the person applying for the type certificate demonstrates that the civil jet complies with stage 5 noise levels.

(b) APPLICABILITY OF STAGE 5 NOISE STANDARDS TO ALL CIVIL JETS.—On and after December 31, 2020, the Secretary may not issue a new type certificate for any civil jet for which an application was received after the date of the enactment of this Act, unless the person applying for the type certificate demonstrates that the civil jet complies with stage 5 noise levels.

SA 3673. Mr. REED submitted an amendment intended to be proposed to amendment SA 3464 submitted by Mr. THUNE (for himself and Mr. NELSON) to the bill H.R. 636, to amend the Internal Revenue Code of 1986 to permanently extend increased expensing limitations, and for other purposes; which was ordered to lie on the table; as follows:

At the end of part II of subtitle A of title II, add the following:

SEC. 2143. PROHIBITION ON OPERATION OF UNMANNED AIRCRAFT CARRYING A WEAPON.

(a) IN GENERAL.—Chapter 463 of title 49, United States Code, is amended by adding at the end the following:

''§ 46320. Prohibition on operation of unmanned aircraft carrying a weapon

''(a) IN GENERAL.—A person shall not operate an unmanned aircraft with a weapon attached to, installed on, or otherwise carried by the aircraft.

''(b) PENALTIES.—A person who violates subsection (a)—

''(1) shall be liable to the United States Government for a civil penalty of not more than $27,500; and

''(2) may be fined under title 18, imprisoned for not more than 5 years, or both.

''(c) NONAPPLICATION TO PUBLIC AIRCRAFT.—This section does not apply to public aircraft.

''(d) RULE OF CONSTRUCTION.—Nothing in this section shall be construed to affect the authority of the Administrator with respect to manned or unmanned aircraft.

''(e) DEFINITIONS.—In this section:

''(1) UNMANNED AIRCRAFT.—The term 'unmanned aircraft' has the meaning given that term in section 44801.

''(2) WEAPON.—The term 'weapon'—

''(A) means a weapon, device, instrument, material, or substance, animate or inanimate, that is used for, or is readily capable of, causing death or serious bodily injury; and

''(B) includes a firearm or destructive device (as those terms are defined in section 921 of title 18).''.

(b) CONFORMING AMENDMENT.—Section 46301(d)(2) of such title is amended, in the first sentence, by inserting ''section 46320,'' before ''or section 47107(b)''.

(c) CLERICAL AMENDMENT.—The analysis for chapter 463 of such title is amended by inserting after the item relating to section 46319 the following:

''46320. Prohibition on operation of unmanned aircraft carrying a weapon.''.

SA 3674. Mr. REED submitted an amendment intended to be proposed to amendment SA 3464 submitted by Mr. THUNE (for himself and Mr. NELSON) to the bill H.R. 636, to amend the Internal Revenue Code of 1986 to permanently extend increased expensing limitations, and for other purposes; which was ordered to lie on the table; as follows:

At the appropriate place, insert the following:

SEC. ____. REIMBURSEMENT FOR AIRPORT SECURITY PROJECTS.

Paragraph (3) of section 44923(h) is amended to read as follows:

''(3) DISCRETIONARY GRANTS.—

''(A) IN GENERAL.—Of the amount made available under paragraph (1) for a fiscal year, up to $ 50,000,000 shall be used to make discretionary grants, including other transaction agreements for airport security improvement projects, with priority given to small hub airports and nonhub airports.

''(B) REIMBURSEMENT.—For each fiscal year, of the amount available under paragraph (1), up to $20,000,000 shall be made available for reimbursement to airports that have incurred eligible costs under section 1604(b)(2) of the Implementing Recommendations of the 9/11 Commission Act of 2007 (Public Law 110–53; 121 Stat. 481).''.

SA 3675. Ms. HEITKAMP (for herself and Mr. INHOFE) submitted an amendment intended to be proposed to amendment SA 3464 submitted by Mr. THUNE (for himself and Mr. NELSON) to the bill H.R. 636, to amend the Internal Revenue Code of 1986 to permanently extend increased expensing limitations, and for other purposes; which was ordered to lie on the table; as follows:

On page 91, between lines 6 and 7, insert the following:

''(b) ASSISTANCE BY FEDERAL UNMANNED AIRCRAFT SYSTEMS.—The Secretary shall include, in the guidance regarding the operation of public unmanned aircraft systems required by subsection (a), guidance with respect to allowing unmanned aircraft systems owned or operated by a Federal agency to assist Federal, State, local, or tribal law enforcement organizations in conducting law enforcement activities in the national airspace system.

SA 3676. Ms. HEITKAMP submitted an amendment intended to be proposed to amendment SA 3464 submitted by Mr. THUNE (for himself and Mr. NELSON) to the bill H.R. 636, to amend the Internal Revenue Code of 1986 to permanently extend increased expensing limitations, and for other purposes; which was ordered to lie on the table; as follows:

On page 86, line 19, insert after ''unmanned aircraft'' the following: '', including in circumstances in which there has been significant experience operating the associated unmanned aircraft within a country with which the United States maintains a trusted aviation relationship''.

SA 3677. Mr. MARKEY submitted an amendment intended to be proposed to amendment SA 3464 submitted by Mr. THUNE (for himself and Mr. NELSON) to the bill H.R. 636, to amend the Internal Revenue Code of 1986 to permanently extend increased expensing limitations, and for other purposes; which was ordered to lie on the table; as follows:

On page 61, line 14, insert ``, except those operated for news gathering activities protected by the First Amendment to the Constitution of the United States'' after ``system''.

SA 3678. Ms. HIRONO (for herself, Mr. BROWN, Ms. WARREN, and Mrs. SHAHEEN) submitted an amendment intended to be proposed to amendment SA 3464 submitted by Mr. THUNE (for himself and Mr. NELSON) to the bill H.R. 636, to amend the Internal Revenue Code of 1986 to permanently extend increased expensing limitations, and for other purposes; which was ordered to lie on the table; as follows:

In section 2306, strike subsections (b) and (c) and insert the following:

(b) CONTENTS.—In revising the rule under subsection (a), the Administrator shall ensure that—

(1) a flight attendant scheduled to a duty period of 14 hours or less is given a scheduled rest period of at least 10 consecutive hours; and

(2) the rest period required under paragraph (1) is not reduced under any circumstances.

SA 3679. Mr. MCCONNELL (for Mr. THUNE (for himself and Mr. NELSON)) proposed an amendment to the bill H.R. 636, to amend the Internal Revenue Code of 1986 to permanently extend increased expensing limitations, and for other purposes; as follows:

Strike all after the enacting clause and insert the following:

SECTION 1. SHORT TITLE; TABLE OF CONTENTS.

(a) SHORT TITLE.—This Act may be cited as the ''Federal Aviation Administration Reauthorization Act of 2016''.

(b) TABLE OF CONTENTS.—The table of contents of this Act is as follows:

Sec. 1. Short title; table of contents.
Sec. 2. References to title 49, United States Code.
Sec. 3. Definition of appropriate committees of Congress.
Sec. 4. Effective date.

TITLE I—AUTHORIZATIONS

Subtitle A—Funding of FAA Programs

Sec. 1001. Airport planning and development and noise compatibility planning and programs.
Sec. 1002. Air navigation facilities and equipment.
Sec. 1003. FAA operations.
Sec. 1004. FAA research and development.
Sec. 1005. Funding for aviation programs.
Sec. 1006. Extension of expiring authorities.

Subtitle B—Airport Improvement Program Modifications

Sec. 1201. Small airport regulation relief.
Sec. 1202. Priority review of construction projects in cold weather States.
Sec. 1203. State block grants updates.
Sec. 1204. Contract Tower Program updates.
Sec. 1205. Approval of certain applications for the contract tower program.
Sec. 1206. Remote towers.
Sec. 1207. Midway Island airport.
Sec. 1208. Airport road funding.
Sec. 1209. Repeal of inherently low-emission airport vehicle pilot program.
Sec. 1210. Modification of zero-emission airport vehicles and infrastructure pilot program.
Sec. 1211. Repeal of airport ground support equipment emissions retrofit pilot program.
Sec. 1212. Funding eligibility for airport energy efficiency assessments.
Sec. 1213. Recycling plans; safety projects at unclassified airports.
Sec. 1214. Transfers of instrument landing systems.
Sec. 1215. Non-movement area surveillance pilot program.
Sec. 1216. Amendments to definitions.
Sec. 1217. Clarification of noise exposure map updates.
Sec. 1218. Provision of facilities.
Sec. 1219. Contract weather observers.
Sec. 1220. Federal share adjustment.
Sec. 1221. Miscellaneous technical amendments.
Sec. 1222. Mothers' rooms at airports.
Sec. 1223. Eligibility for airport development grants at airports that enter into certain leases with components of the Armed Forces.
Sec. 1224. Clarification of definition of aviation-related activity for hangar use.
Sec. 1225. Use of airport improvement program funds for runway safety repairs.
Sec. 1226. Definition of small business concern.

Subtitle C—Passenger Facility Charges

Sec. 1301. PFC streamlining.
Sec. 1302. Intermodal access projects.
Sec. 1303. Use of revenue at a previously associated airport.
Sec. 1304. Future aviation infrastructure and financing study.

TITLE II—SAFETY

Subtitle A—Unmanned Aircraft Systems Reform

Sec. 2001. Definitions.

PART I—PRIVACY AND TRANSPARENCY

Sec. 2101. Unmanned aircraft systems privacy policy.
Sec. 2102. Sense of Congress.
Sec. 2103. Federal Trade Commission authority.
Sec. 2104. National Telecommunications and Information Administration multi-stakeholder process.
Sec. 2105. Identification standards.
Sec. 2106. Commercial and governmental operators.
Sec. 2107. Analysis of current remedies under Federal, State, and local jurisdictions.

PART II—UNMANNED AIRCRAFT SYSTEMS

Sec. 2121. Definitions.
Sec. 2122. Utilization of unmanned aircraft system test sites.
Sec. 2123. Additional research, development, and testing.
Sec. 2124. Safety standards.
Sec. 2125. Unmanned aircraft systems in the Arctic.
Sec. 2126. Special authority for certain unmanned aircraft systems.
Sec. 2127. Additional rulemaking authority.
Sec. 2128. Governmental unmanned aircraft systems.
Sec. 2129. Special rules for model aircraft.
Sec. 2130. Unmanned aircraft systems aeronautical knowledge and safety.
Sec. 2131. Safety statements.
Sec. 2132. Treatment of unmanned aircraft operating underground.
Sec. 2133. Enforcement.
Sec. 2134. Aviation emergency safety public services disruption.
Sec. 2135. Pilot project for airport safety and airspace hazard mitigation.
Sec. 2136. Contribution to financing of regulatory functions.
Sec. 2137. Sense of Congress regarding small UAS rulemaking.
Sec. 2138. Unmanned aircraft systems traffic management.
Sec. 2139. Emergency exemption process.
Sec. 2140. Public uas operations by tribal governments.
Sec. 2141. Carriage of property by small unmanned aircraft systems for compensation or hire.
Sec. 2142. Collegiate Training Initiative program for unmanned aircraft systems.
Sec. 2143. Incorporation of Federal Aviation Administration occupations relating to unmanned aircraft into veterans employment programs of the Administration.

PART III—TRANSITION AND SAVINGS PROVISIONS

Sec. 2151. Senior advisor for unmanned aircraft systems integration.
Sec. 2152. Effect on other laws.
Sec. 2153. Spectrum.
Sec. 2154. Applications for designation.
Sec. 2155. Use of unmanned aircraft systems at institutions of higher education.
Sec. 2156. Transition language.

PART IV—OPERATOR SAFETY

Sec. 2161. Short title.
Sec. 2162. Findings; sense of Congress.
Sec. 2163. Unsafe operation of unmanned aircraft.

Subtitle B—FAA Safety Certification Reform

PART I—GENERAL PROVISIONS

Sec. 2211. Definitions.
Sec. 2212. Safety oversight and certification advisory committee.

PART II—AIRCRAFT CERTIFICATION REFORM

Sec. 2221. Aircraft certification performance objectives and metrics.
Sec. 2222. Organization designation authorizations.
Sec. 2223. ODA review.
Sec. 2224. Type certification resolution process.
Sec. 2225. Safety enhancing technologies for small general aviation airplanes.
Sec. 2226. Streamlining certification of small general aviation airplanes.

PART III—FLIGHT STANDARDS REFORM

Sec. 2231. Flight standards performance objectives and metrics.
Sec. 2232. FAA task force on flight standards reform.
Sec. 2233. Centralized safety guidance database.
Sec. 2234. Regulatory Consistency Communications Board.
Sec. 2235. Flight standards service realignment feasibility report.
Sec. 2236. Additional certification resources.

PART IV—SAFETY WORKFORCE

Sec. 2241. Safety workforce training strategy.
Sec. 2242. Workforce study.

PART V—INTERNATIONAL AVIATION

Sec. 2251. Promotion of United States aerospace standards, products, and services abroad.
Sec. 2252. Bilateral exchanges of safety oversight responsibilities.
Sec. 2253. FAA leadership abroad.

Sec. 2254. Registration, certification, and related fees.
Subtitle C—Airline Passenger Safety and Protections
Sec. 2301. Pilot records database deadline.
Sec. 2302. Access to air carrier flight decks.
Sec. 2303. Aircraft tracking and flight data.
Sec. 2304. Automation reliance improvements.
Sec. 2305. Enhanced mental health screening for pilots.
Sec. 2306. Flight attendant duty period limitations and rest requirements.
Sec. 2307. Training to combat human trafficking for certain air carrier employees.
Sec. 2308. Report on obsolete test equipment.
Sec. 2309. Plan for systems to provide direct warnings of potential runway incursions.
Sec. 2310. Laser pointer incidents.
Sec. 2311. Helicopter air ambulance operations data and reports.
Sec. 2312. Part 135 accident and incident data.
Sec. 2313. Definition of human factors.
Sec. 2314. Sense of Congress; pilot in command authority.
Sec. 2315. Enhancing ASIAS.
Sec. 2316. Improving runway safety.
Sec. 2317. Safe air transportation of lithium cells and batteries.
Sec. 2318. Prohibition on implementation of policy change to permit small, non-locking knives on aircraft.
Sec. 2319. Aircraft cabin evacuation procedures.
Sec. 2320. GAO study of universal deployment of advanced imaging technologies.
Subtitle D—General Aviation Safety
Sec. 2401. Automated weather observing systems policy.
Sec. 2402. Tower marking.
Sec. 2403. Crash-resistant fuel systems.
Sec. 2404. Requirement to consult with stakeholders in defining scope and requirements for Future Flight Service Program.
Sec. 2405. Heads-up guidance system technologies.
Subtitle E—General Provisions
Sec. 2501. Designated agency safety and health officer.
Sec. 2502. Repair stations located outside United States.
Sec. 2503. FAA technical training.
Sec. 2504. Safety critical staffing.
Sec. 2505. Approach control radar in all air traffic control towers.
Sec. 2506. Airspace management advisory committee.
Subtitle F—Third Class Medical Reform and General Aviation Pilot Protections
Sec. 2601. Short title.
Sec. 2602. Medical certification of certain small aircraft pilots.
Sec. 2603. Expansion of pilot's bill of rights.
Sec. 2604. Limitations on reexamination of certificate holders.
Sec. 2605. Expediting updates to notam program.
Sec. 2606. Accessibility of certain flight data.
Sec. 2607. Authority for legal counsel to issue certain notices.
TITLE III—AIR SERVICE IMPROVEMENTS
Sec. 3001. Definitions.
Subtitle A—Passenger Air Service Improvements
Sec. 3101. Causes of airline delays or cancellations.
Sec. 3102. Involuntary changes to itineraries.
Sec. 3103. Additional consumer protections.
Sec. 3104. Addressing the needs of families of passengers involved in aircraft accidents.
Sec. 3105. Emergency medical kits.
Sec. 3106. Travelers with disabilities.
Sec. 3107. Extension of Advisory Committee for Aviation Consumer Protection.
Sec. 3108. Extension of competitive access reports.
Sec. 3109. Refunds for delayed baggage.
Sec. 3110. Refunds for other fees that are not honored by a covered air carrier.
Sec. 3111. Disclosure of fees to consumers.
Sec. 3112. Seat assignments.
Sec. 3113. Lasting improvements to family travel.
Sec. 3114. Consumer complaint process improvement.
Sec. 3115. Online access to aviation consumer protection information.
Sec. 3116. Study on in cabin wheelchair restraint systems.
Sec. 3117. Training policies regarding assistance for persons with disabilities.
Sec. 3118. Advisory committee on the air travel needs of passengers with disabilities.
Sec. 3119. Report on covered air carrier change, cancellation, and baggage fees.
Sec. 3120. Enforcement of aviation consumer protection rules.
Sec. 3121. Dimensions for passenger seats.
Sec. 3122. Cell phone voice communications.
Sec. 3123. Availability of slots for new entrant air carriers at Newark Liberty International Airport.
Subtitle B—Essential Air Service
Sec. 3201. Essential air service.
Sec. 3202. Small community air service development program.
Sec. 3203. Small community program amendments.
Sec. 3204. Waivers.
Sec. 3205. Working group on improving air service to small communities.
TITLE IV—NEXTGEN AND FAA ORGANIZATION
Sec. 4001. Definitions.
Subtitle A—Next Generation Air Transportation System
Sec. 4101. Return on investment assessment.
Sec. 4102. Ensuring FAA readiness to use new technology.
Sec. 4103. NextGen annual performance goals.
Sec. 4104. Facility outage contingency plans.
Sec. 4105. ADS–B mandate assessment.
Sec. 4106. Nextgen interoperability.
Sec. 4107. NextGen transition management.
Sec. 4108. Implementation of NextGen operational improvements.
Sec. 4109. Cybersecurity.
Sec. 4110. Securing aircraft avionics systems.
Sec. 4111. Defining NextGen.
Sec. 4112. Human factors.
Sec. 4113. Major acquisition reports.
Sec. 4114. Equipage mandates.
Sec. 4115. Workforce.
Sec. 4116. Architectural leadership.
Sec. 4117. Programmatic risk management.
Sec. 4118. NextGen prioritization.
Subtitle B—Administration Organization and Employees
Sec. 4201. Cost-saving initiatives.
Sec. 4202. Treatment of essential employees during furloughs.
Sec. 4203. Controller candidate interviews.
Sec. 4204. Hiring of air traffic controllers.
Sec. 4205. Computation of basic annuity for certain air traffic controllers.
Sec. 4206. Air traffic services at aviation events.
Sec. 4207. Full annuity supplement for certain air traffic controllers.
Sec. 4208. Inclusion of disabled veteran leave in Federal Aviation Administration personnel management system.
TITLE V—MISCELLANEOUS
Sec. 5001. National Transportation Safety Board investigative officers.
Sec. 5002. Performance-Based Navigation.
Sec. 5003. Overflights of national parks.
Sec. 5004. Navigable airspace analysis for commercial space launch site runways.
Sec. 5005. Survey and report on spaceport development.
Sec. 5006. Aviation fuel.
Sec. 5007. Comprehensive Aviation Preparedness Plan.
Sec. 5008. Advanced Materials Center of Excellence.
Sec. 5009. Interference with airline employees.
Sec. 5010. Secondary cockpit barriers.
Sec. 5011. GAO evaluation and audit.
Sec. 5012. Federal Aviation Administration performance measures and targets.
Sec. 5013. Staffing of certain air traffic control towers.
Sec. 5014. Critical airfield markings.
Sec. 5015. Research and deployment of certain airfield pavement technologies.
Sec. 5016. Report on general aviation flight sharing.
Sec. 5017. Increase in duration of general aviation aircraft registration.
Sec. 5018. Modification of limitation of liability relating to aircraft.
Sec. 5019. Government Accountability Office study of illegal drugs seized at international airports in the United States.
Sec. 5020. Sense of Congress on preventing the transportation of disease-carrying mosquitoes and other insects on commercial aircraft.
Sec. 5021. Work plan for the New York/New Jersey/Philadelphia metroplex program.
Sec. 5022. Report on plans for air traffic control facilities in the New York City and Newark region.
Sec. 5023. GAO study of international airline alliances.
Sec. 5024. Treatment of multi-year lessees of large and turbine-powered multiengine aircraft.
Sec. 5025. Evaluation of emerging technologies.
Sec. 5026. Student outreach report.
Sec. 5027. Right to privacy when using air traffic control system.
Sec. 5028. Conduct of security screening by the Transportation Security Administration at certain airports.
Sec. 5029. Aviation cybersecurity.
Sec. 5030. Prohibitions against smoking on passenger flights.
Sec. 5031. National multimodal freight advisory committee.
Sec. 5032. Technical and conforming amendments.
Sec. 5033. Visible Deterrent.
Sec. 5034. Law enforcement training for mass casualty and active shooter incidents.
Sec. 5035. Assistance to airports and surface transportation systems.
Sec. 5036. Authorization of certain flights by Stage 2 airplanes.
TITLE VI—TRANSPORTATION SECURITY AND TERRORISM PREVENTION
Subtitle A—Airport Security Enhancement and Oversight Act
Sec. 6101. Short title.

Sec. 6102. Findings.
Sec. 6103. Definitions.
Sec. 6104. Threat assessment.
Sec. 6105. Oversight.
Sec. 6106. Credentials.
Sec. 6107. Vetting.
Sec. 6108. Metrics.
Sec. 6109. Inspections and assessments.
Sec. 6110. Covert testing.
Sec. 6111. Security directives.
Sec. 6112. Implementation report.
Sec. 6113. Miscellaneous amendments.
Subtitle B—TSA PreCheck Expansion Act
Sec. 6201. Short title.
Sec. 6202. Definitions.
Sec. 6203. PreCheck Program authorization.
Sec. 6204. PreCheck Program enrollment expansion.
Subtitle C—Securing Aviation From Foreign Entry Points and Guarding Airports Through Enhanced Security Act of 2016
Sec. 6301. Short title.
Sec. 6302. Last point of departure airport security assessment.
Sec. 6303. Security coordination enhancement plan.
Sec. 6304. Workforce assessment.
Sec. 6305. Donation of screening equipment to protect the United States.
Sec. 6306. National cargo security program.
Subtitle D—Miscellaneous
Sec. 6401. International training and capacity development.
Sec. 6402. Checkpoints of the future.
TITLE VII—AIRPORT AND AIRWAY TRUST FUND PROVISIONS AND RELATED TAXES
Sec. 7101. Expenditure authority from Airport and Airway Trust Fund.
Sec. 7102. Extension of taxes funding Airport and Airway Trust Fund.

SEC. 2. REFERENCES TO TITLE 49, UNITED STATES CODE.

Except as otherwise expressly provided, wherever in this Act an amendment or repeal is expressed in terms of an amendment to, or repeal of, a section or other provision, the reference shall be considered to be made to a section or other provision of title 49, United States Code.

SEC. 3. DEFINITION OF APPROPRIATE COMMITTEES OF CONGRESS.

In this Act, unless expressly provided otherwise, the term ''appropriate committees of Congress'' means the Committee on Commerce, Science, and Transportation of the Senate and the Committee on Transportation and Infrastructure of the House of Representatives.

SEC. 4. EFFECTIVE DATE.

Except as otherwise expressly provided, this Act and the amendments made by this Act shall take effect on the date of enactment of this Act.

TITLE I—AUTHORIZATIONS

Subtitle A—Funding of FAA Programs

SEC. 1001. AIRPORT PLANNING AND DEVELOPMENT AND NOISE COMPATIBILITY PLANNING AND PROGRAMS.

(a) AUTHORIZATION.—Section 48103(a) is amended by striking ''section 47505(a)(2), and carrying out noise compatibility programs under section 47504(c) $3,350,000,000 for each of fiscal years 2012 through 2015 and $2,652,083,333 for the period beginning on October 1, 2015, and ending on July 15, 2016'' and inserting ''section 47505(a)(2), carrying out noise compatibility programs under section 47504(c), for an airport cooperative research program under section 44511, for Airports Technology-Safety research, and Airports Technology-Efficiency research, $3,350,000,000 for fiscal year 2016 and $3,750,000,000 for fiscal year 2017''.

(b) OBLIGATIONAL AUTHORITY.—Section 47104(c) is amended in the matter preceding paragraph (1) by striking ''July 15, 2016'' and inserting ''September 30, 2017''.

SEC. 1002. AIR NAVIGATION FACILITIES AND EQUIPMENT.

Section 48101(a) is amended by striking paragraphs (1) through (5) and inserting the following:

''(1) $2,855,241,025 for fiscal year 2016.

''(2) $2,862,020,524 for fiscal year 2017.''.

SEC. 1003. FAA OPERATIONS.

(a) IN GENERAL.—Section 106(k)(1) is amended by striking subparagraphs (A) through (E) and inserting the following:

''(A) $9,910,009,314 for fiscal year 2016; and

''(B) $10,025,361,111 for fiscal year 2017.''.

(b) AUTHORIZED EXPENDITURES.—Section 106(k)(2) is amended by striking ''for fiscal years 2012 through 2015'' each place it appears and inserting ''for fiscal years 2016 through 2017''.

(c) AUTHORITY TO TRANSFER FUNDS.—Section 106(k)(3) is amended by striking ''2012 through 2015 and for the period beginning on October 1, 2015, and ending on July 15, 2016'' and inserting ''2016 through 2017''.

SEC. 1004. FAA RESEARCH AND DEVELOPMENT.

Section 48102 is amended—

(1) in subsection (a)—

(A) in the matter preceding paragraph (1)—

(i) by striking ''44511-44513'' and inserting ''44512-44513''; and

(ii) by striking ''and, for each of fiscal years 2012 through 2015, under subsection (g)'';

(B) in paragraph (8), by striking ''; and'' and inserting a semicolon; and

(C) by striking paragraph (9) and inserting the following:

''(9) $166,000,000 for fiscal year 2016; and

''(10) $169,000,000 for fiscal year 2017.''; and

(2) in subsection (b), by striking paragraph (3).

SEC. 1005. FUNDING FOR AVIATION PROGRAMS.

(a) AIRPORT AND AIRWAY TRUST FUND GUARANTEE.—Section 48114(a)(1)(A) is amended to read as follows:

''(A) IN GENERAL.—The total budget resources made available from the Airport and Airway Trust Fund each fiscal year under sections 48101, 48102, 48103, and 106(k)—

''(i) shall in each of fiscal years 2016 through 2017, be equal to the sum of—

''(I) 90 percent of the estimated level of receipts plus interest credited to the Airport and Airway Trust Fund for that fiscal year; and

''(II) the actual level of receipts plus interest credited to the Airport and Airway Trust Fund for the second preceding fiscal year minus the total amount made available for obligation from the Airport and Airway Trust Fund for the second preceding fiscal year; and

''(ii) may be used only for the aviation investment programs listed in subsection (b)(1).''.

(b) ENFORCEMENT OF GUARANTEES.—Section 48114(c)(2) is amended by striking ''2016'' and inserting ''2017''.

SEC. 1006. EXTENSION OF EXPIRING AUTHORITIES.

(a) MARSHALL ISLANDS, MICRONESIA, AND PALAU.—Section 47115(j) is amended by striking ''2015 and for the period beginning on October 1, 2015, and ending on July 15, 2016,'' and inserting ''2017''.

(b) EXTENSION OF COMPATIBLE LAND USE PLANNING AND PROJECTS BY STATE AND LOCAL GOVERNMENTS.—Section 47141(f) is amended by striking ''July 15, 2016'' and inserting ''September 30, 2017''.

(c) INSPECTOR GENERAL REPORT ON PARTICIPATION IN FAA PROGRAMS BY DISADVANTAGED SMALL BUSINESS CONCERNS.—

(1) IN GENERAL.—For each of fiscal years 2016 through 2017, the Inspector General of the Department of Transportation shall submit to Congress a report on the number of new small business concerns owned and controlled by socially and economically disadvantaged individuals, including those owned by veterans, that participated in the programs and activities funded using the amounts made available under this Act.

(2) NEW SMALL BUSINESS CONCERNS.—For purposes of paragraph (1), a new small business concern is a small business concern that did not participate in the programs and activities described in paragraph (1) in a previous fiscal year.

(3) CONTENTS.—The report shall include—

(A) a list of the top 25 and bottom 25 large and medium hub airports in terms of providing opportunities for small business concerns owned and controlled by socially and economically disadvantaged individuals to participate in the programs and activities funded using the amounts made available under this Act;

(B) the results of an assessment, to be conducted by the Inspector General, on the reasons why the top airports have been successful in providing such opportunities; and

(C) recommendations to the Administrator of the Federal Aviation Administration and Congress on methods for other airports to achieve results similar to those of the top airports.

(d) EXTENSION OF PILOT PROGRAM FOR REDEVELOPMENT OF AIRPORT PROPERTIES.—Section 822(k) of the FAA Modernization and Reform Act of 2012 (49 U.S.C. 47141 note) is amended by striking ''July 15, 2016'' and inserting ''September 30, 2017''.

Subtitle B—Airport Improvement Program Modifications

SEC. 1201. SMALL AIRPORT REGULATION RELIEF.

Section 47114(c)(1)(F) is amended to read as follows:

''(F) SPECIAL RULE FOR FISCAL YEARS 2016 THROUGH 2017.—Notwithstanding subparagraph (A), the Secretary shall apportion to a sponsor of an airport under that subparagraph for each of fiscal years 2016 through 2017 an amount based on the number of passenger boardings at the airport during calendar year 2012 if the airport—

''(i) had 10,000 or more passenger boardings during calendar year 2012;

''(ii) had fewer than 10,000 passenger boardings during the calendar year used to calculate the apportionment for fiscal year 2016 or 2017 under subparagraph (A); and

''(iii) had scheduled air service in the calendar year used to calculate the apportionment.''.

SEC. 1202. PRIORITY REVIEW OF CONSTRUCTION PROJECTS IN COLD WEATHER STATES.

(a) IN GENERAL.—The Administrator of the Federal Aviation Administration, to the extent practicable, shall schedule the Administrator's review of construction projects so that projects to be carried out in the States in which the weather during a typical calendar year prevents major construction projects from being carried out before May 1 are reviewed as early as possible.

(b) REPORT.—The Administrator shall update the appropriate committees of Congress annually on the effectiveness of the review and prioritization.

SEC. 1203. STATE BLOCK GRANTS UPDATES.

Section 47128(a) is amended by striking ''9 qualified States for fiscal years 2000 and 2001 and 10 qualified States for each fiscal year thereafter'' and inserting ''15 qualified States for fiscal year 2016 and each fiscal year thereafter''.

SEC. 1204. CONTRACT TOWER PROGRAM UPDATES.

(a) SPECIAL RULE.—Section 47124(b)(1)(B) is amended by striking ''after such determination is made'' and inserting ''after the end of the period described in subsection (d)(6)(C)''.

(b) CONTRACT AIR TRAFFIC CONTROL TOWER COST-SHARE PROGRAM; FUNDING.—Section 47124(b)(3)(E) is amended to read as follows:

''(E) FUNDING.—Of the amounts appropriated under section 106(k)(1), such sums as may be necessary may be used to carry out this paragraph.''.

(c) CAP ON FEDERAL SHARE OF COST OF CONSTRUCTION.—Section 47124(b)(4)(C) is amended by striking ''$2,000,000'' and inserting ''$4,000,000''.

(d) COST BENEFIT RATIO REVISION.—Section 47124 is amended by adding at the end the following:

''(d) COST BENEFIT RATIOS.—

''(1) CONTRACT AIR TRAFFIC CONTROL TOWER PROGRAM AT COST-SHARE AIRPORTS.—Beginning on the date of enactment of the Federal Aviation Administration Reauthorization Act of 2016, if an air traffic control tower is operating under the Cost-share Program, the Secretary shall annually calculate a new benefit-to-cost ratio for the tower.

''(2) CONTRACT TOWER PROGRAM AT NON-COST-SHARE AIRPORTS.—Beginning on the date of enactment of the Federal Aviation Administration Reauthorization Act of 2016, if a tower is operating under the Contract Tower Program and continued under subsection (b)(1), the Secretary shall not calculate a new benefit-to-cost ratio for the tower unless the annual aircraft traffic at the airport where the tower is located decreases by more than 25 percent from the previous year or by more than 60 percent over a 3-year period.

''(3) CONSIDERATIONS.—In establishing a benefit-to-cost ratio under paragraph (1) or paragraph (2), the Secretary may consider only the following costs:

''(A) The Federal Aviation Administration's actual cost of wages and benefits of personnel working at the tower.

''(B) The Federal Aviation Administration's actual telecommunications costs of the tower.

''(C) Relocation and replacement costs of equipment of the Federal Aviation Administration associated with the tower, if paid for by the Federal Aviation Administration.

''(D) Logistics, such as direct costs associated with establishing or updating the tower's interface with other systems and equipment of the Federal Aviation Administration, if paid for by the Federal Aviation Administration.

''(4) EXCLUSIONS.—In establishing a benefit-to-cost ratio under paragraph (1) or paragraph (2), the Secretary may not consider the following costs:

''(A) Airway facilities costs, including labor and other costs associated with maintaining and repairing the systems and equipment of the Federal Aviation Administration.

''(B) Costs for depreciating the building and equipment owned by the Federal Aviation Administration.

''(C) Indirect overhead costs of the Federal Aviation Administration.

''(D) Costs for utilities, janitorial, and other services paid for or provided by the airport or the State or political subdivision of a State having jurisdiction over the airport where the tower is located.

''(E) The cost of new or replacement equipment, or construction of a new or replacement tower, if the costs incurred were incurred by the airport or the State or political subdivision of a State having jurisdiction over the airport where the tower is or will be located.

''(F) Other expenses of the Federal Aviation Administration not directly associated with the actual operation of the tower.

''(5) MARGIN OF ERROR.—The Secretary shall add a 5 percent margin of error to a benefit-to-cost ratio determination to acknowledge and account for any direct or indirect factors that are not included in the criteria the Secretary used in calculating the benefit-to-cost ratio.

''(6) PROCEDURES.—The Secretary shall establish procedures—

''(A) to allow an airport or the State or political subdivision of a State having jurisdiction over the airport where the tower is located not less than 90 days following the receipt of an initial benefit-to-cost ratio determination from the Secretary—

''(i) to request the Secretary reconsider that determination; and

''(ii) to submit updated or additional data to the Secretary in support of the reconsideration;

''(B) to allow the Secretary not more than 90 days to review the data submitted under subparagraph (A)(ii) and respond to the request under subparagraph (A)(i);

''(C) to allow the airport, State, or political subdivision of a State, as applicable, 30 days following the date of the response under subparagraph (B) to review the response before any action is taken based on a benefit-to-cost determination; and

''(D) to provide, after the end of the period described in subparagraph (C), an 18-month grace period before cost-share payments are due from the airport, State, or political subdivision of a State if as a result of the benefit-to-cost ratio determination the airport, State, or political subdivision, as applicable, is required to transition to the Cost-share Program.

''(e) DEFINITIONS.—In this section:

''(1) CONTRACT TOWER PROGRAM.—The term 'Contract Tower Program' means the level I air traffic control tower contract program established under subsection (a) and continued under subsection (b)(1).

''(2) COST-SHARE PROGRAM.—The term 'Cost-share Program' means the cost-share program established under subsection (b)(3).''.

(e) CONFORMING AMENDMENTS.—Section 47124(b) is amended—

(1) in paragraph (1)(C), by striking ''the program established under paragraph (3)'' and inserting ''the Cost-share Program'';

(2) in paragraph (3)—

(A) in the heading, by striking ''CONTRACT AIR TRAFFIC CONTROL TOWER PROGRAM'' and inserting ''COST-SHARE PROGRAM'';

(B) in subparagraph (A), by striking ''contract tower program established under subsection (a) and continued under paragraph (1) (in this paragraph referred to as the 'Contract Tower Program')'' and inserting ''Contract Tower Program'';

(C) in subparagraph (B), by striking ''In carrying out the program'' and inserting ''In carrying out the Cost-share Program'';

(D) in subparagraph (C), by striking ''participate in the program'' and inserting ''participate in the Cost-share Program'';

(E) in subparagraph (D), by striking ''under the program'' and inserting ''under the Cost-share Program''; and

(F) in subparagraph (F), by striking ''the program continued under paragraph (1)'' and inserting ''the Contract Tower Program''; and

(3) in paragraph (4)(B)(i)(I), by striking ''contract tower program established under subsection (a) and continued under paragraph (1) or the pilot program established under paragraph (3)'' and inserting ''Contract Tower Program or the Cost-share Program''.

(f) EXEMPTION.—Section 47124(b)(3)(D) is amended by adding at the end the following: ''Airports with both Part 121 air service and more than 25,000 passenger enplanements in calendar year 2014 shall be exempt from any cost share requirement under the Cost-share Program.''.

(g) SAVINGS PROVISION.—Notwithstanding the amendments made by this section, the towers for which assistance is being provided under section 41724 of title 49, United States Code, on the day before the date of enactment of this Act may continue to be provided such assistance under the terms of that section as in effect on that day.

SEC. 1205. APPROVAL OF CERTAIN APPLICATIONS FOR THE CONTRACT TOWER PROGRAM.

(a) IN GENERAL.—If the Administrator of the Federal Aviation Administration has not implemented a revised cost-benefit methodology for purposes of determining eligibility for the Contract Tower Program before the date that is 30 days after the date of enactment of this Act, any air traffic control tower with an application for participation in the Contract Tower Program pending as of January 1, 2016, shall be approved for participation in the Contract Tower Program if the Administrator determines the tower is eligible under the criteria set forth in the Federal Aviation Administration report, Establishment and Discontinuance Criteria for Airport Traffic Control Towers, dated August 1990 (FAA–APO–90–7).

(b) REQUESTS FOR ADDITIONAL AUTHORITY.—The Administrator shall respond not later than 30 days after the date the Administrator receives a formal request from an airport and air traffic control contractor for additional authority to expand contract tower operational hours and staff to accommodate flight traffic outside of current tower operational hours.

(c) DEFINITION OF CONTRACT TOWER PROGRAM.—In this section, the term ''Contract Tower Program'' has the meaning given the term in section 47124(e) of title 49, United States Code.

SEC. 1206. REMOTE TOWERS.

(a) PILOT PROGRAM.—

(1) ESTABLISHMENT.—The Administrator of the Federal Aviation Administration shall establish—

(A) in consultation with airport operators and general aviation users, a pilot program at public-use airports to construct and operate remote towers; and

(B) a selection process for participation in the pilot program.

(2) SAFETY CONSIDERATIONS.—In establishing the pilot program, the Administrator shall consult with operators of remote towers in foreign countries to design the pilot program in a manner that leverages as many safety and airspace efficiency benefits as possible.

(3) REQUIREMENTS.—In selecting the airports for participation in the pilot program, the Administrator shall—

(A) to the extent practicable, ensure that at least 2 different vendors of remote tower systems participate;

(B) include at least 1 airport currently in the Contract Tower Program and at least 1 airport that does not have an air traffic control tower; and

(C) clearly identify the research questions that will be addressed at each airport.

(4) RESEARCH.—In selecting an airport for participation in the pilot program, the Administrator shall consider—

(A) how inclusion of that airport will add research value to assist the Administrator in evaluating the feasibility, safety, and cost-benefits of remote towers;

(B) the amount and variety of air traffic at an airport; and

(C) the costs and benefits of including that airport.

(5) DATA.—The Administrator shall clearly identify and collect air traffic control information and data from participating airports that will assist the Administrator in evaluating the feasibility, safety, and cost-benefits of remote towers.

(6) REPORT.—Not later than 1 year after the date the first remote tower is operational, and annually thereafter, the Administrator shall submit to the appropriate committees of Congress a report—

(A) detailing any benefits, costs, or safety improvements associated with the use of the remote towers; and

(B) evaluating the feasibility of using remote towers, particularly in the Contract Tower Program and for airports without any air traffic control tower, or to improve safety at airports with towers.

(7) DEADLINE.—Not later than 1 year after the date of enactment of this Act, the Administrator shall select airports for participation in the pilot program.

(8) DEFINITIONS.—In this subsection:

(A) CONTRACT TOWER PROGRAM.—The term ''Contract Tower Program'' has the meaning given the term in section 47124(e) of title 49, United States Code.

(B) REMOTE TOWER.—The term ''remote tower'' means a system whereby air traffic services are provided to operators at an airport from a location that may not be on or near the airport.

(b) AIP FUNDING ELIGIBILITY.—For purposes of the pilot program under subsection (a), and after certificated systems are available, constructing a remote tower or acquiring and installing air traffic control, communications, or related equipment for a remote tower shall be considered airport development (as defined in section 47102 of title 49, United States Code) for purposes of subchapter I of chapter 471 of that title if components are installed and used at the airport, except for off-airport sensors installed on leased towers, as needed.

SEC. 1207. MIDWAY ISLAND AIRPORT.

Section 186(d) of the Vision 100—Century of Aviation Reauthorization Act (Public Law 108–176; 117 Stat. 2518) is amended by striking ''and for the period beginning on October 1, 2015, and ending on July 15, 2016,'' and inserting ''and for fiscal years 2016 through 2017''.

SEC. 1208. AIRPORT ROAD FUNDING.

(a) AIRPORT DEVELOPMENT GRANT ASSURANCES.—Section 47107(b) is amended by adding at the end the following:

''(4) This subsection does not prevent the use of airport revenue for the maintenance and improvement of the on-airport portion of a surface transportation facility providing access to an airport and non-airport locations if the surface transportation facility is owned or operated by the airport owner or operator and the use of airport revenue is prorated to airport use and limited to portions of the facility located on the airport. The Secretary shall determine the maximum percentage contribution of airport revenue toward surface transportation facility maintenance or improvement, taking into consideration the current and projected use of the surface transportation facility located on the airport for airport and non-airport purposes. The de minimus use, as determined by the Secretary, of a surface transportation facility for non-airport purposes shall not require prorating.''.

(b) RESTRICTIONS ON THE USE OF AIRPORT REVENUE.—Section 47133(c) is amended—

(1) by inserting ''(1)'' before ''Nothing'' and indenting appropriately; and

(2) by adding at the end the following:

''(2) Nothing in this section may be construed to prevent the use of airport revenue for the prorated maintenance and improvement costs of the on-airport portion of the surface transportation facility, subject to the provisions of section 47107(b)(4).''.

SEC. 1209. REPEAL OF INHERENTLY LOW-EMISSION AIRPORT VEHICLE PILOT PROGRAM.

(a) REPEAL.—Section 47136 is repealed.

(b) TECHNICAL AND CONFORMING AMENDMENTS.—The table of contents for chapter 471 is amended by striking the item relating to section 47136 and inserting the following:

''47136. [Reserved].''.

SEC. 1210. MODIFICATION OF ZERO-EMISSION AIRPORT VEHICLES AND INFRASTRUCTURE PILOT PROGRAM.

Section 47136a is amended—

(1) in subsection (a), by striking '', including'' and inserting ''used exclusively for transporting passengers on-airport or for employee shuttle buses within the airport, including''; and

(2) in subsection (f), by inserting '', as in effect on the day before the date of enactment of the Federal Aviation Administration Reauthorization Act of 2016,'' after ''section 47136''.

SEC. 1211. REPEAL OF AIRPORT GROUND SUPPORT EQUIPMENT EMISSIONS RETROFIT PILOT PROGRAM.

(a) REPEAL.—Section 47140 is repealed.

(b) TECHNICAL AND CONFORMING AMENDMENTS.—The table of contents for chapter 471 is amended by striking the item relating to section 47140 and inserting the following:

''47140. [Reserved].''.

SEC. 1212. FUNDING ELIGIBILITY FOR AIRPORT ENERGY EFFICIENCY ASSESSMENTS.

(a) COST REIMBURSEMENTS.—Section 47140a(a) is amended by striking ''airport.'' and inserting ''airport, and to reimburse the airport sponsor for the costs incurred in conducting the assessment.''.

(b) SAFETY PRIORITY.—Section 47140a(b)(2) is amended by inserting '', including a certification that no safety projects would be deferred by prioritizing a grant under this section,'' after ''an application''.

SEC. 1213. RECYCLING PLANS; SAFETY PROJECTS AT UNCLASSIFIED AIRPORTS.

Section 47106(a) is amended—

(1) in paragraph (5), by striking ''; and'' and inserting a semicolon;

(2) in paragraph (6)—

(A) in the matter preceding subparagraph (A), by striking ''for an airport that has an airport master plan, the master plan addresses'' and inserting ''a master plan project, it will address''; and

(B) in subparagraph (E), by striking the period at the end and inserting ''; and''; and

(3) by adding at the end the following:

''(7) if the project is at an unclassified airport, the project will be funded with an amount apportioned under subsection 47114(d)(3)(B) and is—

''(A) for maintenance of the pavement of the primary runway;

''(B) for obstruction removal for the primary runway;

''(C) for the rehabilitation of the primary runway; or

''(D) a project that the Secretary considers necessary for the safe operation of the airport.''.

SEC. 1214. TRANSFERS OF INSTRUMENT LANDING SYSTEMS.

Section 44502(e) is amended by striking the first sentence and inserting ''An airport may transfer, without consideration, to the Administrator of the Federal Aviation Administration an instrument landing system consisting of a glide slope and localizer that conforms to performance specifications of the Administrator if an airport improvement project grant was used to assist in purchasing the system, and if the Federal Aviation Administration has determined that a satellite navigation system cannot provide a suitable approach.''.

SEC. 1215. NON-MOVEMENT AREA SURVEILLANCE PILOT PROGRAM.

(a) IN GENERAL.—Subchapter I of chapter 471 is amended by adding at the end the following:

''§ 47143. Non-movement area surveillance surface display systems pilot program

''(a) IN GENERAL.—The Administrator of the Federal Aviation Administration may carry out a pilot program to support non-Federal acquisition and installation of qualifying non-movement area surveillance surface display systems and sensors if—

''(1) the Administrator determines that acquisition and installation of qualifying non-movement area surveillance surface display systems and sensors improve safety or capacity in the National Airspace System; and

''(2) the non-movement area surveillance surface display systems and sensors are supplemental to existing movement area systems and sensors at the selected airports established under other programs administered by the Administrator.

''(b) PROJECT GRANTS.—

''(1) IN GENERAL.—For purposes of carrying out the pilot program, the Administrator may make a project grant out of funds apportioned under paragraph (1) or paragraph (2) of section 47114(c) to not more than 5 eligible sponsors to acquire and install qualifying non-movement area surveillance surface display systems and sensors. The Administrator may distribute not more than $2,000,000 per sponsor from the discretionary fund. The airports selected to participate in the pilot program shall have existing Federal Aviation Administration movement area systems and airlines that are participants in Federal Aviation Administration's Airport Collaborative Decision Making process.

''(2) PROCEDURES.—In accordance with the authority under section 106, the Administrator may establish procurement procedures applicable to grants issued under this subsection. The procedures may permit the sponsor to carry out the project with vendors that have been accepted in the procurement procedure or using Federal Aviation Administration contracts. The procedures may provide for the direct reimbursement (including administrative costs) of the Administrator by the sponsor using grant funds under this subsection, for the ordering of system-related equipment and its installation, or for the direct ordering of system-related equipment and its installation by the sponsor, using such grant funds, from the suppliers with which the Administrator has contracted.

''(3) DATA EXCHANGE PROCESSES.—The Administrator may establish data exchange processes to allow airport participation in the Federal Aviation Administration's Airport Collaborative Decision Making process and fusion of the non-movement surveillance data with the Administration's movement area systems.

''(c) DEFINITIONS.—In this section:

''(1) NON-MOVEMENT AREA.—The term 'non-movement area' is the portion of the airfield surface that is not under the control of air traffic control.

''(2) NON-MOVEMENT AREA SURVEILLANCE SURFACE DISPLAY SYSTEM AND SENSORS.—The term 'non-movement area surveillance surface display system and sensors' is a non-Federal surveillance system that uses on-airport sensors that track vehicles or aircraft that are equipped with transponders in the non-movement area.

''(3) QUALIFYING NON-MOVEMENT AREA SURVEILLANCE SURFACE DISPLAY SYSTEM AND SENSORS.—The term 'qualifying non-movement area surveillance surface display system and sensors' is a non-movement area surveillance surface display system that—

''(A) provides the required transmit and receive data formats consistent with the National Airspace System architecture at the appropriate service delivery point;

''(B) is on-airport; and

''(C) is airport operated.''.

(b) TECHNICAL AND CONFORMING AMENDMENTS.—The table of contents of chapter 471 is amended by inserting after the item relating to section 47142 the following:

''47143. Non-movement area surveillance surface display systems pilot program.''.

SEC. 1216. AMENDMENTS TO DEFINITIONS.

Section 47102 is amended—

(1) by redesignating paragraphs (10) through (28) as paragraphs (12) through (30), respectively;

(2) by redesignating paragraphs (7) through (9) as paragraphs (8) through (10), respectively;

(3) in paragraph (3)—

(A) in subparagraph (B)—

(i) by redesignating clauses (iii) through (x) as clauses (iv) through (xi), respectively; and

(ii) by striking clause (ii) and inserting the following:

''(II) security equipment owned and operated by the airport, including explosive detection devices, universal access control systems, perimeter fencing, and emergency call boxes, which the Secretary may require by regulation for, or approve as contributing significantly to, the security of individuals and property at the airport;

''(III) safety apparatus owned and operated by the airport, which the Secretary may require by regulation for, or approve as contributing significantly to, the safety of individuals and property at the airport, and integrated in-pavement lighting systems for runways and taxiways and other runway and taxiway incursion prevention devices;'';

(B) in subparagraph (K), by striking ''such project will result in an airport receiving appropriate'' and inserting ''the airport would be able to receive''; and

(C) in subparagraph (L)—

(i) by striking ''or conversion of vehicles and'' and inserting ''of vehicles used exclusively for transporting passengers on-airport, employee shuttle buses within the airport, or'';

(ii) by striking ''airport, to'' and inserting ''airport and equipped with''; and

(iii) by striking ''7505a) and if such project will result in an airport receiving appropriate'' and inserting ''7505a)) and if the airport would be able to receive'';

(4) in paragraph (5), by striking ''regulations'' and inserting ''requirements'';

(5) by inserting after paragraph (6) the following:

''(7) 'categorized airport' means a nonprimary airport that has an identified role in the National Plan of Integrated Airport Systems.'';

(6) in paragraph (9), as redesignated, by striking ''public'' and inserting ''public-use'';

(7) by inserting after paragraph (10), as redesignated, the following:

''(11) 'joint use airport' means an airport owned by the Department of Defense, at which both military and civilian aircraft make shared use of the airfield.'';

(8) in paragraph (24), as redesignated, by amending subparagraph (B)(i) to read as follows:

''(i) determined by the Secretary to have at least—

''(I) 100 based aircraft that are currently registered with the Federal Aviation Administration under chapter 445 of this title; and

''(II) 1 based jet aircraft that is currently registered with the Federal Aviation Administration where, for the purposes of this clause, 'based' means the aircraft or jet aircraft overnights at the airport for the greater part of the year; or''; and

(9) by adding at the end the following:

''(31) 'unclassified airport' means a nonprimary airport that is included in the National Plan of Integrated Airport Systems that is not categorized by the Administrator of the Federal Aviation Administration in the most current report entitled General Aviation Airports: A National Asset.''.

SEC. 1217. CLARIFICATION OF NOISE EXPOSURE MAP UPDATES.

Section 47503(b) is amended—

(1) by striking ''a change in the operation of the airport would establish'' and inserting ''there is a change in the operation of the airport that would establish''; and

(2) by inserting after ''reduction'' the following: ''if the change has occurred during the longer of—

''(1) the noise exposure map period forecast by the airport operator under subsection (a); or

''(2) the implementation timeframe of the operator's noise compatibility program''.

SEC. 1218. PROVISION OF FACILITIES.

Section 44502 is amended by adding at the end the following:

''(f) AIRPORT SPACE.—

''(1) RESTRICTION.—The Administrator may not require an airport owner or sponsor (as defined in section 47102) to provide to the Federal Aviation Administration without cost any of the following:

''(A) Building construction, maintenance, utilities, or expenses for services relating to air traffic control, air navigation, or weather reporting.

''(B) Space in a facility owned by the airport owner or sponsor for services relating to air traffic control, air navigation, or weather reporting.

''(2) RULE OF CONSTRUCTION.—Nothing in this subsection may be construed to affect—

''(A) any agreement the Secretary may have or make with an airport owner or sponsor for the airport owner or sponsor to provide any of the items described in subparagraph (A) or subparagraph (B) of paragraph (1) at below-market rates; or

''(B) any grant assurance that requires an airport owner or sponsor to provide land to the Administration without cost for an air traffic control facility.''.

SEC. 1219. CONTRACT WEATHER OBSERVERS.

(a) IN GENERAL.—Not later than 1 year after the date of enactment of this Act, the Administrator of the Federal Aviation Administration shall submit to the appropriate committees of Congress a report—

(1) which includes public and stakeholder input, and examines all safety risks, hazard effects, efficiency and operational effects on airports, airlines, and other stakeholders that could result from loss of contract weather observer service at the 57 airports targeted for the loss of this service;

(2) detailing how the Federal Aviation Administration will accurately report rapidly changing severe weather conditions at these airports, including thunderstorms, lightning, fog, visibility, smoke, dust, haze, cloud layers and ceilings, ice pellets, and freezing rain or drizzle without contract weather observers;

(3) indicating how airports can comply with applicable Federal Aviation Administration orders governing weather observations given the current documented limitations of automated surface observing systems; and

(4) identifying the process through which the Federal Aviation Administration analyzed the safety hazards associated with the elimination of the contract weather observer program.

(b) CONTINUED USE OF CONTRACT WEATHER OBSERVERS.—The Administrator may not discontinue the contract weather observer program at any airport until October 1, 2017.

(c) REPORT ON GOLDEN TRIANGLE INITIATIVE OF NOAA.—

(1) REPORT REQUIRED.—Not later than 1 year after the date of enactment of this Act, the Administrator of the National Oceanic and Atmospheric Administration and the Administrator of the Federal Aviation Administration shall jointly submit to the appropriate committees of Congress a report on the Golden Triangle Initiative of the National Oceanic and Atmospheric Administration.

(2) ELEMENTS.—The report shall include the following:

(A) An assessment of the impacts of enhanced aviation forecast services provided as part of the Golden Triangle Initiative on weather-related air traffic delays.

(B) A description of the costs of providing such enhanced aviation forecast services.

(C) A description of potential alternative mechanisms to provide enhanced aviation forecast services comparable to such enhanced aviation forecast services for airports in rural or low population density areas.

SEC. 1220. FEDERAL SHARE ADJUSTMENT.

Section 47109(a)(5) is amended to read as follows:

''(5) 95 percent for a project at an airport for which the United States Government's share would otherwise be capped at 90 percent under paragraph (2) or paragraph (3) if the Administrator determines that the project is a successive phase of a multiphased construction project for which the sponsor received a grant in fiscal year 2011 or earlier.''.

SEC. 1221. MISCELLANEOUS TECHNICAL AMENDMENTS.

(a) AIRPORT SECURITY PROGRAM.—Section 47137 is amended—

(1) in subsection (a), by striking ''Transportation'' and inserting ''Homeland Security'';

(2) in subsection (e), by striking ''Homeland Security'' and inserting ''Transportation''; and

(3) in subsection (g), by inserting ''of Transportation'' after ''Secretary'' the first place it appears.

(b) SECTION 516 PROPERTY CONVEYANCE RELEASES.—Section 817(a) of the FAA Modernization and Reform Act of 2012 (49 U.S.C. 47125 note) is amended—

(1) by striking ''or section 23'' and inserting '', section 23''; and

(2) by inserting before the period at the end the following: '', or section 47125 of title 49, United States Code''.

SEC. 1222. MOTHERS' ROOMS AT AIRPORTS.

(a) LACTATION AREA DEFINED.—Section 47102, as amended by section 1216 of this Act, is further amended—

(1) by redesignating paragraphs (12) through (31) as paragraphs (13) through (32), respectively; and

(2) by inserting after paragraph (11) the following:

''(12) 'lactation area' means a room or other location in a commercial service airport that—

''(A) provides a location for members of the public to express breast milk that is shielded from view and free from intrusion from the public;

''(B) has a door that can be locked;

''(C) includes a place to sit, a table or other flat surface, and an electrical outlet;

''(D) is readily accessible to and usable by individuals with disabilities, including individuals who use wheelchairs; and

''(E) is not located in a restroom.''.

(b) PROJECT GRANTS WRITTEN ASSURANCES FOR LARGE AND MEDIUM HUB AIRPORTS.—

(1) IN GENERAL.—Section 47107(a) is amended—

(A) in paragraph (20), by striking ''and'' at the end;

(B) in paragraph (21), by striking the period at the end and inserting ''; and''; and

(C) by adding at the end the following:

''(22) with respect to a medium or large hub airport, the airport owner or operator will maintain a lactation area in each passenger terminal building of the airport in the sterile area (as defined in section 1540.5 of title 49, Code of Federal Regulations) of the building.''.

(2) APPLICABILITY.—

(A) IN GENERAL.—The amendment made by paragraph (1) shall apply to a project grant application submitted for a fiscal year beginning on or after the date that is 2 years after the date of enactment of this Act.

(B) SPECIAL RULE.—The requirement in the amendments made by paragraph (1) that a lactation area be located in the sterile area of a passenger terminal building shall not apply with respect to a project grant application for a period of time, determined by the Secretary of Transportation, if the Secretary determines that construction or maintenance activities make it impracticable or unsafe for the lactation area to be located in the sterile area of the building.

(c) TERMINAL DEVELOPMENT COSTS.—Section 47119(a) is amended by adding at the end the following:

''(3) LACTATION AREAS.—In addition to the projects described in paragraph (1), the Secretary may approve a project for terminal development for the construction or installation of a lactation area at a commercial service airport.''.

(d) PRE-EXISTING FACILITIES.—On application by an airport sponsor, the Secretary of Transportation may determine that a lactation area in existence on the date of enactment of this Act complies with the requirement of paragraph (22) of section 47107(a) of title 49, United States Code, as added by subsection (b), notwithstanding the absence of one of the facilities or characteristics referred to in the definition of the term ''lactation area'' in paragraph (12) of section 47102 of such title, as added by subsection (a).

SEC. 1223. ELIGIBILITY FOR AIRPORT DEVELOPMENT GRANTS AT AIRPORTS THAT ENTER INTO CERTAIN LEASES WITH COMPONENTS OF THE ARMED FORCES.

Section 47107, as amended by section 1208 of this Act, is further amended by adding at the end the following:

''(t) AIRPORTS THAT ENTER INTO CERTAIN LEASES WITH THE ARMED FORCES.—The Secretary of Transportation may not disapprove a project grant application under this subchapter for an airport development project at an airport solely because the airport renews a lease for the use, at a nominal rate, of airport property by a regular or reserve component of the Armed Forces, including the National Guard, without regard to whether that component operates aircraft at the airport.''.

SEC. 1224. CLARIFICATION OF DEFINITION OF AVIATION-RELATED ACTIVITY FOR HANGAR USE.

Section 47107, as amended by section 1223 of this Act, is further amended by adding at the end the following:

''(u) CONSTRUCTION OF RECREATIONAL AIRCRAFT.—

''(1) IN GENERAL.—The construction of a covered aircraft shall be treated as an aeronautical activity for purposes of—

''(A) determining an airport's compliance with a grant assurance made under this section or any other provision of law; and

''(B) the receipt of Federal financial assistance for airport development.

''(2) COVERED AIRCRAFT DEFINED.—In this subsection, the term 'covered aircraft' means an aircraft—

''(A) used or intended to be used exclusively for recreational purposes; and

''(B) constructed or under construction, repair, or restoration by a private individual at a general aviation airport.''.

SEC. 1225. USE OF AIRPORT IMPROVEMENT PROGRAM FUNDS FOR RUNWAY SAFETY REPAIRS.

(a) IN GENERAL.—Subchapter I of chapter 471, as amended by this subtitle, is further amended by adding at the end the following:

''§ 47144. Use of funds for repairs for runway safety repairs

''(a) IN GENERAL.—The Secretary of Transportation may make project grants under this subchapter to an airport described in subsection (b) from funds under section 47114 apportioned to that airport or funds available for discretionary grants to that airport under section 47115 to conduct airport development to repair the runway safety area of the airport damaged as a result of a natural disaster in order to maintain compliance with the regulations of the Federal Aviation Administration relating to runway safety areas, without regard to whether construction of the runway safety area damaged was carried out using amounts the airport received under this subchapter.

''(b) AIRPORTS DESCRIBED.—An airport is described in this subsection if—

''(1) the airport is a public-use airport;

''(2) the airport is listed in the National Plan of Integrated Airport Systems of the Federal Aviation Administration;

''(3) the runway safety area of the airport was damaged as a result of a natural disaster;

''(4) the airport was denied funding under the Robert T. Stafford Disaster Relief and Emergency Assistance Act (42 U.S.C. 4121 et seq.) with respect to the disaster;

''(5) the operator of the airport has exhausted all legal remedies, including legal action against any parties (or insurers thereof) whose action or inaction may have contributed to the need for the repair of the runway safety area;

''(6) there is still a demonstrated need for the runway safety area to accommodate current or imminent aeronautical demand; and

''(7) the cost of repairing or replacing the runway safety area is reasonable in relation to the anticipated operational benefit of repairing the runway safety area, as determined by the Administrator of the Federal Aviation Administration.''.

(b) CONFORMING AMENDMENT.—The table of contents for chapter 471, as amended by this subtitle, is further amended by inserting after the item relating to section 47143 the following:

''47144. Use of funds for repairs for runway safety repairs.''.

SEC. 1226. DEFINITION OF SMALL BUSINESS CONCERN.

Section 47113(a)(1) is amended to read as follows:

''(1) 'small business concern'—

''(A) except as provided in subparagraph (B), has the same meaning given that term in section 3 of the Small Business Act (15 U.S.C. 632); and

''(B) in the case of a concern in the construction industry, a concern shall be considered a small business concern if the concern meets the size standard for the North American Industry Classification System Code 237310, as adjusted by the Small Business Administration;''.

Subtitle C—Passenger Facility Charges

SEC. 1301. PFC STREAMLINING.

(a) PASSENGER FACILITY CHARGES; GENERAL AUTHORITY.—Section 40117(b)(4) is amended—

(1) in the matter preceding subparagraph (A), by striking '', if the Secretary finds—'' and inserting a period; and

(2) by striking subparagraphs (A) and (B).

(b) PILOT PROGRAM FOR PASSENGER FACILITY CHARGE AUTHORIZATIONS AT NONHUB AIRPORTS.—Section 40117(l) is amended—

(1) in the heading by striking ''NONHUB'' and inserting ''CERTAIN''; and

(2) in paragraph (1), by striking ''nonhub'' and inserting ''nonhub, small hub, medium hub, and large hub''.

SEC. 1302. INTERMODAL ACCESS PROJECTS.

Section 40117 is amended by adding at the end the following:

''(n) PFC ELIGIBILITY FOR INTERMODAL GROUND ACCESS PROJECTS.—

''(1) IN GENERAL.—The Secretary may authorize a passenger facility charge imposed under subsection (b)(1) to be used to finance the eligible capital costs of an intermodal ground access project.

''(2) DEFINITION OF INTERMODAL GROUND ACCESS PROJECT.—In this subsection, the term 'intermodal ground access project' means a project for constructing a local facility owned or operated by an eligible agency that—

''(A) is located on airport property; and

''(B) is directly and substantially related to the movement of passengers or property traveling in air transportation.

''(3) ELIGIBLE CAPITAL COSTS.—The eligible capital costs of an intermodal ground access project shall be the lesser of—

''(A) the total capital cost of the project multiplied by the ratio that the number of individuals projected to use the project to gain access to or depart from the airport bears to the total number of individuals projected to use the local facility; or

''(B) the total cost of the capital improvements that are located on airport property.

''(4) DETERMINATIONS.—The Secretary shall determine the projected use and cost of a project for purposes of paragraph (3) at the time the project is approved under this subsection, except that, in the case of a project to be financed in part using funds administered by the Federal Transit Administration, the Secretary shall use the travel forecasting model for the project at the time the project is approved by the Federal Transit Administration to enter preliminary engineering to determine the projected use and cost of the project for purposes of paragraph (3).

''(5) NONATTAINMENT AREAS.—For airport property, any area of which is located in a nonattainment area (as defined under section 171 of the Clean Air Act (42 U.S.C. 7501)) for 1 or more criteria pollutant, the airport emissions reductions from less airport surface transportation and parking as a direct result of the development of an intermodal project on the airport property would be eligible for air quality emissions credits.''.

SEC. 1303. USE OF REVENUE AT A PREVIOUSLY ASSOCIATED AIRPORT.

Section 40117, as amended by section 1302 of this Act, is further amended by adding at the end the following:

''(o) USE OF REVENUES AT A PREVIOUSLY ASSOCIATED AIRPORT.—Notwithstanding the requirements relating to airport control under subsection (b)(1), the Secretary may authorize use of a passenger facility charge under subsection (b) to finance an eligible airport-related project if—

''(1) the eligible agency seeking to impose the new charge controls an airport where a $2.00 passenger facility charge became effective on January 1, 2013; and

''(2) the location of the project to be financed by the new charge is at an airport that was under the control of the same eligible agency that had controlled the airport described in paragraph (1).''.

SEC. 1304. FUTURE AVIATION INFRASTRUCTURE AND FINANCING STUDY.

(a) FUTURE AVIATION INFRASTRUCTURE AND FINANCING STUDY.—Not later than 60 days

after the date of enactment of this Act, the Secretary of Transportation shall enter into an agreement with the Transportation Research Board of the National Academies to conduct a study and make recommendations on the actions needed to upgrade and restore the national aviation infrastructure system to its role as a premier system that meets the growing and shifting demands of the 21st century, including airport infrastructure needs and existing financial resources for commercial service airports.

(b) CONSULTATION.—In carrying out the study, the Transportation Research Board shall convene and consult with a panel of national experts, including—

(1) nonhub airports;
(2) small hub airports;
(3) medium hub airports;
(4) large hub airports;
(5) airports with international service;
(6) non-primary airports;
(7) local elected officials;
(8) relevant labor organizations;
(9) passengers;
(10) air carriers; and
(11) representatives of the tourism industry.

(c) CONSIDERATIONS.—In carrying out the study, the Transportation Research Board shall consider—

(1) the ability of airport infrastructure to meet current and projected passenger volumes;
(2) the available financial tools and resources for airports of different sizes;
(3) the current debt held by airports, and its impact on future construction and capacity needs;
(4) the impact of capacity constraints on passengers and ticket prices;
(5) the purchasing power of the passenger facility charge from the last increase in 2000 to the year of enactment of this Act;
(6) the impact to passengers and airports of indexing the passenger facility charge for inflation;
(7) how long airports are constrained with current passenger facility charge collections;
(8) the impact of passenger facility charges to promote competition;
(9) the additional resources or options to fund terminal construction projects;
(10) the resources eligible for use toward noise reduction and emission reduction projects;
(11) the gap between AIP-eligible projects and the annual Federal funding provided;
(12) the impact of regulatory requirements on airport infrastructure financing needs;
(13) airline competition;
(14) airline ancillary fees and their impact on ticket pricing and taxable revenue; and
(15) the ability of airports to finance necessary safety, security, capacity, and environmental projects identified in capital improvement plans.

(d) REPORT.—Not later than 15 months after the date of enactment of this Act, the Transportation Research Board shall submit to the Secretary and the appropriate committees of Congress a report on its findings and recommendations.

(e) FUNDING.—The Secretary is authorized to use such sums as are necessary to carry out the requirements of this section.

TITLE II—SAFETY

Subtitle A—Unmanned Aircraft Systems Reform

SEC. 2001. DEFINITIONS.

(a) IN GENERAL.—Unless expressly provided otherwise, the terms used in this subtitle have the meanings given the terms in section 44801 of title 49, United States Code, as added by section 2121 of this Act.

(b) DEFINITION OF CIVIL AIRCRAFT.—The term ''civil aircraft'' has the meaning given the term in section 40102 of title 49, United States Code.

PART I—PRIVACY AND TRANSPARENCY

SEC. 2101. UNMANNED AIRCRAFT SYSTEMS PRIVACY POLICY.

It is the policy of the United States that the operation of any unmanned aircraft or unmanned aircraft system shall be carried out in a manner that respects and protects personal privacy consistent with the United States Constitution and Federal, State, and local law.

SEC. 2102. SENSE OF CONGRESS.

It is the sense of Congress that—

(1) each person that uses an unmanned aircraft system for compensation or hire, or in the furtherance of a business enterprise, except for news gathering, should have a written privacy policy consistent with section 2101 that is appropriate to the nature and scope of the activities regarding the collection, use, retention, dissemination, and deletion of any data collected during the operation of an unmanned aircraft system;

(2) each privacy policy described in paragraph (1) should be periodically reviewed and updated as necessary; and

(3) each privacy policy described in paragraph (1) should be publicly available.

SEC. 2103. FEDERAL TRADE COMMISSION AUTHORITY.

A violation of a privacy policy by a person that uses an unmanned aircraft system for compensation or hire, or in the furtherance of a business enterprise, in the national airspace system shall be an unfair and deceptive practice in violation of section 5(a) of the Federal Trade Commission Act (15 U.S.C. 45(a)).

SEC. 2104. NATIONAL TELECOMMUNICATIONS AND INFORMATION ADMINISTRATION MULTI-STAKEHOLDER PROCESS.

Not later than July 31, 2016, the Administrator of the National Telecommunications and Information Administration shall submit to the appropriate committees of Congress a report on the industry privacy best practices developed through the multi-stakeholder engagement process (established under Presidential Memorandum of February 15, 2015 (80 Fed. Reg. 9355)) on unmanned aircraft systems transparency and accountability. In addition to the agreed upon best practices, this report shall include relevant stakeholder recommendations for legislative or regulatory action regarding privacy, accountability, and transparency, including ways to encourage the adoption of privacy policies by companies that use unmanned aircraft systems for compensation or hire, or in the furtherance of a business enterprise. The report shall take into account existing rights protected under the First Amendment to the United States Constitution in public spaces and the First Amendment rights of journalists to control their archives.

SEC. 2105. IDENTIFICATION STANDARDS.

(a) IN GENERAL.—The Director of the National Institute of Standards and Technology, in collaboration with the Administrator of the Federal Aviation Administration, and in consultation with the Secretary of Transportation, the President of RTCA, Inc., and the Administrator of the National Telecommunications and Information Administration, shall convene industry stakeholders to facilitate the development of consensus standards for remotely identifying operators and owners of unmanned aircraft systems and associated unmanned aircraft.

(b) CONSIDERATIONS.—As part of the standards developed under subsection (a), the Director shall consider—

(1) requirements for remote identification of unmanned aircraft systems;

(2) appropriate requirements for different classifications of unmanned aircraft systems operations, including public and civil;

(3) the role of manufacturers, the Federal Aviation Administration, and the owners of the systems described in paragraphs (1) and (2) in reporting and verifying identification data; and

(4) the feasibility of the development and operation of a publicly searchable online database to further enable the immediate remote identification of any unmanned aircraft and its operator by the general public and potential exceptions to inclusion in the online database.

(c) DEADLINE.—Not later than 1 year after the date of enactment of this Act, the Director shall submit to the appropriate committees of Congress a report on the consensus identification standards.

(d) GUIDANCE.—Not later than 1 year after the date that the Director submits the report on the consensus identification standards under subsection (c), the Administrator of the Federal Aviation Administration shall issue regulatory guidance based on the consensus identification standards.

SEC. 2106. COMMERCIAL AND GOVERNMENTAL OPERATORS.

(a) IN GENERAL.—Except for model aircraft under section 44808 of title 49, United States Code, in authorizing the operation of any public unmanned aircraft system or the operation of any unmanned aircraft system by a person conducting civil aircraft operations, the Administrator of the Federal Aviation Administration, to the extent practicable and consistent with applicable law and without compromising national security, homeland defense, or law enforcement, shall make the identifying information in subsection (b) available to the public via an easily searchable online database. The Administrator shall place a clear and conspicuous link to the database on the home page of the Federal Aviation Administration's website.

(b) CONTENTS.—The database described in subsection (a) shall contain the following:

(1) The name of each individual, or agency, as applicable, authorized to conduct civil or public unmanned aircraft systems operations described in subsection (a).

(2) The name of each owner of an unmanned aircraft system described in paragraph (1).

(3) The expiration date of any authorization related to a person identified in paragraph (1) or paragraph (2).

(4) The contact information for each person identified in paragraphs (1) and (2), including a telephone number and an electronic mail address, in accordance with applicable privacy laws.

(5) The tail number or specific identification number of all unmanned aircraft authorized for use that links each unmanned aircraft to the owner of that aircraft.

(6) For any unmanned aircraft system that will collect personally identifiable information about individuals, including the use of facial recognition—

(A) the circumstance under which the system will be used;

(B) the specific kinds of personally identifiable information that the system will collect about individuals; and

(C) how the information referred to in subparagraph (B), and the conclusions drawn from such information, will be used, disclosed, and otherwise handled, including—

(i) how the collection or retention of such information that is unrelated to the specific use will be minimized;

(ii) under what circumstances such information might be sold, leased, or otherwise provided to third parties;

(iii) the period during which such information will be retained;

(iv) when and how such information, including information no longer relevant to the specified use, will be destroyed; and

(v) steps that will be used to protect against the unauthorized disclosure of any information or data, such as the use of encryption methods and other security features.

(7) With respect to public unmanned aircraft systems—

(A) the locations where the unmanned aircraft system will operate;

(B) the time during which the unmanned aircraft system will operate;

(C) the general purpose of the flight; and

(D) the technical capabilities that the unmanned aircraft system possesses.

(c) RECORDS.—Each person described in subsection (b)(1), to the extent practicable without compromising national security, homeland defense, or law enforcement shall maintain and make available to the Administrator for not less than 1 year a record of the name and contact information of each person on whose behalf the unmanned aircraft system has been operated.

(d) DEADLINE.—The Administrator shall make the database available not later than 1 year after the date of enactment of this Act.

(e) TERMINATION.—The Administrator may cease the operation of such database on September 30, 2017.

SEC. 2107. ANALYSIS OF CURRENT REMEDIES UNDER FEDERAL, STATE, AND LOCAL JURISDICTIONS.

Not later than 1 year after the date of enactment of this Act, the Comptroller General of the United States shall conduct and submit to the appropriate committees of Congress a review of the privacy issues and concerns associated with the operation of unmanned aircraft systems in the national airspace system that—

(1) examines and identifies the existing Federal, State, or local laws, including constitutional law, that address an individual's personal privacy;

(2) identifies specific issues and concerns that may limit the availability of existing civil or criminal legal remedies regarding inappropriate operation of unmanned aircraft systems in the national airspace system;

(3) identifies any deficiencies in current Federal, State, or local privacy protections; and

(4) recommends legislative or other actions to address the limitations and deficiencies identified in paragraphs (2) and (3).

PART II—UNMANNED AIRCRAFT SYSTEMS

SEC. 2121. DEFINITIONS.

(a) IN GENERAL.—Part A of subtitle VII is amended by inserting after chapter 447 the following:

"CHAPTER 448—UNMANNED AIRCRAFT SYSTEMS

''Sec.
''44801. Definitions.

"§ 44801. Definitions

''In this chapter—

''(1) 'appropriate committees of Congress' means the Committee on Commerce, Science, and Transportation of the Senate and the Committee on Transportation and Infrastructure of the House of Representatives.

''(2) 'Arctic' means the United States zone of the Chukchi Sea, Beaufort Sea, and Bering Sea north of the Aleutian chain.

''(3) 'certificate of waiver' and 'certificate of authorization' mean a Federal Aviation Administration grant of approval for a specific flight operation.

''(4) 'permanent areas' means areas on land or water that provide for launch, recovery, and operation of small unmanned aircraft.

''(5) 'public unmanned aircraft system' means an unmanned aircraft system that meets the qualifications and conditions required for operation of a public aircraft (as defined in section 40102(a)).

''(6) 'sense and avoid capability' means the capability of an unmanned aircraft to remain a safe distance from and to avoid collisions with other airborne aircraft.

''(7) 'small unmanned aircraft' means an unmanned aircraft weighing less than 55 pounds, including the weight of anything attached to or carried by the aircraft.

''(8) 'test range' means a defined geographic area where research and development are conducted as authorized by the Administrator of the Federal Aviation Administration.

''(9) 'test site' means any of the 6 test ranges established by the Administrator of the Federal Aviation Administration under section 332(c) of the FAA Modernization and Reform Act of 2012 (49 U.S.C. 40101 note), as in effect on the day before the date of enactment of the Federal Aviation Administration Reauthorization Act of 2016, and any public entity authorized by the Federal Aviation Administration as an unmanned aircraft system flight test center before January 1, 2009.

''(10) 'unmanned aircraft' means an aircraft that is operated without the possibility of direct human intervention from within or on the aircraft.

''(11) 'unmanned aircraft system' means an unmanned aircraft and associated elements (including communication links and the components that control the unmanned aircraft) that are required for the operator to operate safely and efficiently in the national airspace system.''.

(b) TABLE OF CHAPTERS.—The table of chapters for subtitle VII is amended by inserting after the item relating to chapter 447 the following:

''448. Unmanned Aircraft Systems .... 44801''.

SEC. 2122. UTILIZATION OF UNMANNED AIRCRAFT SYSTEM TEST SITES.

(a) IN GENERAL.—Chapter 448, as designated by section 2121 of this Act, is amended by inserting after section 44801 the following:

"§ 44802. Unmanned aircraft system test sites

''(a)(1) IN GENERAL.—The Administrator of the Federal Aviation Administration shall establish and update, as appropriate, a program for the use of the 6 test sites established under section 332(c) of the FAA Modernization and Reform Act of 2012 (49 U.S.C. 40101 note), and any public entity authorized by the Federal Aviation Administration as an unmanned aircraft system flight test center before January 1, 2009, to facilitate the safe integration of unmanned aircraft systems into the national airspace system.

''(2) TERMINATION.—The program shall terminate on September 30, 2022.

''(b) PROGRAM REQUIREMENTS.—In establishing the program under subsection (a), the Administrator shall—

''(1) designate airspace for safely testing the integration of unmanned flight operations in the national airspace system;

''(2) develop operational standards and air traffic requirements for unmanned flight operations at test sites, including test ranges;

''(3) coordinate with and leverage the resources of the National Aeronautics and Space Administration and the Department of Defense;

''(4) address both civil and public unmanned aircraft systems;

''(5) ensure that the program is coordinated with relevant aspects of the Next Generation Air Transportation System;

''(6) provide for verification of the safety of unmanned aircraft systems and related navigation procedures as it relates to continued development of standards for integration into the national airspace system;

''(7) engage each test site operator in projects for research, development, testing, and evaluation of unmanned aircraft systems to facilitate the Federal Aviation Administration's development of standards for the safe integration of unmanned aircraft into the national airspace system, which may include solutions for—

''(A) developing and enforcing geographic and altitude limitations;

''(B) classifications of airspace where manufacturers must prevent flight of an unmanned aircraft system;

''(C) classifications of airspace where manufacturers of unmanned aircraft systems must alert the operator to hazards or limitations on flight;

''(D) sense and avoid capabilities;

''(E) beyond-line-of-sight, nighttime operations and unmanned traffic management, or other critical research priorities; and

''(F) improving privacy protections through the use of advances in unmanned aircraft systems technology;

''(8) coordinate periodically with all test site operators to ensure test site operators know which data should be collected, what procedures should be followed, and what research would advance efforts to safely integrate unmanned aircraft systems into the national airspace system;

''(9) allow a test site to develop multiple test ranges within the test site;

''(10) streamline the approval process for test sites when processing unmanned aircraft certificates of waiver or authorization for operations at the test sites;

''(11) require each test site operator to protect proprietary technology, sensitive data, or sensitive research of any civil or private entity when using that test site without the need to obtain an experimental or special airworthiness certificate;

''(12) evaluate options for the operation of 1 or more small unmanned aircraft systems beyond the visual line of sight of the operator for testing under controlled conditions that ensure the safety of persons and property, including on the ground; and

''(13) allow test site operators to receive Federal funding, other than from the Federal Aviation Administration, including in-kind contributions, from test site participants in the furtherance of research, development, and testing objectives.

''(c) TEST SITE LOCATIONS.—In determining the location of a test site under subsection (a), the Administrator shall—

''(1) take into consideration geographic and climatic diversity;

''(2) take into consideration the location of ground infrastructure and research needs; and

''(3) consult with the Administrator of the National Aeronautics and Space Administration and the Secretary of Defense.

''(d) REPORT TO CONGRESS.—

''(1) IN GENERAL.—Not later than 1 year after the date of enactment of the Federal Aviation Administration Reauthorization Act of 2016, the Administrator shall submit to the appropriate committees of Congress a report on the establishment and implementation of the program under subsection (a).

''(2) BRIEFINGS.—Beginning 180 days after the date of enactment of the Federal Aviation Administration Reauthorization Act of 2016, and every 180 days thereafter until September 30, 2017, the Administrator shall provide to the appropriate committees of Congress a briefing that includes—

''(A) a current summary of unmanned aircraft systems operations at the test sites since the last briefing to Congress;

''(B) a description of all of the data generated from the operations described in subparagraph (A), and shared with the Federal Aviation Administration through a cooperative research and development agreement authorized in section 2123 of the Federal

Aviation Administration Reauthorization Act of 2016, that relate to unmanned aircraft systems research priorities, including beyond-line-of-sight, unmanned traffic management, nighttime operations, and sense and avoid technology;

''(C) a description of how the data described in subparagraph (B) will be or is used—

''(i) to advance Federal Aviation Administration priorities;

''(ii) to validate the safety of unmanned aircraft systems and related technology; and

''(iii) to inform future rulemaking related to the integration of unmanned aircraft systems into the national airspace;

''(D) an evaluation of the activities and specific outcomes from activities at the test sites that support the safe integration of unmanned aircraft systems under this chapter; and

''(E) recommendations for future Federal Aviation Administration test site operations that would generate data necessary to inform future rulemaking related to unmanned aircraft systems.

''(e) REVIEW OF OPERATIONS BY TEST SITE OPERATORS.—The operator of each test site under subsection (a) shall—

''(1) review the operations of unmanned aircraft systems conducted at the test site, including—

''(A) ongoing or completed research; and

''(B) data regarding operations by private and public operators; and

''(2) submit to the Administrator, in such form and manner as specified by the Administrator, the results of the review, including recommendations to further enable private research and development operations at the test sites that contribute to the Federal Aviation Administration's safe integration of unmanned aircraft systems into the national airspace system, on a quarterly basis until the program terminates.

''(f) TESTING.—The Secretary may authorize an operator of a test site described in subsection (a) to administer testing requirements established by the Administrator for unmanned aircraft systems operations.''.

(b) TECHNICAL AND CONFORMING AMENDMENTS.—

(1) TABLE OF CONTENTS.—The table of contents for chapter 448, as added by section 2121 of this Act, is further amended by inserting after the item relating to section 44801 the following:

''44802. Unmanned aircraft system test sites.''.

(2) PILOT PROJECTS.—Section 332 of the FAA Modernization and Reform Act of 2012 (49 U.S.C. 40101 note) is amended by striking subsection (c).

SEC. 2123. ADDITIONAL RESEARCH, DEVELOPMENT, AND TESTING.

(a) RESEARCH PLAN.—Not later than 1 year after the date of enactment of this Act, the Administrator of the Federal Aviation Administration and the United States Unmanned Aircraft System Executive Committee, jointly, and in coordination with industry, users, the Center of Excellence for Unmanned Aircraft Systems, and test site operators, shall develop a research plan to identify ongoing research into the broad range of technical, procedural, and policy concerns arising from the integration of unmanned aircraft systems into the national airspace system, and research needs regarding those concerns. In developing the plan, the Administrator shall determine and engage the appropriate entities to meet the research needs identified in the plan.

(b) COLLABORATIVE RESEARCH AND DEVELOPMENT AGREEMENTS.—The Administrator may use the other transaction authority under section 106(l)(6) of title 49, United States Code, and enter into collaborative research and development agreements, to direct research related to unmanned aircraft systems, including at any test site under section 44802(a) of that title, and in coordination with the Center of Excellence for Unmanned Aircraft Systems.

(c) USE OF CENTER OF EXCELLENCE FOR UNMANNED AIRCRAFT SYSTEMS.—The Administrator, in carrying out research necessary to establish the consensus safety standards and certification requirements in section 44803 of title 49, United States Code, as added by section 2124, shall, to the maximum extent practicable, leverage the research and testing capacity and capabilities of the Center of Excellence for Unmanned Aircraft Systems and the test sites (as defined in 44801 of such title, as added by section 2121).

SEC. 2124. SAFETY STANDARDS.

(a) IN GENERAL.—Chapter 448, as amended by section 2122 of this Act, is further amended by inserting after section 44802 the following:

''SEC. 44803. AIRCRAFT SAFETY STANDARDS.

''(a) CONSENSUS AIRCRAFT SAFETY STANDARDS.—Not later than 60 days after the date of enactment of the Federal Aviation Administration Reauthorization Act of 2016, the Director of the National Institute of Standards and Technology and the Administrator of the Federal Aviation Administration, in consultation with government and industry stakeholders and appropriate standards-setting organizations, shall initiate a collaborative process to develop risk-based, consensus industry airworthiness standards related to the safe integration of small unmanned aircraft systems into the national airspace system.

''(b) CONSIDERATIONS.—In developing the consensus aircraft safety standards, the Director and Administrator shall consider the following:

''(1) Technologies or standards related to geographic limitations, altitude limitations, and sense and avoid capabilities.

''(2) Using performance-based standards.

''(3) Predetermined action to maintain safety in the event that a communications link between a small unmanned aircraft and its operator is lost or compromised.

''(4) Detectability and identifiability to pilots, the Federal Aviation Administration, and air traffic controllers, as appropriate.

''(5) Means to prevent tampering with or modification of any system, limitation, or other safety mechanism or standard under this section or any other provision of law, including a means to identify any tampering or modification that has been made.

''(6) Consensus identification standards under section 2105.

''(7) How to update or modify a small unmanned aircraft system that was commercially distributed prior to the development of the consensus aircraft safety standards so that, to the greatest extent practicable, such systems meet the consensus aircraft safety standards.

''(8) Any technology or standard related to small unmanned aircraft systems that promotes aviation safety.

''(c) CONSULTATION.—In developing the consensus aircraft safety standards under subsection (a), the Director and Administrator shall consult with—

''(1) the Administrator of the National Aeronautics and Space Administration;

''(2) the President of RTCA, Inc.;

''(3) the Secretary of Defense;

''(4) each operator of a test site under section 44802;

''(5) the Center of Excellence for Unmanned Aircraft Systems;

''(6) unmanned aircraft systems stakeholders; and

''(7) community-based aviation organizations.

''(d) FAA APPROVAL.—Not later than 1 year after the date of enactment of the Federal Aviation Administration Reauthorization Act of 2016, the Administrator of the Federal Aviation Administration shall establish a process for the approval of small unmanned aircraft systems make and models based upon the consensus aircraft safety standards developed under subsection (a). The consensus aircraft safety standards developed under subsection (a) shall allow the Administrator to approve small unmanned aircraft systems for operation within the national airspace system without requiring the type certification process in parts 21 and 23 of the Code of Federal Regulations.

''(e) ELIGIBILITY.—The consensus aircraft safety standards for approval of small unmanned aircraft systems developed under this section shall set eligibility requirements for an airworthiness approval of a small unmanned aircraft system which shall include the following:

''(1) An applicant must provide the Federal Aviation Administration with—

''(A) the aircraft's operating instructions; and

''(B) the manufacturer's statement of compliance as described in subsection (f) of this section.

''(2) A sample aircraft must be inspected by the Federal Aviation Administration and found to be in a condition for safe operation and in compliance with the consensus aircraft safety standards required by the Administrator in subsection (d).

''(f) MANUFACTURER'S STATEMENT OF COMPLIANCE FOR SMALL UAS.—The manufacturer's statement of compliance shall—

''(1) identify the aircraft make and model, and consensus aircraft safety standard used;

''(2) state that the aircraft make and model meets the provisions of the standard identified in paragraph (1);

''(3) state that the aircraft make and model conforms to the manufacturer's design data, using the manufacturer's quality assurance system that meets the identified consensus standard adopted by the Administrator in subsection (d), and is manufactured in way that ensures consistency in the production process so that every unit produced meets the applicable consensus aircraft safety standards;

''(4) state that the manufacturer will make available to any interested person—

''(A) the aircraft's operating instructions, that meet the standard identified in paragraph (1); and

''(B) the aircraft's maintenance and inspection procedures, that meet the standard identified in paragraph (1);

''(5) state that the manufacturer will monitor and correct safety-of-flight issues through a continued airworthiness system that meets the standard identified in paragraph (1);

''(6) state that at the request of the Administration, the manufacturer will provide access by the Administration to its facilities; and

''(7) state that the manufacturer, in accordance with a production acceptance test procedure that meets an applicable consensus aircraft safety standard has—

''(A) ground and flight tested random samples of the aircraft;

''(B) found the sample aircraft performance acceptable; and

''(C) determined that the make and model of aircraft is suitable for safe operation.

''(g) PROHIBITION.—It shall be unlawful for any person to introduce or deliver for introduction into interstate commerce any unmanned aircraft manufactured after the date

that the Administrator adopts consensus aircraft safety standards under this section, unless the manufacturer has received approval under subsection (d) for each make and model.''.

(b) TABLE OF CONTENTS.—The table of contents for chapter 448, as amended by section 2122 of this Act, is further amended by inserting after the item relating to section 44802 the following:

''44803. Aircraft safety standards.''.

SEC. 2125. UNMANNED AIRCRAFT SYSTEMS IN THE ARCTIC.

(a) IN GENERAL.—Chapter 448, as amended by section 2124 of this Act, is further amended by inserting after section 44803 the following:

''§ 44804. Unmanned aircraft systems in the Arctic

''(a) IN GENERAL.—The Secretary of Transportation shall develop a plan and initiate a process to work with relevant Federal agencies and national and international communities to designate permanent areas in the Arctic where small unmanned aircraft may operate 24 hours per day for research and commercial purposes.

''(b) PLAN CONTENTS.—The plan under subsection (a) shall include the development of processes to facilitate the safe operation of unmanned aircraft beyond line of sight.

''(c) REQUIREMENTS.—Each permanent area designated under subsection (a) shall enable over-water flights from the surface to at least 2,000 feet in altitude, with ingress and egress routes from selected coastal launch sites.

''(d) AGREEMENTS.—To implement the plan under subsection (a), the Secretary may enter into an agreement with relevant national and international communities.

''(e) AIRCRAFT APPROVAL.—Not later than 1 year after the entry into force of an agreement necessary to effectuate the purposes of this section, the Secretary shall work with relevant national and international communities to establish and implement a process, or may apply an applicable process already established, for approving the use of unmanned aircraft in the designated permanent areas in the Arctic without regard to whether an unmanned aircraft is used as a public aircraft, a civil aircraft, or a model aircraft.''.

(b) TECHNICAL AND CONFORMING AMENDMENTS.—

(1) TABLE OF CONTENTS.—The table of contents for chapter 448, as amended by section 2124 of this Act, is further amended by inserting after the item relating to section 44803 the following:

''44804. Unmanned aircraft systems in the Arctic.''.

(2) EXPANDING USE OF UNMANNED AIRCRAFT SYSTEMS IN ARCTIC.—Section 332 of the FAA Modernization and Reform Act of 2012 (49 U.S.C. 40101 note) is amended by striking subsection (d).

SEC. 2126. SPECIAL AUTHORITY FOR CERTAIN UNMANNED AIRCRAFT SYSTEMS.

(a) IN GENERAL.—Chapter 448, as amended by section 2125 of this Act, is further amended by inserting after section 44804 the following:

''§ 44805. Special authority for certain unmanned aircraft systems

''(a) IN GENERAL.—Notwithstanding any other requirement of this chapter, the Secretary of Transportation shall use a risk-based approach to determine if certain unmanned aircraft systems may operate safely in the national airspace system notwithstanding completion of the comprehensive plan and rulemaking required by section 332 of the FAA Modernization and Reform Act of 2012 (49 U.S.C. 40101 note) or the guidance required by section 44807.

''(b) ASSESSMENT OF UNMANNED AIRCRAFT SYSTEMS.—In making the determination under subsection (a), the Secretary shall determine, at a minimum—

''(1) which types of unmanned aircraft systems, if any, as a result of their size, weight, speed, operational capability, proximity to airports and populated areas, and operation within or beyond visual line of sight, or operation during the day or night, do not create a hazard to users of the national airspace system or the public; and

''(2) whether a certificate under section 44703 or section 44704 of this title, or a certificate of waiver or certificate of authorization, is required for the operation of unmanned aircraft systems identified under paragraph (1) of this subsection.

''(c) REQUIREMENTS FOR SAFE OPERATION.—If the Secretary determines under this section that certain unmanned aircraft systems may operate safely in the national airspace system, the Secretary shall establish requirements for the safe operation of such aircraft systems in the national airspace system, including operation related to research, development, and testing of proprietary systems.

''(d) PILOT CERTIFICATION EXEMPTION.—If the Secretary proposes, under this section, to require an operator of an unmanned aircraft system to hold an airman certificate, a medical certificate, or to have a minimum number of hours operating a manned aircraft, the Secretary shall set forth the reasoning for such proposal and seek public notice and comment before imposing any such requirements.

''(e) SUNSET.—The authority under this section for the Secretary to determine if certain unmanned aircraft systems may operate safely in the national airspace system terminates effective September 30, 2017.

''(f) OPERATION BY OWNERS AND OPERATORS OF CRITICAL INFRASTRUCTURE.—

''(1) IN GENERAL.—Any application process established under subsection (a) shall allow for a covered person to apply to the Administrator to operate an unmanned aircraft system to conduct activities described in paragraph (2)—

''(A) beyond the visual line of sight of the individual operating the unmanned aircraft system; and

''(B) operation during the day or at night.

''(2) ACTIVITIES DESCRIBED.—The activities described in this paragraph that a covered person may use an unmanned aircraft system to conduct are the following:

''(A) Activities for which compliance with current law or regulation can be accomplished by the use of manned aircraft, including—

''(i) conducting activities to ensure compliance with Federal or State regulatory, permit, or other requirements, including to conduct surveys associated with applications for permits for new pipeline or pipeline systems construction or maintenance or rehabilitation of existing pipelines or pipeline systems; or

''(ii) conducting activities relating to ensuring compliance with—

''(I) the requirements of part 192 or 195 of title 49, Code of Federal Regulations; or

''(II) any Federal, State, or local governmental or regulatory body or industry best practice pertaining to the construction, ownership, operation, maintenance, repair, or replacement of covered facilities.

''(B) Activities to inspect, repair, construct, maintain, or protect covered facilities, including to respond to a pipeline, pipeline system, or electric energy infrastructure incident, or in response to or in preparation for a natural disaster, man-made disaster, severe weather event, or other incident beyond the control of the covered person that may cause material damage to a covered facility.

''(3) DEFINITIONS.—In this subsection:

''(A) COVERED FACILITY.—The term 'covered facility' means a pipeline, pipeline system, electric energy generation, transmission, or distribution facility (including renewable electric energy), oil or gas production, refining, or processing facility, or other critical infrastructure.

''(B) COVERED PERSON.—The term 'covered person' means a person that—

''(i) owns or operates a covered facility;

''(ii) is the sponsor of a covered facility project;

''(iii) is an association of persons described by clause (i) or (ii) and is seeking programmatic approval for an activity in accordance with this subsection; or

''(iv) is an agent of any person described in clause (i), (ii), or (iii).

''(C) CRITICAL INFRASTRUCTURE.—The term 'critical infrastructure' has the meaning given that term in section 2339D of title 18.

''(4) DEADLINE.—Within 90 days from the date of enactment of the FAA Reauthorization of 2016 the Administrator must certify to the appropriate committees of Congress that a process has been established to facilitate applications for operations provided for under this subsection. If the Administrator cannot provide this certification, the Administrator, within 180 days of from the due date of that certification, shall update the process under (a) to provide for such applications.''.

(b) TECHNICAL AND CONFORMING AMENDMENTS.—

(1) TABLE OF CONTENTS.—The table of contents for chapter 448, as amended by section 2125 of this Act, is further amended by inserting after the item relating to section 44804 the following:

''44805. Special rules for certain unmanned aircraft systems.''.

(2) SPECIAL RULES FOR CERTAIN UNMANNED AIRCRAFT SYSTEMS.—Section 333 of the FAA Modernization and Reform Act of 2012 (49 U.S.C. 40101 note) and the item relating to that section in the table of contents under section 1(b) of that Act (126 Stat. 13) are repealed.

SEC. 2127. ADDITIONAL RULEMAKING AUTHORITY.

(a) SENSE OF CONGRESS.—It is the sense of Congress that—

(1) beyond visual line of sight and nighttime operations of unmanned aircraft systems have tremendous potential—

(A) to enhance research and development both commercially and in academics;

(B) to spur economic growth and development through innovative applications of this emerging technology; and

(C) to improve emergency response efforts as it relates to assessing damage to critical infrastructure such as roads, bridges, and utilities, including water and power, ultimately speeding response time;

(2) advancements in miniaturization of safety technologies, including for aircraft weighing under 4.4 pounds, have increased economic opportunities for using unmanned aircraft systems while reducing kinetic energy and risk compared to unmanned aircraft that may weigh as much as 55 pounds;

(3) advancements in unmanned technology will have the capacity to ultimately improve manned aircraft safety; and

(4) integrating unmanned aircraft systems safely into the national airspace, including beyond visual line of sight and nighttime operations on a routine basis should remain a top priority for the Federal Aviation Administration as it pursues additional rulemakings under the amendments made by this section.

(b) IN GENERAL.—Chapter 448, as amended by section 2126 of this Act, is further amended by inserting after section 44805 the following:

"§ 44806. Additional rulemaking authority

''(a) IN GENERAL.—Notwithstanding the rulemaking required by section 332 of the FAA Modernization and Reform Act of 2012 (49 U.S.C. 40101 note) or the guidance required by section 44807 of this title and subject to subsection (b)(2) of this section and section 44808, the Administrator may issue regulations under which a person may operate certain unmanned aircraft systems (as determined by the Administrator) in the United States—

''(1) without an airman certificate;

''(2) without an airworthiness certificate for the associated unmanned aircraft; or

''(3) that are not registered with the Federal Aviation Administration.

''(b) MICRO UNMANNED AIRCRAFT SYSTEMS OPERATIONAL RULES.—

''(1) IN GENERAL.—Notwithstanding the rulemaking required by section 332 of the FAA Modernization and Reform Act of 2012 (49 U.S.C. 40101 note), the Administrator shall issue regulations not later than 270 days after the date of enactment of the Federal Aviation Administration Reauthorization Act of 2016 under which any person may operate a micro unmanned aircraft system classification of unmanned aircraft systems, the aircraft component of which weighs 4.4 pounds or less, including payload, without the person operating the system being required to pass any airman certification requirement, including any requirements under section 44703 of this title, part 61 of title 14, Code of Federal Regulations, or any other rule or regulation relating to airman certification.

''(2) OPERATIONAL RULES.—The rulemaking required by paragraph (1) relating to micro unmanned aircraft systems shall consider the following rules, or any appropriate modifications thereof concerning altitude, airspeed, geographic location, and time of day as the Administrator considers appropriate, for operation of such systems:

''(A) Operation an altitude of less than 400 feet above ground level.

''(B) Operation with an airspeed of not greater than 40 knots.

''(C) Operation within the visual line of sight of the operator.

''(D) Operation during the hours between sunrise and sunset.

''(E) Operation not less than 5 statute miles from the geographic center of an airport with an operational air traffic control tower or an airport denoted on a current aeronautical chart published by the Federal Aviation Administration, except that a micro unmanned aircraft system may be operated within 5 statute miles of such an airport if the operator of the system—

''(i) provides notice to the airport operator; and

''(ii) in the case of an airport with an operational air traffic control tower, receives approval from the air traffic control tower.

''(c) SCOPE OF REGULATIONS.—

''(1) IN GENERAL.—In determining whether a person may operate an unmanned aircraft system under 1 or more of the circumstances described under paragraphs (1) through (3) of subsection (a), the Administrator shall use a risk-based approach and consider, at a minimum, the physical and functional characteristics of the unmanned aircraft system.

''(2) LIMITATION.—The Administrator may only issue regulations under this section for unmanned aircraft systems that the Administrator determines may be operated safely in the national airspace system.

''(d) RULES OF CONSTRUCTION.—Nothing in this section may be construed—

''(1) to prohibit a person from operating an unmanned aircraft system under a circumstance described under paragraphs (1) through (3) of subsection (a) if—

''(A) the circumstance is allowed by regulations issued under this section; and

''(B) the person operates the unmanned aircraft system in a manner prescribed by the regulations; and

''(2) to limit or affect in any way the Administrator's authority to conduct a rulemaking, make a determination, or carry out any activity related to unmanned aircraft or unmanned aircraft systems under any other provision of law.''.

(c) TABLE OF CONTENTS.—The table of contents for chapter 448, as amended by section 2126 of this Act, is further amended by inserting after the item relating to section 44805 the following:

''44806. Additional rulemaking authority.''.

SEC. 2128. GOVERNMENTAL UNMANNED AIRCRAFT SYSTEMS.

(a) IN GENERAL.—Chapter 448, as amended by section 2127 of this Act, is further amended by inserting after section 44806 the following:

"§ 44807. Public unmanned aircraft systems

''(a) GUIDANCE.—The Secretary of Transportation shall issue guidance regarding the operation of a public unmanned aircraft system—

''(1) to streamline the process for the issuance of a certificate of authorization or a certificate of waiver;

''(2) to provide for a collaborative process with public agencies to allow for an incremental expansion of access to the national airspace system as technology matures and the necessary safety analyses and data become available, and until standards are completed and technology issues are resolved;

''(3) to facilitate the capability of public agencies to develop and use test ranges, subject to operating restrictions required by the Federal Aviation Administration, to test and operate public unmanned aircraft systems; and

''(4) to provide guidance on a public agency's responsibilities when operating an unmanned aircraft without a civil airworthiness certificate issued by the Administration.

''(b) STANDARDS FOR OPERATION AND CERTIFICATION.—The Administrator of the Federal Aviation Administration shall develop and implement operational and certification requirements for the operation of a public unmanned aircraft system in the national airspace system.

''(c) AGREEMENTS WITH GOVERNMENT AGENCIES.—

''(1) IN GENERAL.—The Secretary shall enter into an agreement with each appropriate public agency to simplify the process for issuing a certificate of waiver or a certificate of authorization with respect to an application for authorization to operate a public unmanned aircraft system in the national airspace system.

''(2) CONTENTS.—An agreement under paragraph (1) shall—

''(A) with respect to an application described in paragraph (1)—

''(i) provide for an expedited review of the application;

''(ii) require a decision by the Administrator on approval or disapproval not later than 60 business days after the date of submission of the application;

''(iii) allow for an expedited appeal if the application is disapproved; and

''(iv) if applicable, include verification of the data minimization policy required under subsection (d);

''(B) allow for a one-time approval of similar operations carried out during a fixed period of time; and

''(C) allow a government public safety agency to operate an unmanned aircraft weighing 25 pounds or less if that unmanned aircraft is operated—

''(i) within or beyond the line of sight of the operator;

''(ii) less than 400 feet above the ground;

''(iii) during daylight conditions;

''(iv) within Class G airspace; and

''(v) outside of 5 statute miles from any airport, heliport, seaplane base, spaceport, or other location with aviation activities.

''(d) DATA MINIMIZATION FOR CERTAIN PUBLIC UNMANNED AIRCRAFT SYSTEM OPERATORS.—Not later than 180 days after the date of enactment of the Federal Aviation Administration Reauthorization Act of 2016 each Federal agency authorized by the Secretary to operate an unmanned aircraft system shall develop and update a data minimization policy that requires, at a minimum, that—

''(1) prior to the deployment of any new unmanned aircraft system technology, and at least every 3 years, existing policies and procedures relating to the collection, use, retention, and dissemination of information obtained by an unmanned aircraft system must be examined to ensure that privacy, civil rights, and civil liberties are protected;

''(2) if the unmanned aircraft system is the platform for information collection, information must be collected, used, retained, and disseminated consistent with the Constitution, Federal law, and other applicable regulations and policies, such as the Privacy Act of 1974 (5 U.S.C. 552a);

''(3) the Federal agency or person operating on its behalf, only collect information using the unmanned aircraft system, or use unmanned aircraft system-collected information, to the extent that the collection or use is consistent with and relevant to an authorized purpose as determined by the head of a Federal agency and consistent with the law;

''(4) any information collected, using an unmanned aircraft or an unmanned aircraft system, that may contain personal information will not be retained by any Federal agency for more than 180 days after the date of collection unless—

''(A) the head of the Federal agency determines that retention of the information is directly relevant and necessary to accomplish the specific purpose for which the Federal agency used the unmanned aircraft system;

''(B) that Federal agency maintains the information in a system of records under section 552a of title 5; or

''(C) the information is required to be retained for a longer period under other applicable law, including regulations;

''(5) any information collected, using an unmanned aircraft or unmanned aircraft system, that is not maintained in a system of records under section 552a of title 5, will not be disseminated outside of that Federal agency unless—

''(A) dissemination is required by law; or

''(B) dissemination satisfies an authorized purpose and complies with that Federal agency's disclosure requirements;

''(6) to the extent it does not compromise law enforcement or national security a Federal agency shall—

''(A) provide notice to the public regarding where in the national airspace system the Federal agency is authorized to operate the unmanned aircraft system;

''(B) keep the public informed about the Federal agency's unmanned aircraft system program, including any changes to that program that would significantly affect privacy, civil rights, or civil liberties;

''(C) make available to the public, on an annual basis, a general summary of the Federal agency's unmanned aircraft system operations during the previous fiscal year, including—

''(i) a brief description of types or categories of missions flown; and

''(ii) the number of times the Federal agency provided assistance to other agencies or to State, local, tribal, or territorial governments; and

''(D) make available on a public and searchable Internet website the data minimization policy of the Federal agency;

''(7) ensures oversight of the Federal agency's unmanned aircraft system use, including—

''(A) the use of audits or assessments that comply with existing Federal agency policies and regulations;

''(B) the verification of the existence of rules of conduct and training for Federal Government personnel and contractors who work on programs, and procedures for reporting suspected cases of misuse or abuse of unmanned aircraft system technologies;

''(C) the establishment of policies and procedures, or confirmation that policies and procedures are in place, that provide meaningful oversight of individuals who have access to sensitive information, including personal information, collected using an unmanned aircraft system;

''(D) ensuring that any data-sharing agreements or policies, data use policies, and record management policies applicable to an unmanned aircraft system conform to applicable laws, regulations, and policies;

''(E) the establishment of policies and procedures, or confirmation that policies and procedures are in place, to authorize the use of an unmanned aircraft system in response to a request for unmanned aircraft system assistance in support of Federal, State, local, tribal, or territorial government operations; and

''(F) a requirement that State, local, tribal, and territorial government recipients of Federal grant funding for the purchase or use of unmanned aircraft systems for their own operations have in place policies and procedures to safeguard individuals' privacy, civil rights, and civil liberties prior to expending such funds; and

''(8) ensures the protection of civil rights and civil liberties, including—

''(A) ensuring that policies are in place to prohibit the collection, use, retention, or dissemination of data in any manner that would violate the First Amendment or in any manner that would discriminate against persons based upon their ethnicity, race, gender, national origin, religion, sexual orientation, or gender identity, in violation of law;

''(B) ensuring that unmanned aircraft system activities are performed in a manner consistent with the Constitution and applicable laws, Executive Orders, and other Presidential directives; and

''(C) ensuring that adequate procedures are in place to receive, investigate, and address, as appropriate, privacy, civil rights, and civil liberties complaints.

''(e) LAW ENFORCEMENT AND NATIONAL SECURITY.—Each Federal agency shall effectuate a requirement under subsection (d) only to the extent it does not compromise law enforcement or national security.

''(f) DEFINITION OF FEDERAL AGENCY.—In subsections (d) and (e), the term 'Federal agency' has the meaning given the term 'agency' in section 552(f) of title 5, United States Code.''.

(b) TECHNICAL AND CONFORMING AMENDMENTS.—

(1) TABLE OF CONTENTS.—The table of contents for chapter 448, as amended by section 2127 of this Act, is further amended by inserting after the item relating to section 44806 the following:

''44807. Public unmanned aircraft systems.''.

(2) PUBLIC UNMANNED AIRCRAFT SYSTEMS.—Section 334 of the FAA Modernization and reform Act of 2012 (49 U.S.C. 40101 note) and the item relating to that section in the table of contents under section 1(b) of that Act (126 Stat. 13) are repealed.

SEC. 2129. SPECIAL RULES FOR MODEL AIRCRAFT.

(a) IN GENERAL.—Chapter 448, as amended by section 2128 of this Act, is further amended by inserting after section 44807 the following:

''§ 44808. Special rules for model aircraft

''(a) IN GENERAL.—Notwithstanding any other provision of law relating to the incorporation of unmanned aircraft systems into Federal Aviation Administration plans and policies, including this chapter, the Administrator of the Federal Aviation Administration may not promulgate any new rule or regulation specific only to an unmanned aircraft operating as a model aircraft if—

''(1) the aircraft is flown strictly for hobby or recreational use;

''(2) the aircraft is operated in accordance with a community-based set of safety guidelines and within the programming of a nationwide community-based organization;

''(3) not flown beyond visual line of sight of persons co-located with the operator or in direct communication with the operator;

''(4) the aircraft is operated in a manner that does not interfere with and gives way to any manned aircraft;

''(5) when flown within 5 miles of an airport, the operator of the aircraft provides the airport operator, where applicable, and the airport air traffic control tower (when an air traffic facility is located at the airport) with prior notice and receives approval from the tower, to the extent practicable, for the operation from each (model aircraft operators flying from a permanent location within 5 miles of an airport should establish a mutually agreed upon operating procedure with the airport operator and the airport air traffic control tower (when an air traffic facility is located at the airport));

''(6) the aircraft is flown from the surface to not more than 400 feet in altitude, except under special conditions and programs established by a community-based organization; and

''(7) the operator has passed an aeronautical knowledge and safety test administered by the Federal Aviation Administration online for the operation of unmanned aircraft systems subject to the requirements of section 44809 and maintains proof of test passage to be made available to the Administrator or law enforcement upon request.

''(b) UPDATES.—

''(1) IN GENERAL.—The Administrator, in collaboration with government and industry stakeholders, including nationwide community-based organizations, shall initiate a process to update the operational parameters under subsection (a), as appropriate.

''(2) CONSIDERATIONS.—In updating an operational parameter under paragraph (1), the Administrator shall consider—

''(A) appropriate operational limitations to mitigate aviation safety risk and risk to the uninvolved public;

''(B) operations outside the membership, guidelines, and programming of a nationwide community-based organization;

''(C) physical characteristics, technical standards, and classes of aircraft operating under this section;

''(D) trends in use, enforcement, or incidents involving unmanned aircraft systems; and

''(E) ensuring, to the greatest extent practicable, that updates to the operational parameters correspond to, and leverage, advances in technology.

''(3) SAVINGS CLAUSE.—Nothing in this subsection shall be construed as expanding the authority of the Administrator to require operators of model aircraft under the exemption of this subsection to be required to seek permissive authority of the Administrator prior to operation in the national airspace system.

''(c) STATUTORY CONSTRUCTION.—Nothing in this section shall be construed to limit the authority of the Administrator to pursue enforcement action against persons operating model aircraft.

''(d) MODEL AIRCRAFT DEFINED.—In this section, the term 'model aircraft' means an unmanned aircraft that—

''(1) is capable of sustained flight in the atmosphere; and

''(2) is limited to weighing not more than 55 pounds, including the weight of anything attached to or carried by the aircraft, unless otherwise approved through a design, construction, inspection, flight test, and operational safety program administered by a community-based organization.''.

(b) TECHNICAL AND CONFORMING AMENDMENTS.—

(1) TABLE OF CONTENTS.—The table of contents for chapter 448, as amended by section 2128 of this Act, is further amended by inserting after the item relating to section 44807 the following:

''44808. Special rules for model aircraft.''.

(2) SPECIAL RULE FOR MODEL AIRCRAFT.—Section 336 of the FAA Modernization and Reform Act of 2012 (49 U.S.C. 40101 note) and the item relating to that section in the table of contents under section 1(b) of that Act (126 Stat. 13) are repealed.

SEC. 2130. UNMANNED AIRCRAFT SYSTEMS AERONAUTICAL KNOWLEDGE AND SAFETY.

(a) IN GENERAL.—Chapter 448, as amended by section 2129 of this Act, is further amended by inserting after section 44808 the following:

''§ 44809. Aeronautical knowledge and safety test

''(a) IN GENERAL.—An individual may not operate an unmanned aircraft system unless—

''(1) the individual has successfully completed an aeronautical knowledge and safety test under subsection (c);

''(2) the individual has authority to operate an unmanned aircraft under other Federal law; or

''(3) the individual is a holder of an airmen certificate issued under section 44703.

''(b) EXCEPTION.—This section shall not apply to the operation of an unmanned aircraft system that has been authorized by the Federal Aviation Administration under section 44802, 44805, 44806, or 44807. The Administrator may waive the requirements of this section for operators of aircraft weighing less than 0.55 pounds or for operators under the age of 13 operating the unmanned aircraft system under the supervision of an adult as determined by the Administrator.

''(c) AERONAUTICAL KNOWLEDGE AND SAFETY TEST.—Not later than 180 days after the date of enactment of the Federal Aviation Administration Reauthorization Act of 2016, the Administrator of the Federal Aviation Administration, in consultation with manufacturers of unmanned aircraft systems, other industry stakeholders, and community-based aviation organizations, shall develop an aeronautical knowledge and safety test that can be administered electronically.

''(d) REQUIREMENTS.—The Administrator shall ensure that the aeronautical knowledge

and safety test is designed to adequately demonstrate an operator's—

''(1) understanding of aeronautical safety knowledge, as applicable; and

''(2) knowledge of Federal Aviation Administration regulations and requirements pertaining to the operation of an unmanned aircraft system in the national airspace system.

''(e) RECORD OF COMPLIANCE.—

''(1) IN GENERAL.—Each operator of an unmanned aircraft system described under subsection (a) shall maintain and make available for inspection, upon request by the Administrator or a Federal, State, or local law enforcement officer, a record of compliance with this section through—

''(A) an identification number, issued by the Federal Aviation Administration certifying passage of the aeronautical knowledge and safety test;

''(B) if the individual has authority to operate an unmanned aircraft system under other Federal law, the requisite proof of authority under that law; or

''(C) an airmen certificate issued under section 44703.

''(2) COORDINATION.—The Administrator may coordinate the identification number under paragraph (1)(A) with an operator's registration number to the extent practicable.

''(3) LIMITATION.—No fine or penalty may be imposed for the initial failure of an operator of an unmanned aircraft system to comply with paragraph (1) unless the Administrator finds that the conduct of the operator actually posed a risk to the national airspace system.''.

(b) TABLE OF CONTENTS.—The table of contents for chapter 448, as amended by section 2129 of this Act, is further amended by inserting after the item relating to section 44808 the following:

''44809. Aeronautical knowledge and safety test.''.

SEC. 2131. SAFETY STATEMENTS.

(a) IN GENERAL.—Chapter 448, as amended by section 2130 of this Act, is further amended by inserting after section 44809 the following:

''§ 44810. Safety statements

''(a) PROHIBITION.—Beginning on the date that is 1 year after the date of publication of the guidance under subsection (b)(1), it shall be unlawful for any person to introduce or deliver for introduction into interstate commerce any unmanned aircraft manufactured unless a safety statement is attached to the unmanned aircraft or accompanying the unmanned aircraft in its packaging.

''(b) SAFETY STATEMENT.—

''(1) IN GENERAL.—Not later than 1 year after the date of enactment of the Federal Aviation Administration Reauthorization Act of 2016, the Administrator of the Federal Aviation Administration shall issue guidance for implementing this section.

''(2) REQUIREMENTS.—A safety statement described in subsection (a) shall include—

''(A) information about laws and regulations applicable to unmanned aircraft systems;

''(B) recommendations for using unmanned aircraft in a manner that promotes the safety of persons and property;

''(C) the date that the safety statement was created or last modified; and

''(D) language approved by the Administrator regarding the following:

''(i) A person may operate the unmanned aircraft as a model aircraft (as defined in section 44808) or otherwise in accordance with Federal Aviation Administration authorization or regulation, including requirements for the completion of the aeronautical knowledge and safety test under section 44809.

''(ii) The definition of a model aircraft under section 44808.

''(iii) The requirements regarding a model aircraft under paragraphs (1) through (7) of section 44808(a).

''(iv) The Administrator of the Federal Aviation Administration may pursue enforcement action against a person operating model aircraft who endangers the safety of the national airspace system.

''(c) CIVIL PENALTY.—A person who violates subsection (a) shall be liable for each violation to the United States Government for a civil penalty described in section 46301(a).''.

(b) TABLE OF CONTENTS.—The table of contents for chapter 448, as amended by section 2130 of this Act, is further amended by inserting after the item relating to section 44809 the following:

''44810. Safety statements.''.

SEC. 2132. TREATMENT OF UNMANNED AIRCRAFT OPERATING UNDERGROUND.

An unmanned aircraft system that is operated underground for mining purposes shall not be subject to regulation or enforcement by the Federal Aviation Administration under chapter 448 of title 49, United States Code.

SEC. 2133. ENFORCEMENT.

(a) UAS SAFETY ENFORCEMENT.—The Administrator of the Federal Aviation Administration shall establish a program to utilize available remote detection and identification technologies for safety oversight, including enforcement actions against operators of unmanned aircraft systems that are not in compliance with applicable Federal aviation laws, including regulations.

(b) CIVIL PENALTIES.—

(1) IN GENERAL.—Section 46301 is amended—

(A) in subsection (a)(1)(A), by inserting ''chapter 448,'' after ''chapter 447 (except sections 44717 and 44719–44723),'';

(B) in subsection (a)(5), by inserting ''chapter 448,'' after ''chapter 447 (except sections 44717–44723),'';

(C) in subsection (d)(2), by inserting ''chapter 448,'' after ''chapter 447 (except sections 44717 and 44719–44723),''; and

(D) in subsection (f), by inserting ''chapter 448,'' after ''chapter 447 (except 44717 and 44719–44723),''.

(2) RULE OF CONSTRUCTION.—Nothing in this subsection shall be construed to limit the authority of the Administrator to pursue an enforcement action for a violation of this Act, a regulation prescribed or order or authority issued under this Act, or any other applicable provision of aviation safety law or regulation.

(c) REPORTING.—As part of the program, the Administrator shall establish and publicize a mechanism for the public and Federal, State, and local law enforcement to report a suspected abuse or a violation of chapter 448 of title 49, United States Code, for enforcement action.

(d) AUTHORIZATION OF APPROPRIATIONS.—To carry out this section, there is authorized to be appropriated $5,000,000 for each of the fiscal years 2016 through 2017.

SEC. 2134. AVIATION EMERGENCY SAFETY PUBLIC SERVICES DISRUPTION.

(a) IN GENERAL.—Chapter 463 is amended—

(1) in section 46301(d)(2), by inserting ''section 46320,'' after ''section 46319,''; and

(2) by adding at the end the following:

''§ 46320. Interference with firefighting, law enforcement, or emergency response activities

''(a) PROHIBITION.—No person may operate an aircraft so as to interfere with firefighting, law enforcement, or emergency response activities.

''(b) DEFINITION.—For purposes of this section, an aircraft interferes with the activities specified in subsection (a) when its operation prevents the initiation of, interrupts, or endangers a person or property engaged in those activities.

''(c) CIVIL PENALTY.—A person violating subsection (a) shall be liable for a civil penalty of not more than $20,000.

''(d) COMPROMISE AND SETOFF.—The United States Government may deduct the amount of a civil penalty imposed or compromised under this section from the amounts the Government owes the person liable for the penalty.''.

(b) TABLE OF CONTENTS.—The table of contents for chapter 463 is amended by inserting after the item relating to section 46319 the following:

''46320. Interference with firefighting, law enforcement, or emergency response activities.''.

SEC. 2135. PILOT PROJECT FOR AIRPORT SAFETY AND AIRSPACE HAZARD MITIGATION.

(a) IN GENERAL.—The Administrator of the Federal Aviation Administration shall carry out a pilot program for airspace hazard mitigation at airports and other critical infrastructure.

(b) CONSULTATION.—In carrying out the pilot program under subsection (a), the Administrator shall work with the Secretary of Defense, Secretary of Homeland Security, and the heads of relevant Federal agencies for the purpose of ensuring technologies that are developed, tested, or deployed by those departments and agencies to mitigate threats posed by errant or hostile unmanned aircraft system operations do not adversely impact or interfere with safe airport operations, navigation, and air traffic services.

(c) AUTHORIZATION OF APPROPRIATIONS.—There is authorized to be appropriated from the Airport and Airway Trust Fund to carry out this section $6,000,000, to remain available until expended.

SEC. 2136. CONTRIBUTION TO FINANCING OF REGULATORY FUNCTIONS.

(a) IN GENERAL.—Chapter 448, as amended by section 2131 of this Act, is further amended by inserting after section 44810 the following:

''§ 44811. Regulatory and administrative fees

''(a) IN GENERAL.—Subject to subsection (b), the Administrator may assess and collect regulatory and administrative fees to recover the costs of regulatory and administrative activities under this chapter related to authorization to operate unmanned aircraft systems for compensation or hire, or in the furtherance of a business enterprise.

''(b) LIMITATIONS.—Fees authorized under subsection (a) shall be reasonable, cost-based relative to the regulatory or administrative activity, and may not be discriminatory or a deterrent to compliance.

''(c) RECEIPTS CREDITED TO ACCOUNT.—Notwithstanding section 3302 of title 31, all fees and amounts collected under this section shall be credited to the separate account established under section 45303(c). Section 41742 shall not apply to fees and amounts collected under this section.

''(d) REGULATIONS.—Not later than 1 year after the date of enactment of the Federal Aviation Administration Reauthorization Act of 2016, the Administrator shall issue regulations to carry out this section.''.

(b) TABLE OF CONTENTS.—The table of contents for chapter 448, as amended by section 2131 of this Act, is further amended by inserting after the item relating to section 44810 the following:

''44811. Regulatory and administrative fees.''.

SEC. 2137. SENSE OF CONGRESS REGARDING SMALL UAS RULEMAKING.

It is the sense of the Congress that the Administrator of the Federal Aviation Administration and Secretary of Transportation

should take every necessary action to expedite final action on the notice of proposed rulemaking dated February 23, 2015 (80 Fed. Reg. 9544), entitled ''Operation and Certification of Small Unmanned Aircraft Systems''.

SEC. 2138. UNMANNED AIRCRAFT SYSTEMS TRAFFIC MANAGEMENT.

(a) RESEARCH PLAN FOR UTM DEVELOPMENT.—

(1) IN GENERAL.—The Administrator of the Federal Aviation Administration, in coordination with the Administrator of the National Aeronautics and Space Administration, shall develop a research plan for unmanned aircraft systems traffic management (referred to in this section as ''UTM'') development.

(2) REQUIREMENTS.—In developing the research plan under paragraph (1), the Administrator shall—

(A) identify research goals related to:

(i) operational parameters related to altitude, geographic coverage, classes of airspace, and critical infrastructure;

(ii) avionics capability requirements or standards;

(iii) operator identification and authentication requirements and capabilities;

(iv) communication protocols with air traffic control facilities that will not interfere with existing responsibility to deconflict manned aircraft in the national airspace system;

(v) collision avoidance requirements;

(vi) separation standards for manned and unmanned aircraft; and

(vii) spectrum needs;

(B) evaluate options for the administration and management structure for the traffic management of low altitude operations of small unmanned aircraft systems; and

(C) ensure the plan is consistent with the broader Federal Aviation Administration regulatory and operational framework encompassing all unmanned aircraft systems operations expected to be authorized in the national airspace system.

(3) ASSESSMENT.—The research plan under paragraph (1) shall include an assessment of—

(A) the ability to allow near-term small unmanned aircraft system operations without need of an automated UTM system;

(B) the full range of operational capability any automated UTM system should possess;

(C) the operational characteristics and metrics that would drive incremental adoption of automated capability and procedures consistent with a rising aggregate community demand for service for low altitude operations of small unmanned aircraft systems; and

(D) the integration points for small unmanned aircraft system traffic management with the existing national airspace system planning and traffic management systems.

(4) DEADLINES.—The Administrator shall—

(A) initiate development of the research plan not later than 90 days after the date of enactment of this Act; and

(B) not later than 180 days after the date of enactment of this Act—

(i) complete the research plan;

(ii) submit the research plan to the appropriate committees of Congress; and

(iii) publish the research plan on the Federal Aviation Administration's Web site.

(b) PILOT PROGRAM.—

(1) IN GENERAL.—Not later than 120 days after the date the research plan under subsection (a) is submitted under paragraph (4)(B) of that subsection, the Administrator of the Federal Aviation Administration shall coordinate with the Administrator of the National Aeronautics and Space Administration and the small unmanned aircraft systems industry to develop operational concepts and top-level system requirements for a UTM system pilot program, consistent with subsection (a).

(2) SOLICITATION.—The Administrator shall issue a solicitation for operational prototype systems that meet the necessary objectives for use in a pilot program to demonstrate, validate, or modify, as appropriate, the requirements developed under paragraph (1).

(c) COMPREHENSIVE PLAN.—

(1) IN GENERAL.—Not later than 270 days after the date the pilot program under subsection (b) is complete, the Administrator of the Federal Aviation Administration, in coordination with the Administrator of the National Aeronautics and Space Administration, and in consultation with the head of each relevant Federal agency, shall develop a comprehensive plan for the deployment of UTM systems in the national airspace.

(2) SYSTEM REQUIREMENTS.—The comprehensive plan under paragraph (1) shall include requirements or standards consistent with established or planned rulemaking for, at a minimum—

(A) the flight of small unmanned aircraft systems in controlled and uncontrolled airspace;

(B) communications, as applicable—

(i) among small unmanned aircraft systems;

(ii) between small unmanned aircraft systems and manned aircraft operating in the same airspace; and

(iii) between small unmanned aircraft systems and air traffic control as considered necessary; and

(C) air traffic management for small unmanned aircraft systems operations.

(d) SYSTEM IMPLEMENTATION.—Based on the comprehensive plan under subsection (c), including the requirements under paragraph (2) of that subsection, and the pilot program under subsection (b), the Administrator shall determine the operational need and implementation schedule for evolutionary use of automation support systems to separate and deconflict manned and unmanned aircraft systems.

SEC. 2139. EMERGENCY EXEMPTION PROCESS.

(a) IN GENERAL.—Not later than 90 days after the date of enactment of this Act, the Administrator of the Federal Aviation Administration shall publish guidance for applications for, and procedures for the processing of, on an emergency basis, exemptions or certificates of authorization or waiver for the use of unmanned aircraft systems by civil or public operators in response to a catastrophe, disaster, or other emergency to facilitate emergency response operations, such as firefighting, search and rescue, and utility and infrastructure restoration efforts. This guidance shall outline procedures for operations under both sections 44805 and 44807, of title 49, United States Code, with priority given to applications for public unmanned aircraft systems engaged in emergency response activities.

(b) REQUIREMENTS.—In providing guidance under subsection (a), the Administrator shall—

(1) make explicit any safety requirements that must be met for the consideration of applications that include requests for beyond visual line of sight, nighttime operations, or the suspension of otherwise applicable operating restrictions, consistent with public interest and safety; and

(2) explicitly state the procedures for coordinating with an incident commander, if any, to ensure operations granted under procedures developed under subsection (a) do not interfere with manned catastrophe, disaster, or other emergency response operations or otherwise impact response efforts.

(c) REVIEW.—In processing applications on an emergency basis for exemptions or certificates of authorization or waiver for unmanned aircraft systems operations in response to a catastrophe, disaster, or other emergency, the Administrator of the Federal Aviation Administration shall act on such applications as expeditiously as practicable and without requiring public notice and comment.

SEC. 2140. PUBLIC UAS OPERATIONS BY TRIBAL GOVERNMENTS.

(a) PUBLIC UAS OPERATIONS BY TRIBAL GOVERNMENTS.—Section 40102(a)(41) is amended by adding at the end the following:

''(F) An unmanned aircraft that is owned and operated by or exclusively leased for at least 90 consecutive days by an Indian tribal government (as defined in section 102 of the Robert T. Stafford Disaster Relief and Emergency Assistance Act (42 U.S.C. 5122)), except as provided in section 40125(b).''.

(b) CONFORMING AMENDMENT.—Section 40125(b) is amended by striking ''or (D)'' and inserting ''(D), or (F)''.

SEC. 2141. CARRIAGE OF PROPERTY BY SMALL UNMANNED AIRCRAFT SYSTEMS FOR COMPENSATION OR HIRE.

(a) IN GENERAL.—Chapter 448, as amended by section 2136 of this Act, is further amended by adding after section 44811 the following:

''§ 44812. Carriage of property by small unmanned aircraft systems for compensation or hire

''(a) IN GENERAL.—Not later than 2 years after the date of enactment of this section, the Secretary of Transportation shall issue a final rule authorizing the carriage of property by operators of small unmanned aircraft systems for compensation or hire within the United States.

''(b) CONTENTS.—The final rule required under subsection (a) shall provide for the following:

''(1) SMALL UAS AIR CARRIER CERTIFICATE.—The Administrator of the Federal Aviation Administration, at the direction of the Secretary, shall establish a certificate (to be known as a 'small UAS air carrier certificate') for persons that undertake directly, by lease, or other arrangement the operation of small unmanned aircraft systems to carry property in air transportation, including commercial fleet operations with highly automated unmanned aircraft systems. The requirements to operate under a small UAS air carrier certificate shall—

''(A) consider the unique characteristics of highly automated, small unmanned aircraft systems; and

''(B) include requirements for the safe operation of small unmanned aircraft systems that, at a minimum, address—

''(i) airworthiness of small unmanned aircraft systems;

''(ii) qualifications for operators and the type and nature of the operations; and

''(iii) operating specifications governing the type and nature of the unmanned aircraft system air carrier operations.

''(2) SMALL UAS AIR CARRIER CERTIFICATION PROCESS.—The Administrator, at the direction of the Secretary, shall establish a process for the issuance of small UAS air carrier certificates established pursuant to paragraph (1) that is performance-based and ensures required safety levels are met. Such certification process shall consider—

''(A) safety risks and the mitigation of those risks associated with the operation of highly automated, small unmanned aircraft around other manned and unmanned aircraft, and over persons and property on the ground;

''(B) the competencies and compliance programs of manufacturers, operators, and companies that manufacture, operate, or both small unmanned aircraft systems and components; and

''(C) compliance with the requirements established pursuant to paragraph (1).

''(3) SMALL UAS AIR CARRIER CLASSIFICATION.—The Secretary shall develop a classification system for persons issued small UAS air carrier certificates pursuant to this subsection to establish economic authority for the carriage of property by small unmanned aircraft systems for compensation or hire. Such classification shall only require—

''(A) registration with the Department of Transportation; and

''(B) a valid small UAS air carrier certificate issued pursuant to this subsection.''.

(b) TABLE OF CONTENTS.—The table of contents for chapter 448, as amended by section 2136 of this Act, is further amended by adding after the item relating to section 44811 the following:

''44812. Carriage of property by small unmanned aircraft systems for compensation or hire.''.

SEC. 2142. COLLEGIATE TRAINING INITIATIVE PROGRAM FOR UNMANNED AIRCRAFT SYSTEMS.

(a) IN GENERAL.—Not later than 180 days after the date of enactment of this Act, the Administrator of the Federal Aviation Administration shall establish a Collegiate Training Initiative program relating to unmanned aircraft systems by making new agreements or continuing existing agreements with institutions of higher education (as defined by the Administrator) under which the institutions prepare students for careers involving unmanned aircraft systems. The Administrator may establish standards for the entry of such institutions into the program and for their continued participation in the program.

(b) UNMANNED AIRCRAFT SYSTEM DEFINED.—In this section, the term ''unmanned aircraft system'' has the meaning given that term by section 44801 of title 49, United States Code, as added by section 2121 of this Act.

SEC. 2143. INCORPORATION OF FEDERAL AVIATION ADMINISTRATION OCCUPATIONS RELATING TO UNMANNED AIRCRAFT INTO VETERANS EMPLOYMENT PROGRAMS OF THE ADMINISTRATION.

Not later than 180 days after the date of the enactment of this Act, the Administrator of the Federal Aviation Administration, in consultation with the Secretary of Veterans Affairs, the Secretary of Defense, and the Secretary of Labor, shall determine whether occupations of the Administration relating to unmanned aircraft systems technology and regulations can be incorporated into the Veterans Employment Program of the Administration, particularly in the interaction between such program and the New Sights Work Experience Program and the Vet-Link Cooperative Education Program.

PART III—TRANSITION AND SAVINGS PROVISIONS

SEC. 2151. SENIOR ADVISOR FOR UNMANNED AIRCRAFT SYSTEMS INTEGRATION.

(a) IN GENERAL.—There shall be in the Federal Aviation Administration a Senior Advisor for Unmanned Aircraft Systems Integration.

(b) QUALIFICATIONS.—The Senior Advisor for Unmanned Aircraft Systems Integration shall have a demonstrated ability in management and knowledge of or experience in aviation.

(c) RESPONSIBILITIES.—Unless otherwise determined by the Administrator of the Federal Aviation Administration—

(1) the Senior Advisor shall report directly to the Deputy Administrator of the Federal Aviation Administration; and

(2) the responsibilities of the Senior Advisor shall include the following:

(A) Providing advice to the Administrator and Deputy Administrator related to the integration of unmanned aircraft systems into the national airspace system.

(B) Reviewing and evaluating Federal Aviation Administration policies, activities, and operations related to unmanned aircraft systems.

(C) Facilitating coordination and collaboration among components of the Federal Aviation Administration with respect to activities related to unmanned aircraft systems integration.

(D) Interacting with Congress, and Federal, State, or local agencies, and stakeholder organizations whose operations and interests are affected by the activities of the Federal Aviation Administration on matters related to unmanned aircraft systems integration.

SEC. 2152. EFFECT ON OTHER LAWS.

(a) FEDERAL PREEMPTION.—No State or political subdivision of a State may enact or enforce any law, regulation, or other provision having the force and effect of law relating to the design, manufacture, testing, licensing, registration, certification, operation, or maintenance of an unmanned aircraft system, including airspace, altitude, flight paths, equipment or technology requirements, purpose of operations, and pilot, operator, and observer qualifications, training, and certification.

(b) PRESERVATION OF STATE AND LOCAL AUTHORITY.—Nothing in this subtitle shall be construed to limit a State or local government's authority to enforce Federal, State, or local laws relating to nuisance, voyeurism, privacy, data security, harassment, reckless endangerment, wrongful death, personal injury, property damage, or other illegal acts arising from the use of unmanned aircraft systems if such laws are not specifically related to the use of an unmanned aircraft system.

(c) NO PREEMPTION OF COMMON LAW OR STATUTORY CAUSES OF ACTION.—Nothing in this subtitle, nor any standard, rule, requirement, standard of performance, safety determination, or certification implemented pursuant to this subtitle, shall be construed to preempt, displace, or supplant any State or Federal common law rights or any State or Federal statute creating a remedy for civil relief, including those for civil damage, or a penalty for a criminal conduct. Notwithstanding any other provision of this subtitle, nothing in this subtitle, nor any amendments made by this subtitle, shall preempt or preclude any cause of action for personal injury, wrongful death, property damage, or other injury based on negligence, strict liability, products liability, failure to warn, or any other legal theory of liability under any State law, maritime law, or Federal common law or statutory theory.

SEC. 2153. SPECTRUM.

(a) IN GENERAL.—Small unmanned aircraft systems may operate wireless control link, tracking, diagnostics, payload communication, and collaborative-collision avoidance, such as vehicle-to-vehicle communication, and other uses, if permitted by and consistent with the Communications Act of 1934 (47 U.S.C. 151 et seq.), Federal Communications Commission rules, and the safety-of-life determination made by the Federal Aviation Administration, and with carrier consent, whether they are operating within the UTM system under section 2138 of this Act or outside such a system.

(b) REPORT.—Not later than 180 days after the date of enactment of this Act, the Administrator of the Federal Aviation Administration, the National Telecommunications and Information Administration, and the Federal Communications Commission, shall submit to the Committee on Commerce, Science, and Transportation of the Senate, the Committee on Transportation and Infrastructure of the House of Representatives, and the Committee on Energy and Commerce of the House of Representatives a report—

(1) on whether small unmanned aircraft systems operations should be permitted to operate on spectrum designated for aviation use, on an unlicensed, shared, or exclusive basis, for operations within the UTM system or outside of such a system;

(2) that addresses any technological, statutory, regulatory, and operational barriers to the use of such spectrum; and

(3) that, if it is determined that spectrum designated for aviation use is not suitable for operations by small unmanned aircraft systems, includes recommendations of other spectrum frequencies that may be appropriate for such operations.

SEC. 2154. APPLICATIONS FOR DESIGNATION.

(a) APPLICATIONS FOR DESIGNATION.—Not later than 180 days after the date of enactment of this Act, the Secretary of Transportation shall establish a process to allow applicants to petition the Administrator of the Federal Aviation Administration to prohibit or otherwise limit the operation of an aircraft, including an unmanned aircraft, over, under, or within a specified distance from a fixed site facility.

(b) REVIEW PROCESS.—

(1) APPLICATION PROCEDURES.—

(A) IN GENERAL.—The Administrator shall establish the procedures for the application for designation under subsection (a).

(B) REQUIREMENTS.—The procedures shall—

(i) allow individual fixed site facility applications; and

(ii) allow for a group of similar facilities to apply for a collective designation.

(C) CONSIDERATIONS.—In establishing the procedures, the Administrator shall consider how the process will apply to—

(i) critical infrastructure, such as energy production, transmission, and distribution facilities and equipment;

(ii) oil refineries and chemical facilities;

(iii) amusement parks; and

(iv) other locations that may benefit from such restrictions.

(2) DETERMINATION.—

(A) IN GENERAL.—The Secretary shall provide for a determination under the review process established under subsection (a) not later than 90 days from the date of application, unless the applicant is provided with written notice describing the reason for the delay.

(B) AFFIRMATIVE DESIGNATIONS.—An affirmative designation shall outline—

(i) the boundaries for unmanned aircraft operation near the fixed site facility; and

(ii) such other limitations that the Administrator determines may be appropriate.

(C) CONSIDERATIONS.—In making a determination whether to grant or deny an application for a designation, the Administrator may consider—

(i) aviation safety;

(ii) personal safety of the uninvolved public;

(iii) national security; or

(iv) homeland security.

(D) OPPORTUNITY FOR RESUBMISSION.—If an application is denied and the applicant can reasonably address the reason for the denial, the Administrator may allow the applicant to reapply for designation.

(c) PUBLIC INFORMATION.—Designations under subsection (a) shall be published by the Federal Aviation Administration on a publicly accessible website.

SEC. 2155. USE OF UNMANNED AIRCRAFT SYSTEMS AT INSTITUTIONS OF HIGHER EDUCATION.

(a) IN GENERAL.—Not later than 270 days after the date of enactment of this Act, the

Administrator of the Federal Aviation Administration shall establish procedures and standards, as applicable, to facilitate the safe operation of unmanned aircraft systems by institutions of higher education, including faculty, students, and staff.

(b) STANDARDS.—The procedures and standards required under subsection (a) shall outline risk-based operational parameters to ensure the safety of the national airspace system and the uninvolved public that facilitates the use of unmanned aircraft systems for educational or research purposes.

(c) UNMANNED AIRCRAFT SYSTEM APPROVAL.—The procedures required under subsection (a) shall allow unmanned aircraft systems operated under this section to be modified for research purposes without iterative approval from the Administrator.

(d) ADDITIONAL PROCEDURES.—The Administrator shall establish a procedure to provide for streamlined, risk-based operational approval for unmanned aircraft systems operated by institutions of higher education, including faculty, students, and staff, outside of the parameters or purposes set forth in subsection (b).

(e) DEADLINES.—

(1) IN GENERAL.—If, by the date that is 270 days after the date of enactment of this Act, the Administrator has not set forth standards and procedures required under subsections (a), (b), and (c), an institution of higher education may—

(A) without specific approval from the Federal Aviation Administration, operate small unmanned aircraft at model aircraft fields approved by the Academy of Model Aeronautics and with the permission of the local club of the Academy of Model Aeronautics; and

(B) submit to the Federal Aviation Administration applications for approval of the institution's designation of 1 or more outdoor flight fields.

(2) CONSEQUENCE OF FAILURE TO APPROVE.—If the Administrator does not take action with respect to an application submitted under paragraph (1)(B) within 30 days of the submission of the application, the failure to do so shall be treated as approval of the application.

(f) DEFINITIONS.—In this section:

(1) INSTITUTION OF HIGHER EDUCATION.—The term ''institution of higher education'' has the meaning given that term by section 101(a) of the Higher Education Act of 1965 (20 U.S.C. 1001(a)).

(2) UNMANNED AIRCRAFT SYSTEM.—The term ''unmanned aircraft system'' has the meaning given the term in section 44801 of title 49, United States Code, as added by section 2121 of this Act.

(3) EDUCATIONAL OR RESEARCH PURPOSES.—The term ''educational or research purposes'', with respect to the operation of an unmanned aircraft system by an institution of higher education, includes—

(A) instruction of students at the institution;

(B) academic or research related use of unmanned aircraft systems by student organizations recognized by the institution, if such use has been approved by the institution;

(C) activities undertaken by the institution as part of research projects, including research projects sponsored by the Federal Government; and

(D) other academic activities at the institution, including general research, engineering, and robotics.

SEC. 2156. TRANSITION LANGUAGE.

(a) REGULATIONS.—Notwithstanding the repeals under sections 2122(b)(2), 2125(b)(2), 2126(b)(2), 2128(b)(2), and 2129(b)(2) of this Act, all orders, determinations, rules, regulations, permits, grants, and contracts, which have been issued under any law described under subsection (b) of this section on or before the effective date of this Act shall continue in effect until modified or revoked by the Secretary of Transportation, acting through the Administrator of the Federal Aviation Administration, as applicable, by a court of competent jurisdiction, or by operation of law other than this Act.

(b) LAWS DESCRIBED.—The laws described under this subsection are as follows:

(1) Section 332(c) of the FAA Modernization and Reform Act of 2012 (49 U.S.C. 40101 note).

(2) Section 332(d) of the FAA Modernization and Reform Act of 2012 (49 U.S.C. 40101 note).

(3) Section 333 of the FAA Modernization and Reform Act of 2012 (49 U.S.C. 40101 note).

(4) Section 334 of the FAA Modernization and Reform Act of 2012 (49 U.S.C. 40101 note).

(5) Section 336 of the FAA Modernization and Reform Act of 2012 (49 U.S.C. 40101 note).

(c) EFFECT ON PENDING PROCEEDINGS.—This Act shall not affect administrative or judicial proceedings pending on the effective date of this Act.

PART IV—OPERATOR SAFETY

SEC. 2161. SHORT TITLE.

This part may be cited as the ''Drone Operator Safety Act''.

SEC. 2162. FINDINGS; SENSE OF CONGRESS.

(a) FINDING.—Congress finds that educating operators of unmanned aircraft about the laws and regulations that govern such aircraft helps to ensure their safe operation.

(b) SENSE OF CONGRESS.—It is the sense of Congress that the Administrator of the Federal Aviation Administration should continue to prioritize the education of operators of unmanned aircraft through public outreach efforts like the ''Know Before You Fly'' campaign.

SEC. 2163. UNSAFE OPERATION OF UNMANNED AIRCRAFT.

(a) IN GENERAL.—Chapter 2 of title 18, United States Code, is amended—

(1) in section 31—

(A) in subsection (a)—

(i) by redesignating paragraph (10) as paragraph (11); and

(ii) by inserting after paragraph (9) the following:

''(10) UNMANNED AIRCRAFT.—The term 'unmanned aircraft' has the meaning given such term in section 44801 of title 49.''; and

(B) in subsection (b), by inserting '' 'airport','' before '' 'appliance' ''; and

(2) by inserting after section 39A the following:

''§ 39B. Unsafe operation of unmanned aircraft

''(a) OFFENSE.—Any person who operates an unmanned aircraft and, in so doing, knowingly or recklessly interferes with, or disrupts the operation of, an aircraft carrying 1 or more occupants operating in the special aircraft jurisdiction of the United States, in a manner that poses an imminent safety hazard to such occupants, shall be punished as provided in subsection (b).

''(b) PENALTY.—

''(1) IN GENERAL.—Except as provided in paragraph (2), the punishment for an offense under subsection (a) shall be a fine under this title, imprisonment for not more than 1 year, or both.

''(2) SERIOUS BODILY INJURY OR DEATH.—Any person who attempts to cause, or knowingly or recklessly causes, serious bodily injury or death during the commission of an offense under subsection (a) shall be fined under this title, imprisoned for any term of years or for life, or both.

''(c) OPERATION OF UNMANNED AIRCRAFT IN CLOSE PROXIMITY TO AIRPORTS.—

''(1) IN GENERAL.—The operation of an unmanned aircraft within a runway exclusion zone shall be considered a violation of subsection (a) unless such operation is approved by the airport's air traffic control facility or is the result of a circumstance, such as a malfunction, that could not have been reasonably foreseen or prevented by the operator.

''(2) RUNWAY EXCLUSION ZONE DEFINED.—In this subsection, the term 'runway exclusion zone' means a rectangular area—

''(A) centered on the centerline of an active runway of an airport immediately around which the airspace is designated as class B, class C, or class D airspace at the surface under part 71 of title 14, Code of Federal Regulations; and

''(B) the length of which extends parallel to the runway's centerline to points that are 1 statute mile from each end of the runway and the width of which is ½ statute mile.''.

(b) CLERICAL AMENDMENT.—The table of sections for chapter 2 of title 18, United States Code, is amended by inserting after the item relating to section 39A the following:

''39B. Unsafe operation of unmanned aircraft.''.

Subtitle B—FAA Safety Certification Reform

PART I—GENERAL PROVISIONS

SEC. 2211. DEFINITIONS.

In this subtitle:

(1) ADMINISTRATOR.—The term ''Administrator'' means the Administrator of the Federal Aviation Administration.

(2) ADVISORY COMMITTEE.—The term ''Advisory Committee'' means the Safety Oversight and Certification Advisory Committee established under section 2212.

(3) FAA.—The term ''FAA'' means the Federal Aviation Administration.

(4) SECRETARY.—The term ''Secretary'' means the Secretary of Transportation.

(5) SYSTEMS SAFETY APPROACH.—The term ''systems safety approach'' means the application of specialized technical and managerial skills to the systematic, forward-looking identification and control of hazards throughout the lifecycle of a project, program, or activity.

SEC. 2212. SAFETY OVERSIGHT AND CERTIFICATION ADVISORY COMMITTEE.

(a) ESTABLISHMENT.—Not later than 60 days after the date of enactment of this Act, the Secretary shall establish a Safety Oversight and Certification Advisory Committee in accordance with this section.

(b) DUTIES.—The Advisory Committee shall provide advice to the Secretary on policy-level issues facing the aviation community that are related to FAA safety oversight and certification programs and activities, including the following:

(1) Aircraft and flight standards certification processes, including efforts to streamline those processes.

(2) Implementation and oversight of safety management systems.

(3) Risk-based oversight efforts.

(4) Utilization of delegation and designation authorities, including organization designation authorization.

(5) Regulatory interpretation standardization efforts.

(6) Training programs.

(7) Expediting the rulemaking process and prioritizing safety-related rules.

(8) Enhancing global competitiveness of U.S. manufactured and FAA type-certificate aircraft products and services throughout the world.

(c) FUNCTIONS.—In carrying out its duties under subsection (b) related to FAA safety oversight and certification programs and activities, the Advisory Committee shall—

(1) foster aviation stakeholder collaboration in an open and transparent manner;

(2) consult with, and ensure participation by—

(A) the private sector, including representatives of—

(i) general aviation;

(ii) commercial aviation;

(iii) aviation labor;

(iv) aviation, aerospace, and avionics manufacturing; and

(v) unmanned aircraft systems industry; and

(B) the public;

(3) recommend consensus national goals, strategic objectives, and priorities for the most efficient, streamlined, and cost-effective safety oversight and certification processes in order to maintain the safety of the aviation system while allowing the FAA to meet future needs and ensure that aviation stakeholders remain competitive in the global marketplace;

(4) provide policy recommendations for the FAA's safety oversight and certification efforts;

(5) periodically review and provide recommendations regarding the FAA's safety oversight and certification efforts;

(6) periodically review and evaluate registration, certification, and related fees;

(7) provide appropriate legislative, regulatory, and guidance recommendations for the air transportation system and the aviation safety regulatory environment;

(8) recommend performance objectives for the FAA and aviation industry;

(9) recommend performance metrics for the FAA and the aviation industry to be tracked and reviewed as streamlining certification reform, flight standards reform, and regulation standardization efforts progress;

(10) provide a venue for tracking progress toward national goals and sustaining joint commitments;

(11) recommend recruiting, hiring, staffing levels, training, and continuing education objectives for FAA aviation safety engineers and aviation safety inspectors;

(12) provide advice and recommendations to the FAA on how to prioritize safety rulemaking projects;

(13) improve the development of FAA regulations by providing information, advice, and recommendations related to aviation issues;

(14) encourage the validation of U.S. manufactured and FAA type-certificate aircraft products and services throughout the world; and

(15) any other functions as determined appropriate by the chairperson of the Advisory Committee and the Administrator.

(d) MEMBERSHIP.—

(1) VOTING MEMBERS.—The Advisory Committee shall be composed of the following voting members:

(A) The Administrator, or the Administrator's designee.

(B) At least 1 representative, appointed by the Secretary, of each of the following:

(i) Aircraft and engine manufacturers.

(ii) Avionics and equipment manufacturers.

(iii) Aviation labor organizations, including collective bargaining representatives of FAA aviation safety inspectors and aviation safety engineers.

(iv) General aviation operators.

(v) Air carriers.

(vi) Business aviation operators.

(vii) Unmanned aircraft systems manufacturers and operators.

(viii) Aviation safety management experts.

(2) NONVOTING MEMBERS.—

(A) IN GENERAL.—In addition to the members appointed under paragraph (1), the Advisory Committee shall be composed of nonvoting members appointed by the Secretary from among individuals representing FAA safety oversight program offices.

(B) DUTIES.—A nonvoting member may—

(i) take part in deliberations of the Advisory Committee; and

(ii) provide input with respect to any report or recommendation of the Advisory Committee.

(C) LIMITATION.—A nonvoting member may not represent any stakeholder interest other than that of an FAA safety oversight program office.

(3) TERMS.—Each voting member and nonvoting member of the Advisory Committee shall be appointed for a term of 2 years.

(4) RULE OF CONSTRUCTION.—Public Law 104–65 (2 U.S.C. 1601 et seq.) may not be construed to prohibit or otherwise limit the appointment of any individual as a member of the Advisory Committee.

(e) COMMITTEE CHARACTERISTICS.—The Advisory Committee shall have the following characteristics:

(1) Each voting member under subsection (d)(1)(B) shall be an executive that has decision authority within the member's organization and can represent and enter into commitments on behalf of that organization in a way that serves the entire group of organizations that member represents under that subsection.

(2) The ability to obtain necessary information from experts in the aviation and aerospace communities.

(3) A membership size that enables the Advisory Committee to have substantive discussions and reach consensus on issues in an expeditious manner.

(4) Appropriate expertise, including expertise in certification and risk-based safety oversight processes, operations, policy, technology, labor relations, training, and finance.

(f) CHAIRPERSON.—

(1) IN GENERAL.—The chairperson of the Advisory Committee shall be appointed by the Secretary from among the voting members under subsection (d)(1)(B).

(2) TERM.—Each member appointed under paragraph (1) shall serve a term of 2 years as chairperson.

(g) MEETINGS.—

(1) FREQUENCY.—The Advisory Committee shall convene at least 2 meetings a year at the call of the chairperson.

(2) PUBLIC ATTENDANCE.—Each meeting of the Advisory Committee shall be open and accessible to the public.

(h) SPECIAL COMMITTEES.—

(1) ESTABLISHMENT.—The Advisory Committee may establish 1 or more special committees composed of private sector representatives, members of the public, labor representatives, and other relevant parties in complying with consultation and participation requirements under subsection (c)(2).

(2) RULEMAKING ADVICE.—A special committee established by the Advisory Committee may—

(A) provide rulemaking advice and recommendations to the Advisory Committee;

(B) provide the FAA additional opportunities to obtain firsthand information and insight from those persons that are most affected by existing and proposed regulations; and

(C) assist in expediting the development, revision, or elimination of rules in accordance with, and without circumventing, established public rulemaking processes and procedures.

(3) FEDERAL ADVISORY COMMITTEE ACT.—The Federal Advisory Committee Act (5 U.S.C. App.) shall not apply to a special committee under this subsection.

(i) SUNSET.—The Advisory Committee shall cease to exist on September 30, 2017.

PART II—AIRCRAFT CERTIFICATION REFORM

SEC. 2221. AIRCRAFT CERTIFICATION PERFORMANCE OBJECTIVES AND METRICS.

(a) IN GENERAL.—Not later than 120 days after the date the Advisory Committee is established under section 2212, the Administrator shall establish performance objectives and apply and track performance metrics for the FAA and the aviation industry relating to aircraft certification in accordance with this section.

(b) COLLABORATION.—The Administrator shall carry out this section in collaboration with the Advisory Committee and update agency performance objectives and metrics after considering the proposals recommended by the Advisory Committee under paragraphs (8) and (9) of section 2212(c).

(c) PERFORMANCE OBJECTIVES.—In establishing performance objectives under subsection (a), the Administrator shall ensure progress is made toward, at a minimum—

(1) eliminating certification delays and improving cycle times;

(2) increasing accountability for both FAA and the aviation industry;

(3) achieving full utilization of FAA delegation and designation authorities, including organizational designation authorization;

(4) fully implementing risk management principles and a systems safety approach;

(5) reducing duplication of effort;

(6) increasing transparency;

(7) developing and providing training, including recurrent training, in auditing and a systems safety approach to certification oversight;

(8) improving the process for approving or accepting the certification actions between the FAA and bilateral partners;

(9) maintaining and improving safety;

(10) streamlining the hiring process for—

(A) qualified systems safety engineers at staffing levels to support the FAA's efforts to implement a systems safety approach; and

(B) qualified systems safety engineers to guide the engineering of complex systems within the FAA; and

(11) maintaining the leadership of the United States in international aviation and aerospace.

(d) PERFORMANCE METRICS.—In carrying out subsection (a), the Administrator shall—

(1) apply and track performance metrics for the FAA and the aviation industry; and

(2) transmit to the appropriate committees of Congress an annual report on tracking the progress toward full implementation of the recommendations under section 2212.

(e) DATA.—

(1) BASELINES.—Not later than 1 year after the date the Advisory Committee recommends initial performance metrics under section 2212(c)(9), the Administrator shall generate initial data with respect to each of the performance metrics applied and tracked under this section.

(2) BENCHMARKS.—The Administrator shall use the performance metrics applied and tracked under this section to generate data on an ongoing basis and to measure progress toward the consensus national goals, strategic objectives, and priorities recommended under section 2212(c)(3).

(f) PUBLICATION.—

(1) IN GENERAL.—Subject to paragraph (2), the Administrator shall make data generated using the performance metrics applied and tracked under this section available in a searchable, sortable, and downloadable format through the Internet Web site of the FAA or other appropriate methods.

(2) LIMITATIONS.—The Administrator shall make the data under paragraph (1) available in a manner that—

(A) protects from disclosure identifying information regarding an individual or entity; and

(B) protects from inappropriate disclosure proprietary information.

SEC. 2222. ORGANIZATION DESIGNATION AUTHORIZATIONS.

(a) IN GENERAL.—Chapter 447 is amended by adding at the end the following:

"§ 44736. Organization designation authorizations

''(a) DELEGATIONS OF FUNCTIONS.—

''(1) IN GENERAL.—Except as provided in paragraph (3), in the oversight of an ODA holder, the Administrator of the Federal Aviation Administration, in accordance with Federal Aviation Administration standards, shall—

''(A) require, based on an application submitted by the ODA holder and approved by the Administrator (or the Administrator's designee), a procedures manual that addresses all procedures and limitations regarding the specified functions to be performed by the ODA holder subject to regulations prescribed by the Administrator;

''(B) delegate fully to the ODA holder each of the functions specified in the procedures manual, unless the Administrator determines, after the date of the delegation and as a result of an inspection or other investigation, that the public interest and safety of air commerce requires a limitation with respect to 1 or more of the functions; and

''(C) conduct oversight activities, including by inspecting the ODA holder's delegated functions and taking action based on validated inspection findings.

''(2) DUTIES OF ODA HOLDERS.—An ODA holder shall—

''(A) perform each specified function delegated to the ODA holder in accordance with the approved procedures manual for the delegation;

''(B) make the procedures manual available to each member of the appropriate ODA unit; and

''(C) cooperate fully with oversight activities conducted by the Administrator in connection with the delegation.

''(3) EXISTING ODA HOLDERS.—With regard to an ODA holder operating under a procedures manual approved by the Administrator before the date of enactment of the Federal Aviation Administration Reauthorization Act of 2016, the Administrator shall—

''(A) at the request of the ODA holder, and in an expeditious manner, consider revisions to the ODA holder's procedures manual;

''(B) delegate fully to the ODA holder each of the functions specified in the procedures manual, unless the Administrator determines, after the date of the delegation and as a result of an inspection or other investigation, that the public interest and safety of air commerce requires a limitation with respect to 1 or more of the functions; and

''(C) conduct oversight activities, including by inspecting the ODA holder's delegated functions and taking action based on validated inspection findings.

''(b) ODA OFFICE.—

''(1) ESTABLISHMENT.—Not later than 120 days after the date of enactment of Federal Aviation Administration Reauthorization Act of 2016, the Administrator shall identify, within the Office of Aviation Safety, a centralized policy office to be responsible for the organization designation authorization (referred to in this subsection as the ODA Office). The Director of the ODA Office shall report to the Director of the Aircraft Certification Service.

''(2) PURPOSE.—The purpose of the ODA Office shall be to provide oversight and ensure consistency of the Federal Aviation Administration audit functions under the ODA program across the agency.

''(3) FUNCTIONS.—The ODA Office shall—

''(A)(i) at the request of an ODA holder, eliminate all limitations specified in a procedures manual in place on the date of enactment of the Federal Aviation Administration Reauthorization Act of 2016 that are low and medium risk as determined by a risk analysis using criteria established by the ODA Office and disclosed to the ODA holder, except where an ODA holder's performance warrants the retention of a specific limitation due to documented concerns about inadequate current performance in carrying out that authorized function;

''(ii) require an ODA holder to establish a corrective action plan to regain authority for any retained limitations;

''(iii) require an ODA holder to notify the ODA Office when all corrective actions have been accomplished;

''(iv) make a reassessment to determine if subsequent performance in carrying out any retained limitation warrants continued retention and, if such reassessment determines performance meets objectives, lift such limitation immediately;

''(B) improve the Administration and the ODA holder performance and ensure full use of the authorities delegated under the ODA program;

''(C) develop a more consistent approach to audit priorities, procedures, and training under the ODA program;

''(D) expeditiously review a random sample of limitations on delegated authorities under the ODA program to determine if the limitations are appropriate;

''(E) review and approve new limitations to ODA functions; and

''(F) ensure national consistency in the interpretation and application of the requirements of the ODA program, including any limitations, and in the performance of the ODA program.

''(c) DEFINITIONS.—In this section:

''(1) ODA OR ORGANIZATION DESIGNATION AUTHORIZATION.—The term 'ODA' or 'organization designation authorization' means an authorization under section 44702(d) to perform approved functions on behalf of the Administrator of the Federal Aviation Administration under subpart D of part 183 of title 14, Code of Federal Regulations.

''(2) ODA HOLDER.—The term 'ODA holder' means an entity authorized under section 44702(d)—

''(A) to which the Administrator of the Federal Aviation Administration issues an ODA letter of designation under subpart D of part 183 of title 14, Code of Federal Regulations (or any corresponding similar regulation or ruling); and

''(B) that is responsible for administering 1 or more ODA units.

''(3) ODA PROGRAM.—The term 'ODA program' means the program to standardize Federal Aviation Administration management and oversight of the organizations that are approved to perform certain functions on behalf of the Administration under section 44702(d).

''(4) ODA UNIT.—The term 'ODA unit' means a group of 2 or more individuals under the supervision of an ODA holder who perform the specified functions under an ODA.

''(5) ORGANIZATION.—The term 'organization' means a firm, a partnership, a corporation, a company, an association, a joint-stock association, or a governmental entity.''.

(b) TECHNICAL AND CONFORMING AMENDMENTS.—The table of contents of chapter 447 is amended by adding after the item relating to section 44735 the following:

''44736. Organization designation authorizations.''.

SEC. 2223. ODA REVIEW.

(a) EXPERT REVIEW PANEL.—

(1) ESTABLISHMENT.—Not later than 60 days after the date of enactment of this Act, the Administrator of the FAA shall convene a multidisciplinary expert review panel (referred to in this section as the ''Panel'').

(2) COMPOSITION.—

(A) IN GENERAL.—The Panel shall be composed of not more than 20 members appointed by the Administrator.

(B) QUALIFICATIONS.—The members appointed to the Panel shall—

(i) each have a minimum of 5 years of experience in processes and procedures under the ODA program; and

(ii) include representatives of ODA holders, aviation manufacturers, safety experts, and FAA labor organizations, including labor representatives of FAA aviation safety inspectors and aviation safety engineers.

(b) SURVEY.—The Panel shall survey ODA holders and ODA program applicants to document FAA safety oversight and certification programs and activities, including the FAA's use of the ODA program and the speed and efficiency of the certification process. In carrying out this subsection, the Administrator shall consult with the appropriate survey experts and the Panel to best design and conduct the survey.

(c) ASSESSMENT.—The Panel shall—

(1) conduct an assessment of—

(A) the FAA's processes and procedures under the ODA program and whether the processes and procedures function as intended;

(B) the best practices of and lessons learned by ODA holders and the FAA personnel who provide oversight of ODA holders;

(C) the performance incentive policies, related to the ODA program for FAA personnel, that do not conflict with the public interest;

(D) the training activities related to the ODA program for FAA personnel and ODA holders; and

(E) the impact, if any, that oversight of the ODA program has on FAA resources and the FAA's ability to process applications for certifications outside of the ODA program; and

(2) make recommendations for improving FAA safety oversight and certification programs and activities based on the results of the survey under subsection (b) and each element of the assessment under paragraph (1) of this subsection.

(d) REPORT.—Not later than 180 days after the date the Panel is convened under subsection (a), the Panel shall submit to the Administrator, the Advisory Committee established under section 2212, and the appropriate committees of Congress a report on results of the survey under subsection (b) and the assessment and recommendations under subsection (c).

(e) DEFINITIONS.—The terms used in this section have the meanings given the terms in section 44736 of title 49, United States Code.

(f) FEDERAL ADVISORY COMMITTEE ACT.—The Federal Advisory Committee Act (5 U.S.C. App.) shall not apply to the Panel.

(g) SUNSET.—The Panel shall terminate on the date the report is submitted under subsection (d).

SEC. 2224. TYPE CERTIFICATION RESOLUTION PROCESS.

(a) IN GENERAL.—Section 44704(a) is amended by adding at the end the following:

''(6) TYPE CERTIFICATION RESOLUTION PROCESS.—

''(A) IN GENERAL.—Not later than 15 months after the date of enactment of Federal Aviation Administration Reauthorization Act of 2016, the Administrator shall establish an effective, expeditious, and milestone-based issue resolution process for type

certification activities under this subsection.

''(B) PROCESS REQUIREMENTS.—The resolution process shall provide for—

''(i) the resolution of technical issues at preestablished stages of the certification process, as agreed to by the Administrator and the type certificate applicant;

''(ii) the automatic escalation to appropriate management personnel of the Federal Aviation Administration and the type certificate applicant of any major certification process milestone that is not completed or resolved within a specific period of time agreed to by the Administrator and the type certificate applicant; and

''(iii) the resolution of a major certification process milestone escalated under clause (ii) within a specific period of time agreed to by the Administrator and the type certificate applicant.

''(C) DEFINITION OF MAJOR CERTIFICATION PROCESS MILESTONE.—In this paragraph, the term 'major certification process milestone' means a milestone related to a type certification basis, type certification plan, type inspection authorization, issue paper, or other major type certification activity agreed to by the Administrator and the type certificate applicant.''.

(b) TECHNICAL AND CONFORMING AMENDMENTS.—Section 44704 is amended in the heading by striking ''**airworthiness certificates,,**'' and inserting ''**airworthiness certificates,**''.

SEC. 2225. SAFETY ENHANCING TECHNOLOGIES FOR SMALL GENERAL AVIATION AIRPLANES.

(a) POLICY.—In a manner consistent with the Small Airplane Revitalization Act of 2013 (49 U.S.C. 44704 note), not later than 180 days after the date of enactment of this Act, the Administrator shall establish and begin implementing a risk-based policy that streamlines the installation of safety enhancing technologies for small general aviation airplanes in a manner that reduces regulatory delays and significantly improves safety.

(b) INCLUSIONS.—The safety enhancing technologies for small general aviation airplanes described in subsection (a) shall include, at a minimum, the replacement or retrofit of primary flight displays, auto pilots, engine monitors, and navigation equipment.

(c) COLLABORATION.—In carrying out this section, the Administrator shall collaborate with general aviation operators, general aviation manufacturers, and appropriate FAA labor organizations, including representatives of FAA aviation safety inspectors and aviation safety engineers, certified under section 7111 of title 5, United States Code.

(d) DEFINITION OF SMALL GENERAL AVIATION AIRPLANE.—In this section, the term ''small general aviation airplane'' means an airplane that—

(1) is certified to the standards of part 23 of title 14, Code of Federal Regulations;

(2) has a seating capacity of not more than 9 passengers; and

(3) is not used in scheduled passenger-carrying operations under part 121 of title 14, Code of Federal Regulations.

SEC. 2226. STREAMLINING CERTIFICATION OF SMALL GENERAL AVIATION AIRPLANES.

(a) FINAL RULEMAKING.—Not later than December 31, 2016, the Administrator shall issue a final rulemaking to comply with section 3 of the Small Airplane Revitalization Act of 2013 (49 U.S.C. 44704 note).

(b) GOVERNMENT REVIEW.—The Federal Government's review process shall be streamlined to meet the deadline in subsection (a).

PART III—FLIGHT STANDARDS REFORM

SEC. 2231. FLIGHT STANDARDS PERFORMANCE OBJECTIVES AND METRICS.

(a) IN GENERAL.—Not later than 120 days after the date the Advisory Committee is established under section 2212, the Administrator shall establish performance objectives and apply and track performance metrics for the FAA and the aviation industry relating to flight standards activities in accordance with this section.

(b) COLLABORATION.—The Administrator shall carry out this section in collaboration with the Advisory Committee and update agency performance objectives and metrics after considering the recommendations of the Advisory Committee under paragraphs (8) and (9) of section 2212(c).

(c) PERFORMANCE OBJECTIVES.—In carrying out subsection (a), the Administrator shall ensure that progress is made toward, at a minimum—

(1) eliminating delays with respect to such activities;

(2) increasing accountability for both FAA and the aviation industry;

(3) fully implementing risk management principles and a systems safety approach;

(4) reducing duplication of effort;

(5) promoting appropriate compliance activities and eliminating inconsistent regulatory interpretations and inconsistent enforcement activities;

(6) improving and providing greater opportunities for training, including recurrent training, in auditing and a systems safety approach to oversight;

(7) developing and allowing the use of a single master source for guidance;

(8) providing and using a streamlined appeal process for the resolution of regulatory interpretation questions;

(9) maintaining and improving safety; and

(10) increasing transparency.

(d) PERFORMANCE METRICS.—In carrying out subsection (a), the Administrator shall—

(1) apply and track performance metrics for the FAA and the aviation industry; and

(2) transmit to the appropriate committees of Congress an annual report tracking the progress toward full implementation of the performance metrics under section 2212.

(e) DATA.—

(1) BASELINES.—Not later than 1 year after the date the Advisory Committee recommends initial performance metrics under section 2212(c)(9), the Administrator shall generate initial data with respect to each of the performance metrics applied and tracked that are approved based on the recommendations required under this section.

(2) BENCHMARKS.—The Administrator shall use the performance metrics applied and tracked under this section to generate data on an ongoing basis and to measure progress toward the consensus national goals, strategic objectives, and priorities recommended under section 2212(c)(3).

(f) PUBLICATION.—

(1) IN GENERAL.—Subject to paragraph (2), the Administrator shall make data generated using the performance metrics applied and tracked under this section available in a searchable, sortable, and downloadable format through the Internet Web site of the FAA or other appropriate methods.

(2) LIMITATIONS.—The Administrator shall make the data under paragraph (1) available in a manner that—

(A) protects from disclosure identifying information regarding an individual or entity; and

(B) protects from inappropriate disclosure proprietary information.

SEC. 2232. FAA TASK FORCE ON FLIGHT STANDARDS REFORM.

(a) ESTABLISHMENT.—Not later than 90 days after the date of enactment of this Act, the Administrator shall establish the FAA Task Force on Flight Standards Reform (referred to in this section as the ''Task Force'').

(b) MEMBERSHIP.—

(1) APPOINTMENT.—The membership of the Task Force shall be appointed by the Administrator.

(2) NUMBER.—The Task Force shall be composed of not more than 20 members.

(3) REPRESENTATION REQUIREMENTS.—The membership of the Task Force shall include representatives, with knowledge of flight standards regulatory processes and requirements, of—

(A) air carriers;

(B) general aviation;

(C) business aviation;

(D) repair stations;

(E) unmanned aircraft systems operators;

(F) flight schools;

(G) labor unions, including those representing FAA aviation safety inspectors and those representing FAA aviation safety engineers; and

(H) aviation safety experts.

(c) DUTIES.—The duties of the Task Force shall include, at a minimum, identifying cost-effective best practices and providing recommendations with respect to—

(1) simplifying and streamlining flight standards regulatory processes;

(2) reorganizing the Flight Standards Service to establish an entity organized by function rather than geographic region, if appropriate;

(3) FAA aviation safety inspector training opportunities;

(4) FAA aviation safety inspector standards and performance; and

(5) achieving, across the FAA, consistent—

(A) regulatory interpretations; and

(B) application of oversight activities.

(d) REPORT.—Not later than 1 year after the date of enactment of this Act, the Task Force shall submit to the Administrator, Advisory Committee established under section 2212, and appropriate committees of Congress a report detailing—

(1) the best practices identified and recommendations provided by the Task Force under subsection (c); and

(2) any recommendations of the Task Force for additional regulatory action or cost-effective legislative action.

(e) FEDERAL ADVISORY COMMITTEE ACT.—The Federal Advisory Committee Act (5 U.S.C. App.) shall not apply to the Task Force.

(f) SUNSET.—The Task Force shall cease to exist on the date that the Task Force submits the report required under subsection (d).

SEC. 2233. CENTRALIZED SAFETY GUIDANCE DATABASE.

(a) ESTABLISHMENT.—Not later than 1 year after the date of enactment of this Act, the Administrator of the FAA shall establish a centralized safety guidance database for all of the regulatory guidance issued by the FAA Office of Aviation Safety regarding compliance with 1 or more aviation safety-related provisions of the Code of Federal Regulations.

(b) REQUIREMENTS.—The database under subsection (a) shall—

(1) for each guidance, include a link to the specific provision of the Code of Federal Regulations;

(2) subject to paragraph (3), be accessible to the public; and

(3) be provided in a manner that—

(A) protects from disclosure identifying information regarding an individual or entity; and

(B) protects from inappropriate disclosure proprietary information.

(c) DATA ENTRY TIMING.—

(1) EXISTING DOCUMENTS.—Not later than 14 months after the date the database is established, the Administrator shall have completed entering into the database any applicable regulatory guidance that are in effect and were issued before that date.

(2) NEW REGULATORY GUIDANCE AND UPDATES.—Beginning on the date the database is established, the Administrator shall ensure that any applicable regulatory guidance that are issued on or after that date are entered into the database as they are issued.

(d) CONSULTATION REQUIREMENT.—In establishing the database under subsection (a), the Administrator shall consult and collaborate with appropriate stakeholders, including labor organizations (including those representing aviation workers, FAA aviation safety engineers, and FAA aviation safety inspectors) and aviation industry stakeholders.

(e) DEFINITION OF REGULATORY GUIDANCE.—In this section, the term ''regulatory guidance'' means all forms of written information issued by the FAA that an individual or entity may use to interpret or apply FAA regulations and requirements, including information an individual or entity may use to determine acceptable means of compliance with such regulations and requirements, such as an order, manual, circular, policy statement, legal interpretation memorandum, and rulemaking documents.

SEC. 2234. REGULATORY CONSISTENCY COMMUNICATIONS BOARD.

(a) ESTABLISHMENT.—Not later than 180 days after the date of enactment of this Act, the Administrator of the FAA shall establish a Regulatory Consistency Communications Board (referred to in this section as the ''Board'').

(b) CONSULTATION REQUIREMENT.—In establishing the Board, the Administrator shall consult and collaborate with appropriate stakeholders, including FAA labor organizations (including labor organizations representing FAA aviation safety inspectors and labor organizations representing FAA aviation safety engineers) and aviation industry stakeholders.

(c) MEMBERSHIP.—The Board shall be composed of FAA representatives, appointed by the Administrator, from—

(1) the Flight Standards Service;

(2) the Aircraft Certification Service; and

(3) the Office of the Chief Counsel.

(d) FUNCTIONS.—The Board shall carry out the following functions:

(1) Recommend, at a minimum, processes by which—

(A) FAA personnel and persons regulated by the FAA may submit regulatory interpretation questions without fear of retaliation;

(B) FAA personnel may submit written questions as to whether a previous approval or regulatory interpretation issued by FAA personnel in another office or region is correct or incorrect; and

(C) any other person may submit anonymous regulatory interpretation questions.

(2) Meet on a regular basis to discuss and resolve questions submitted under paragraph (1) and the appropriate application of regulations and policy with respect to each question.

(3) Provide to a person that submitted a question under subparagraph (A) or subparagraph (B) of paragraph (1) an expeditious written response to the question.

(4) Recommend a process to make the resolution of common regulatory interpretation questions publicly available to FAA personnel and the public in a manner that—

(A) does not reveal any identifying data of the person that submitted a question; and

(B) protects any proprietary information.

(5) Ensure that responses to questions under this subsection are incorporated into regulatory guidance (as defined in section 2233(e)).

(e) PERFORMANCE METRICS, TIMELINES, AND GOALS.—Not later than 180 days after the date that the Advisory Committee recommends performance objectives and performance metrics for the FAA and the aviation industry under paragraphs (8) and (9) of section 2212(c), the Administrator, in collaboration with the Advisory Committee, shall—

(1) establish performance metrics, timelines, and goals to measure the progress of the Board in resolving regulatory interpretation questions submitted under subsection (d)(1); and

(2) implement a process for tracking the progress of the Board in meeting the performance metrics, timelines, and goals under paragraph (1).

SEC. 2235. FLIGHT STANDARDS SERVICE REALIGNMENT FEASIBILITY REPORT.

(a) IN GENERAL.—Not later than 1 year after the date of enactment of this Act, the Administrator, in consultation with relevant industry stakeholders, shall—

(1) determine the feasibility of realigning flight standards service regional field offices to specialized areas of aviation safety oversight and technical expertise; and

(2) submit to the appropriate committees of Congress a report on the findings under paragraph (1).

(b) CONSIDERATIONS.—In making a determination under subsection (a), the Administrator shall consider a flight standards service regional field office providing support in the area of its technical expertise to flight standards district offices and certificate management offices.

SEC. 2236. ADDITIONAL CERTIFICATION RESOURCES.

(a) IN GENERAL.—Notwithstanding any other provision of law, and subject to the requirements of subsection (b), the Administrator may enter into a reimbursable agreement with an applicant or certificate holder for the reasonable travel and per diem expenses of the FAA associated with official travel to expedite the acceptance or validation by a foreign authority of an FAA certificate or design approval.

(b) CONDITIONS.—The Administrator may enter into an agreement under subsection (a) only if—

(1) the travel covered under the agreement is determined to be necessary, by both the Administrator and the applicant or certificate holder, to expedite the acceptance or validation of the relevant certificate or approval;

(2) the travel is conducted at the request of the applicant or certificate holder;

(3) the travel plans and expenses are approved by the applicant or certificate holder prior to travel; and

(4) the agreement requires payment in advance of FAA services and is consistent with the processes under section 106(l)(6) of title 49, United States Code.

(c) REPORT.—Not later than 2 years after the date of enactment of this Act, the Administrator shall submit to the appropriate committees of Congress a report on—

(1) the number of occasions on which the Administrator entered into reimbursable agreements under this section;

(2) the number of occasions on which the Administrator declined a request by an applicant or certificate holder to enter into a reimbursable agreement under this section;

(3) the amount of reimbursements collected in accordance with agreements under this section; and

(4) the extent to which reimbursable agreements under this section assisted in reducing the amount of time necessary for foreign authorities' validations of FAA certificates and design approvals.

(d) DEFINITIONS.—In this section:

(1) APPLICANT.—The term ''applicant'' means a person that has applied to a foreign authority for the acceptance or validation of an FAA certificate or design approval.

(2) CERTIFICATE HOLDER.—The term ''certificate holder'' means a person that holds a certificate issued by the Administrator under part 21 of title 14, Code of Federal Regulations.

PART IV—SAFETY WORKFORCE

SEC. 2241. SAFETY WORKFORCE TRAINING STRATEGY.

(a) SAFETY WORKFORCE TRAINING STRATEGY.—Not later than 60 days after the date of enactment of this Act, the Administrator of the FAA shall review and revise its safety workforce training strategy to ensure that it—

(1) aligns with an effective risk-based approach to safety oversight;

(2) best utilizes available resources;

(3) allows FAA employees participating in organization management teams or conducting ODA program audits to complete, expeditiously, appropriate training, including recurrent training, in auditing and a systems safety approach to oversight;

(4) seeks knowledge-sharing opportunities between the FAA and the aviation industry in new technologies, best practices, and other areas of interest related to safety oversight;

(5) fosters an inspector and engineer workforce that has the skills and training necessary to improve risk-based approaches that focus on requirements management and auditing skills; and

(6) includes, as appropriate, milestones and metrics for meeting the requirements of paragraphs (1) through (5).

(b) REPORT.—Not later that 270 days after the date the strategy is established under subsection (a), the Administrator shall submit to the appropriate committees of Congress a report on the implementation of the strategy and progress in meeting any milestones or metrics included in the strategy.

(c) DEFINITIONS.—In this section:

(1) ODA HOLDER.—The term ''ODA holder'' has the meaning given the term in section 44736 of title 49, United States Code.

(2) ODA PROGRAM.—The term ''ODA program'' has the meaning given the term in section 44736(c)(3) of title 49, United States Code, as added by this Act.

(3) ORGANIZATION MANAGEMENT TEAM.—The term ''organization management team'' means a group of FAA employees consisting of FAA aviation safety engineers, flight test pilots, and aviation safety inspectors overseeing an ODA holder and its specified function delegated under section 44702 of title 49, United States Code.

SEC. 2242. WORKFORCE STUDY.

(a) WORKFORCE STUDY.—Not later than 90 days after the date of enactment of this Act, the Comptroller General of the United States shall conduct a study to assess the workforce and training needs of the Office of Aviation Safety of the Federal Aviation Administration and take into consideration how those needs could be met.

(b) CONTENTS.—The study under subsection (a) shall include—

(1) a review of the current staffing levels and requirements for hiring and training, including recurrent training, of aviation safety inspectors and aviation safety engineers;

(2) an analysis of the skills and qualifications required of aviation safety inspectors and aviation safety engineers for successful

performance in the current and future projected aviation safety regulatory environment, including an analysis of the need for a systems engineering discipline within the Federal Aviation Administration to guide the engineering of complex systems, with an emphasis on auditing an ODA holder (as defined in section 44736(c) of title 49, United States Code);

(3) a review of current performance incentive policies of the Federal Aviation Administration, as applied to the Office of Aviation Safety, including awards for performance;

(4) an analysis of ways the Federal Aviation Administration can work with the aviation industry and FAA labor force to establish knowledge-sharing opportunities between the Federal Aviation Administration and the aviation industry in new technologies, best practices, and other areas that could improve the aviation safety regulatory system; and

(5) recommendations on the best and most cost-effective approaches to address the needs of the current and future projected aviation safety regulatory system, including qualifications, training programs, and performance incentives for relevant agency personnel.

(c) REPORT.—Not later than 270 days after the date of enactment of this Act, the Comptroller General shall submit to the appropriate committees of Congress a report on the results of the study required under subsection (a).

PART V—INTERNATIONAL AVIATION

SEC. 2251. PROMOTION OF UNITED STATES AEROSPACE STANDARDS, PRODUCTS, AND SERVICES ABROAD.

Section 40104 is amended by adding at the end the following:

''(d) PROMOTION OF UNITED STATES AEROSPACE STANDARDS, PRODUCTS, AND SERVICES ABROAD.—The Secretary shall take appropriate actions—

''(1) to promote United States aerospace-related safety standards abroad;

''(2) to facilitate and vigorously defend approvals of United States aerospace products and services abroad;

''(3) with respect to bilateral partners, to use bilateral safety agreements and other mechanisms to improve validation of United States type certificated aeronautical products and services and enhance mutual acceptance in order to eliminate redundancies and unnecessary costs; and

''(4) with respect to the aeronautical safety authorities of a foreign country, to streamline that country's validation of United States aerospace standards, products, and services.''.

SEC. 2252. BILATERAL EXCHANGES OF SAFETY OVERSIGHT RESPONSIBILITIES.

Section 44701(e) is amended by adding at the end the following:

''(5) FOREIGN AIRWORTHINESS DIRECTIVES.—

''(A) ACCEPTANCE.—The Administrator shall accept an airworthiness directive (as defined in section 39.3 of title 14, Code of Federal Regulations) issued by an aeronautical safety authority of a foreign country, and leverage that aeronautical safety authority's regulatory process, if—

''(i) the country is the state of design for the product that is the subject of the airworthiness directive;

''(ii) the United States has a bilateral safety agreement relating to aircraft certification with the country;

''(iii) as part of the bilateral safety agreement with the country, the Administrator has determined that the aeronautical safety authority has an aircraft certification system relating to safety that produces a level of safety equivalent to the level produced by the system of the Federal Aviation Administration; and

''(iv) the aeronautical safety authority utilizes an open and transparent public notice and comment process in the issuance of airworthiness directives.

''(B) ALTERNATIVE APPROVAL PROCESS.—Notwithstanding subparagraph (A), the Administrator may issue a Federal Aviation Administration airworthiness directive instead of accepting the airworthiness directive issued by the aeronautical safety authority of a foreign country if the Administrator determines that such issuance is necessary for safety or operational reasons due to the complexity or unique features of the Federal Aviation Administration airworthiness directive or the United States aviation system.

''(C) ALTERNATIVE MEANS OF COMPLIANCE.—The Administrator may—

''(i) accept an alternative means of compliance, with respect to an airworthiness directive under subparagraph (A), that was approved by the aeronautical safety authority of the foreign country that issued the airworthiness directive; or

''(ii) notwithstanding subparagraph (A), and at the request of any person affected by an airworthiness directive under that subparagraph, the Administrator may approve an alternative means of compliance with respect to the airworthiness directive.''.

SEC. 2253. FAA LEADERSHIP ABROAD.

(a) IN GENERAL.—To promote United States aerospace safety standards, reduce redundant regulatory activity, and facilitate acceptance of FAA design and production approvals abroad, the Administrator shall—

(1) attain greater expertise in issues related to dispute resolution, intellectual property, and export control laws to better support FAA certification and other aerospace regulatory activities abroad;

(2) work with United States companies to more accurately track the amount of time it takes foreign authorities, including bilateral partners, to validate United States type certificated aeronautical products;

(3) provide assistance to United States companies who have experienced significantly long foreign validation wait times;

(4) work with foreign authorities, including bilateral partners, to collect and analyze data to determine the timeliness of the acceptance and validation of FAA design and production approvals by foreign authorities and the acceptance and validation of foreign-certified products by the FAA;

(5) establish appropriate benchmarks and metrics to measure the success of bilateral aviation safety agreements and to reduce the validation time for United States type certificated aeronautical products abroad; and

(6) work with foreign authorities, including bilateral partners, to improve the timeliness of the acceptance and validation of FAA design and production approvals by foreign authorities and the acceptance and validation of foreign-certified products by the FAA.

(b) REPORT.—Not later than 1 year after the date of enactment of this Act, the Administrator shall submit to the appropriate committees of Congress a report that—

(1) describes the Administrator's strategic plan for international engagement;

(2) describes the structure and responsibilities of all FAA offices that have international responsibilities, including the Aircraft Certification Office, and all the activities conducted by those offices related to certification and production;

(3) describes current and forecasted staffing and travel needs for the FAA's international engagement activities, including the needs of the Aircraft Certification Office in the current and forecasted budgetary environment;

(4) provides recommendations, if appropriate, to improve the existing structure and personnel and travel policies supporting the FAA's international engagement activities, including the activities of the Aviation Certification Office, to better support the growth of United States aerospace exports; and

(5) identifies policy initiatives, regulatory initiatives, or cost-effective legislative initiatives needed to improve and enhance the timely acceptance of United States aerospace products abroad.

(c) INTERNATIONAL TRAVEL.—The Administrator of the FAA, or the Administrator's designee, may authorize international travel for any FAA employee, without the approval of any other person or entity, if the Administrator determines that the travel is necessary—

(1) to promote United States aerospace safety standards; or

(2) to support expedited acceptance of FAA design and production approvals.

SEC. 2254. REGISTRATION, CERTIFICATION, AND RELATED FEES.

Section 45305 is amended—

(1) in subsection (a) by striking ''Subject to subsection (b)'' and inserting ''Subject to subsection (c)'';

(2) by redesignating subsections (b) and (c) as subsections (c) and (d), respectively; and

(3) by inserting after subsection (a) the following:

''(b) CERTIFICATION SERVICES.—Subject to subsection (c), and notwithstanding section 45301(a), the Administrator may establish and collect a fee from a foreign government or entity for services related to certification, regardless of where the services are provided, if the fee—

''(1) is established and collected in a manner consistent with aviation safety agreements; and

''(2) does not exceed the estimated costs of the services.''.

Subtitle C—Airline Passenger Safety and Protections

SEC. 2301. PILOT RECORDS DATABASE DEADLINE.

Section 44703(i)(2) is amended by striking ''The Administrator shall establish'' and inserting ''Not later than April 30, 2017, the Administrator shall establish and make available for use''.

SEC. 2302. ACCESS TO AIR CARRIER FLIGHT DECKS.

The Administrator of the Federal Aviation Administration shall collaborate with other aviation authorities to advance a global standard for access to air carrier flight decks and redundancy requirements consistent with the flight deck access and redundancy requirements in the United States.

SEC. 2303. AIRCRAFT TRACKING AND FLIGHT DATA.

(a) IN GENERAL.—Not later than 1 year after the date of enactment of this Act, the Administrator of the Federal Aviation Administration shall assess current performance standards, and as appropriate, conduct a rulemaking to revise the standards to improve near-term and long-term aircraft tracking and flight data recovery, including retrieval, access, and protection of such data after an incident or accident.

(b) CONSIDERATIONS.—In revising the performance standards under subsection (a), the Administrator may consider—

(1) various methods for improving detection and retrieval of flight data, including—

(A) low frequency underwater locating devices; and

(B) extended battery life for underwater locating devices;

(2) automatic deployable flight recorders;

(3) triggered transmission of flight data, and other satellite-based solutions;

(4) distress-mode tracking; and

(5) protections against disabling flight recorder systems.

(c) COORDINATION.—If the performance standards under subsection (a) are revised, the Administrator shall coordinate with international regulatory authorities and the International Civil Aviation Organization to ensure that any new international standard for aircraft tracking and flight data recovery is consistent with a performance-based approach and is implemented in a globally harmonized manner.

SEC. 2304. AUTOMATION RELIANCE IMPROVEMENTS.

(a) MODERNIZATION OF TRAINING.—Not later than October 1, 2017, the Administrator of the Federal Aviation Administration shall review, and update as necessary, recent guidance regarding pilot flight deck monitoring that an air carrier can use to train and evaluate its pilots to ensure that air carrier pilots are trained to use and monitor automation systems while also maintaining proficiency in manual flight operations consistent with the final rule entitled, ''Qualification, Service, and Use of Crewmembers and Aircraft Dispatchers'', published on November 12, 2013 (78 Fed. Reg. 67799).

(b) CONSIDERATIONS.—In reviewing and updating the guidance, the Administrator shall—

(1) consider casualty driven scenarios during initial and recurrent simulator instruction that focus on automation complacency during system failure, including flight segments when automation is typically engaged and should result in hand flying the aircraft into a safe position while employing crew resource management principles;

(2) consider the development of metrics or measurable tasks an air carrier may use to evaluate the ability of pilots to appropriately monitor flight deck systems;

(3) consider the development of metrics an air carrier may use to evaluate manual flying skills and improve related training;

(4) convene an expert panel, including members with expertise in human factors, training, and flight operations—

(A) to evaluate and develop methods for training flight crews to understand the functionality of automated systems for flight path management;

(B) to identify and recommend to the Administrator the most effective training methods that ensure that pilots can apply manual flying skills in the event of flight deck automation failure or an unexpected event; and

(C) to identify and recommend to the Administrator revision in the training guidance for flight crews to address the needs identified in subparagraphs (A) and (B); and

(5) develop any additional standards to be used for guidance the Administrator considers necessary to determine whether air carrier pilots receive sufficient training opportunities to develop, maintain, and demonstrate manual flying skills.

(c) DOT IG REVIEW.—Not later than 2 years after the date the Administrator reviews the guidance under subsection (a), the Inspector General of the Department of Transportation shall review the air carriers implementation of the guidance and the ongoing work of the expert panel.

SEC. 2305. ENHANCED MENTAL HEALTH SCREENING FOR PILOTS.

Not later than 180 days after the date of enactment of this Act, the Administrator of the Federal Aviation Administration shall consider the recommendations of the Pilot Fitness Aviation Rulemaking Committee in determining whether to implement, as part of a comprehensive medical certification process for pilots with a first- or second-class airman medical certificate, additional screening for mental health conditions, including depression and suicidal thoughts or tendencies, and assess treatments that would address any risk associated with such conditions.

SEC. 2306. FLIGHT ATTENDANT DUTY PERIOD LIMITATIONS AND REST REQUIREMENTS.

(a) MODIFICATION OF FINAL RULE.—Not later than 1 year after the date of enactment of this Act, the Administrator of the Federal Aviation Administration shall revise the flight attendant duty period limitations and rest requirements under section 121.467 of title 14, Code of Federal Regulations.

(b) CONTENTS.—Except as provided in subsection (c), in revising the rule under subsection (a), the Administrator shall ensure that a flight attendant scheduled to a duty period of 14 hours or less is given a scheduled rest period of at least 10 consecutive hours.

(c) EXCEPTION.—The rest period required under subsection (b) may be scheduled or reduced to 9 consecutive hours if the flight attendant is provided a subsequent rest period of at least 11 consecutive hours.

(d) FATIGUE RISK MANAGEMENT PLAN.—

(1) SUBMISSION OF PLAN BY PART 121 AIR CARRIERS.—Not later than 90 days after the date of enactment of this Act, each air carrier operating under part 121 of title 13, Code of Federal Regulations (referred to in this subsection as a ''part 121 air carrier''), shall submit a fatigue risk management plan for the carrier's flight attendants to the Administrator for review and acceptance.

(2) CONTENTS OF PLAN.—Each fatigue risk management plan submitted under paragraph (1) shall include—

(A) current flight time and duty period limitations;

(B) a rest scheme that is consistent with such limitations and enables the management of flight attendant fatigue, including annual training to increase awareness of—

(i) fatigue;

(ii) the effects of fatigue on flight attendants; and

(iii) fatigue countermeasures; and

(C) the development and use of methodology that continually assesses the effectiveness of implementation of the plan, including the ability of the plan—

(i) to improve alertness; and

(ii) to mitigate performance errors.

(3) REVIEW.—Not later than 1 year after the date of enactment of this Act, the Administrator shall—

(A) review each fatigue risk management plan submitted under this subsection; and

(B)(i) accept the plan; or

(ii) reject the plan and provide the part 121 air carrier with suggested modifications to be included when the plan is resubmitted.

(4) PLAN UPDATES.—

(A) IN GENERAL.—Not less frequently than once every 2 years, each part 121 air carrier shall—

(i) update the fatigue risk management plan submitted under paragraph (1); and

(ii) submit the updated plan to the Administrator for review and acceptance.

(B) REVIEW.—Not later than 1 year after the date on which an updated plan is submitted under subparagraph (A)(ii), the Administrator shall—

(i) review the updated plan; and

(ii)(I) accept the updated plan; or

(II) reject the updated plan and provide the part 121 air carrier with suggested modifications to be included when the updated plan is resubmitted.

(5) COMPLIANCE.—Each part 121 air carrier shall comply with its fatigue risk management plan after the plan is accepted by the Administrator under this subsection.

(6) CIVIL PENALTIES.—A violation of this subsection by a part 121 air carrier shall be treated as a violation of chapter 447 of title 49, United States Code, for the purpose of applying civil penalties under chapter 463 of such title.

SEC. 2307. TRAINING TO COMBAT HUMAN TRAFFICKING FOR CERTAIN AIR CARRIER EMPLOYEES.

(a) IN GENERAL.—Subchapter I of chapter 417 is amended by adding at the end the following:

''§ 41725. Training to combat human trafficking

''(a) IN GENERAL.—Each air carrier providing passenger air transportation shall provide flight attendants who are employees or contractors of the air carrier with training to combat human trafficking in the course of carrying out their duties as employees or contractors of the air carrier.

''(b) ELEMENTS OF TRAINING.—The training an air carrier is required to provide under subsection (a) to flight attendants shall include training with respect to—

''(1) common indicators of human trafficking; and

''(2) best practices for reporting suspected human trafficking to law enforcement officers.

''(c) MATERIALS.—An air carrier may provide the training required by subsection (a) using modules and materials developed by the Department of Transportation and the Department of Homeland Security, including the training module and associated materials of the Blue Lightning Initiative and modules and materials subsequently developed and recommended by such Departments with respect to combating human trafficking.

''(d) INTERAGENCY COORDINATION.—The Administrator of the Federal Aviation Administration shall coordinate with the Secretary of Homeland Security to ensure that appropriate training modules and materials are available for air carriers to conduct the training required by subsection (a).

''(e) HUMAN TRAFFICKING DEFINED.—In this section, the term 'human trafficking' means 1 or more severe forms of trafficking in persons (as defined in section 103 of the Trafficking Victims Protection Act of 2000 (22 U.S.C. 7102)).''.

(b) CONFORMING AMENDMENT.—The table of contents for chapter 417 is amended by inserting after the item relating to section 41724 the following:

''41725. Training to combat human trafficking.''.

(c) REPORT REQUIRED.—Not later than 1 year after the date of enactment of this Act, the Administrator of the Federal Aviation Administration shall submit to the appropriate committees of Congress a report that includes—

(1) an assessment of the status of compliance of air carriers with section 41725 of title 49, United States Code, as added by subsection (a); and

(2) in collaboration with the Attorney General and the Secretary of Homeland Security, recommendations for improving the identification and reporting of human trafficking by air carrier personnel while protecting the civil liberties of passengers.

(d) IMMUNITY FOR REPORTING HUMAN TRAFFICKING.—Section 44941(a) is amended by striking ''or terrorism, as defined by section 3077 of title 18, United States Code,'' and inserting ''human trafficking (as defined by section 41725), or terrorism (as defined by section 3077 of title 18)''.

SEC. 2308. REPORT ON OBSOLETE TEST EQUIPMENT.

(a) REPORT.—Not later than 180 days after the date of enactment of this Act, the Administrator of the Federal Aviation Administration shall submit to the appropriate committees of Congress a report on the National Test Equipment Program (referred to in this section as the ''Program'').

(b) CONTENTS.—The report shall include—

(1) a list of all known outstanding requests for test equipment, cataloged by type and location, under the Program;

(2) a description of the current method under the Program of ensuring calibrated equipment is in place for utilization;

(3) a plan by the Administrator for appropriate inventory of such equipment; and

(4) the Administrator's recommendations for increasing multifunctionality in future test equipment to be developed and all known and foreseeable manufacturer technological advances.

SEC. 2309. PLAN FOR SYSTEMS TO PROVIDE DIRECT WARNINGS OF POTENTIAL RUNWAY INCURSIONS.

(a) IN GENERAL.—Not later than June 30, 2016, the Administrator of the Federal Aviation Administration shall—

(1) assess available technologies to determine whether it is feasible, cost-effective, and appropriate to install and deploy, at any airport, systems to provide a direct warning capability to flight crews and air traffic controllers of potential runway incursions; and

(2) submit to the appropriate committees of Congress a report on the assessment under paragraph (1), including any recommendations.

(b) CONSIDERATIONS.—In conducting the assessment under subsection (a), the Administration shall consider National Transportation Safety Board findings and relevant aviation stakeholder views relating to runway incursions.

SEC. 2310. LASER POINTER INCIDENTS.

(a) IN GENERAL.—Beginning 90 days after the date of enactment of this Act, the Administrator of the Federal Aviation Administration, in coordination with the Director of the Federal Bureau of Investigation, shall provide quarterly updates to the appropriate committees of Congress regarding—

(1) the number of incidents involving the beam from a laser pointer (as defined in section 39A of title 18, United States Code) being aimed at, or in the flight path of, an aircraft in the airspace jurisdiction of the United States;

(2) the number of civil or criminal enforcement actions taken by the Federal Aviation Administration, Department of Transportation, or Department of Justice with regard to the incidents described in paragraph (1), including the amount of the civil or criminal penalties imposed on violators;

(3) the resolution of any incidents that did not result in a civil or criminal enforcement action; and

(4) any actions the Department of Transportation or Department of Justice has taken on its own, or in conjunction with other Federal agencies or local law enforcement agencies, to deter the type of activity described in paragraph (1).

(b) CIVIL PENALTIES.—The Administrator shall revise the maximum civil penalty that may be imposed on an individual who aims the beam of a laser pointer at an aircraft in the airspace jurisdiction of the United States, or at the flight path of such an aircraft, to be $25,000.

SEC. 2311. HELICOPTER AIR AMBULANCE OPERATIONS DATA AND REPORTS.

(a) IN GENERAL.—Not later than 1 year after the date of enactment of this Act, the Administrator of the Federal Aviation Administration, in collaboration with helicopter air ambulance industry stakeholders, shall assess the availability of information to the general public related to the location of heliports and helipads used by helicopters providing air ambulance services, including helipads and helipads outside of those listed as part of any existing databases of Airport Master Record (5010) forms.

(b) REQUIREMENTS.—Based on the assessment under subsection (a), the Administrator shall—

(1) update, as necessary, any existing guidance on what information is included in the current databases of Airport Master Record (5010) forms to include information related to heliports and helipads used by helicopters providing air ambulance services; or

(2) develop, as appropriate and in collaboration with helicopter air ambulance industry stakeholders, a new database of heliports and helipads used by helicopters providing air ambulance services.

(c) REPORTS.—

(1) ASSESSMENT.—Not later than 30 days after the date the assessment under subsection (a) is complete, the Administrator shall submit to the appropriate committees of Congress a report on the assessment, including any recommendations on how to make information related to the location of heliports and helipads used by helicopters providing air ambulance services available to the general public.

(2) IMPLEMENTATION.—Not later than 30 days after completing action under paragraph (1) or paragraph (2) of subsection (b), the Administrator shall submit to the appropriate committees of Congress a report on the implementation of that action.

(d) INCIDENT AND ACCIDENT DATA.—Section 44731 is amended—

(1) in subsection (a)—

(A) in the matter preceding paragraph (1), by striking ''not later than 1 year after the date of enactment of this section, and annually thereafter'' and inserting ''annually'';

(B) in paragraph (2), by striking ''flights and hours flown, by registration number, during which helicopters operated by the certificate holder were providing helicopter air ambulance services'' and inserting ''hours flown by the helicopters operated by the certificate holder'';

(C) in paragraph (3)—

(i) by striking ''of flight'' and inserting ''of patients transported and the number of patient transport'';

(ii) by inserting ''or'' after ''interfacility transport,''; and

(iii) by striking '', or ferry or repositioning flight'';

(D) in paragraph (5)—

(i) by striking ''flights and''; and

(ii) by striking ''while providing air ambulance services''; and

(E) by amending paragraph (6) to read as follows:

''(6) The number of hours flown at night by helicopters operated by the certificate holder.'';

(2) in subsection (d)—

(A) by striking ''Not later than 2 years after the date of enactment of this section, and annually thereafter, the Administrator shall submit'' and inserting ''The Administrator shall submit annually''; and

(B) by adding at the end the following: ''The report shall include the number of accidents experienced by helicopter air ambulance operations, the number of fatal accidents experienced by helicopter air ambulance operations, and the rate, per 100,000 flight hours, of accidents and fatal accidents experienced by operators providing helicopter air ambulance services.'';

(3) by redesignating subsection (e) as subsection (f); and

(4) by inserting after subsection (d) the following:

''(e) IMPLEMENTATION.—In carrying out this section, the Administrator, in collaboration with part 135 certificate holders providing helicopter air ambulance services, shall—

''(1) propose and develop a method to collect and store the data submitted under subsection (a), including a method to protect the confidentiality of any trade secret or proprietary information submitted; and

''(2) ensure that the database under subsection (c) and the report under subsection (d) include data and analysis that will best inform efforts to improve the safety of helicopter air ambulance operations.''.

SEC. 2312. PART 135 ACCIDENT AND INCIDENT DATA.

Not later than 1 year after the date of enactment of this Act, the Administrator of the Federal Aviation Administration shall—

(1) determine, in collaboration with the National Transportation Safety Board and Part 135 industry stakeholders, what, if any, additional data should be reported as part of an accident or incident notice to more accurately measure the safety of on-demand Part 135 aircraft activity, to pinpoint safety problems, and to form the basis for critical research and analysis of general aviation issues; and

(2) submit to the appropriate committees of Congress a report on the findings under paragraph (1), including a description of the additional data to be collected, a timeframe for implementing the additional data collection, and any potential obstacles to implementation.

SEC. 2313. DEFINITION OF HUMAN FACTORS.

Section 40102(a), as amended by section 2140 of this Act, is further amended—

(1) by redesignating paragraphs (24) through (47) as paragraphs (25) through (48), respectively; and

(2) by inserting after paragraph (23) the following:

''(24) 'human factors' means a multidisciplinary field that generates and compiles information about human capabilities and limitations and applies it to design, development, and evaluation of equipment, systems, facilities, procedures, jobs, environments, staffing, organizations, and personnel management for safe, efficient, and effective human performance, including people's use of technology.''.

SEC. 2314. SENSE OF CONGRESS; PILOT IN COMMAND AUTHORITY.

It is the sense of Congress that the pilot in command of an aircraft is directly responsible for, and is the final authority as to, the operation of that aircraft, as set forth in section 91.3(a) of title 14, Code of Federal Regulations (or any successor regulation thereto).

SEC. 2315. ENHANCING ASIAS.

(a) IN GENERAL.—Not later than 1 year after the date of enactment of this Act, the Administrator of the Federal Aviation Administration, in consultation with relevant aviation industry stakeholders, shall assess what, if any, improvements are needed to develop the predictive capability of the Aviation Safety Information Analysis and Sharing program (referred to in this section as ''ASIAS'') with regard to identifying precursors to accidents.

(b) CONTENTS.—In conducting the assessment under subsection (a), the Administrator shall—

(1) determine what actions are necessary—

(A) to improve data quality and standardization; and

(B) to increase the data received from additional segments of the aviation industry, such as small airplane, helicopter, and business jet operations;

(2) consider how to prioritize the actions described in paragraph (1); and

(3) review available methods for disseminating safety trend data from ASIAS to the aviation safety community, including the inspector workforce, to inform in their risk-based decision making efforts.

(c) REPORT.—Not later than 60 days after the date the assessment under subsection (a) is complete, the Administrator shall submit

to the appropriate committees of Congress a report on the assessment, including recommendations regarding paragraphs (1) through (3) of subsection (b).

SEC. 2316. IMPROVING RUNWAY SAFETY.

(a) IN GENERAL.—The Administrator of the Federal Aviation Administration shall expedite the development of metrics—

(1) to allow the Federal Aviation Administration to determine whether runway incursions are increasing; and

(2) to assess the effectiveness of implemented runway safety initiatives.

(b) REPORT.—Not later than 1 year after the date of enactment of this Act, the Administrator shall submit to the appropriate committees of Congress a report on the progress in developing the metrics described in subsection (a).

SEC. 2317. SAFE AIR TRANSPORTATION OF LITHIUM CELLS AND BATTERIES.

(a) RESTRICTIONS ON TRANSPORTATION OF LITHIUM BATTERIES ON AIRCRAFT.—

(1) ADOPTION OF ICAO INSTRUCTIONS.—

(A) IN GENERAL.—Pursuant to section 828 of the FAA Modernization and Reform Act of 2012 (49 U.S.C. 44701 note), not later than 90 days after the date of enactment of this Act, the Secretary of the Department of Transportation shall conform United States regulations on the air transport of lithium cells and batteries with the lithium cells and battery requirements in the 2015–2016 edition of the International Civil Aviation Organization's (referred to in this subsection as ''ICAO'') Technical Instructions (to include all addenda) including the revised standards adopted by ICAO which became effective on April 1, 2016.

(B) FURTHER PROCEEDINGS.—Beginning on the date the revised regulations under subparagraph (A) are published in the Federal Register, any lithium cell and battery rulemaking action or update commenced on or after that date shall continue to comply with the requirements under section 828 of the FAA Modernization and Reform Act of 2012 (49 U.S.C. 44701 note).

(2) REVIEW OF OTHER REGULATIONS.—Pursuant to section 828 of the FAA Modernization and Reform Act of 2012 (49 U.S.C. 44701 note), the Secretary of Transportation may initiate a review of other existing regulations regarding the air transportation, including passenger-carrying and cargo aircraft, of lithium batteries and cells.

(3) MEDICAL DEVICE BATTERIES.—

(A) IN GENERAL.—For United States applicants, the Secretary of Transportation shall consider and either grant or deny, within 45 days, applications submitted in compliance with part 107 of title 49, Code of Federal Regulations for special permits or approvals for air transportation of lithium ion cells or batteries specifically used by medical devices. Not later than 30 days after the date of application, the Pipeline and Hazardous Materials Safety Administration shall provide a draft special permit based on the application to the Federal Aviation Administration. The Federal Aviation Administration shall conduct an on-site inspection for issuance of the special permit not later than 10 days after the date of receipt of the draft special permit from the Pipeline and Hazardous Materials Safety Administration.

(B) DEFINITION OF MEDICAL DEVICE.—In this paragraph, the term ''medical device'' has the meaning given the term ''device'' in section 201 of the Federal Food, Drug, and Cosmetic Act (21 U.S.C. 321).

(4) SAVINGS CLAUSE.—Nothing in this section shall be construed as expanding or constricting any other authority the Secretary of Transportation has under section 828 of the FAA Modernization and Reform Act of 2012 (49 U.S.C. 44701 note).

(b) LITHIUM BATTERY SAFETY WORKING GROUP.—Not later than 90 days after the date of enactment of this Act, the President shall establish a lithium battery safety working group to promote and coordinate efforts related to the promotion of the safe manufacture, use, and transportation of lithium batteries and cells.

(1) COMPOSITION.—

(A) IN GENERAL.—The working group shall be composed of at least 1 representative from each of the following:

(i) Consumer Product Safety Commission.

(ii) Department of Transportation.

(iii) National Institute on Standards and Technology.

(iv) Food and Drug Administration.

(B) ADDITIONAL MEMBERS.—The working group may include not more than 4 additional members with expertise in the safe manufacture, use, or transportation of lithium batteries and cells.

(C) SUBCOMMITTEES.—The President, or members of the working group, may—

(i) establish working group subcommittees to focus on specific issues related to the safe manufacture, use, or transportation of lithium batteries and cells; and

(ii) include in a subcommittee the participation of nonmember stakeholders with expertise in areas that the President or members consider necessary.

(2) REPORT.—Not later than 1 year after the date it is established under subsection (b), the working group shall—

(A) research—

(i) additional ways to decrease the risk of fires and explosions from lithium batteries and cells;

(ii) additional ways to ensure uniform transportation requirements for both bulk and individual batteries; and

(iii) new or existing technologies that could reduce the fire and explosion risk of lithium batteries and cells; and

(B) transmit to the appropriate committees of Congress a report on the research under subparagraph (A), including any legislative recommendations to effectuate the safety improvements described in clauses (i) through (iii) of that subparagraph.

(3) EXEMPTION FROM FACA.—The Federal Advisory Committee Act (5 U.S.C. App.) shall not apply to the working group.

(4) TERMINATION.—The working group, and any working group subcommittees, shall terminate 90 days after the date the report is transmitted under paragraph (2).

SEC. 2318. PROHIBITION ON IMPLEMENTATION OF POLICY CHANGE TO PERMIT SMALL, NON-LOCKING KNIVES ON AIRCRAFT.

(a) IN GENERAL.—Notwithstanding any other provision of law, on and after the date of enactment of this Act, the Secretary of Homeland Security may not implement any change to the prohibited items list of the Transportation Security Administration that would permit passengers to carry small, non-locking knives through passenger screening checkpoints at airports, into sterile areas at airports, or on board passenger aircraft.

(b) PROHIBITED ITEMS LIST DEFINED.—In this section, the term ''prohibited items list'' means the list of items passengers are prohibited from carrying as accessible property or on their persons through passenger screening checkpoints at airports, into sterile areas at airports, and on board passenger aircraft pursuant to section 1540.111 of title 49, Code of Federal Regulations.

SEC. 2319. AIRCRAFT CABIN EVACUATION PROCEDURES.

(a) REVIEW.—The Administrator of the Federal Aviation Administration shall review—

(1) evacuation certification of transport-category aircraft used in air transportation, with regard to—

(A) emergency conditions, including impacts into water;

(B) crew procedures used for evacuations under actual emergency conditions;

(C) any relevant changes to passenger demographics and legal requirements, including the Americans with Disabilities Act of 1990 (42 U.S.C. 12101 et seq.), that affect emergency evacuations; and

(D) any relevant changes to passenger seating configurations, including changes to seat width, padding, reclining, size, pitch, leg room, and aisle width; and

(2) recent accidents and incidents in which passengers evacuated such aircraft.

(b) CONSULTATION; REVIEW OF DATA.—In conducting the review under subsection (a), the Administrator shall—

(1) consult with the National Transportation Safety Board, transport-category aircraft manufacturers, air carriers, and other relevant experts and Federal agencies, including groups representing passengers, airline crew members, maintenance employees, and emergency responders; and

(2) review relevant data with respect to evacuation certification of transport-category aircraft.

(c) REPORT TO CONGRESS.—Not later than 1 year after the date of enactment of this Act, the Administrator shall submit to the appropriate committees of Congress a report on the results of the review under subsection (a) and related recommendations, if any, including recommendations for revisions to the assumptions and methods used for assessing evacuation certification of transport-category aircraft.

SEC. 2320. GAO STUDY OF UNIVERSAL DEPLOYMENT OF ADVANCED IMAGING TECHNOLOGIES.

(a) STUDY.—The Comptroller General of the United States shall conduct a study of the costs that would be incurred—

(1) to redesign airport security areas to fully deploy advanced imaging technologies at all commercial airports at which security screening operations are conducted by the Transportation Security Administration or through the Screening Partnership Program; and

(2) to fully deploy advanced imaging technologies at all airports not described in paragraph (1).

(b) COST ANALYSIS.—As a part of the study conducted under subsection (a), the Comptroller General shall identify the costs that would be incurred—

(1) to purchase the equipment and other assets necessary to deploy advanced imaging technologies at each airport;

(2) to install such equipment and assets in each airport; and

(3) to maintain such equipment and assets.

(c) REPORT.—Not later than 6 months after the date of the enactment of this Act, the Comptroller General shall submit the results of the study conducted under subsection (a) to the appropriate committees of Congress.

Subtitle D—General Aviation Safety

SEC. 2401. AUTOMATED WEATHER OBSERVING SYSTEMS POLICY.

(a) IN GENERAL.—Not later than 2 years after the date of enactment of this Act, the Administrator of the Federal Aviation Administration shall—

(1) update automated weather observing systems standards to maximize the use of new technologies that promote the reduction of equipment or maintenance cost for non-Federal automated weather observing systems, including the use of remote monitoring and maintenance, unless demonstrated to be ineffective;

(2) review, and if necessary update, existing policies in accordance with the standards developed under paragraph (1); and

(3) establish a process under which appropriate on site airport personnel or an aviation official may, with appropriate manufacturer training or alternative training as determined by the Administrator, be permitted to conduct the minimum tri-annual preventative maintenance checks under the advisory circular for non-Federal automated weather observing systems (AC 150/5220-16D).

(b) PERMISSION.—Permission to conduct the minimum tri-annual preventative maintenance checks described under subsection (a)(3) shall not be withheld but for specific cause.

(c) STANDARDS.—In updating the standards under subsection (a)(1), the Administrator shall—

(1) ensure the standards are performance-based;

(2) use risk analysis to determine the accuracy of the automated weather observing systems outputs required for pilots to perform safe aircraft operations; and

(3) provide a cost benefit analysis to determine whether the benefits outweigh the cost for any requirement not directly related to safety.

(d) REPORT.—Not later than September 30, 2017, the Administrator shall provide a report to the appropriate committees of Congress on the implementation of requirements under this section.

SEC. 2402. TOWER MARKING.

(a) IN GENERAL.—Not later than 1 year after the date of enactment of this Act, the Administrator of the Federal Aviation Administration shall issue regulations to require the marking of covered towers.

(b) MARKING REQUIRED.—The regulations under subsection (a) shall require that a covered tower be clearly marked in a manner that is consistent with applicable guidance under the Federal Aviation Administration Advisory Circular issued December 4, 2015 (AC 70/7460–1L) or other relevant safety guidance, as determined by the Administrator.

(c) APPLICATION.—The regulations issued under subsection (a) shall ensure that—

(1) all covered towers constructed on or after the date on which such regulations take effect are marked in accordance with subsection (b); and

(2) a covered tower constructed before the date on which such regulations take effect is marked in accordance with subsection (b) not later than 1 year after such effective date.

(d) DEFINITION OF COVERED TOWER.—

(1) IN GENERAL.—In this section, the term ''covered tower'' means a structure that—

(A) is self-standing or supported by guy wires and ground anchors;

(B) is 10 feet or less in diameter at the above-ground base, excluding concrete footing;

(C) at the highest point of the structure is at least 50 feet above ground level;

(D) at the highest point of the structure is not more than 200 feet above ground level;

(E) has accessory facilities on which an antenna, sensor, camera, meteorological instrument, or other equipment is mounted; and

(F) is located—

(i) outside the boundaries of an incorporated city or town; or

(ii) on land that is—

(I) undeveloped; or

(II) used for agricultural purposes.

(2) EXCLUSIONS.—The term ''covered tower'' does not include any structure that—

(A) is adjacent to a house, barn, electric utility station, or other building;

(B) is within the curtilage of a farmstead;

(C) supports electric utility transmission or distribution lines;

(D) is a wind powered electrical generator with a rotor blade radius that exceeds 6 feet; or

(E) is a street light erected or maintained by a Federal, State, local, or tribal entity.

(e) DATABASE.—The Administrator shall—

(1) develop a database that contains the location and height of each covered tower;

(2) keep the database current to the extent practicable;

(3) ensure that any proprietary information in the database is protected from disclosure in accordance with law; and

(4) ensure access to the database is limited to individuals, such as airmen, who require the information for aviation safety purposes only.

SEC. 2403. CRASH-RESISTANT FUEL SYSTEMS.

Not later than 1 year after the date of enactment of this Act, the Administrator of the Federal Aviation Administration shall evaluate and update, as necessary, standards for crash-resistant fuel systems for civilian rotorcraft.

SEC. 2404. REQUIREMENT TO CONSULT WITH STAKEHOLDERS IN DEFINING SCOPE AND REQUIREMENTS FOR FUTURE FLIGHT SERVICE PROGRAM.

Not later than 180 days after the date of enactment of this Act, the Administrator of the Federal Aviation Administration shall consult with general aviation stakeholders in defining the scope and requirements for any new Future Flight Service Program of the Administration to be used in a competitive source selection for the next flight service contract with the Administration.

SEC. 2405. HEADS-UP GUIDANCE SYSTEM TECHNOLOGIES.

(a) IN GENERAL.—Not later than 180 days after the date of the enactment of this Act, the Administrator of the Federal Aviation Administration shall initiate a review of heads-up guidance system displays (in this section referred to as ''HGS'').

(b) CONTENTS.—The review required by subsection (a) shall—

(1) evaluate the impacts of single- and dual-installed HGS technology on the safety and efficiency of aircraft operations within the national airspace system;

(2) review a sufficient quantity of commercial aviation accidents or incidents in order to evaluate if HGS technology would have produced a better outcome in that accident or incident; and

(3) update previous HGS studies performed by the Flight Safety Foundation in 1991 and 2009.

(c) REPORT.—Not later than 18 months after the date of the enactment of this Act, the Administrator shall submit to the appropriate committees of Congress a report containing the results of the review required by subsection (a).

Subtitle E—General Provisions

SEC. 2501. DESIGNATED AGENCY SAFETY AND HEALTH OFFICER.

(a) IN GENERAL.—Section 106 is amended by adding at the end the following:

''(u) DESIGNATED AGENCY SAFETY AND HEALTH OFFICER.—

''(1) APPOINTMENT.—There shall be a Designated Agency Safety and Health Officer appointed by the Administrator who shall exclusively fulfill the duties prescribed in this subsection.

''(2) RESPONSIBILITIES.—The Designated Agency Safety and Health Officer shall have responsibility and accountability for—

''(A) auditing occupational safety and health issues across the Administration;

''(B) overseeing Administration-wide compliance with relevant Federal occupational safety and health statutes and regulations, national industry and consensus standards, and Administration policies; and

''(C) encouraging a culture of occupational safety and health to complement the Administration's existing safety culture.

''(3) REPORTING STRUCTURE.—The Designated Agency Safety and Health Officer shall occupy a full-time, senior executive position and shall report directly to the Assistant Administrator for Human Resource Management.

''(4) QUALIFICATIONS AND REMOVAL.—

''(A) QUALIFICATIONS.—The Designated Agency Safety and Health Officer shall have demonstrated ability and experience in the establishment and administration of comprehensive occupational safety and health programs and knowledge of relevant Federal occupational safety and health statutes and regulations, national industry and consensus standards, and Administration policies.

''(B) REMOVAL.—The Designated Agency Safety and Health Officer shall serve at the pleasure of the Administrator.''.

(b) DEADLINE FOR APPOINTMENT.—Not later than 180 days after the date of enactment of this Act, the Administrator of the Federal Aviation Administration shall appoint an individual to serve as the Designated Agency Safety and Health Officer under section 106(u) of title 49, United States Code.

SEC. 2502. REPAIR STATIONS LOCATED OUTSIDE UNITED STATES.

(a) RISK-BASED OVERSIGHT.—Section 44733 is amended—

(1) by redesignating subsection (f) as subsection (g);

(2) by inserting after subsection (e) the following:

''(f) RISK-BASED OVERSIGHT.—

''(1) IN GENERAL.—Not later than 90 days after the date of enactment of the Federal Aviation Administration Reauthorization Act of 2016, the Administrator shall take measures to ensure that the safety assessment system established under subsection (a)—

''(A) places particular consideration on inspections of part 145 repair stations located outside the United States that conduct scheduled heavy maintenance work on part 121 air carrier aircraft; and

''(B) accounts for the frequency and seriousness of any corrective actions that part 121 air carriers must implement to aircraft following such work at such repair stations.

''(2) INTERNATIONAL AGREEMENTS.—The Administrator shall take the measures required under paragraph (1)—

''(A) in accordance with the United States obligations under applicable international agreements; and

''(B) in a manner consistent with the applicable laws of the country in which a repair station is located.

''(3) ACCESS TO DATA.—The Administrator may access and review such information or data in the possession of a part 121 air carrier as the Administrator may require in carrying out paragraph (1)(B).''; and

(3) in subsection (g), as redesignated—

(A) by redesignating paragraphs (1) and (2) as paragraphs (2) and (3), respectively; and

(B) by inserting before paragraph (2), as redesignated, the following:

''(1) HEAVY MAINTENANCE WORK.—The term 'heavy maintenance work' means a C-check, a D-check, or equivalent maintenance operation with respect to the airframe of a transport-category aircraft.''.

(b) ALCOHOL AND CONTROLLED SUBSTANCES TESTING.—The Administrator of the Federal Aviation Administration shall ensure that—

(1) not later than 90 days after the date of enactment of this Act, a notice of proposed rulemaking required pursuant to section 44733(d)(2) of title 49, United States Code, is published in the Federal Register; and

(2) not later than 1 year after the date on which the notice of proposed rulemaking is published in the Federal Register, the rulemaking is finalized.

(c) BACKGROUND INVESTIGATIONS.—Not later than 180 days after the date of enactment of this Act, the Administrator of the Federal Aviation Administration shall ensure that each employee of a repair station certificated under part 145 of title 14, Code of Federal Regulations, who performs a safety-sensitive function on an air carrier aircraft has undergone a preemployment background investigation sufficient to determine whether the individual presents a threat to aviation safety, in a manner that is—

(1) determined acceptable by the Administrator;

(2) consistent with the applicable laws of the country in which the repair station is located; and

(3) consistent with the United States obligations under international agreements.

SEC. 2503. FAA TECHNICAL TRAINING.

(a) E-LEARNING TRAINING PILOT PROGRAM.—Not later than 90 days after the date of enactment of this Act, the Administrator of the Federal Aviation Administration, in collaboration with the exclusive bargaining representatives of covered FAA personnel, shall establish an e-learning training pilot program in accordance with the requirements of this section.

(b) CURRICULUM.—The pilot program shall—

(1) include a recurrent training curriculum for covered FAA personnel to ensure that the covered FAA personnel receive instruction on the latest aviation technologies, processes, and procedures;

(2) focus on providing specialized technical training for covered FAA personnel, as determined necessary by the Administrator;

(3) include training courses on applicable regulations of the Federal Aviation Administration; and

(4) consider the efficacy of instructor-led online training.

(c) PILOT PROGRAM TERMINATION.—The pilot program shall terminate 1 year after the date of establishment of the pilot program.

(d) E-LEARNING TRAINING PROGRAM.—Upon termination of the pilot program, the Administrator shall assess and establish or update an e-learning training program that incorporates lessons learned for covered FAA personnel as a result of the pilot program.

(e) DEFINITIONS.—In this section:

(1) COVERED FAA PERSONNEL.—The term ''covered FAA personnel'' means airway transportation systems specialists and aviation safety inspectors of the Federal Aviation Administration.

(2) E-LEARNING TRAINING.—The term ''e-learning training'' means learning utilizing electronic technologies to access educational curriculum outside of a traditional classroom.

SEC. 2504. SAFETY CRITICAL STAFFING.

(a) AUDIT BY DOT INSPECTOR GENERAL.—Not later than 1 year after the date of enactment of this Act, the Inspector General of the Department of Transportation shall conduct and complete an audit of the staffing model used by the Federal Aviation Administration to determine the number of aviation safety inspectors that are needed to fulfill the mission of the Federal Aviation Administration and adequately ensure aviation safety.

(b) CONTENTS.—The audit shall include, at a minimum—

(1) a review of the staffing model and an analysis of how consistently the staffing model is applied throughout the Federal Aviation Administration's aviation safety lines of business;

(2) a review of the assumptions and methods used in devising and implementing the staffing model to assess the adequacy of the staffing model to predict the number of aviation safety inspectors needed to properly fulfill the mission of the Federal Aviation Administration and meet the future growth of the aviation industry; and

(3) a determination on whether the current staffing model takes into account the Federal Aviation Administration's authority to fully utilize designees.

(c) REPORT.—Not later than 30 days after the date of completion of the audit, the Inspector General shall submit to the appropriate committees of Congress a report on the results of the audit.

SEC. 2505. APPROACH CONTROL RADAR IN ALL AIR TRAFFIC CONTROL TOWERS.

The Administrator of the Federal Aviation Administration shall—

(1) identify airports that are currently served by Federal Aviation Administration towers with non-radar approach and departure control (Type 4 tower); and

(2) develop an implementation plan, including budgetary considerations, to provide the facilities identified under paragraph (1) with approach control radar.

SEC. 2506. AIRSPACE MANAGEMENT ADVISORY COMMITTEE.

(a) IN GENERAL.—Not later than 180 days after the date of the enactment of this Act, the Administrator shall establish an advisory committee to carry out the duties described in subsection (b).

(b) DUTIES.—The advisory committee shall—

(1) conduct a review of the practices and procedures of the Federal Aviation Administration for developing proposals with respect to changes in regulations, policies, or guidance of the Federal Aviation Administration relating to airspace that affect airport operations, airport capacity, the environment, or communities in the vicinity of airports, including—

(A) an assessment of the extent to which there is consultation, or a lack of consultation, with respect to such proposals—

(i) between and among the affected elements of the Federal Aviation Administration, including the Air Traffic Organization, the Office of Airports, the Flight Standards Service, the Office of NextGen, and the Office of Energy and Environment; and

(ii) between the Federal Aviation Administration and affected entities, including airports, aircraft operators, communities, and State and local governments;

(2) recommend revisions to such practices and procedures to improve communications and coordination between and among affected elements of the Federal Aviation Administration and with other affected entities with respect to proposals described in paragraph (1) and the potential effects of such proposals;

(3) conduct a review of the management by the Federal Aviation Administration of systems and information used to evaluate data relating to obstructions to air navigation or navigational facilities under part 77 of title 14, Code of Federal Regulations; and

(4) make recommendations to ensure that the data described in paragraph (3) is publicly accessible and streamlined to ensure developers, airport operators, and other interested parties may obtain relevant information concerning potential obstructions when working to preserve and create a safe and efficient navigable airspace.

(c) MEMBERSHIP.—The membership of the advisory committee established under subsection (a) shall include representatives of—

(1) air carriers, including passenger and cargo air carriers;

(2) general aviation, including business aviation and fixed wing aircraft and rotocraft;

(3) airports of various sizes and types;

(4) air traffic controllers; and

(5) State aviation officials.

(d) REPORT REQUIRED.—Not later than one year after the establishment of the advisory committee under subsection (a), the advisory committee shall submit to Congress a report on the actions taken by the advisory committee to carry out the duties described in subsection (b).

Subtitle F—Third Class Medical Reform and General Aviation Pilot Protections

SEC. 2601. SHORT TITLE.

This subtitle may be cited as the ''Pilot's Bill of Rights 2''.

SEC. 2602. MEDICAL CERTIFICATION OF CERTAIN SMALL AIRCRAFT PILOTS.

(a) IN GENERAL.—Not later than 180 days after the date of enactment of this Act, the Administrator of the Federal Aviation Administration shall issue or revise regulations to ensure that an individual may operate as pilot in command of a covered aircraft if—

(1) the individual possesses a valid driver's license issued by a State, territory, or possession of the United States and complies with all medical requirements or restrictions associated with that license;

(2) the individual holds a medical certificate issued by the Federal Aviation Administration on the date of enactment of this Act, held such a certificate at any point during the 10-year period preceding such date of enactment, or obtains such a certificate after such date of enactment;

(3) the most recent medical certificate issued by the Federal Aviation Administration to the individual—

(A) indicates whether the certificate is first, second, or third class;

(B) may include authorization for special issuance;

(C) may be expired;

(D) cannot have been revoked or suspended; and

(E) cannot have been withdrawn;

(4) the most recent application for airman medical certification submitted to the Federal Aviation Administration by the individual cannot have been completed and denied;

(5) the individual has completed a medical education course described in subsection (c) during the 24 calendar months before acting as pilot in command of a covered aircraft and demonstrates proof of completion of the course;

(6) the individual, when serving as a pilot in command, is under the care and treatment of a physician if the individual has been diagnosed with any medical condition that may impact the ability of the individual to fly;

(7) the individual has received a comprehensive medical examination from a State-licensed physician during the previous 48 months and—

(A) prior to the examination, the individual—

(i) completed the individual's section of the checklist described in subsection (b); and

(ii) provided the completed checklist to the physician performing the examination; and

(B) the physician conducted the comprehensive medical examination in accordance with the checklist described in subsection (b), checking each item specified during the examination and addressing, as medically appropriate, every medical condition listed, and any medications the individual is taking; and

(8) the individual is operating in accordance with the following conditions:

(A) The covered aircraft is carrying not more than 5 passengers.

(B) The individual is operating the covered aircraft under visual flight rules or instrument flight rules.

(C) The flight, including each portion of that flight, is not carried out—

(i) for compensation or hire, including that no passenger or property on the flight is being carried for compensation or hire;

(ii) at an altitude that is more than 18,000 feet above mean sea level;

(iii) outside the United States, unless authorized by the country in which the flight is conducted; or

(iv) at an indicated air speed exceeding 250 knots.

(b) COMPREHENSIVE MEDICAL EXAMINATION.—

(1) IN GENERAL.—Not later than 180 days after the date of enactment of this Act, the Administrator shall develop a checklist for an individual to complete and provide to the physician performing the comprehensive medical examination required in subsection (a)(7).

(2) REQUIREMENTS.—The checklist shall contain—

(A) a section, for the individual to complete that contains—

(i) boxes 3 through 13 and boxes 16 through 19 of the Federal Aviation Administration Form 8500–8 (3–99);

(ii) a signature line for the individual to affirm that—

(I) the answers provided by the individual on that checklist, including the individual's answers regarding medical history, are true and complete;

(II) the individual understands that he or she is prohibited under Federal Aviation Administration regulations from acting as pilot in command, or any other capacity as a required flight crew member, if he or she knows or has reason to know of any medical deficiency or medically disqualifying condition that would make the individual unable to operate the aircraft in a safe manner; and

(III) the individual is aware of the regulations pertaining to the prohibition on operations during medical deficiency and has no medically disqualifying conditions in accordance with applicable law;

(B) a section with instructions for the individual to provide the completed checklist to the physician performing the comprehensive medical examination required in subsection (a)(7); and

(C) a section, for the physician to complete, that instructs the physician—

(i) to perform a clinical examination of—

(I) head, face, neck, and scalp;

(II) nose, sinuses, mouth, and throat;

(III) ears, general (internal and external canals), and eardrums (perforation);

(IV) eyes (general), ophthalmoscopic, pupils (equality and reaction), and ocular motility (associated parallel movement, nystagmus);

(V) lungs and chest (not including breast examination);

(VI) heart (precordial activity, rhythm, sounds, and murmurs);

(VII) vascular system (pulse, amplitude, and character, and arms, legs, and others);

(VIII) abdomen and viscera (including hernia);

(IX) anus (not including digital examination);

(X) skin;

(XI) G–U system (not including pelvic examination);

(XII) upper and lower extremities (strength and range of motion);

(XIII) spine and other musculoskeletal;

(XIV) identifying body marks, scars, and tattoos (size and location);

(XV) lymphatics;

(XVI) neurologic (tendon reflexes, equilibrium, senses, cranial nerves, and coordination, etc.);

(XVII) psychiatric (appearance, behavior, mood, communication, and memory);

(XVIII) general systemic;

(XIX) hearing;

(XX) vision (distant, near, and intermediate vision, field of vision, color vision, and ocular alignment);

(XXI) blood pressure and pulse; and

(XXII) anything else the physician, in his or her medical judgment, considers necessary;

(ii) to exercise medical discretion to address, as medically appropriate, any medical conditions identified, and to exercise medical discretion in determining whether any medical tests are warranted as part of the comprehensive medical examination;

(iii) to discuss all drugs the individual reports taking (prescription and nonprescription) and their potential to interfere with the safe operation of an aircraft or motor vehicle;

(iv) to sign the checklist, stating: ''I certify that I discussed all items on this checklist with the individual during my examination, discussed any medications the individual is taking that could interfere with their ability to safely operate an aircraft or motor vehicle, and performed an examination that included all of the items on this checklist. I certify that I am not aware of any medical condition that, as presently treated, could interfere with the individual's ability to safely operate an aircraft.''; and

(v) to provide the date the comprehensive medical examination was completed, and the physician's full name, address, telephone number, and State medical license number.

(3) LOGBOOK.—The completed checklist shall be retained in the individual's logbook and made available on request.

(c) MEDICAL EDUCATION COURSE REQUIREMENTS.—The medical education course described in this subsection shall—

(1) be available on the Internet free of charge;

(2) be developed and periodically updated in coordination with representatives of relevant nonprofit and not-for-profit general aviation stakeholder groups;

(3) educate pilots on conducting medical self-assessments;

(4) advise pilots on identifying warning signs of potential serious medical conditions;

(5) identify risk mitigation strategies for medical conditions;

(6) increase awareness of the impacts of potentially impairing over-the-counter and prescription drug medications;

(7) encourage regular medical examinations and consultations with primary care physicians;

(8) inform pilots of the regulations pertaining to the prohibition on operations during medical deficiency and medically disqualifying conditions;

(9) provide the checklist developed by the Federal Aviation Administration in accordance with subsection (b); and

(10) upon successful completion of the course, electronically provide to the individual and transmit to the Federal Aviation Administration—

(A) a certification of completion of the medical education course, which shall be printed and retained in the individual's logbook and made available upon request, and shall contain the individual's name, address, and airman certificate number;

(B) subject to subsection (d), a release authorizing the National Driver Register through a designated State Department of Motor Vehicles to furnish to the Federal Aviation Administration information pertaining to the individual's driving record;

(C) a certification by the individual that the individual is under the care and treatment of a physician if the individual has been diagnosed with any medical condition that may impact the ability of the individual to fly, as required under (a)(6);

(D) a form that includes—

(i) the name, address, telephone number, and airman certificate number of the individual;

(ii) the name, address, telephone number, and State medical license number of the physician performing the comprehensive medical examination required in subsection (a)(7);

(iii) the date of the comprehensive medical examination required in subsection (a)(7); and

(iv) a certification by the individual that the checklist described in subsection (b) was followed and signed by the physician in the comprehensive medical examination required in subsection (a)(7); and

(E) a statement, which shall be printed, and signed by the individual certifying that the individual understands the existing prohibition on operations during medical deficiency by stating: ''I understand that I cannot act as pilot in command, or any other capacity as a required flight crew member, if I know or have reason to know of any medical condition that would make me unable to operate the aircraft in a safe manner.''.

(d) NATIONAL DRIVER REGISTER.—The authorization under subsection (c)(10)(B) shall be an authorization for a single access to the information contained in the National Driver Register.

(e) SPECIAL ISSUANCE PROCESS.—

(1) IN GENERAL.—An individual who has qualified for the third-class medical certificate exemption under subsection (a) and is seeking to serve as a pilot in command of a covered aircraft shall be required to have completed the process for obtaining an Authorization for Special Issuance of a Medical Certificate for each of the following:

(A) A mental health disorder, limited to an established medical history or clinical diagnosis of—

(i) personality disorder that is severe enough to have repeatedly manifested itself by overt acts;

(ii) psychosis, defined as a case in which an individual—

(I) has manifested delusions, hallucinations, grossly bizarre or disorganized behavior, or other commonly accepted symptoms of psychosis; or

(II) may reasonably be expected to manifest delusions, hallucinations, grossly bizarre or disorganized behavior, or other commonly accepted symptoms of psychosis;

(iii) bipolar disorder; or

(iv) substance dependence within the previous 2 years, as defined in section 67.307(a)(4) of title 14, Code of Federal Regulations.

(B) A neurological disorder, limited to an established medical history or clinical diagnosis of any of the following:

(i) Epilepsy.

(ii) Disturbance of consciousness without satisfactory medical explanation of the cause.

(iii) A transient loss of control of nervous system functions without satisfactory medical explanation of the cause.

(C) A cardiovascular condition, limited to a one-time special issuance for each diagnosis of the following:

(i) Myocardial infraction.

(ii) Coronary heart disease that has required treatment.

(iii) Cardiac valve replacement.

(iv) Heart replacement.

(2) SPECIAL RULE FOR CARDIOVASCULAR CONDITIONS.—In the case of an individual with a

cardiovascular condition, the process for obtaining an Authorization for Special Issuance of a Medical Certificate shall be satisfied with the successful completion of an appropriate clinical evaluation without a mandatory wait period.

(3) SPECIAL RULE FOR MENTAL HEALTH CONDITIONS.—

(A) In the case of an individual with a clinically diagnosed mental health condition, the third-class medical certificate exemption under subsection (a) shall not apply if—

(i) in the judgment of the individual's State-licensed medical specialist, the condition—

(I) renders the individual unable to safely perform the duties or exercise the airman privileges described in subsection (a)(8); or

(II) may reasonably be expected to make the individual unable to perform the duties or exercise the privileges described in subsection (a)(8); or

(ii) the individual's driver's license is revoked by the issuing agency as a result of a clinically diagnosed mental health condition.

(B) Subject to subparagraph (A), an individual clinically diagnosed with a mental health condition shall certify every 2 years, in conjunction with the certification under subsection (c)(10)(C), that the individual is under the care of a State-licensed medical specialist for that mental health condition.

(4) SPECIAL RULE FOR NEUROLOGICAL CONDITIONS.—

(A) In the case of an individual with a clinically diagnosed neurological condition, the third-class medical certificate exemption under subsection (a) shall not apply if—

(i) in the judgment of the individual's State-licensed medical specialist, the condition—

(I) renders the individual unable to safely perform the duties or exercise the airman privileges described in subsection (a)(8); or

(II) may reasonably be expected to make the individual unable to perform the duties or exercise the privileges described in subsection (a)(8); or

(ii) the individual's driver's license is revoked by the issuing agency as a result of a clinically diagnosed neurological condition.

(B) Subject to subparagraph (A), an individual clinically diagnosed with a neurological condition shall certify every 2 years, in conjunction with the certification under subsection (c)(10)(C), that the individual is under the care of a State-licensed medical specialist for that neurological condition.

(f) IDENTIFICATION OF ADDITIONAL MEDICAL CONDITIONS FOR THE CACI PROGRAM.—

(1) IN GENERAL.—Not later than 180 days after the date of enactment of this Act, the Administrator shall review and identify additional medical conditions that could be added to the program known as the Conditions AMEs Can Issue (CACI) program.

(2) CONSULTATIONS.—In carrying out paragraph (1), the Administrator shall consult with aviation, medical, and union stakeholders.

(3) REPORT REQUIRED.—Not later than 180 days after the date of enactment of this Act, the Administrator shall submit to the Committee on Commerce, Science, and Transportation of the Senate and the Committee on Transportation and Infrastructure of the House of Representatives a report listing the medical conditions that have been added to the CACI program under paragraph (1).

(g) EXPEDITED AUTHORIZATION FOR SPECIAL ISSUANCE OF A MEDICAL CERTIFICATE.—

(1) IN GENERAL.—The Administrator shall implement procedures to expedite the process for obtaining an Authorization for Special Issuance of a Medical Certificate under section 67.401 of title 14, Code of Federal Regulations.

(2) CONSULTATIONS.—In carrying out paragraph (1), the Administrator shall consult with aviation, medical, and union stakeholders.

(3) REPORT REQUIRED.—Not later than 1 year after the date of enactment of this Act, the Administrator shall submit to the Committee on Commerce, Science, and Transportation of the Senate and the Committee on Transportation and Infrastructure of the House of Representatives a report describing how the procedures implemented under paragraph (1) will streamline the process for obtaining an Authorization for Special Issuance of a Medical Certificate and reduce the amount of time needed to review and decide special issuance cases.

(h) REPORT REQUIRED.—Not later than 5 years after the date of enactment of this Act, the Administrator, in coordination with the National Transportation Safety Board, shall submit to the Committee on Commerce, Science, and Transportation of the Senate and the Committee on Transportation and Infrastructure of the House of Representatives a report that describes the effect of the regulations issued or revised under subsection (a) and includes statistics with respect to changes in small aircraft activity and safety incidents.

(i) PROHIBITION ON ENFORCEMENT ACTIONS.—Beginning on the date that is 1 year after the date of enactment of this Act, the Administrator may not take an enforcement action for not holding a valid third-class medical certificate against a pilot of a covered aircraft for a flight, through a good faith effort, if the pilot and the flight meet the applicable requirements under subsection (a), except paragraph (5) of that subsection, unless the Administrator has published final regulations in the Federal Register under that subsection.

(j) COVERED AIRCRAFT DEFINED.—In this section, the term ''covered aircraft'' means an aircraft that—

(1) is authorized under Federal law to carry not more than 6 occupants; and

(2) has a maximum certificated takeoff weight of not more than 6,000 pounds.

(k) OPERATIONS COVERED.—The provisions and requirements covered in this section do not apply to pilots who elect to operate under the medical requirements under subsection (b) or subsection (c) of section 61.23 of title 14, Code of Federal Regulations.

(l) AUTHORITY TO REQUIRE ADDITIONAL INFORMATION.—

(1) IN GENERAL.—If the Administrator receives credible or urgent information, including from the National Driver Register or the Administrator's Safety Hotline, that reflects on an individual's ability to safely operate a covered aircraft under the third-class medical certificate exemption in subsection (a), the Administrator may require the individual to provide additional information or history so that the Administrator may determine whether the individual is safe to continue operating a covered aircraft.

(2) USE OF INFORMATION.—The Administrator may use credible or urgent information received under paragraph (1) to request an individual to provide additional information or to take actions under section 44709(b) of title 49, United States Code.

SEC. 2603. EXPANSION OF PILOT'S BILL OF RIGHTS.

(a) APPEALS OF SUSPENDED AND REVOKED AIRMAN CERTIFICATES.—Section 2(d)(1) of the Pilot's Bill of Rights (Public Law 112–153; 126 Stat. 1159; 49 U.S.C. 44703 note) is amended by striking ''or imposing a punitive civil action or an emergency order of revocation under subsections (d) and (e) of section 44709 of such title'' and inserting ''suspending or revoking an airman certificate under section 44709(d) of such title, or imposing an emergency order of revocation under subsections (d) and (e) of section 44709 of such title''.

(b) DE NOVO REVIEW BY DISTRICT COURT; BURDEN OF PROOF.—Section 2(e) of the Pilot's Bill of Rights (Public Law 112–153; 126 Stat. 1159; 49 U.S.C. 44703 note) is amended—

(1) by amending paragraph (1) to read as follows:

''(1) IN GENERAL.—In an appeal filed under subsection (d) in a United States district court with respect to a denial, suspension, or revocation of an airman certificate by the Administrator—

''(A) the district court shall review the denial, suspension, or revocation de novo, including by—

''(i) conducting a full independent review of the complete administrative record of the denial, suspension, or revocation;

''(ii) permitting additional discovery and the taking of additional evidence; and

''(iii) making the findings of fact and conclusions of law required by Rule 52 of the Federal Rules of Civil Procedure without being bound to any findings of fact of the Administrator or the National Transportation Safety Board.'';

(2) by redesignating paragraph (2) as paragraph (3); and

(3) by inserting after paragraph (1) the following:

''(2) BURDEN OF PROOF.—In an appeal filed under subsection (d) in a United States district court after an exhaustion of administrative remedies, the burden of proof shall be as follows:

''(A) In an appeal of the denial of an application for the issuance or renewal of an airman certificate under section 44703 of title 49, United States Code, the burden of proof shall be upon the applicant denied an airman certificate by the Administrator.

''(B) In an appeal of an order issued by the Administrator under section 44709 of title 49, United States Code, the burden of proof shall be upon the Administrator.''; and

(4) by adding at the end the following:

''(4) APPLICABILITY OF ADMINISTRATIVE PROCEDURE ACT.—Notwithstanding paragraph (1)(A) of this subsection or subsection (a)(1) of section 554 of title 5, United States Code, section 554 of such title shall apply to adjudications of the Administrator and the National Transportation Safety Board to the same extent as that section applied to such adjudications before the date of enactment of the Pilot's Bill of Rights 2.''.

(c) NOTIFICATION OF INVESTIGATION.—Subsection (b) of section 2 of the Pilot's Bill of Rights (Public Law 112–153; 126 Stat. 1159; 49 U.S.C. 44703 note) is amended—

(1) in paragraph (2)(A), by inserting ''and the specific activity on which the investigation is based'' after ''nature of the investigation'';

(2) in paragraph (3), by striking ''timely''; and

(3) in paragraph (5), by striking ''section 44709(c)(2)'' and inserting ''section 44709(e)(2)''.

(d) RELEASE OF INVESTIGATIVE REPORTS.—Section 2 of the Pilot's Bill of Rights (Public Law 112–153; 126 Stat. 1159; 49 U.S.C. 44703 note) is further amended by inserting after subsection (e) the following:

''(f) RELEASE OF INVESTIGATIVE REPORTS.—

''(1) IN GENERAL.—

''(A) EMERGENCY ORDERS.—In any proceeding conducted under part 821 of title 49, Code of Federal Regulations, relating to the amendment, modification, suspension, or revocation of an airman certificate, in which the Administrator issues an emergency order under subsections (d) and (e) of section 44709, section 44710, or section 46105(c) of title 49, United States Code, or another order that

takes effect immediately, the Administrator shall provide to the individual holding the airman certificate the releasable portion of the investigative report at the time the Administrator issues the order. If the complete Report of Investigation is not available at the time the Emergency Order is issued, the Administrator shall issue all portions of the report that are available at the time and shall provide the full report within 5 days of its completion.

''(B) OTHER ORDERS.—In any non-emergency proceeding conducted under part 821 of title 49, Code of Federal Regulations, relating to the amendment, modification, suspension, or revocation of an airman certificate, in which the Administrator notifies the certificate holder of a proposed certificate action under subsections (b) and (c) of section 44709 or section 44710 of title 49, United States Code, the Administrator shall, upon the written request of the covered certificate holder and at any time after that notification, provide to the covered certificate holder the releasable portion of the investigative report.

''(2) MOTION FOR DISMISSAL.—If the Administrator does not provide the releasable portions of the investigative report to the individual holding the airman certificate subject to the proceeding referred to in paragraph (1) by the time required by that paragraph, the individual may move to dismiss the complaint of the Administrator or for other relief and, unless the Administrator establishes good cause for the failure to provide the investigative report or for a lack of timeliness, the administrative law judge shall order such relief as the judge considers appropriate.

''(3) RELEASABLE PORTION OF INVESTIGATIVE REPORT.—For purposes of paragraph (1), the releasable portion of an investigative report is all information in the report, except for the following:

''(A) Information that is privileged.

''(B) Information that constitutes work product or reflects internal deliberative process.

''(C) Information that would disclose the identity of a confidential source.

''(D) Information the disclosure of which is prohibited by any other provision of law.

''(E) Information that is not relevant to the subject matter of the proceeding.

''(F) Information the Administrator can demonstrate is withheld for good cause.

''(G) Sensitive security information, as defined in section 15.5 of title 49, Code of Federal Regulations (or any corresponding similar ruling or regulation).

''(4) RULE OF CONSTRUCTION.—Nothing in this subsection shall be construed to prevent the Administrator from releasing to an individual subject to an investigation described in subsection (b)(1)—

''(A) information in addition to the information included in the releasable portion of the investigative report; or

''(B) a copy of the investigative report before the Administrator issues a complaint.''.

SEC. 2604. LIMITATIONS ON REEXAMINATION OF CERTIFICATE HOLDERS.

(a) IN GENERAL.—Section 44709(a) is amended—

(1) by striking ''The Administrator'' and inserting the following:

''(1) IN GENERAL.—The Administrator'';

(2) by striking ''reexamine'' and inserting '', except as provided in paragraph (2), reexamine''; and

(3) by adding at the end the following:

''(2) LIMITATION ON THE REEXAMINATION OF AIRMAN CERTIFICATES.—

''(A) IN GENERAL.—The Administrator may not reexamine an airman holding a student, sport, recreational, or private pilot certificate issued under section 44703 of this title if the reexamination is ordered as a result of an event involving the fault of the Federal Aviation Administration or its designee, unless the Administrator has reasonable grounds—

''(i) to establish that the airman may not be qualified to exercise the privileges of a particular certificate or rating, based upon an act or omission committed by the airman while exercising those privileges, after the certificate or rating was issued by the Federal Aviation Administration or its designee; or

''(ii) to demonstrate that the airman obtained the certificate or the rating through fraudulent means or through an examination that was substantially and demonstrably inadequate to establish the airman's qualifications.

''(B) NOTIFICATION REQUIREMENTS.—Before taking any action to reexamine an airman under subparagraph (A), the Administrator shall provide to the airman—

''(i) a reasonable basis, described in detail, for requesting the reexamination; and

''(ii) any information gathered by the Federal Aviation Administration, that the Administrator determines is appropriate to provide, such as the scope and nature of the requested reexamination, that formed the basis for that justification.''.

(b) AMENDMENT, MODIFICATION, SUSPENSION, OR REVOCATION OF AIRMAN CERTIFICATES AFTER REEXAMINATION.—Section 44709(b) is amended—

(1) in paragraph (1), by redesignating subparagraphs (A) and (B) as clauses (i) and (ii), respectively, and indenting appropriately;

(2) by redesignating paragraphs (1) and (2) as subparagraphs (A) and (B), respectively, and indenting appropriately;

(3) in the matter preceding subparagraph (A), as redesignated, by striking ''The Administrator'' and inserting the following:

''(1) IN GENERAL.—Except as provided in paragraph (2), the Administrator''; and

(4) by adding at the end the following:

''(2) AMENDMENTS, MODIFICATIONS, SUSPENSIONS, AND REVOCATIONS OF AIRMAN CERTIFICATES AFTER REEXAMINATION.—

''(A) IN GENERAL.—The Administrator may not issue an order to amend, modify, suspend, or revoke an airman certificate held by a student, sport, recreational, or private pilot and issued under section 44703 of this title after a reexamination of the airman holding the certificate unless the Administrator determines that the airman—

''(i) lacks the technical skills and competency, or care, judgment, and responsibility, necessary to hold and safely exercise the privileges of the certificate; or

''(ii) materially contributed to the issuance of the certificate by fraudulent means.

''(B) STANDARD OF REVIEW.—Any order of the Administrator under this paragraph shall be subject to the standard of review provided for under section 2 of the Pilot's Bill of Rights (49 U.S.C. 44703 note).''.

(c) CONFORMING AMENDMENTS.—Section 44709(d)(1) is amended—

(1) in subparagraph (A), by striking ''subsection (b)(1)(A)'' and inserting ''subsection (b)(1)(A)(i)''; and

(2) in subparagraph (B), by striking ''subsection (b)(1)(B)'' and inserting ''subsection (b)(1)(A)(ii)''.

SEC. 2605. EXPEDITING UPDATES TO NOTAM PROGRAM.

(a) IN GENERAL.—

(1) Beginning on the date that is 180 days after the date of enactment of this Act, the Administrator of the Federal Aviation Administration may not take any enforcement action against any individual for a violation of a NOTAM (as defined in section 3 of the Pilot's Bill of Rights (49 U.S.C. 44701 note)) until the Administrator certifies to the appropriate congressional committees that the Administrator has complied with the requirements of section 3 of the Pilot's Bill of Rights, as amended by this section.

(2) In this subsection, the term ''appropriate congressional committees'' means—

(A) the Committee on Commerce, Science, and Transportation of the Senate; and

(B) the Committee on Transportation and Infrastructure of the House of Representatives.

(b) AMENDMENTS.—Section 3 of the Pilot's Bill of Rights (Public Law 112–153; 126 Stat. 1162; 49 U.S.C. 44701 note) is amended—

(1) in subsection (a)(2)—

(A) in the matter preceding subparagraph (A)—

(i) by striking ''this Act'' and inserting ''the Pilot's Bill of Rights 2''; and

(ii) by striking ''begin'' and inserting ''complete the implementation of'';

(B) by amending subparagraph (B) to read as follows:

''(B) to continue developing and modernizing the NOTAM repository, in a public central location, to maintain and archive all NOTAMs, including the original content and form of the notices, the original date of publication, and any amendments to such notices with the date of each amendment, in a manner that is Internet-accessible, machine-readable, and searchable;'';

(C) in subparagraph (C), by striking the period at the end and inserting ''; and''; and

(D) by adding at the end the following:

''(D) to specify the times during which temporary flight restrictions are in effect and the duration of a designation of special use airspace in a specific area.''; and

(2) by amending subsection (d) to read as follows:

''(d) DESIGNATION OF REPOSITORY AS SOLE SOURCE FOR NOTAMS.—

''(1) IN GENERAL.—The Administrator—

''(A) shall consider the repository for NOTAMs under subsection (a)(2)(B) to be the sole location for airmen to check for NOTAMs; and

''(B) may not consider a NOTAM to be announced or published until the NOTAM is included in the repository for NOTAMs under subsection (a)(2)(B).

''(2) PROHIBITION ON TAKING ACTION FOR VIOLATIONS OF NOTAMS NOT IN REPOSITORY.—

''(A) IN GENERAL.—Except as provided in subparagraph (B), beginning on the date that the repository under subsection (a)(2)(B) is final and published, the Administrator may not take any enforcement action against an airman for a violation of a NOTAM during a flight if—

''(i) that NOTAM is not available through the repository before the commencement of the flight; and

''(ii) that NOTAM is not reasonably accessible and identifiable to the airman.

''(B) EXCEPTION FOR NATIONAL SECURITY.—Subparagraph (A) shall not apply in the case of an enforcement action for a violation of a NOTAM that directly relates to national security.''.

SEC. 2606. ACCESSIBILITY OF CERTAIN FLIGHT DATA.

(a) IN GENERAL.—Subchapter I of chapter 471 is amended by inserting after section 47124 the following:

''§ 47124a. Accessibility of certain flight data

''(a) DEFINITIONS.—In this section:

''(1) ADMINISTRATION.—The term 'Administration' means the Federal Aviation Administration.

''(2) ADMINISTRATOR.—The term 'Administrator' means the Administrator of the Federal Aviation Administration.

''(3) APPLICABLE INDIVIDUAL.—The term 'applicable individual' means an individual

who is the subject of an investigation initiated by the Administrator related to a covered flight record.

''(4) CONTRACT TOWER.—The term 'contract tower' means an air traffic control tower providing air traffic control services pursuant to a contract with the Administration under the contract air traffic control tower program under section 47124(b)(3).

''(5) COVERED FLIGHT RECORD.—The term 'covered flight record' means any air traffic data (as defined in section 2(b)(4)(B) of the Pilot's Bill of Rights (49 U.S.C. 44703 note)), created, maintained, or controlled by any program of the Administration, including any program of the Administration carried out by employees or contractors of the Administration, such as contract towers, flight service stations, and controller training programs.

''(b) PROVISION OF COVERED FLIGHT RECORD TO ADMINISTRATION.—

''(1) REQUESTS.—Whenever the Administration receives a written request for a covered flight record from an applicable individual and the covered flight record is not in the possession of the Administration, the Administrator shall request the covered flight record from the contract tower or other contractor of the Administration in possession of the covered flight record.

''(2) PROVISION OF RECORDS.—Any covered flight record created, maintained, or controlled by a contract tower or another contractor of the Administration that maintains covered flight records shall be provided to the Administration if the Administration requests the record pursuant to paragraph (1).

''(3) NOTICE OF PROPOSED CERTIFICATE ACTION.—If the Administrator has issued, or subsequently issues, a Notice of Proposed Certificate Action relying on evidence contained in the covered flight record and the individual who is the subject of an investigation has requested the record, the Administrator shall promptly produce the record and extend the time the individual has to respond to the Notice of Proposed Certificate Action until the covered flight record is provided.

''(c) IMPLEMENTATION.—

''(1) IN GENERAL.—Not later than 180 days after the date of enactment of the Pilot's Bill of Rights 2, the Administrator shall promulgate regulations or guidance to ensure compliance with this section.

''(2) COMPLIANCE BY CONTRACTORS.—

''(A) Compliance with this section by a contract tower or other contractor of the Administration that maintains covered flight records shall be included as a material term in any contract between the Administration and the contract tower or contractor entered into or renewed on or after the date of enactment of the Pilot's Bill of Rights 2.

''(B) Subparagraph (A) shall not apply to any contract or agreement in effect on the date of enactment of the Pilot's Bill of Rights 2 unless the contract or agreement is renegotiated, renewed, or modified after that date.''.

(b) TECHNICAL AND CONFORMING AMENDMENTS.—The table of contents for chapter 471 is amended by inserting after the item relating to section 47124 the following:

''47124a. Accessibility of certain flight data.''.

SEC. 2607. AUTHORITY FOR LEGAL COUNSEL TO ISSUE CERTAIN NOTICES.

Not later than 180 days after the date of enactment of this Act, the Administrator of the Federal Aviation Administration shall revise section 13.11 of title 14, Code of Federal Regulations, to authorize legal counsel of the Federal Aviation Administration to close enforcement actions covered by that section with a warning notice, letter of correction, or other administrative action.

TITLE III—AIR SERVICE IMPROVEMENTS

SEC. 3001. DEFINITIONS.

In this title:

(1) COVERED AIR CARRIER.—The term ''covered air carrier'' means an air carrier or a foreign air carrier as those terms are defined in section 40102 of title 49, United States Code.

(2) ONLINE SERVICE.—The term ''online service'' means any service available over the Internet, or that connects to the Internet or a wide-area network.

(3) TICKET AGENT.—The term ''ticket agent'' has the meaning given the term in section 40102 of title 49, United States Code.

Subtitle A—Passenger Air Service Improvements

SEC. 3101. CAUSES OF AIRLINE DELAYS OR CANCELLATIONS.

(a) REVIEW.—

(1) IN GENERAL.—Not later than 1 year after the date of enactment of this Act, the Secretary of Transportation shall review the categorization of delays and cancellations with respect to air carriers that are required to report such data.

(2) CONSIDERATIONS.—In conducting the review under paragraph (1), the Secretary shall consider, at a minimum—

(A) whether delays and cancellations attributed by an air carrier to weather were unavoidable due to an operational or air traffic control issue, or due to the air carrier's preference in determining which flights to delay or cancel during a weather event;

(B) whether and to what extent delays and cancellations attributed by an air carrier to weather disproportionately impact service to smaller airports and communities; and

(C) whether it is an unfair or deceptive practice in violation of section 41712 of title 49, United States Code, for an air carrier to inform a passenger that a flight is delayed or cancelled due to weather, without any other context or explanation for the delay or cancellation, when the air carrier has discretion as to which flights to delay or cancel.

(3) ADVISORY COMMITTEE FOR AVIATION CONSUMER PROTECTION.—The Secretary may use the Advisory Committee for Aviation Consumer Protection, established under section 411 of the FAA Modernization and Reform Act of 2012 (49 U.S.C. 42301 prec. note), to assist in conducting the review and providing recommendations.

(b) REPORT.—Not later than 90 days after the date the review under subsection (a) is complete, the Secretary shall submit to the appropriate committees of Congress a report on the review under subsection (a), including any recommendations.

(c) SAVINGS PROVISION.—Nothing in this section shall be construed as affecting the decision of an air carrier to maximize its system capacity during weather-related events to accommodate the greatest number of passengers.

SEC. 3102. INVOLUNTARY CHANGES TO ITINERARIES.

(a) REVIEW.—

(1) IN GENERAL.—Not later than 1 year after the date of enactment of this Act, the Secretary of Transportation shall review whether it is an unfair or deceptive practice in violation of section 41712 of title 49, United States Code, for an air carrier to change the itinerary of a passenger, more than 24 hours before departure, if the new itinerary involves additional stops or departs 3 hours earlier or later and compensation or other more suitable air transportation is not offered.

(2) ADVISORY COMMITTEE FOR AVIATION CONSUMER PROTECTION.—The Secretary may use the Advisory Committee for Aviation Consumer Protection, established under section 411 of the FAA Modernization and Reform Act of 2012 (49 U.S.C. 42301 prec. note), to assist in conducting the review and providing recommendations.

(b) REPORT.—Not later than 90 days after the date the review under subsection (a) is complete, the Secretary shall submit to appropriate committees of Congress a report on the review under subsection (a), including any recommendations.

SEC. 3103. ADDITIONAL CONSUMER PROTECTIONS.

Not later than 180 days after the date that the reviews under sections 3101 and 3102 of this Act are complete, the Secretary of Transportation shall issue a supplemental notice of proposed rulemaking to its notice of proposed rulemaking published in the Federal Register on May 23, 2014 (DOT–OST–2014–0056) (relating to the transparency of airline ancillary fees and other consumer protection issues) to consider the following:

(1) Requiring an air carrier to provide notification and refunds or other consideration to a consumer who is impacted by delays or cancellations when an air carrier has a choice as to which flights to cancel or delay during a weather-related event.

(2) Requiring an air carrier to provide notification and refunds or other consideration to a consumer who is impacted by involuntary changes to the consumer's itinerary.

SEC. 3104. ADDRESSING THE NEEDS OF FAMILIES OF PASSENGERS INVOLVED IN AIRCRAFT ACCIDENTS.

(a) AIR CARRIERS HOLDING CERTIFICATES OF PUBLIC CONVENIENCE AND NECESSITY.—Section 41113 is amended—

(1) in subsection (a), by striking ''a major'' and inserting ''any'';

(2) in subsection (b)—

(A) in paragraph (9), by striking ''(and any other victim of the accident)'' and inserting ''(and any other victim of the accident, including any victim on the ground)'';

(B) in paragraph (16), by striking ''major'' and inserting ''any''; and

(C) in paragraph (17)(A), by striking ''significant'' and inserting ''any''; and

(3) by amending subsection (e) to read as follows:

''(e) DEFINITIONS.—In this section:

''(1) 'Aircraft accident' means any aviation disaster, regardless of its cause or suspected cause, for which the National Transportation Safety Board is the lead investigative agency.

''(2) 'Passenger' has the meaning given the term in section 1136.''.

(b) FOREIGN AIR CARRIERS PROVIDING FOREIGN AIR TRANSPORTATION.—Section 41313 is amended—

(1) in subsection (b), by striking ''a major'' and inserting ''any''; and

(2) in subsection (c)—

(A) in paragraph (1), by striking ''a significant'' and inserting ''any'';

(B) in paragraph (2), by striking ''a significant'' and inserting ''any'';

(C) in paragraph (16), by striking ''major'' and inserting ''any''; and

(D) in paragraph (17)(A), by striking ''significant'' and inserting ''any''.

(c) NATIONAL TRANSPORTATION SAFETY BOARD.—Section 1136(a) is amended by striking ''aircraft accident within the United States involving an air carrier or foreign air carrier and resulting in a major loss of life'' and inserting ''aircraft accident involving an air carrier or foreign air carrier, resulting in any loss of life, and for which the National Transportation Safety Board will serve as the lead investigative agency''.

SEC. 3105. EMERGENCY MEDICAL KITS.

(a) IN GENERAL.—Not later than 1 year after the date of enactment of this Act, the

Administrator of the Federal Aviation Administration shall evaluate and revise, as appropriate, the regulations under part 121 of title 14, Code of Federal Regulations, regarding the emergency medical equipment requirements, including the contents of the first-aid kit, applicable to all certificate holders operating passenger-carrying airplanes under that part.

(b) CONSIDERATIONS.—In carrying out subsection (a), the Administrator shall consider whether the minimum contents of approved emergency medical kits, including approved first-aid kits, include appropriate medications and equipment to meet the emergency medical needs of children, including consideration of an epinephrine auto-injector, as appropriate.

SEC. 3106. TRAVELERS WITH DISABILITIES.

(a) IN GENERAL.—Not later than 1 year after the date of enactment of this Act, the Comptroller General of the United States shall—

(1) conduct a study of airport accessibility best practices for individuals with disabilities; and

(2) submit to the appropriate committees of Congress a report on the study, including the Comptroller General's findings, conclusions, and recommendations.

(b) CONTENTS.—The study under subsection (a) shall include accessibility best practices beyond those recommended under the Architectural Barriers Act of 1968 (42 U.S.C. 4151 et seq.), Rehabilitation Act of 1973 (29 U.S.C. 701 et seq.), Air Carrier Access Act of 1986 (100 Stat. 1080; Public Law 99–435), or Americans with Disabilities Act of 1990 (42 U.S.C. 12101 et seq.), that improve infrastructure and communications, such as with regard to wayfinding, amenities, and passenger care.

SEC. 3107. EXTENSION OF ADVISORY COMMITTEE FOR AVIATION CONSUMER PROTECTION.

(a) TERMINATION.—Section 411(h) of the FAA Modernization and Reform Act of 2012 (Public Law 112–95; 49 U.S.C. 42301 prec. note) is amended by striking ''July 15, 2016'' and inserting ''September 30, 2017''.

(b) FINANCIAL DISCLOSURE.—Section 411 of the FAA Modernization and Reform Act of 2012 (Public Law 112–95; 49 U.S.C. 42301 prec. note) is further amended—

(1) by redesignating subsection (h) as subsection (i); and

(2) by inserting before subsection (i), the following:

''(h) CONFLICT OF INTEREST DISCLOSURE.—Beginning on the date of enactment of the Federal Aviation Administration Reauthorization Act of 2016, each member of the advisory committee who is not a government employee shall disclose, on an annual basis, any potential conflicts of interest, including financial conflicts of interest, to the Secretary in such form and manner as prescribed by the Secretary.''.

(c) RECOMMENDATIONS.—Section 411(g) of the FAA Modernization and Reform Act of 2012 (Public Law 112–95; 49 U.S.C. 42301 prec. note) is amended—

(1) by striking ''of the first 2 calendar years beginning after the date of enactment of this Act'' and inserting ''calendar year''; and

(2) by inserting ''and post on the Department of Transportation Web site'' after ''Congress''.

SEC. 3108. EXTENSION OF COMPETITIVE ACCESS REPORTS.

Section 47107(r)(3) is amended by striking ''July 16, 2016'' and inserting ''October 1, 2017''.

SEC. 3109. REFUNDS FOR DELAYED BAGGAGE.

(a) IN GENERAL.—Not later than 1 year after the date of enactment of this Act, the Secretary of Transportation shall issue final regulations to require a covered air carrier to promptly provide an automatic refund to a passenger in the amount of any applicable ancillary fees paid if the covered air carrier has charged the passenger an ancillary fee for checked baggage but the covered air carrier fails to deliver the checked baggage to the passenger not later than 6 hours after the arrival of a domestic flight or 12 hours after the arrival of an international flight.

(b) EXCEPTION.—If as part of the rulemaking the Secretary makes a determination on the record that a requirement under subsection (a) is unfeasible and will negatively affect consumers in certain cases, the Secretary may modify 1 or both of the deadlines in that subsection for such cases, except that—

(1) the deadline relating to a domestic flight may not exceed 12 hours after the arrival of the domestic flight; and

(2) the deadline relating to an international flight may not exceed 24 hours after the arrival of the international flight.

SEC. 3110. REFUNDS FOR OTHER FEES THAT ARE NOT HONORED BY A COVERED AIR CARRIER.

Not later than 1 year after the date of enactment of this Act, the Secretary of Transportation shall promulgate regulations that require each covered air carrier to promptly provide an automatic refund to a passenger of any ancillary fees paid for services that the passenger does not receive, including on the passenger's scheduled flight, on a subsequent replacement itinerary if there has been a rescheduling, or for a flight not taken by the passenger.

SEC. 3111. DISCLOSURE OF FEES TO CONSUMERS.

(a) IN GENERAL.—Not later than 1 year after the date of enactment of this Act, the Secretary of Transportation shall issue final regulations requiring—

(1) each covered air carrier to disclose to a consumer the baggage fee, cancellation fee, change fee, ticketing fee, and seat selection fee of that covered air carrier in a standardized format; and

(2) notwithstanding the manner in which information regarding the fees described in paragraph (1) is collected, each ticket agent to disclose to a consumer such fees of a covered air carrier in the standardized format described in paragraph (1).

(b) REQUIREMENTS.—The regulations under subsection (a) shall require that each disclosure—

(1) if ticketing is done on an Internet Web site or other online service—

(A) be prominently displayed to the consumer prior to the point of purchase; and

(B) set forth the fees described in subsection (a)(1) in clear and plain language and a font of easily readable size; and

(2) if ticketing is done on the telephone, be expressly stated to the consumer during the telephone call and prior to the point of purchase.

SEC. 3112. SEAT ASSIGNMENTS.

(a) IN GENERAL.—Not later than 15 months after the date of enactment of this Act, the Secretary of Transportation shall complete such actions as may be necessary to require each covered air carrier and ticket agent to disclose to a consumer that seat selection for which a fee is charged is an optional service, and that if a consumer does not pay for a seat assignment, a seat will be assigned to the consumer from available inventory at the time the consumer checks in for the flight or prior to departure.

(b) REQUIREMENTS.—The disclosure under subsection (a) shall—

(1) if ticketing is done on an Internet Web site or other online service, be prominently displayed to the consumer on that Internet Web site or online service during the selection of seating or prior to the point of purchase; and

(2) if ticketing is done on the telephone, be expressly stated to the consumer during the telephone call and prior to the point of purchase.

SEC. 3113. LASTING IMPROVEMENTS TO FAMILY TRAVEL.

(a) SHORT TITLE.—This section may be cited as the ''Lasting Improvements to Family Travel Act'' or the ''LIFT Act''.

(b) ACCOMPANYING MINORS FOR SECURITY SCREENING.—The Administrator of the Transportation Security Administration shall formalize security screening procedures that allow for one adult family caregiver to accompany a minor child throughout the entirety of the security screening process.

(c) SPECIAL ACCOMMODATIONS FOR PREGNANT WOMEN.—Not later than 180 days after the date of the enactment of this Act, the Secretary of Transportation shall review and, if appropriate, prescribe regulations that direct all air carriers to include pregnant women in their policies with respect to preboarding or advance boarding of aircraft.

(d) FAMILY SEATING.—Not later than 1 year after the date of the enactment of this Act, the Secretary shall review and, if appropriate, establish a policy directing all air carriers to ensure that, if a family is traveling on a reservation with a child under the age of 13, that child is able to sit in a seat adjacent to the seat of an accompanying family member over the age of 13, to the maximum extent practicable, at no additional cost.

SEC. 3114. CONSUMER COMPLAINT PROCESS IMPROVEMENT.

(a) IN GENERAL.—Section 42302 is amended—

(1) by redesignating subsections (b) and (c) as subsections (c) and (d), respectively;

(2) by inserting after subsection (a), the following:

''(b) POINT OF SALE.—Each air carrier, foreign air carrier, and ticket agent shall inform each consumer of a carrier service, at the point of sale, that the consumer can file a complaint about that service with the carrier and with the Aviation Consumer Protection Division of the Department of Transportation.'';

(3) by amending subsection (c), as redesignated, to read as follows:

''(c) INTERNET WEB SITE OR OTHER ONLINE SERVICE NOTICE.—Each air carrier and foreign air carrier shall include on its Internet Web site, any related mobile device application, and online service—

''(1) the hotline telephone number established under subsection (a) or for the Aviation Consumer Protection Division of the Department of Transportation;

''(2) an active link and the email address, telephone number, and mailing address of the air carrier or foreign air carrier, as applicable, for a consumer to submit a complaint to the carrier about the quality of service;

''(3) notice that the consumer can file a complaint with the Aviation Consumer Protection Division of the Department of Transportation;

''(4) an active link to the Internet Web site of the Aviation Consumer Protection Division of the Department of Transportation for a consumer to file a complaint; and

''(5) the active link described in paragraph (2) on the same Internet Web site page as the active link described in paragraph (4).''; and

(4) in subsection (d), as redesignated—

(A) in the matter preceding paragraph (1), by striking ''An air carrier or foreign air carrier providing scheduled air transportation using any aircraft that as originally designed has a passenger capacity of 30 or more passenger seats'' and inserting ''Each air carrier and foreign air carrier'';

(B) in paragraph (1), by striking ''air carrier'' and inserting ''carrier''; and

(C) in paragraph (2), by striking ''air carrier'' and inserting ''carrier''.

(b) RULEMAKING.—Not later than 1 year after the date of enactment of this Act, the Secretary of Transportation shall promulgate regulations to implement the requirements of section 42302 of title 49, United States Code, as amended.

SEC. 3115. ONLINE ACCESS TO AVIATION CONSUMER PROTECTION INFORMATION.

(a) INTERNET WEB SITE.—Not later than 180 days after the date of enactment of this Act, the Secretary of Transportation shall—

(1) complete an evaluation of the aviation consumer protection portion of the Department of Transportation's public Internet Web site to identify any changes to the user interface that will improve usability, accessibility, consumer satisfaction, and Web site performance;

(2) in completing the evaluation under paragraph (1)—

(A) consider the best practices of other Federal agencies with effective Web sites; and

(B) consult with the Federal Web Managers Council;

(3) develop a plan, including an implementation timeline, for—

(A) making the changes identified under paragraph (1); and

(B) making any necessary changes to that portion of the Web site that will enable a consumer—

(i) to access information regarding each complaint filed with the Aviation Consumer Protection Division of the Department of Transportation;

(ii) to search the complaints described in clause (i) by the name of the air carrier, the dates of departure and arrival, the airports of origin and departure, and the type of complaint; and

(iii) to determine the date a complaint was filed and the date a complaint was resolved; and

(4) submit the evaluation and plan to appropriate committees of Congress.

(b) MOBILE APPLICATION SOFTWARE.—Not later than 1 year after the date of enactment of this Act, the Secretary of Transportation shall—

(1) implement a program to develop application software for wireless devices that will enable a user to access information and perform activities related to aviation consumer protection, such as—

(A) information regarding airline passenger protections, including protections related to lost baggage and baggage fees, disclosure of additional fees, bumping, cancelled or delayed flights, damaged or lost baggage, and tarmac delays; and

(B) file an aviation consumer complaint, including a safety and security, airline service, disability and discrimination, or privacy complaint, with the Aviation Consumer Protection Division of the Department of Transportation; and

(2) make the application software available to the public at no cost.

SEC. 3116. STUDY ON IN CABIN WHEELCHAIR RESTRAINT SYSTEMS.

Not later than 2 years after the date of enactment of this Act, the Architectural and Transportation Barriers Compliance Board, in consultation with the Secretary of Transportation, shall conduct a study to determine the ways in which particular individuals with significant disabilities who use wheelchairs, including power wheelchairs, can be accommodated through in cabin wheelchair restraint systems.

SEC. 3117. TRAINING POLICIES REGARDING ASSISTANCE FOR PERSONS WITH DISABILITIES.

(a) IN GENERAL.—Not later than 270 days after the date of enactment of this Act, the Comptroller General of the United States shall submit to Congress a report describing—

(1) each air carrier's training policy for its personnel and contractors regarding assistance for persons with disabilities, as required by Department of Transportation regulations;

(2) any variations among the air carriers in the policies described in paragraph (1);

(3) how the training policies are implemented to meet the Department of Transportation regulations;

(4) how frequently an air carrier must train new employees and contractors due to turnover in positions that require such training;

(5) how frequently, in the prior 10 years, the Department of Transportation has requested, after reviewing a training policy, that an air carrier take corrective action; and

(6) the action taken by an air carrier under paragraph (5).

(b) BEST PRACTICES.—After the date the report is submitted under subsection (a), the Secretary of Transportation, based on the findings of the report, shall develop and disseminate to air carriers such best practices as the Secretary considers necessary to improve the training policies.

SEC. 3118. ADVISORY COMMITTEE ON THE AIR TRAVEL NEEDS OF PASSENGERS WITH DISABILITIES.

(a) ESTABLISHMENT.—The Secretary of Transportation shall establish an advisory committee for the air travel needs of passengers with disabilities (referred to in this section as the ''Advisory Committee'').

(b) DUTIES.—The Advisory Committee shall advise the Secretary with regard to the implementation of the Air Carrier Access Act of 1986 (Public Law 99–435; 100 Stat. 1080), including—

(1) assessing the disability-related access barriers encountered by passengers with disabilities;

(2) determining the extent to which the programs and activities of the Department of Transportation are addressing the barriers described in paragraph (1);

(3) recommending improvements to the air travel experience of passengers with disabilities; and

(4) such activities as the Secretary considers necessary to carry out this section.

(c) MEMBERSHIP.—

(1) IN GENERAL.—The Advisory Committee shall be comprised of at least 1 representative of each of the following groups:

(A) Passengers with disabilities.

(B) National disability organizations.

(C) Air carriers.

(D) Airport operators.

(E) Contractor service providers.

(2) APPOINTMENT.—The Secretary of Transportation shall appoint each member of the Advisory Committee.

(3) VACANCIES.—A vacancy in the Advisory Committee shall be filled in the manner in which the original appointment was made.

(d) CHAIRPERSON.—The Secretary of Transportation shall designate, from among the members appointed under subsection (c), an individual to serve as chairperson of the Advisory Committee.

(e) TRAVEL EXPENSES.—Members of the advisory committee shall serve without pay, but shall receive travel expenses, including per diem in lieu of subsistence, in accordance with subchapter I of chapter 57 of title 5, United States Code.

(f) REPORTS.—

(1) IN GENERAL.—Not later than February 1 of each year, the Advisory Committee shall submit to the Secretary of Transportation a report on the needs of passengers with disabilities in air travel, including—

(A) an assessment of disability-related access barriers, both those that were evident in the preceding year and those that will likely be an issue in the next 5 years;

(B) an evaluation of the extent to which the Department of Transportation's programs and activities are eliminating disability-related access barriers;

(C) a description of the Advisory Committee's actions during the prior calendar year;

(D) a description of activities that the Advisory Committee proposed to undertake in the succeeding calendar year; and

(E) any recommendations for legislation, administrative action, or other action that the Advisory Committee considers appropriate.

(2) REPORT TO CONGRESS.—Not later than 60 days after the date the Secretary receives the report under subparagraph (A), the Secretary shall submit to Congress a copy of the report, including any additional findings or recommendations that the Secretary considers appropriate.

(g) TERMINATION.—The Advisory Committee shall terminate 2 years after the date of enactment of this Act.

SEC. 3119. REPORT ON COVERED AIR CARRIER CHANGE, CANCELLATION, AND BAGGAGE FEES.

(a) IN GENERAL.—The Comptroller General of the United States shall conduct a study of existing airline industry change, cancellation, and bag fees and the current industry practice for handling changes to or cancellation of ticketed travel on covered air carriers.

(b) CONSIDERATIONS.—In conducting the study, the Comptroller General shall consider, at a minimum—

(1) whether and how each covered air carrier calculates its change fees, cancellation fees, and bag fees; and

(2) the relationship between the cost of the ticket and the date of change or cancellation as compared to the date of travel.

(c) REPORT.—Not later than 1 year after the date of enactment of this Act, the Comptroller General shall submit to the appropriate committees of Congress a report on the study, including the Comptroller General's findings, conclusions, and recommendations.

SEC. 3120. ENFORCEMENT OF AVIATION CONSUMER PROTECTION RULES.

(a) IN GENERAL.—The Comptroller General of the United States shall conduct a study to consider and evaluate Department of Transportation enforcement of aviation consumer protection rules.

(b) CONTENTS.—The study under subsection (a) shall include an evaluation of—

(1) available enforcement mechanisms;

(2) any obstacles to enforcement; and

(3) trends in Department of Transportation enforcement actions.

(c) REPORT.—Not later than 1 year after the date of enactment of this Act, the Comptroller General shall submit to the appropriate committees of Congress a report on the study, including the Comptroller General's findings, conclusions, and recommendations.

SEC. 3121. DIMENSIONS FOR PASSENGER SEATS.

(a) IN GENERAL.—Not later than 18 months after the date of enactment of this Act, the Secretary of Transportation shall initiate a proceeding to study the minimum seat pitch for passenger seats on aircraft operated by air carriers (as defined in section 40102 of title 49, United States Code).

(b) CONSIDERATIONS.—In reviewing any minimum seat pitch under subsection (a),

the Secretary shall consider the safety of passengers, including passengers with disabilities.

SEC. 3122. CELL PHONE VOICE COMMUNICATIONS.

(a) IN GENERAL.—Subchapter I of chapter 417, as amended by section 2307 of this Act, is further amended by adding at the end the following:

''§ 41726. Cell phone voice communications

''(a) PROHIBITION AUTHORITY.—The Secretary of Transportation may issue regulations—

''(1) to prohibit an individual on an aircraft from engaging in voice communications using a mobile communications device during a flight of that aircraft in scheduled passenger interstate or intrastate air transportation; and

''(2) that exempt from the prohibition described in paragraph (1)—

''(A) any member of the flight crew on duty on an aircraft;

''(B) any flight attendant on duty on an aircraft; and

''(C) any Federal law enforcement officer acting in an official capacity.

''(b) DEFINITIONS.—In this section:

''(1) FLIGHT.—The term 'flight' means, with respect to an aircraft, the period beginning when the aircraft takes off and ending when the aircraft lands.

''(2) MOBILE COMMUNICATIONS DEVICE.—

''(A) IN GENERAL.—The term 'mobile communications device' means any portable wireless telecommunications equipment utilized for the transmission or reception of voice data.

''(B) LIMITATION.—The term 'mobile communications device' does not include a phone installed on an aircraft.''.

(b) TABLE OF CONTENTS.—The table of contents at the beginning of chapter 417, as amended by section 2307 of this Act, is further amended by inserting after the item relating to section 41725 the following:

''41726. Cell phone voice communications.''.

SEC. 3123. AVAILABILITY OF SLOTS FOR NEW ENTRANT AIR CARRIERS AT NEWARK LIBERTY INTERNATIONAL AIRPORT.

(a) DEFINITIONS.—The terms ''new entrant air carrier'' and ''slot'' have the meanings given those terms in section 41714(h) of title 49, United States Code.

(b) SLOTS FOR NEW ENTRANT AIR CARRIERS.—The Secretary shall, annually, by granting exemptions from the requirements under part 93 of title 14, Code of Federal Regulations, or by other means, make not less than 8 slots at Newark Liberty International Airport available to enable new entrant air carriers to provide air transportation.

(c) APPLICABILITY.—Subsection (a) shall not apply in any year—

(1) new entrant air carriers operate 5 percent or more of the total number of slots at Newark Liberty International Airport; or

(2) the Secretary makes a determination that making slots available to enable new entrant air carriers to provide air transportation at that airport is not in the public interest and doing so would significantly increase operational delays.

(d) REPORT TO CONGRESS.—The Secretary shall notify the Committee on Commerce, Science, and Transportation of the Senate and the Committee on Transportation and Infrastructure of the House of Representatives not later than 14 calendar days after the date a determination is made under subsection (c)(2), including the reasons for that determination.

Subtitle B—Essential Air Service

SEC. 3201. ESSENTIAL AIR SERVICE.

(a) AUTHORIZATION EXTENSION.—Section 41742(a) is amended—

(1) in paragraph (2), by striking ''$150,000,000'' and all that follows though ''July 15, 2016'' and inserting ''$155,000,000 for each of fiscal years 2016 through 2017''; and

(2) by striking paragraph (3).

(b) DEFINITIONS.—Section 41731(a)(1)(A) is amended by striking clause (ii) and inserting the following:

''(ii) was determined, on or after October 1, 1988, and before December 1, 2012, under this subchapter by the Secretary of Transportation to be eligible to receive subsidized small community air service under section 41736(a);''.

(c) SEASONAL SERVICE.—The Secretary of Transportation may consider the flexibility of current operational dates and airport accessibility to meet local community needs when issuing requests for proposal of essential air service at seasonal airports.

SEC. 3202. SMALL COMMUNITY AIR SERVICE DEVELOPMENT PROGRAM.

(a) EXTENSION OF AUTHORIZATION.—Section 41743(e)(2) is amended to read as follows:

''(2) AUTHORIZATION OF APPROPRIATIONS.—There is authorized to be appropriated to the Secretary $10,000,000 for each of fiscal years 2016 through 2017 to carry out this section. Such sums shall remain available until expended.''.

(b) ELIGIBILITY.—Section 41743(c)(1) is amended to read as follows:

''(1) SIZE.—On the date of the most recent notice of order soliciting community proposals issued by the Secretary under this section, the airport serving the community or consortium—

''(A) was not larger than a small hub airport, as determined using the Department of Transportation's most recent published classification; and

''(B)(i) had insufficient air carrier service; or

''(ii) had unreasonably high air fares.''.

SEC. 3203. SMALL COMMUNITY PROGRAM AMENDMENTS.

(a) IN GENERAL.—Section 41743(c)(4) is amended—

(1) by inserting ''(B) SAME PROJECTS.—'' before the second sentence and indenting appropriately;

(2) by inserting ''(A) IN GENERAL.—'' before the first sentence and indenting appropriately;

(3) in subparagraph (B), as designated by this subsection, by striking ''No community'' and inserting ''Except as provided in subparagraph (C)''; and

(4) by adding at the end the following:

''(C) EXCEPTION.—The Secretary may waive the limitation under subparagraph (B) related to projects that are the same if the Secretary determines that the community or consortium spent little or no money on its previous project or encountered industry or environmental challenges, due to circumstances that were reasonably beyond the control of the community or consortium.''.

(b) AUTHORITY TO MAKE AGREEMENTS.—Section 41743(e)(1) is amended by adding at the end the following: ''The Secretary may amend the scope of a grant agreement at the request of the community or consortium and any participating air carrier, and may limit the scope of a grant agreement to only the elements using grant assistance or to only the elements achieved, if the Secretary determines that the amendment is reasonably consistent with the original purpose of the project.''.

SEC. 3204. WAIVERS.

Section 41732 is amended by adding at the end the following:

''(c) WAIVERS.—Notwithstanding section 41733(e), upon request by an eligible place, the Secretary may waive, in whole or in part, subsections (a) and (b) of this section or subsections (a) through (c) of section 41734. A waiver issued under this subsection shall remain in effect for a limited period of time, as determined by the Secretary.''.

SEC. 3205. WORKING GROUP ON IMPROVING AIR SERVICE TO SMALL COMMUNITIES.

(a) IN GENERAL.—Not later than 120 days after the date of enactment of this Act, the Secretary of Transportation and the Administrator of the Federal Aviation Administration shall establish a working group—

(1) to identify obstacles to attracting and maintaining air transportation service to and from small communities; and

(2) to develop recommendations for maintaining and improving air transportation service to and from small communities.

(b) OUTREACH.—In carrying out the requirements under paragraphs (1) and (2) of subsection (a), the working group shall consult with—

(1) interested Governors;

(2) representatives of State and local agencies, and other officials and groups, representing rural States and other rural areas;

(3) other representatives of relevant State and local agencies; and

(4) members of the public with experience in aviation safety, pilot training, economic development, and related issues.

(c) CONSIDERATIONS.—In carrying out the requirements under paragraphs (1) and (2) of subsection (a), the working group shall—

(1) consider whether funding for, and terms of, current or potential new programs is sufficient to help ensure continuation of or improvement to air transportation service to small communities, including the Essential Air Service Program and the Small Community Air Service Development Program;

(2) identify initiatives to help support pilot training to provide air transportation service to small communities;

(3) consider whether Federal funding for airports serving small communities, including airports that have lost air transportation services or had decreased enplanements in recent years, is adequate to ensure that small communities have access to quality, affordable air transportation service;

(4) consider potential improvements in pilot training and any constraints affecting pilot career pathways that, if addressed, would increase both aviation safety and pilot supply;

(5) identify innovative State or local efforts that have established public-private partnerships that are successful in attracting and retaining air transportation service in small communities; and

(6) consider such other issues as the Secretary and Administrator consider appropriate.

(d) COMPOSITION.—

(1) IN GENERAL.—The working group shall be facilitated through the Administrator or the Administrator's designee.

(2) MEMBERSHIP.—Members of the working group shall be appointed by the Administrator and shall include representatives of—

(A) State and local government, including State and local aviation officials;

(B) State Governors;

(C) aviation safety experts;

(D) economic development officials; and

(E) the traveling public from small communities.

(e) REPORT AND RECOMMENDATIONS.—Not later than 1 year after the date of enactment of this Act, the Secretary and the Administrator shall submit to the appropriate committees of Congress a report, including—

(1) a summary of the views expressed by the participants in the outreach under subsection (b);

(2) a description of the working group's findings, including the identification of any areas of general consensus among the non-

Federal participants in the outreach under subsection (b); and

(3) any recommendations for legislative or regulatory action that would assist in maintaining and improving air transportation service to and from small communities.

TITLE IV—NEXTGEN AND FAA ORGANIZATION

SEC. 4001. DEFINITIONS.

In this title:

(1) ADMINISTRATION.—The term ''Administration'' means the Federal Aviation Administration.

(2) ADMINISTRATOR.—The term ''Administrator'' means the Administrator of the Federal Aviation Administration.

(3) ADS–B.—The term ''ADS–B'' means automatic dependent surveillance-broadcast.

(4) ADS–B OUT.—The term ''ADS–B Out'' means automatic dependent surveillance-broadcast with the ability to transmit information from the aircraft to ground stations and to other equipped aircraft.

(5) NEXTGEN.—The term ''NextGen'' means the Next Generation Air Transportation System.

Subtitle A—Next Generation Air Transportation System

SEC. 4101. RETURN ON INVESTMENT ASSESSMENT.

(a) IN GENERAL.—Not later than 1 year after the date of enactment of this Act, the Administrator shall submit to the appropriate committees of Congress a report on the Administrator's assessment of each NextGen program.

(b) CONTENTS.—The report under subsection (a) shall include—

(1) an estimate of the date that each NextGen program will have a positive return on investment;

(2) an assessment of the impacts of each such program for—

(A) the Federal Government; and

(B) the users of the national airspace system;

(3) a description of how each such program directly contributes to a more safe and efficient air traffic control system; and

(4) the status of NextGen programs and of the projected return on investment for each such program.

(c) NEXTGEN PRIORITY LIST.—Based on the assessment under subsection (a) the Administrator shall—

(1) develop, in coordination with the NextGen Advisory Committee and considering the need for a balance between long-term and near-term user benefits, a prioritization of each NextGen program;

(2) include the priority list in the report under subsection (b); and

(3) prepare budget submissions to reflect the current status of NextGen programs and projected returns on investment for each program.

(d) DEFINITIONS.—In this section:

(1) KEY MILESTONES.—The term ''key milestones'' includes cost and deployment schedule, and benefits anticipated in the most recent baseline.

(2) RETURN ON INVESTMENT.—The term ''return on investment'' means the cost associated with technologies that are required by law or policy as compared to the benefits derived from such technologies by a government or a user of airspace.

(e) REPEAL OF NEXTGEN PRIORITIES.—Section 202 of the FAA Modernization and Reform Act of 2012 (Public Law 112–95; 49 U.S.C. 40101 note) and the item relating to that section in the table of contents under section 1(b) of that Act are repealed.

SEC. 4102. ENSURING FAA READINESS TO USE NEW TECHNOLOGY.

(a) IN GENERAL.—Not later than December 31, 2017, the Administrator shall—

(1) ensure the capability of the Administration to receive space-based ADS-B data; and

(2) use the data described under paragraph (1) to provide positive air traffic control, including separation of aircraft over the oceans and other specific regions not covered by radar.

(b) REPORT.—Not later than 6 months after the date of enactment of this Act, and biannually thereafter until the date that the Administrator certifies that the Administration has the capability to receive space-based ADS–B data, the Administrator shall submit to the appropriate committees of Congress a report that—

(1) details the actions the Administrator has taken to ensure 2018 readiness and usage;

(2) details the actions that remain to be taken to implement such capability;

(3) includes a schedule for expected completion of each outstanding action described in paragraph (2); and

(4) includes a detailed description of the investment decisions and requests for funding made by the Administrator that are consistent with the terrestrial ADS–B implementation to ensure a sustained program beyond 2018.

SEC. 4103. NEXTGEN ANNUAL PERFORMANCE GOALS.

(a) ANNUAL PERFORMANCE GOALS.—Section 214 of the FAA Modernization and Reform Act of 2012 (Public Law 112–95; 49 U.S.C. 40101 note) is amended—

(1) by redesignating subsection (d) as subsection (e); and

(2) by inserting after subsection (c) the following:

''(d) ANNUAL PERFORMANCE GOALS.—The Administrator shall establish annual NextGen performance goals for each of the performance metrics set forth in subsection (a) to meet the performance metric baselines identified under subsection (b). Such goals shall be consistent with the annual performance objectives established by the senior policy committee (commonly known as the 'NextGen Advisory Committee') established under section 710 of the Vision 100—Century of Aviation Reauthorization Act (Public Law 108–176; 49 U.S.C. 40101 note).''.

(b) NEXTGEN METRICS REPORT.—Section 710(e)(2) of the Vision 100—Century of Aviation Reauthorization Act (Public Law 108–176; 49 U.S.C. 40101 note) is amended—

(1) in subparagraph (D), by striking ''; and'' and inserting a semicolon;

(2) in subparagraph (E), by striking the period at the end and inserting ''; and''; and

(3) by adding at the end the following:

''(F) a description of the progress made in meeting the annual NextGen performance goals relative to the performance metrics established under section 214 of the FAA Modernization and Reform Act of 2012 (Public Law 112–95; 49 U.S.C. 40101 note).''.

(c) CHIEF NEXTGEN OFFICER.—Section 106(s)(3) is amended—

(1) in paragraph (2)(B), by adding at the end the following: ''In evaluating the performance of the Chief NextGen Officer for the purpose of awarding a bonus under this subparagraph, the Administrator shall consider the progress toward meeting the NextGen performance goals established pursuant to section 214(d) of the FAA Modernization and Reform Act of 2012 (Public Law 112–95; 49 U.S.C. 40101 note).''; and

(2) in paragraph (3), by adding at the end the following: ''The annual performance goals set forth in the agreement shall include quantifiable NextGen airspace performance objectives regarding efficiency, productivity, capacity, and safety, which shall be established by the senior policy committee (commonly known as the 'NextGen Advisory Committee') established under section 710 of the Vision 100—Century of Aviation Reauthorization Act (Public Law 108–176; 49 U.S.C. 40101 note).''.

SEC. 4104. FACILITY OUTAGE CONTINGENCY PLANS.

(a) FINDINGS.—Congress makes the following findings:

(1) On September 26, 2014, an Administration contract employee deliberately started a fire that destroyed critical equipment at the Administration's Chicago Air Route Traffic Control Center (referred to in this section as the ''Chicago Center'') in Aurora, Illinois.

(2) As a result of the damage, Chicago Center was unable to control air traffic for more than 2 weeks, thousands of flights were delayed or cancelled into and out of O'Hare International Airport and Midway Airport in Chicago, and aviation stakeholders and airlines reportedly lost over $350,000,000.

(3) According to the Office of the Inspector General of the Department of Transportation, the fire at Chicago Center demonstrated that the Administration's contingency plans for the Chicago Center and the airspace it controls do not ensure redundancy and resiliency for sustained operations.

(4) Further, the Inspector General found that Chicago Center incident highlighted the limited flexibility and lack of resiliency in critical elements of the Administration's current air traffic control infrastructure, including limited communication capacity and the inability to easily transfer control of airspace and flight plans.

(b) COMPREHENSIVE CONTINGENCY PLAN.—Not later than 180 days after the date of enactment of this Act, the Administrator shall update the Administration's comprehensive contingency plan to address potential air traffic facility outages that could have a major impact on operation of the national airspace system.

(c) REPORT.—Not later than 60 days after the date the plan is updated under subsection (b), the Administrator shall submit to the appropriate committees of Congress a report on the update, including any recommendations for ensuring air traffic facility outages do not have a major impact on operation of the national airspace system.

SEC. 4105. ADS–B MANDATE ASSESSMENT.

(a) FINDINGS.—Congress makes the following findings:

(1) The Administration's ADS–B program is expected to be the centerpiece of the NextGen effort at the Administration, but the satellite-based system faces uncertainty and controversy.

(2) In May 2010, the Administration published a final rule that mandated airspace users be equipped with ADS–B Out avionics by January 1, 2020.

(3) Subsequently, in April 2015, the Administration announced completion of the ADS–B ground-based radio infrastructure. However, the ADS–B program faces considerable uncertainty and unanswered questions about whether or not the 2020 mandate is still meaningful.

(4) In 2014, the Office of the Inspector General found that while ADS–B is providing benefits where radar is limited or nonexistent in places such as the Gulf of Mexico, the system is providing only limited initial services to pilots and air traffic controllers in domestic airspace.

(5) The Office of the Inspector General also found, in 2014, that all elements of the system, such as avionics, the ground infrastructure, and controller automation systems, had not yet been tested in combination to determine if the overall system can be used in congested airspace and perform as well as existing radar, much less allow aircraft to fly closer together. This is referred to as ''end-to-end testing.''

(6) When this report was issued, commercial and general aviation stakeholders voiced serious concerns that equipping with new avionics for the 2020 mandate will be difficult due to the cost and limited availability of avionics, and capacity of certified repair stations to install avionics.

(b) ASSESSMENT.—Not later than 1 year after the date of enactment of this Act, the Inspector General of the Department of Transportation shall assess—

(1) Administration and industry readiness to meet the ADS–B mandate by 2020;

(2) changes to ADS–B program since May 2010; and

(3) additional options to comply with the mandate and consequences, both for individual system users and for the overall safety and efficiency of the national airspace system, for noncompliance.

(c) REPORT.—Not later than 60 days after the date the assessment under subsection (b) is complete, the Inspector General of the Department of Transportation shall submit to the appropriate committees of Congress a report on the progress made toward meeting the ADS–B mandate by 2020, including any recommendations of the Inspector General to carry out such mandate.

SEC. 4106. NEXTGEN INTEROPERABILITY.

(a) IN GENERAL.—To implement a more effective international strategy for achieving NextGen interoperability with foreign countries, the Administrator shall take the following actions:

(1) Conduct a gap analysis to identify potential risks to NextGen interoperability with other Air Navigation Service Providers and establish a schedule for periodically reevaluating such risks.

(2) Develop a plan that identifies and documents actions the Administrator will undertake to mitigate such risks, using information from the gap analysis as a basis for making management decisions about how to allocate resources for such actions.

(b) REPORT.—Not later than 1 year after the date of enactment of this Act, the Administrator shall submit to the appropriate committees of Congress a report on the analysis conducted under paragraph (1) of subsection (a) and on the actions the Administrator has taken under paragraph (2) of such subsection.

SEC. 4107. NEXTGEN TRANSITION MANAGEMENT.

(a) IN GENERAL.—The Administrator shall—

(1) identify and analyze technical and operational maturity gaps in NextGen transition and implementation plans; and

(2) develop a plan to mitigate the gaps identified in paragraph (1).

(b) REPORT.—Not later than 1 year after the date of enactment of this Act, the Administrator shall submit to the appropriate committees of Congress a report on the actions taken to carry out the plan required by subsection (a)(2).

SEC. 4108. IMPLEMENTATION OF NEXTGEN OPERATIONAL IMPROVEMENTS.

(a) IN GENERAL.—To help ensure that NextGen operational improvements are fully implemented in the midterm, the Administrator shall—

(1) work with airlines and other users of the national airspace system (referred to in this section as ''NAS'') to develop and implement a system to systematically track the use of existing performance based navigation (referred to in this section as ''PBN'') procedures;

(2) require consideration of other key operational improvements in planning for NextGen improvements, including identifying additional metroplexes for PBN projects, non-metroplex PBN procedures, as well as the identification of unused flight routes for decommissioning;

(3) develop and implement guidelines for ensuring timely inclusion of appropriate stakeholders, including airport representatives, in the planning and implementation of NextGen improvement efforts; and

(4) assure that NextGen planning documents provide stakeholders information on how and when operational improvements are expected to achieve NextGen goals and targets.

(b) REPORT.—Not later than 1 year after the date of enactment of this Act, the Administrator shall submit to the appropriate committees of Congress a report on the progress made toward implementing the requirements of subsection (a), and on the schedule and process that will be used to implement PBN at additional airports, including information on how the Administration will partner and coordinate with private industry to ensure expeditious implementation of performance based navigation.

SEC. 4109. CYBERSECURITY.

(a) IN GENERAL.—The Administrator shall—

(1) identify and implement ways to better incorporate cybersecurity measures as a systems characteristic at all levels and phases of the architecture and design of air traffic control programs, including NextGen programs;

(2) develop a threat model that will identify vulnerabilities to better focus resources to mitigate cybersecurity risks;

(3) develop an appropriate plan to mitigate cybersecurity risk, to respond to an attack, intrusion, or otherwise unauthorized access and to adapt to evolving cybersecurity threats; and

(4) foster a cybersecurity culture throughout the Administration, including air traffic control programs and relevant contractors.

(b) REPORT.—Not later than 1 year after the date of enactment of this Act, the Administrator shall submit to the appropriate committees of Congress a report on the progress made toward implementing the requirements under subsection (a).

SEC. 4110. SECURING AIRCRAFT AVIONICS SYSTEMS.

(a) IN GENERAL.—The Administrator of the Federal Aviation Administration shall consider revising Federal Aviation Administration regulations regarding airworthiness certification—

(1) to address cybersecurity for avionics systems, including software components; and

(2) to require that aircraft avionics systems used for flight guidance or aircraft control be secured against unauthorized access via passenger in-flight entertainment systems through such means as the Administrator determines appropriate to protect the avionics systems from unauthorized external and internal access.

(b) CONSIDERATION.—The Administrator's consideration and any action taken under subsection (a) shall be in accordance with the recommendations of the Aircraft Systems Information Security Protection Working Group under section 5029(d) of this Act.

SEC. 4111. DEFINING NEXTGEN.

Not later than 1 year after the date of enactment of this Act, the Comptroller General of the United States shall—

(1) assess how the line items included in the Administration's NextGen budget request relate to the goals and expected outcomes of NextGen, including how NextGen programs directly contribute to a measurably safer and more efficient air traffic control system; and

(2) submit to the appropriate committees of Congress a report on the results of the assessment under paragraph (1), including any recommendations for the removal of line items that do not pertain to the overall vision for NextGen.

SEC. 4112. HUMAN FACTORS.

(a) IN GENERAL.—In order to avoid having to subsequently modify products and services developed as a part of NextGen, the Administrator shall—

(1) recognize and incorporate, in early design phases of all relevant NextGen programs, the human factors and procedural and airspace implications of stated goals and associated technical changes; and

(2) ensure that a human factors specialist, separate from the research and certification groups, is directly involved with the NextGen approval process.

(b) REPORT.—Not later than 1 year after the date of enactment of this Act, the Administrator shall submit to the appropriate committees of Congress a report on the progress made toward implementing the requirements under subsection (a).

SEC. 4113. MAJOR ACQUISITION REPORTS.

(a) IN GENERAL.—The Administrator shall evaluate the current acquisition practices of the Administration to ensure that such practices—

(1) identify the current estimated costs for each acquisition system, including all segments;

(2) separately identify cumulative amounts for acquisition costs, technical refresh, and other enhancements in order to identify the total baselined and re-baselined costs for each system; and

(3) account for the way funds are being used when reporting to managers, Congress, and other stakeholders.

(b) REPORT.—Not later than 1 year after the date of enactment of this Act, the Administrator shall submit to the appropriate committees of Congress a report on the progress made toward implementing the requirements under subsection (a).

SEC. 4114. EQUIPAGE MANDATES.

(a) IN GENERAL.—Before NextGen-related equipage mandates are imposed on users of the national airspace system, the Administrator, in collaboration with all relevant stakeholders, shall—

(1) provide a statement of estimated cost and benefits that is based upon mature and stable technical specifications; and

(2) create a schedule for Administration deliverables and investments by both users and the Administration, including for procedure and airspace design, infrastructure deployment, and training.

SEC. 4115. WORKFORCE.

(a) IN GENERAL.—Not later than 1 year after the date of enactment of this Act, the Administrator shall—

(1) identify and assess barriers to attracting, developing, training, and retaining a talented workforce in the areas of systems engineering, architecture, systems integration, digital communications, and cybersecurity;

(2) develop a comprehensive plan to attract, develop, train, and retain talented individuals; and

(3) identify the resources needed to attract, develop, and retain this talent.

(b) REPORT.—The Administrator shall submit to the appropriate committees of Congress a report on the progress made toward implementing the requirements under subsection (a).

SEC. 4116. ARCHITECTURAL LEADERSHIP.

(a) IN GENERAL.—In order to provide an adequate technical foundation for steering NextGen's technical governance and managing inevitable changes in technology and operations, the Administrator shall—

(1) develop a plan that—

(A) uses an architecture leadership community and an effective governance approach to assure a proper balance between documents and artifacts and to provide high-level guidance;

(B) enables effective management and communication of dependencies;

(C) provides flexibility and the ability to evolve to ensure accommodation of future needs; and

(D) communicates changing circumstances in order to align agency and airspace user expectations;

(2) determine the feasibility of conducting a small number of experiments among the Administration's system integration partners to prototype candidate solutions for establishing and managing a vibrant architectural community; and

(3) develop a method to initiate, grow, and engage a capable architecture community, from both within and outside of the Administration, who will expand the breadth and depth of expertise that is steering architectural changes.

(b) REPORT.—Not later than 1 year after the date of enactment of this Act, the Administrator shall submit to the appropriate committees of Congress a report on the progress made toward implementing the requirements under subsection (a).

SEC. 4117. PROGRAMMATIC RISK MANAGEMENT.

(a) IN GENERAL.—To better inform the Administration's decisions regarding the prioritization of efforts and allocation of resources for NextGen, the Administrator shall—

(1) solicit input from specialists in probability and statistics to identify and prioritize the programmatic and implementation risks to NextGen; and

(2) develop a method to manage and mitigate the risks identified in paragraph (1).

(b) REPORT.—Not later than 1 year after the date of enactment of this Act, the Administrator shall submit to the appropriate committees of Congress a report on the progress made toward implementing the requirements under subsection (a).

SEC. 4118. NEXTGEN PRIORITIZATION.

The Administrator shall consider expediting NextGen modernization implementation projects at public use airports that share airspace with active military training ranges and do not have radar coverage where such implementation would improve the safety of aviation operations.

Subtitle B—Administration Organization and Employees

SEC. 4201. COST-SAVING INITIATIVES.

(a) IN GENERAL.—To ensure that Administration initiatives are being implemented in a timely and fiscally responsible manner, the Administrator shall—

(1) identify and implement agencywide cost-saving initiatives; and

(2) develop appropriate schedules and metrics to measure whether the initiatives are successful in reducing costs.

(b) REPORT.—Not later than 1 year after the date of enactment of this Act, the Administrator shall submit to the appropriate committees of Congress a report on the progress made toward implementing the requirements under subsection (a).

SEC. 4202. TREATMENT OF ESSENTIAL EMPLOYEES DURING FURLOUGHS.

(a) DEFINITION OF ESSENTIAL EMPLOYEE.—In this section, the term ''essential employee'' means an employee of the Administration who performs work involving the safety of human life or the protection of property, as determined by the Administrator.

(b) IN GENERAL.—In implementing spending reductions under Federal law, the Administrator may furlough 1 or more employees of the Administration, except an essential employee, if the Administrator determines the furlough is necessary to achieve the required spending reductions.

(c) TRANSFER OF BUDGETARY RESOURCES.—The Administrator may transfer budgetary resources within the Administration to carry out subsection (b), except that the transfer may only be made to maintain essential employees.

SEC. 4203. CONTROLLER CANDIDATE INTERVIEWS.

(a) IN GENERAL.—Not later than 60 days after the date of enactment of this Act, the Administrator shall require that an in-person interview be conducted with each individual applying for an air traffic control specialist position before that individual may be hired to fill that position.

(b) GUIDANCE.—Not later than 30 days after the date of enactment of this Act, the Administrator shall establish guidelines regarding the in-person interview process described in subsection (a).

SEC. 4204. HIRING OF AIR TRAFFIC CONTROLLERS.

(a) IN GENERAL.—Section 44506 is amended by adding at the end the following:

''(f) HIRING OF CERTAIN AIR TRAFFIC CONTROL SPECIALISTS.—

''(1) CONSIDERATION OF APPLICANTS.—

''(A) ENSURING SELECTION OF MOST QUALIFIED APPLICANTS.—In appointing individuals to the position of air traffic controllers, the Administrator shall give preferential consideration to qualified individuals maintaining 52 consecutive weeks of air traffic control experience involving the full-time active separation of air traffic after receipt of an air traffic certification or air traffic control facility rating within 5 years of application while serving at—

''(i) a Federal Aviation Administration air traffic control facility;

''(ii) a civilian or military air traffic control facility of the Department of Defense; or

''(iii) a tower operating under contract with the Federal Aviation Administration under section 47124 of this title.

''(B) CONSIDERATION OF ADDITIONAL APPLICANTS.—The Administrator shall consider additional applicants for the position of air traffic controller by referring an approximately equal number of employees for appointment among the 2 applicant pools. The number of employees referred for consideration from each group shall not differ by more than 10 percent.

''(i) POOL ONE.—Applicants who:

''(I) have successfully completed air traffic controller training and graduated from an institution participating in the Collegiate Training Initiative program maintained under subsection (c)(1) who have received from the institution—

''(aa) an appropriate recommendation; or

''(bb) an endorsement certifying that the individual would have met the requirements in effect as of December 31, 2013, for an appropriate recommendation;

''(II) are eligible for a veterans recruitment appointment pursuant to section 4214 of title 38, United States Code, and provide a Certificate of Release or Discharge from Active Duty within 120 days of the announcement closing;

''(III) are eligible veterans (as defined in section 4211 of title 38, United States Code) maintaining aviation experience obtained in the course of the individual's military experience; or

''(IV) are preference eligible veterans (as defined in section 2108 of title 5, United States Code).

''(ii) POOL TWO.—Applicants who apply under a vacancy announcement recruiting from all United States citizens.

''(2) USE OF BIOGRAPHICAL ASSESSMENTS.—

''(A) BIOGRAPHICAL ASSESSMENTS.—The Administration shall not use any biographical assessment when hiring under subparagraph (A) or subparagraph (B)(i) of paragraph (1).

''(B) RECONSIDERATION OF APPLICANTS DISQUALIFIED ON THE BASIS OF BIOGRAPHICAL ASSESSMENTS.—

''(i) IN GENERAL.—If an individual described in subparagraph (A) or subparagraph (B)(i) of paragraph (1) who applied for the position of air traffic controller with the Administration in response to Vacancy Announcement FAA–AMC–14–ALLSRCE–33537 (issued on February 10, 2014) and was disqualified from the position as the result of a biographical assessment, the Administrator shall provide the applicant an opportunity to reapply as soon as practicable for the position under the revised hiring practices.

''(ii) WAIVER OF AGE RESTRICTION.—The Administrator shall waive any maximum age restriction for the position of air traffic controller with the Administration that would otherwise disqualify an individual from the position if the individual—

''(I) is reapplying for the position pursuant to clause (i) on or before December 31, 2017; and

''(II) met the maximum age requirement on the date of the individual's previous application for the position during the interim hiring process.

''(3) MAXIMUM ENTRY AGE FOR EXPERIENCED CONTROLLERS.—Notwithstanding section 3307 of title 5, United States Code, the maximum limit of age for an original appointment to a position as an air traffic controller shall be 35 years of age for those maintaining 52 weeks of air traffic control experience involving the full-time active separation of air traffic after receipt of an air traffic certification or air traffic control facility rating in a civilian or military air traffic control facility.''.

(b) NOTIFICATION OF VACANCIES.—The Administrator shall consider directly notifying secondary schools and institutes of higher learning, including Historically Black Colleges and Universities, Hispanic-serving institutions, Minority Institutions, and Tribal Colleges and Universities, of the vacancy announcement under section 44506(f)(1)(B)(ii) of title 49, United States Code.

SEC. 4205. COMPUTATION OF BASIC ANNUITY FOR CERTAIN AIR TRAFFIC CONTROLLERS.

(a) IN GENERAL.—Section 8415(f) of title 5, United States Code, is amended to read as follows:

''(f) The annuity of an air traffic controller or former air traffic controller retiring under section 8412(a) is computed under subsection (a), except that if the individual has at least 5 years of service in any combination as:

''(1) an air traffic controller as defined by section 2109(1)(A)(i);

''(2) a first level supervisor of an air traffic controller as defined by section 2109(1)(A)(i); or

''(3) a second level supervisor of an air traffic controller as defined by section 2109(1)(A)(i);

so much of the annuity as is computed with respect to such type of service shall be computed by multiplying 1 7/10 percent of the individual's average pay by the years of such service.''.

(b) EFFECTIVE DATE.—The amendment made by subsection (a) shall be deemed to be effective on December 12, 2003.

(c) PROCEDURES REQUIRED.—The Director of the Office of Personnel Management shall establish such procedures as are necessary to provide for—

(1) notification to each annuitant affected by the amendments made by this section;

(2) recalculation of the benefits of affected annuitants;

(3) an adjustment to applicable monthly benefit amounts pursuant to such recalculation, to begin as soon as is practicable; and

(4) a lump sum payment to each affected annuitant equal to the additional total benefit amount that such annuitant would have received had the amendment made by subsection (a) been in effect on December 12, 2003.

SEC. 4206. AIR TRAFFIC SERVICES AT AVIATION EVENTS.

(a) REQUIREMENT TO PROVIDE SERVICES AND RELATED SUPPORT.—The Administrator of the Federal Aviation Administration shall provide air traffic services and aviation safety support for aviation events, including airshows and fly-ins, without the imposition or collection of any fee, tax, or other charge for that purpose. Amounts for the provision of such services and support shall be derived from amounts appropriated or otherwise available for the Federal Aviation Administration.

(b) DETERMINATION OF SERVICES AND SUPPORT TO BE PROVIDED.—In determining the services and support to be provided for an aviation event for purposes of subsection (a), the Administrator shall take into account the following:

(1) The services and support required to meet levels of activity at prior events, if any, similar to the event.

(2) The anticipated need for services and support at the event.

SEC. 4207. FULL ANNUITY SUPPLEMENT FOR CERTAIN AIR TRAFFIC CONTROLLERS.

Section 8421a of title 5, United States Code, is amended—

(1) in subsection (a), by striking ''The amount'' and inserting ''Except as provided in subsection (c), the amount'';

(2) by redesignating subsection (c) as subsection (d); and

(3) by inserting after subsection (b) the following:

''(c) This section shall not apply to an individual described in section 8412(e) during any period in which the individual, after separating from the service as described in that section, is employed full-time as an air traffic control instructor under contract with the Federal Aviation Administration, including an instructor working at an on-site facility (such as an airport).''.

SEC. 4208. INCLUSION OF DISABLED VETERAN LEAVE IN FEDERAL AVIATION ADMINISTRATION PERSONNEL MANAGEMENT SYSTEM.

(a) IN GENERAL.—Section 40122(g)(2) is amended—

(1) in subparagraph (H), by striking ''; and'' and inserting a semicolon;

(2) in subparagraph (I)(iii), by striking the period at the end and inserting ''; and''; and

(3) by adding at the end the following:

''(J) subject to paragraph (4), section 6329, relating to disabled veteran leave.''.

(b) CERTIFICATION OF LEAVE.—Section 40122(g) is amended—

(1) by redesignating paragraph (4) as paragraph (5); and

(2) by inserting after paragraph (3) the following:

''(4) CERTIFICATION OF DISABLED VETERAN LEAVE.—In order to verify that leave credited to an employee pursuant to paragraph (2)(J) is used for treating a service-connected disability, that employee shall, notwithstanding section 6329(c) of title 5, submit to the Assistant Administrator for Human Resource Management of the Federal Aviation Administration certification, in such form and manner as the Administrator of the Federal Aviation Administration may prescribe, that the employee used that leave for purposes of being furnished treatment for that disability by a health care provider.''.

(c) APPLICATION.—The amendments made by this section shall apply with respect to any employee of the Federal Aviation Administration hired on or after the date that is 1 year after the date of enactment of this Act.

(d) POLICIES AND PROCEDURES.—Not later than 270 days after the date of enactment of this Act, the Administrator of the Federal Aviation Administration shall prescribe policies and procedures to carry out the amendments made by this section that are comparable, to the maximum extent practicable, to the regulations prescribed by the Office of Personnel Management under section 6329 of title 5, United States Code.

(e) ANNUAL REPORT.—Not later than 1 year after the date of enactment of this Act and not less frequently than once each year thereafter until the date that is 5 years after the date of enactment of this Act, the Administrator shall publish on a publicly accessible Internet Web site a report on—

(1) the effect carrying out this section and the amendments made by this section has had on the workforce; and

(2) the number of veterans benefitting from carrying out this section and the amendments made by this section.

TITLE V—MISCELLANEOUS

SEC. 5001. NATIONAL TRANSPORTATION SAFETY BOARD INVESTIGATIVE OFFICERS.

Section 1113 is amended by striking subsection (h).

SEC. 5002. PERFORMANCE-BASED NAVIGATION.

Section 213(c) of the FAA Modernization and Reform Act of 2012 (Public Law 112–95; 49 U.S.C. 40101 note) is amended by adding at the end the following:

''(3) NOTIFICATIONS AND CONSULTATIONS.—Not later than 90 days before applying a categorical exclusion under this subsection to a new procedure at an OEP airport, the Administrator shall—

''(A) notify and consult with the operator of the airport at which the procedure would be implemented; and

''(B) consider consultations or other engagement with the community in the which the airport is located to inform the public of the procedure.

''(4) REVIEW OF CERTAIN CATEGORICAL EXCLUSIONS.—

''(A) IN GENERAL.—The Administrator shall review any decision of the Administrator made on or after February 14, 2012, and before the date of enactment of this paragraph to grant a categorical exclusion under this subsection with respect to a procedure to be implemented at an OEP airport that was a material change from procedures previously in effect at the airport to determine if the implementation of the procedure had a significant effect on the human environment in the community in which the airport is located if the operator of that airport—

''(i) requests such a review; and

''(ii) demonstrates that there is good cause to believe that the implementation of the procedure had such an effect.

''(B) CONTENT OF REVIEW.—If, in conducting a review under subparagraph (A) with respect to a procedure implemented at an OEP airport, the Administrator, in consultation with the operator of the airport, determines that implementing the procedure had a significant effect on the human environment in the community in which the airport is located, the Administrator shall—

''(i) consult with the operator of the airport to identify measures to mitigate the effect of the procedure on the human environment; and

''(ii) in conducting such consultations, consider the use of alternative flight paths that do not substantially degrade the efficiencies achieved by the implementation of the procedure being reviewed.

''(C) HUMAN ENVIRONMENT DEFINED.—In this paragraph, the term 'human environment' has the meaning given such term in section 1508.14 of title 40, Code of Federal Regulations (as in effect on the day before the date of enactment of this paragraph).''.

SEC. 5003. OVERFLIGHTS OF NATIONAL PARKS.

Section 40128 is amended—

(1) in subsection (a)(3), by striking ''the'' before ''title 14''; and

(2) by amending subsection (f) to read as follows:

''(f) TRANSPORTATION ROUTES.—

''(1) IN GENERAL.—This section shall not apply to any air tour operator while flying over or near any Federal land managed by the Director of the National Park Service, including Lake Mead National Recreation Area, solely as a transportation route, to conduct an air tour over the Grand Canyon National Park.

''(2) EN ROUTE.—For purposes of this subsection, an air tour operator flying over the Hoover Dam in the Lake Mead National Recreation Area en route to the Grand Canyon National Park shall be deemed to be flying solely as a transportation route.''.

SEC. 5004. NAVIGABLE AIRSPACE ANALYSIS FOR COMMERCIAL SPACE LAUNCH SITE RUNWAYS.

(a) IN GENERAL.—Section 44718(b)(1) is amended–

(1) by striking ''air navigation facilities and equipment'' and inserting ''air or space navigation facilities and equipment'';

(2) in subparagraph (D), by striking ''; and'' and inserting a semicolon;

(3) in subparagraph (E), by striking the period at the end and inserting ''; and''; and

(4) by adding at the end the following:

''(F) the impact on launch and reentry for launch and reentry vehicles arriving or departing from a launch site or reentry site licensed by the Secretary.''.

(b) RULEMAKING.—Not later than 18 months after the date of enactment of this Act, the Administrator of the Federal Aviation Administration shall initiate a rulemaking to implement the amendments made by subsection (a).

SEC. 5005. SURVEY AND REPORT ON SPACEPORT DEVELOPMENT.

Not later than 1 year after the date of enactment of this Act, the Comptroller General of the United States shall submit to the appropriate committees of Congress a report on the existing system of spaceports licensed by the Federal Aviation Administration that includes recommendations regarding—

(1) the extent to which, and the manner in which, the Federal Government could participate in the construction, improvement, development, or maintenance of such spaceports; and

(2) potential funding sources.

SEC. 5006. AVIATION FUEL.

(a) USE OF UNLEADED AVIATION GASOLINE.—The Administrator of the Federal Aviation Administration shall allow the use of an unleaded aviation gasoline in an aircraft as a replacement for a leaded gasoline if the Administrator—

(1) determines that the unleaded aviation gasoline qualifies as a replacement for an approved leaded gasoline;

(2) identifies the aircraft and engines that are eligible to use the qualified replacement unleaded gasoline; and

(3) adopts a process (other than the traditional means of certification) to allow eligible aircraft and engines to operate using qualified replacement unleaded gasoline in a manner that ensures safety.

(b) TIMING.—The Administrator shall adopt the process described in subsection (a)(3) not later than 180 days after the later of—

(1) the date on which the Administration completes the Piston Aviation Fuels Initiative; or

(2) the date on which the American Society for Testing and Materials publishes a production specification for an unleaded aviation gasoline.

SEC. 5007. COMPREHENSIVE AVIATION PREPAREDNESS PLAN.

(a) IN GENERAL.—No later than 1 year after the date of enactment of this Act, the Secretary of Transportation and the Secretary of Health and Human Services, in coordination with the Secretary of Homeland Security, the Secretary of Labor, the Secretary of State, the Secretary of Defense, and representatives of other Federal departments and agencies, as necessary, shall develop a comprehensive national aviation communicable disease preparedness plan.

(b) MINIMUM COMPONENTS.—The plan developed under subsection (a) shall—

(1) be developed in consultation with other relevant stakeholders, including State, local, tribal, and territorial governments, air carriers, first responders, and the general public;

(2) provide for the development of a communications system or protocols for providing comprehensive, appropriate, and up-to-date information regarding communicable disease threats and preparedness between all relevant stakeholders;

(3) document the roles and responsibilities of relevant Federal department and agencies, including coordination requirements;

(4) provide guidance to air carriers, airports, and other appropriate aviation stakeholders on how to develop comprehensive communicable disease preparedness plans for their respective organizations, in accordance with the plan to be developed under subsection (a);

(5) be scalable and adaptable so that the plan can be used to address the full range of communicable disease threats and incidents;

(6) provide information on communicable threats and response training resources for all relevant stakeholders, including Federal, State, local, tribal, and territorial government employees, airport officials, aviation industry employees and contractors, first responders, and health officials;

(7) develop protocols for the dissemination of comprehensive, up-to-date, and appropriate information to the traveling public concerning communicable disease threats and preparedness;

(8) be updated periodically to incorporate lessons learned with supplemental information; and

(9) be provided in writing, electronically, and accessible via the Internet.

(c) INTERAGENCY FRAMEWORK.—The plan developed under subsection (a) shall—

(1) be conducted under the existing interagency framework for national level all hazards emergency preparedness planning or another appropriate framework; and

(2) be consistent with the obligations of the United States under international agreements.

SEC. 5008. ADVANCED MATERIALS CENTER OF EXCELLENCE.

(a) IN GENERAL.—Chapter 445 is amended by adding at the end the following:

"§ 44518. Advanced Materials Center of Excellence

''(a) IN GENERAL.—The Administrator of the Federal Aviation Administration shall continue operation of the Advanced Materials Center of Excellence (referred to in this section as the 'Center') under its structure as in effect on March 1, 2016, which shall focus on applied research and training on the durability and maintainability of advanced materials in transport airframe structures.

''(b) RESPONSIBILITIES.—The Center shall—

''(1) promote and facilitate collaboration among academia, the Transportation Division of the Federal Aviation Administration, and the commercial aircraft industry, including manufacturers, commercial air carriers, and suppliers; and

''(2) establish goals set to advance technology, improve engineering practices, and facilitate continuing education in relevant areas of study.

''(c) AUTHORIZATION OF APPROPRIATIONS.—There is authorized to be appropriated to the Administrator $500,000 for each of the fiscal years 2016 and 2017 to carry out this section.''.

(b) TABLE OF CONTENTS.—The table of contents for chapter 445 is amended by adding at the end the following:

''44518. Advanced Materials Center of Excellence.''.

SEC. 5009. INTERFERENCE WITH AIRLINE EMPLOYEES.

(a) IN GENERAL.—Not later than 1 year after the date of enactment of this Act, the Comptroller General of the United States shall—

(1) complete a study of crimes of violence (as defined in section 16 of title 18, United States Code) committed against airline customer service representatives while they are performing their duties and on airport property; and

(2) submit the findings of the study, including any recommendations, to Congress.

(b) GAP ANALYSIS.—The study shall include a gap analysis to determine if State and local laws and resources are adequate to deter or otherwise address the crimes of violence described in subsection (a) and recommendations on how to address any identified gaps.

SEC. 5010. SECONDARY COCKPIT BARRIERS.

(a) SHORT TITLE.—This section may be cited as the ''Saracini Aviation Safety Act of 2016''.

(b) REQUIREMENT.—Not later than one year after the date of the enactment of this Act, the Administrator of the Federal Aviation Administration shall issue an order requiring installation of a secondary cockpit barrier on each new aircraft that is manufactured for delivery to a passenger air carrier in the United States operating under the provisions of part 121 of title 14, Code of Federal Regulations.

SEC. 5011. GAO EVALUATION AND AUDIT.

Section 15(a)(1) of the Railway Labor Act (45 U.S.C. 165(a)(1)) is amended by striking ''2 years'' and inserting ''4 years''.

SEC. 5012. FEDERAL AVIATION ADMINISTRATION PERFORMANCE MEASURES AND TARGETS.

(a) PERFORMANCE MEASURES.—Not later than 180 days after the date of enactment of this Act, the Secretary of Transportation shall establish performance measures relating to the administration of the Federal Aviation Administration, which shall, at a minimum, include measures to assess—

(1) the reduction of delays in the completion of projects; and

(2) the effectiveness of the Administration in achieving the goals described in section 47171 of title 49, United States Code.

(b) PERFORMANCE TARGETS.—Not later than 180 days after the date on which the Secretary establishes performance measures in accordance with subsection (a), the Secretary shall establish performance targets relating to each of the measures described in that subsection.

(c) REPORT.—Not later than 2 years after the date of enactment of this Act, the Inspector General of the Department of Transportation shall submit to Congress a report describing the progress of the Secretary in meeting the performance targets established under subsection (b).

SEC. 5013. STAFFING OF CERTAIN AIR TRAFFIC CONTROL TOWERS.

(a) IN GENERAL.—The Administrator of the Federal Aviation Administration shall ensure appropriate staffing at the Core 30 air traffic control towers and associated terminal radar approach control facilities and air route traffic control centers and ensure, as appropriate, staffing levels at those control towers, facilities, and centers are not below the average number of air traffic controllers between the ''high'' and ''low'' staffing ranges, as specified in the document of the Federal Aviation Administration entitled, ''A Plan for the Future: 10-Year Strategy for Air Traffic Control Workforce 2015–2024''.

(b) RETENTION.—The Administrator shall review strategies to improve retention of experienced certified professional controllers at the control towers, facilities, and centers described in subsection (a)(1).

SEC. 5014. CRITICAL AIRFIELD MARKINGS.

Not later than 180 days after the date of enactment of this Act, the Administrator of the Federal Aviation Administration shall issue a request for proposal for a study that includes—

(1) an independent, third-party study to assess the durability of Type III and Type I glass beads applied to critical markings over a 12-month period at no fewer than 2 primary airports in varying weather conditions to measure the retroflectivity levels of such markings on a quarterly basis; and

(2) a study at 2 other airports carried out by applying Type III beads on one half of the centerline and Type I beads to the other half and providing for assessments from pilots through surveys administered by a third party as to the visibility and performance of the Type III glass beads as compared to the Type I glass beads over a 6-month period.

SEC. 5015. RESEARCH AND DEPLOYMENT OF CERTAIN AIRFIELD PAVEMENT TECHNOLOGIES.

Using amounts made available under section 48102(a) of title 49, United States Code, the Administrator of the Federal Aviation Administration shall carry out a program for the research and deployment of aircraft pavement technologies under which the Administrator makes grants to, and enters into cooperative agreements with, institutions of higher education and nonprofit organizations that—

(1) research concrete and asphalt airfield pavement technologies that extend the life of airfield pavements;

(2) develop and conduct training;

(3) provide for demonstration projects; and

(4) promote the latest airfield pavement technologies to aid in the development of safer, more cost effective, and more durable airfield pavements.

SEC. 5016. REPORT ON GENERAL AVIATION FLIGHT SHARING.

Not later than 180 days after the date of enactment of this Act, the Administrator of the Federal Aviation Administration shall submit to the appropriate committees of Congress a report assessing the feasibility of flight sharing for general aviation. The report shall include an assessment of any regulations that may need to be updated to allow for safe and efficient flight sharing, including regulations imposing limitations on the forms of communication persons who hold private pilot certificates may use.

SEC. 5017. INCREASE IN DURATION OF GENERAL AVIATION AIRCRAFT REGISTRATION.

Not later than 180 days after the date of enactment of this Act, the Administrator of the Federal Aviation Administration shall initiate a rulemaking to increase the duration of aircraft registrations for noncommercial general aviation aircraft to 5 years.

SEC. 5018. MODIFICATION OF LIMITATION OF LIABILITY RELATING TO AIRCRAFT.

Section 44112(b) is amended—

(1) by striking ''on land or water''; and

(2) by inserting ''operational'' before ''control''.

SEC. 5019. GOVERNMENT ACCOUNTABILITY OFFICE STUDY OF ILLEGAL DRUGS SEIZED AT INTERNATIONAL AIRPORTS IN THE UNITED STATES.

(a) IN GENERAL.—The Comptroller General of the United States shall conduct a study of illegal drugs, including heroin, fentanyl, and cocaine, seized by Federal authorities at international airports in the United States.

(b) ELEMENTS.—In conducting the study required by subsection (a), the Comptroller General shall address, at a minimum—

(1) the types and quantities of drugs seized;

(2) the origin of the drugs seized;

(3) the airport at which the drugs were seized;

(4) the manner in which the drugs were seized; and

(5) the manner in which the drugs were transported.

(c) USE OF DATA; RECOMMENDATIONS FOR ADDITIONAL DATA COLLECTION.—In conducting the study required by subsection (a), the Comptroller General shall use all available data. If the Comptroller General determines that additional data is needed to fully understand the extent to which illegal drugs enter the United States through international airports in the United States, the Comptroller General shall develop recommendations for the collection of that data.

(d) SUBMISSION TO CONGRESS.—Not later than 180 days after the date of enactment of this Act, the Comptroller General shall submit to Congress a report on the study conducted under subsection (a) that includes any recommendations developed under subsection (c).

SEC. 5020. SENSE OF CONGRESS ON PREVENTING THE TRANSPORTATION OF DISEASE-CARRYING MOSQUITOES AND OTHER INSECTS ON COMMERCIAL AIRCRAFT.

It is the sense of Congress that the Secretary of Transportation and the Secretary of Agriculture should, in coordination and consultation with the World Health Organization, develop a framework and guidance for the use of safe, effective, and nontoxic means of preventing the transportation of disease-carrying mosquitoes and other insects on commercial aircraft.

SEC. 5021. WORK PLAN FOR THE NEW YORK/NEW JERSEY/PHILADELPHIA METROPLEX PROGRAM.

Not later than 90 days after the date of enactment of this Act, the Administrator of the Federal Aviation Administration shall develop and publish in the Federal Register a work plan for the New York/New Jersey/Philadelphia metroplex program.

SEC. 5022. REPORT ON PLANS FOR AIR TRAFFIC CONTROL FACILITIES IN THE NEW YORK CITY AND NEWARK REGION.

Not later than 90 days after the date of enactment of this Act, the Administrator of the Federal Aviation Administration shall submit to the appropriate committees of Congress a report on the Federal Aviation Administration's staffing and scheduling plans for air traffic control facilities in the New York City and Newark region for the 1-year period beginning on such date of enactment.

SEC. 5023. GAO STUDY OF INTERNATIONAL AIRLINE ALLIANCES.

(a) IN GENERAL.—The Comptroller General of the United States shall conduct a study of certain cooperative agreements between United States air carriers and non-United States air carriers (referred to in this section as ''alliances''), which—

(1) have been created pursuant to section 41309 of title 49, United States Code; and

(2) have been exempted from antitrust laws (as defined in the first section of the Clayton Act (15 U.S.C. 12)) pursuant to section 41308 of title 49, United States Code.

(b) SCOPE.—The study conducted under subsection (a) shall assess—

(1) the consequences of alliances, including reduced competition, stifling new entrants into markets, increasing prices in markets, and other adverse consequences;

(2) the representations made by air carriers to the Secretary of Transportation for the necessity of an antitrust exemption;

(3) the Department of Transportation's expectations of public benefits resulting from alliances, including whether such expected benefits were actually achieved;

(4) the adequacy of the Department of Transportation's efforts in the approval and monitoring of alliances, including possessing relevant experience and expertise in the fields of antitrust and consumer protection;

(5) whether there has been sufficient transparency in the approval of alliances, including opportunities for public review and feedback;

(6) the role of the Department of Justice in the oversight of alliances;

(7) whether there are alternatives to antitrust immunity that could be conferred that would also produce public benefits;

(8) whether alliances should be required to expire;

(9) the level of competition between air carriers who are members of the same alliance;

(10) the level of competition between alliances;

(11) whether the Department of Transportation should amend, modify, or revoke any exemption from the antitrust laws granted by the Secretary of Transportation in connection with an alliance; and

(12) the effect of alliances on the number and quality of jobs for United States air carrier flight crew employees, including the share of alliance flying done by such employees.

(c) RECOMMENDATIONS.—Not later than 180 days after the date of enactment of this Act, the Comptroller General shall submit to Congress the results of the study conducted under subsection (a), which shall include recommendations on the reforms needed to improve competition and enhance choices for consumers, including—

(1) whether oversight of alliances should be exercised by the Department of Justice rather than by the Department of Transportation; and

(2) whether antitrust immunity for alliances should expire.

SEC. 5024. TREATMENT OF MULTI-YEAR LESSEES OF LARGE AND TURBINE-POWERED MULTIENGINE AIRCRAFT.

The Secretary of Transportation shall revise such regulations as may be necessary to ensure that multi-year lessees and owners of large and turbine-powered multiengine aircraft are treated equally for purposes of joint ownership policies of the Federal Aviation Administration.

SEC. 5025. EVALUATION OF EMERGING TECHNOLOGIES.

(a) STUDY.—The Administrator of the Federal Aviation Administration, in consultation with representatives of the aviation community and institutions of higher education (as defined in section 101(a) of the Higher Education Act of 1964 (20 U.S.C. 1001(a))), shall conduct a study to evaluate the potential impact of emerging technologies, such as electric propulsion and autonomous control, on the current state of aircraft design, operations, maintenance, and licensing.

(b) REPORT.—Not later than 1 year after the date of enactment of this Act, the Administrator shall submit a report to the appropriate committees of Congress that summarizes the results of the study conducted under subsection (a).

SEC. 5026. STUDENT OUTREACH REPORT.

Not later than 6 months after the date of enactment of this Act, the Administrator of the Federal Aviation Administration shall submit a report to the appropriate committees of Congress that describes the Administration's existing outreach efforts, such as the STEM Aviation and Space Education Outreach Program, to elementary and secondary students who are interested in careers in science, technology, engineering, art, and mathematics—

(1) to prepare and inspire such students for aeronautical careers; and

(2) to mitigate an anticipated shortage of pilots and other aviation professionals.

SEC. 5027. RIGHT TO PRIVACY WHEN USING AIR TRAFFIC CONTROL SYSTEM.

Notwithstanding any other provision of law, the Federal Aviation Administration, as appropriate, shall upon request of a private aircraft owner or operator, block the registration number of the aircraft of the owner or operator from any public dissemination or display, except in data made available to a Government agency, for the noncommercial flights of the owner or operator.

SEC. 5028. CONDUCT OF SECURITY SCREENING BY THE TRANSPORTATION SECURITY ADMINISTRATION AT CERTAIN AIRPORTS.

(a) IN GENERAL.—The Administrator of the Transportation Security Administration shall provide for security screening to be conducted by the Transportation Security Administration at, and provide all necessary staff and equipment to, any airport—

(1) that lost commercial air service on or after January 1, 2013; and

(2) the operator of which, following the loss described in paragraph (1), submits to the Administrator—

(A) a request for security screening to be conducted at the airport by the Transportation Security Administration; and

(B) written confirmation of a commitment from a commercial air carrier—

(i) that the air carrier wants to provide commercial air service at the airport; and

(ii) that such service will commence not later than 1 year after the date of the submission of the request under subparagraph (A).

(b) DEADLINE.—The Administrator of the Transportation Security Administration shall ensure that the process of implementing security screening by the Transportation Security Administration at an airport described in subsection (a) is complete not later than the later of—

(1) the date that is 90 days after the date on which the operator of the airport submits to the Administrator a request for such screening under paragraph (2)(A) of that subsection; or

(2) the date on which the air carrier intends to provide commercial air service at the airport.

(c) EFFECT ON OTHER AIRPORTS.—The Administrator of the Transportation Security Administration shall carry out this section in a manner that does not negatively affect operations at airports that are provided security screening by the Transportation Security Administration.

SEC. 5029. AVIATION CYBERSECURITY.

(a) COMPREHENSIVE AVIATION FRAMEWORK.—

(1) IN GENERAL.—Not later than 240 days after the date of enactment of this Act, the Administrator of the Federal Aviation Administration shall facilitate and support the

development of a comprehensive framework of principles and policies to reduce cybersecurity risks to the national airspace system, civil aviation, and agency information systems.

(2) SCOPE.—As part of the principles and policies under paragraph (1), the Administrator shall—

(A) clarify cybersecurity roles and responsibilities of offices and employees, including governance structures of any advisory committees addressing cybersecurity at the Federal Aviation Administration;

(B) recognize the interactions of different components of the national airspace system and the interdependent and interconnected nature of aircraft and air traffic control systems;

(C) identify and implement objectives and actions to reduce cybersecurity risks to the air traffic control information systems, including actions to improve implementation of information security standards and best practices of the National Institute of Standards and Technology, and policies and guidance issued by the Office of Management and Budget for agency systems;

(D) support voluntary efforts by industry, RTCA, Inc., or standards-setting organizations to develop and identify consensus standards, best practices, and guidance on aviation systems information security protection, consistent with the activities described in section 2(e) of the National Institute of Standards and Technology Act (15 U.S.C. 272(e)); and

(E) establish guidelines for the voluntary sharing of information between and among aviation stakeholders pertaining to aviation-related cybersecurity incidents, threats, and vulnerabilities.

(3) LIMITATIONS.—In carrying out the activities under this section, the Administrator shall—

(A) coordinate with aviation stakeholders, including industry, airlines, manufacturers, airports, RTCA, Inc., and unions;

(B) consult with the Secretary of Defense, Secretary of Homeland Security, Director of National Institute of Standards and Technology, the heads of other relevant agencies, and international regulatory authorities; and

(C) evaluate on a periodic basis, but not less than once every 2 years, the effectiveness of the principles established under this subsection.

(b) THREAT MODEL.—The Secretary of Transportation, in coordination with the Administrator of the Federal Aviation Administration, shall implement the open recommendation issued in 2015 by the Government Accountability Office to assess the potential cost and timetable of developing and maintaining an agency-wide threat model to strengthen cybersecurity across the Federal Aviation Administration.

(c) SECURE ACCESS TO FACILITIES AND SYSTEMS.—

(1) IDENTITY MANAGEMENT REQUIREMENTS.—Not later than 1 year after the date of enactment of this Act, the Secretary of Transportation shall implement open recommendations issued in 2014 by the Inspector General of the Department of Transportation—

(A) to work with the Federal Aviation Administration to revise its plan to effectively transition remaining users to require personal identity verification, including create a plan of actions and milestones with a planned completion date to monitor and track progress; and

(B) to work with the Director of the Office of Security of the Department of Transportation to develop or revise plans to effectively transition remaining facilities to require personal identity verification cards at the Federal Aviation Administration.

(2) IDENTITY MANAGEMENT ASSESSMENT.—

(A) IN GENERAL.—Not later than 180 days after the date of enactment of this Act, the Secretary of Transportation shall prepare a plan to implement the use of identity management, including personal identity verification, at the Federal Aviation Administration, consistent with section 504 of the Cybersecurity Enhancement Act of 2014 (Public Law 113–274; 15 U.S.C. 7464) and section 225 of title II of division N of the Cybersecurity Act of 2015 (Public Law 114–113; 129 Stat. 2242).

(B) CONTENTS.—The plan shall include—

(i) an assessment of the current implementation and use of identity management, including personal identity verification, at the Federal Aviation Administration for secure access to government facilities and information systems, including a breakdown of requirements for use and identification of which systems and facilities are enabled to use personal identity verification; and

(ii) the actions to be taken, including specified deadlines, by the Chief Information Officers of the Department of Transportation and the Federal Aviation Administration to increase the implementation and use of such measures, with the goal of 100 percent implementation across the agency.

(3) REPORT.—The Secretary shall submit the plan to the appropriate committees of Congress.

(4) CLASSIFIED INFORMATION.—The report submitted under paragraph (3) shall be in unclassified form, but may include a classified annex.

(d) AIRCRAFT SECURITY.—

(1) IN GENERAL.—The Aircraft Systems Information Security Protection Working Group shall periodically review rulemaking, policy, and guidance for certification of avionics software and hardware (including any system on board an aircraft) and continued airworthiness in order to reduce cybersecurity risks to aircraft systems.

(2) REQUIREMENTS.—In conducting the reviews, the working group—

(A) shall assess the cybersecurity risks to aircraft systems, including recognizing the interactions of different components of the national airspace system and the interdependent and interconnected nature of aircraft and air traffic control systems;

(B) shall assess the extent to which existing rulemaking, policy, and guidance to promote safety also promote aircraft systems information security protection; and

(C) based on the results of subparagraphs (A) and (B), may make recommendations to the Administrator of the Federal Aviation Administration if separate or additional rulemaking, policy, or guidance is needed to address aircraft systems information security protection.

(3) IN-FLIGHT ENTERTAINMENT SYSTEMS REVIEW.—As part of its review under subparagraphs (A) and (B) of paragraph (2), the working group shall review the cybersecurity risks of in-flight entertainment systems to consider whether such systems can and should be isolated and separate from systems required for safe flight and operations, including reviewing standards for air gaps or other means determined appropriate.

(4) RECOMMENDATIONS.—In any recommendation under paragraph (2)(C), the working group shall identify a cost-effective and technology-neutral approach and incorporate voluntary consensus standards and best practices and international practices to the fullest extent possible.

(5) REPORT.—

(A) IN GENERAL.—Not later than 60 days after the date of enactment of this Act, and periodically thereafter, the working group shall provide a report to the Administrator of the Federal Aviation Administration on the findings of the review and any recommendations.

(B) CONGRESS.—The Administrator shall submit to the appropriate committees of Congress a copy of each report provided by the working group.

(6) CLASSIFIED INFORMATION.—Each report submitted under this subsection shall be in unclassified form, but may include a classified annex.

(e) CYBERSECURITY IMPLEMENTATION PROGRESS.—The Administrator of the Federal Aviation Administration shall—

(1) not later than 90 days after the date of enactment of this Act, and periodically thereafter until the completion date, provide to the appropriate committees of Congress a briefing on the actions the Administrator has taken to improve information security management, including the steps taken to implement subsections (a), (b) and (c) and all of the issues and open recommendations identified in cybersecurity audit reports issued in 2014 and 2015 by the Inspector General of the Department of Transportation and the Government Accountability Office; and

(2) not later than 1 year after the date of enactment of this Act, issue a final report to the appropriate committees of Congress on the steps taken to improve information security management, including implementation of subsections (a), (b) and (c) and all of the issues and open recommendations identified in the cybersecurity audit reports issued in 2014 and 2015 by the Inspector General of the Department of Transportation and the Government Accountability Office.

SEC. 5030. PROHIBITIONS AGAINST SMOKING ON PASSENGER FLIGHTS.

Section 41706 is amended—

(1) by redesignating subsection (d) as subsection (e); and

(2) by inserting after subsection (c) the following:

''(d) ELECTRONIC CIGARETTES.—

''(1) INCLUSION.—The use of an electronic cigarette shall be treated as smoking for purposes of this section.

''(2) ELECTRONIC CIGARETTE DEFINED.—In this section, the term 'electronic cigarette' means a device that delivers nicotine or other substances to a user of the device in the form of a vapor that is inhaled to simulate the experience of smoking.''.

SEC. 5031. NATIONAL MULTIMODAL FREIGHT ADVISORY COMMITTEE.

(a) ESTABLISHMENT.—The Secretary of Transportation shall establish a national multimodal freight advisory committee (referred to in this section as the ''Committee'') in the Department of Transportation, which shall consist of a balanced cross-section of public and private freight stakeholders representative of all freight transportation modes, including—

(1) airports, highways, ports and waterways, rail, and pipelines;

(2) shippers;

(3) carriers;

(4) freight-related associations;

(5) the freight industry workforce;

(6) State departments of transportation;

(7) local governments;

(8) metropolitan planning organizations;

(9) regional or local transportation authorities, such as port authorities;

(10) freight safety organizations; and

(11) university research centers.

(b) PURPOSE.—The purpose of the Committee shall be to promote a safe, economically efficient, and environmentally sustainable national freight system.

(c) DUTIES.—The Committee, in consultation with State departments of transportation and metropolitan planning organizations, shall provide advice and recommendations to the Secretary of Transportation on

matters related to freight transportation in the United States, including—

(1) the implementation of freight transportation requirements;

(2) the establishment of a National Multimodal Freight Network under section 70103 of title 49, United States Code;

(3) the development of the national freight strategic plan under section 70102 of such title;

(4) the development of measures of conditions and performance in freight transportation;

(5) the development of freight transportation investment, data, and planning tools; and

(6) recommendations for Federal legislation.

(d) QUALIFICATIONS.—Each member of the Committee shall be sufficiently qualified to represent the interests of the member's specific stakeholder group, such as—

(1) general business and financial experience;

(2) experience or qualifications in the areas of freight transportation and logistics;

(3) experience in transportation planning, safety, technology, or workforce issues;

(4) experience representing employees of the freight industry;

(5) experience representing State or local governments or metropolitan planning organizations in transportation-related issues; or

(6) experience in trade economics relating to freight flows.

(e) SUPPORT STAFF, INFORMATION, AND SERVICES.—The Secretary of Transportation shall provide support staff for the Committee. Upon the request of the Committee, the Secretary shall provide such information, administrative services, and supplies as the Secretary considers necessary for the Committee to carry out its duties under this section.

SEC. 5032. TECHNICAL AND CONFORMING AMENDMENTS.

(a) AIRPORT CAPACITY ENHANCEMENT PROJECTS AT CONGESTED AIRPORTS.—Section 40104(c) is amended by striking ''47176'' and inserting ''47175''.

(b) CONSULTATION ON CARRIER RESPONSE NOT COVERED BY PLAN.—Section 41313(c)(16), as amended by section 3104 of this Act, is further amended by striking ''the foreign air carrier will consult'' and inserting ''will consult''.

(c) WEIGHING MAIL.—Section 41907 is amended by striking ''and –administrative'' and inserting ''and administrative''.

(d) FLIGHT ATTENDANT CERTIFICATION.—Section 44728 is amended—

(1) in subsection (c), by striking ''chapter'' and inserting ''title''; and

(2) in subsection (d)(3), by striking ''is'' and inserting ''be''.

(e) SCHEDULE OF FEES.—Section 45301(a)(1) is amended by striking ''United States government'' and inserting ''United States Government''.

(f) CLASSIFIED EVIDENCE.—Section 46111(g)(2)(A) is amended by striking ''(18 U.S.C. App.)'' and inserting ''(18 U.S.C. App.))''.

(g) ALLOWABLE COST STANDARDS.—Section 47110(b)(2) is amended—

(1) in subparagraph (B), by striking ''compatability'' and inserting ''compatibility''; and

(2) in subparagraph (D)(i), by striking ''climactic'' and inserting ''climatic''.

(h) DEFINITION OF QUALIFIED HUBZONE SMALL BUSINESS CONCERN.—Section 47113(a)(3) is amended by striking ''(15 U.S.C. 632(o))'' and inserting ''(15 U.S.C. 632(p))''.

(i) DISCRETIONARY FUND.—Section 47115, as amended by section 1006 of this Act, is further amended—

(1) by striking subsection (i); and

(2) by redesignating subsection (j) as subsection (i).

(j) SPECIAL APPORTIONMENT CATEGORIES.—Section 47117(e)(1)(B) is amended by striking ''at least'' and inserting ''At least''.

(k) SOLICITATION AND CONSIDERATION OF COMMENTS.—Section 47171(l) is amended by striking ''4371'' and inserting ''4321''.

(l) OPERATIONS AND MAINTENANCE.—Section 48104 is amended by striking ''(a) AUTHORIZATION OF APPROPRIATIONS.—the'' and inserting ''The''.

(m) EXPENDITURES FROM AIRPORT AND AIRWAY TRUST FUND.—Section 9502(d)(2) of the Internal Revenue Code of 1986 is amended by striking ''farms'' and inserting ''farms)''.

SEC. 5033. VISIBLE DETERRENT.

Section 1303 of the Implementing Recommendations of the 9/11 Commission Act of 2007 (6 U.S.C. 1112) is amended—

(1) in subsection (a)—

(A) in paragraph (3), by striking ''; and'' and inserting a semicolon;

(B) in paragraph (4), by striking the period at the end and inserting ''; and''; and

(C) by adding at the end the following:

''(5) if the VIPR team is deployed to an airport, shall require, as appropriate based on risk, that the VIPR team conduct operations—

''(A) in the sterile area and any other areas to which only individuals issued security credentials have unescorted access; and

''(B) in non-sterile areas.''; and

(2) in subsection (b), by striking ''such sums as necessary for fiscal years 2007 through 2011'' and inserting ''such sums as necessary, including funds to develop not more than 60 VIPR teams, for fiscal years 2016 through 2017''.

SEC. 5034. LAW ENFORCEMENT TRAINING FOR MASS CASUALTY AND ACTIVE SHOOTER INCIDENTS.

Section 2006(a)(2) of the Homeland Security Act of 2002 (6 U.S.C. 607(a)(2)) is amended—

(1) by redesignating subparagraphs (E) through (I) as subparagraphs (F) through (J), respectively; and

(2) by inserting after subparagraph (D) the following:

''(E) training exercises to enhance preparedness for and response to mass casualty and active shooter incidents and security events at public locations, including airports and mass transit systems;''.

SEC. 5035. ASSISTANCE TO AIRPORTS AND SURFACE TRANSPORTATION SYSTEMS.

Section 2008(a) of the Homeland Security Act of 2002 (6 U.S.C. 609(a)) is amended—

(1) by redesigning paragraphs (9) through (13) as paragraphs (10) through (14), respectively; and

(2) by inserting after paragraph (8) the following:

''(9) enhancing the security and preparedness of secure and non-secure areas of eligible airports and surface transportation systems.''.

SEC. 5036. AUTHORIZATION OF CERTAIN FLIGHTS BY STAGE 2 AIRPLANES.

(a) IN GENERAL.—Notwithstanding section 47534 of title 49, United States Code, not later than 180 days after the date of the enactment of this Act, the Administrator of the Federal Aviation Administration shall initiate a pilot program to permit the operator of a Stage 2 airplane to operate that airplane in nonrevenue service into not more than four medium hub airports or nonhub airports if—

(1) the airport—

(A) is certified under part 139 of title 14, Code of Federal Regulations;

(B) has a runway that—

(i) is longer than 8,000 feet and not less than 200 feet wide; and

(ii) is load bearing with a pavement classification number of not less than 38; and

(C) has a maintenance facility with a maintenance certificate issued under part 145 of such title; and

(2) the operator of the Stage 2 airplane operates not more than 10 flights per month using that airplane.

(b) TERMINATION.—The regulations required by subsection (a) shall terminate on the earlier of—

(1) the date that is 10 years after the date of the enactment of this Act; or

(2) the date on which the Administrator determines that no Stage 2 airplanes remain in service.

(c) DEFINITIONS.—In this section:

(1) MEDIUM HUB AIRPORT; NONHUB AIRPORT.—The terms ''medium hub airport'' and ''nonhub airport'' have the meanings given those terms in section 40102 of title 49, United States Code.

(2) STAGE 2 AIRPLANE.—The term ''Stage 2 airplane'' has the meaning given that term in section 91.851 of title 14, Code of Federal Regulations (as in effect on the day before the date of the enactment of this Act).

TITLE VI—TRANSPORTATION SECURITY AND TERRORISM PREVENTION

Subtitle A—Airport Security Enhancement and Oversight Act

SEC. 6101. SHORT TITLE.

This subtitle may be cited as the ''Airport Security Enhancement and Oversight Act''.

SEC. 6102. FINDINGS.

Congress makes the following findings:

(1) A number of recent airport security breaches in the United States have involved the use of Secure Identification Display Area (referred to in this section as ''SIDA'') badges, the credentials used by airport and airline workers to access the secure areas of an airport.

(2) In December 2014, a Delta ramp agent at Hartsfield-Jackson Atlanta International Airport was charged with using his SIDA badge to bypass airport security checkpoints and facilitate an interstate gun smuggling operation over a number of months via commercial aircraft.

(3) In January 2015, an Atlanta-based Aviation Safety Inspector of the Federal Aviation Administration used his SIDA badge to bypass airport security checkpoints and transport a firearm in his carry-on luggage.

(4) In February 2015, a local news investigation found that over 1,000 SIDA badges at Hartsfield-Jackson Atlanta International Airport were lost or missing.

(5) In March 2015, and again in May 2015, Transportation Security Administration contractors were indicted for participating in a drug smuggling ring using luggage passed through the secure area of the San Francisco International Airport.

(6) The Administration has indicated that it does not maintain a list of lost or missing SIDA badges, and instead relies on airport operators to track airport worker credentials.

(7) The Administration rarely uses its enforcement authority to fine airport operators that reach a certain threshold of missing SIDA badges.

(8) In April 2015, the Aviation Security Advisory Committee issued 28 recommendations for improvements to airport access control.

(9) In June 2015, the Inspector General of the Department of Homeland Security reported that the Administration did not have all relevant information regarding 73 airport workers who had records in United States intelligence-related databases because the Administration was not authorized to receive all terrorism-related information under current interagency watchlisting policy.

(10) The Inspector General also found that the Administration did not have appropriate

checks in place to reject incomplete or inaccurate airport worker employment investigations, including criminal history record checks and work authorization verifications, and had limited oversight over the airport operators that the Administration relies on to perform criminal history and work authorization checks for airport workers.

(11) There is growing concern about the potential insider threat at airports in light of recent terrorist activities.

SEC. 6103. DEFINITIONS.

In this subtitle:

(1) ADMINISTRATION.—The term ''Administration'' means the Transportation Security Administration.

(2) ADMINISTRATOR.—The term ''Administrator'' means the Administrator of the Transportation Security Administration.

(3) APPROPRIATE COMMITTEES OF CONGRESS.—The term ''appropriate committees of Congress'' means—

(A) the Committee on Commerce, Science, and Transportation of the Senate;

(B) the Committee on Homeland Security and Governmental Affairs of the Senate; and

(C) the Committee on Homeland Security of the House of Representatives.

(4) ASAC.—The term ''ASAC'' means the Aviation Security Advisory Committee established under section 44946 of title 49, United States Code.

(5) SECRETARY.—The term ''Secretary'' means the Secretary of Homeland Security.

(6) SIDA.—The term ''SIDA'' means Secure Identification Display Area as defined in section 1540.5 of title 49, Code of Federal Regulations, or any successor regulation to such section.

SEC. 6104. THREAT ASSESSMENT.

(a) INSIDER THREATS.—

(1) IN GENERAL.—Not later than 90 days after the date of enactment of this Act, the Administrator shall conduct or update an assessment to determine the level of risk posed to the domestic air transportation system by individuals with unescorted access to a secure area of an airport (as defined in section 44903(j)(2)(H)) in light of recent international terrorist activity.

(2) CONSIDERATIONS.—In conducting or updating the assessment under paragraph (1), the Administrator shall consider—

(A) domestic intelligence;

(B) international intelligence;

(C) the vulnerabilities associated with unescorted access authority granted to domestic airport operators and air carriers, and their employees;

(D) the vulnerabilities associated with unescorted access authority granted to foreign airport operators and air carriers, and their employees;

(E) the processes and practices designed to mitigate the vulnerabilities associated with unescorted access privileges granted to airport operators and air carriers, and their employees;

(F) the recent security breaches at domestic and foreign airports; and

(G) the recent security improvements at domestic airports, including the implementation of recommendations made by relevant advisory committees.

(b) REPORTS TO CONGRESS.—The Administrator shall submit to the appropriate committees of Congress—

(1) a report on the results of the assessment under subsection (a), including any recommendations for improving aviation security;

(2) a report on the implementation status of any recommendations made by the ASAC; and

(3) regular updates about the insider threat environment as new information becomes available and as needed.

SEC. 6105. OVERSIGHT.

(a) ENHANCED REQUIREMENTS.—

(1) IN GENERAL.—Subject to public notice and comment, and in consultation with airport operators, the Administrator shall update the rules on access controls issued by the Secretary under chapter 449 of title 49, United States Code.

(2) CONSIDERATIONS.—As part of the update under paragraph (1), the Administrator shall consider—

(A) increased fines and advanced oversight for airport operators that report missing more than 5 percent of credentials for unescorted access to any SIDA of an airport;

(B) best practices for Category X airport operators that report missing more than 3 percent of credentials for unescorted access to any SIDA of an airport;

(C) additional audits and status checks for airport operators that report missing more than 3 percent of credentials for unescorted access to any SIDA of an airport;

(D) review and analysis of the prior 5 years of audits for airport operators that report missing more than 3 percent of credentials for unescorted access to any SIDA of an airport;

(E) increased fines and direct enforcement requirements for both airport workers and their employers that fail to report within 24 hours an employment termination or a missing credential for unescorted access to any SIDA of an airport; and

(F) a method for termination by the employer of any airport worker that fails to report in a timely manner missing credentials for unescorted access to any SIDA of an airport.

(b) TEMPORARY CREDENTIALS.—The Administrator may encourage the issuance by airport and aircraft operators of free one-time, 24-hour temporary credentials for workers who have reported their credentials missing, but not permanently lost, stolen, or destroyed, in a timely manner, until replacement of credentials under section 1542.211 of title 49 Code of Federal Regulations is necessary.

(c) NOTIFICATION AND REPORT TO CONGRESS.—The Administrator shall—

(1) notify the appropriate committees of Congress each time an airport operator reports that more than 3 percent of credentials for unescorted access to any SIDA at a Category X airport are missing or more than 5 percent of credentials to access any SIDA at any other airport are missing; and

(2) submit to the appropriate committees of Congress an annual report on the number of violations and fines related to unescorted access to the SIDA of an airport collected in the preceding fiscal year.

SEC. 6106. CREDENTIALS.

(a) LAWFUL STATUS.—Not later than 90 days after the date of enactment of this Act, the Administrator shall issue guidance to airport operators regarding placement of an expiration date on each airport credential issued to a non-United States citizen no longer than the period of time during which that non-United States citizen is lawfully authorized to work in the United States.

(b) REVIEW OF PROCEDURES.—

(1) IN GENERAL.—Not later than 90 days after the date of enactment of this Act, the Administrator shall—

(A) issue guidance for transportation security inspectors to annually review the procedures of airport operators and air carriers for applicants seeking unescorted access to any SIDA of an airport; and

(B) make available to airport operators and air carriers information on identifying suspicious or fraudulent identification materials.

(2) INCLUSIONS.—The guidance shall require a comprehensive review of background checks and employment authorization documents issued by the Citizenship and Immigration Services during the course of a review of procedures under paragraph (1).

SEC. 6107. VETTING.

(a) ELIGIBILITY REQUIREMENTS.—

(1) IN GENERAL.—Not later than 180 days after the date of enactment of this Act, and subject to public notice and comment, the Administrator shall revise the regulations issued under section 44936 of title 49, United States Code, in accordance with this section and current knowledge of insider threats and intelligence, to enhance the eligibility requirements and disqualifying criminal offenses for individuals seeking or having unescorted access to a SIDA of an airport.

(2) DISQUALIFYING CRIMINAL OFFENSES.—In revising the regulations under paragraph (1), the Administrator shall consider adding to the list of disqualifying criminal offenses and criteria the offenses and criteria listed in section 122.183(a)(4) of title 19, Code of Federal Regulations and section 1572.103 of title 49, Code of Federal Regulations.

(3) WAIVER PROCESS FOR DENIED CREDENTIALS.—Notwithstanding section 44936(b) of title 49, United States Code, in revising the regulations under paragraph (1) of this subsection, the Administrator shall—

(A) ensure there exists or is developed a waiver process for approving the issuance of credentials for unescorted access to the SIDA, for an individual found to be otherwise ineligible for such credentials; and

(B) consider, as appropriate and practicable—

(i) the circumstances of any disqualifying act or offense, restitution made by the individual, Federal and State mitigation remedies, and other factors from which it may be concluded that the individual does not pose a terrorism risk or a risk to aviation security warranting denial of the credential; and

(ii) the elements of the appeals and waiver process established under section 70105(c) of title 46, United States Code.

(4) LOOK BACK.—In revising the regulations under paragraph (1), the Administrator shall propose that an individual be disqualified if the individual was convicted, or found not guilty by reason of insanity, of a disqualifying criminal offense within 15 years before the date of an individual's application, or if the individual was incarcerated for that crime and released from incarceration within 5 years before the date of the individual's application.

(5) CERTIFICATIONS.—The Administrator shall require an airport or aircraft operator, as applicable, to certify for each individual who receives unescorted access to any SIDA of an airport that—

(A) a specific need exists for providing that individual with unescorted access authority; and

(B) the individual has certified to the airport or aircraft operator that the individual understands the requirements for possessing a SIDA badge.

(6) REPORT TO CONGRESS.—Not later than 90 days after the date of enactment, the Administrator shall submit to the appropriate committees of Congress a report on the status of the revision to the regulations issued under section 44936 of title 49, United States Code, in accordance with this section.

(7) RULE OF CONSTRUCTION.—Nothing in this subsection may be construed to affect existing aviation worker vetting fees imposed by the Administration.

(b) RECURRENT VETTING.—

(1) IN GENERAL.—Not later than 90 days after the date of enactment of this Act, the Administrator and the Director of the Federal Bureau of Investigation shall fully implement the Rap Back service for recurrent

vetting of eligible Administration-regulated populations of individuals with unescorted access to any SIDA of an airport.

(2) REQUIREMENTS.—As part of the requirement in paragraph (1), the Administrator shall ensure that—

(A) any status notifications the Administration receives through the Rap Back service about criminal offenses be limited to only disqualifying criminal offenses in accordance with the regulations promulgated by the Administration under section 44903 of title 49, United States Code, or other Federal law; and

(B) any information received by the Administration through the Rap Back service is provided directly and immediately to the relevant airport and aircraft operators.

(3) REPORT TO CONGRESS.—Not later than 60 days after the date of enactment of this Act, the Administrator shall submit to the appropriate committees of Congress a report on the implementation status of the Rap Back service.

(c) ACCESS TO TERRORISM-RELATED DATA.—Not later than 30 days after the date of enactment of this Act, the Administrator and the Director of National Intelligence shall coordinate to ensure that the Administrator is authorized to receive automated, real-time access to additional Terrorist Identities Datamart Environment (TIDE) data and any other terrorism related category codes to improve the effectiveness of the Administration's credential vetting program for individuals that are seeking or have unescorted access to a SIDA of an airport.

(d) ACCESS TO E-VERIFY AND SAVE PROGRAMS.—Not later than 90 days after the date of enactment of this Act, the Secretary shall authorize each airport operator to have direct access to the E-Verify program and the Systematic Alien Verification for Entitlements (SAVE) automated system to determine the eligibility of individuals seeking unescorted access to a SIDA of an airport.

SEC. 6108. METRICS.

(a) IN GENERAL.—Not later than 1 year after the date of enactment of this Act, the Administrator shall develop and implement performance metrics to measure the effectiveness of security for the SIDAs of airports.

(b) CONSIDERATIONS.—In developing the performance metrics under subsection (a), the Administrator may consider—

(1) adherence to access point procedures;

(2) proper use of credentials;

(3) differences in access point requirements between airport workers performing functions on the airside of an airport and airport workers performing functions in other areas of an airport;

(4) differences in access point characteristics and requirements at airports; and

(5) any additional factors the Administrator considers necessary to measure performance.

SEC. 6109. INSPECTIONS AND ASSESSMENTS.

(a) MODEL AND BEST PRACTICES.—Not later than 180 days after the date of enactment of this Act, the Administrator, in consultation with the ASAC, shall develop a model and best practices for unescorted access security that—

(1) use intelligence, scientific algorithms, and risk-based factors;

(2) ensure integrity, accountability, and control;

(3) subject airport workers to random physical security inspections conducted by Administration representatives in accordance with this section;

(4) appropriately manage the number of SIDA access points to improve supervision of and reduce unauthorized access to these areas; and

(5) include validation of identification materials, such as with biometrics.

(b) INSPECTIONS.—Consistent with a risk-based security approach, the Administrator shall expand the use of transportation security officers and inspectors to conduct enhanced, random and unpredictable, data-driven, and operationally dynamic physical inspections of airport workers in each SIDA of an airport and at each SIDA access point—

(1) to verify the credentials of airport workers;

(2) to determine whether airport workers possess prohibited items, except for those that may be necessary for the performance of their duties, as appropriate, in any SIDA of an airport; and

(3) to verify whether airport workers are following appropriate procedures to access a SIDA of an airport.

(c) SCREENING REVIEW.—

(1) IN GENERAL.—The Administrator shall conduct a review of airports that have implemented additional airport worker screening or perimeter security to improve airport security, including—

(A) comprehensive airport worker screening at access points to secure areas;

(B) comprehensive perimeter screening, including vehicles;

(C) enhanced fencing or perimeter sensors; and

(D) any additional airport worker screening or perimeter security measures the Administrator identifies.

(2) BEST PRACTICES.—After completing the review under paragraph (1), the Administrator shall—

(A) identify best practices for additional access control and airport worker security at airports; and

(B) disseminate the best practices identified under subparagraph (A) to airport operators.

(3) PILOT PROGRAM.—The Administrator may conduct a pilot program at 1 or more airports to test and validate best practices for comprehensive airport worker screening or perimeter security under paragraph (2).

SEC. 6110. COVERT TESTING.

(a) IN GENERAL.—The Administrator shall increase the use of red-team, covert testing of access controls to any secure areas of an airport.

(b) ADDITIONAL COVERT TESTING.—The Inspector General of the Department of Homeland Security shall conduct red-team, covert testing of airport access controls to the SIDA of airports.

(c) REPORTS TO CONGRESS.—

(1) ADMINISTRATOR REPORT.—Not later than 90 days after the date of enactment of this Act, the Administrator shall submit to the appropriate committee of Congress a report on the progress to expand the use of inspections and of red-team, covert testing under subsection (a).

(2) INSPECTOR GENERAL REPORT.—Not later than 180 days after the date of enactment of this Act, the Inspector General of the Department of Homeland Security shall submit to the appropriate committee of Congress a report on the effectiveness of airport access controls to the SIDA of airports based on red-team, covert testing under subsection (b).

SEC. 6111. SECURITY DIRECTIVES.

(a) REVIEW.—Not later than 180 days after the date of enactment of this Act, and annually thereafter, the Administrator, in consultation with the appropriate regulated entities, shall conduct a comprehensive review of every current security directive addressed to any regulated entity—

(1) to determine whether the security directive continues to be relevant;

(2) to determine whether the security directives should be streamlined or consolidated to most efficiently maximize risk reduction; and

(3) to update, consolidate, or revoke any security directive as necessary.

(b) NOTICE.—For each security directive that the Administrator issues, the Administrator shall submit to the appropriate committees of Congress notice of—

(1) the extent to which the security directive responds to a specific threat, security threat assessment, or emergency situation against civil aviation; and

(2) when it is anticipated that the security directive will expire.

SEC. 6112. IMPLEMENTATION REPORT.

Not later than 1 year after the date of enactment of this Act, the Comptroller General of the United States shall—

(1) assess the progress made by the Administration and the effect on aviation security of implementing the requirements under sections 6104 through 6111 of this Act; and

(2) report to the appropriate committees of Congress on the results of the assessment under paragraph (1), including any recommendations.

SEC. 6113. MISCELLANEOUS AMENDMENTS.

(a) ASAC TERMS OF OFFICE.—Section 44946(c)(2)(A) is amended to read as follows:

''(A) TERMS.—The term of each member of the Advisory Committee shall be 2 years, but a member may continue to serve until the Assistant Secretary appoints a successor. A member of the Advisory Committee may be reappointed.''.

(b) FEEDBACK.—Section 44946(b)(5) is amended to read as follows:

''(5) FEEDBACK.—Not later than 90 days after receiving recommendations transmitted by the Advisory Committee under paragraph (2) or paragraph (4), the Assistant Secretary shall respond in writing to the Advisory Committee with feedback on each of the recommendations, an action plan to implement any of the recommendations with which the Assistant Secretary concurs, and a justification for why any of the recommendations have been rejected.''.

Subtitle B—TSA PreCheck Expansion Act

SEC. 6201. SHORT TITLE.

This subtitle may be cited as the ''TSA PreCheck Expansion Act''.

SEC. 6202. DEFINITIONS.

In this subtitle:

(1) ADMINISTRATOR.—The term ''Administrator'' means the Administrator of the Transportation Security Administration.

(2) DEPARTMENT.—The term ''Department'' means the Department of Homeland Security.

(3) PRECHECK PROGRAM.—The term ''PreCheck Program'' means the trusted traveler program implemented by the Transportation Security Administration under section 109(a)(3) of the Aviation and Transportation Security Act (49 U.S.C. 114).

(4) TSA.—The term ''TSA'' means the Transportation Security Administration.

SEC. 6203. PRECHECK PROGRAM AUTHORIZATION.

The Administrator shall continue to administer the PreCheck Program established under the authority of the Aviation and Transportation Security Act (Public Law 107–71; 115 Stat. 597).

SEC. 6204. PRECHECK PROGRAM ENROLLMENT EXPANSION.

(a) IN GENERAL.—Not later than 90 days after the date of enactment of this Act, the Administrator shall publish PreCheck Program enrollment standards that add multiple private sector application capabilities for the PreCheck Program to increase the public's enrollment access to the program,

including standards that allow the use of secure technologies, including online enrollment, kiosks, tablets, or staffed laptop stations at which individuals can apply for entry into the program.

(b) REQUIREMENTS.—Upon publication of the PreCheck Program enrollment standards under subsection (a), the Administrator shall—

(1) coordinate with interested parties—

(A) to deploy TSA-approved ready-to-market private sector solutions that meet the PreCheck Program enrollment standards under subsection (a);

(B) to make available additional PreCheck Program enrollment capabilities; and

(C) to offer secure online and mobile enrollment opportunities;

(2) partner with the private sector to collect biographic and biometric identification information via kiosks, mobile devices, or other mobile enrollment platforms to increase enrollment flexibility and minimize the amount of travel to enrollment centers for applicants;

(3) ensure that any information, including biographic information, is collected in a manner that—

(A) is comparable with the appropriate and applicable standards developed by the National Institute of Standards and Technology; and

(B) protects privacy and data security, including that any personally identifiable information is collected, retained, used, and shared in a manner consistent with section 552a of title 5, United States Code (commonly known as ''Privacy Act of 1974''), and with agency regulations;

(4) ensure that the enrollment process is streamlined and flexible to allow an individual to provide additional information to complete enrollment and verify identity;

(5) ensure that any enrollment expansion using a private sector risk assessment instead of a fingerprint-based criminal history records check is evaluated and certified by the Secretary of Homeland Security, and verified by the Government Accountability Office or a federally funded research and development center after award to be equivalent to a fingerprint-based criminal history records check conducted through the Federal Bureau of Investigation with respect to the effectiveness in identifying individuals who are not qualified to participate in the PreCheck program due to disqualifying criminal history; and

(6) ensure that the Secretary has certified that reasonable procedures are in place with regard to the accuracy, relevancy, and proper utilization of information employed in private sector risk assessments.

(c) MARKETING OF PRECHECK PROGRAM.—Upon publication of PreCheck Program enrollment standards under subsection (a), the Administrator shall—

(1) in accordance with those standards, develop and implement—

(A) a continual process, including an associated timeframe, for approving private sector marketing of the PreCheck Program; and

(B) a long-term strategy for partnering with the private sector to encourage enrollment in such program;

(2) submit to Congress, at the end of each fiscal year, a report on any PreCheck Program application fees collected in excess of the costs of administering the program, including to access the feasibility of the program, for the preceding fiscal year; and

(3) include in the report under paragraph (2) recommendations for using such amounts to support marketing of the program under this subsection.

(d) IDENTITY VERIFICATION ENHANCEMENT.—Not later than 120 days after the date of enactment of this Act, the Administrator shall—

(1) coordinate with the heads of appropriate components of the Department to leverage department-held data and technologies to verify the citizenship of individuals enrolling in the PreCheck Program;

(2) partner with the private sector to use biometrics and authentication standards, such as relevant standards developed by the National Institute of Standards and Technology, to facilitate enrollment in the program; and

(3) consider leveraging the existing resources and abilities of airports to conduct fingerprint and background checks to expedite identity verification.

(e) PRECHECK PROGRAM LANES OPERATION.—The Administrator shall—

(1) ensure that PreCheck Program screening lanes are open and available during peak and high-volume travel times at appropriate airports to individuals enrolled in the PreCheck Program; and

(2) make every practicable effort to provide expedited screening at standard screening lanes during times when PreCheck Program screening lanes are closed to individuals enrolled in the program in order to maintain operational efficiency.

(f) VETTING FOR PRECHECK PROGRAM PARTICIPANTS.—Not later than 90 days after the date of enactment of this Act, the Administrator shall initiate an assessment to identify any security vulnerabilities in the vetting process for the PreCheck Program, including determining whether subjecting PreCheck Program participants to recurrent fingerprint-based criminal history records checks, in addition to recurrent checks against the terrorist watchlist, could be done in a cost-effective manner to strengthen the security of the PreCheck Program.

Subtitle C—Securing Aviation From Foreign Entry Points and Guarding Airports Through Enhanced Security Act of 2016

SEC. 6301. SHORT TITLE.

This subtitle may be cited as the ''Securing Aviation from Foreign Entry Points and Guarding Airports Through Enhanced Security Act of 2016''.

SEC. 6302. LAST POINT OF DEPARTURE AIRPORT SECURITY ASSESSMENT.

(a) IN GENERAL.—Not later than 180 days after the date of enactment of this Act, the Administrator of the Transportation Security Administration shall conduct a comprehensive security risk assessment of all last point of departure airports with nonstop flights to the United States.

(b) CONTENTS.—The security risk assessment required under subsection (a) shall include consideration of the following:

(1) The level of coordination and cooperation between the Transportation Security Administration and the foreign government of the country in which the last point of departure airport with nonstop flights to the United States is located.

(2) The intelligence and threat mitigation capabilities of the country in which such airport is located.

(3) The number of known or suspected terrorists annually transiting through such airport.

(4) The degree to which the foreign government of the country in which such airport is located mandates, encourages, or prohibits the collection, analysis, and sharing of passenger name records.

(5) The passenger security screening practices, capabilities, and capacity of such airport.

(6) The security vetting undergone by aviation workers at such airport.

(7) The access controls utilized by such airport to limit to authorized personnel access to secure and sterile areas of such airports.

SEC. 6303. SECURITY COORDINATION ENHANCEMENT PLAN.

(a) IN GENERAL.—Not later than 240 days after the date of enactment of this Act, the Administrator of the Transportation Security Administration shall submit to Congress and the Government Accountability Office a plan—

(1) to enhance and bolster security collaboration, coordination, and information sharing relating to securing international-inbound aviation between the United States and domestic and foreign partners, including U.S. Customs and Border Protection, foreign government entities, passenger air carriers, cargo air carriers, and United States Government entities, in order to enhance security capabilities at foreign airports, including airports that may not have nonstop flights to the United States but are nonetheless determined by the Administrator to be high risk; and

(2) that includes an assessment of the ability of the Administration to enter into a mutual agreement with a foreign government entity that permits Administration representatives to conduct without prior notice inspections of foreign airports.

(b) GAO REVIEW.—Not later than 180 days after the submission of the plan required under subsection (a), the Comptroller General of the United States shall review the efforts, capabilities, and effectiveness of the Transportation Security Administration to enhance security capabilities at foreign airports and determine if the implementation of such efforts and capabilities effectively secures international-inbound aviation.

SEC. 6304. WORKFORCE ASSESSMENT.

Not later than 270 days after the date of enactment of this Act, the Administrator of the Transportation Security Administration shall submit to Congress a comprehensive workforce assessment of all Administration personnel within the Office of Global Strategies of the Administration or whose primary professional duties contribute to the Administration's global efforts to secure transportation security, including a review of whether such personnel are assigned in a risk-based, intelligence-driven manner.

SEC. 6305. DONATION OF SCREENING EQUIPMENT TO PROTECT THE UNITED STATES.

(a) IN GENERAL.—The Administrator of the Transportation Security Administration is authorized to donate security screening equipment to a foreign last point of departure airport operator if such equipment can be reasonably expected to mitigate a specific vulnerability to the security of the United States or United States citizens.

(b) REPORT.—Not later than 30 days before any donation of security screening equipment pursuant to subsection (a), the Administrator of the Transportation Security Administration shall provide to the Committee on Homeland Security and Governmental Affairs and the Committee on Commerce, Science, and Transportation of the Senate and the Committee on Homeland Security of the House of Representatives a detailed written explanation of the following:

(1) The specific vulnerability to the United States or United States citizens that will be mitigated by such donation.

(2) An explanation as to why the recipient of such donation is unable or unwilling to purchase security screening equipment to mitigate such vulnerability.

(3) An evacuation plan for sensitive technologies in case of emergency or instability in the country to which such donation is being made.

(4) How the Administrator will ensure the security screening equipment that is being donated is used and maintained over the course of its life by the recipient.

(5) The total dollar value of such donation.

SEC. 6306. NATIONAL CARGO SECURITY PROGRAM.

(a) IN GENERAL.—The Administrator of the Transportation Security Administration may evaluate foreign countries' air cargo security programs to determine whether such programs provide a level of security commensurate with the level of security required by United States air cargo security programs.

(b) APPROVAL AND RECOGNITION.—

(1) IN GENERAL.—If the Administrator of the Transportation Security Administration determines that a foreign country's air cargo security program evaluated under subsection (a) provides a level of security commensurate with the level of security required by United States air cargo security programs, the Administrator shall approve and officially recognize such foreign country's air cargo security program.

(2) EFFECT OF APPROVAL AND RECOGNITION.—If the Administrator of the Transportation Security Administration approves and officially recognizes pursuant to paragraph (1) a foreign country's air cargo security program, cargo aircraft of such foreign country shall not be required to adhere to United States air cargo security programs that would otherwise be applicable.

(c) REVOCATION AND SUSPENSION.—

(1) IN GENERAL.—If the Administrator of the Transportation Security Administration determines at any time that a foreign country's air cargo security program approved and officially recognized under subsection (b) no longer provides a level of security commensurate with the level of security required by United States air cargo security programs, the Administrator may revoke or temporarily suspend such approval and official recognition until such time as the Administrator determines that such foreign country's cargo security programs provide a level of security commensurate with the level of security required by such United States air cargo security programs.

(2) NOTIFICATION.—If the Administrator of the Transportation Security Administration revokes or suspends pursuant to paragraph (1) a foreign country's air cargo security program, the Administrator shall notify the Committee on Homeland Security of the House of Representatives and the Committee on Commerce, Science, and Transportation of the Senate not later than 30 days after such revocation or suspension.

Subtitle D—Miscellaneous

SEC. 6401. INTERNATIONAL TRAINING AND CAPACITY DEVELOPMENT.

(a) IN GENERAL.—In accordance with section 114 of title 49, United States Code, the Administrator of the Transportation Security Administration shall establish an international training and capacity development program to train the appropriate authorities of foreign governments in air transportation security.

(b) CONTENTS OF TRAINING.—If the Administrator determines that a foreign government would benefit from training and capacity development assistance, the Administrator may provide to the appropriate authorities of that foreign government technical assistance and training programs to strengthen aviation security in managerial, operational, and technical areas, including—

(1) active shooter scenarios;

(2) incident response;

(3) use of canines;

(4) mitigation of insider threats;

(5) perimeter security;

(6) operation and maintenance of security screening technology; and

(7) recurrent related training and exercises.

SEC. 6402. CHECKPOINTS OF THE FUTURE.

(a) IN GENERAL.—The Administrator of the Transportation Security Administration, in accordance with chapter 449 of title 49, United States Code, shall request the Aviation Security Advisory Committee to develop recommendations for more efficient and effective passenger screening processes.

(b) CONSIDERATIONS.—In making recommendations to improve existing passenger screening processes, the Aviation Security Advisory Committee shall consider—

(1) the configuration of a checkpoint;

(2) technology innovation;

(3) ways to address any vulnerabilities identified in audits of checkpoint operations;

(4) ways to prevent security breaches at airports where Federal security screening is provided;

(5) best practices in aviation security;

(6) recommendations from airport and aircraft operators, and any relevant advisory committees; and

(7) ''curb to curb'' processes and procedures.

(c) REPORT.—Not later than 1 year after the date of enactment of this Act, the Administrator shall submit to the appropriate committees of Congress a report on the results of the Aviation Security Advisory Committee review, including any recommendations for improving screening processes.

TITLE VII—AIRPORT AND AIRWAY TRUST FUND PROVISIONS AND RELATED TAXES

SEC. 7101. EXPENDITURE AUTHORITY FROM AIRPORT AND AIRWAY TRUST FUND.

(a) IN GENERAL.—Section 9502(d)(1) of the Internal Revenue Code of 1986 is amended—

(1) in the matter preceding subparagraph (A), by striking ''July 16, 2016'' and inserting ''October 1, 2017''; and

(2) in subparagraph (A), by striking the semicolon at the end and inserting ''or the Federal Aviation Administration Reauthorization Act of 2016;''.

(b) CONFORMING AMENDMENT.—Section 9502(e)(2) of such Code is amended by striking ''July 16, 2016'' and inserting ''October 1, 2017''.

SEC. 7102. EXTENSION OF TAXES FUNDING AIRPORT AND AIRWAY TRUST FUND.

(a) FUEL TAXES.—Section 4081(d)(2)(B) of the Internal Revenue Code of 1986 is amended by striking ''July 15, 2016'' and inserting ''September 30, 2017''.

(b) TICKET TAXES.—

(1) PERSONS.—Section 4261(k)(1)(A)(ii) of such Code is amended by striking ''July 15, 2016'' and inserting ''September 30, 2017''.

(2) PROPERTY.—Section 4271(d)(1)(A)(ii) of such Code is amended by striking ''July 15, 2016'' and inserting ''September 30, 2017''.

(c) FRACTIONAL OWNERSHIP PROGRAMS.—

(1) TREATMENT AS NON-COMMERCIAL AVIATION.—Section 4083(b) of such Code is amended by striking ''July 16, 2016'' and inserting ''October 1, 2017''.

(2) EXEMPTION FROM TICKET TAXES.—Section 4261(j) of such Code is amended by striking ''July 15, 2016'' and inserting ''September 30, 2017''.

SA 3680. Mr. THUNE proposed an amendment to amendment SA 3679 proposed by Mr. MCCONNELL (for Mr. THUNE (for himself and Mr. NELSON)) to the bill H.R. 636, to amend the Internal Revenue Code of 1986 to permanently extend increased expensing limitations, and for other purposes; as follows:

Strike section 4105 and insert the following:

SEC. 4105. ADS–B MANDATE ASSESSMENT.

(a) ASSESSMENT.—Not later than 1 year after the date of enactment of this Act, the Inspector General of the Department of Transportation shall assess—

(1) Administration and industry readiness to meet the ADS–B mandate by 2020;

(2) changes to ADS–B program since May 2010; and

(3) additional options to comply with the mandate and consequences, both for individual system users and for the overall safety and efficiency of the national airspace system, for noncompliance.

(b) REPORT.—Not later than 60 days after the date the assessment under subsection (a) is complete, the Inspector General of the Department of Transportation shall submit to the appropriate committees of Congress a report on the progress made toward meeting the ADS–B mandate by 2020, including any recommendations of the Inspector General to carry out such mandate.

SA 3681. Mr. HATCH submitted an amendment intended to be proposed by him to the bill H.R. 636, to amend the Internal Revenue Code of 1986 to permanently extend increased expensing limitations, and for other purposes; which was ordered to lie on the table; as follows:

At the end, insert the following:

TITLE VI—AIRPORT AND AIRWAY TRUST FUND PROVISIONS AND RELATED TAXES

SEC. 6001. EXPENDITURE AUTHORITY FROM AIRPORT AND AIRWAY TRUST FUND.

(a) IN GENERAL.—Section 9502(d)(1) of the Internal Revenue Code of 1986 is amended—

(1) in the matter preceding subparagraph (A), by striking ''July 16, 2016'' and inserting ''October 1, 2017''; and

(2) in subparagraph (A), by striking the semicolon at the end and inserting ''or the Federal Aviation Administration Reauthorization Act of 2016;''.

(b) CONFORMING AMENDMENT.—Section 9502(e)(2) of such Code is amended by striking ''July 16, 2016'' and inserting ''October 1, 2017''.

SEC. 6002. EXTENSION OF TAXES FUNDING AIRPORT AND AIRWAY TRUST FUND.

(a) FUEL TAXES.—Section 4081(d)(2)(B) of the Internal Revenue Code of 1986 is amended by striking ''July 15, 2016'' and inserting ''September 30, 2019''.

(b) TICKET TAXES.—

(1) PERSONS.—Section 4261(k)(1)(A)(ii) of such Code is amended by striking ''July 15, 2016'' and inserting ''September 30, 2019''.

(2) PROPERTY.—Section 4271(d)(1)(A)(ii) of such Code is amended by striking ''July 15, 2016'' and inserting ''September 30, 2019''.

(c) FRACTIONAL OWNERSHIP PROGRAMS.—

(1) TREATMENT AS NON-COMMERCIAL AVIATION.—Section 4083(b) of such Code is amended by striking ''July 16, 2016'' and inserting ''October 1, 2019''.

(2) EXEMPTION FROM TICKET TAXES.—Section 4261(j) of such Code is amended by striking ''July 15, 2016'' and inserting ''September 30, 2019''.

SA 3682. Mr. INHOFE submitted an amendment intended to be proposed to amendment SA 3464 submitted by Mr. THUNE (for himself and Mr. NELSON) to the bill H.R. 636, to amend the Internal Revenue Code of 1986 to permanently extend increased expensing limitations, and for other purposes; which was ordered to lie on the table; as follows:

Strike section 5023 and insert the following:

SEC. 5023. GOVERNMENT ACCOUNTABILITY OFFICE STUDY OF INTERNATIONAL AIR CARRIER ALLIANCES.

(a) IN GENERAL.—The Comptroller General of the United States shall conduct a study of

certain cooperative agreements between United States air carriers and non-United States air carriers (referred to in this section as ''alliances'') that—

(1) have been created pursuant to section 41309 of title 49, United States Code; and

(2) have been exempted from antitrust laws (as defined in the first section of the Clayton Act (15 U.S.C. 12)) pursuant to section 41308 of title 49, United States Code.

(b) SCOPE.—In conducting the study under subsection (a), the Comptroller General shall assess—

(1) the public benefits to consumers of alliances and the consequences of alliances, if any, to competition, pricing, and new entry into markets served by alliances;

(2) the representations made by air carriers to the Secretary of Transportation for the necessity of an antitrust exemption;

(3) the Department of Transportation's expectations of public benefits resulting from alliances, including whether such expected benefits were actually achieved;

(4) the Department of Transportation's role in the approval and monitoring of alliances;

(5) whether there has been sufficient transparency in the approval of alliances, including opportunities for public review and feedback;

(6) the role of the Department of Justice in the oversight of alliances;

(7) whether there are alternatives to antitrust immunity that could be conferred that would also produce public benefits; and

(8) the level of competition between alliances.

(c) RECOMMENDATIONS.—Not later than 180 days after the date of the enactment of this Act, the Comptroller General shall submit to Congress the results of the study conducted under subsection (a).

SA 3683. Mr. BOOKER (for himself and Mr. DAINES) submitted an amendment intended to be proposed to amendment SA 3464 submitted by Mr. THUNE (for himself and Mr. NELSON) to the bill H.R. 636, to amend the Internal Revenue Code of 1986 to permanently extend increased expensing limitations, and for other purposes; which was ordered to lie on the table; as follows:

At the end of subtitle A of title IV, insert the following:

SEC. 4118. SENSE OF CONGRESS ON THE NEXT GENERATION AIR TRANSPORTATION SYSTEM.

It is the sense of Congress that—

(1) the Next Generation Air Transportation System (known as ''NextGen'') could, if properly implemented, provide much needed modernization of air traffic technologies to meet the future needs of the national airspace;

(2) once fully implemented, advancements from implementation of the Next Generation Air Transportation System could result in billions of dollars of economic benefits to air carriers and the travel industry;

(3) the Next Generation Air Transportation System has the potential to improve air traffic management by—

(A) improving weather forecasting;

(B) enhancing safety;

(C) creating more flexible spacing and sequencing of aircraft;

(D) reducing air traffic separation; and

(E) reducing congestion;

(4) improvements to air traffic management through the implementation of the Next Generation Air Transportation System will provide benefits—

(A) to the flying public, such as reduced delays, reduced wait times, more direct flights, and an overall enhanced flying experience; and

(B) to commercial air carriers, such as fuel cost savings, lower operational costs, and improved customer satisfaction; and

(5) fully and swiftly implementing the Next Generation Air Transportation System should remain a top priority for the United States to maximize the efficiency of the airspace system of the United States, maintain a competitive advantage, and remain a global leader in aviation.

SA 3684. Mr. MCCONNELL (for Mr. CARPER (for himself and Mr. TILLIS)) proposed an amendment to the bill S. 2133, to improve Federal agency financial and administrative controls and procedures to assess and mitigate fraud risks, and to improve Federal agencies' development and use of data analytics for the purpose of identifying, preventing, and responding to fraud, including improper payments; as follows:

On page 5, line 24, strike ''and'' at the end.

On page 5, line 25, strike the period and insert ''; and''.

On page 5, after line 25, add the following:

(3) any other party determined to be appropriate by the Director of the Office of Management and Budget, which may include the Chief Information Officer, the Chief Procurement Officer, or the Chief Operating Officer of each agency.

AUTHORITY FOR COMMITTEES TO MEET

COMMITTEE ON ENERGY AND NATURAL RESOURCES

Mr. THUNE. Mr. President, I ask unanimous consent that the Committee on Energy and Natural Resources be authorized to meet during the session of the Senate on April 12, 2016, at 10 a.m., in room SD–366 of the Dirksen Senate Office Building.

The PRESIDING OFFICER. Without objection, it is so ordered.

COMMITTEE ON FINANCE

Mr. THUNE. Mr. President. I ask unanimous consent that the Committee on Finance be authorized to meet during the session of the Senate on April 12, 2016, at 10:15 a.m., in room SD–215 of the Dirksen Senate Office Building, to conduct a hearing entitled ''Cybersecurity and Protecting Taxpayer Information.''

The PRESIDING OFFICER. Without objection, it is so ordered.

COMMITTEE ON FOREIGN RELATIONS

Mr. THUNE. Mr. President, I ask unanimous consent that the Committee on Foreign Relations be authorized to meet during the session of the Senate on April 12, 2016, at 10 a.m., to conduct a hearing entitled ''The Spread of ISIS and Transitional Terrorism.''

The PRESIDING OFFICER. Without objection, it is so ordered.

COMMITTEE ON HEALTH, EDUCATION, LABOR, AND PENSIONS

Mr. THUNE. Mr. President, I ask unanimous consent that the Committee on Health, Education, Labor, and Pensions be authorized to meet during the session of the Senate, on April 12, 2016, at 10 a.m., in room SD–430 of the Dirksen Senate Office Building to conduct a hearing entitled ''ESSA Implementation in States and School Districts: Perspectives from the U.S. Secretary of Education.''

The PRESIDING OFFICER. Without objection, it is so ordered.

SELECT COMMITTEE ON INTELLIGENCE

Mr. THUNE. Mr. President, I ask unanimous consent that the Select Committee on Intelligence be authorized to meet during the session of the Senate on April 12, 2016, at 2:30 p.m., in room SH–219 of the Hart Senate Office Building.

The PRESIDING OFFICER. Without objection, it is so ordered.

SUBCOMMITTEE ON EMERGING THREATS AND CAPABILITIES

Mr. THUNE. Mr. President, I ask unanimous consent that the Subcommittee on Emerging Threats and Capabilities of the Committee on Armed Services be authorized to meet during the session of the Senate on April 12, 2016, at 2:30 p.m.

The PRESIDING OFFICER. Without objection, it is so ordered.

SUBCOMMITTEE ON FEDERAL SPENDING OVERSIGHT AND EMERGENCY MANAGEMENT

Mr. THUNE. Mr. President, I ask unanimous consent that the Subcommittee on Federal Spending Oversight and Emergency Management of the Committee on Homeland Security and Governmental Affairs be authorized to meet during the session of the Senate on April 12, 2016, at 3 p.m., to conduct a hearing entitled ''FEMA: Assessing Progress, Performance, and Preparedness.''

The PRESIDING OFFICER. Without objection, it is so ordered.

SUBCOMMITTEE ON READINESS AND MANAGEMENT SUPPORT

Mr. THUNE. Mr. President, I ask unanimous consent that the Subcommittee on Readiness and Management Support of the Committee on Armed Services be authorized to meet during the session of the Senate on April 12, 2016, at 2:30 p.m.

The PRESIDING OFFICER. Without objection, it is so ordered.

SUBCOMMITTEE ON REGULATORY AFFAIRS AND FEDERAL MANAGEMENT

Mr. THUNE. Mr. President, I ask unanimous consent that the Subcommittee on Regulatory Affairs and Federal Management of the Committee on Homeland Security and Governmental Affairs be authorized to meet during the session of the Senate on April 12, 2016, at 9 a.m., to conduct a hearing entitled, ''Improving the USAJOBS Website.''

The PRESIDING OFFICER. Without objection, it is so ordered.

SUBCOMMITTEE ON SUPERFUND, WASTE MANAGEMENT, AND REGULATORY OVERSIGHT

Mr. THUNE. Mr. President, I ask unanimous consent that the Subcommittee on Superfund, Waste Management, and Regulatory Oversight of the Committee on Environmental and Public Works be authorized to meet during the session of the Senate on April 12, 2016, at 2:30 p.m., in room SD–

406 of the Dirksen Senate Office Building, to conduct a hearing entitled, ''American Small Businesses Perspective on Environmental Protection Agency Regulatory Actions.''

The PRESIDING OFFICER. Without objection, it is so ordered.

FRAUD REDUCTION AND DATA ANALYTICS ACT of 2015

Mr. MCCONNELL. Mr. President, I ask unanimous consent that the Senate proceed to the immediate consideration of Calendar No. 391, S. 2133.

The PRESIDING OFFICER. The clerk will report the bill by title.

The senior assistant legislative clerk read as follows:

A bill (S. 2133) to improve Federal agency financial and administrative controls and procedures to assess and mitigate fraud risks, and to improve Federal agencies' development and use of data analytics for the purpose of identifying, preventing, and responding to fraud, including improper payments.

There being no objection, the Senate proceeded to consider the bill.

Mr. MCCONNELL. Mr. President, I ask unanimous consent that the Carper-Tillis amendment be agreed to; the bill, as amended, be read a third time and passed, and the motion to reconsider be considered made and laid upon the table with no intervening action or debate.

The PRESIDING OFFICER. Without objection, it is so ordered.

The amendment (No. 3684) was agreed to, as follows:

(Purpose: To improve the bill)

On page 5, line 24, strike ''and'' at the end.

On page 5, line 25, strike the period and insert ''; and''.

On page 5, after line 25, add the following:

(3) any other party determined to be appropriate by the Director of the Office of Management and Budget, which may include the Chief Information Officer, the Chief Procurement Officer, or the Chief Operating Officer of each agency.

The bill (S. 2133), as amended, was ordered to be engrossed for a third reading, was read the third time, and passed, as follows:

S. 2133

Be it enacted by the Senate and House of Representatives of the United States of America in Congress assembled,

SECTION 1. SHORT TITLE.

This Act may be cited as the ''Fraud Reduction and Data Analytics Act of 2015''.

SEC. 2. DEFINITIONS.

In this Act—

(1) the term ''agency'' has the meaning given the term in section 551 of title 5, United States Code; and

(2) the term ''improper payment'' has the meaning given the term in section 2(g) of the Improper Payments Information Act of 2002 (31 U.S.C. 3321 note).

SEC. 3. ESTABLISHMENT OF FINANCIAL AND ADMINISTRATIVE CONTROLS RELATING TO FRAUD AND IMPROPER PAYMENTS.

(a) GUIDELINES.—

(1) IN GENERAL.—Not later than 90 days after the date of enactment of this Act, the Director of the Office of Management and Budget, in consultation with the Comptroller General of the United States, shall establish guidelines for agencies to establish financial and administrative controls to identify and assess fraud risks and design and implement control activities in order to prevent, detect, and respond to fraud, including improper payments.

(2) CONTENTS.—The guidelines described in paragraph (1) shall incorporate the leading practices identified in the report published by the Government Accountability Office on July 28, 2015, entitled ''Framework for Managing Fraud Risks in Federal Programs''.

(3) MODIFICATION.—The Director of the Office of Management and Budget, in consultation with the Comptroller General of the United States, may periodically modify the guidelines described in paragraph (1) as the Director and Comptroller General may determine necessary.

(b) REQUIREMENTS FOR CONTROLS.—The financial and administrative controls required to be established by agencies under subsection (a) shall include—

(1) conducting an evaluation of fraud risks and using a risk-based approach to design and implement financial and administrative control activities to mitigate identified fraud risks;

(2) collecting and analyzing data from reporting mechanisms on detected fraud to monitor fraud trends and using that data and information to continuously improve fraud prevention controls; and

(3) using the results of monitoring, evaluation, audits, and investigations to improve fraud prevention, detection, and response.

(c) REPORTS.—

(1) IN GENERAL.—Except as provided in paragraph (2), for each of the first 3 fiscal years beginning after the date of enactment of this Act, each agency shall submit to Congress, as part of the annual financial report of the agency, a report on the progress of the agency in—

(A) implementing—

(i) the financial and administrative controls required to be established under subsection (a);

(ii) the fraud risk principle in the Standards for Internal Control in the Federal Government; and

(iii) Office of Management and Budget Circular A–123 with respect to the leading practices for managing fraud risk;

(B) identifying risks and vulnerabilities to fraud, including with respect to payroll, beneficiary payments, grants, large contracts, and purchase and travel cards; and

(C) establishing strategies, procedures, and other steps to curb fraud.

(2) FIRST REPORT.—If the date of enactment of this Act is less than 180 days before the date on which an agency is required to submit the annual financial report of the agency, the agency may submit the report required under paragraph (1) as part of the following annual financial report of the agency.

SEC. 4. WORKING GROUP.

(a) ESTABLISHMENT.—Not later than 180 days after the date of enactment of this Act, the Office of Management and Budget shall establish a working group to improve—

(1) the sharing of financial and administrative controls established under section 3(a) and other best practices and techniques for detecting, preventing, and responding to fraud, including improper payments; and

(2) the sharing and development of data analytics techniques.

(b) COMPOSITION.—The working group established under subsection (a) shall be composed of—

(1) the Controller of the Office of Management and Budget, who shall serve as Chairperson;

(2) the Chief Financial Officer of each agency; and

(3) any other party determined to be appropriate by the Director of the Office of Management and Budget, which may include the Chief Information Officer, the Chief Procurement Officer, or the Chief Operating Officer of each agency.

(c) CONSULTATION.—The working group established under subsection (a) shall consult with Offices of Inspectors General and Federal and non-Federal experts on fraud risk assessments, financial controls, and other relevant matters.

(d) MEETINGS.—The working group established under subsection (a) shall hold not fewer than 4 meetings per year.

(e) PLAN.—Not later than 270 days after the date of enactment of this Act, the working group established under subsection (a) shall submit to Congress a plan for the establishment and use of a Federal interagency library of data analytics and data sets, which can incorporate or improve upon existing Federal resources and capacities, for use by agencies and Offices of Inspectors General to facilitate the detection, prevention, and recovery of fraud, including improper payments.

ORDERS FOR WEDNESDAY, APRIL 13, 2016

Mr. MCCONNELL. Mr. President, I ask unanimous consent that when the Senate completes its business today, it adjourn until 9:30 a.m., Wednesday, April 13; that following the prayer and pledge, the morning hour be deemed expired, the Journal of proceedings be approved to date, and the time for the two leaders be reserved for their use later in the day; further, that following leader remarks, the Senate be in a period of morning business for 1 hour, with Senators permitted to speak therein for up to 10 minutes each; finally, that following morning business, the Senate resume consideration of H.R. 636.

The PRESIDING OFFICER. Without objection, it is so ordered.

ADJOURNMENT UNTIL 9:30 A.M. TOMORROW

Mr. MCCONNELL. Mr. President, if there is no further business to come before the Senate, I ask unanimous consent that it stand adjourned under the previous order.

There being no objection, the Senate, at 6:30 p.m., adjourned until Wednesday, April 13, 2016, at 9:30 a.m.

EXTENSIONS OF REMARKS

HONORING ANTWAN CLARK

HON. BENNIE G. THOMPSON

OF MISSISSIPPI

IN THE HOUSE OF REPRESENTATIVES

Tuesday, April 12, 2016

Mr. THOMPSON of Mississippi. Mr. Speaker, I rise today to honor a remarkable public servant, Mr. Antwan Clark.

Antwan Clark was born March 26, 1980 to the proud parents of Sylvester and Jeanette Clark of Lexington, Mississippi. He has two sisters, Kadisha and Abbie.

Antwan is the epitome of the phrase ''strength through adversity''. After being left paralyzed after a car accident during his junior year of high school, Antwan persevered. His determination to attain success motivated him to graduate from J.J. McClain High School in 1998 with honors. After graduating with honors from JJMHS, Antwan attended Holmes Community College and majored in Business and Office Technology. To continue pursuing his goals, he then enrolled in Antonelli College where he earned a degree in Computer Technical Support and Networking, maintaining a 3.9 grade-point average. In 2007, the Career College Association invited Antwan to Washington, D.C., where he was awarded for his achievements.

Antwan is currently employed by the Community Students Learning Center (CSLC) in Lexington, MS as an Information Technology Specialist and Website Developer. He also uses his knowledge and technical skills to tutor and teach computer classes at CSLC. Antwan also has a home-based computer repair business called ''Top Quality Computer Services'' located at 1131 Busy Bee Road, Lexington, MS 39095. His business specializes in issues regarding: computer repair, software applications, computer networking, virus/spyware removal, and website design.

Mr. Speaker, I ask my colleagues to join me in recognizing Mr. Antwan Clark for his dedication and support to the Holmes County Community.

RECOGNIZING BRANDON NORFOLK

HON. JASON SMITH

OF MISSOURI

IN THE HOUSE OF REPRESENTATIVES

Tuesday, April 12, 2016

Mr. SMITH of Missouri. Mr. Speaker, I rise today to honor Brandon Norfolk of Leadington, Missouri for earning the rank of Eagle Scout. The Eagle Scout Award is the highest honor attainable in Boy Scouts. Only a small percentage of scouts reach the level of Eagle Scout, which requires years of dedicated effort.

Community service, leadership, and family values are the most important aspects of scouting, and are essential to becoming an Eagle Scout. Brandon has embodied these principles as an active member of Scout Troop 423, serving the organization by holding numerous responsibilities and positions within the troop. He has been a Senior Patrol Leader, Assistant Junior Scout Master, and First Vice Chief of the Order of the Arrow, as well as a member of the Order's ceremonial team. In addition, he is a veteran camper, having attended a high adventure camp at the Florida Sea Base.

Brandon has also shown himself to be a proud American with great respect for our Armed Forces. For his Eagle Scout project, Brandon constructed a gazebo in the Park Hills Veteran's Park. The gazebo housed decorative metal signs that were colored differently to represent the emblems of the military branches. He has also volunteered to be a part of many Veterans of Foreign Wars flag retirements. Outside of scouting, Brandon is an active musician, participating in the marching band, concert band, and jazz band. He is also a member of the National Honors Society. After high school, Brandon plans to study criminal justice or conservation in hopes of one day becoming a Missouri Conservation Agent.

For these accomplishments and contributions to his community, it is my great pleasure to congratulate Brandon Norfolk on his achievement of becoming an Eagle Scout and recognize him before the U.S. House of Representatives.

HONORING LIEUTENANT LISA MALONEY

HON. MIKE THOMPSON

OF CALIFORNIA

IN THE HOUSE OF REPRESENTATIVES

Tuesday, April 12, 2016

Mr. THOMPSON of California. Mr. Speaker, I rise to recognize and honor Lieutenant Lisa Maloney, with the City of Martinez Police Department. Lieutenant Maloney honorably retired on December 30, 2015, after more than 22 years of service.

Lieutenant Maloney began her career in law enforcement in 1993 with the Fairfax City Police Department in Virginia. The Virginia Police Chiefs recognized Lieutenant Maloney in 1996 with the Lifesaving Award for her heroic actions during an incident while on duty, which put her in harm's way while attempting to save the life of another individual. After moving to California, Lieutenant Maloney joined the Martinez Police Department in 1998 as an officer. During the course of her career she has served on various assignments including Patrol Officer, Detective, Hostage Negotiator, Defensive Tactics Instructor, Detective Sergeant and Lieutenant.

Additionally, Lieutenant Maloney completed extensive training throughout her career, demonstrating her commitment to law enforcement. She attained certification in 2013 from the Sherman Block Supervisory Leadership Institute, an intense 8-month learning program based on experiential learning techniques covering leadership, management, and ethical decision making for law enforcement front-line supervisors. Her dedication to public safety and improving the lives of the men and women of her department speaks volumes about her character and professionalism.

Mr. Speaker, Lieutenant Lisa Maloney has protected her community for over 22 years in her remarkable career in law enforcement, and I wish her the best in retirement. The people of the City of Martinez have benefitted greatly from her public service, and it is fitting and proper that we honor her here today.

HONORING THE LIFE OF DAN SILVA

HON. JOHN GARAMENDI

OF CALIFORNIA

IN THE HOUSE OF REPRESENTATIVES

Tuesday, April 12, 2016

Mr. GARAMENDI. Mr. Speaker, I rise today to recognize and honor the life of Dan L. Silva, whose lifelong commitment to Sutter County has left a lasting impact on the community.

Born in Yuba City, Dan was a 3rd generation farmer and was a well-known figure within the agricultural community. He was an active community leader, who had a deep sense of civic duty. For 8 years, Dan served as Sutter County's 5th District County Supervisor and was involved with many boards and committees. He dedicated his career to serving others and was committed to protecting the environment through his various leadership roles on flood control, agriculture, and transportation projects.

The boards and committees Dan participated in included the following: Feather River Air Quality, Sacramento Area Council of Governments, Sacramento Area Flood Control, Sierra-Sacramento Valley EMS, Sutter-Butte Flood Control Agency, Yuba City Unified School Government Liaison Committee, Yuba-Sutter Transit Authority, Sutter County Fish and Game Commissioner, Assistant State Chairman for Ducks Unlimited, CA State Reclamation Board, Yuba-Sutter Farm Bureau, Valley Vision, and the Natomas Basin Conservancy.

Dan was known around the community for his welcoming smile and his dedication to helping others. He will be missed by all, and our thoughts are with his family at this time. He is survived by his children, Christopher and Stacey, and four grandchildren, Samantha, Jamie, Dylan, and Mason.

Dan's commitment to his family and to his work made his life an example for all to emulate. I am honored to pay tribute to such an extraordinary member of our community.

● This "bullet" symbol identifies statements or insertions which are not spoken by a Member of the Senate on the floor.

Matter set in this typeface indicates words inserted or appended, rather than spoken, by a Member of the House on the floor.

HONORING THE CAREER OF MR. KEN OSBORN

HON. DAVID SCHWEIKERT

OF ARIZONA

IN THE HOUSE OF REPRESENTATIVES

Tuesday, April 12, 2016

Mr. SCHWEIKERT. Mr. Speaker, I rise today to celebrate the retirement of Mr. Ken Osborn. During his 45 years at the Paradise Valley Country Club, Ken has provided joy and excellent service to the Paradise Valley community as the Valet Parking Supervisor. I am incredibly proud of the work and leadership Ken demonstrated over the past 45 years and I wish him the best of luck in his future endeavors.

HONORING CHAD HILDEBRANDT

HON. PAUL COOK

OF CALIFORNIA

IN THE HOUSE OF REPRESENTATIVES

Tuesday, April 12, 2016

Mr. COOK. Mr. Speaker, today I rise to honor a great Marine and a valuable asset to our civilian workforce. Since 2013, Chad Hildebrandt has been the Rail Operations Supervisor and subject matter expert on rail transportation for the Marine Corps Logistics Base—Barstow.

Not only has Chad overseen the rail, truck, and air shipments of equipment for rotational training units, he has improved efficiency and streamlined logistics for the Marine Corps, saving millions of dollars in transportation costs and directly contributing to increased military readiness. More importantly, he has taken the time to train the next generation of our military logisticians, developing over 500 Marines, soldiers, and civilians to follow his example at logistics bases worldwide.

Today, Chad will be named the 2015 Civilian Marine Logistician of the Year as the top civilian logistician in the nation. Later this year, Chad will also be named the Marine Corps Installations Command's Civilian of the Year, as the Marine Corps top civilian employee. This recognition is well deserved, as the Marines would be unable to do the training that they do without the extraordinary efforts from extraordinary people like Chad Hildebrandt. You make the 8th District proud, Chad. Semper Fi.

RECOGNIZING THE ROTARY CLUB OF COLONIAL PARK UPON THE CELEBRATION OF ITS 65TH ANNIVERSARY

HON. LOU BARLETTA

OF PENNSYLVANIA

IN THE HOUSE OF REPRESENTATIVES

Tuesday, April 12, 2016

Mr. BARLETTA. Mr. Speaker, it is my privilege to recognize the Rotary Club of Colonial Park in Harrisburg, Pennsylvania upon the celebration of its 65th Anniversary. My district has benefited tremendously from the humanitarian service of the club and continued community involvement of its members.

Representing Rotary International's motto, ''Service Above Self,'' the Colonial Park chapter contributes in the community, inspires in the workplace, and engages throughout the world. Members of the Rotary Club represent the community's professionals, and they continue to promote high ethical standards in all vocations. The men and women of the club are nonpolitical, nonreligious, and open to all cultures, races, and creeds—making their initiatives diverse and effective in elevating the community.

Through its fundraising efforts and the generosity of its members, the Rotary Club of Colonial Park contributes over $17,000 per year to community organizations, such as hospitals, fire companies, senior centers, and youth clubs. The Rotary Club created a foundation to help meet the educational, charitable, and benevolent needs of organizations in their local area, as well as in areas recently affected by disasters. Understanding the important role that education plays in fostering a prosperous future, both the Rotary Club and Foundation have contributed over $100,000 to scholarships for students attending Harrisburg Area Community College. Members have also served their community through the building and upkeep of Possibility Place Playground, installation of a beautiful clock in the town of St. Thomas to commemorate its 250th anniversary, and support of Shalom House in downtown Harrisburg. Cumulatively, these endeavors highlight the commitment to community building and fulfillment of duty that members of the club selflessly embody.

Mr. Speaker, the Rotary Club of Colonial Park is guided by core principles that resonate with each and every member. Their commitment to the community at large will continue to have profound effects in empowering those in need and enabling positive change. It is my honor to help celebrate the 65th Anniversary of the Rotary Club of Colonial Park, and I wish all members the best in their future proceedings.

HONORING MR. PETER WINDREM

HON. MIKE THOMPSON

OF CALIFORNIA

IN THE HOUSE OF REPRESENTATIVES

Tuesday, April 12, 2016

Mr. THOMPSON of California. Mr. Speaker, I rise today to honor Mr. Peter Windrem, who today retires after 45 years of practicing law in Lake County, California.

Throughout his career, Mr. Windrem mentored young lawyers and dedicated his time to supporting numerous community organizations. I wish him a happy retirement and hope he can spend more time with his wife, Kathleen Lyon Windrem; his children, Jessica and Matthew; and his grandchildren, Carson, Elliot, Ben, and Ellen.

Mr. Windrem graduated from Kelseyville High School and Raymond College at the University of the Pacific in California, before attending law school at the University of Virginia. After completing his law degree, Mr. Windrem served with the Peace Corps in Guatemala, reflecting his lifelong interest in community service.

An active citizen of Lake County, California, Mr. Windrem served as a key advisor to the Lake County Land Trust at the time of its formation in 1999, and continues to provide the group with advice and support to this day. He also participated in the successful campaign to designate the Berryessa Snow Mountain region as a national monument, and spearheaded the efforts to create Konocti County Park and hiking trails in Lake County.

For many years, Mr. Windrem has served on the Sutter Lakeside Hospital board and the board for People Services, Inc., a group that advocates for and provides services for disabled residents of Lake County. He is a founding member of many local organizations, including the Lake County Sierra Club, the Lake County Energy Council, and the Lake County Vintners.

Mr. Speaker, throughout his career, Mr. Windrem has generously offered his time and energy to support his mentees and staff, as well as the needs of Lake County residents. He contributed greatly to the legal community of California with his passion, high standards, and strong dedication to fairness. Therefore, it is fitting and proper that we honor him here today.

COMMEMORATING THE THIRTY-SEVENTH ANNIVERSARY OF THE TAIWAN RELATIONS ACT

HON. KURT SCHRADER

OF OREGON

IN THE HOUSE OF REPRESENTATIVES

Tuesday, April 12, 2016

Mr. SCHRADER. Mr. Speaker, I rise today to recognize the thirty-seventh anniversary of the Taiwan Relations Act. Congress enacted the TRA as a way to increase trade and investment opportunities with Taiwan while also strengthening regional security efforts. The TRA is the bedrock of our relationship with Taiwan and has served both countries well. Our friendship stretches back decades and remains as important as ever in these challenging times.

Having recently visited, I can attest to how special and close our two countries are. Nationally, Taiwan is our ninth largest trading partner. They are also our seventh largest source of international students; a group that contributed almost a billion dollars to the U.S. economy in 2014 alone. The impact to my home state Oregon is even larger. Taiwan is Oregon's sixth largest export market with over $1 billion in Oregon products annually. These numbers show how vital Taiwan is to the United States, especially given the importance of the Asia-Pacific region.

As that region of the world continues to grow, it is vital that we maintain our key relationships. The Congressional Taiwan Caucus recognizes the importance of this relationship and the need to continue to build upon the strong ties between our two countries. I am proud to join with over 200 members of the House as a part of that caucus. This bipartisan support is a testament to the strength of our friendship with Taiwan.

These facts help to show the importance of the U.S.-Taiwan friendship. I join with my colleagues to renew our support between the government and people of Taiwan. Let us always remember the strong bond between us and move towards another thirty-seven years of success.

HONORING HOSKINS LEARNING CENTER

HON. BENNIE G. THOMPSON

OF MISSISSIPPI

IN THE HOUSE OF REPRESENTATIVES

Tuesday, April 12, 2016

Mr. THOMPSON of Mississippi. Mr. Speaker, I rise today to honor the Hoskins Learning Center of Batesville, MS.

Mrs. Lillie L. Hoskins, a woman of favor and faith, is a native of Batesville. MS. She has been an educator and Daycare Provider for over 35 years and is currently the owner and operator of the Hoskins Learning Center.

She graduated from South Panola High School in 1973 and later obtained a secretarial degree from Northwest Community College. In 2000, she obtained State credentials as an Early Childhood Education Director.

Mrs. Hoskins was born into a family where she was rooted in her faith in Christ. She is the daughter of the late George and Audrey Leland and the youngest girl of eight (8) children, but even as a young girl she knew, she would someday spend her life working with children.

Mrs. Hoskins is the mother of two children, a daughter-in-law and has two grandchildren. Over the course of forty-two (42) years of marriage, Lawrence and Lillie have traveled and touched the lives of many people.

In 1979, Mrs. Hoskins prayed to God through faith and opened the first daycare, Magnolia Kindergarten, which she owned and operated until 2003. In 2003, she expanded her business to include infants and early toddlers. At this time she also changed the operating name to Hoskins Learning Center, as it is known today.

Mrs. Hoskins has touched the community and the lives of children in the city of Batesville in many ways, by opening her house and heart to train and tutor our children.

As owner and operator of Hoskins Learning Center, her goal has been to serve the children of Batesville and Panola County, preparing them all to be productive and responsible adults in a rapidly changing world. Since 1979, the daycare has had a 96 percent high school graduation rate, including several valedictorians, salutatorians and honor roll students, one of which went on to play football in the NFL.

For all of her outstanding accomplishments, Mrs. Hoskins is recognized as a trailblazer in Early Childhood Education, in the great State of Mississippi.

Mr. Speaker, I ask my colleagues to join me in recognizing Hoskins Learning Center for their commitment and dedication to the community.

UNION BAPTIST CHURCH

HON. BILL PASCRELL, JR.

OF NEW JERSEY

IN THE HOUSE OF REPRESENTATIVES

Tuesday, April 12, 2016

Mr. PASCRELL. Mr. Speaker, I would like to call to your attention the achievements of an outstanding faith community, the Union Baptist Church, who are celebrating their ministry's 80th Anniversary of successful service to the community of Passaic on Sunday, April 3, 2016.

Eighty years ago the Union Baptist Church was established through the Merger of two parishes in the city of Passaic NJ; the Ebenezer Baptist Church and Greater St. Paul Baptist Church on April 4, 1936. The combined Church membership was approximately 150 parishioners. The Church and its members worshipped Christ for 28 years at its 315 Oak Street and 30 Ann Street location. Due to an increase in membership the Union Baptist Church purchased 221 Myrtle Ave on September 27, 1964 and began to worship there.

The Union Baptist Church is located in a welcoming neighborhood. Current ministries within the church include traditional Sunday morning worship service, Bible study, Sunday school, voluntary work such as feeding the homeless on Saturday afternoons, Camp Union for the youth, and the services provided to the senior citizens. Union Baptist has always focused on spiritual leadership accompanied by a strong sense of commitment to community involvement. I know that their dedication will continue to grow.

In fact, the church has been an integral part of Passaic and the surrounding area for more than three quarters of a century. Its hallowed grounds have witnessed the miracle of newborn baptism, the holy matrimony of marriage as well as the somber rituals of burial. But most importantly, many lives have been changed by the people that have called the Church home since 1936. Indeed, the ministry has been a major part of the Passaic community and continues to serve all.

In this sense, the Union Baptist Church clergy and organizers have worked passionately to build many bridges between different groups within the faith community. At the forefront of this cause has been the church's many leaders throughout its history. The first among several leaders to grace the halls of the church was Reverend O.D. Henry—who served from 1936–1942.

His work undoubtedly laid a strong foundation for the others to follow, such as Reverend T.H. Alexander—who continued his predecessor's work until 1932. Reverend Ronald W. Johnson was the next to answer God's calling, and he devoted himself to the Union Baptist Church until 2010. Indeed, the Union Baptist Church has had many leaders throughout its years. Today, it is led by Reverend Kortney L. Haigler, who has inspired many to follow the path of faith and kindness.

It gives me pride to recognize the excellence of the Union Baptist Church, as well as a deep sense of satisfaction for their service to the residents of Passaic. I am grateful to represent the Church and its congregation within the 9th Congressional District of New Jersey.

The job of a United States Congressman involves much that is rewarding, yet nothing compares to recognizing and commemorating the achievements of faith communities such as the Union Baptist Church.

Mr. Speaker, I ask that you join our colleagues, and the Union Baptist Church in celebrating their 80th Anniversary and recognizing their leadership, dedication and loyalty to serving the community.

RECOGNIZING TRI COUNTY COMMUNITY ACTION ON ITS 50TH ANNIVERSARY

HON. LOU BARLETTA

OF PENNSYLVANIA

IN THE HOUSE OF REPRESENTATIVES

Tuesday, April 12, 2016

Mr. BARLETTA. Mr. Speaker, it is my honor to recognize Tri County Community Action (TCCA) upon the occasion of its 50th Anniversary. The organization's decades of committed service have brought awareness to the issue of poverty and helped lessen its impact in Pennsylvania. Helping families to identify and achieve economic self-sufficiency has enabled TCCA to increase the standards of living for my constituents in Cumberland, Dauphin, and Perry counties.

Founded in 1966 as a private, nonprofit, anti-poverty planning agency, TCCA has transformed into a dynamic organization with the mission of ''creating and maximizing the resources necessary for individuals and families to achieve self-sufficiency throughout a multi-county region.'' Over the course of the last 50 years, TCCA has evolved into a network of programs offering specialized assistance to at-risk youth, low income families, and poverty-stricken neighborhoods. Some of their services include providing credit counseling for families that are struggling financially, arranging self-sufficiency guidance, engaging with youth mentor programs, and leading neighborhood revitalization efforts. The organization strives to help those stricken by poverty and financial instability on an individual and family basis, with personalized action plans for socioeconomic advancement.

The lives of many in my district have been greatly improved by the work of TCCA since its inception 50 years ago. In 2014 alone, TCCA served 12,997 families representing 38,629 individuals across three counties. They have brought to light the root causes of poverty that otherwise may not have been exposed, and subsequently worked to empower members of our community to create better lives for themselves. Through strategic identification, TCCA works to empower existing community programs that can act as vessels for combating poverty and its consequences.

Mr. Speaker, I am proud to represent a district that is home to such an impactful, successful, and benevolent organization. I commend Tri County Community Action for its accomplishments in improving the lives of my constituents, family by family, and I wish them all of the best in their continued efforts. No one chooses to live in poverty, and the pathway out can be painfully difficult, but the good work of organizations like theirs help families grow and see possibility, where before there was only despair.

HONORING MS. GINNY CRAVEN

HON. MIKE THOMPSON

OF CALIFORNIA

IN THE HOUSE OF REPRESENTATIVES

Tuesday, April 12, 2016

Mr. THOMPSON of California. Mr. Speaker, I rise today to honor Ms. Ginny Craven, founder of Operation Tango Mike, for her ongoing support for veterans, active duty troops. and her Lake County, California community.

Ms. Craven's family has been in Lake County since the 1800's, and it's these strong Lake County roots that helped to form her impressive commitment to serving her neighbors. Ms. Craven is a retired Senior Deputy Probation Officer for Lake County, and for 14 years, she has served as a volunteer firefighter and Emergency Medical Technician with the Lucerne Fire Department.

Ms. Craven has a long history of ensuring service members, veterans and their families receive the care and services they need. For the past 13 years, she has led Operation Tango Mike, an all-volunteer non-profit organization that has sent over 16,000 care packages to troops serving overseas.

Locally, Ms. Craven serves as an honorary member on the United Veterans Council of Lake County, the Military Funeral Honors Team of Lake County, and the Pearl Harbor Survivors of Lake County. Ms. Craven serves as a liaison for local Gold Star families and Operation Homefront, and provides publicity, fundraising, and social media expertise for multiple veteran organizations. Furthermore, Ms. Craven has put her organizational talents and volunteer connections to work in California to assist her community during and after the Rocky and Valley Fires, coordinating with the U.S. Army to bring an engineer battalion to Lake County for flood prevention operations.

In recognition of her numerous contributions to her community, Ms. Craven was named as the 2007 Lake County Friend of the Veteran, the 2008 Stars of Lake County Woman of the Year, and the Grand Marshal of the Lake County Fair in 2011. For her contributions to the United States Army, Ms. Craven received the U.S. Army Freedom Team Salute in 2010, and for her dedication to community service, she received the Byron Whipple Award from the Lake County Association of Realtors in 2012.

Mr. Speaker, Ginny Craven has dedicated countless hours to improving the welfare of deployed troops, veterans, and her neighbors, and it is fitting and proper that we honor her here today.

HONORING HARRISON BEFFA

HON. JASON SMITH

OF MISSOURI

IN THE HOUSE OF REPRESENTATIVES

Tuesday, April 12, 2016

Mr. SMITH of Missouri. Mr. Speaker, I rise today to honor Harrison Beffa of Troop 586 from St. Louis, Missouri for earning the rank of Eagle Scout. The Eagle Scout Award is the highest honor attainable in Boy Scouts. Only a small percentage of Boy Scouts reach the level of Eagle Scout, which requires years of dedicated effort.

Community service, leadership, and family values are the most important aspects of scouting, and are essential to becoming an Eagle Scout. After overcoming a difficult battle with brain tumor, Harrison grew from this struggle into the exceptional young man he is today. He is a proud American, a helpful, honorable citizen, a strong Christian, and a leader by example.

A native of Hillsboro, MO, Harrison's Eagle Scout project involved building wagons for summer campers at Camp Rainbow, a foundation that provides camping experiences free of charge to children undergoing cancer treatment as well as to survivors. Throughout his career as a Boy Scout, Harrison has earned 25 merit badges, camped for over 76 nights, completed over 75 hours of community service, was elected into the Order of the Arrow, and served in a number of leadership roles such as Patrol Leader, Scribe, and Order of the Arrow Representative.

It is my great pleasure to congratulate Harrison Beffa on his accomplishment of becoming an Eagle Scout before the U.S. House of Representatives.

HONORING UPPER KUTZ BARBER & STYLE COLLEGE

HON. BENNIE G. THOMPSON

OF MISSISSIPPI

IN THE HOUSE OF REPRESENTATIVES

Tuesday, April 12, 2016

Mr. THOMPSON of Mississippi. Mr. Speaker, I rise today to honor a remarkable business, Upper Kutz Barber & Style College.

Upper Kutz Barber & Style College maintains the philosophy that their students come to them for; education, skill development, and career advancement. They believe in equal opportunity for all students, reinforced with training. Placement assistance has helped their students to become enterprising professionals.

The school has an orderly, purposeful, businesslike atmosphere which is free from threat of physical harm. The school climate is not oppressive and is conducive to teaching and learning. The school has an atmosphere of expatiation in which the staff believes and demonstrates that all students can attain mastery of the essential barber cultural skills and that they have the capability to help all students attain that mastery.

The mission of Upper Kutz Barber & Style College is to train men and women: (1) To familiarize and instruct students in the proper and most current methods in all phases of barbering; (2) To make a living in the business world; (3) To become good citizens on both local and national levels; (4) To be able to recognize problems and procedures in business and industry from the view-point of both producer and consumer; (5) To assist students in suitable job placement; (6) To provide assistance and counseling to graduates; (7) To develop self-discipline, self-reliance, and self-direction and; (8) To enter the national work force as productive individuals.

Furthermore, the school has at least 1200 square feet of floor space, composed of two separate areas: The classroom and lecture area and the clinical/lab area, where services are practiced on school patrons. The clinical area is equipped with at least 10 modern built in-stations, 10 mirrors, 10 hydraulic chairs, 3 sinks, 3 dryer chairs, a dispensing area, and a reception area. This salon environment prepares students for professional operation in the career field.

Mr. Speaker, I ask my colleagues to join me in recognizing Upper Kutz Barber & Style College for its dedication to serving and giving back to the community.

HONORING DANIEL H. LOPEZ

HON. MICHELLE LUJAN GRISHAM

OF NEW MEXICO

IN THE HOUSE OF REPRESENTATIVES

Tuesday, April 12, 2016

Ms. MICHELLE LUJAN GRISHAM of New Mexico. Mr. Speaker, I rise today to congratulate the President of New Mexico Institute of Mining and Technology (NM Tech), Dr. Daniel ''Dan'' H. Lopez, on his retirement after serving as President for the past 23 years. Dan is a leader in education and a dedicated public servant, whose contributions to our state will last generations.

Throughout his career, Dan made serving our state his priority. Before entering academia, Dan had a long and distinguished career in public policy. He served as the Secretary of Employment and Security from January 1983 to August 1984 where he worked diligently to reduce unemployment in our state. Next, Dan served as the Secretary of the Department of Finance and Administration until December 1986, where he oversaw all the cabinet agency budgets. From January 1987 through March 1993, he served as the Chief of Staff of the New Mexico State Senate Finance Committee.

In July 1993, Dan became the 16th President of the New Mexico Institute of Mining and Technology where he has served ever since. As President of a world class institution, he is responsible for overseeing roughly 2,000 students, more than 100 tenured faculty as well as 1,000 employees, and a yearly budget of approximately $170 million. Dan has worn this responsibility well and has served as President longer than any other President in NM Tech's history.

During his tenure, NM Tech's federal funding for research programs has grown from $20 million to over $123 million. Additionally, Dan secured $200 million for construction projects including the Altamirano Apartments and the Joseph A. Fidel Student Center, which will serve students for generations to come. Dan has also worked hard to recruit minority and female students to NM Tech. Before he became President, the school was only 10 percent Hispanic. Today, the Hispanic population has risen to 26 percent. Furthermore, over the past 20 years, NM Tech has witnessed a 33 percent increase in its female student population.

We need more leaders like Dan at our universities and colleges to educate and empower future leaders. John Steinbeck once said, ''I have come to believe that a great teacher is a great artist and that there are as few as there are any other great artists. Teaching might even be the greatest of the arts since the medium is the human mind and spirit.'' Without a doubt, Dan is such a teacher.

On June 30, 2016, Dan will retire after 23 years at the helm of NM Tech. Mr. Speaker, I wish Dan all the best in retirement and know that he will stay busy working hard to help others as he always has. Dan's dedication to his community and insistence on providing the best possible educational experience for his students is a manifestation of his outstanding character and desire to serve others. His accomplishments have touched thousands and will be felt for generations to come. Congratulations Dan.

RECOGNIZING DR. SEONG-HWAN KIM UPON THE OCCASION OF HIS RETIREMENT FROM THE PENNSYLVANIA DEPARTMENT OF AGRICULTURE

HON. LOU BARLETTA

OF PENNSYLVANIA

IN THE HOUSE OF REPRESENTATIVES

Tuesday, April 12, 2016

Mr. BARLETTA. Mr. Speaker, it is my honor to recognize Dr. Seong-Hwan Kim on the occasion of his retirement from the Pennsylvania Department of Agriculture after 43 years of dedicated service. Dr. Kim's countless contributions to preserving and fortifying the agriculture, landscape, and environment in my district and state have enabled all Pennsylvanians to enjoy a pristine natural landscape and reliable food supply for years to come. His selfless donation of time to students in my district has fostered excitement in education and laid the foundation for the next generation of scientific breakthroughs.

Dr. Kim has dedicated his life's work to botany and plant pathology, having started as a research assistant in 1965 performing fungicide evaluation at the University of Delaware. Since then, he has gone on to become an adjunct professor at The Pennsylvania State University where he works in the Department of Plant Pathology helping mold the next generation of great scientists. Dr. Kim's profound effects on the plant biology community have not gone without recognition. As a member of the American Phytopathological Society since 1965, he has received the Distinguished Service Award and held numerous advisory and chairmanship positions within the organization.

Beyond his formal positions in academia, Dr. Kim has always understood the value of community engagement. High school, undergraduate, and post-graduate students in Dauphin County have all benefited from his selfless role as a mentor and advisor in various fields of study. He has also served as an interpreter for hospitals, emergency responders, and international professional exchange programs over the years in my district and beyond. Whether volunteering in his local congregation or spending valuable time with his family, Dr. Kim's values and principles permeate all aspects of his life.

Mr. Speaker, it is my privilege to recognize Dr. Seong-Hwan Kim for his tireless dedication and scientific excellence with the Pennsylvania Department of Agriculture. Dr. Kim's career achievements have helped shaped regulatory plant pathology into a science-based discipline that forged the foundations of nationally and internationally recognized programs. It is with gratitude and appreciation that I recognize Dr. Kim on the occasion of his retirement and wish him all the best in his next endeavor.

HONORING MR. PATRICK GARCIA

HON. MIKE THOMPSON

OF CALIFORNIA

IN THE HOUSE OF REPRESENTATIVES

Tuesday, April 12, 2016

Mr. THOMPSON of California. Mr. Speaker, I rise today to honor Mr. Patrick Garcia, who has served the citizens of Sonoma County with distinction in various volunteer efforts since he moved to the county in 1971.

Every December, the town of Sonoma selects an Alcalde, or honorary mayor, for the year. For 2016, the city has chosen Mr. Garcia for his unfailing efforts to improve the lives of those around him, particularly those who are less fortunate. Mr. Garcia has a long list of achievements in the community. In 1972, just a year after moving to Sonoma County, he established a tutoring and mentoring program for the children of migrant farmworkers, which he operated out of an office at Sonoma State University.

Mr. Garcia also championed and helped establish a low-income housing project in Sonoma County in 1979 that was the first of its kind. The project was funded two years later by Burbank Housing, and in 1985 residents moved into 12 new homes. More recently, Mr. Garcia served as the director of the local State Historical Parks Association. He can also be found on occasion at the Basque Bakery, giving away free bread to those less fortunate in the community.

Throughout his life, Mr. Garcia has been known for aiming high and getting it done. These attributes, when paired with Mr. Garcia's passion for charity work, have made him a highly effective force for good in Sonoma County.

Mr. Garcia's charitable spirit, tireless attitude, and love for his community are all traits to be admired. Mr. Speaker, Patrick Garcia has served the Sonoma County community with dedication and compassion for over thirty years, and it is therefore fitting and proper that we honor him here today.

HONORING JANE GOLDEN

HON. MICHAEL G. FITZPATRICK

OF PENNSYLVANIA

IN THE HOUSE OF REPRESENTATIVES

Tuesday, April 12, 2016

Mr. FITZPATRICK. Mr. Speaker, in recognition of outstanding contributions to the arts, Jane Golden, founder and executive director of the City of Philadelphia's Mural Arts Program is this year's recipient of the Pearl S. Buck International 2016 Woman of Influence Award. Established in 1978, the award honors women who, like Pearl Buck, the Nobel and Pulitzer prize-winning author and humanitarian, distinguished themselves in their career, devotion to family and pursuit of humanitarian goals. Inspired by her example and direction, the city's Mural Arts Program created more than 3,800 works of public art through collaborations with community and city agencies, non-profit organizations, schools, the private sector and philanthropies. Known nationally and internationally as an expert on urban transportation through art, Jane Golden is recognized for overseeing award-winning public art projects. She developed innovative and rigorous programs in youth art, education, restorative justice and behavioral health that have made it possible for thousands to experience the power of art. Heartiest congratulations to Jane Golden upon receipt of this prestigious award and for a distinguished career and the creative vision and spirit that made it possible.

COMMEMORATING THE 100TH ANNIVERSARY OF THE ILLINOIS ASSOCIATION OF REALTORS

HON. DARIN LaHOOD

OF ILLINOIS

IN THE HOUSE OF REPRESENTATIVES

Tuesday, April 12, 2016

Mr. LAHOOD. Mr. Speaker, I would like to honor the Illinois Association of REALTORS on their 100-year anniversary of steadfast advocacy for the real estate industry and homeowners of Illinois.

The Illinois Association of REALTORS was founded in 1916 under the principle, as declared in their mission statement, ''To concern itself in all matters for the betterment and protection of real estate interests.'' Today, Illinois REALTORS has grown to become one of the largest trade associations in the state of Illinois representing more than 44,000 realtors. The association has significantly shaped the state's real estate industry with grassroots advocacy efforts such as the ''RVOICE'' program, fighting local mandates, and lobbying state legislative proposals that encourage and protect homeownership.

Their leadership and advocacy throughout Illinois has grown and become a model for other REALTOR associations in the country. Illinois REALTORS is the first to centralize the Local Governmental Affairs Director program under the state association providing professional development and resources to ensure statewide coverage. Among other accomplishments, Illinois REALTORS is credited with advocating for the first real estate license law that went into effect in 1922 and the Association continues to shape the law to best uphold industry professionalism.

The Illinois Association of REALTORS has become an important resource for realtors throughout the state of Illinois and the communities they serve. I extend my sincere congratulations to the Illinois Association of REALTORS for their outstanding accomplishments and contributions to Illinois. I hope the organization continues to grow and prosper for the next 100 years.

RECOGNIZING THE HONORABLE NORMAN MINETA, RECIPIENT OF THE TOMODACHI AWARD

HON. ADAM SMITH

OF WASHINGTON

IN THE HOUSE OF REPRESENTATIVES

Tuesday, April 12, 2016

Mr. SMITH of Washington. Mr. Speaker, I rise to honor Norman Mineta—former U.S. Secretary of Commerce and Transportation—for being honored with the prestigious Tomodachi Award from the Japanese Cultural and Community Center of Washington in recognition of his lifelong dedication to growing and supporting the Japanese-American community.

The Japanese word ''Tomodachi'' translates to ''friend'' in English, therefore it is fitting that the award seeks to recognize individuals or groups who have, through their work, demonstrated a commitment to celebrate Japanese and Japanese-American culture and to strengthen cultural ties between the United States and Japan.

The Honorable Norman Mineta has led a distinguished career in public service and is a fitting recipient of the Tomodachi Award. As a former Mayor of San Jose, California, he is recognized as the first Asian American mayor of a major U.S. city. Mr. Mineta was then elected to the United States House of Representatives, where he served from 1975 to 1995. During his time as a Congressman, he co-founded the Congressional Asian Pacific American Caucus and was the driving force behind the Civil Liberties Act of 1988, which formally apologized to the Japanese American community for the injustices committed during World War II.

In 2000, President Clinton appointed Mr. Mineta as the Secretary of Commerce, where he served until he was nominated by President George W. Bush to serve as the United States Secretary of Transportation. Not only is Mr. Mineta the first Asian American to hold a post in the presidential cabinet, but he is also one of only a few individuals to hold cabinet positions in both Republican and Democratic administrations.

As Secretary of Transportation, Mr. Mineta played a pivotal role during the chaos of the attacks on September 11, 2001. Without precedent, he made the decision to ground all civilian aircraft to ensure the safety of American lives. Following the attacks, Mr. Mineta was a major proponent of the creation of the Transportation Security Administration (TSA) and he fought against racial profiling and extra screening of Middle Eastern and Muslim passengers.

Mr. Speaker, it is with great honor that I recognize The Honorable Norman Mineta for his relentless dedication to public service and to strengthening Japanese American culture. He continues to play an active role in engaging the relationship between Japan and the United States and serves as an inspiration for all working in public service.

CELEBRATING MRS. KAREN HOOVER'S RETIREMENT FROM THE DISTRICT 18 VFW LADIES AUXILIARY

HON. LOU BARLETTA

OF PENNSYLVANIA

IN THE HOUSE OF REPRESENTATIVES

Tuesday, April 12, 2016

Mr. BARLETTA. Mr. Speaker, it is my honor to recognize Mrs. Karen Hoover on the occasion of her retirement from the District 18 VFW Ladies Auxiliary after 31 years of selfless service. Karen's countless contributions in my district and state reflect her dignity, honor, and dedication to improving her community and the lives of all Veterans of Foreign Wars.

Karen joined the VFW Ladies Auxiliary in 1985, under the eligibility of her father, who served in the Army during WWII, and subsequently became a life member in 1999. She was elected the Auxiliary President in 1988 and served a total of eight terms. Since 2000, Karen has served as a Senior Vice President, Junior Vice President, Secretary, and in her current role as Treasurer. Auxiliary chairmanship positions she has occupied include Americanism, Membership, Cancer, and Safety. Karen has also acted as the District 18 Chief of Staff, Color Bearer, Extensions Chairman, and Treasurer for the Voice of Democracy program.

Beyond her formal positions in the VFW, Karen has always understood the value of community engagement. She is a member of Saint Paul's Lutheran Church, the American Legion, Women of the Moose, Relay for Life Team, United Way Fundraising, and Valley Lanes Bowling League. Karen is a lifetime member of the National Home for Veterans Children and was a life member of the Scotland School for Veterans' Children until its closure in 2009. Additionally, Karen is a dedicated supporter of the Halifax Cat Rescue Association. Whether volunteering at the food stand during the Shippensburg Community Fair or spending valuable time with her family, Karen embodies the values and principles that are essential to the functioning of a productive community. Her retirement will be accompanied by quality time with her daughter Nicole, who is also an active member of the Auxiliary, her two stepsons, and three grandchildren.

Mr. Speaker, it is my privilege to recognize Mrs. Karen Hoover for her tireless dedication and excellence with the Millersburg VFW Ladies Auxiliary. Karen's career achievements have produced profound effects in our community and her example of selfless leadership will continue to inspire the next generation of Veterans' advocates. It is with gratitude and appreciation that I recognize Mrs. Hoover on the occasion of her retirement and wish her all the best in her next endeavor.

HONORING MR. PAUL F. WOXLAND

HON. KEITH ELLISON

OF MINNESOTA

IN THE HOUSE OF REPRESENTATIVES

Tuesday, April 12, 2016

Mr. ELLISON. Mr. Speaker, I rise today to honor Mr. Paul F. Woxland, and to recognize the nearly twenty-five years of service that he has given to our region as well as to the federal government in his work with the Department of Housing and Urban Development.

Mr. Woxland began his service with the Department of Housing and Urban Development in 1991. Paul would eventually assume the role of Director of the Minneapolis Multifamily Asset Management Division and Satellite Office Coordinator. In this role, Mr. Woxland was tasked with the ultimate responsibility for physical, managerial, and financial condition of every HUD property within the region.

Mr. Woxland has also been instrumental in the development and improvement of housing in Minnesota and in our neighboring state of Wisconsin. In this capacity, he has overseen thousands of housing developments, working diligently to provide all families with access to one of our most basic yet most needed resources, a safe space to call home. To that end, Mr. Woxland has had a direct hand in over one thousand affordable housing projects in Minnesota, and over eight hundred projects in Wisconsin. This staggering number of developments has had an immeasurable impact upon the health of the region, and in partnership has provided permanent housing to over fifteen thousand households.

Mr. Woxland's work with the Interagency Stabilization Group has shown the true level of his commitment to providing housing for very low income residents. Mr. Woxland, through this collaborative organization, has succeeded in not only preserving but stabilizing affordable housing in Minneapolis for thousands of low-income residents. Some notable developments this partnership has preserved are Ebenezer Tower, Cecil Newman Plaza, and Riverside Plaza, a local landmark that is honored in the National Register of Historic Places.

To his colleagues and staff, he is regarded as the leader of one of the most effective and efficient HUD offices in the nation. Mr. Woxland leaves a legacy at HUD of tireless commitment and of service to our most underprivileged. For that he deserves our gratitude. He also leaves a legacy of touching countless lives and fostering inclusive communities throughout the region.

HONORING THE LIFE AND LEGACY OF MR. JOSEPH SHER

HON. CEDRIC L. RICHMOND

OF LOUISIANA

IN THE HOUSE OF REPRESENTATIVES

Tuesday, April 12, 2016

Mr. RICHMOND. Mr. Speaker, I rise today to honor the life of Mr. Joseph Sher, who passed away on March 24, 2016 at the age of 100.

Mr. Sher was born into a family of six children on July 27, 1917 in Krzepice, Poland. During World War II, Mr. Sher was sent to a series of Nazi concentration camps, where he and other Jewish men were put to work building roads. Many members of the crew perished from disease or were shot dead by the guards. Mr. Sher and his two brothers survived the atrocities of Nazi Germany; however they lost their parents and three sisters in the Treblinka death camp. Mr. Sher married Rachel Israelowicz in 1941. Like Mr. Sher, Ms. Israelowicz survived a series of Nazi concentration camps. The two reconnected after the war when her husband found her working in a soup kitchen.

In 1949 Mr. Sher, a tailor by trade, was one of the first survivors of the Holocaust to reach New Orleans. He was part of the resettlement program offered by the United States for residents of Displaced Persons camps. He arrived with his wife and young son by ship at the Port of Embarkation, which happened to be on Poland Avenue in the 9th Ward.

After coming to New Orleans, Mr. Sher worked as a tailor. He worked eleven hours a day, six days a week at Harry Hyman Tailors. His clients included Elvis Presley, Fats Domino, Al Hirt, Chubby Checker and Chris Owens.

Mr. Sher spoke frequently about the Holocaust and his harrowing experiences as a slave laborer. Even though reliving the horror was excruciating, Mr. Sher said he kept doing it to fulfill this admonition from his mother: ''You should tell all the world what happened to us so that no one will ever forget.''

Mr. Sher's wife preceded him in death. His survivors include two sons, Martin Sher of Plano, Texas and Leopold Sher of New Orleans; and three grandchildren.

Mr. Speaker, I celebrate the life and legacy of Mr. Joseph Sher, a beloved husband, father, and son.

HONORING THE 50TH ANNIVERSARY OF THE GREAT LAKES CENTER

HON. BRIAN HIGGINS

OF NEW YORK

IN THE HOUSE OF REPRESENTATIVES

Tuesday, April 12, 2016

Mr. HIGGINS. Mr. Speaker, today I rise to recognize and honor the 50th anniversary of the Great Lakes Center (GLC). For more than half a century, the Great Lakes Center has worked to improve the quality of the environment by providing the best possible science to decision makers concerned with the health and sustainability of our freshwater resources, with a primary focus on the Great Lakes and their watersheds.

The Center was established in 1966 when Howard Sengbush formed the Great Lakes Laboratory. The Great Lakes Center's field station is located on SUNY Buffalo State's waterfront campus along the Black Rock Channel. It is a multidisciplinary research, education, and service institute focused on advancing our knowledge and understanding of the largest body of freshwater on Earth.

The Great Lakes Center is the only institution within the SUNY system with a research field station physically situated along the water. The Center maintains a large fleet of research vessels dedicated to specific types of research and educational functions.

Over the last eight years under the Direction of Sasha Karatayev, the GLC saw sustained activity and productivity: over 80 research papers published, 240 presentations given at various state, national, and international meetings and 35 funded projects totaling over 14 million dollars. This living laboratory dedicated to the investigation of the ecology of the Great Lakes and its tributaries is staffed by research scientists, educators, technicians and professors with the Biology department. The Center provides opportunities to obtain Masters of Arts and Masters of Science degrees in Great Lakes Ecosystem Science.

The Great Lakes ecosystem is complex, dynamic, and fragile. The work conducted at the GLC informs policy makers, educators, community leaders, and environmentalists—and contributes toward effective stewardship and decision-making. As part of the Great Lakes Observing System, the GLC operates the only operating observation buoy in eastern Lake Erie. The GLC continuously works to reverse the damage of decades of abuse neglect of the Great Lakes. The Center continues to explore opportunities to expand its educational programs within the regional community.

In February of this year, I was proud to speak on the House Floor during Great Lakes Day to demonstrate the importance of Congress to continue to fund the Great Lakes Restoration Initiative (GLRI). Since the creation of the Great Lakes Restoration Initiative in 2010, nearly $1.6 billion has been invested in projects to clean up the Great Lakes, the world's largest freshwater system. Locally, the Great Lakes Restoration Initiative supports a number of initiatives including the restoration of the Buffalo River.

Mr. Speaker, thank you for allowing me this opportunity to once again speak about the Great Lakes with pride in this visionary, vitally important and internationally renowned center whose home base is my alma mater, Buffalo State College as its Gold Anniversary will be celebrated on April 15, 2016. Congratulations and deepest appreciation to all those who contributed to the past and present of this Center as the preservation, protection and promotion of the Great Lakes is of immeasurable importance to our future.

THANKING LANICE LAWSON FOR HER HUMANITY AND TENACITY

HON. DANIEL T. KILDEE

OF MICHIGAN

IN THE HOUSE OF REPRESENTATIVES

Tuesday, April 12, 2016

Mr. KILDEE. Mr. Speaker, I ask the United States House of Representatives to join me in recognizing Ms. Lanice Lawson for the support she has offered to the city of Flint and its residents during the Flint Water Crisis.

With nearly 15 years of experience in the nursing field as an RN, Ms. Lawson knew all too well the devastating effects of lead in the body. Although no longer a resident of Flint herself, she empathized with the struggles of those affected by the water crisis specifically the children. Out of concern for these children, she organized the Bottles for Babies initiative.

Ms. Lawson's original intent was to supply the school children of Flint with clean drinking water. The water in the Flint community schools had been completely shut off and the children were expected to bring their own bottled water to school each day. With the need for clean water being so great across the city, Bottles for Babies was later extended to include consistent home deliveries to the elderly and physically handicapped.

To date over $65,000 has been raised by the Bottles for Babies GoFundMe fundraiser and over a quarter of a million bottles of water have been delivered to Flint residents. This is the type of direct support the people of Flint need. The type of support the city of Flint is still not receiving from its own State government.

Mr. Speaker, I applaud the work done by Ms. Lanice Lawson and thank her for the service she has provided to the city of Flint.

HONORING JOE BORELLI

HON. DANIEL M. DONOVAN, JR.

OF NEW YORK

IN THE HOUSE OF REPRESENTATIVES

Tuesday, April 12, 2016

Mr. DONOVAN. Mr. Speaker, I rise today to honor Staten Island resident Joe Borelli's dedication and leadership in serving the 51st Council District and the South Shore of Staten Island.

Born in Staten Island, Joe has always been very active in his community. He has been involved in the Staten Island Growth Management Task Force, the West Shore Light Rail Task Force, the Brookfield Landfill Citizens Advisory Committee, and helped spearhead the formation of the South Shore Local Development Corporation. Additionally, Joe was one of the key leaders in the successful fight to eradicate polychlorinated biphenyls (PCBs) from public school buildings. Joe has consistently proven himself to be a leader in the movement to reduce taxes, tolls, and fees in New York City.

As a volunteer, Joe currently serves on the Development Board of St. Joseph by the Sea High School, as well as the Friends of the College of Staten Island, an organization that raises money for scholarships. Additionally, Joe assists dozens of non-profit, veteran's, and community organizations in accessing governmental grants. Joe has also helped raise private money for equipment to support handicapped Children at Mount Loretto, and has worked with the Verdino Foundation to bring a top quality Little League facility to the South Shore.

As an elected official, Joe previously represented his South Shore constituents in the New York State Assembly. He was the ranking minority member of the Assembly Cities Committee, and he also served on the Health, the Housing, the Transportation, the Mental Health, Banks, Education, and Energy Committees. From his time in the State Assembly to his current role as a city councilman, Joe has consistently been a staunch advocate against energy cost increases, as well as the common core curriculum.

Mr. Speaker, Joe Borelli has a remarkable history of dedication to serving the people of Staten Island. I thank him for all of his great work and I am proud to honor this great man who has consistently put others before himself, and continues to be such a positive influence on our communities.

HONORING DR. RUBEN ARMIÑANA

HON. MIKE THOMPSON

OF CALIFORNIA

IN THE HOUSE OF REPRESENTATIVES

Tuesday, April 12, 2016

Mr. THOMPSON of California. Mr. Speaker, I, along with Representative HUFFMAN, rise to honor Dr. Ruben Armiñana as he prepares to retire after serving as the president of Sonoma State University for over two decades. We wish Dr. Armiñana and his wife, Marne Olson, a happy retirement with time to spend with their children and grandchildren.

Born in Cuba, Dr. Armiñana came to the United States as a child with the American-sponsored Operation Peter Pan, and settled in Texas with his aunt and uncle. He earned his Associates Degree from Hill Junior College in Texas, before going on to complete his B.A. and M.A. at the University of Texas at Austin. After completing his Ph.D. in Political Science at the University of New Orleans, he joined Tulane University's administration. While living in New Orleans, Dr. Armiñana also worked as a news anchor and consultant for a Spanish-language news program. Dr. Armiñana's career in education brought him to California in 1988, and, in 1992, Dr. Armiñana was appointed President of Sonoma State University.

While California State University presidents serve five years on average, Dr. Armiñana has served Sonoma State University for 24 years—an impressive tenure in which he has supported great developments for the university. While serving as President, Dr. Armiñana oversaw the expansion of the school's curriculum and student body, making Sonoma State University one of the most sought-out campuses in the California State University system.

Dr. Armiñana's work also led to many additions to the campus during his tenure. The Environmental Technology Center, completed in

2001, used sustainable materials and building techniques and serves as a model for innovative architecture. To accommodate a growing student body, Sonoma State University doubled the capacity of residential housing, offering students diverse housing options. Through Dr. Armiñana's vision, the University opened the Donald & Maureen Green Music Center and its acoustically-perfect Joan and Sanford I. Weill Hall.

An enthusiastic community servant, Dr. Armiñana shares his educational expertise by serving on the North Bay Leadership Council and the Corporation for Education Network Initiatives in California, and maintains memberships in the Hispanic Association of College and Universities and the Santa Rosa Chamber Business Education Leaders Committee. Dr. Armiñana has championed Sonoma State University's commitment to diversity with the President's Diversity Council, and established the successful Osher Lifelong Learning Institute to expand services for students over the age of 50.

Mr. Speaker, Dr. Armiñana has dedicated over two decades to ensuring the success of Sonoma State University. Therefore, it is fitting and proper that we honor him here today.

HONORING WHITE'S CHAPEL M. B. CHURCH

HON. BENNIE G. THOMPSON

OF MISSISSIPPI

IN THE HOUSE OF REPRESENTATIVES

Tuesday, April 12, 2016

Mr. THOMPSON of Mississippi. Mr. Speaker, I rise today to honor White's Chapel M. B. Church, Jackson, Mississippi.

The White's Chapel Missionary Baptist Church was organized under the pastorage of Rev. D. J. White, in the home of sister Julia Taylor located at 734 South West Street in the year 1920. The officers were: Bros. Smith, Belt, Jones, Johnson, Outlaw, Jackson, Taylor and Carter. The mothers board was composed of the following members: Sis Julia Taylor, Sis Viola Taylor and Sis Viola Ward. After four years of hard work, by a group of dedicated members, their dream to build a church became a reality. After the resignation of Rev. White, Rev. Grove served until Rev. Caesar was called.

In 1934, Rev. R. W. C. Smith was called to pastor the White's Chapel Church and served for 36 loyal years. The following officers served under Rev. Smith's leadership: Brothers Seaton, Sparkman, Nelson, Sutton, Shear, Dorsey and Williams. Rev. Smith gave his all to pastoring the church.

After the passing of Rev. R. W. Smith in 1970, Rev. James A. Washington, Sr., was called to pastor the church in the year 1971. Under his pastorship and God's divine leadership the church grew bountifully. While he pastored, members of the Deacon and Trustee Board included: Deacon Shears, Dorsey, Williams, Caston, Jennings, Mix and Trustee Robert Morris.

Under the pastorship of Rev. James A. Washington, they were blessed to have moved from 728 South West Street to their present location, where they have been for the past three years.

Rev. Washington resigned in December of 1982. After weeks of prayers the Lord saw fit to send to them in February of 1983, the Rev. Nathanial V. Booker, a great Pastor and Leader. Under his leadership present members of the Deacon Board include: Deacon Hillman Shears, Robert Dorsey, Lewis Williams, Tillman Caston, Charlie Jennings, and Ronnie Mix.

Mr. Speaker, I ask my colleagues to join me in recognizing White's Chapel M. B. Church.

RECOGNIZING CLIFFORD AND ERMA CAMPBELL

HON. JASON SMITH

OF MISSOURI

IN THE HOUSE OF REPRESENTATIVES

Tuesday, April 12, 2016

Mr. SMITH of Missouri. Mr. Speaker, I rise today to congratulate Clifford and Erma Campbell of Bucyrus, Missouri on receiving this year's Century Farm Award. Receiving this honor is no easy task, and the Campbells have exemplified hard work, perseverance, and dedication to the community throughout their lives. The farm was originally owned by Clifford's grandparents, Edward and Ethel Campbell. The farm was purchased in 1910 and has been in the family for 106 years.

Qualifying to be a Century Farm is a great feat. The farm must be in the same family for at least 100 consecutive years and the original tract of land has to be more than 40 acres. These farms represent an important part of American heritage, feeding generations upon generations and greatly improving the quality of life of Missourians. Their integrity and determination serve as an example of the great work that farmers do for our country.

I applaud the hard work and achievements of the Campbells and look forward to seeing what they accomplish in the future. It is my pleasure to recognize the Campbell family before the House of Representatives.

RECOGNIZING NICKI GROSSMAN ON HER RETIREMENT

HON. LOIS FRANKEL

OF FLORIDA

IN THE HOUSE OF REPRESENTATIVES

Tuesday, April 12, 2016

Ms. FRANKEL of Florida. Mr. Speaker, I rise today to recognize the retirement of a woman whose work has greatly benefited the South Florida community. Nicki E. Grossman served for 21 years as the head of the Greater Fort Lauderdale Convention and Visitors Bureau and, before that, served as a commissioner to both the Broward County and Hollywood Commissions.

During her tenure at the Convention and Visitors Bureau, the Broward County hospitality industry grew to employ more than 168,000 people and in 2015 generated $14.1 billion in revenue with over 15 million visitors.

Under her leadership, the tourism bureau won accolades for its innovative marketing campaigns and efforts to attract LGBTQ visitors. Nicki personally received awards recognizing her outstanding work in the tourism industry and her commitment to diversity.

In honor of her retirement and years of service to her community, I am pleased to recognize Nicki Grossman and wish her the best in her future endeavors.

HONOR FLIGHT OF NORTHERN COLORADO

HON. KEN BUCK

OF COLORADO

IN THE HOUSE OF REPRESENTATIVES

Tuesday, April 12, 2016

Mr. BUCK. Mr. Speaker, in honor of America's heroic veterans, the Honor Flight Network conducts a twice annual Honor Flight ceremony to Washington D.C. in order to give our nation's heroes a day to visit and reflect at their war memorials. I am pleased to recognize that an Honor Flight took place on September 13, 2015 to honor the World War II, Korean War, and Vietnam War veterans of Northern Colorado.

Honor Flight Northern Colorado was founded in 2008 by retired Army Colonel Stan Cass, and recently held its 15th Honor Flight. Honor Flight Northern Colorado shares the Honor Flight Network's philosophy that America felt it was important to honor our veterans with dedicated memorials, and it should be equally important that these courageous veterans experience their memorial in person. We honor the brave men and women who were willing to lay down their lives in service to America, and Honor Flight Northern Colorado is part of that ongoing effort.

Mr. Speaker, those who participated in this flight are as follows:

From World War II: Paul Bechthold, Floyd Cooper, Raymond Ernest, Charles Hoelscher, Joseph Isley, Carl Johnson, Frederick Kaehler, Rex McFadden, Allan Meenen, William Ramsey, Donald Stephens, John Ulvang, Ceylon Weller.

From the Korean War: Robert Ault, Adolfo Benavides, Henry Bjorklund, Edwin Bowker, Albert Cain, Kenneth Creamer, Robert Crouch, Gerald Donnelly, Robert Eckhardt, Gary Eyre, William Ferguson, Elmer Fortin, Glen Geilenkirchen, James Gribben, Kent Grimsley, Walter Harris, Warren Hawkins, Carl Heufel, Eugene Hitchman, Neil Hoffman, Frank Hummel, Harold Jochum, Eldon Johnson, Roy Johnson, Michael Kennedy, Jimmie Kramer, Burman Lorenson, Robert McCauley, Gerald Meis, Robert Plick, Donald Reininger, Earl Reynolds, William Richardson, Royal Ryser, Merle Sapp, Raymond Schmitz, Ralph Sherman, Ned Steel, Vernon Sterkel, Richard Vandewalker, Richard Weinmeister, Donald Wiseman, Paul Zimmerman.

From the Vietnam War: Walter Amack, Ernest Anderson, Bruce Avery, Allen Brink, Wayne Burris, Gary Cain, James Christopher, Richard Cobb, Harold Colaizzi, Harold Collins, William Deivert, Russell Emmons, Michael Ferrell, Osia Fox, Robert Goodwin, Jerald Gossel, Josef Gruenwald, David Hallahan, Charles Ham, Calvin Hamilton, Jr., Arnold Hart, Leland Haskell, Charles Hixon, Michael Jacomet, Dale Jenkins, Doyle Jenkins, Jimmie Johnston, Patrick Kistler, Edward Lobb, Danny Lynn, Thomas Marlo, Manuel Martinez, John McCarthy, Edward Meikel, Marilyn Miyaima, Royce Modisette, Stephen Mulvihill, Charles Munroe, Rueben Olivas, Jr., Edward Olson, Ralph Otte, Stephen Pangrac, Jerry Park, Linda Plick, Thomas Pusel, Phillip Rangel, William Rhodes, John Robley, Rodney Rodriguez, Christopher Romero, Rueben Sanchez, Kenneth Sheppard, Wayne Shortridge, Walter Silva, Dennis Sindelir, James Spears, Thomas Steinbach, Robert Stolz, David Stout, Raymond Stroot, Floyd Taladay, Dennis Teter,

Larry Uhlenkott, Robert Wheeler, Everett Winkler, William Vick, Merle Wood.

It is my distinct pleasure as the U.S. Representative of the 4th District of Colorado, to recognize the honor, courage, and sacrifice of these heroes, along with all members of America's Armed Forces. I thank them for their dedication and service to this nation.

DELANO STUDENTS MAKING A NATIONAL MARK

HON. TOM EMMER

OF MINNESOTA

IN THE HOUSE OF REPRESENTATIVES

Tuesday, April 12, 2016

Mr. EMMER of Minnesota. Mr. Speaker, I rise today to celebrate Gretchen Ness, Naomi Thoelke and Liliana Schroedl, all students from Delano, Minnesota who have received national recognition for producing a documentary on water pollution.

These incredible seventh grade students entered their documentary into C-SPAN's national StudentCam competition, which is meant to highlight issues students hope to see the candidates discuss during the Presidential election.

All of the girls are pet owners and thought of this project because they were deeply concerned with how water pollution negatively affects animals and the environment. Among the thousands of documentaries that were submitted, their documentary was one of fifty chosen for a prize—true testimony to a job well done.

I thank Gretchen, Naomi, and Liliana for taking an interest in our country and the environment. Our students are the future of this nation, and these three young girls make me believe that the future of this nation is a bright one.

HONORING JERRY M. JUDIN

HON. DANIEL M. DONOVAN, JR.

OF NEW YORK

IN THE HOUSE OF REPRESENTATIVES

Tuesday, April 12, 2016

Mr. DONOVAN. Mr. Speaker, I rise today to honor former Staten Island resident Jerry Judin's endless commitment to legal service in the public interest.

Jerry's career as a public servant began as a Ranger for the National Park Service assigned to Liberty Island and the Statue of Liberty. After a short stint serving the public safety as an Air Traffic Controller, Jerry returned to school, attending night classes at Brooklyn Law School. Following law school, Jerry spent two years working for the Richmond County Family Court, before transferring to the Richmond County Surrogate's Court in 1982.

For the last 34 years, Jerry has been a fixture in the Surrogate's Court, and in April of 2006 he was made the first ever Supervising Court Attorney in the Surrogate's Court. As he approaches retirement, he caps his career having served three Surrogates, the people of Staten Island, and the attorneys of Staten Island for a total of 36 years. He has served his community by lecturing before civic organizations on Staten Island, and the Richmond County Bar Association. He has taught Business Law at the College of Staten Island, as well as at Rutgers, while also serving on the Board of Directors of Meals on Wheels of Staten Island.

Mr. Speaker, it is right and proper that we recognize Jerry Judin's dedication to serving his community and the legal profession. I thank him for all of his great work and I am proud to honor this great man who has consistently put others before himself.

HONORING EYESHINE CREATIVE ARTS COMPANY

HON. BENNIE G. THOMPSON

OF MISSISSIPPI

IN THE HOUSE OF REPRESENTATIVES

Tuesday, April 12, 2016

Mr. THOMPSON of Mississippi. Mr. Speaker, I rise today to honor a remarkable minority business, EyeShine Creative Arts Company of Clinton, Mississippi and the great leadership it is under.

EyeShine Creative Arts Company is a locally owned and operated Christian faith-based dance company and ministry that provide quality education and training for multiple dance disciplines. ECAC serves as a conduit to stage productions, TV commercials, dance competitions, and other events that allow dancers to showcase their God-given talents. EyeShine offers workshops, after school programs, Spring and Summer camps, and fitness focus classes-''Fit to Dance'', that broaden the creative experiences of dancers while developing levels of competence and confidence. The goal is not only to provide quality dance education, but also to educate, empower, and inspire the minds of students in a Christian environment.

Shawuanna, the founder of EyeShine Creative Arts Company, started her dance journey at the age of 4 years old. By age 6, she was performing with the ''Eye of the Tiger'' dance company founded and produced by Beverly Branson and her sister, a stage and television actress, Dr. Tonea Stewart. Shawuanna began performing in stage productions by the age of 7. In 1985, she was selected for the Academic and Performing Arts Complex (APAC) program, where she studied ballet, modem, and jazz at Ballet Mississippi. After experiencing traumatic situations as a teenager, Shawuanna turned to dance as a creative outlet and spiritual solace. She decided to focus on becoming a more diversified dance artist, expanding her studies from acrobatic creative dance, to more contemporary dance styles, such as: jazz, hip hop, Middle Eastern, and inspirational.

In 2004, Shawuanna relocated to Atlanta, Georgia and began working within the burgeoning entertainment industry, working with various, well-known R&B and Hip Hop artists throughout the metro Atlanta area. It was in Atlanta where she began to hone her craft as a choreographer and develop essential relationships and knowledge of the dance & entertainment industry. Inspired by FAITH and always the artist and educator at heart, in 2010, Shawuanna founded Eyeshine Creative Arts Company.

Today, in addition to operating EyeShine Creative Arts Company and non-profit organization, EyeShine Inc., Shawuanna, choreographs and ministers with the National Baptist Convention, Inc. USA dance ministry, ministers to General Missionary Baptist State Convention of Mississippi, instructs dance for Fairview Learning Academy, Agape' Phaze II Academy, Girl Scouts of Greater MS. She also choreographs and ministers for church home, Grace Inspirations, various community events, and conferences locally and throughout the southeastern region.

Mr. Speaker, I ask my colleagues to join me in recognizing EyeShine Creative Arts Company for its dedication to serving our great state of Mississippi and our country.

RECOGNIZING USNS ''BRUNSWICK'' AND BRUNSWICK, GEORGIA'S INVOLVEMENT DURING WORLD WAR II

HON. EARL L. "BUDDY" CARTER

OF GEORGIA

IN THE HOUSE OF REPRESENTATIVES

Tuesday, April 12, 2016

Mr. CARTER of Georgia. Mr. Speaker, I rise today to recognize Brunswick, Georgia's involvement in the United States' World War II effort and, in turn, the newly commissioned United States Naval Ship (USNS) *Brunswick*.

Soon after the United States' entrance into World War II, German U-Boats began to sink American cargo ships at an unprecedented rate—stalling America's war machine and creating a severe crisis for American ships at sea.

In 1942, to curtail the crisis, Vice Admiral Emory S. ''Jerry'' Land contacted the J.A. Jones Construction Company of Brunswick, Georgia, with a request to build the fastest cargo ships of the time. Although J.A. Jones was a ''building'' contractor company with no previous experience in building sea-going vessels, J.A. Jones unbelievably met the challenge.

The company produced 99 ships in 2 years. In December 1944, the U.S. Navy requested 6 ships built that month and J.A. Jones responded by building 7. The J.A. Jones employees even worked through Christmas Day and denied receiving a payment for the extra ship they built.

I rise today to recognize these brave men and women from Brunswick, Georgia, who kept America's war machine running through World War II as well as the USNS *Brunswick*, which was named in honor of the men and women of Brunswick's effort during the war. I wish the sailors of the USNS *Brunswick* the best in living up to the name of their ship.

TRIBUTE TO MR. ART PING LEE FOR HIS CONTRIBUTIONS TO THE ASIAN-AMERICAN COMMUNITY

HON. CHRIS VAN HOLLEN

OF MARYLAND

IN THE HOUSE OF REPRESENTATIVES

Tuesday, April 12, 2016

Mr. VAN HOLLEN. Mr. Speaker, I rise today to honor Mr. Art Ping Lee on his outstanding contributions to Chinese communities throughout the United States and his leadership in the Washington, D.C. metropolitan area.

Mr. Lee immigrated to the United States from the Guangdong Province of the Republic

of China in 1936. He saw the toll that World War II took on Chinese citizens in the United States who were prevented from being reunited with their families due to U.S. immigration laws and immigrant quota restrictions. As a founding member of the National Chinese Welfare Council in 1957, he campaigned vigorously for the lifting of limitations on immigration quotas. As a result, 40,000 Chinese immigrants were allowed to enter the U.S. every year. Mr. Lee has also worked tirelessly to enhance and strengthen the important relationship between the United States and the Republic of China (Taiwan).

Mr. Lee, who celebrates his 102nd birthday this year, continues to be an active member of the community. He is a Senior Advisor to the Overseas Community Affairs Council of the Republic of China (Taiwan), which is a cultural, educational, economic and informational exchange organization between Taiwan and overseas communities. He is also an Honorary Elder of the Chinese Consolidated Benevolent Association of Washington, DC and an Honorary Elder to The Lee Family Association in the United States.

Mr. Lee has been recognized for his work as the recipient of the Kuomintang Cathy Medal and the Hua Kuang Medal, First Class, which is awarded by the government of the Republic of China (Taiwan) to Chinese who have made special contributions in overseas Chinese affairs.

I urge my colleagues to join me in recognizing Mr. Art Ping Lee on his service to Chinese communities across the United States. His efforts have made a difference to countless people and I am grateful to him for his service to others.

HONORING MR. MIKE VOORHEES

HON. MIKE THOMPSON

OF CALIFORNIA

IN THE HOUSE OF REPRESENTATIVES

Tuesday, April 12, 2016

Mr. THOMPSON of California. Mr. Speaker, I rise today to recognize and honor Mr. Mike Voorhees, of Sonoma County, California, who is retiring after forty-one years of work with the Sonoma County Sheriff's Department.

Mr. Voorhees has worked in public service for his entire career. While spending thirteen years on the bench as Judge Pro Tem for the Sonoma County Superior Court, he also served as Chairman of the Board and Chief Executive Officer of the California Reserve Peace Officers Association. He spent the last eleven years working as Chief Financial Officer of the Sonoma County Reserve Deputies Association. Mr. Voorhees attained the rank of reserve captain in the Sonoma County Sheriff's Department in 1993, and has held that position ever since.

Mr. Voorhees has received many commendations for his work throughout his career. He was selected as the California Reserve Peace Officers Association 2004 Reserve Peace Officer of the Year, received the Sonoma County Sheriff's Distinguished Service Award in 2003, and earned an Award of Merit from the Santa Rosa Police Department in 2000. Mr. Voorhees has spent four decades volunteering his time, effort and resources to keeping the people of Sonoma County safe, and his commitment to public service is driven by his unwavering commitment to doing the right thing, time and time again. The community admires Mr. Voorhees for his integrity and congeniality and for always supporting those in need.

Mr. Speaker, Mike Voorhees has spent forty-one years doing his part to keep Sonoma County safe. The people of Sonoma County have benefitted greatly from his lifelong dedication to public service. For this reason, it is fitting and proper that we honor him here today.

CONGRATULATING ROBERTA LYBYER AND THE LYBYER FAMILY

HON. JASON SMITH

OF MISSOURI

IN THE HOUSE OF REPRESENTATIVES

Tuesday, April 12, 2016

Mr. SMITH of Missouri. Mr. Speaker, I rise today to congratulate Roberta Lybyer and the Lybyer Family of Cabool, Missouri on receiving this year's Century Farm Award. Receiving this honor is no easy task, and the Lybyers have exemplified hard work, perseverance, and dedication to the community throughout their lives. The farm was originally owned by Andrew S.P. Lybyer, the grandfather of Roberta's late husband, Floyd Lybyer. It was purchased 124 years ago on March 7, 1892.

Qualifying to be a Century Farm is a great feat. The farm must be in the same family for at least 100 consecutive years and the original tract of land has to be more than 40 acres. These farms represent an important part of American heritage, feeding generations upon generations and greatly improving the quality of life of Missourians. Their integrity and determination serve as an example of the great work that farmers do for our country.

I applaud the hard work and achievements of the Lybyers and look forward to seeing what they accomplish in the future. It is my pleasure to recognize the Lybyer family before the House of Representatives.

HONORING JOHN K. BOYLE

HON. DANIEL M. DONOVAN, JR.

OF NEW YORK

IN THE HOUSE OF REPRESENTATIVES

Tuesday, April 12, 2016

Mr. DONOVAN. Mr. Speaker, I rise today to honor Staten Island resident John Boyle's endless commitment as an educator serving the people of New York.

John is a native Staten Islander, and has dedicated his life to helping others. Upon his graduation from St. John's University, he immediately went to work at Elias Bernstein Intermediate School. After six years teaching, he was promoted in 2005 to Assistant Principal at Totten Intermediate School 34 and in 2011, he became the school's Principal. As the head of I.S. 34, John spearheaded a renaissance in the school's approach to educating the youth of the 21st century, which allowed Totten to enter the upper echelon of schools in New York City. A lifelong learner dedicated to his profession and a role model for our youth, John made the time to continue his own studies while serving as Assistant Principal, earning his first Masters in Secondary Education from the College of Staten Island in 2003 and his second Masters in Educational Administration from Touro College in 2005.

Based upon his demonstrated excellence, John was nominated by his peers to the Council of Supervisors and Administrators Executive Board where he serves as an advisor to the Executive Vice President. In 2013, John was asked by Chancellor Farina to be one of only 18 school leaders from across New York City to be a part of her Learning Partners Pilot Program. Last year, he was designated a Model Principal by the Chancellor for his work as a host principal in the Learning Partners Program. In June of 2015, John was chosen along with seven other New York City principals to expand the work of the Chancellor's Learning Partners Program into the Learning Partners Plus Program for which was named a "Master Principal."

Mr. Speaker, John Boyle's dedication to serving and educating our youth epitomizes the highest qualities we seek in our educators and community role models. I thank him for all of his great work and I am proud to honor this great man who has consistently put others before himself.

RECOGNITION OF AGRILIFE RESEARCH STATION

HON. WILL HURD

OF TEXAS

IN THE HOUSE OF REPRESENTATIVES

Tuesday, April 12, 2016

Mr. HURD of Texas. Mr. Speaker, I rise today in recognition of the 100 year anniversary of the Agrilife Research Station in Sonora, Texas.

The Agrilife Research Station, also known as Sub-station 14, was founded in 1916 with the support of local ranchers and the Texas Sheep and Goat Raisers' Association. The station's first task was to find the cause of the bighead cattle syndrome, and other diseases harmful to the livestock industry. Their current projects include researching noxious plant control, prescribed fires, and wildlife management.

The contributions of the Agrilife Research Station have been invaluable to farmers, ranchers, and the state of Texas over the course of the past 100 years. There is no question that the station will continue to excel under its present leadership. I am proud to represent such an important pillar of Texas agriculture and to congratulate its dedicated staff and supporters on 100 years of innovation, research, and success.

HONORING WILLIAM N. TUNNELL, JR. ON HIS RETIREMENT

HON. BRADLEY BYRNE

OF ALABAMA

IN THE HOUSE OF REPRESENTATIVES

Tuesday, April 12, 2016

Mr. BYRNE. Mr. Speaker, I rise today to recognize the important contributions of Mr. William "Bill" Tunnell, Jr. Bill Tunnell recently retired after almost 20 years as Executive Director of the USS Alabama Battleship Memorial Park in Mobile, Alabama.

Bill Tunnell's impact on Southwest Alabama and our entire state cannot really be put into words. He has succeeded in transforming Battleship Memorial Park into one of Alabama's premier tourist destinations and a top landmark along the entire Gulf Coast. Throughout the process, he has always kept the focus on inspiring patriotism and honoring those who have served our country.

Bill moved to Mobile in 1979, where he worked in the hotel and hospitality industry until 1991. It was that year that he took over as marketing and public relations director for Battleship Memorial Park. In 1997, he was named executive director.

Through busy crowds, hurricanes, and economic downturns, Bill Tunnell's steady leadership helped ensure the USS Alabama and Battleship Memorial Park remains well maintained and open to visitors. Most recently, Bill successfully organized and planned events to celebrate the 50th anniversary of Battleship Memorial Park.

Among his many awards and honors, Bill Tunnell was the first ever inductee of the Alabama Tourism Hall of Fame, winner of the Eastern Shore Chamber of Commerce Community Leader of the Year award, and recipient of the Alabama Restaurant Association and Alabama Hospitality Association's Tourism Promoter of the Year award. He was named an ''Honorary Veteran'' in 2011 by the South Alabama Veterans Council, who partnered with Mr. Tunnell on countless projects and events. These are just a handful of his many honors and achievements.

Mr. Speaker, I am honored to call Bill Tunnell a friend. He is a truly outstanding individual who has never hesitated to put others above himself. Bill recently said that it is not actually the ship that makes Battleship Memorial Park. Instead, he said it is ''the heart and soul of all the people who've attached themselves'' to the ship. No one has put more of their ''heart and soul'' into the ship and the park than Bill Tunnell.

So, on behalf of Alabama's First Congressional District, I want to wish Bill and his wife, Cynthia, all the best in retirement, and I hope Bill gets to spend some quality time working on his golf game. Thank you for your service and dedication to our community, our veterans, and the State of Alabama.

HONORING BEVERLY CLEARY ON HER 100TH BIRTHDAY

HON. SUZANNE BONAMICI

OF OREGON

IN THE HOUSE OF REPRESENTATIVES

Tuesday, April 12, 2016

Ms. BONAMICI. Mr. Speaker, today, treasured children's author Beverly Cleary turns a remarkable 100 years old. Born in McMinnville, Oregon, Beverly Cleary later moved to Northeast Portland. Her neighborhood there, especially Klickitat Street, became the setting for her series featuring Henry Huggins, Ramona Quimby, and countless other characters who continue to hold a special place in the bookshelves and hearts of parents, children, and librarians around the world.

Cleary's books spoke to generations of children from Oregon, across the country, and around the globe. Many of her stories were inspired by her own childhood in Northeast Portland, and almost everyone can identify with the imaginative Ramona or the studious Beezus—or a little bit of both. Although Cleary's stories evolved as our nation changed, her stories about a family working hard to make ends meet or facing the challenges of adolescence are timeless in their representation of childhood for so many young people.

Cleary's love for her characters and respect for her young audience are evident in the national traditions she created. I am proud to honor her 100th birthday today, and look forward to watching her legacy continue to grow and flourish as she inspires a new generation of readers.

HONORING BETTY HARTY

HON. DANIEL M. DONOVAN, JR.

OF NEW YORK

IN THE HOUSE OF REPRESENTATIVES

Tuesday, April 12, 2016

Mr. DONOVAN. Mr. Speaker, I rise today to honor Staten Island resident Betty Harty's contributions to our community and tireless service to great causes.

A native of Staten Island, Betty has been heavily involved in the Boy Scouts organization, which she joined roughly forty-nine years ago. Betty served as Den Mother and a Den leader Coach for Pack Eight, Messiah Lutheran Church for twelve years, before becoming an Advancement Chairperson, a position she held for thirty-nine years. Additionally, Betty served as Pack Eight and Group Eight Commissioner for twenty years, and is now a member of Troop 26—Castleton Hill Messiah Church.

Betty also has been a member of the District Committee. She served as the Cub Roundtable and Cub Adult Treasury. Betty also chaired the Cub Pow Wow Treasury for Staten Island Council. Currently, Betty is on the Advancement Committee for Staten Island Council for Eagle Scouts. She has been on the Staten Island Council Committee for seventeen years.

Betty has been active with parent-teacher associations at P.S. 36, Bernstein Intermediate and Tottenville High. She was a leading volunteer for five years at P.S. 36, a library volunteer, and taught in the after school center. Betty was team mother for the South Shore Little League and the Babe Ruth League. She has also been engaged in teaching Sunday school.

Twenty years ago, Betty became involved with the Have a Heart Foundation, the Staten Island based organization that helps raise financial aid for people to fund therapy treatments not covered by insurance. This wonderful foundation helps mitigate some of the expensive medical costs in New York, and is a member of the Staten Island Children's Campaign.

Mr. Speaker, Betty Harty's dedication to serving our community and positively influencing our youth is the essence of a model humanitarian. I thank her for all of her great work and I am proud to honor this great woman who has consistently touched the lives of people across Staten Island.

HONORING DON AMADOR

HON. MIKE THOMPSON

OF CALIFORNIA

IN THE HOUSE OF REPRESENTATIVES

Tuesday, April 12, 2016

Mr. THOMPSON of California. Mr. Speaker, I, along with Representative GARAMENDI and Representative HUFFMAN, rise to recognize and honor Mr. Amador for his great contribution to the designation of the Berryessa Snow Mountain Monument by President Barack Obama on July 10, 2015.

This outstanding accomplishment was made possible by the tireless work of countless advocates like Mr. Amador. Their commitment to engaging friends, colleagues, local residents, businesses, stakeholders across the country, and policymakers in a coordinated effort to achieve permanent protection was critical to the establishment of the Monument.

Now, the Berryessa Snow Mountain Monument may be counted among the hundreds pristine parks across the country that represent America's most treasured public resources. The region's unique geological formations will play host for the world's scientists for years to come. Centuries-old archeological sites will draw curious historians and researchers as they piece together the stories of generations past. And avid bikers, hikers, campers, horsemen, and sportsmen will be able to enjoy this landmark that is now forever open and accessible to outdoor enthusiasts from Northern California and beyond.

The Berryessa Snow Mountain Monument serves as proof of the value of the Antiquities Act and the power of the Executive to protect these lands in the face of inaction by Congress. After extensive input from interested parties and substantial evidence of this region's value, the Obama Administration honored the support of stakeholders, and the gravity of conservation.

The legacy of public lands is one of the most important we can leave for future generations. The Berryessa Snow Mountain Monument is a critical piece of a preservation system that stretches from the Hawaiian Islands to the Maine Coast. It has been a privilege working with Mr. Amador to further our mutual goal of preserving our nation's great open spaces, and we look forward to collaborating in the future.

75TH ANNIVERSARY OF THE OREGON AIR NATIONAL GUARD

HON. KURT SCHRADER

OF OREGON

IN THE HOUSE OF REPRESENTATIVES

Tuesday, April 12, 2016

Mr. SCHRADER. Mr. Speaker, I rise today to recognize the 75th Anniversary of the Oregon Air National Guard.

The Oregon Air National Guard was born on April 18, 1941, when Oregon's own Major G. Robert Dodson sent the celebrated message, ''We've got people, we've got a place, and we're ready!'' to the National Guard Bureau and was allowed to activate the 123rd Observation Squadron. For the next seventy-five years the Citizen Airmen of the Oregon Air National Guard have been serving Oregon and the Nation with distinction.

During World War II, the 123rd Observation Squadron patrolled the skies of the Pacific Northwest protecting our nation.

Several years later Oregon Air National Guard pilots continued to serve our nation by flying over one thousand combat missions during the Korean War.

As the Cold War took shape, the Citizen Airmen of the Oregon Air National Guard stood up to protect the Pacific Northwest. Since 1958, they have been on air defense alert twenty-four hours a day, seven days a week patrolling the skies from northern California to the Canadian border.

On September 11, 2001, the citizen-airmen of the Oregon Air National Guard were among the first in the air. After ensuring the security of our homeland they again went overseas to provide vital support to Operation Iraqi Freedom and Operation Enduring Freedom.

Seventy-five years after their founding the Oregon Air National Guard continues to protect the skies of the Pacific Northwest, support our Nation's mission abroad, and stand ready to provide disaster relief for the great state Oregon and our Nation.

Today the Oregon Air National Guard is made up of 142nd Fighter Wing in Portland, the 173rd Fighter Wing in Klamath Falls, and the Joint Force Headquarters in Salem, Oregon.

Oregonians are proud of the hallowed legacy of our citizen airmen and airwomen. I urge my colleagues to join me in celebrating the 75th Anniversary of the Oregon Air National Guard and honoring those who have and continue to serve their country and the great state of Oregon.

HONORING DAMIAN MURRIEL

HON. BENNIE G. THOMPSON

OF MISSISSIPPI

IN THE HOUSE OF REPRESENTATIVES

Tuesday, April 12, 2016

Mr. THOMPSON of Mississippi. Mr. Speaker, I rise today to honor Mr. Damian Murriel.

It sounds strange, but owning and operating a funeral home has been a childhood dream for Mr. Damian Murriel—at least it has been ever since he started working in the business.

Damian Murriel began his first job in a funeral home at the age of 16. Then a sophomore in high school, Damian Murriel performed various custodial services at Cook's Funeral Home. When he graduated from Forest Hill High School in 1994 he left for Gupton-Jones School of Mortuary Science. Two years later after he completed his schooling and became a licensed funeral director and embalmer, he began traveling, doing internships and apprenticeships in other states, including brief stints in Illinois and Indiana. In 2000 he left for a job as funeral director of Gregory B. Levett and Sons Funeral Home in Atlanta, Georgia, where the wake for TLC's Lisa 'Left Eye' Lopes was held.

On April 17, 2003 Damian Murriel's life-long dream to own and operate a funeral home became a reality. ''I never lost sight of what I was pursuing.'' Damian Murriel said. ''I want to clean up the area and enhance the community with the funeral home.'' Murriel said. Murriel's motto is: ''Serving Families in Their Time of Need.'' He is a member of the Mississippi Funeral Directors and Morticians Association.

RETIREMENT OF WALTER G. WARGACKI

HON. BILL PASCRELL, JR.

OF NEW JERSEY

IN THE HOUSE OF REPRESENTATIVES

Tuesday, April 12, 2016

Mr. PASCRELL. Mr. Speaker, I would like to call to your attention the outstanding achievements of Walter G. Wargacki—the great Mayor of Wallington, NJ—who celebrated his retirement on April 1, 2016.

Walter Gerald Wargacki, Jr. was born on April 26, 1938, to Walter John Wargacki and Mary Dancsisin Wargacki. His service to the public began as early as 1965 when he joined the Wallington Fire Department, Park Roe Hose Company #3. He eventually was promoted to the rank of Fire Chief in 1986 for his outstanding service in the line of duty.

Yet, his service to the public was not limited to emergency services. In the same year he joined the Wallington Fire Department, he was also elected to the Wallington Board of Education where he eventually served as Board President for three terms. During his tenure, he led the way in evaluating accreditation for the Township's high school system. Furthermore, he planned the renovation and replacement of the century-old Lincoln School. Mr. Wargacki's dedication to this task was no less exemplary than his outstanding service as a fire fighter.

Upon completion of his tenure as Fire Chief and as a member of the Board of Education, Mr. Wargacki served proudly as the Mayor of Wallington for over 24 years. Through his hard work and dedication, he improved the Township of Wallington both aesthetically and communally. For instance, he oversaw the construction of new parks and recreation areas such as Liberty Crossing Park and Centennial Field. Undoubtedly, these and other initiatives helped create the welcoming environment for families that Wallington is known for today.

Furthermore, he designated a newly constructed facility for the Wallington Emergency Squad—a testament to his years of service and dedication to emergency services. Indeed, under his leadership, the Township of Wallington has been in extraordinarily capable hands, and his leave from office will not go unnoticed amongst members of the community.

I have the great honor of representing the residents of Wallington in Congress and it gives me great pride to recognize one of their native sons who has spent his life serving the public. I can say with personal knowledge that Walt is not only a good leader, but also a good friend—the kind who can be counted on both in good times and in bad times.

The job of a United States Congressman involves much that is rewarding, yet nothing compares to recognizing and commemorating the achievements of public servants such as Mayor Walter G. Wargacki of Wallington.

Mr. Speaker, I ask that you join our colleagues, denizens of Wallington, family and friends, all those whose lives he has touched, and me, in recognizing the work of Mayor Walter G. Wargacki.

CONGRATULATING RONALD AND BARBARA MCCALL

HON. JASON SMITH

OF MISSOURI

IN THE HOUSE OF REPRESENTATIVES

Tuesday, April 12, 2016

Mr. SMITH of Missouri. Mr. Speaker, I rise today to congratulate Ronald and Barbara McCall of Mountain Grove, Missouri on receiving this year's Century Farm Award. Receiving this honor is no easy task, and the McCalls have exemplified hard work, perseverance, and dedication to the community throughout their lives. The McCall family originally purchased the farm 101 years ago on February 11, 1915.

Qualifying to be a Century Farm is a great feat. The farm must be in the same family for at least 100 consecutive years and the original tract of land has to be more than 40 acres. These farms represent an important part of American heritage, feeding generations upon generations and greatly improving the quality of life of Missourians. Their integrity and determination serve as a prime example for farmers across the nation.

I applaud the hard work and achievements of the McCalls and look forward to seeing what they accomplish in the future. It is my pleasure to recognize the McCalls before the House of Representatives.

HONORING FRANCIS HARTY

HON. DANIEL M. DONOVAN, JR.

OF NEW YORK

IN THE HOUSE OF REPRESENTATIVES

Tuesday, April 12, 2016

Mr. DONOVAN. Mr. Speaker, I rise today to honor Staten Island resident Francis Harty for his positive contributions to our community.

Francis was born and raised in Westerleigh, Staten Island. He graduated from Port Richmond High School and went on to work at Procter and Gamble Co. Francis has been married to his high school sweetheart, Betty, for almost sixty-one years, and they have three children together.

When Francis' son wanted to join the Cub Scouts, he also joined the Boy Scouts at the Messiah Lutheran Church. He served twenty-seven years as Scoutmaster and had one hundred Eagle Scouts in Group Eight. Francis retired as Scoutmaster in 2000, but continued to work on all District events, as well as the Council Dinner and the Fall Outing. Francis held several positions on the District Committee and the Staten Island Council. He has had an extensive influence on the programs by being heavily involved in various training programs that lay the foundations for the Boy Scouts organization's programs.

Francis has been awarded many honors to recognize his services. He has received the Award of Merit, the Silver Beaver, the Ten Mile River Award, The Good Scout Award, the Paul Intermediate School Service to Youth Award, and the Staten Island Museum Circle of Friends for Youth Volunteerism in 1994.

Outside of scouting, Francis was the Vice President for the Have a Heart Foundation for twenty-four years. He helps run the annual Golf Outing and the five kilometer race to raise funds for patients with therapy needs

and parents with large medical insurance bills for their children. Due to the foundation's affiliation with the Staten Island Children's Campaign, he also works on their events including Breakfast with Santa. Additionally, Francis managed and coached in the South Shore Little League and the Babe Ruth League.

Mr. Speaker, Francis Harty's dedication to providing a role model for youth and positively impacting his community is remarkable. I thank him for all of his hard work and I am proud to honor this great man who has been such a strong influence on the residents of Staten Island.

HONORING STEVE CASTRO

HON. BLAKE FARENTHOLD

OF TEXAS

IN THE HOUSE OF REPRESENTATIVES

Tuesday, April 12, 2016

Mr. FARENTHOLD. Mr. Speaker, I rise today to honor Robstown baseball coach Steve Castro, who passed away in October of last year.

Steve Castro was a pillar of the community who taught baseball to hundreds of kids from 1975 to 2010 at Robstown High School. Castro taught more than the game of baseball; he taught his team the meaning of hard work and the meaning of teamwork.

Under Castro's coaching, the Robstown baseball team drew crowds of more than 3,000 people. He brought families and friends together every time there was a game.

In 2014, Castro was entered into the Texas High School Baseball Association Hall of Fame, the fifth Hispanic coach to receive the honor.

This year's Cotton Picker Baseball season will be officially dedicated to the man who brought fans and players together for 35 years.

Steve Castro will be remembered as a legend by the students he taught and the families he brought together every night for a game.

HONORING SARAH HUSBY

HON. MIKE THOMPSON

OF CALIFORNIA

IN THE HOUSE OF REPRESENTATIVES

Tuesday, April 12, 2016

Mr. THOMPSON of California. Mr. Speaker, I, along with Representative GARAMENDI and Representative HUFFMAN, rise to recognize and honor Ms. Husby for her great contribution to the designation of the Berryessa Snow Mountain Monument by President Barack Obama on July 10, 2015.

This outstanding accomplishment was made possible by the tireless work of countless advocates like Ms. Husby. Their commitment to engaging friends, colleagues, local residents, businesses, stakeholders across the country, and policymakers in a coordinated effort to achieve permanent protection was critical to the establishment of the Monument.

Now, the Berryessa Snow Mountain Monument may be counted among the hundreds pristine parks across the country that represent America's most treasured public resources. The region's unique geological formations will play host for the world's scientists for years to come. Centuries-old archeological sites will draw curious historians and researchers as they piece together the stories of generations past. And avid bikers, hikers, campers, horsemen, and sportsmen will be able to enjoy this landmark that is now forever open and accessible to outdoor enthusiasts from Northern California and beyond.

The Berryessa Snow Mountain Monument serves as proof of the value of the Antiquities Act and the power of the Executive to protect these lands in the face of inaction by Congress. After extensive input from interested parties and substantial evidence of this region's value, the Obama Administration honored the support of stakeholders, and the gravity of conservation.

The legacy of public lands is one of the most important we can leave for future generations. The Berryessa Snow Mountain Monument is a critical piece of a preservation system that stretches from the Hawaiian Islands to the Maine Coast. It has been a privilege working with Ms. Husby to further our mutual goal of preserving our nation's great open spaces, and we look forward to collaborating in the future.

HONORING MILTON GASTON

HON. BENNIE G. THOMPSON

OF MISSISSIPPI

IN THE HOUSE OF REPRESENTATIVES

Tuesday, April 12, 2016

Mr. THOMPSON of Mississippi. Mr. Speaker, I rise today to honor a remarkable civil servant, Mr. Milton Gaston.

Born in Hollandale, Mississippi, Milton Gaston was nurtured and reared by his parents, the late James and Luella Gaston, in Glen Allen, Mississippi. He is the seventh born of eleven children to his parents. Gaston proudly admits that his parents reared them to be a close-knit family and his siblings and he remain so today.

Milton Gaston was educated in the Glen Allen Public Schools.

Understanding the meaning of family as so taught by his parents, Mr. Gaston met and married Ms. Alice Watts. To their union, six (6) children and ten (10) grandchildren are being shaped for this most extraordinary world.

To support his family, Mr. Gaston began work with the Washington County Sheriff's Department on January 20, 1986 under the leadership of the late Sheriff Harvey Tackett, Sr. In July of that same year, Milton Gaston, Sr., became the only civilian sent to the Jackson Police Academy in Jackson, Mississippi to be certified and deputized under Sheriff Tackett's administration. Because of his work ethics, Greenville Optimist Club named him as Deputy Sheriff of the year in 1989.

On November 3, 2003, Washington County elected Milton Gaston, Sr. as Sheriff of Washington County, Mississippi. At the age of 42, he was the first African American in this county to hold this distinguished position. County Court Chancellor Vernita King-Johnson swore him in on January 5, 2004 to uphold this position to serve and protect the citizens of Washington County, Mississippi. Currently, Sheriff Gaston is in his third term, serving more than twenty-nine (29) years in law enforcement with a plethora of training on the state and federal level. Additionally, he has initiated and overseen a Juvenile Justice Intervention/Prevention Program that was developed to rebuild at risk youth between the ages of 12–15. The program was called ''Biggest S.U.C.C.E.S.S.,'' which is an acronym for Students Unanimously Conceiving Confidence & Excellence in Skills and Success. The program was grant funded for one year. Currently, under his leadership, the TRIAD of Washington County was established in 2012. This organization is comprised of senior citizens working with law enforcement to address their safety needs in the community. It is also state funded and has been approved for the current year's funding.

Sheriff Gaston's staff is comprised of approximately 120 people between Washington County Sheriff's Department and Washington County Regional Correctional Facility—all of whom he requires to help make Washington County, Mississippi a safe place for all of its citizens.

As if he is not constantly busy enough, Sheriff Gaston devotes his time and servitude as a member of New Hope First Baptist Church, Vice-President of the Usher Board, a member of the male choir, a member of the 100 Black Men of the Mississippi Delta, a member of the Lake Vista Masonic Lodge Number 46, a member of the Serene Lodge Number 567, a member of the NAACP, and a board member of the Boy's and Girl's Club.

Yet, after committing himself to all of this, his Lord, his family, his career, and his affiliations, he still manages to conceive other ingenious ideas to help citizens in our area. He is indeed, ''The Peoples' Sheriff,'' and he considers it a pleasure to serve the citizens of Washington County, Mississippi by striving to make it a safer place in which to live.

Mr. Speaker, I ask my colleagues to join me in recognizing Sheriff Milton Gaston for his dedication to serving others and giving back to his community.

IN RECOGNITION OF THE ROOSTERTAIL AND MORE THAN FIFTY YEARS OF CREATING MEMORIES AND STORIES

HON. DEBBIE DINGELL

OF MICHIGAN

IN THE HOUSE OF REPRESENTATIVES

Tuesday, April 12, 2016

Mrs. DINGELL. Mr. Speaker, I rise to recognize Tom and Diane Schoenith who today are observing fifty years of memories, entertainment and stories at their beloved Roostertail, a well-known institution in Southeast Michigan for gathering people of all walks of life for performances, concerts, celebrations, remembrances, rituals and traditions. Unique, colorful and with a special style carrying this couple through the decades, Tom and Diane have distinctive personas combined with big hearts and caring souls that have made them a memorable part of Detroit's and Michigan's history.

Since its opening in 1958, the Roostertail became a gathering place for people to celebrate important occasions; events of all kinds that created incredible memories as people gathered for concerts, boat races, premieres, charity events, nightclub evenings, weddings, anniversaries, galas, jubilees, birthdays, elections, solemn moments . . . special occasions of all kinds. People from the region and the

country gathered at this beautiful venue located on the Detroit River off of Jefferson Avenue in the City of Detroit. Governors, mayors, local officials, celebrities, business leaders and community members looked forward to the occasions being feted or the evening out. When first founded, it was a happening place, and its path would follow the peaks and valleys that the region itself has experienced over the years.

The Roostertail has witnessed the history of the region and has been the scene of many firsts, including the opening night for the Supremes and Bobby Darin. The venue has also hosted many of the greats over the years such as Tony Bennett, Eric Clapton, The Rolling Stones, and Aretha Franklin. From the beginning, everyone was welcome through their doors, and they gave a helping hand to many who just needed someone to care or believe. In the 60's, when the Motown sound was just beginning, they created Motown Mondays which starred the Temptations, Marvalettes, Stevie Wonder, Diana Ross, Martha Reeves, Marvin Gaye, Smokey Robinson and the Spinners among many others. Tom and Diane helped to break down barriers during the civil rights era, making it clear there was always a place there for those who needed it and providing the platform for those who needed a simple break.

Tom and Diane Schoenith, the owners of the Roostertail, have lived through the ups and downs of Detroit and Southeast Michigan and never doubted, gave up or quit. Whether it was the riots, recession, or bankruptcy, or the rise of Motown, Motor City, and the ebbs and flows of the American middle class, they have witnessed it all. After the Detroit Riots in 1968, people were afraid to come into downtown Detroit. Tom and Diane knew they had to help bring them back and bring their customer base back as well. They organized parties with performers everyone knew and drew people back. The young people came—and others followed.

Beyond the memories and moments of the Roostertail itself, Tom and Diane have also planned and led many events and parties over the years. Many were colorful, vibrant and flashy—unique and one of a kind. Tom and Diane have been the first call for many of the most prominent non-profits and cultural institutions in Metro Detroit, helping the DIA, WTVS, the Children's Hospital of Michigan, the Detroit Symphony Opera, Gleaners, the Salvation Army, and the NAACP. These groups and more owe a thank you to Tom and Diane for their creativity, memory creating events and dedication to our community over the years.

Tom is a member of Detroit's Schoenith family, well known for decades for being successful, interesting and sometimes controversial. His twin Jerry is well known for American boat racing with hydroplanes. Together—they are a part of Michigan's unique history.

Mr. Speaker, I ask my colleagues to join me today in honoring Tom and Diane Schoenith and the Roostertail as they celebrate this evening. It is my sincere hope that they will continue to bring smiles for many years to come.

CELEBRATING GENENTECH'S 40TH ANNIVERSARY

HON. JACKIE SPEIER

OF CALIFORNIA

IN THE HOUSE OF REPRESENTATIVES

Tuesday, April 12, 2016

Ms. SPEIER. Mr. Speaker, I rise today to celebrate the 40th anniversary of Genentech in South San Francisco—also known as the birthplace of biotechnology. Forty years ago, on April 7, 1976, Herb Boyer and Bob Swanson decided to start the first biotech company, Genentech, and sparked an industry that continues to push the boundaries of science today.

What began as a conversation over a couple of beers at a Union Street watering hole has evolved into an industry that has helped billions of people, and has ushered in new frontiers of research—such as personalized healthcare and cancer immunotherapy—that have fundamentally changed the way certain serious diseases are treated.

During the past six years alone, Genentech has brought to market nine new treatments for patients who needed them. These include the first FDA-approved medicine for people with advanced forms of B-Cell Carcinoma, the most common skin cancer, the first biologic for cystic fibrosis, the first personalized medicine that treats women with HER2+ breast cancer, and the first drug to be approved using FDA's breakthrough therapy designation—a treatment for Chronic Lymphocytic Lymphoma (CLL).

And like all of biotech, Genentech has continued to evolve over the past 4 decades. They have invested in uncharted areas of science, expanded their manufacturing capabilities, grown into a global organization, and partnered with other companies and research institutions to find breakthrough treatments for people with serious diseases who need new and improved options.

Today, Genentech's founders' spirit of taking bold risks and celebrating both successes and failures continues to drive their daily work. This year, the company will celebrate its 40th anniversary with initiatives such as 40 Defining Moments—a storytelling project to reflect on the history of Genentech through articles, pictures, and videos. And in order to recognize the role nearby communities and science education have had in its success, Genentech will also commit $1 million to STEM-focused nonprofits that provide hands-on science education to underserved students in local communities.

Mr. Speaker, I am honored to recognize the hard work and dedication of Genentech and its employees. Genentech has always been a cutting edge company from research to workplace accommodations to creating one of the first on-site child care centers. I'm proud to represent a company that has so positively contributed to the health and wellness of our society, and to the world. I look forward to seeing what new breakthroughs the next 40 years will bring.

HONORING MADELEINE MORLINO

HON. THOMAS MacARTHUR

OF NEW JERSEY

IN THE HOUSE OF REPRESENTATIVES

Tuesday, April 12, 2016

Mr. MACARTHUR. Mr. Speaker, I rise today to honor Madeleine Morlino, of the Third Congressional District, on her recent acceptance into all four United States Service Academies, and to commend her for her community service and accomplishments.

Madeleine, who is a resident of Moorestown, has worked diligently to succeed academically while simultaneously engaging with her community. Madeleine maintains a 4.23 weighted grade-point average at Moorestown High School. She is an accomplished violinist, and plays for the Moorestown High School orchestra and for a local church ensemble. Additionally, she was honored with the Good Citizenship Award from the Union League of Philadelphia and volunteers for many different charitable causes and organizations.

Madeleine has a profound level of respect for our armed service men and women, and has become very involved in the veteran community. In the fall, she organized the Veterans Benefits and Job Expo at the Moorestown Community House, where national and local businesses met with veterans about meaningful employment. She also volunteers at the Disabled Veterans Physiotherapy Clinic in Philadelphia. Madeleine has worked extremely hard to follow her goal of serving the military in whatever capacity possible. She will be attending the Air Force Academy in Colorado Springs, Colorado after graduation.

Mr. Speaker, the people of New Jersey's Third Congressional District are tremendously honored to have Madeleine Morlino as a member of their community. Ms. Molino has shown a desire to serve her nation and to give back to her community, and has worked continuously to do so at the best of her ability. I am honored to recognize her acceptance into all four United States Service Academies and to commend her for her outstanding service to her community and our veterans, before the United State House of Representatives.

OUR UNCONSCIONABLE NATIONAL DEBT

HON. MIKE COFFMAN

OF COLORADO

IN THE HOUSE OF REPRESENTATIVES

Tuesday, April 12, 2016

Mr. COFFMAN. Mr. Speaker, on January 20, 2009, the day President Obama took office, the national debt was $10,626,877,048,913.08.

Today, it is $19,223,197,501,336.14. We've added $8,596,320,452,423.06 to our debt in 6 years. This is over $7.5 trillion in debt our nation, our economy, and our children could have avoided with a balanced budget amendment.

KAZAKHSTAN'S COMMITMENT TO ENERGY DEVELOPMENT IN CENTRAL ASIA

HON. DANA ROHRABACHER

OF CALIFORNIA

IN THE HOUSE OF REPRESENTATIVES

Tuesday, April 12, 2016

Mr. ROHRABACHER. Mr. Speaker, on the eve of Kazakhstan's President Nursultan Nazarbayev's visit to Washington, DC to participate in the Nuclear Security Summit, we see that the basics of water and energy in Central Asia need attention.

In order to obtain electric power for the industrial development, Tajikistan and Kyrgyzstan for several years have been trying to build hydroelectric dams on their mountain rivers. Uzbekistan sees this as a threat to their agriculture in the Fergana Valley and has made clear its adamant opposition. The only winners, if this conflict results, will be the armed extremist armies that will gather new supporters on every side of the battle.

Nuclear energy is a safe, sustainable, and affordable energy source. Kazakhstan, together with the International Atomic Energy Agency and other outside partners, established the world's first Low-Enriched Uranium (LEU) Fuel Bank. This Fuel Bank, which Kazakhstan has committed to support through facilities and resources as the host nation, provides a secondary market for LEU to guarantee that all nations have an energy source for peaceful civilian nuclear power. Affordable energy remains a prerequisite for modernization of the economies of the countries of Central Asia. More importantly, radical groups will have less impact on the region since the threat of a water crisis is not a major concern.

Kazakhstan is a suitable location for the international energy center. President Nursultan Nazarbayev is a proven leader having the respect of all of Kazakhstan's neighbors. The southernmost region of Kazakhstan is close to Uzbekistan, Kyrgyzstan and Tajikistan. Additionally, Kazakhstan is not involved in water disputes; therefore, it can guarantee the supply of electricity to all the countries. The absence of conflicts with the neighbors and international authority of Kazakhstan make it an ideal electric energy hub for the region.

Kazakhstan has a great opportunity to take a lead in transforming the whole Central Asian region into a more stable and prosperous place. I applaud President Nazarbayev and the Kazakh people for their continued commitment to civilian nuclear energy and Central Asia's development.

HONORING GENERAL MARC A. CISNEROS

HON. BLAKE FARENTHOLD

OF TEXAS

IN THE HOUSE OF REPRESENTATIVES

Tuesday, April 12, 2016

Mr. FARENTHOLD. Mr. Speaker, I rise today to honor General Marc Anthony Cisneros, who recently received the Daughters of the American Revolution Medal of Honor.

The Daughters of the American Revolution is a volunteer organization whose members donate their time and energy toward preserving American history, funding scholarship programs, and honoring great Americans like General Cisneros who have dedicated their lives in outstanding service to the United States of America.

General Cisneros led an illustrious career in the U.S. military from 1961 until 1996. He is most remembered for his role as a commander of the U.S. Army South in the 1989 Panama invasion, where he led the effort to depose General Manuel Noriega. It was his leadership that minimized casualties while achieving a total victory in the war.

I join the Daughters of the American Revolution in thanking General Cisneros for his service.

HONORING THE MARINE MAMMAL CENTER

HON. JARED HUFFMAN

OF CALIFORNIA

IN THE HOUSE OF REPRESENTATIVES

Tuesday, April 12, 2016

Mr. HUFFMAN. Mr. Speaker, I rise today to recognize the Marine Mammal Center in honor of its 40th anniversary. Located in Sausalito, California, the center seeks to expand knowledge of marine mammals and to inspire conservation efforts in the Bay Area and beyond.

Founded in 1975, the Marine Mammal Center works to advance the lives of ocean mammals and their habitats through rescue operations, rehabilitation, scientific research, and education. They have rescued and treated more than 20,000 animals over the past four decades, providing care across more than 600 miles of California coast. Additionally, their education programs engage approximately 50,000 children and adults each year through field trips, teacher training, and volunteer opportunities.

Along with providing direct care to individual animals, the Marine Mammal Center remains committed to protecting our water environments. Their ongoing awareness campaigns—from encouraging people to eat sustainable seafood to educating on the harmful effects of trash in our oceans—have made a lasting impact, and their scientific research has helped shed light on factors that impact the health of marine mammals, including the harmful effects of climate change.

The Marine Mammal Center has been a force of nature in ocean protection efforts, not just in Marin County and the California Coast but around the world. Their small but mighty staff oversees more than 1,100 volunteers, and their researchers have contributed to hundreds of publications over the years. Mr. Speaker, it is fitting to honor and thank the Marine Mammal Center on their 40th Anniversary for their unyielding commitment to our oceans and the creatures that call it home.

PORTION OF HIGHWAY 18 RENAMED TO HONOR MILITARY VETERANS

HON. PAUL COOK

OF CALIFORNIA

IN THE HOUSE OF REPRESENTATIVES

Tuesday, April 12, 2016

Mr. COOK. Mr. Speaker, I rise today in recognition of an important ceremony that took place in my district on Friday, April 8, 2016. A stretch of State Highway 18 located in the San Bernardino mountains was dedicated as the "Rim of the World Veterans Memorial Highway." I want to thank California State Assemblyman Jay Obernolte for authoring Assembly Concurrent Resolution 21, which was the legislation that was passed by the California State Assembly to rename Highway 18.

More importantly, though, I would like to commend the members of American Legion Post 360 and Veterans of Foreign Wars Post 9624 for their tireless efforts to make this dedication come to fruition. Renaming Highway 18 to honor the sacrifices of the men and women who served in our Armed Forces exemplifies the respect that residents in the mountain communities of San Bernardino County have for our veterans.

I look forward to seeing the new signage on my next trip to the mountains. Thank you to everyone who was involved in making this special day possible but, most importantly, thank you to the veterans who've made America the greatest nation on earth.

ROCHESTER INSTITUTE OF TECHNOLOGY'S GRAVITATIONAL WAVE DISCOVERY

HON. LOUISE McINTOSH SLAUGHTER

OF NEW YORK

IN THE HOUSE OF REPRESENTATIVES

Tuesday, April 12, 2016

Ms. SLAUGHTER. Mr. Speaker, two weeks ago, our understanding of the universe leapt forward when gravitational waves were first detected. I rise today to recognize that achievement and honor six researchers from the Rochester Institute of Technology (RIT) who were part of one of the most significant scientific discoveries in a century.

While hundreds of scientists worked together to make this discovery, I am especially proud of the researchers from RIT—James Healy, Jacob Lange, Carlos Lousto, Richard O'Shaughnessy, John Whelan, and Yuanhao Zhang. All of these researchers are members of RIT's Center for Computational Relativity and Gravitation, which is led by Manuela Campanelli. Her team was one of the first groups to initially solve Albert Einstein's strong field equations describing black hole mergers. Because of this legacy, it is fitting that the recent discovery helps further confirm Einstein's general theory of relativity.

As the only microbiologist in Congress, I know that every scientist hopes to have their predictions verified by direct observation. I also know that this is relatively rare, so I stand in awe of this RIT team that accurately modeled the merger of two black holes and predicted the gravitational waves that were detected. This monumental achievement marks yet another chapter in Rochester's rich history as a center of scientific innovation and discovery.

Rochester has helped pioneer important research and develop innovative products such as the Kodak Brownie camera, the Norden bombsight, and myriad high-powered lasers. Established in 1829, RIT has not only played a critical role in Rochester's past, it continues to ensure that Rochester remains a global center of excellence. RIT makes invaluable

scientific contributions to the research community, but it is also a cornerstone of the Rochester community and helps provide local businesses with the talent they need to flourish.

Perhaps one of the most exciting aspects of this discovery is that it allows us to pose new questions and push the bounds of our collective knowledge. There's no doubt in my mind that RIT will play an essential role in these forthcoming discoveries, and I am proud that millions of people will continue learning about the world around us thanks to the contributions of researchers like Dr. Campanelli and the other members of her team.

Mr. Speaker, I ask my colleagues to join me in applauding all of the individuals who helped contribute to this monumental discovery and especially the six researchers from RIT. These Rochesterians have helped fundamentally change our understanding of the world, and I am proud to support their work in Congress.

HONORING CULTIVATING CODERS

HON. MICHELLE LUJAN GRISHAM

OF NEW MEXICO

IN THE HOUSE OF REPRESENTATIVES

Tuesday, April 12, 2016

Ms. MICHELLE LUJAN GRISHAM of New Mexico. Mr. Speaker, I rise today to honor Cultivating Coders, a technology startup from Albuquerque which, on March 13, 2016, won ''Startup of Year'' at Tech.Col's South by Southwest interactive festival in Austin, Texas.

This past November, Charles Ashley III and Charles Sandidge founded Cultivating Coders which takes an eight-week coding boot camp on the road to tribal, rural, inner-city, and otherwise underserved communities. The program provides graduates with knowledge of full stack web development theories and practical experience including web languages PHP, JavaScript, and HTML. Additionally, the company pairs students with small businesses and nonprofits in our community that need assistance with large web application development. This offers local companies access to technology services and creates job opportunities for the students.

Only 5 months old, Cultivating Coders beat out 18 other startups to share the top prize with another startup called MentorMint. But Ashley and Sandidge are just getting started. Sandidge explained their enthusiasm behind attending the competition, ''If [Cultivating Coders] can find large scale partners—IBM, Microsoft, those places that see the benefit of what we're doing and where we're doing it, and helping with diversity in tech—that's a win for us at South by Southwest.''

Cultivating Coders is increasing the number of minorities in the technology industry and creating new jobs in the process. Mr. Speaker, we need more forward thinking companies like this which serve our communities, promote local businesses, train future leaders in technology, increase diversity, and drive innovation. I look forward to watching Cultivating Coders continue to grow and achieve success. Congratulations Cultivating Coders, keep up the great work.

HONORING LINDA BECK

HON. MICHAEL G. FITZPATRICK

OF PENNSYLVANIA

IN THE HOUSE OF REPRESENTATIVES

Tuesday, April 12, 2016

Mr. FITZPATRICK. Mr. Speaker, as executive director of the Indian Valley Public Library, Linda Beck's dedication and advocacy has inspired a community and, now, after 28 years she is retiring. It is widely known that libraries can be the heart of the community: Billions of Americans gravitate to public libraries each year to read, borrow books, and study. During Linda Beck's tenure, the role of the Indian Valley Public Library expanded to include services beneficial to the greater community, including Internet access for library-goers who may search for employment, schools and general information at their leisure. As executive director, she, and scores of volunteers, have improved the lives of many citizens and inspired both children and adults to read for enjoyment and learning. And so we salute Linda Beck on this milestone, thank her for the leadership she provided and wish her many active retirement years.

RIVERHEAD FREE LIBRARY

HON. LEE M. ZELDIN

OF NEW YORK

IN THE HOUSE OF REPRESENTATIVES

Tuesday, April 12, 2016

Mr. ZELDIN. Mr. Speaker, I rise today to pay a special tribute to honor the Riverhead Free Library's 120 years of service to the community.

Whether it is the Library of Congress in Washington, DC, or the community libraries in our home districts, it is important we recognize the tremendous value provided, even in today's technology-driven society. Since the earliest human civilizations, libraries have served as locations where information has been safeguarded and preserved, in the hopes that future generations are able to read and learn about the events of that time period. Today, our libraries' services to local communities are invaluable, providing important information to our constituents, and serving as meeting locations where people gather or relax and unwind. Libraries are also crucial to ensuring younger generations have access to information for school assignments and otherwise expand their knowledge base.

The Riverhead Free Library was organized and founded on April 4, 1896. The word ''free'' holds special significance, as it meant that all community residents of the time could borrow books without charge. The Library helped to grow and develop the diverse and bountiful community that Riverhead has become today. This service continues into the present, where members of the community go to utilize the wealth of information the library contains, and learn about the great ideas of both past and present. Today, the Library is chartered to serve over 32,000 residents of the Riverhead Central School District, and more than a dozen towns on the East End of Long Island.

It is my distinct honor to represent the Riverhead Free Library in the First Congressional District of New York, and I am grateful for all of the services it provides to my constituents. 120 years of service to the public is no simple feat. It is only through the hard-work and dedication of its employees, and the tireless hours spent overseeing its maintenance and preservation, that have made the library the great center of learning and knowledge it is today. I would like to thank the employees of the Riverhead Free Library and the community of Riverhead for helping to preserve such a significant and special place in my district.

INTRODUCTION OF THE CIVIL WAR DEFENSES OF WASHINGTON NATIONAL HISTORICAL PARK ACT

HON. ELEANOR HOLMES NORTON

OF THE DISTRICT OF COLUMBIA

IN THE HOUSE OF REPRESENTATIVES

Tuesday, April 12, 2016

Ms. NORTON. Mr. Speaker, as we commemorate the 155th anniversary of the start of the Civil War today, my colleague Representative DONNA EDWARDS joins me to introduce a bill to recognize and preserve the Civil War Defenses of Washington located in the District of Columbia, Virginia, and Maryland. The defenses of Washington, including forts, unarmed batteries and rifle trenches, created a ring of protection for the nation's capital during the Civil War. This bill would redesignate the 22 Civil War Defenses of Washington currently under National Park Service jurisdiction as a national historical park, and allow other sites associated with the Civil War Defenses of Washington that are owned by a unit of state governments to be affiliated with the national historic park through cooperative agreements. This bill would also require the Secretary of the Interior to facilitate the storied history of the Civil War for both the North and the South, including the history of the defenses of Washington and the Shenandoah Valley Campaign of 1864, being assembled, arrayed and conveyed for the benefit of the public for the knowledge, education, and inspiration of this and future generations.

The Civil War Defenses of Washington were constructed at the beginning of the war, in 1861, as a ring of protection for the nation's capital and for President Abraham Lincoln. By the end of the war, these defenses included 68 forts, 93 unarmed batteries, 807 mounted cannons, 13 miles of rifle trenches, and 32 miles of military roads. The major test of the Civil War Defenses of Washington came with the Shenandoah Valley Campaign of 1864, when Confederate Lieutenant General Jubal Early, directed by General Robert E. Lee, sought to attack the nation's capital from the north, causing Union Forces threatening to attack Richmond, the capital of the Confederacy, to be withdrawn. General Early was delayed by Union Major General Lew Wallace at the Battle of Monocacy on July 9, 1864, and was stopped at the northern edge of Washington at the Battle of Fort Stevens on July 11–12, 1864. The Shenandoah Valley Campaign ended when Union Lieutenant General Philip Sheridan defeated General Early at the Battle of Cedar Creek, Virginia, on October 19, 1864.

Nearly all the individual forts in the Civil Defenses of Washington—on both sides of the Potomac and Anacostia rivers—were involved in stopping General Early's attack, and the Battle of Fort Stevens was the second and

last attempt by the Confederate Army to attack Washington.

Taken together, these battles were pivotal to the outcome of the war and the freedom and democracy that the war represented for this country. It is therefore fitting that we recognize these sites by redesignating them as a national historic park as we commemorate the 155th anniversary of the start of the Civil War.

I urge my colleagues to support the bill.

HONORING PASTOR LINDA SWEEZER

HON. BENNIE G. THOMPSON

OF MISSISSIPPI

IN THE HOUSE OF REPRESENTATIVES

Tuesday, April 12, 2016

Mr. THOMPSON of Mississippi. Mr. Speaker, I rise today to honor a driven and ambitious woman, Pastor Linda Sweezer. Pastor Sweezer has shown what can be done through hard work, dedication and a desire to make a positive difference in doing God's will and spreading his Word.

Linda Sweezer was born the youngest child in a family of ten to Bessie Dillard and the late Alfred Dillard, Jr. in Vicksburg, Mississippi. She was saved at the tender age of ten.

She is a 1978 graduate of Vicksburg High School and attended and graduated from Milsaps College, Jackson, MS in 1982. She worked at Vicksburg Family Development Service for 19 years—fourteen of those years as the Co-Director.

She was called into the Gospel Ministry on February 5, 1995, ordained in 1997 and again in 2006 by Bishop T.D. Jakes of Dallas, Texas at The Potter's House International. She was called to pastor and founded The House of Peace Worship Church in December 2001. It is known as: ''The Church Where the Holy Spirit is in Charge.'' In May 2006, the Holy Spirit led Pastor Sweezer to begin another church in the Rolling Fork area; it is known as The House of Peace Worship Church International/Delta.

Apostle Linda Sweezer is also a playwright and has written, produced and directed fifteen major productions, which were performed in the theater in the surrounding areas of Vicksburg, Rolling Fork and Fayette, Mississippi and Texarkana, TX.

She is the author of a book entitled, ''Eating Along the Way!—A Survivor's Guide for People Who Are Serious About Hearing God's Call.'' In addition, she was the co-owner of a Christian bookstore.

She was affirmed into the Apostolic calling on July 29th 2011. The Affirmation Ceremony was conducted by Apostle Michael O. Exum, Executive Director of The Potter's House International Pastoral Alliance and Apostle Eyvone Smith of His Harvest Ministries, Oxford, Mississippi.

Some other achievements include: appointed Board Member of the United Way of West Central Mississippi (2011–2014); Director of The House of Peace Substance Abuse Prevention Program; appointed for a second term to the Election Commission (2009–2012); appointed to the Election Commission (2005–2009); appointed twice to the City of Vicksburg Civil Service Commission. Pastor Sweezer was honored as a Local Recipient of 100 Black Women; recognized as a Distinguished African American by St. Mark Freewill Baptist Church; nominated as one of the 50 Leading Business Women of America.

Alpha Phi Alpha Fraternity, Inc. named a scholarship in Pastor Linda Sweezer's name at the Dr. Martin Luther King, Jr. Breakfast and she was appointed to the Vicksburg-Warren School District Advisory Council to develop plans for building Mega Schools. She also has received several awards and recognitions. She was selected by the Ivyettes of Alpha Kappa Alpha Sorority, Inc. as one of the Religious Role Models; Outstanding Young Women of America; Woman of Excellence Award in Art and Literature; Sower of the Lord Award and Peacemaker Award given by the Flying High for Jesus Outreach.

Mr. Speaker, I ask my colleagues to join me in recognizing Pastor Linda Sweezer for her passion and dedication to spread the word of God and desire to make a difference in the lives of others.

COMMEMORATING THE ACHIEVEMENTS OF PATTY FUCHS

HON. DARIN LaHOOD

OF ILLINOIS

IN THE HOUSE OF REPRESENTATIVES

Tuesday, April 12, 2016

Mr. LAHOOD. Mr. Speaker, I would like to recognize Patty Fuchs on her twenty-two years of dedication and service to Goodwill Industries of Central Illinois.

From the very beginning, Patty Fuchs, a native of Peoria, Illinois and the CEO of Goodwill Industries of Central Illinois, strived to support the people around her and ensure success for every facet of the Central Illinois community. A graduate of Peoria High School and Bradley University, where she ultimately earned her master's degree, Patty decided to first give back to the Peoria education system by becoming a teacher at McKinley Grade School. At this point in her life, she discovered her passion for watching people grow to their full potential.

When Patty accepted the CEO position at Goodwill Industries of Central Illinois, she turned a struggling non-profit into a flourishing and successful institution. Under Patty's nearly two decade long tenure, Goodwill Industries of Central Illinois underwent a period of tremendous expansion. Currently, the non-profit oversees eleven stores and provides vocational programs across twenty-one counties. Because of their annual successes, total persons served grew from 100 in 1993 to 1,800 served in 2014. In addition, the organization, today, employees nearly 400 people compared to the mere 65 employed in 1993 when Patty began her role as CEO. These statistics attest to Patty's dedication to the organization and her tireless efforts to successfully expand and develop the non-profit to serve more individuals and families in the community.

Goodwill Industries of Central Illinois as well as the Central Illinois community ultimately benefited under Patty's leadership. I wish her a wonderful retirement surrounded by her family and loved ones. Again, congratulations, Patty, on your successful career and retirement.

TRIBUTE TO WARREN D. ''DUSTY'' WILLIAMS

HON. KEN CALVERT

OF CALIFORNIA

IN THE HOUSE OF REPRESENTATIVES

Tuesday, April 12, 2016

Mr. CALVERT. Mr. Speaker, I rise today to honor and pay tribute to an individual whose dedication and contributions to Riverside County, California, are exceptional. On April 14th, Warren D. ''Dusty'' Williams will be retiring from the Riverside County Flood Control and Water Conservation District after 39 years of dedicated service, including over 13 years as its General Manager-Chief Engineer.

Dusty began his career in June 1977 as a student intern with the District. For the next four decades, he dedicated himself to loyal, conscientious, innovative and outstanding service to residents of the area, culminating with his leadership of the organization. Dusty is recognized as a national leader on flood safety, stormwater capture and environmental regulatory issues. He served as President of the National Association of Flood and Stormwater Management Agencies, on national committees including the National Committee on Levee Safety, and has testified before several Congressional Committees on such important issues as levee safety and amendments to the federal Clean Water Act.

Dusty has also been a strong local partner with the U.S. Army Corps of Engineers; guiding ongoing and critical federal projects including the Santa Ana Main Stem Project and the Murrieta Creek Flood Control Environmental Restoration and Recreation Projects through technical, fiscal and administrative hurdles. I believe the reason Dusty was such an effective leader was the depth and range of his technical expertise, effective communication skills, commitment to excellence and loyalty to his community.

In light of all that Dusty has done for our region and the Riverside County Flood Control and Water Conservation District, it is only fitting to honor him on the occasion of his retirement. Dusty has contributed immensely to the betterment of our community and I am proud to call him a fellow community member, American and my friend. To conclude, Mr. Speaker I want to thank Dusty for his service to the people of Riverside County—his dedication, insight and passion for flood management will be greatly missed.

HONORING VIVIAN LEE ON THE OCCASION OF HER INDUCTION INTO THE WASHINGTON STATE NURSES HALL OF FAME

HON. ADAM SMITH

OF WASHINGTON

IN THE HOUSE OF REPRESENTATIVES

Tuesday, April 12, 2016

Mr. SMITH of Washington. Mr. Speaker, I rise to honor Vivian Lee for her recent induction into the Washington State Nurses Hall of Fame. This a fitting recognition of her years of considerable contributions to the healthcare community.

Mrs. Lee has been an influential leader in Seattle's nursing and healthcare industry for decades by demonstrating her exceptional

commitment to selflessly serving others in need. During her tenure as the Program Management Officer of the federal Title X program, she helped low-income citizens receive family planning assistance, among other healthcare services, at an affordable cost.

Mrs. Lee has also pioneered the way for future African American nurses to be successful in the healthcare field. She holds the distinction of being the first African American to be admitted into the University of Washington's prestigious Bachelors of Science nursing program. She was also the first African American to receive the Washington State School Nurse of the Year Award, serve as a registered nurse at Seattle's VA Hospital, and be hired by the U.S. Public Health Service. Through these notable accomplishments, Mrs. Lee broke historic ground and her example serves as an inspiration to many in our region.

Outside of her impressive record in the healthcare field, Mrs. Lee is actively engaged in important community issues including civil rights, child nutrition, and women's issues. She has shown her passion for women's health by serving as the inaugural leader of the first Federal Regional Office on Women's Health, which has grown to 144 clinics nationwide that focus on women's reproductive health research and national women's health policy. Mrs. Lee has shown her passion for educating and mentoring students by serving on the UW Alumni Board of Trustees, co-founding the UW Multicultural Alumni Partnership, and chairing the UWAA Diversity Committee.

Mr. Speaker, it is with great honor that I recognize Vivian Lee for her admirable achievements in the healthcare and nursing industries. Through her many accomplishments she has continued to improve the quality of healthcare that many people receive in the greater Seattle area.

EQUAL PAY DAY

HON. LUCILLE ROYBAL-ALLARD

OF CALIFORNIA

IN THE HOUSE OF REPRESENTATIVES

Tuesday, April 12, 2016

Ms. ROYBAL-ALLARD. Mr. Speaker, today is Equal Pay Day, which symbolizes how many additional days since the beginning of this year a woman had to work full-time to earn the same amount a man earned last year. The sad truth is that equal pay for American women remains a goal, not a reality.

It is unacceptable that in the 21st century, women still earn just 79 cents for each dollar a man earns. For women of color, the facts are even worse: African American women earn just 60 cents, and Latinas just 55 cents, for each dollar earned by white, non-Hispanic men.

These pay gaps are appalling, and cannot be justified. Today, mothers are the breadwinners or co-breadwinners in more than half of U.S. households. Like men, their families depend on their salaries to pay for shelter, food, their children's education, and health care.

Women merit and deserve equal pay for equal work. Congress must pass the Paycheck Fairness Act. This will strengthen America's families and our national economy as well. Let us reaffirm the simple truth that when women succeed, America succeeds.

HONORING CAROL KUNZE

HON. MIKE THOMPSON

OF CALIFORNIA

IN THE HOUSE OF REPRESENTATIVES

Tuesday, April 12, 2016

Mr. THOMPSON of California. Mr. Speaker, I, along with Representative GARAMENDI and Representative HUFFMAN, rise to recognize and honor Ms. Kunze for her great contribution to the designation of the Berryessa Snow Mountain Monument by President Barack Obama on July 10, 2015.

This outstanding accomplishment was made possible by the tireless work of countless advocates like Ms. Kunze. Their commitment to engaging friends, colleagues, local residents, businesses, stakeholders across the country, and policymakers in a coordinated effort to achieve permanent protection was critical to the establishment of the Monument.

Now, the Berryessa Snow Mountain Monument may be counted among the hundreds of pristine parks across the country that represent America's most treasured public resources. The region's unique geological formations will play host for the world's scientists for years to come. Centuries-old archeological sites will draw curious historians and researchers as they piece together the stories of generations past. And avid bikers, hikers, campers, horsemen, and sportsmen will be able to enjoy this landmark that is now forever open and accessible to outdoor enthusiasts from Northern California and beyond.

The Berryessa Snow Mountain Monument serves as proof of the value of the Antiquities Act and the power of the Executive to protect these lands in the face of inaction by Congress. After extensive input from interested parties and substantial evidence of this region's value, the Obama Administration honored the support of stakeholders, and the gravity of conservation.

The legacy of public lands is one of the most important we can leave for future generations. The Berryessa Snow Mountain Monument is a critical piece of a preservation system that stretches from the Hawaiian Islands to the Maine Coast. It has been a privilege working with Ms. Kunze to further our mutual goal of preserving our nation's great open spaces, and we look forward to collaborating in the future.

IN RECOGNITION OF THE SIKH COMMUNITY OF CONNECTICUT ON VAISAKHI

HON. JOE COURTNEY

OF CONNECTICUT

IN THE HOUSE OF REPRESENTATIVES

Tuesday, April 12, 2016

Mr. COURTNEY. Mr. Speaker, I rise today to recognize the Sikh Community of Connecticut, and their dedicated leaders who are working hard to challenge the misconceptions and stereotypes the Sikh community faces in Connecticut, and the nation as a whole. Many American Sikhs face misunderstanding in their schools and workplaces, despite the over 100-year history of the faith in America. I thank the Sikh Community of Connecticut for their work to bring greater understanding of Sikh values to all Americans. In particular, Mr. Swaranjit Singh Khalsa and the Sikh Sivak Society, who organized an awareness campaign in my district to educate eastern Connecticut residents about Sikhism through public service advertisements seen around town. I was fortunate to meet Mr. Singh in my office recently to discuss the project and the challenges the community is facing.

Sikhism originated in the Punjab region of South Asia, founded on the ideals of devotion to God, service to others, social justice, and equality of all people. Twenty-five million people practice Sikhism all over the world, including 250,000 Sikhs in the United States, making Sikhism the fifth largest religion in the world. Immigration of Sikhs to the United States primarily began in the 1960s, as many came in search of higher education, and stayed to raise families. Indeed, Sikhs have made great contributions to the culture, economy, and society of the United States.

This month, Sikhs all over the world will be celebrating Vaisakhi. This holiday commemorates the founding of the Khalsa, or the collective body of committed Sikhs.

Vaisakhi is a time to acknowledge the values of Sikhism, and the growth of the Sikh community. This year, the Sikh Community of America organized the Freedom March for Sikh Nation on April 9th in Washington, D.C. This event is a time for all Americans to come together to learn about and celebrate Vaisakhi, and bring attention to issues surrounding Sikh identity in the United States.

I ask my colleagues to join me in recognizing the Sikh community for their many contributions to American culture, Mr. Singh for his efforts to bring understanding about Sikhism to my region, and to wish all a joyous Vaisakhi.

TRIBUTE TO ANNIE BRANDT

HON. DAVID YOUNG

OF IOWA

IN THE HOUSE OF REPRESENTATIVES

Tuesday, April 12, 2016

Mr. YOUNG of Iowa. Mr. Speaker, I rise today to recognize and congratulate Annie Brandt for being named a 2016 Forty Under 40 honoree by the award-winning central Iowa publication, Business Record.

Since 2000, Business Record has undertaken an exhaustive annual review to identify a standout group of young leaders in the Greater Des Moines Area that are making an impact in their communities and their careers. Each year, forty up-and-coming community and business leaders under 40 years of age are selected for this prestigious honor based on a combined criteria of community involvement and success in their chosen career field. The 2016 class of Forty Under 40 honorees will join an impressive roster of 640 business leaders and growing.

As the Community Engagement Leader at Thrivent Financial Annie works tirelessly to facilitate generosity across the state of Iowa. She is reminded on a daily basis that the greatest thing a human can do is dedicate themselves to helping and giving to others. Annie exemplifies that professionally and personally. She dedicates her time and talents to a number of organizations in the community including Oakridge Neighborhoods, Des Moines Community Playhouse, Young Women's Resource Center, Habitat for Humanity,

Des Moines Pastoral Counseling Center, Kappa Kappa Gamma, and Lead Like a Lady.

Mr. Speaker, it is a profound honor to represent leaders like Annie in the United States Congress and it is with great pride that I recognize and applaud her for utilizing her talents to better both her community and the great state of Iowa. I ask that my colleagues in the United States House of Representatives join me in congratulating Annie on receiving this esteemed designation, thanking those at Business Record for their great work, and wishing each member of the 2016 Forty Under 40 class a long and successful career.

NATIONAL ACADEMY OF FUTURE SCIENTISTS AND TECHNOLOGISTS—THOMAS TORRES

HON. PETE OLSON

OF TEXAS

IN THE HOUSE OF REPRESENTATIVES

Tuesday, April 12, 2016

Mr. OLSON. Mr. Speaker, I rise today to congratulate Thomas Torres from Houston, TX for being accepted into the National Academy of Future Scientists and Technologists to represent the state of Texas at the Congress of Future Science and Technology leaders.

Thomas attends J. Frank Dobie High School and is one of 13 high school honor students selected from the Twenty-Second Congressional District of Texas. These students were selected as Texas delegates at the Congress of Future Science and Technology Leaders. This program was designed for high school students to be recognized for their hard work in school, as well as to support their aspirations of working in a science or technology field. The National Academy was founded by Richard Rossi and Dr. Robert Darling; Mr. Rossi currently serves as president. The Congress is being held at the Tsongas Center at the University of Massachusetts, Lowell from June 29th through July 1st. Thomas was selected by a group of educators to be a delegate for the Congress thanks to his dedication to his academic success and goals of pursuing science or technology. We are proud of Thomas and all of his hard work, and know he will make Houston proud.

On behalf of the Twenty-Second Congressional District of Texas, congratulations again to Thomas for being accepted into the National Academy of Future Scientists and Technologists. Keep up the great work.

PERSONAL EXPLANATION

HON. KRISTI L. NOEM

OF SOUTH DAKOTA

IN THE HOUSE OF REPRESENTATIVES

Tuesday, April 12, 2016

Mrs. NOEM. Mr. Speaker, on March 23, 2016 I was absent. I would have voted Nay on the motion to recommit H.R. 2745. I would have voted Aye on passage of H.R. 2745. I would have voted Aye on H. Res. 658 Condemning in the strongest terms the terrorist attacks in Brussels on March 22, 2016, which murdered more than 30 innocent people, and severely wounded many more.

TRIBUTE TO EDWARD ''TED'' LOVETT

HON. MICHAEL T. McCAUL

OF TEXAS

IN THE HOUSE OF REPRESENTATIVES

Tuesday, April 12, 2016

Mr. MCCAUL. Mr. Speaker, on behalf of myself and Representative BENNIE G. THOMPSON, I am honored to recognize Mr. Ted Lovett, Director of Legislative Affairs at the Department of Homeland Security, for his decade of selfless public service. Ted has been an exemplary representative of the Department and an incredible resource for the Members and staff of the Committee on Homeland Security.

Ted is the kind of person who goes the extra mile. The most obvious signs of his commitment are his responsiveness, his depth of knowledge regarding policy and legislative matters, his proactive outreach, and the long hours he works to ensure that Members and staff have all the information they need to do their jobs effectively. It is a matter of course to get a phone call or an email from Ted late in the evening or on the weekend to ensure Members have critical information before an issue breaks in the news.

Ted understands the critical nature of the mission to inform Congress, and it is his engagement and honesty that make a real difference. Whether he's providing technical assistance on a proposed bill, or arranging briefings to assist Congress in its mandate to provide oversight, there is no doubt that Ted's tireless efforts and vigilance have made our nation safer and more secure.

Ted has been the Department's legislative manager for the Southwest Border Initiative, Guantanamo Detention, Visa Waiver Program, Western Hemisphere Travel Initiative, REAL-ID, Human Screening Programs, the Merida Initiative, the Global Supply Chain Strategy, and Countering Violent Extremism programs. He also effectively manages DHS participation in Congressional hearings, from Secretary-level to subject-matter experts.

Ted has been critical to providing information and understanding during emerging homeland security events and crises such as the ''Underwear Bomber'' attack on Northwest flight 253 on Christmas Day 2009, the 2014 Unaccompanied Children surge at the U.S. Southwest Border, and the Ebola outbreak in 2014 and 2015.

Over the past decade, Ted has fostered many enduring and trusted relationships with Congress in furtherance and advocacy of DHS priorities in connection with current legislation, prospective legislation and the implementation of security policy. What has always impressed us is that Ted is the epitome of a non-partisan public servant.

On behalf of Ranking Member THOMPSON and the Committee on Homeland Security, I want to commend and thank Ted for his dedication and commitment to keeping the homeland safe and secure and wish him the very best as the next chapter of his life opens.

HONORING THE PAUL LAURENCE DUNBAR HIGH SCHOOL BOYS' BASKETBALL TEAM

HON. ANDY BARR

OF KENTUCKY

IN THE HOUSE OF REPRESENTATIVES

Tuesday, April 12, 2016

Mr. BARR. Mr. Speaker, I rise to honor a very special group of young people. The Paul Laurence Dunbar High School boys' basketball team recently won the Kentucky High School Athletic Association state championship, better known in Kentucky as the ''Sweet Sixteen''.

This event is very competitive and involves talented young athletes from across the Commonwealth of Kentucky. Like any successful endeavor, the victory was won by dedication, hours of practice, determination, and teamwork. The young men worked very hard for this accomplishment and they learned many lessons that will benefit them throughout their lives. I want to give special recognition to head coach Scott Chalk and the entire coaching staff and to thank them for the time and dedication they provided these young athletes.

Paul Laurence Dunbar High School is located in Lexington, Kentucky. This is the school's first ever state championship in boys' basketball. In the first three games of the tournament the Bulldogs posted come-from-behind wins. However, in the final game they led wire to wire, winning 61–52. I congratulate the students and their coaches on the state championship and I am proud to honor them before the United States House of Representatives.

ALMA ARRINGTON BROWN

HON. CORRINE BROWN

OF FLORIDA

IN THE HOUSE OF REPRESENTATIVES

Tuesday, April 12, 2016

Ms. BROWN of Florida. Mr. Speaker, this communication is forwarded on behalf of the constituents of the Fifth Congressional District of Florida and me as we pay tribute to the life of Alma Arrington Brown:

We are deeply and profoundly saddened by the loss of this great woman, mother, grandmother, loved one, friend, philanthropist, community leader and so much more. She was married to the late Ronald H. Brown who served as the Chairman of the Democratic National Committee and President Clinton's Secretary of Commerce. She passed 20 years to the day of his passing.

To her loving children, the Honorable Michael A. Brown and Tracey Brown James; her son-in-law, Kendall James; and her grandchildren, Morgan and Ryan Brown, and Harmon and Calab James, our thoughts and prayers are with you, and our hearts share your loss. She loved and cared deeply for her family, her God and her politics. I hope in some small way you know just how much I cared for and will miss her too.

She was born in Brooklyn, New York. She was a graduate of Fisk University, and received a master's degree from Manhattenville College. She lived the majority of her adult life in Washington, DC. She launched her career as an educator then worked with numerous organizations including the National Council of Negro Women, National Urban League and Girl Scouts of America. While at the District of Columbia

Office of International Business, she worked with the Chinese government to construct a Chinese archway, which helped energize Chinatown. She was also a radio show host at WKYS–FM. She eventually retired as a business executive with Chevy Chase Bank. During her illustrious career, she was a fierce and formidable force for positive change and equality.

She was active with national and community social, civic and political organizations. She had leadership roles with numerous entities including The Links, Inc.; Jack and Jill; The Girl Friends Inc.; and the Smart Set.

She lived her passion for humanity by her actions. As a human rights champion, she dared us to be more than ordinary, she encouraged and pushed us to be better than we even knew we could be. As a citizen of the world, she made us understand and appreciate our individual differences, and all that we hold in common. As a true believer, she simply made us believe by her example. Her standards were high, yet attainable; her truths were straightforward and without embellishment; her voice was strong with reason and reassurance; her directions were clear, simple and intended for keeping our feet on the right path; and her love was great and powerful and showed brightly in her eyes and heart. We are better for having had her in our midst, and we now ask Our Heavenly Father to hold her gently in his loving embrace for all eternity.

HONORING JOHN YAKLIGIAN

HON. JIM COSTA

OF CALIFORNIA

IN THE HOUSE OF REPRESENTATIVES

Tuesday, April 12, 2016

Mr. COSTA. Mr. Speaker, I rise today to recognize Mr. John Yakligian for being named the 2016 Senior Farmer of the Year by the Madera Chamber of Commerce. John's outstanding contributions to the agriculture industry and the Madera community are truly deserving of this special honor.

In 1955, John and his wife, Lois, moved to Madera County and began their journey of farming together. Over the last 62 years, they have farmed a variety of crops including: almonds, raisins, chickens, cotton, small grains, vegetable feed crops, and beans.

Giving back has always been a priority for John. In addition to serving on numerous California Farm Bureau Federation committees and as the President of the Madera County Farm Bureau, John served for 15 years on the Madera Community Hospital Board. He has been a member of the Madera Rotary Club for 42 years and is a founder and active member of the Grace Community Church. John is also a veteran and served in the U.S. Army during the Korean War.

In addition to farming, John volunteered for 35 years at a non-profit organization, Far East Broadcasting Company, before becoming employed as the organization's Executive Vice President and CEO. The organization broadcasts to two-thirds of the world's population in over 141 languages to over one hundred countries.

John's family is very important to him. Lois and John have two children, Phillip and Jane, five grandchildren, and seven great grandsons. John and Lois have given back to their community in many ways, and it is fitting and appropriate to honor them for their accomplishments and efforts.

Mr. Speaker, it is with great respect that I ask my colleagues in the House of Representatives to recognize John as the Senior Farmer of the Year presented by the Madera Chamber of Commerce. John's success is exemplary of the American Dream, and he serves as an inspiration for all of us.

TRIBUTE TO BEN BUENZOW

HON. DAVID YOUNG

OF IOWA

IN THE HOUSE OF REPRESENTATIVES

Tuesday, April 12, 2016

Mr. YOUNG of Iowa. Mr. Speaker, I rise today to recognize and congratulate Ben Buenzow for being named a 2016 Forty Under 40 honoree by the award-winning central Iowa publication, Business Record.

Since 2000, Business Record has undertaken an exhaustive annual review to identify a standout group of young leaders in the Greater Des Moines Area that are making an impact in their communities and their careers. Each year, forty up-and-coming community and business leaders under 40 years of age are selected for this prestigious honor based on a combined criteria of community involvement and success in their chosen career field. The 2016 class of Forty Under 40 honorees will join an impressive roster of 640 business leaders and growing.

As an agent/owner at the Ben Buenzow State Farm Agency, Ben works tirelessly to provide top of the line customer service each and every day so that they can live worry free and know that their money is in good hands. Civically, Ben is one of the most dedicated individuals you will find. He is involved in a number of organizations throughout his community including serving as the director at large for the Urbandale Chamber of Commerce, the founding chairperson of the genYP Young Professionals group in Urbandale and co-chair of the Urbandale Police Department National Night Out event. He is driven by his passion for helping others and doing all he can to improve his community.

Mr. Speaker, it is a profound honor to represent leaders like Ben in the United States Congress and it is with great pride that I recognize and applaud him for utilizing his talents to better both his community and the great state of Iowa. I ask that my colleagues in the United States House of Representatives join me in congratulating Ben on receiving this esteemed designation, thanking those at Business Record for their great work, and wishing each member of the 2016 Forty Under 40 class a long and successful career.

HONORING THE AMERICAN MUSLIM ALLIANCE OF FLORIDA

HON. LOIS FRANKEL

OF FLORIDA

IN THE HOUSE OF REPRESENTATIVES

Tuesday, April 12, 2016

Ms. FRANKEL of Florida. Mr. Speaker, I rise today to honor the American Muslim Alliance of Florida. Through its scholarship program, this organization has served the state of Florida by improving graduating high school seniors' access to higher education.

This year, the American Muslim Alliance of Florida is providing 15 students with scholarships totaling $10,000 to help them further their education. Past recipients have attended some of America's most prestigious universities thanks to these scholarships. I would like to extend my congratulations to this year's scholarship winners, and wish them the best in their future endeavors.

It is my great privilege to recognize the American Muslim Alliance of Florida for the work they have done for these students and South Florida community.

NATIONAL ACADEMY OF FUTURE SCIENTISTS AND TECHNOLOGISTS—SAMUEL YEBOAH

HON. PETE OLSON

OF TEXAS

IN THE HOUSE OF REPRESENTATIVES

Tuesday, April 12, 2016

Mr. OLSON. Mr. Speaker, I rise today to congratulate Samuel Yeboah from Pearland, TX for being accepted into the National Academy of Future Scientists and Technologists to represent the state of Texas at the Congress of Future Science and Technology leaders.

Samuel attends St. Thomas High School and is one of 13 high school honor students selected from the Twenty-Second Congressional District of Texas. These students were selected as Texas delegates at the Congress of Future Science and Technology Leaders. This program was designed for high school students to be recognized for their hard work in school, as well as to support their aspirations of working in a science or technology field. The National Academy was founded by Richard Rossi and Dr. Robert Darling; Mr. Rossi currently serves as president. The Congress is being held at the Tsongas Center at the University of Massachusetts, Lowell from June 29th through July 1st. Samuel was selected by a group of educators to be a delegate for the Congress thanks to his dedication to his academic success and goals of pursing science or technology. We are proud of Samuel and all of his hard work, and know he will make Houston proud.

On behalf of the Twenty-Second Congressional District of Texas, congratulations again to Samuel for being accepted into the National Academy of Future Scientists and Technologists. Keep up the great work.

PERSONAL EXPLANATION

HON. PETER WELCH

OF VERMONT

IN THE HOUSE OF REPRESENTATIVES

Tuesday, April 12, 2016

Mr. WELCH. Mr. Speaker, due to my participation in the Presidential Delegation to Cuba from March 20 through March 22, I was unable to vote on Roll Call 130, 131, 132, 133, 134, and 135. I would have voted on each had I been present.

Roll Call 130: "Aye"
Roll Call 131: "No"
Roll Call 132: "No"
Roll Call 133: "Aye"
Roll Call 134: "Aye"
Roll Call 135: "Aye"

HONORING THE COASTAL BEND COUNCIL OF GOVERNMENTS FOR THEIR 50TH ANNIVERSARY

HON. BLAKE FARENTHOLD

OF TEXAS

IN THE HOUSE OF REPRESENTATIVES

Tuesday, April 12, 2016

Mr. FARENTHOLD. Mr. Speaker, I rise today to honor the Coastal Bend Council of Governments for their 50th anniversary. The group exists to serve 11 counties and 32 cities in South Texas with a host of services, including water quality management and waste management, and coordinates region-wide projects for its member towns and cities.

In an age of too much government, it is great to recognize such a creative and efficient collaboration between local governments and private entities. This terrific volunteer association not only serves, but protects the people of South Texas with 9–1–1 emergency services, criminal justice services, and Homeland Security programs.

For 50 years, the Coastal Bend Council of Governments has provided the Coastal Bend region with cost-efficient services through its unique partnership of the public and private sector. I honor their collaborative service to the South Texas community.

HONORING ARROWHEAD UNITED WAY

HON. PETE AGUILAR

OF CALIFORNIA

IN THE HOUSE OF REPRESENTATIVES

Tuesday, April 12, 2016

Mr. AGUILAR. Mr. Speaker, today I rise to recognize Arrowhead United Way as it celebrates its 125th anniversary. Arrowhead United Way was founded on April 17, 1891 in San Bernardino, California. Today it serves communities throughout California's 31st Congressional District, helping thousands of families access health, education and financial resources in the areas of our region most in need.

Arrowhead United Way's ability to partner with schools, government agencies, local businesses, faith leaders and other groups allows residents throughout the Inland Empire region to access critical everyday services. Arrowhead United Way's advocacy in our communities has advanced the common good and made the Inland Empire a better place to live.

I congratulate Arrowhead United Way on its 125th anniversary and commend the staff, both past and present, who have made and will continue to make a profound difference in the lives of so many families throughout our community.

RECOGNIZING THE HONORABLE AND DEDICATED SERVICE OF CAPTAIN KEITH ''JUDGE'' HOSKINS, COMMANDING OFFICER OF NAVAL AIR STATION PENSACOLA

HON. JEFF MILLER

OF FLORIDA

IN THE HOUSE OF REPRESENTATIVES

Tuesday, April 12, 2016

Mr. MILLER of Florida. Mr. Speaker, I rise to recognize Captain Keith ''Judge'' Hoskins, Commanding Officer of Naval Air Station Pensacola, on the occasion of his retirement from the United States Navy. For more than 27 years, Captain Hoskins has served our Nation with honor and distinction as a combat pilot during Operations Decisive Edge, Southern Watch, Enduring Freedom, and Iraqi Freedom, as a member of the Navy's elite flight demonstration squadron the Blue Angels, as an action officer and executive officer in various high-level functions, as third battalion officer at the United States Naval Academy, and most recently as Commanding Officer of NAS Pensacola.

A native of Parkville, Missouri, Judge was born into a military family, learning the importance of selfless service at a young age from his father, who served in the United States Army. After graduating with a degree in electrical engineering technology from Missouri Western State University, Judge completed Aviation Officer Candidate School in September 1989, and in February 1992, he was designated a Naval Aviator. Early in his career, Judge participated in vital national security missions, when, as a member of the ''Sidewinders'' of VFA–86, he completed a deployment onboard the USS *America*, flying combat missions in support of Operations Decisive Edge and Southern Watch.

Like millions of Americans across the country, Judge was inspired as a child by the Blue Angels, but unlike most of us, he didn't just dream about becoming a Blue Angel—he actually did it. After returning stateside and serving a year as an instructor pilot for the ''Gladiators'' of VFA–106, Judge joined one of the Navy's most visible squadrons—the Blue Angels. During his three seasons as member of the Blues, Judge served as the narrator, opposing solo, and lead solo pilot, and, in addition, he also served as the Blue Angels' operations officer in his final season.

Upon his return to the fleet, Judge was assigned to the ''Fist of the Fleet,'' serving as the operations and maintenance officer of VFA–25. Like so many of our Nation's brave Naval Aviators, the place where Judge truly shined was on the battlefield, and during his time at the ''Fist of the Fleet,'' Judge flew combat missions in support of Operations Enduring Freedom, Southern Watch, and Iraqi Freedom. Through these combat missions and deployments, Judge demonstrated time and again the type of brave and selfless service that exemplifies our Nation's servicemembers.

Throughout his career, Judge has also shown tremendous leadership outside the cockpit, helping fight the Global War on Terror in multiple capacities. During a tour at U.S. STRATCOM, Judge served as an action officer and executive officer in the Plans and Policy Directorate, where he wrote, assessed, and disseminated policy at the highest level as STRATCOM was in the midst of restructuring to fight the Global War on Terror. Judge's excellence and leadership at STRATCOM were recognized by his selection as the aide de camp to the STRATCOM Commander.

After his time at STRATCOM, Judge once again returned to combat posture, leading a command tour with ''The Valions'' of VFA–15, as they served a combat deployment onboard the USS *Theodore Roosevelt* in support of Operation Enduring Freedom. Following the completion of his command tour, Judge helped to mold the next generation of Naval Officers, serving as the third battalion officer at the United States Naval Academy, and as the national director of the NROTC program at the Naval Service Training Command.

In 2013, Judge was named the 56th Commanding Officer of NAS Pensacola. As the Cradle of Naval Aviation, Pensacola and the entire Northwest Florida community are immensely proud of our area's tradition of military service and support for those who wear the uniform. NAS Pensacola is also the proud home of the Blue Angels, and Judge became the first former Blue Angel to command NAS Pensacola.

During his long and distinguished career, Judge has logged more than 3,400 flight hours, 570 arrested landings, and he has been awarded numerous decorations including: the Defense Meritorious Service Medal, Meritorious Service Medal (three awards), Air Medal (three awards with combat ''V''), Navy Commendation Medal (three awards with combat ''V''), Navy Achievement Medal (two awards), and many unit commendations and awards.

Captain Keith ''Judge'' Hoskins embodies the selfless commitment to service, sacrifice, and exceptional skill of our Nation's servicemembers. Throughout his career, he has contributed greatly to keeping our Nation safe and protecting the freedom and liberty of all Americans, and he has also inspired countless others to pursue a career of service through his leadership and example.

On behalf of the United States Congress and the people of Florida's First Congressional District, my wife Vicki and I thank Judge for his service and leadership, we congratulate him on his retirement, and we wish him all the best for continued success in his post-Naval endeavors. Bravo Zulu.

COMMEMORATING THE INDUCTING OF CAPT. JOHN EDGAR TIPTON INTO THE ROTC HALL OF FAME

HON. JOHN SHIMKUS

OF ILLINOIS

IN THE HOUSE OF REPRESENTATIVES

Tuesday, April 12, 2016

Mr. SHIMKUS. Mr. Speaker, I rise today to commemorate the inducting of Capt. John Edgar Tipton into the ROTC Hall of Fame. John grew up in Granite City, Illinois and graduated from Granite City High School in 1989. After graduation he enlisted in the military to serve in Operation Desert Storm. John then went to SIUE and graduated as a Distinguished Military Graduate from the Army ROTC Program in 1995. He had earned many commendations including: a Purple Heart, the Army Commendation Medal, and the Valorous Unit Award. And so it is most certainly fitting that such a heroic and distinguished man should be enshrined here on this historic day, the 100th anniversary of the ROTC.

On May 2, 2004 Capt. Tipton was killed when a piece of shrapnel from an explosion came through the window of his office and struck him. We will forever be indebted to him and to his family for their sacrifice. It is important, however, that we, in remembering his courageous service as a soldier, do not forget his service as a wonderful son, a devoted husband, a loving father, and a beloved friend.

I have had the privilege of knowing both his wife Susie and his in-laws for some time now.

In times like these I am reminded of the comforting words of John 11:25 ''Jesus said to her, 'I am the resurrection and the life. Whoever believes in me, though he die, yet shall he live.' ''

HONORING SHELLEY MARTIN FOR HER SERVICE TO THE PEOPLE OF CALIFORNIA'S 36TH CONGRESSIONAL DISTRICT

HON. RAUL RUIZ

OF CALIFORNIA

IN THE HOUSE OF REPRESENTATIVES

Tuesday, April 12, 2016

Mr. RUIZ. Mr. Speaker, today it is my honor to congratulate and recognize Ms. Shelley Martin: a generous and selfless individual who worked as an integral part of my team for over three years.

Shelley is a long time resident of my congressional district. She grew up in the Hemet Valley and graduated from Hemet High School. She then attended The Lee Strasberg Theatre and Film Institute in Los Angeles, and later returned back to her hometown to serve her community.

For over three years, Shelley was the gold standard for constituent services in my office. She dedicated many hours and energy to constituents, finding solutions in the most difficult cases involving social Security, Medicare, and Veterans.

While working for the People of California's 36th Congressional District, Shelley paid special care and attention to veterans in our communities. Shelley spent countless hours advocating on behalf of veterans who served our country honorably. She treated each constituent who sought help from my office with the patience, care, and respect due to them. Shelley's selfless dedication to serving those in need in my congressional district is commendable and a model for public service.

Shelley remains passionate about serving the community she calls home. In her time with my office, Shelley successfully managed all community engagement in the communities of San Jacinto and Hemet. She is diligent and thorough, and goes above and beyond the call of duty to serve our communities, working hard to ensure that my constituents have the resources that they need.

Her selfless dedication and hard work will be greatly missed. However, her love of public service will not be forgotten. Shelley has transformed the lives of countless individuals and families in my district, and for that I am truly grateful.

I thank Shelly for her dedication and service to the constituents of the 36th district. I wish her well in her future endeavors and look forward to seeing her future accomplishments.

NATIONAL ACADEMY OF FUTURE SCIENTISTS AND TECHNOLOGISTS—TEJES SRIVASTAVA

HON. PETE OLSON

OF TEXAS

IN THE HOUSE OF REPRESENTATIVES

Tuesday, April 12, 2016

Mr. OLSON. Mr. Speaker, I rise today to congratulate Tejes Srivastava from Sugar Land, TX for being accepted into the National Academy of Future Scientists and Technologists to represent the state of Texas at the Congress of Future Science and Technology leaders.

Tejes attends William B. Travis High School and is one of 13 high school honor students selected from the Twenty-Second Congressional District of Texas. These students were selected as Texas delegates at the Congress of Future Science and Technology Leaders. This program was designed for high school students to be recognized for their hard work in school, as well as to support their aspirations of working in a science or technology field. The National Academy was founded by Richard Rossi and Dr. Robert Darling; Mr. Rossi currently serves as president. The Congress is being held at the Tsongas Center at the University of Massachusetts, Lowell from June 29th through July 1st. Tejes was selected by a group of educators to be a delegate for the Congress thanks to his dedication to his academic success and goals of pursuing science or technology. We are proud of Tejes and all of his hard work, and know he will make Sugar Land proud.

On behalf of the Twenty-Second Congressional District of Texas, congratulations again to Tejes for being accepted into the National Academy of Future Scientists and Technologists. Keep up the great work.

HONORING YOLANDA JONES

HON. BENNIE G. THOMPSON

OF MISSISSIPPI

IN THE HOUSE OF REPRESENTATIVES

Tuesday, April 12, 2016

Mr. THOMPSON of Mississippi. Mr. Speaker, I rise today to honor Yolanda Jones, who is a director, counselor and educator.

Yolanda Jones grew up in Greenwood, Mississippi, and after graduating from Greenwood High School she enrolled in Grambling State University.

Although she recalls her time at Grambling fondly, it was her first experience living away from home and she oscillated between being focused on schoolwork and being distracted by the more social aspects of college life. Eventually, she left Grambling before finishing her degree, working a number of odd jobs, both in Greenwood and Jackson, before deciding to re-enroll in JSU in 1999 under a program called Academic Second Chance, which is a program that allowed students, who failed to return and complete their bachelor's degree, to be under a strict retention plan.

The next year Jones, who is fluent in sign language, received her B.A. degree in Disabilities Studies and Hearing-Impaired Education graduating summa cum laude. She also earned a master's degree in rehabilitation counseling from Jackson State University in 2002. She began her career as a counselor in 2002 at MVSU and currently serves as the Director of the Comprehensive Counseling Center, a position she's held since 2007. Jones also has received a master's degree in criminal justice from Mississippi Valley State University.

Additionally, Dr. Jones has also been afforded the opportunity to study abroad In the summer of 2012, she studied in Beijing, China, at the University of Trinidad and the University of West Indies.

Dr. Jones also served as: co-chair of the Financial Aid Appeals Committee, for students that are not meeting satisfactory academic progress; chair of the MVSU Behavioral Intervention Team; Advisory Board Member of the Boys and Girls Club, Inc. (MVSU Unit); and also a statutory member of the Mississippi Blues Commission, where she was appointed in 2013.

Dr. Jones has presented at several state and national conferences, which included: the United States Conference on AIDS (USCA) 2010 in Miami, Florida; the White House Initiative Policy Planning meeting in 2010, where she was selected to serve as the Historically Black Colleges and Universities' representative; and most recently, at the 2015 National Association of Student Affairs Professionals conference (NASAP) in Huntsville, Alabama.

In Dr. Jones' dissertation, ''An Examination of Academic Variables that Explain Persistence to Graduation for Students who take Remedial Courses in Higher Education'', she examined academic variables between two groups of students (students that were required to take remedial courses and students that were not required to take any remedial courses) at public four year institutions to determine if there was a significant difference in their persistence to graduation. Utilizing a quantitative design, she examined the success of the students taking remedial courses as measured by graduation and the number of years it took them to meet their graduation requirements.

She is a scholar/practitioner who continues her research in this area as well as in the areas of retention, student persistence and student success among college students in hope of providing practical application that will assist in increasing the gap in college attendance and graduation rates of all students that enroll in institutions of higher learning. Jones hopes to use her doctorate in order to expand her influence in higher education administration, developing strategies that increase student retention and promote student success.

''Strategic planning is crucial!'' she emphasized. There has always been a plethora of issues in higher education; however, it is pivotal that higher education institutions began making extraordinary efforts to meet students where they are, with special emphasis on the ''under-prepared'' students, in which schools are admitting in alarming numbers every year.''

Mr. Speaker, I ask my colleagues to join me in recognizing Dr. Yolanda Jones, a Director, Counselor and Educator, for her dedication to serving others and giving back to the African American community.

TRIBUTE TO COLLIN R. BARNES

HON. DAVID YOUNG

OF IOWA

IN THE HOUSE OF REPRESENTATIVES

Tuesday, April 12, 2016

Mr. YOUNG of Iowa. Mr. Speaker, I rise today to recognize and congratulate Collin R. Barnes for being named a 2016 Forty Under 40 honoree by the award-winning central Iowa publication, Business Record.

Since 2000, Business Record has undertaken an exhaustive annual review to identify a standout group of young leaders in the

Greater Des Moines Area that are making an impact in their communities and their careers. Each year, forty up-and-coming community and business leaders under 40 years of age are selected for this prestigious honor based on a combined criteria of community involvement and success in their chosen career field. The 2016 class of Forty Under 40 honorees will join an impressive roster of 640 business leaders and growing.

Collin is an interior designer and corporate focus market leader and stockholder at RDG Planning and Design. She is passionate about providing high quality, safe, and functional work environments for her clients. Collin is also an avid proponent of wellness and strives to promote it in her everyday life. Her dedication to wellness comes through in her work at RDG Planning and design as she finds new innovative ways to make client work spaces safe and healthy.

Mr. Speaker, it is a profound honor to represent leaders like Collin in the United States Congress and it is with great pride that I recognize and applaud her for utilizing her talents to better both her community and the great state of Iowa. I ask that my colleagues in the United States House of Representatives join me in congratulating Collin on receiving this esteemed designation, thanking those at Business Record for their great work, and wishing each member of the 2016 Forty Under 40 class a long and successful career.

PERSONAL EXPLANATION

HON. SAM GRAVES

OF MISSOURI

IN THE HOUSE OF REPRESENTATIVES

Tuesday, April 12, 2016

Mr. GRAVES of Missouri. Mr. Speaker, on Wednesday, March 17, I missed a series of Roll Call votes. Had I been present, I would have voted ''YEA'' on Number 127, 128, and 129.

COMMENDING CHIEF ROBERT GUSTAFSON

HON. MIMI WALTERS

OF CALIFORNIA

IN THE HOUSE OF REPRESENTATIVES

Tuesday, April 12, 2016

Mrs. MIMI WALTERS of California. Mr. Speaker, in 1975, Robert Gustafson began his career in law enforcement when he joined the Glendale Police Department. Four years later, he joined the City of Orange Police Department, where he faithfully served our community for decades. His leadership has been critical to the public safety and the betterment of Orange.

Throughout his 41 year law enforcement career, he alleviated some of the most difficult issues facing our community. He oversaw the implementation of the Youth Services Board and the SHIELD program, which provides referrals to families and children in need of additional social assistance.

Furthermore, Chief Gustafson has been instrumental in the City of Orange's efforts to reduce gang violence, helping to establish Orange's Gang Reduction and Intervention Partnership. Additionally, he has been a tireless advocate for those suffering from mental illness, and was awarded Orange Police Department's John Q. Wilson Award for Community Policing for these efforts in 2015.

Chief Gustafson also made the Five Pillars for Success the Department's standard. A selfless leader, he has always put others first and never failed to put the police department and the residents of Orange before himself. He exemplifies selfless public service, and he is a stalwart in our community. We are grateful for his leadership in Orange over the last 37 years.

I thank Chief Gustafson for his tremendous service to the City of Orange and wish him the best in the next chapter of his life.

HONORING JAKE WESTERBERG

HON. KEN BUCK

OF COLORADO

IN THE HOUSE OF REPRESENTATIVES

Tuesday, April 12, 2016

Mr. BUCK. Mr. Speaker, I rise today to recognize Jake Westerberg for his hard work and dedication to the people of Colorado's Fourth District. He served as an intern in my Washington, DC office for the Spring 2016 session of Congress.

This young man's work has been exemplary and I know he has a bright future ahead. He served as a tour guide, interacted with constituents, and learned a great deal about our nation's legislative process. I was glad to be able to offer him this educational opportunity and look forward to seeing him build his career in public service.

Jake plans to continue pursuing his degree at the University of Colorado at Colorado Springs at the conclusion of his internship. As he returns to the great state of Colorado, I wish him the best in his future endeavors. Mr. Speaker, it is an honor to recognize Jake Westerberg for his service this Spring.

IN TRIBUTE TO DR. LESTER THUROW, TRAILBLAZING ECONOMIST AND FORMER DEAN OF THE MIT SLOAN SCHOOL OF MANAGEMENT

HON. SHEILA JACKSON LEE

OF TEXAS

IN THE HOUSE OF REPRESENTATIVES

Tuesday, April 12, 2016

Ms. JACKSON LEE. Mr. Speaker, I rise to pay tribute to Dr. Lester Thurow, the iconoclastic economist and former dean of MIT's Sloan School of Management, who passed away on March 25, 2016.

Lester Thurow was born on May 7, 1938 in Livingston, Montana.

Lester Thurow's father was a Methodist minister and his mother was a teacher.

Lester Thurow worked in the local copper mines for four summers as a young man, but as an excellent student soon found himself on a fast academic track.

Lester Thurow's journey began when he received his bachelor's degree in political economy from Williams College in 1960.

Following his graduation from Williams College, Lester Thurow was awarded a Rhodes Scholarship, where he studied philosophy, politics and economics at Balliol College of Oxford University in London.

Lester Thurow graduated with first class honors from Oxford University in 1962.

In 1964, Lester Thurow earned his doctorate in economics from Harvard University.

Lester Thurow joined the faculty of MIT's Sloan School of Management in 1968 and was appointed dean in 1987, a position he held until 1993.

In 1964, Lester Thurow served on the staff of the Council of Economic Advisors during the administration of President Lyndon Johnson, and served as an economic advisor to Governor Jimmy Carter during the 1976 presidential campaign.

In 1986, Lester Thurow joined with five other leading economic policy experts to found the Economic Policy Institute, the mission of which was to find solutions to address the growing problems of rising income inequality in the United States.

Lester Thurow was a longtime advocate of a political and economic system of the Japanese and European type, in which governmental involvement in the direction of the economy is far more extensive than is the case in the United States—a model that has come to be known as ''Third Way'' philosophy.

He supported policies that would help society and corporations make long-term investments in research in order to spur growth.

Lester Thurow authored several economics books targeted to a general readability in the 1990s, including:

1. ''Head to Head: The Coming Economic Battle Among Japan, Europe, and America'' (1992), which surveyed the post-Cold War economic landscape and suggested that investment and education would be keys to renewing developed economies;

2. ''The Future of Capitalism: How Today's Economic Forces Shape Tomorrow's World'' (1996); and

3. ''Building Wealth: The New Rules for Individuals, Companies, and Nations in a Knowledge-Based Economy.''

Lester Thurow's ability to explain the most complex economic issues created a path for anyone who was willing to listen and learn no matter their social or economic background.

Lester Thurow summarized the impact that economists have on society when he stated that, ''Economists, can for example, always retreat to unobservable variables to explain unwelcome facts.''

Lester Thurow knew that the advice economists give is not always what is the most popular thing to say, but what leaders and students need to hear.

On March 25, 2016, Lester Thurow passed away at his home in Westport, Massachusetts, surrounded by his family.

Lester Thurow is survived by his wife of 18 years, the former Anna Soldinger, of Westport and Tel Aviv; two sons, Torben Thurow and Ethan Thurow, both of Boston; two stepchildren, Yaron Karasik and Yael Shinar, both of Tel Aviv; a brother; and seven grandchildren.

Mr. Speaker, I ask the House to observe a moment of silence for this trailblazing economist and educator whose pioneering work made a significant contribution to our understanding of micro and macroeconomics.

A TRIBUTE TO JOSH BRABY

HON. DAVID YOUNG

OF IOWA

IN THE HOUSE OF REPRESENTATIVES

Tuesday, April 12, 2016

Mr. YOUNG of Iowa. Mr. Speaker, I rise today to recognize and congratulate Josh Braby for being named a 2016 Forty Under 40 honoree by the award-winning central Iowa publication, Business Record.

Since 2000, Business Record has undertaken an exhaustive annual review to identify a standout group of young leaders in the Greater Des Moines Area that are making an impact in their communities and their careers. Each year, forty up-and-coming community and business leaders under 40 years of age are selected for this prestigious honor based on a combined criteria of community involvement and success in their chosen career field. The 2016 class of Forty Under 40 honorees will join an impressive roster of 640 business leaders and growing.

Josh works as a Partner/Project Manager at Neumann Bros. Inc. where he works tirelessly to challenge his team by asking them to stick with the core values of the company but still finding new, innovative ways to improve their overall success. He is driven daily to make the thoughts of his clients a reality through hard work and dedication to his craft. Josh's passion for construction also translates into his civic duties where he is passionate about teaching young people the values of a skilled trade that lasts a lifetime. That passion has led him to create a program for high school students that educates them about construction through hands-on projects.

Mr. Speaker, it is a profound honor to represent leaders like Josh in the United States Congress and it is with great pride that I recognize and applaud him for utilizing his talents to better both his community and the great state of Iowa. I ask that my colleagues in the United States House of Representatives join me in congratulating Josh on receiving this esteemed designation, thanking those at Business Record for their great work, and wishing each member of the 2016 Forty Under 40 class a long and successful career.

NATIONAL ACADEMY OF FUTURE SCIENTISTS AND TECHNOLOGISTS—ALLIX KEAN

HON. PETE OLSON

OF TEXAS

IN THE HOUSE OF REPRESENTATIVES

Tuesday, April 12, 2016

Mr. OLSON. Mr. Speaker, I rise today to congratulate Allix Kean from Katy, TX for being accepted into the National Academy of Future Scientists and Technologists to represent the state of Texas at the Congress of Future Science and Technology leaders.

Allix attends Harmony Science Academy of West Houston and is one of 13 high school honor students selected from the Twenty-Second Congressional District of Texas. These students were selected as Texas delegates at the Congress of Future Science and Technology Leaders. This program was designed for high school students to be recognized for their hard work in school, as well as to support their aspirations of working in a science or technology field. The National Academy was founded by Richard Rossi and Dr. Robert Darling; Mr. Rossi currently serves as president. The Congress is being held at the Tsongas Center at the University of Massachusetts, Lowell from June 29th through July 1st. Allix was selected by a group of educators to be a delegate for the Congress thanks to her dedication to her academic success and goals of pursuing science or technology. We are proud of Allix and all of her hard work, and know she will make Katy proud.

On behalf of the Twenty-Second Congressional District of Texas, congratulations again to Allix for being accepted into the National Academy of Future Scientists and Technologists. Keep up the great work.

CONGRATULATING THE RIBAULT HIGH SCHOOL GIRLS' BASKETBALL TEAM

HON. CORRINE BROWN

OF FLORIDA

IN THE HOUSE OF REPRESENTATIVES

Tuesday, April 12, 2016

Ms. BROWN of Florida. Mr. Speaker, I, Congresswoman CORRINE BROWN, the representative of Florida's 5th congressional district, wholeheartedly congratulate the Ribault High School Trojan girls basketball team in defeating Riverdale Baptist at Madison Square Garden to bring home to Jacksonville the Dick's Sporting Goods High School National Championship trophy. I also would like to extend my congratulations to the coaches, the staff, and the administration and all of the friends of Ribault High School on this tremendous honor.

Beyond a doubt, the Ribault High School girls' basketball team is a powerhouse in the state of Florida, and across the nation. Given that the team has won ten previous state titles and has been ranked as high as ninth in the country, they are a force to be reckoned with! Remarkably, the Lady Trojans made it through the regular season with just one loss. This did not deter them; however, as they Roared back to win the Florida state championship, and follow that up with a national championship victory in New York.

This is now the 4th time a Florida girls team has won this event in the eight years it has been held! Ribault, 30–1 this season, led by their star players Rennia Davis and Nola Carter, along with Day'Neshia Banks, played a press defense which suffocated their opponents throughout the tournament. Indeed, Ribault Coach Shelia Pennick did an outstanding job in maintaining the team's extraordinary discipline and level of fitness throughout the season. Certainly, playing full court defense with that kind of intensity is exhausting, yet her players rarely exhibited any expression of slowing down.

With each succeeding championship, the Lady Trojans basketball team climbs the list of schools with the most state titles in Florida high school athletics, now tied for seventh place with 11 state titles, the most of any girls' basketball team in the state, and a remarkable achievement for a public high school given the presence of so many private schools on the multi-championships list. Beyond a doubt, this outstanding achievement is tremendously exciting for the entire Jacksonville community and I am proud to say once again that on behalf of the constituents of Florida's 5th congressional district, I hereby honor the Ribault Trojans basketball team for their 11th state championship and this year's national title game in New York City's Madison Square Garden—Go Lady Trojans.

LOUISIANA NATIVE BECOMES THE ARMY'S FIRST FEMALE INFANTRY RECRUIT

HON. CHARLES W. BOUSTANY, JR.

OF LOUISIANA

IN THE HOUSE OF REPRESENTATIVES

Tuesday, April 12, 2016

Mr. BOUSTANY. Mr. Speaker, I rise today to congratulate Tammy Grace Barnett of Robeline, Louisiana, for being the first female recruit to enlist with the United States Army infantry.

I am tremendously proud of Tammy, a Louisianian who has stepped forward and answered the call to serve our nation. Prior to enlisting with the Army, Tammy has been serving her community in Louisiana as a law enforcement officer. On April 7, she gave up her Louisiana law enforcement badge and courageously took the Oath of Enlistment to become the first female recruit to enlist in the United States Army infantry division. Ms. Barnett truly reflects the spirit of Louisiana by living a life of service. We are forever indebted to these brave men and women. To commemorate this fact, I submit an article, written by Troy Washington of KSLA News.

LOUISIANA WOMAN MAKES U.S. ARMY HISTORY

(By Troy Washington)

ROBELINE, LA.—A Robeline native is making armed forces history as the first woman to enlist in the infantry in the United States Army.

Women in combat has been a topic of controversy for years, but now progress is being made.

Tammy Barnett was a police officer but traded in her badge to make history.

She's looking forward to seeing action on the front lines and making gains for women in the military.

Thursday, Barnett proudly raised her hand to take the Oath of Enlistment.

Dressed in tennis shoes, jeans and a t-shirt, 25-year-old Tammy Barnett stepped into the history books.

Barnett has been meeting with a recruiter since November and this week, at the military processing unit in Shreveport, she took a leap that's never been made before, she joined the infantry in the U.S. Army.

''They told me that I would be the first female in history to go infantry in the military,'' said Barnett.

Recently, the Defense Department lifted gender-based restrictions on military service. The historic change cleared the way for women like Barnett who want to serve on the front lines.

On April 4, the processing center received word that women would be allowed to sign up for combat jobs. Now, Barnett is hoping that others will follow her lead.

''I hope that I give them the courage, because I'm a small female, if I can do it, they can do it too, this could give them the courage to step out of their comfort zone,'' explained Barnett.

Barnett isn't fond of the limelight, but she has no problem stepping forward when it comes to service.

''I was going to go military police, but infantry is similar, and they are more on the front lines, like law enforcement here and I said that's what I want to do,'' said Barnett.

With her mind made up, Barnett isn't looking back, only forward to a future full of possibilities and breaking barriers for women in the military.

Barnett will head to Fort Benning, Georgia to start training. In the meantime, she says she's going to celebrate her history-making moment by going fishing this weekend.

HONORING EDWINA LYONS

HON. ED WHITFIELD

OF KENTUCKY

IN THE HOUSE OF REPRESENTATIVES

Tuesday, April 12, 2016

Mr. WHITFIELD. Mr. Speaker, I rise today to honor the career of Edwina Lyons from Scottsville, Kentucky.

It can often be difficult to find employees who truly exemplify service, loyalty, integrity and commitment but Edwina has showcased all of these and more during her thirty-four years of service at Dollar General.

Edwina joined Dollar General on May 20th, 1982. She began in the Rework department at the Scottsville Distribution Center and grew her career and her influence through her hard work and dedication to excellence, eventually becoming the Senior Manager of Merchandise Support for the company. The length of Edwina's tenure has only been matched by the depth of her commitment to the Dollar General family.

What is truly inspirational about Edwina is the positive impact she has had on the employees at Dollar General and her community. When she departs in April, her passion for doing the right thing and her deeply rooted values will be missed.

I congratulate Edwina on an exceptional career and wish her well on her next chapter. Undoubtedly, she will continue to be of service to others.

BROADBAND IS CRUCIAL FOR MINNESOTA AND THE COUNTRY

HON. TOM EMMER

OF MINNESOTA

IN THE HOUSE OF REPRESENTATIVES

Tuesday, April 12, 2016

Mr. EMMER of Minnesota. Mr. Speaker, I rise today to celebrate the Blandin Foundation for their dedication to strengthening rural communities in Minnesota. One such way they are making a difference is through various programs, including their outstanding program which aims to increase access to high-speed broadband internet. I am happy to support the Minnesota Broadband Coalition's vision: ''Everyone in Minnesota will be able to use convenient, affordable world-class broadband networks that enable us to survive and thrive in our communities and across the globe.''

Like the Blandin Foundation, I too believe that increasing and expanding broadband in Minnesota is of the utmost importance. Back in February, I had the opportunity to voice my support for broadband expansion at the Minnesota Broadband Conference.

Over the past several decades we have seen the rise of internet and technology due to its ability to improve people's lives. As a result of internet access, more businesses are emerging, new jobs are being created, and more educational opportunities abound.

However, many rural communities in Minnesota do not have consistent access to broadband, preventing their communities from thriving and keeping them at a competitive disadvantage. I commend the Blandin Foundation for their efforts to ensure that all communities have the opportunity to prosper and grow.

HONORING WAVERLY WOODSON DURING BLACK HISTORY MONTH

HON. CHARLES B. RANGEL

OF NEW YORK

IN THE HOUSE OF REPRESENTATIVES

Tuesday, April 12, 2016

Mr. RANGEL. Mr. Speaker, as young soldier in the Korean War, I was honored to follow in the footsteps of many Blacks in the military who exhibited extraordinary heroism and patriotism abroad despite facing discrimination and challenges at home. I would not be where I am today if it were not for my service in the Army. During our annual celebration of Black History Month, I would like to honor an unsung hero from West Philadelphia named Waverly ''Woody'' Woodson, Jr., who served as a young medic of World War II.

This summer will mark the 72nd anniversary of the historic D-Day invasion of World War II. Nearly three-quarters of a century later the event is still revered by all Americans as an example of our military's strength and bravery. However, the life-risking efforts of thousands of Black veterans from the war have gone unnoticed.

The 320th Barrage Balloon Battalion, a unit of all-Black soldiers, landed in France ahead of the main invasion force. The battalion's job was to deploy and man an aerial barrage of massive helium-filled balloons to protect the American forces from enemy bomber airplanes. The balloons forced enemy pilots to fly their planes at higher altitudes to avoid becoming entangled and made it harder to effectively aim their bombs.

Among the 320th was Waverly Woodson, who enlisted in the Army on Dec. 15, 1942, during his second year of his pre-medical studies. He did not wait to be called by the draft; rather he decided to sacrifice his career, comfort and life for his country and the world. Woodson's enlistment placed him in the Anti-Artillery Officer Candidate School but he was told upon completion of his training that there was no spot open for him. Instead, he was sent for medic training with the 320th Barrage Balloon Battalion. He was one of five medics aboard a Landing Craft Tank that left England on June 5, 1944, for a ninety-mile journey towards Omaha Beach.

Waverly's voyage on June 6, 1944, was commenced by a violent charge towards the shore. Along with his unit, Waverly valiantly stormed Omaha Beach in the midst of mines, mortar shells and heavy ammunition, with eyes fixes upon the mission of freedom that lay ahead. As a medic, Army Corporal Waverly Woodson Jr. risked his life to save the crippled and bleeding out American warriors clinging to their last thread of consciousness. He patched and resuscitated dozens if not hundreds of soldiers while he himself was wounded by the shrapnel ripping away at his legs. Woodson's determined efforts directly influenced the result of this battle.

Though he was segregated into a racially organized regiment, he saved the lives of numerous soldiers regardless of their skin color. Woody would later say, on that day ''they didn't care what my skin color was'' and obviously he did not care either. He was bonded to his men by the camaraderie that only war can provoke and a steadfast allegiance to defending the greatest country in the world. His dedication broke down racial divides that day, and this is history that truly deserves recognition.

Woodson was previously nominated for the Medal of Honor, but he never received it. Instead, he was given the Bronze Star, the fourth-highest military honor. There exists no record of what happened to his nomination for the Medal of Honor. Not one of the thousands of Black soldiers who served in World War II received a Medal of Honor in the immediate wake of the war. Something is detrimentally wrong with that.

However, we can always remedy the mistakes of our past. In 1995, I was honored to bring Waverly Woodson and a group of African-American World War II veterans to the floor of the House Chamber and recognize these unsung heroes for their forgotten service. As a veteran myself, I was moved to see that their sacrifice was no longer overlooked but there is more work that we must do.

Black History Month must continue to play a pivotal role in helping all of us remember, preserve, and honor the accomplishments and contributions of the Black leaders of America. The annual celebration serves as a poignant reminder of how much Black history has been lost, forgotten, or in some cases, deliberately erased from the record. The nation's commemoration of Black history is not for the Black community alone, but for our collective and cohesive recognition of American history as a whole.

NATIONAL ACADEMY OF FUTURE SCIENTISTS AND TECHNOLOGISTS—ELIZABETH ORTIZ

HON. PETE OLSON

OF TEXAS

IN THE HOUSE OF REPRESENTATIVES

Tuesday, April 12, 2016

Mr. OLSON. Mr. Speaker, I rise today to congratulate Elizabeth Ortiz from Katy, TX for being accepted into the National Academy of Future Scientists and Technologists to represent the state of Texas at the Congress of Future Science and Technology leaders.

Elizabeth attends Cinco Ranch High School and is one of 13 high school honor students selected from the Twenty-Second Congressional District of Texas. These students were selected as Texas delegates at the Congress of Future Science and Technology Leaders. This program was designed for high school students to be recognized for their hard work in school, as well as to support their aspirations of working in a science or technology field. The National Academy was founded by Richard Rossi and Dr. Robert Darling; Mr. Rossi currently serves as president. The Congress is being held at the Tsongas Center at the University of Massachusetts, Lowell from

June 29th through July 1st. Elizabeth was selected by a group of educators to be a delegate for the Congress thanks to her dedication to her academic success and goals of pursing science or technology. We are proud of Elizabeth and all of her hard work, and know she will make Katy proud.

On behalf of the Twenty-Second Congressional District of Texas, congratulations again to Elizabeth for being accepted into the National Academy of Future Scientists and Technologists. Keep up the great work.

IN RECOGNITION OF THE IMMIGRANTS' ASSISTANCE CENTER

HON. WILLIAM R. KEATING

OF MASSACHUSETTS

IN THE HOUSE OF REPRESENTATIVES

Tuesday, April 12, 2016

Mr. KEATING. Mr. Speaker, I rise today to recognize the Immigrants' Assistance Center (IAC) in New Bedford, Massachusetts on their 45th anniversary, and to thank the Center for its continued service to the community.

Since its establishment in 1971 by members of the local Portuguese community, the IAC has helped immigrants throughout southeastern Massachusetts adjust to their new lives. The IAC is committed to empowering immigrants by providing them with the opportunity to successfully transition into new routines in the United States, while also preserving and maintaining the heritage of their home countries. Through their tireless work, the dedicated staff at the IAC has helped countless individuals overcome the language, economic, and cultural barriers that many immigrants and non-English speakers face upon arriving in their new communities.

Throughout its history, the IAC has also encouraged immigrants to pursue active roles in our communities. By connecting immigrants with civic advocacy groups, religious and charitable organizations, and other community service opportunities, the IAC has inspired numerous immigrants to become passionately involved in helping those who need it most.

Mr. Speaker, I rise to acknowledge the Immigrants' Assistance Center as it celebrates its 45th anniversary. The support provided by the IAC has greatly improved the quality of life for many residents of southeastern Massachusetts. I ask that my colleagues join me in wishing the Immigrants' Assistance Center well in its continued endeavors and I look forward to hearing more about its accomplishments in the years to come.

TRIBUTE TO KATIE ALBRECHT-SNELL

HON. DAVID YOUNG

OF IOWA

IN THE HOUSE OF REPRESENTATIVES

Tuesday, April 12, 2016

Mr. YOUNG of Iowa. Mr. Speaker, I rise today to recognize and congratulate Katie Albrecht-Snell for being named a 2016 Forty Under 40 honoree by the award-winning central Iowa publication, Business Record.

Since 2000, Business Record has undertaken an exhaustive annual review to identify a standout group of young leaders in the Greater Des Moines Area that are making an impact in their communities and their careers. Each year, forty up-and-coming community and business leaders under 40 years of age are selected for this prestigious honor based on a combined criteria of community involvement and success in their chosen career field. The 2016 class of Forty Under 40 honorees will join an impressive roster of 640 business leaders and growing.

Katie serves as the manager of corporate citizenship at Nationwide Mutual Insurance Company. Through her work, she is able to lend a helping hand to those in need and show others the gratification in doing so. Katie's caring and giving spirit is not only part of her professional life. She is a dedicated volunteer in the community and from a young age has always shown a passion for helping others. This year, Katie also became a mother and always finds time to be with her husband and newborn.

Mr. Speaker, it is a profound honor to represent leaders like Katie in the United States Congress and it is with great pride that I recognize and applaud her for utilizing her talents to better both her community and the great state of Iowa. I ask that my colleagues in the United States House of Representatives join me in congratulating Katie on receiving this esteemed designation, thanking those at Business Record for their great work, and wishing each member of the 2016 Forty Under 40 class a long and successful career.

TRIBUTE TO JIM BECK

HON. KEVIN McCARTHY

OF CALIFORNIA

IN THE HOUSE OF REPRESENTATIVES

Tuesday, April 12, 2016

Mr. MCCARTHY. Mr. Speaker, I rise today to honor Mr. Jim Beck, a resident and community leader from Bakersfield, California, on his retirement as the General Manager of the Kern County Water Agency. Over the past three decades with the Kern County Water Agency, Jim has been instrumental in the fight to ensure our community receives the water we need.

Jim received both his Bachelor's Degree and Master's Degree from the University of Pittsburgh. He joined the Kern County Water Agency nearly 32 years ago, moving from an agency chemist to Manager of Improvement District No. 4 to Assistant General Manager. In January 2005, Jim became the General Manager, undertaking an extremely important role for Kern County in California's extremely challenging world of water.

The Kern County Water Agency (KCWA) is the second-largest participant in the California State Water Project (SWP), with an annual allotment of about 1 million acre-feet of water that is delivered to 19 public water agencies through KCWA and provided to serve domestic and irrigation water supplies to families, farms, and businesses located in Kern County. As General Manager, Jim has fought hard to ensure that Kern County gets the water we deserve—the water that we contract and pay for.

The position of General Manager of KCWA is not for the faint of heart. Jim has led the agency through the most recent and currently ongoing catastrophic drought in California—the worst on record. Federal and state laws and regulations have exacerbated drought conditions resulting in significant water supply reductions from the SWP and to Kern County. Notwithstanding Jim's soft-spoken and quiet demeanor, when it comes to water advocacy, Jim has been a vociferous and unwavering ally in efforts to reform these laws and regulations to help ensure our communities get the water they need.

At my request, Jim travelled to Washington, D.C., to testify before the House Committee on Natural Resources on the importance of legislation to reform the laws and regulations that are making it impossible for the Kern County Water Agency to get its full water allocation off the SWP. And, with Jim's and his staff's expertise, legislation was drafted that united all the differing factions in California's complex water system (north and south, east and west, Federal and state) that passed the House in multiple Congresses.

Recognizing the challenges on the SWP, Jim did not stand idly by as surface water supplies became more unreliable. As General Manager, he oversaw significant capital projects at the Kern County Water Agency, including water purification and conveyance infrastructure, to ensure the water that Kern County does receive either from the SWP or Mother Nature is not lost. In addition, as General Manager, Jim oversees one of the largest groundwater banks in California, which has been invaluable as the drought continues.

Jim has been at the forefront of the fight for Kern County farmers and families. Drive up and down the Central Valley and you will see signs that say ''Food Grows Where Water Flows.'' The water that Jim and KCWA have gotten for Kern County, part of California's ''Salad Bowl,'' ensures that our community, state, and nation have access to healthy fresh fruits, vegetables and nuts and that the southern Central Valley continues to thrive.

Jim exemplifies how one can serve their community with quiet fortitude and dedication over the years. Jim and I have been in the trenches together on California water, and I have enjoyed working with him and his no-nonsense style as we fought to protect Kern County water. After many years in public service, I know that Jim looks forward to spending more time with his wife, Diane, and two sons, Chandler and Braden. Jim will be missed in the world of Kern County and California water, but I salute his lifetime of service and on behalf of our county and state, I wish him the best as he begins this new chapter of his life.

RECOGNIZING THE 37TH ANNIVERSARY OF THE TAIWAN RELATIONS ACT

HON. EARL L. "BUDDY" CARTER

OF GEORGIA

IN THE HOUSE OF REPRESENTATIVES

Tuesday, April 12, 2016

Mr. CARTER of Georgia. Mr. Speaker, I rise today to mark the 37th Anniversary of the Taiwan Relations Act and to recognize the long-standing U.S.-Taiwan relations. For the past 37 years, the Taiwan Relations Act has served as the cornerstone of the friendship between the United States and Taiwan that has been a mutually beneficial economic, cultural, and strategic relationship.

The United States and Taiwan share many of the same values, including democracy, freedom of speech and rule of law. The relations between our two countries have grown to include areas of trade, national security, and people-to-people exchanges. Taiwan has also joined the United States in providing essential humanitarian aid and promoting peace throughout the world.

As a member of the Congressional Taiwan Caucus, I am continuously supportive of efforts to strengthen the friendship between our two countries.

In commemorating the 37th Anniversary of the Taiwan Relations Act, I commend the work that has been done between our two countries to further democracy, and I look forward to strengthening our relationship with Taiwan in the future.

IN MEMORY OF BILL WEST

HON. JOE WILSON

OF SOUTH CAROLINA

IN THE HOUSE OF REPRESENTATIVES

Tuesday, April 12, 2016

Mr. WILSON of South Carolina. Mr. Speaker, on Sunday, April 10, 2016, a Celebration of Life was conducted for William Otis West, Sr., at Holland Avenue Baptist Church of West Columbia, South Carolina, with services warmly conducted by Pastor Dow Welsh, Pastor Charles Wilson, and Dr. Bill Davidson. Musical selections were performed by Carroll Crawford, Bobby Bland, Bob Michalski, Emily Lipscombe, and Stacey Arnold.

I was grateful to provide a remembrance along with Lexington County Chronicle Editor Jerry Bellune.

A thoughtful obituary was published March 31, 2016, in the Lexington County Chronicle:

WEST COLUMBIA.—William O. ''Bill'' West passed away peacefully on Friday, March 25, 2016, at the age of 76. He was born in 1939, a son of Elizabeth and Edward West in Spartanburg, S.C.

Bill was a well-known face and voice in television and radio in South Carolina but his heart was always in newspaper journalism. Despite severe health problems, Bill continued to serve South Carolina journalism through a long career as editor of The Dispatch-News in Lexington and recently as columnist and senior editor at the Lexington County Chronicle.

His passion for print led him to serve the South Carolina Press Association as editor of the SCPA Bulletin. Bill was honored to be named State Journalist of the Year in 2009.

He was also honored for his coverage of the community by a local activist group that calls itself the Cayce Mafia, and with the Order of the Palmetto Patriot by Lt. Gov. Andre Bauer and long-time political activist Mickey Lindler.

After being named S.C. Press Association Journalist of the Year, Bill's comment was, ''I wasn't called to the pulpit, but to the press. And the past 50 years I have been very blessed by people, my writing and my God.''

Bill is survived by his wife Anne Foster West; four children and their spouses, Suzanne Davidson and Joe, Fred West and Michelle, Joe West and Elizabeth, and Billy West; six grandchildren, Bryce Davidson, Alex Davidson, Connor Davidson, Foster West, Grace Anne West and Joseph West, and a brother, Eddie West.

Services will be at 3 p.m. Sunday, April 10, 2016, at Holland Avenue Baptist Church, 12th Street in Cayce. The Rev. Dow Welsh, The Rev. Charles Wilson and Dr. Bill Davidson will officiate. The family will receive friends immediately after the service.

Donations in his memory may be made to the Flower Ministry at Holland Avenue Baptist Church.

My remembrance remarks for the Holland Avenue Baptist Church service are presented:

Ladies and Gentlemen,

Family and friends of Bill and Anne West,

I am humbled and grateful that Bill has requested I participate in this celebration of life, especially in the company of Jerry Bellune and his wife MacLeod Bellune, who love this community and the West family.

Holland Avenue Baptist has extraordinary members. This year in January I attended the celebration of life of Johnnie Neese, a lady who made a positive difference, as a founder of a new political party in the 1960s, which is now the majority party of our community and state. She and her husband Harry were courageous.

It is clear that Bill West, a gentleman, has made a positive difference. I share his passion for print media as I was editor of my high school, college and law school newspapers, but unlike Bill, he was a superstar, being editor of the The Dispatch-News, then on to edit the South Carolina Press Association Bulletin, becoming the S.C. Press Association Journalist of the Year in 2009, before enthusiastically being a columnist and senior editor of the Lexington County Chronicle.

I saw firsthand of his professionalism, not as a journalist, but as an elected official who he professionally grilled. His thoughtful questions were very perceptive and he was evenhanded, asking the same questions, in the same tone, to friend or foe. He fulfilled his duty to inform the public with a community newspaper. I will always cherish his evenhandedness and even though he knew I admired him, his inquiries were solid and not fluff. He respected the readers by providing the truth for them to determine their views.

When he called, I always dropped everything to return the call because I knew he had a strict deadline. I also hoped it would give me a chance to speak with Anne. They are a great team raising four wonderful children and six talented grandchildren who mean so much to Roxanne and myself.

I am grateful to Bill for giving me the opportunity to be here today with a dedicated wife, family and friends. I know the Lord has welcomed Bill. ''Well done, Good and Faithful Servant.'' God Bless the West Family.

FOURTH DISTRICT OF COLORADO DELEGATES TO THE CONGRESS FOR FUTURE MEDICAL LEADERS

HON. KEN BUCK

OF COLORADO

IN THE HOUSE OF REPRESENTATIVES

Tuesday, April 12, 2016

Mr. BUCK. Mr. Speaker, I rise today to recognize nine high school students from the fourth district of Colorado, who were selected to represent the state of Colorado as delegates at the Congress for Future Medical Leaders. The students are Tolani Adeleye of Erie High School, Danae Beauprez of Yuma High School, Cody Benson of Chaparral High School, Paola Cabrales of Lamar High School, Kali Dodd of Douglas County High School, Katie Emberley of Silver Creek High School, Ashley Joplin of Legend High School, Andrea Russell of Laurel Springs High School, and Michelle Scoggins of Windsor High School.

The Congress of Future Medical Leaders is an honors program that recognizes exceptional high school students who are pursuing careers as a physician or in medical research.

These students are the future leaders of the medical field and our country. Through their studies, they have embodied the meaning of hard work and perseverance to achieve their goals, and will better the health of future generations

Mr. Speaker, I am delighted to recognize these nine students for their hard work and service to their community. I wish them luck in their future endeavors.

TRIBUTE TO LIZ ADELMAN

HON. DAVID YOUNG

OF IOWA

IN THE HOUSE OF REPRESENTATIVES

Tuesday, April 12, 2016

Mr. YOUNG of Iowa. Mr. Speaker, I rise today to recognize and congratulate Liz Adelman for being named a 2016 Forty Under 40 honoree by the award-winning central Iowa publication, Business Record.

Since 2000, Business Record has undertaken an exhaustive annual review to identify a standout group of young leaders in the Greater Des Moines Area that are making an impact in their communities and their careers. Each year, forty up-and-coming community and business leaders under 40 years of age are selected for this prestigious honor based on a combined criteria of community involvement and success in their chosen career field. The 2016 class of Forty Under 40 honorees will join an impressive roster of 640 business leaders and growing.

Liz is the founder and CEO of Adelman Public Relations, one of the premier public relations firms in Central Iowa. She has also been tirelessly dedicated to her community and it's evident through her involvement in several area non-profits, including co-founding Art Week Des Moines, and fundraising for Central Iowa Shelter and Services, Heroes for Homeless, and Cheers for Children. Through all of her community involvement and dedication to growing her business Liz still finds time to be with her husband and three boys, Michael, Ben, and Sammy.

Mr. Speaker, it is a profound honor to represent leaders like Liz in the United States Congress and it is with great pride that I recognize and applaud her for utilizing her talents to better both her community and the great state of Iowa. I ask my colleagues in the United States House of Representatives to join me in congratulating Liz on receiving this esteemed designation, thanking those at Business Record for their great work, and wishing each member of the 2016 Forty Under 40 class a long and successful career.

WITH LIBERTY AND JUSTICE FOR ALL BY JESSICA HUANG

HON. PETE OLSON

OF TEXAS

IN THE HOUSE OF REPRESENTATIVES

Tuesday, April 12, 2016

Mr. OLSON. Mr. Speaker, I am privileged to interact with some of the brightest students in

the 22nd Congressional District who serve on my Congressional Youth Advisory Council. I have gained much by listening to the high school students who are the future of this great nation. They provide important insight from across the political spectrum that sheds a light on the concerns of our younger constituents. Giving voice to their priorities will hopefully instill a better sense of the importance of being an active participant in the political process. Many of the students have written short essays on a variety of topics and I am pleased to share them with my House colleagues.

Jessica Huang attends Dawson High School in Sugar Land, Texas. The essay topic is: With Liberty and Justice for all.

''You will never be a part of Congress.'' To this day, this statement by a past mentor is one of the main motivators that pushes me to strive towards my vocational goal of working in the government, and working my way up to become a state representative or senator someday. To any rational person, one could see that the numbers are against me—only about a fifth of Congress is women, and 11 members are Asian. Thus, being an Asian female, the overwhelming tide of numbers is clearly not in favor of my aspirations. Nevertheless, these numbers and my fifth grade teacher, who did not believe I had a chance simply due to my ethnicity and background, did not phase me. Through passion, empathy, and commitment, I strongly believe that I will one day be able to sit on Capitol Hill, in spite of my race, my gender, or others who believe I do not have a chance to make it as an Asian female politician.

I have always been interested in how government functions; it amazes me how much influence one person or representative can have over millions of people. I realize how necessary government is, and we need a government not only to protect us, but to represent us, to make life fair and equal for all. Yet, I have always found something quite contradictory in the above statement that, if a democratic government such as ours was meant to 'represent' its people, why are our representatives mostly Anglo-Saxon? Mostly male? Mostly of the upper class? It seems as if only a small portion of the American population even has a say or a position; yet Americans believe they are all 'free' and 'equal.' That may be true on paper, but when observing whole group or crowds of people, skepticism can set in.

This is what makes the political process so challenging in my opinion—the lack of representation in Congress of minority groups can make many feel oppressed, and students like me feel like we don't have a chance to achieve our dreams and goals. Regardless, I hope to be a part of the change—to become a Congresswoman and be an example to younger minority Americans who aspire to be government officials, too. After all, if we wish to be world leaders in the international community, we must first figure out internal politics to truly give ''liberty and justice for all.''

RECOGNIZING MIKE HAYWARD AND HIS YEARS OF SERVICE AND DEDICATION TO THE PEOPLE OF WALLOWA COUNTY, OREGON

HON. GREG WALDEN

OF OREGON

IN THE HOUSE OF REPRESENTATIVES

Tuesday, April 12, 2016

Mr. WALDEN. Mr. Speaker, I rise today to recognize my good friend Mike Hayward for his many years of dedicated public service in Wallowa County. Mike has retired after serving 19 years on the Wallowa County Board of Commissioners, serving 15 of those years as Chairman, and I would like to pay tribute to his leadership for the people of Wallowa County and northeastern Oregon.

Born and raised in Pullman, Washington, Mike developed an early affinity for the outdoors, taking jobs in agriculture in his youth before going on to earn a degree in forestry from Washington State University. While at Washington State, he earned a summer internship that stationed him at Wallowa Lake State Park in Joseph, Oregon. After graduation, he was hired on full time at the park, which is where he eventually met his future wife, Beverly.

Mike's work with Oregon State Parks took him around the state, but in 1980, he and Bev felt the pull to return to Wallowa County and be closer to their family. Shortly thereafter, Mike took his management skills into the private sector when he and Bev bought Eagle Cap Chalets at the base of the Wallowa Mountains, which they managed for 8 years.

Surrounded by federally managed public forest and range lands, timber and livestock production has long been the base of Wallowa County's economy. Mike's knowledge of forestry and agriculture as well as several years of community leadership roles, including a seat on the Joseph City Council and time spent directing the local Chamber of Commerce, led several of his close friends to suggest he run for County Commissioner in 1997.

Since then, Mike has constantly kept a sharp eye out for opportunities to represent and defend the County's interests as a leader of a number of organizations including the Grand Ronde Model Watershed Council, Northeast Oregon Housing Authority, Association of Oregon Counties, Wallowa-Union Railroad, and several regional forestry collaboratives and resource advisory committees.

When 57 percent of your county is controlled and often mismanaged by the federal government, working to grow the economy and opportunities for the local communities can be an understandably frustrating process at times. Yet, Mike's knowledgeable, hard-working and even-keeled approach led him to become recognized as a leader on public lands and other natural resource issues affecting counties across eastern Oregon.

Over the years, I got to know Mike well and came to rely on this counsel as well. Whether it is travel management plans on the Wallowa-Whitman, or the on-going Blue Mountain Forest Plan Revision process, I appreciated Mike's useful input and insight as we worked together to find creative solutions to the challenges facing Wallowa County and their neighbors in northeast Oregon.

As Mike takes on his new role as General Manager for the Wallowa County Grain Growers, his retirement from elected office doesn't mean Wallowa County will be losing his leadership or knowledge. Dedicated to his community, I know Mike will find a number of ways to continue serving and giving back. For the last six years, Mike and Bev have donated and served a community wide Thanksgiving Dinner in Enterprise. Such acts of generosity are a perfect example of the dedication Mike has shown over the years to the fellow members of his community.

Above all, Mike is dedicated to his family. He and Bev returned to the county over 36 years ago to be closer to family, and I know that he is now looking forward to having a little more time to spend with his wife and grandchild.

Mr. Speaker and my colleagues, please join me in recognizing and thanking my good friend, Mike Hayward, for his many years of leadership in Wallowa County. I wish Mike all the best in his new pursuits.

VOTER SUPPRESSION CONTINUES, SO WE MUST CONTINUE THE FIGHT

HON. TERRI A. SEWELL

OF ALABAMA

IN THE HOUSE OF REPRESENTATIVES

Tuesday, April 12, 2016

Ms. SEWELL of Alabama. Mr. Speaker, today on this Restoration Tuesday, I rise to acknowledge the continued voter suppression around the country during this election year and the ongoing battle to protect the constitutional right to vote.

While the House was in recess, the state of Wisconsin seemed to digress in a decline of democracy through its restrictive voting laws hindering the most essential right on which this great democracy was founded; the right to vote. The newly implemented voter ID laws of Wisconsin have been compared to the poll taxing of the Jim Crow era and created a significant hardship disproportionately affecting some of the state's most vulnerable groups seeking identification to vote.

After the Supreme Court struck down Section 4 pre-clearance requirements in 2013, several states, including Alabama, took that ruling as a license to trample on the Constitution and violate the voting rights of vulnerable communities and constituents across the nation. This election year has been especially revealing of the great danger involved in silencing the American voice and hindering their Constitutional right to vote. Enough is enough, and this continued voter suppression must stop now.

As devastating as it has been to see this ongoing suppression of the American vote, we can find strength and hope in our country's strong stance for democracy and equality when we look to the recent Supreme Court Ruling on the Texas ''one person, one vote'' case. The Supreme Court's refusal to change the way state and municipal districts are drawn and upholding representation based on total population truly affirmed our nation's brand as a democratic society. The Justices of the Supreme Court delivered a strong singular statement that being ineligible to vote doesn't make one invisible.

Fundamental to our democracy is that all men and women are vested with certain inalienable rights and voting is essential to those founding principles. Permanent residents have rights, the disabled should be protected, immigrants and the incarcerated should be included. The Supreme Court decision makes it clear that all people matter and all people should be counted.

We must remember that we are always more powerful united than divided and we all must continue to support equal representation and full protection of voting rights for all Americans. On this Restoration Tuesday, I give us all the charge to battle against the continued suppression of the American vote and stand strong by our principles of democracy, liberty and justice for all.

CONGRATULATING THE SEA ISLANDS SOCIETY

HON. MARK SANFORD

OF SOUTH CAROLINA

IN THE HOUSE OF REPRESENTATIVES

Tuesday, April 12, 2016

Mr. SANFORD. Mr. Speaker, I rise today based on the simple notion of service to others, and accordingly I would like to say a few words regarding the Islands Society. A nonprofit headquartered on Hilton Head Island, South Carolina, the Society's mission is to encourage islanders around the world to participate in the international community. For that mission, the Society has been recognized as one of the up-and-coming organizations by the United Nations Foundation. They also named its president and founder, Michael Edward ''Eddie'' Walsh, as a person to watch who wants to change the world.

Our region's group—The Sea Islands Society—is the only nonprofit on Hilton Head Island to be recognized as a top-rated nonprofit by GreatNonprofits. For this, I wanted to congratulate them on the achievement.

I think it is encouraging to see an organization reaching out at a local level and actively encouraging them to become leaders in the field of foreign policy.

HONORING MR. MATT PERRY

HON. MIKE THOMPSON

OF CALIFORNIA

IN THE HOUSE OF REPRESENTATIVES

Tuesday, April 12, 2016

Mr. THOMPSON of California. Mr. Speaker, I rise today to honor Mr. Matt Perry, who will retire on April 2, 2016 after 28 years serving the citizens of Lake County, California in county administration. I wish him a happy retirement and hope he can spend more time with his wife, Julie, and his sons and daughter-in-law Chandler, Caleb, and Ashley.

Mr. Perry completed a master's degree in Public Administration and a bachelor's degree in History at Brigham Young University in Utah, before moving to California to begin his career with Lake County in 1988 as an Administrative Analyst. Through his exemplary skills and dedication to his work, he quickly earned more responsibility and higher positions, and became a County Administrative Officer in 2012.

Lake County relied on Mr. Perry's fiscal and management expertise to navigate some of the county's most challenging periods, including the Great Recession and the Valley Fire in 2015. Mr. Perry's ability to manage everything from detailed budgeting tasks to the oversight of complex county projects demonstrates not only his value to Lake County, but also his passion for exemplary public service.

Mr. Speaker, throughout his career, Mr. Perry generously offered his time and knowledge to serve the people of Lake County and ensured prudent fiscal management for the county. Therefore, it is fitting and proper that we honor him here today and extend our best wishes to him in retirement.

TRIBUTE TO MIKE BARRATT

HON. DAVID YOUNG

OF IOWA

IN THE HOUSE OF REPRESENTATIVES

Tuesday, April 12, 2016

Mr. YOUNG of Iowa. Mr. Speaker, I rise today to recognize and congratulate Mike Barratt for being named a 2016 Forty Under 40 honoree by the award-winning central Iowa publication, Business Record.

Since 2000, Business Record has undertaken an exhaustive annual review to identify a standout group of young leaders in the Greater Des Moines Area that are making an impact in their communities and their careers. Each year, forty up-and-coming community and business leaders under 40 years of age are selected for this prestigious honor based on a combined criteria of community involvement and success in their chosen career field. The 2016 class of Forty Under 40 honorees will join an impressive roster of 640 business leaders and growing.

Mike serves as vice president and financial consultant at Charles Schwab where he has been helping his clients manage their wealth and reach their financial goals. He focuses on changing the lives of individuals through financial freedom and firmly believes that once you change one life, you can change many. Not only is Mike successful professionally but he is deeply involved in the community. He serves as a board member at the Food Bank of Iowa and works tirelessly to eradicate food insecurity in his community.

Mr. Speaker, it is a profound honor to represent leaders like Mike in the United States Congress and it is with great pride that I recognize and applaud him for utilizing his talents to better both his community and the great state of Iowa. I ask that my colleagues in the United States House of Representatives join me in congratulating Mike on receiving this esteemed designation, thanking those at Business Record for their great work, and wishing each member of the 2016 Forty Under 40 class a long and successful career.

ESSAY BY GRANT DENTRY

HON. PETE OLSON

OF TEXAS

IN THE HOUSE OF REPRESENTATIVES

Tuesday, April 12, 2016

Mr. OLSON. Mr. Speaker, I am privileged to interact with some of the brightest students in the 22nd Congressional District who serve on my Congressional Youth Advisory Council. I have gained much by listening to the high school students who are the future of this great nation. They provide important insight from across the political spectrum that sheds a light on the concerns of our younger constituents. Giving voice to their priorities will hopefully instill a better sense of the importance of being an active participant in the political process. Many of the students have written short essays on a variety of topics and I am pleased to share them with my House colleagues.

Grant Dentry attends Pearland High School in Pearland, Texas. The essay topic is: Select an important event that has occurred in the past year and explain how that event has changed/shaped our country.

For 54 years, the United States and Cuba have been hostile towards each other. The hostility stemmed from close diplomatic relations formed between Cuba and the USSR against the United States during the Cold War era. However, as of December 17, 2014 Barack Obama and Cuba's current leader Raul Castro agreed to normalize the relations between each other and lift restrictions placed on travel, trade and diplomatic embassies.

Reuniting the alliance of the United States and Cuba is now called ''The Cuban Thaw''. This is a significant event because it ends the last of the conflict and tensions from the Cold War which ended in 1991. This event should help both countries because we will soon be able to trade freely with each other which helps boost both economies. Also, the House of Senate removed Cuba from the United States State Sponsor of Terrorism list and the United States returned five Cuban prisoners after they returned two of our prisoners. Both governments have allowed visitation between the two countries and are positioned to lift the ban on financial transactions between banks. Cruise lines have also been approved by both governments as well as commercial flights between the countries which is expected to bolster tourism. U.S. telecommunications companies are now allowed in Cuba which will help their infrastructure, although many Cubans may not be able to afford cell phones yet. Reuniting with Cuba may also help to soften and eliminate their communist ways of government. Because of these two countries cooperating with each other again, it builds a better reputation for the U.S. and helps expand our global networking and economic power. Many American business owners can now expand their markets to include Cuba which is a short distance from the Florida coast. The United States is now open to Cubans who want to expand their business into the U.S. which will greatly help Cuba and create new jobs in both countries.

Due to this new alliance, both countries can become stronger and benefit from each other through mutual trade, travel and business. It is a major boost to the U.S. economy because we can import and export with Cuba at a low cost due to the close proximity. The improved business activity and restored diplomatic relations with a close neighbor is good for the United States and the world.

HONORING MRS. LATONYA WILLIAMS-BRADLEY

HON. BENNIE G. THOMPSON

OF MISSISSIPPI

IN THE HOUSE OF REPRESENTATIVES

Tuesday, April 12, 2016

Mr. THOMPSON of Mississippi. Mr. Speaker, I rise today to honor a remarkable entrepreneur, Mrs. LaTonya Williams-Bradley.

Strands of long, black locks fell effortlessly onto the floor as a pair of young eyes looked on eagerly—carefully observing the technique of the hands behind the shears that snipped away to create a new, edgy look.

Mrs. Williams-Bradley of Cleveland watched intently as her mother cut, washed and curled mane after mane, building a strong clientele at her Rosedale salon.

She remembers while sitting and observing her mother at her salon as a child, that she desired to follow in her mother's footsteps and become a hair stylist.

But, what she didn't know was that she would also become an agent, to help others do the same, as owner and CEO of Goshen School of Cosmetology in Cleveland, Mississippi.

As a single parent Mrs. Williams-Bradley received her cosmetology education at Coahoma Community College in Clarksdale, Mississippi, where she graduated in 2006.

After passing the state licensure to become a licensed cosmetologist, Mrs. Williams-Bradley returned to Coahoma Community College to further her cosmetology career to become a cosmetology instructor and completed that course of study in 2009. She was immediately offered the opportunity to become a cosmetology instructor at Coahoma Community College.

After working at Coahoma Community College she worked at Blue Cliff College in Gulfport, Mississippi as a cosmetology instructor.

During her tenure as an instructor she decided that it was time to pursue her dream of owning her salon and began researching entrepreneurship practices and opportunities, eventually, deciding it was time to pursue her dream of one day opening her own salon. In 2011, she opened Goshen Salon and Boutique in Cleveland, Mississippi. She chose the biblical name Goshen because it is a land of plenty, comfort and growth in Egypt. On July 29, 2013 she opened Goshen School of Cosmetology with a core curriculum and institution designed to promote growth, increase and comfort.

Now, what was once the dream of a little girl has become a reality. Mrs. Williams-Bradley has enjoyed substantial success in the exciting field of cosmetology. Where over the last nine-years she owned and managed two successful hair salons while teaching at two colleges, inspired numerous students to strive for excellence and to achieve their maximum potential.

The motto she shares with others is ''Whatever is your passion and your heart's desire—pursue it and be the best at it and believe that there is nothing too hard for God.''

Mrs. Williams-Bradley is married to Tony Bradley and has four children: Teara, Tamaryea, Zira and Lauren. She is the daughter of Freddie and Barbara Graham and has two (2) siblings: Erica Jackson and Beauty Braham.

Mr. Speaker, I ask my colleagues to join me in recognizing an amazing entrepreneur.

HONORING ROGER LINDSEY

HON. JASON SMITH

OF MISSOURI

IN THE HOUSE OF REPRESENTATIVES

Tuesday, April 12, 2016

Mr. SMITH of Missouri. Mr. Speaker, I rise today to honor Roger Lindsey for his time and service to Cabool, Missouri. Roger has been an active member of the community and has shown great integrity and perseverance throughout his banking career.

Roger started as a Cabool State Bank custodian in 1962 while he was still attending Cabool High School. He later became a teller, then a cashier and treasurer. In 1998 he became President of the bank, holding that position until retirement. His story exemplifies the American dream, and he was shown that hard work and determination reap great rewards.

Roger also holds various titles within the community. He is the Past President of the Cabool Chamber of Commerce, Past President of the Cabool Alumni Association, and Past President of the Twin Cities Industrial Corporation. He is the Treasurer of the Gentry Residential Treatment Center Community Liaison Council, a member of the Cabool Athletic Booster Club, a member of the Cabool Votec advisory board, and a former coach for youth baseball leagues.

His involvement and contributions to the Cabool community serve as a great example for all Missourians. For his outstanding career and community achievements, it is my pleasure to recognize Roger Lindsey before the United States House of Representatives.

ENRIQUE ARCILLA WINS MOJAVE WATER AGENCY ESSAY CONTEST

HON. PAUL COOK

OF CALIFORNIA

IN THE HOUSE OF REPRESENTATIVES

Tuesday, April 12, 2016

Mr. COOK. Mr. Speaker, I rise today to congratulate Apple Valley, California resident Enrique Arcilla for earning first place in a student essay competition for the Mojave Water Agency. For winning the competition, Enrique will receive a $5,000 scholarship.

The theme of the competition was ''Predicting Our Future by Our Own Design,'' with a goal of increasing discussion about ensuring water reliability in the High Desert. Enrique's winning essay was titled ''The Path to Sustainability.''

On April 13, 2016, Enrique will present his essay at the 2016 High Desert Water Summit. Other finalists, who will receive $1,000 scholarships, were Raeven Jones of Apple Valley, Nolan Serumaga of Victorville, Emilia Cloutman of Hesperia, and Geng-Wei Lee of Barstow.

Again, congratulations to Enrique and all the finalists on this impressive achievement and for their interest in water conservation. Water usage is a particularly important issue for my district and California as a whole. Keep up the great work.

6TH ANNIVERSARY OF THE SMOLENSK DISASTER

HON. MICHAEL G. FITZPATRICK

OF PENNSYLVANIA

IN THE HOUSE OF REPRESENTATIVES

Tuesday, April 12, 2016

Mr. FITZPATRICK. Mr. Speaker, it is with sadness that I join in acknowledging the sixth anniversary of the Smolensk Disaster, a tragedy that claimed the lives of Polish President Lech Kaczynski, his wife, Maria, and 94 others aboard a government aircraft on April 10, 2010. Among the victims were high-ranking generals and government officials, clergy, anti-communist leaders and the family members of victims enroute to a ceremony for the 1940 Katyn Forest Massacre. Also on the plane was one American citizen on an official mission for the City of Chicago. The crash at Smolensk North Military Airfield in western Russia is central to the event sponsored by the Commemoration Committee for the Smolensk Disaster and held at the National Shrine of Our Lady of Czestochowa in Doylestown, Pennsylvania. On Sunday, April 17, 2016 prayers will be offered for the souls of the 96 crash victims and honor those who served their country.

TRIBUTE TO SARA BONNEY

HON. DAVID YOUNG

OF IOWA

IN THE HOUSE OF REPRESENTATIVES

Tuesday, April 12, 2016

Mr. YOUNG of Iowa. Mr. Speaker, I rise today to recognize and congratulate Sara Bonney for being named a 2016 Forty Under 40 honoree by the award-winning central Iowa publication, Business Record.

Since 2000, Business Record has undertaken an exhaustive annual review to identify a standout group of young leaders in the Greater Des Moines Area that are making an impact in their communities and their careers. Each year, forty up-and-coming community and business leaders under 40 years of age are selected for this prestigious honor based on a combined criteria of community involvement and success in their chosen career field. The 2016 class of Forty Under 40 honorees will join an impressive roster of 640 business leaders and growing.

Sara works as the director of marketing and communications at the Community Foundation of Greater Des Moines. She works tirelessly to promote the story that the Community Foundation has to tell, making the city of Des Moines a better place. Sara has also dedicated her time and talents to her community outside of her professional life. She has served on the Blank Children's Hospital Festival of Trees and Lights Gala Committee, Greater Des Moines Partnership Communications Advisory Council, Polk County Housing Trust Fund Marketing Committee, and Iowa Department of Cultural Affairs Celebrate Iowa Gala Committee. She was taught at a young age that you get more when you give.

Mr. Speaker, it is a profound honor to represent leaders like Sara in the United States Congress and it is with great pride that I recognize and applaud her for utilizing her talents to better both her community and the great State of Iowa. I ask that my colleagues in the

United States House of Representatives join me in congratulating Sara on receiving this esteemed designation, thanking those at Business Record for their great work, and wishing each member of the 2016 Forty Under 40 class a long and successful career.

ESSAY BY INGRID WU

HON. PETE OLSON

OF TEXAS

IN THE HOUSE OF REPRESENTATIVES

Tuesday, April 12, 2016

Mr. OLSON. Mr. Speaker, I am privileged to interact with some of the brightest students in the 22nd Congressional District who serve on my Congressional Youth Advisory Council. I have gained much by listening to the high school students who are the future of this great nation. They provide important insight from across the political spectrum that sheds a light on the concerns of our younger constituents. Giving voice to their priorities will hopefully instill a better sense of the importance of being an active participant in the political process. Many of the students have written short essays on a variety of topics and I am pleased to share them with my House colleagues.

Ingrid Wu attends Clements High School in Sugar Land, Texas. The essay topic is: What makes the political process in Congress so challenging?

One of the most challenging aspects of Congress is developing efficient communication. In our current political bill making process, as bills are passed along, discussed, voted, and decided on like a game of telephone. It may lose momentum and the vigor of one bill at the beginning of its life cycle wanes as time passes and it gets reviewed and revised over and over. Of course, when it comes to dealing with the laws of the country, everything should be reviewed with scrutiny; however, maintaining the life behind a bill is also important and a hard job of Congress.

Additionally, Congress is also met with difficulties regarding opposing opinions. In our current era, politics is something that is increasingly gaining popularity. We see it on TV talk shows, highway billboards, school posters, and even on daily consumer products. With America's two major parties—Republicans and Democrats—having such a profound influence on the opinions of society and, thus, politics, much is hindered. For example, just recently, Congress was met with the challenge of repealing the Affordable Care Act and, through this, the clash of ideals and beliefs caused the process to be in a standstill. Visibly, the repeated efforts of Congress went to vain. In recent years, the number of bills passed has been continuously decreasing. Compromising both sides of the political spectrum and creating a bill to encompass the beliefs if both sides is a necessary and difficult responsibility of Congress. One reason why such a situation is happening may be partially due to either the processes and weight of Congressional action but also the unwillingness of both branches and the party backing the majority of both the cede in some areas and the lack of constraints, especially time constraints.

Finally, another challenge of Congress is to understand the people's wants and needs, for understanding these subjects is a way to foresee which ways politics should lean and what exactly needs to be done. Through many different facets, even the Congressional Youth Advisory Council, Congress has taken initiatives to seek the opinions and analyze the lives of individuals on a small scale. Through similar programs of community outreach and developing the next generation, Congress has made great effort to reign in this challenge.

RECOGNIZING THE CONTRIBUTIONS OF ILLINOIS REPRESENTATIVE DAVID LEITCH

HON. DARIN LaHOOD

OF ILLINOIS

IN THE HOUSE OF REPRESENTATIVES

Tuesday, April 12, 2016

Mr. LaHOOD. Mr. Speaker, I would like to honor Illinois State Representative David Leitch for his tireless contributions and dedication to public service in the State of Illinois.

Representative David Leitch, State Representative of the 73rd House District of Illinois and a resident of the 18th Congressional District, has dedicated nearly three decades serving his constituents in the Illinois General Assembly. His top-notch commitment to providing timely and effective constituent service to citizens has remained steadfast since he was sworn into office 27 years ago.

Representative Leitch has built a statewide reputation, establishing himself as a leader in matters pertaining to our health care system and especially mental health care in Illinois.

A primary focus of his work has been advocacy for establishing a strong community-based mental health system in our state. He convened providers beginning 15 years ago to form the Central Illinois Coalition for Mental Health Recovery. Among its accomplishments are a Mental Health Court, a psychiatric residency at the University of Illinois-College of Medicine in Peoria, and a Crisis Center designed to divert at-risk individuals to treatment rather than emergency rooms or jail. Most recently, he passed legislation enabling college students to allow their family to be notified in the event they are struggling with depression or suicidal thoughts and legislation which improves the inclusion of mental health services for older adults into primary care health settings. His outstanding advocacy on mental health and substance abuse issues has not gone unrecognized with accolades from the Heartland Health Services, a federally designated community health organization in Central Illinois, commending his life's work in the improvement of public health policy and his receipt of the statewide President's Award from the Community Behavioral Healthcare Association.

Outside of his advocacy on issues regarding mental health recovery, Rep. Leitch is credited with passing the first state law in the nation requiring insurance coverage for mammograms, he passed the first state law in the nation allowing for the collection of cord blood stem cells, he secured funding for the expansion of the Illinois Central College campus in East Peoria and arranged the acquisition of the ICC North campus in Peoria after the closure of Zeller Mental Health Center. Illinois Central College named the David R. Leitch Career Center in honor of his dedication to the community college. Nationally, he has received the Dr. Nathan Davis Award as State Legislator of the Year in the U.S. by the American Medical Association as well as over 75 other legislator of the year (or equivalent) awards.

Representative Leitch's steadfast work to improve the lives of citizens throughout our great state embodies the manner in which progress can be made for the greater good and citizens of Illinois. Rep. Leitch epitomizes the standard for which current—and future—public servants should strive to emulate to help improve lives within our communities.

It is with great honor that I have had the ability to call Representative Leitch not only a colleague but also a friend for many years. I want to congratulate him on his tireless advocacy for the mental health community and his dedicated service to the State of Illinois.

HONORING MIA WILLIAMS 2016 WASHINGTON STATE MIDDLE LEVEL PRINCIPAL OF THE YEAR

HON. ADAM SMITH

OF WASHINGTON

IN THE HOUSE OF REPRESENTATIVES

Tuesday, April 12, 2016

Mr. SMITH of Washington. Mr. Speaker, I rise to honor Mia Williams, the principal of Aki Kurose Middle School, who has been recognized as the winner of the prestigious 2016 Washington State Middle Level Principal of the Year Award.

The Washington State Middle Level Principal of the Year Award, given by the Association of Washington School Principals (AWSP), recognizes middle school principals who have an extraordinary impact on their students' academic success and who make great contributions to their profession. Ms. Williams stood out among a field of other highly eligible candidates.

Ms. Williams has been the principal at Aki Kurose Middle School in Rainier Beach since 2008. Since that time, she has worked tirelessly to ensure the success of her students by listening to their needs and adjusting policy and procedures based on their recommendations. Under Ms. Williams' leadership, test scores have consistently improved across the board for Aki Kurose students and continue to improve due to her persistence and continued dedication to her students. Since her arrival at Aki Kurose, the student population has grown from 420 students to 700 students. At the same time, Ms. Williams has overseen a 50 percent reduction in student absenteeism and has made progress on closing the opportunity gap. She has carefully cultivated an environment where students feel supported and capable of reaching their full potential.

Ms. Williams was a teacher in the Seattle School District before completing the Danforth Educational Leadership Program at the University of Washington to pursue her dream of serving as a principal. Her skills were recently recognized by the Johns Hopkins University's Everyone Graduates Center, who invited Ms. Williams to the White House to participate in a panel where she shared her knowledge about effective strategies to reduce chronic absenteeism.

Mr. Speaker, it is with great honor that I recognize principal Mia Williams for earning the Washington State Middle Level Principal of the Year Award. She is an inspiration to all.

RECOGNIZING THE NATIONAL COLLEGIATE HONORS COUNCIL

HON. LOIS FRANKEL

OF FLORIDA

IN THE HOUSE OF REPRESENTATIVES

Tuesday, April 12, 2016

Ms. FRANKEL of Florida. Mr. Speaker, I rise today to congratulate the National Collegiate Honors Council on their 50th anniversary. The National Collegiate Honors Council serves over 325,000 honors scholars at over 800 colleges and universities, including Broward College in my district. Created in 1982, Broward College's Robert Elmore Honors Institute supports over 1,200 honor students annually.

Sixteen students from the college have been awarded the prestigious Jack Kent Cooke Undergraduate Transfer Scholarship, the second highest total in the Nation. Many of these scholarship recipients have gone on to be successful thinkers, working for companies such as Facebook.

In the words of founding director Dr. Mary Jo Henderson, ''The essential worth of our honors programs is not resulting scholarship or award but the experience itself''. I commend Broward College and the National Collegiate Honors Council for creating an experience that cultivates the leaders of tomorrow.

ESSAY BY EMILY JUE

HON. PETE OLSON

OF TEXAS

IN THE HOUSE OF REPRESENTATIVES

Tuesday, April 12, 2016

Mr. OLSON. Mr. Speaker, I am privileged to interact with some of the brightest students in the 22nd Congressional District who serve on my Congressional Youth Advisory Council. I have gained much by listening to the high school students who are the future of this great nation. They provide important insight from across the political spectrum that sheds a light on the concerns of our younger constituents. Giving voice to their priorities will hopefully instill a better sense of the importance of being an active participant in the political process. Many of the students have written short essays on a variety of topics and I am pleased to share them with my House colleagues.

Emily Jue attends Clear Springs High School in League City, Texas. The essay topic is: Select an important event that has occurred in the past year and explain how that event has changed/shaped our country.

An important event that occurred this past year was the legalization of same-sex marriage throughout the country. Thousands of Americans gathered in Washington D.C. to hear the ruling of the Supreme Court on same-sex marriage. On June 26, 2015 the Supreme Court declared through a vote of 5–4 that all Americans would be able to marry nationwide, no matter their gender or sexual orientation. This ruling made the United States the twenty-first country to legalize same-sex marriage and specifically affected thirteen states that had a ban on same-sex marriage. This momentous event brought a new civil right to the United States and a victory to gay rights advocates.

The legalization of same-sex marriage has changed our country by offering the privilege of marriage to couples that are not the traditional ''male and female'' couples. Marriage offers a promise of love and commitment within couples and through the legalization of same-sex marriage, couples of the same-sex are able to give the same commitment and love that traditional male and female couples are able to give. The legalization of same-sex marriage in the United States also represents acceptance and equality to those in the LGBTQ community by offering these people the same civil rights as other citizens in the country have. By giving this fundamental freedom to couples of the same-sex, the United States is able to offer equality to all couples regardless of gender or sexual orientation.

The legalization of same-sex marriage has also changed our country by normalizing and bringing acceptance to those of the LGBTQ community. By allowing people in the LGBTQ community to marry, the United States fosters a sense of acceptance to these people who are sometimes treated with disrespect and contempt. Through accepting same-sex marriage, the United States accepts those in the LGBTQ community which is a step towards the equality for all people and has had momentous impacts on the United States. By legalizing same-sex marriage, the United States moves one step closer to equality for all people, regardless of gender or orientation, and offers a beacon of hope to those in the LGBTQ community and a means for acceptance.

TRIBUTE TO SOPHIA S. AHMAD

HON. DAVID YOUNG

OF IOWA

IN THE HOUSE OF REPRESENTATIVES

Tuesday, April 12, 2016

Mr. YOUNG of Iowa. Mr. Speaker, I rise today to recognize and congratulate Sophia S. Ahmad for being named a 2016 Forty Under 40 honoree by the award-winning central Iowa publication, Business Record.

Since 2000, Business Record has undertaken an exhaustive annual review to identify a standout group of young leaders in the Greater Des Moines Area that are making an impact in their communities and their careers. Each year, forty up-and-coming community and business leaders under 40 years of age are selected for this prestigious honor based on a combined criteria of community involvement and success in their chosen career field. The 2016 class of Forty Under 40 honorees will join an impressive roster of 640 business leaders and growing.

Sophia is the vice president of public relations at the Greater Des Moines Partnership and works tirelessly to develop and promote the overall image of Central Iowa. Her work proves that Central Iowa is a perfect place to build a business, career, and a family. Sophia is among the most dedicated leaders in the community. She has volunteered her time to the Greater Des Moines Leadership Institute's Curriculum Committee, Winefest Des Moines' Grand Cru, Couture for a Cause, and a number of other local volunteer organizations. Not only does Sophia dedicate herself to her work and her community, in her spare time she likes to play piano, because she's a professionally trained classical pianist.

Mr. Speaker, it is a profound honor to represent leaders like Sophia in the United States Congress and it is with great pride that I recognize and applaud her for utilizing her talents to better both her community and the great state of Iowa. I ask that my colleagues in the United States House of Representatives join me in congratulating Sophia on receiving this esteemed designation, thanking those at Business Record for their great work, and wishing each member of the 2016 Forty Under 40 class a long and successful career.

FOURTH DISTRICT OF COLORADO DELEGATES AT THE CONGRESS OF FUTURE SCIENCE AND TECHNOLOGY LEADERS

HON. KEN BUCK

OF COLORADO

IN THE HOUSE OF REPRESENTATIVES

Tuesday, April 12, 2016

Mr. BUCK. Mr. Speaker, I rise today to recognize nine high school students from the fourth district of Colorado, who have been chosen to represent the state of Colorado as delegates at the Congress of Future Science and Technology Leaders. The students are Christine Evans of Lyons Middle-Senior High School, Benjamin Gryboski of Dayspring Christian Academy, Brandon Lelievre of Windsor High School, Alessandra Linero of Chaparral High School, Crystal Pike of Valley High School, Courtney Ross of Yuma High School, Hannah Spain of Douglas County High School, Sara Stavaski of Rock Canyon High School, and Hanna Storey of Douglas County High School.

The Congress of Future Science and Technology Leaders is an honors program that recognizes exceptional high school students who are pursuing careers as engineers, scientists, or technologists.

These students are the future leaders of the STEM fields and our country. Through their studies, they have embodied the meaning of hard work and perseverance to achieve their goals, and will advance science and technology for future generations.

Mr. Speaker, I am delighted to recognize these nine students for their hard work and service to their community. I wish them luck in their future endeavors.

HONORING CARR'S STEAKHOUSE

HON. ED WHITFIELD

OF KENTUCKY

IN THE HOUSE OF REPRESENTATIVES

Tuesday, April 12, 2016

Mr. WHITFIELD. Mr. Speaker, I rise today to honor Carr's Steakhouse in Mayfield, Kentucky, on receiving the National Restaurant Association's ''Restaurant Neighbor Award.'' This award was established to honor restaurants in the field of outstanding community service and involvement. Carr's Steakhouse is among four national winners to receive this award during a gala dinner tonight here in Washington, D.C.

Though the Carr family has had extensive ties to the community through their BBQ business in town for more than 60 years, Carr's Steakhouse is only six years old but already has an impressive record of giving back. The restaurant hosts an All-Kids-In event that raises funds to assist children enrolling in youth sports and activities, regardless of a

family's ability to pay. They also donate excess food to local homeless shelters; provide meals for the area's high school football teams; partner with community and school groups to host fundraisers as well as the community's Empty Bowls Project to support local food pantries.

Carr's Steakhouse sees community involvement as a win-win for the restaurant as well as the community. This was exhibited recently when General Manager, Daniel Carr, hosted a fundraiser for Princess Theaters of Mayfield. Saddled with outdated amenities and technology, the theater was struggling to stay afloat and in desperate need of upgrades. Carr decided he wanted to do more than raise money—he wanted to send a strong message to the theater's owner that the community was behind them. The response was overwhelming when Carr's provided a free meal for a donation to the movie theater. In just a few hours, the 200-seat restaurant raised more than $5,000 to be used for stadium seating and digital projectors.

This is just one of several examples of Carr's Steakhouse going above and beyond to help their community. Businesses such as Carr's Steakhouse make me proud to represent the First Congressional District of Kentucky and I am pleased they are receiving the recognition they deserve for their ongoing commitment to the community.

RECOGNIZING THE RETIREMENT OF BEN SLADE FROM THE ST. SIMONS LAND TRUST

HON. EARL L. "BUDDY" CARTER

OF GEORGIA

IN THE HOUSE OF REPRESENTATIVES

Tuesday, April 12, 2016

Mr. CARTER of Georgia. Mr. Speaker, I rise today to recognize Mr. Ben Slade and all of his accomplishments as Executive Director of the St. Simons Land Trust.

Over the last 11 years, the St. Simons Land Trust has worked to preserve land on St. Simons Island, Georgia, which is home to 12,000 residents, a multitude of marshes, creeks, rivers, and fish, as well as the endangered North Atlantic Right Whale. The Land Trust works with willing property owners to preserve the beautiful land of this region and its significance to Georgia's natural habitat.

Mr. Slade has worked with the St. Simons Land Trust since its inception, leading the company from a small group to an organization that now includes 1,250 member households and 776 acres of land. During his time with the organization, Mr. Slade's numerous accomplishments have been critical to the environmental success of the island. One of his most important accomplishments was his leadership in the purchase of the 604 acre Cannon's Point area on St. Simons—the last intact maritime forest on the island.

Over Mr. Slade's career, he has continuously worked to aid the St. Simons community including his time as the Chairman and CEO of the First Federal Savings Bank of Brunswick, the founding Chair of Habitat for Humanity of Glynn County, and President of the Chamber of Commerce.

Later this year, Mr. Slade will retire as the Executive Director of the St. Simons Land Trust. I rise today to recognize his effort and accomplishments in bettering the island of St. Simons and wish him the best with his future endeavors.

A TRIBUTE TO ZACHARY BALES-HENRY

HON. DAVID YOUNG

OF IOWA

IN THE HOUSE OF REPRESENTATIVES

Tuesday, April 12, 2016

Mr. YOUNG of Iowa. Mr. Speaker, I rise today to recognize and congratulate Zachary Bales-Henry for being named a 2016 Forty Under 40 honoree by the award-winning central Iowa publication, Business Record.

Since 2000, Business Record has undertaken an exhaustive annual review to identify a standout group of young leaders in the Greater Des Moines Area that are making an impact in their communities and their careers. Each year, forty up-and-coming community and business leaders under 40 years of age are selected for this prestigious honor based on a combined criteria of community involvement and success in their chosen career field. The 2016 class of Forty Under 40 honorees will join an impressive roster of 640 business leaders and growing.

Zachary serves as a real estate broker at RE/MAX Precision, a firm he started with his business partner, and works tirelessly to provide outstanding customer service to his clients throughout the home buying process. Zachary's resume outside of his professional life is just as impressive. He has started his own foundation that is dedicated to providing scholarships for students with learning disabilities. Zachary was also recently elected to the Windsor Heights City Council, where he continues his dedication to community involvement and improving the lives of others.

Mr. Speaker, it is a profound honor to represent leaders like Zachary in the United States Congress and it is with great pride that I recognize and applaud him for utilizing his talents to better both his community and the great state of Iowa. I ask that my colleagues in the United States House of Representatives join me in congratulating Zachary on receiving this esteemed designation, thanking those at Business Record for their great work, and wishing each member of the 2016 Forty Under 40 class a long and successful career.

CUBA-U.S. RELATIONS BY EMILY GUENTHER

HON. PETE OLSON

OF TEXAS

IN THE HOUSE OF REPRESENTATIVES

Tuesday, April 12, 2016

Mr. OLSON. Mr. Speaker, I am privileged to interact with some of the brightest students in the 22nd Congressional District who serve on my Congressional Youth Advisory Council. I have gained much by listening to the high school students who are the future of this great nation. They provide important insight from across the political spectrum that sheds a light on the concerns of our younger constituents. Giving voice to their priorities will hopefully instill a better sense of the importance of being an active participant in the political process. Many of the students have written short essays on a variety of topics and I am pleased to share them with my House colleagues.

Emily Guenther attends Dawson High School in Pearland, Texas. The essay topic is Cuba-U.S. Relations.

The United States and Cuba severed relations in 1961 because of speculation that the Cuban government could not be trusted. At that time, Fidel Castro established trade ties with the Soviet Union amid rumors that the U.S. was using the embassy for spies, which caused tension between the two. And for more than 50 years the conflict between the two countries has continued.

But in July of 2015, Cuba and The United States re-established relations and opened embassies in Havana and Washington D.C. This event has triggered much debate; with many Americans believing that this is an opportunity to regain trust with Cuba and open new areas of growth. This has been a hot topic in Washington because of the different views and opinions from both sides.

Many favor renewed relations as positive step, especially for the people along the coast with many immigrants settling in places such as Florida. They also argue that with mutual cooperation on issues such as exploration for oil, and increased trade and tourism, this can be a large boost of economy that will be crucial in the building of ties with Cuba.

Others have reacted more negatively and strongly oppose mending relations until numerous issues are addressed. Some find that Fidel Castro not being punished for his dictatorship and the lack of human rights is unfair for the citizens of Cuba.

After the new relations were addressed some things were changed quickly such as travel to and from Cuba becoming a lot easier, and few minor business deals being established. But as some relations have been established, most things remain the same; the embargo of trade with Cuba by the U.S. is still in place, which only Congress can change. And Cuba remains a communist government without free elections and still has questionable human rights issues that must be addressed. There continues to be much debate with little change since both embassies were established, and it will be difficult to undo relationships that have been hardened for many years.

Daily Digest
Senate

Chamber Action

Routine Proceedings, pages S1881–S1981

Measures Introduced: Eight bills and one resolution were introduced, as follows: S. 2778–2785, and S. Res. 418. **Page S1912**

Measures Passed:

Fraud Reduction and Data Analytics Act: Senate passed S. 2133, to improve Federal agency financial and administrative controls and procedures to assess and mitigate fraud risks, and to improve Federal agencies' development and use of data analytics for the purpose of identifying, preventing, and responding to fraud, including improper payments, after agreeing to the following amendment proposed thereto: **Page S1981**

McConnell (for Carper/Tillis) Amendment No. 3684, relative to the establishment of financial and administrative controls relating to fraud and improper payments. **Page S1981**

Measures Considered:

America's Small Business Tax Relief Act—Agreement: Senate continued consideration of H.R. 636, to amend the Internal Revenue Code of 1986 to permanently extend increased expensing limitations, taking action on the following amendments proposed thereto: **Pages S1893–S1909**

Rejected:

Thune/Nelson Amendment No. 3464, in the nature of a substitute. (Senate tabled the amendment.) **Pages S1893, S1909**

Pending:

McConnell (for Thune/Nelson) Amendment No. 3679, in the nature of a substitute. **Page S1909**

Thune Amendment No. 3680 (to Amendment No. 3679), of a perfecting nature. **Page S1909**

A motion was entered to close further debate on McConnell (for Thune/Nelson) Amendment No. 3679 (listed above), and, in accordance with the provisions of rule XXII of the Standing Rules of the Senate, a vote on cloture will occur on Thursday, April 14, 2016. **Page S1909**

A motion was entered to close further debate on the bill, and, in accordance with the provisions of rule XXII of the Standing Rules of the Senate, a vote on cloture will occur upon disposition of McConnell (for Thune/Nelson) Amendment No. 3679. **Page S1909**

During consideration of this measure today, Senate also took the following action:

Thune (for Gardner) Amendment No. 3460 (to Amendment No. 3464), to require the FAA Administrator to consider the operational history of a person before authorizing the person to operate certain unmanned aircraft systems, fell when Senate tabled Thune/Nelson Amendment No. 3464 (listed above). **Page S1893**

Cantwell Amendment No. 3490 (to Amendment No. 3464), to extend protections against physical assault to air carrier customer service representatives, fell when Senate tabled Thune/Nelson Amendment No. 3464 (listed above). **Pages S1893–S1909**

A unanimous-consent agreement was reached providing for further consideration of the bill at approximately 10:30 a.m., on Wednesday, April 13, 2016. **Page S1981**

Executive Communications: **Pages S1911–12**

Additional Cosponsors: **Pages S1912–13**

Statements on Introduced Bills/Resolutions: **Pages S1913–16**

Additional Statements: **Page S1911**

Amendments Submitted: **Pages S1916–80**

Authorities for Committees to Meet: **Pages S1980–81**

Adjournment: Senate convened at 10 a.m. and adjourned at 6:30 p.m., until 9:30 a.m. on Wednesday, April 13, 2016. (For Senate's program, see the remarks of the Majority Leader in today's Record on page S1981.)

Committee Meetings

(Committees not listed did not meet)

APPROPRIATIONS: SEC AND CFTC

Committee on Appropriations: Subcommittee on Financial Services and General Government concluded a hearing to examine proposed budget estimates and justification for fiscal year 2017 for the Securities

and Exchange Commission and Commodity Futures Trading Commission, after receiving testimony from Mary Jo White, Chairwoman, Securities and Exchange Commission; and Tim Massad, Chairman, Commodities Futures Trading Commission.

CAUSES AND CONSEQUENCES OF VIOLENT EXTREMISM

Committee on Appropriations: Subcommittee on State, Foreign Operations, and Related Programs concluded a hearing to examine the causes and consequences of violent extremism and the role of foreign assistance, after receiving testimony from Antony J. Blinken, Deputy Secretary of State; General James L. Jones, USMC (Ret.), Jones Group International, Vienna, Virginia; Bono, ONE, Washington, D.C.; and Kelly T. Clements, United Nations High Commissioner for Refugees, Geneva, Switzerland.

DEFENSE AUTHORIZATION REQUEST AND FUTURE YEARS DEFENSE PROGRAM

Committee on Armed Services: Subcommittee on Readiness and Management Support concluded a hearing to examine military construction, environmental, energy, and base closure programs in review of the Defense Authorization Request for fiscal year 2017 and the Future Years Defense Program, after receiving testimony from Peter J. Potochney, Performing the Duties of Assistant Secretary for Energy, Installations and Environment, Katherine G. Hammack, Assistant Secretary of the Army for Installations, Energy and Environment, Dennis V. McGinn, Assistant Secretary of the Navy for Energy, Installations and Environment, and Miranda A. A. Ballentine, Assistant Secretary of the Air Force for Installations, Environment and Energy, all of the Department of Defense.

DEFENSE AUTHORIZATION REQUEST AND FUTURE YEARS DEFENSE PROGRAM

Committee on Armed Services: Subcommittee on Emerging Threats and Capabilities concluded a hearing to examine the strategy and implementation of the Department of Defense's technology offsets initiative in review of the Defense Authorization Request for fiscal year 2017 and the Future Years Defense Program, after receiving testimony from Stephen P. Welby, Assistant Secretary for Research and Engineering, Arati Prabhakar, Director, Defense Advanced Research Projects Agency, and William B. Roper, Jr., Director, Strategic Capabilities Office, all of the Department of Defense.

INNOVATIVE TECHNOLOGIES IN ADVANCED MANUFACTURING

Committee on Energy and Natural Resources: Committee concluded a hearing to examine the status of innovative technologies in advanced manufacturing, after receiving testimony from Craig Blue, Institute for Advanced Composites Manufacturing Innovation, Knoxville, Tennessee; Leo Christodoulou, The Boeing Company, Arlington, Virginia; Doug Ward, Vigor Ketchikan, Ketchikan, Alaska; David B. Williams, The Ohio State University College of Engineering, Columbus; and Deborah L. Wince-Smith, Council on Competitiveness, Washington, D.C.

SMALL BUSINESSES' PERSPECTIVES ON EPA REGULATORY ACTIONS

Committee on Environment and Public Works: Subcommittee on Superfund, Waste Management, and Regulatory Oversight concluded a hearing to examine American small businesses' perspectives on Environmental Protection Agency regulatory actions, after receiving testimony from Michael Canty, Alloy Bellows and Precision Welding, Inc., Cleveland, Ohio, on behalf of the National Small Business Association; Tom Buchanan, Oklahoma Farm Bureau Federation, Oklahoma City, on behalf of the American Farm Bureau Federation; Thomas M. Sullivan, Nelson Mullins Riley and Scarborough, LLP, Washington, D.C.; Frank Knapp, Jr., South Carolina Small Business Chamber of Commerce, Columbia; and Emily Reichert, Greentown Labs Inc., Somerville, Massachusetts.

CYBERSECURITY AND PROTECTING TAXPAYER INFORMATION

Committee on Finance: Committee concluded a hearing to examine cybersecurity and protecting taxpayer information, focusing on the need for the Internal Revenue Service to further improve controls over taxpayer data and continue to combat identity theft refund fraud, after receiving testimony from John A. Koskinen, Commissioner, and Terence V. Milholland, Chief Technology Officer, both of the Internal Revenue Service, J. Russell George, Inspector General for Tax Administration, and Michael McKenney, Deputy Inspector General for Audit, Inspector General for Tax Administration, all of the Department of the Treasury; and Gene L. Dodaro, Comptroller General, and Gregory C. Wilshusen, Director, Information Security Issues, both of the Government Accountability Office.

ISIS AND TRANSNATIONAL TERRORISM

Committee on Foreign Relations: Committee concluded a hearing to examine the spread of ISIS and transnational terrorism, after receiving testimony from Graeme Wood, Council on Foreign Relations, Matthew Levitt, The Washington Institute for Near East Policy Stein Program on Counterterrorism and Intelligence, and Matthew G. Olsen, former Director, National Counterterrorism Center, all of Washington, D.C.

IMPROVING THE USAJOBS WEBSITE

Committee on Homeland Security and Governmental Affairs: Subcommittee on Regulatory Affairs and Federal Management concluded a hearing to examine improving the USAJOBS website, after receiving testimony from Mark D. Reinhold, Associate Director, Employee Services, Office of Personnel Management; Linda E. Brooks Rix, Avue Technologies Corporation, University Place, Washington; and Max Stier, Partnership for Public Service, Washington, D.C.

FEMA PROGRESS, PERFORMANCE, AND PREPAREDNESS

Committee on Homeland Security and Governmental Affairs: Subcommittee on Federal Spending Oversight and Emergency Management concluded a hearing to examine the Federal Emergency Management Agency, focusing on assessing progress, performance, and continuing challenges in national preparedness efforts, after receiving testimony from Timothy Manning, Deputy Administrator, Protection and National Preparedness, Federal Emergency Management Agency, and John Roth, Inspector General, both of the Department of Homeland Security; Chris Currie, Director, Homeland Security and Justice, Government Accountability Office; and John Drake, Deputy Administrator, Pipeline and Hazardous Materials Safety Administration, Department of Transportation.

ESSA IMPLEMENTATION

Committee on Health, Education, Labor, and Pensions: Committee concluded a hearing to examine Every Student Succeeds Act implementation in states and school districts, focusing on perspectives from the Secretary of Education, after receiving testimony from John King, Secretary of Education.

INTELLIGENCE

Select Committee on Intelligence: Committee held closed hearings on intelligence matters, receiving testimony from officials of the intelligence community.

Committee recessed subject to the call.

House of Representatives

Chamber Action

Public Bills and Resolutions Introduced: 21 public bills, H.R. 4899–4919; and 6 resolutions, H. Con. Res. 127; and H. Res. 670, 673–676 were introduced. **Pages H1633–34**

Additional Cosponsors: **Pages H1635–37**

Reports Filed: Reports were filed today as follows:

H.R. 1567, to authorize a comprehensive, strategic approach for United States foreign assistance to developing countries to reduce global poverty and hunger, achieve food security and improved nutrition, promote inclusive, sustainable agricultural-led economic growth, improve nutritional outcomes, especially for women and children, build resilience among vulnerable populations, and for other purposes, with an amendment (H. Rept. 114–482);

H.R. 2908, to adopt the bison as the national mammal of the United States, with an amendment (H. Rept. 114–483);

H.R. 4392, to amend title 5, United States Code, to require that the Office of Personnel Management submit an annual report to Congress relating to the use of official time by Federal employees, with an amendment (H. Rept. 114–484);

H.R. 4358, to amend title 5, United States Code, to enhance accountability within the Senior Executive Service, and for other purposes (H. Rept. 114–485);

H.R. 2615, to establish the Virgin Islands of the United States Centennial Commission, with an amendment (H. Rept. 114–486);

H.R. 2733, to require the Secretary of the Interior to take land into trust for certain Indian tribes, and for other purposes, with an amendment (H. Rept. 114–487);

H.R. 3586, to amend the Homeland Security Act of 2002 to improve border and maritime security coordination in the Department of Homeland Security, and for other purposes, with an amendment (H. Rept. 114–488, Part 1);

H. Res. 671, providing for consideration of the bill (H.R. 3340) to place the Financial Stability Oversight Council and the Office of Financial Research under the regular appropriations process, to provide for certain quarterly reporting and public notice and comment requirements for the Office of Financial Research, and for other purposes, and providing for consideration of the bill (H.R. 3791) to raise the consolidated assets threshold under the small bank holding company policy statement, and for other purposes (H. Rept. 114–489); and

H. Res. 672, providing for consideration of the bill (H.R. 2666) to prohibit the Federal Communications Commission from regulating the rates charged for broadband Internet access service (H. Rept. 114–490). **Page H1633**

Speaker: Read a letter from the Speaker wherein he appointed Representative Farenthold to act as Speaker pro tempore for today. **Page H1601**

Recess: The House recessed at 2:11 p.m. and reconvened at 4:30 p.m. **Page H1602**

Suspensions: The House agreed to suspend the rules and pass the following measures:

Adding Zika Virus to the FDA Priority Review Voucher Program Act: S. 2512, to expand the tropical disease product priority review voucher program to encourage treatments for Zika virus; **Pages H1602–05**

Financial Institution Bankruptcy Act: H.R. 2947, amended, to amend title 11 of the United States Code in order to facilitate the resolution of an insolvent financial institution in bankruptcy; **Pages H1605–10**

Preventing Crimes Against Veterans Act of 2016: H.R. 4676, amended, to amend title 18, United States Code, to provide an additional tool to prevent certain frauds against veterans, by a ⅔ yea-and-nay vote of 411 yeas with none voting "nay", Roll No. 140; and **Pages H1610–12, H1618**

Global Food Security Act: H.R. 1567, amended, to authorize a comprehensive, strategic approach for United States foreign assistance to developing countries to reduce global poverty and hunger, achieve food security and improved nutrition, promote inclusive, sustainable agricultural-led economic growth, improve nutritional outcomes, especially for women and children, and build resilience among vulnerable populations, by a ⅔ yea-and-nay vote of 370 yeas to 33 nays, Roll No. 139. **Pages H1612–18**

Recess: The House recessed at 5:40 p.m. and reconvened at 6:31 p.m. **Page H1617**

Ensuring Patient Access and Effective Drug Enforcement Act of 2016: The House agreed to take from the Speaker's table and pass S. 483, to improve enforcement efforts related to prescription drug diversion and abuse. **Pages H1618–19**

Authorizing the use of the Capitol Grounds for the National Peace Officers Memorial Service and the National Honor Guard and Pipe Band Exhibition: The House agreed to take from the Speaker's table and agree to H. Con. Res. 117, authorizing the use of the Capitol Grounds for the National Peace Officers Memorial Service and the National Honor Guard and Pipe Band Exhibition. **Page H1619**

Authorizing the use of the Capitol Grounds for the 3rd Annual Fallen Firefighters Congressional Flag Presentation Ceremony: The House agreed to take from the Speaker's table and agree to H. Con. Res. 120, authorizing the use of the Capitol Grounds for the 3rd Annual Fallen Firefighters Congressional Flag Presentation Ceremony. **Pages H1619–20**

Authorizing the use of Emancipation Hall in the Capitol Visitor Center for an event to celebrate the birthday of King Kamehameha I: The House agreed to discharge from committee and agree to H. Con. Res. 115, authorizing the use of Emancipation Hall in the Capitol Visitor Center for an event to celebrate the birthday of King Kamehameha I. **Page H1620**

Quorum Calls—Votes: Two yea-and-nay votes developed during the proceedings of today and appear on pages H1617–18, H1618. There were no quorum calls.

Adjournment: The House met at 2 p.m. and adjourned at 8:59 p.m.

Committee Meetings

NO RATE REGULATION OF BROADBAND INTERNET ACCESS ACT; FINANCIAL STABILITY OVERSIGHT COUNCIL REFORM ACT; AND A BILL TO RAISE THE CONSOLIDATED ASSETS THRESHOLD UNDER THE SMALL BANK HOLDING COMPANY POLICY STATEMENT, AND FOR OTHER PURPOSES

Committee on Rules: Full Committee held a hearing on H.R. 2666, the "No Rate Regulation of Broadband Internet Access Act"; H.R. 3340, the "Financial Stability Oversight Council Reform Act"; and H.R. 3791, to raise the consolidated assets threshold under the small bank holding company policy statement, and for other purposes. The committee granted, by voice vote, a structured rule. The rule provides one hour of general debate equally divided and controlled by the chair and ranking minority member of the Committee on Energy and Commerce. The rule waives all points of order against consideration of the bill. The rule makes in order as original text for the purpose of amendment the amendment in the nature of a substitute recommended by the Committee on Energy and Commerce now printed in the bill and provides that it shall be considered as read. The rule waives all points of order against that amendment in the nature of a substitute. The rule

makes in order only those further amendments printed in the Rules Committee report. Each such amendment may be offered only in the order printed in the report, may be offered only by a Member designated in the report, shall be considered as read, shall be debatable for the time specified in the report equally divided and controlled by the proponent and an opponent, shall not be subject to amendment, and shall not be subject to a demand for division of the question. The rule waives all points of order against the amendments printed in the report. The rule provides one motion to recommit with or without instructions. The Committee granted, by voice vote a structured rule for H.R. 3340. The rule provides one hour of debate equally divided and controlled by the chair and ranking minority member of the Committee on Financial Services. The rule waives all points of order against consideration of the bill. The rule provides that the amendment in the nature of a substitute recommended by the Committee on Financial Services now printed in the bill shall be considered as adopted and the bill, as amended, shall be considered as read. The rule waives all points of order against provisions in the bill, as amended. The rule makes in order only the further amendment printed in part A of the Rules Committee report, if offered by the Member designated in the report, which shall be considered as read, shall be debatable for the time specified in the report equally divided and controlled by the proponent and an opponent, shall not be subject to amendment, and shall not be subject to a demand for division of the question. The rule waives all points of order against the amendment printed in part A of the report. The rule provides one motion to recommit with or without instructions. The rule also granted a structured rule for H.R. 3791. The rule provides one hour of debate equally divided and controlled by the chair and ranking minority member of the Committee on Financial Services. The rule waives all points of order against consideration of the bill. The rule provides that the bill shall be considered as read. The rule waives all points of order against provisions in the bill. The rule makes in order only the amendment printed in part B of the Rules Committee report, if offered by the Member designated in the report, which shall be considered as read, shall be debatable for the time specified in the report equally divided and controlled by the proponent and an opponent, shall not be subject to amendment, and shall not be subject to a demand for division of the question. The rule waives all points of order against the amendment printed in part B of the report. The rule provides one motion to recommit with or without instructions. Testimony was heard from Chairman Hensarling, Chairman Price of Georgia, and Representatives Kinzinger of Illinois, Eshoo, Yarmuth, and Maxine Waters of California.

Joint Meetings

No joint committee meetings were held.

NEW PUBLIC LAWS

(For last listing of Public Laws, see DAILY DIGEST, *p. D330)*

S. 1180, to amend the Homeland Security Act of 2002 to direct the Administrator of the Federal Emergency Management Agency to modernize the integrated public alert and warning system of the United States. Signed on April 11, 2016. (Public Law 114–143)

COMMITTEE MEETINGS FOR WEDNESDAY, APRIL 13, 2016

(Committee meetings are open unless otherwise indicated)

Senate

Committee on Appropriations: Subcommittee on Military Construction and Veterans Affairs, and Related Agencies, business meeting to mark up proposed legislation making appropriations for fiscal year 2017 for military construction, Veterans Affairs, and related agencies, 10:15 a.m., SD–124.

Subcommittee on Department of Defense, to hold hearings to examine proposed budget estimates and justification for fiscal year 2017 for the Missile Defense Agency, 10:30 a.m., SD–192.

Subcommittee on Energy and Water Development, business meeting to mark up proposed legislation making appropriations for fiscal year 2017 for energy and water development, 2:30 p.m., SD–124.

Committee on Armed Services: Subcommittee on SeaPower, to hold hearings to examine Marine Corps ground modernization in review of the Defense Authorization Request for fiscal year 2017 and the Future Years Defense Program, 2 p.m., SR–232A.

Subcommittee on Strategic Forces, to hold hearings to examine ballistic missile defense policies and programs in review of the Defense Authorization Request for fiscal year 2017 and the Future Years Defense Program, 2:30 p.m., SR–222.

Committee on the Budget: to hold hearings to examine budgeting for outcomes to maximize taxpayer value, 10:30 a.m., SD–608.

Committee on Environment and Public Works: to hold hearings to examine the role of environmental policies on access to energy and economic opportunity, 9:30 a.m., SD–406.

Committee on Foreign Relations: to hold hearings to examine ending sexual abuse in United Nations peacekeeping, 2:15 p.m., SD–419.

Committee on Homeland Security and Governmental Affairs: to hold hearings to examine America's insatiable demand for drugs, 9:30 a.m., SD–342.

Committee on Indian Affairs: business meeting to consider the issuance of a subpoena to Environmental Protection Agency Administrator Gina McCarthy, to testify before the Senate Committee on Indian Affairs, on April 22, 2016, in Phoenix, Arizona; to be immediately followed by a hearing to examine S. 2205, to establish a grant program to assist tribal governments in establishing tribal healing to wellness courts, S. 2421, to provide for the conveyance of certain property to the Tanana Tribal Council located in Tanana, Alaska, and to the Bristol Bay Area Health Corporation located in Dillingham, Alaska, S. 2564, to modernize prior legislation relating to Dine College, S. 2643, to improve the implementation of the settlement agreement reached between the Pueblo de Cochiti of New Mexico and the Corps of Engineers, and S. 2717, to improve the safety and address the deferred maintenance needs of Indian dams to prevent flooding on Indian reservations, 2:15 p.m., SD–628.

Committee on the Judiciary: to hold hearings to examine EB–5 targeted employment areas, 10 a.m., SD–226.

House

Committee on Agriculture, Full Committee, hearing entitled ''Energy and the Rural Economy: The Impacts of Oil and Gas Production'', 10 a.m., 1300 Longworth.

Committee on Appropriations, Full Committee, markup on the Military Construction and Veterans Affairs Appropriations Bill, FY 2017, and Interim Report on the Suballocation of Budget Allocations for FY 2017, 11 a.m., 2359 Rayburn.

Subcommittee on Energy and Water Development, markup on the Energy and Water Development Appropriations Bill, FY 2017, 1:30 p.m., 2362–B Rayburn.

Subcommittee on Agriculture, Rural Development, Food and Drug Administration, and Related Agencies, markup on the Agriculture, Rural Development, Food and Drug Administration, and Related Agencies Appropriations Bill, FY 2017, 4 p.m., 2362–A Rayburn.

Committee on Armed Services, Subcommittee on Seapower and Projection Forces, hearing entitled ''Building the Navy of the Future: A Look at Navy Force Structure'', 3:30 p.m., 2118 Rayburn.

Committee on Energy and Commerce, Subcommittee on Environment and the Economy; and Subcommittee on Health, joint hearing entitled ''Flint Water Crisis: Impacts and Lessons Learned'', 10 a.m., 2123 Rayburn.

Subcommittee on Communications and Technology, hearing on seven communications bills, 10:15 a.m., 2322 Rayburn.

Committee on Financial Services, Full Committee, markup on H.R. 1486, the ''Taking Account of Bureaucrats' Spending Act of 2015''; and H.R. 4894, to repeal title II of the Dodd-Frank Wall Street Reform and Consumer Protection Act, and for other purposes, 10 a.m., 2128 Rayburn.

Committee on Foreign Affairs, Subcommittee on the Middle East and North Africa, hearing entitled ''Assessing President Obama's Middle East and North Africa FY 2017 Budget Request'', 11:30 a.m., 2172 Rayburn.

Subcommittee on Asia and the Pacific, hearing entitled ''Countering Extremism and the Threat of ISIS in Southeast Asia'', 2 p.m., 2172 Rayburn.

Subcommittee on Africa, Global Health, Global Human Rights, and International Organizations, hearing entitled ''Peacekeepers: Allegations of Abuse and Absence of Accountability at the United Nations'', 2 p.m., 2200 Rayburn.

Committee on the Judiciary, Full Committee, markup on S. 125, the ''Bulletproof Vest Partnership Grant Program Reauthorization Act of 2015''; and H.R. 699, the ''Email Privacy Act'', 10:30 a.m., 2141 Rayburn.

Committee on Natural Resources, Full Committee, hearing on a discussion draft of the ''Puerto Rico Oversight, Management, and Economic Stability Act'', 10 a.m., 1324 Longworth.

Subcommittee on Water, Power and Oceans, hearing entitled ''Empowering States and Western Water Users Through Regulatory and Administrative Reforms'', 1 p.m., 1334 Longworth.

Full Committee, markup on H.R. 4900, the ''Puerto Rico Oversight, Management, and Economic Stability Act (PROMESA)'', 5 p.m., 1324 Longworth.

Committee on Oversight and Government Reform, Full Committee, hearing entitled ''Waste and Inefficiency in the Federal Government: GAO's 2016 Duplication Report'', 10 a.m., 2154 Rayburn.

Subcommittee on Transportation and Public Assets; and Subcommittee on Government Operations, joint hearing entitled ''Examining the Safety and Service of D.C. Metro'', 2 p.m., 2154 Rayburn.

Committee on Small Business, Subcommittee on Economic Growth, Tax and Capital Access, hearing entitled ''Keep It Simple: Small Business Tax Simplification and Reform, Main Street Speaks'', 11 a.m., 2360 Rayburn.

Full Committee, hearing entitled ''Keep It Simple: Small Business Tax Simplification and Reform, the Commissioner Responds'', 2:30 p.m., 2360 Rayburn.

Committee on Veterans' Affairs, Subcommittee on Disability Assistance and Memorial Affairs, hearing on H.R. 3936, the ''VET Act''; H.R. 4087, the ''Fair Treatment for Families of Veterans Act''; H.R. 4757, to amend title 38, United States Code, to expand the eligibility for headstones, markers, and medallions furnished by the Secretary of Veterans Affairs for deceased individuals who were awarded the Medal of Honor and are buried in private cemeteries; H.R. 4758, to amend title 38, United States Code, to authorize the award of the Presidential Memorial Certificate to certain deceased members of the reserve components of the Armed Forces and certain deceased members of the Reserve Officers' Training Corps; H.R. 4759, to amend title 38, United States Code, to authorize the Secretary of Veterans Affairs to pay costs relating to the transportation of certain deceased veterans to veterans' cemeteries owned by a State or tribal organization; H.R. 4782, the ''Veterans' Compensation Cost-of-Living Adjustment Act of 2016''; H.R. 3715, the ''Final Farewell Act of 2015''; a draft of the ''Medal of Honor Legacy Act''; a draft of the ''Love Lives On Act of 2016'';

a draft bill to amend title 38, United States Code, to improve the consideration of evidence by Board of Veterans' Appeals; and a draft bill to amend title 38, United States Code, to pay special compensation to certain veterans with the loss or loss of use of creative organs, 10 a.m., 334 Cannon.

Committee on Ways and Means, Full Committee, markup on H.R. 3724, the "Ensuring Integrity in the IRS Workforce Act of 2015"; H.R. 4890, to impose a ban on the payment of bonuses to employees of the Internal Revenue Service until the Secretary of the Treasury develops and implements a comprehensive customer service strategy; H.R. 4885, the "IRS Oversight While Eliminating Spending (OWES) Act of 2016"; H.R. 1206, the "No Hires for the Delinquent IRS Act", 10 a.m., 1100 Longworth.

Subcommittee on Tax Policy, hearing on Member proposals relating to fundamental reform of the income tax system, 3:30 p.m., 1100 Longworth.

Permanent Select Committee on Intelligence, Subcommittee on Department of Defense Intelligence and Overhead Architecture, hearing entitled "Ongoing Intelligence Activities", 4:30 p.m., HVC–304. This hearing will be closed.

Joint Meetings

Joint Congressional Committee on Inaugural Ceremonies—2016: organizational business meeting to consider an original resolution authorizing expenditures for committee operations and committee's rules and procedure for the 114th Congress, 2:15 p.m., S–219, Capitol.

Next Meeting of the **SENATE**

9:30 a.m., Wednesday, April 13

Senate Chamber

Program for Wednesday: After the transaction of any morning business (not to extend beyond one hour), Senate will continue consideration of H.R. 636, America's Small Business Tax Relief Act (the legislative vehicle for the Federal Aviation Administration Reauthorization Act).

Next Meeting of the **HOUSE OF REPRESENTATIVES**

10 a.m., Wednesday, April 13

House Chamber

Program for Wednesday: Consideration of H. Res. 671—Providing for consideration of H.R. 3791—To Raise the Consolidated Assets Threshold Under the Small Bank Holding Company Policy Statement and H.R. 3340—Financial Stability Oversight Council Reform Act. Consideration of H. Res. 672—Providing for consideration of H.R. 2666—No Rate Regulation of Broadband Internet Access Act. Consideration of the following measures under suspension of the rules: 1) H.R. 3586—Border and Maritime Coordination Improvement Act, 2) H.R. 4482—Southwest Border Security Threat Assessment Act of 2016, 3) H.R. 4509—State and High-Risk Urban Area Working Group Act, 4) H.R. 4549—Treating Small Airports with Fairness Act of 2016, and 5) H.R. 4403—Enhancing Overseas Traveler Vetting Act.

Extensions of Remarks, as inserted in this issue

HOUSE

Aguilar, Pete, Calif., E421
Barletta, Lou, Pa., E402, E403, E405, E406
Barr, Andy, Ky., E419
Bonamici, Suzanne, Ore., E411
Boustany, Charles W., Jr., La., E424
Brown, Corrine, Fla., E419, E424
Buck, Ken, Colo., E408, E423, E427, E432
Byrne, Bradley, Ala., E410
Calvert, Ken, Calif., E417
Carter, Earl L. ''Buddy'', Ga., E409, E426, E433
Coffman, Mike, Colo., E414
Cook, Paul, Calif., E402, E415, E430
Costa, Jim, Calif., E420
Courtney, Joe, Conn., E418
Dingell, Debbie, Mich., E413
Donovan, Daniel M., Jr, N.Y., E407, E409, E410, E411, E412
Ellison, Keith, Minn., E406
Emmer, Tom, Minn., E409, E425
Farenthold, Blake, Tex., E413, E415, E421
Fitzpatrick, Michael G., Pa., E405, E416, E430
Frankel, Lois, Fla., E408, E420, E432
Garamendi, John, Calif., E401
Graves, Sam, Mo., E423
Higgins, Brian, N.Y., E407
Huffman, Jared, Calif., E415
Hurd, Will, Tex., E410
Jackson Lee, Sheila, Tex., E423
Keating, William R., Mass., E426
Kildee, Daniel T., Mich., E407
LaHood, Darin, Ill., E405, E417, E431
Lujan Grisham, Michelle, N.M., E404, E416
MacArthur, Thomas, N.J., E414
McCarthy, Kevin, Calif., E426
McCaul, Michael T., Tex., E419
Miller, Jeff, Fla., E421
Noem, Kristi L., S.Dak., E419
Norton, Eleanor Holmes, The District of Columbia, E416
Olson, Pete, Tex., E419, E420, E422, E424, E425, E427, E429, E431, E432, E433
Pascrell, Bill, Jr., N.J., E403, E412
Rangel, Charles B., N.Y., E425
Richmond, Cedric L., La., E406
Rohrabacher, Dana, Calif., E415
Roybal-Allard, Lucille, Calif., E418
Ruiz, Raul, Calif., E422
Sanford, Mark, S.C., E429
Schrader, Kurt, Ore., E402, E411
Schweikert, David, Ariz., E402
Sewell, Terri A., Ala., E428
Shimkus, John, Ill., E421
Slaughter, Louise McIntosh, N.Y., E415
Smith, Adam, Wash., E405, E417, E431
Smith, Jason, Mo., E401, E404, E408, E410, E412, E430
Speier, Jackie, Calif., E414
Thompson, Bennie G., Miss., E401, E403, E404, E408, E409, E412, E413, E417, E422, E430
Thompson, Mike, Calif., E401, E402, E403, E405, E407, E410, E411, E413, E418, E429
Van Hollen, Chris, Md., E409
Walden, Greg, Ore., E428
Walters, Mimi, Calif., E423
Welch, Peter, Vt., E420
Whitfield, Ed, Ky., E425, E432
Wilson, Joe, S.C., E427
Young, David, Iowa, E418, E420, E422, E424, E426, E427, E429, E430, E432, E433
Zeldin, Lee M., N.Y., E416

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